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ABBREVIATIONS/ACRONYMS

ACP	Address Confidentiality Program
ADH	Administrative Disqualification Hearing
APECS	Automated Program to Enforce Child Support
ATP	Authorization to Participate
BBCE	Broad Based Categorical Eligibility
BEERS	Benefit Exchange Earnings Report
BENDEX	Beneficiary Data Exchange
BPS	Benefit Programs Specialist or Benefit Programs Specialists
CSR	Customer Service Representative
DCSE	Division of Child Support Enforcement
DMV	Department of Motor Vehicles
DRS	Disqualified Recipient Subsystem
D-SNAP	Disaster Supplemental Nutrition Assistance Program
EBT	Electronic Benefits Transfer
ESAP	Elderly Simplified Application Project
FIPS	Federal Information Processing Standard
FmHA	Farmers Home Administration
FNS	Food and Nutrition Service
GR	General Relief – Unattached Child
HUD	Department of Housing and Urban Development
IDA	Individual Development Account
IEVS	Income Eligibility Verification System
INA	Immigration and Naturalization Act
INS	Immigration and Naturalization Service
IPV	Intentional Program Violation
IRS	Internal Revenue Service
LIHEAP	Low Income Home Energy Assistance Program
NA	Nonassistance
ORR	Office of Refugee Resettlement
PA	Public Assistance
PIN	Personal Identification Number
POS	Point-of-Sale
QA	Quality Assurance
QC	Quality Control
SAVE	Systematic Alien Verification for Entitlement
SDX	State Data Exchange
SNAP	Supplemental Nutrition Assistance Program
SNAP E&T	SNAP Employment and Training Program
SOLQ-I	State Online Query - Internet
SPIDeR	Systems Partnering in a Demographic Repository
SSA	Social Security Administration
SSI	Supplemental Security Income
SSN	Social Security Number
SVES	State Verification Exchange System
TANF	Temporary Assistance for Needy Families

ABBREVIATIONS/ACRONYMS

USDA	United States Department of Agriculture
USCIS	United States Citizenship and Immigration Services
VA	Veterans Administration
VaCAP	Virginia Combined Application Project
VaCMS	Virginia Case Management System
VDSS	Virginia Department of Social Services
VEC	Virginia Employment Commission
VRMP	Virginia Restaurant Meals Program
WOIA	Workforce Innovation and Opportunity Act

Unless otherwise defined in specific chapters of this manual, terms defined in this section will apply whenever the term is used.

Administrative Disqualification Hearing (ADH) - An administrative disqualification hearing is an impartial review by a hearings officer of a household member's actions to determine if the member committed an Intentional Program Violation (IPV).

Application - The official request for SNAP benefits. An application may be classified as an initial or new application, a reapplication, or a recertification. See also entries for the application classifications.

Disabled Person - The definition of a disabled person that follows must be used for the:

- Determination of group home eligibility;
- Allowance of medical expenses;
- Allowance of unlimited shelter expenses
- Use of net-only income limits in determining income eligibility;
- Evaluation of conditionally-eligible immigrants;
- Allowance of the \$4,500 resource limit;
- Allowance of a 24-month certification period; and
- Exemption from 6-month interim reporting requirements.

A disabled person is one who:

- a. Is certified to receive or is actually receiving Supplemental Security Income (SSI) benefits or disability or blindness payments under one of the following titles of the Social Security Act:
 1. Title I, Grants to States for Old Age Assistance and Medical Assistance for the Aged;
 2. Title II, Federal Old Age, Survivors, and Disability Insurance Benefits;
 3. Title X, Grants to States for Aid to the Blind;
 4. Title XIV, Grants to States for Aid to the Permanently and totally Disabled; or,
 5. Title XVI, Supplemental Security Income for the Aged, Blind and Disabled.

This includes SSI presumptive disability payments (regular SSI Benefits for a three-month period paid to persons who will most likely meet SSI disability criteria), and SSI emergency advance payments (a single \$100 SSI payment provided to persons who appear to meet the SSI eligibility criteria who are considered in need of immediate assistance).

- b. Is certified to receive or receives an Auxiliary Grant.
- c. Is certified to receive or receives disability retirement benefits from a governmental agency because of a disability considered permanent under Section 221 of the Social Security Act.

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- d. Is certified to receive or receives an annuity payment under Section 2(a)(1)(iv) of the Railroad Retirement Act of 1974 and is determined to be eligible to receive Medicare by the Railroad Retirement Board; or Section 2(a)(i)(v) of the Railroad Retirement Act of 1974 and is determined to be disabled based upon the criteria used under Title XVI of the Social Security Act.
- e. Is a veteran with a service-connected or nonservice-connected disability rated or paid as total (100%), or is considered in need of regular aid and attendance or permanently housebound under Title 38 of the U.S. Code.
- f. Is a surviving spouse of a veteran and considered in need of aid and attendance or permanently housebound or a surviving child of a veteran and considered to be permanently incapable of self-support under Title 38 of the U. S. Code.
- g. Is a surviving spouse or child of a veteran and entitled to compensation for a service-connected death or pension benefits for a nonservice-connected death under Title 38 of the U. S. Code and has a disability considered permanent under the Social Security Act. For the purpose of this chapter, "entitled" means those veterans' surviving spouses and children who are receiving the compensation or benefits stated or have been approved for such payments, but are not receiving them.

For any household member claiming a permanent disability that is questionable, i.e., not apparent to the EW under this item of the definition of disability, the household shall, at the local agency's request, provide a statement from a physician or licensed or certified psychologist to assist the local agency in making a disability determination.

- h. Is a recipient of disability related medical assistance under Title XIX of the Social Security Act.
- i. Is a recipient of Federal Employee Compensation Act (FECA) payments for permanently disabled employees who opt for FECA benefits in lieu of Civil Service Retirement benefits. Temporary FECA payments to people temporarily injured on the job do not satisfy the definition of disability.

A less restrictive definition of disability is used for other policies such as the work requirement, work registration, and student identification and eligibility.

Disqualified Recipient Subsystem (DRS) - A nationwide central database of persons who have committed Intentional Program Violations (IPV).

Homeless Household - A household that lacks a fixed and regular nighttime residence or a household whose primary nighttime residence is:

- a. A supervised shelter designed to provide temporary accommodations (such as a welfare hotel or emergency shelter);
- b. A halfway house or similar institution that provides temporary residence for individuals who would otherwise be in an institution;

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- c. A temporary accommodation in the residence of another. (Temporary is defined here as having been in the home for not more than 90 days as of the date of application); or
- d. A place not designed for, or ordinarily used as a regular sleeping accommodation for human beings (e.g., as a park, bus station, hallway, lobby or similar places).

Initial or New Application - The first application for SNAP benefits filed in a locality by a household. If the household subsequently moves to another locality, the first application taken in the new locality is also a new application.

Intentional Program Violation (IPV) - An intentional program violation consists of any action by an individual of having intentionally:

- a. Made a false or misleading statement to the local agency, orally or in writing, to obtain benefits to which the household is not entitled. An IPV may exist for an individual even if the agency denies the household's application.
- b. Concealed information or withheld facts to obtain benefits to which the household is not entitled; or
- c. Committed any act that constitutes a violation of the Food and Nutrition Act, SNAP regulations, or any State statutes relating to the use, presentation, transfer, acquisition, receipt, or possession of SNAP access devices.

An IPV is also any action where an individual knowingly, willfully and with deceitful intent:

- uses SNAP benefits to buy nonfood items, such as alcohol or cigarettes;
- uses or possesses improperly obtained access devices;
- trades or sells or attempts to trade or sell access devices; or
- uses benefits to repay food purchased on credit.

Migrant Farm Worker - A farm worker who had to travel for farm work and who was unable to return to the permanent residence within the same day. See also Seasonal Farm Worker.

PA Case - A public assistance (PA) SNAP case is any case in which all household members receive or are authorized to receive income from the Temporary Assistance for Needy Families (TANF), General Relief – Unattached Child (GR) or Supplemental Security Income (SSI) Program. "Authorized to receive" income includes instances when approved benefits are not accessed, are suspended or recouped, or are less than the minimum amount for the agency to issue a payment.

A case will be a PA unit as long as each household member derives some income from TANF, GR - Unattached Child or SSI. A case will also be a PA case as long as the PA income counts toward SNAP eligibility or benefit amount, such as in the case of the Noncompliance with Another Programs of Part XII.D. Any case that contains at least one member who does not receive TANF, GR - Unattached Child or SSI is a non-assistance (NA) SNAP case.

A PA case also includes a case in which any member receives or is authorized to receive services from a program funded by the TANF block grant. Service programs must derive more than 50 percent of their funding from the TANF block grant or from state funds intended to meet the

Maintenance of Effort (MOE) for TANF funding. (The VIEW Transitional Payment is state-funded to meet the MOE obligation.) These programs must be for the purposes of:

- a. assisting needy families;
- b. promoting job preparation, work and marriage;
- c. preventing or reducing out-of-wedlock pregnancies, provided the program imposes a 200 percent of poverty income guideline; or
- d. promoting two-parent families, provided the program imposes a 200 percent of poverty income guideline.

A case that meets the criteria for broad-based categorical eligibility will be considered a categorically eligible case. The criteria for broad-based categorical eligibility consist of at least one person receiving or authorized to receive a TANF funded service, which benefits the entire household. This includes non-cash or in-kind service that is less than 50 percent funded with the TANF block grant or state funds counted for MOE purposes. The household's income must be at or below 200 percent of the federal poverty level and will not be subject to the resource asset test. With broad-based categorical eligibility, there is no requirement that there be minor children in the household.

A child removed from the TANF grant because of noncompliance with school attendance requirements continues to be a PA recipient, for SNAP purposes, as long as the TANF case status remains active.

Reapplication - Processed as an initial or new application, a reapplication is:

- a. An application filed when more than a calendar month has elapsed after the last certification end date; or
- b. An application that is filed after an adverse or negative action. An adverse or negative action is a denial of an application or termination of an ongoing case.

Recertification - The term recertification may refer to an application or the process of renewing eligibility and entitlement to benefits. A recertification application is an application filed before the certification end date or in the calendar month after the certification end date, provided the application does not follow an action to close the case.

Seasonal Farm Worker - An individual employed by another in agricultural work of a seasonal or other temporary nature. This includes employment on a farm or ranch performing fieldwork such as planting, cultivating or harvesting, or employment in related activities such as canning, packing, seed conditioning or related research, or processing operations.

Trafficking - Trafficking means:

- a. Directly or indirectly buying, selling, stealing, or otherwise obtaining SNAP benefits by an Electronic Benefits Transfer (EBT) card and Personal Identification Number (PIN) or manual voucher and signature for cash or consideration other than eligible food;
- b. Attempting to buy, sell, steal, or otherwise obtain SNAP benefits by an EBT card and PIN or manual voucher and signature for cash or consideration other than eligible food directly or indirectly;
- c. The exchange of firearms, ammunition, explosives, or controlled substances for SNAP benefits; or
- d. Purchasing a product with SNAP benefits and intentionally:
 - discarding the contents in order to return the container for the return deposit amount;
 - reselling the purchased product for cash; or
 - exchanging the purchased product for cash or for consideration other than eligible food.

Veteran – An individual who served in the United States Armed Forces (such as Army, Marine Corps, Navy, Air Force, Space Force, Coast Guard, and National Guard), including an individual who served in a reserve component of the Armed Forces, and who was discharged or released therefrom, regardless of the conditions of such discharge or release.

Virginia Restaurant Meals Program – Virginia SNAP households that include at least one member who are 60 or older, permanently disabled or experiencing homelessness would have the ability to purchase prepared meals using their Electronic Benefits Transfer (EBT) card at approved restaurants.

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A. PURPOSE OF THE SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM

A goal of the Supplemental Nutrition Assistance Program (SNAP) is to reduce hunger and increase food security. The Program permits low-income households to have a more nutritious diet through normal channels of trade by increasing the food purchasing power for eligible households. The Program also provides food when there is a disaster.

This manual provides SNAP certification procedures for Virginia. The Virginia Electronic Benefits Transfer (EBT) Policy and Procedures Guide provides guidance for the issuance of EBT cards to eligible households.

B. HISTORY OF THE SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM

The Food Stamp Program started in four Virginia localities (Lee, Wise, Dickenson and the City of Norton) during the pilot phase of its development before the establishment of the permanent program on a national basis. Through requests to operate the Program from local governing bodies, more than 70 localities in Virginia expanded the Program by June 1974. President Nixon signed the Farm Bill into law in August 1973 that required nationwide implementation of the Food Stamp Program effective July 1, 1974. Nationwide implementation of the Food Stamp Program eliminated the Surplus Commodity Program which was an alternate food program available to localities.

The Food Stamp Act of 1964 authorized the Food Stamp Program on a permanent basis. The Food Stamp Act of 1977 and subsequent amendments amended the 1964 Act and provide the basis of the current Supplemental Nutrition Assistance Program. Provisions of the Food, Conservation and Energy Act of 2008 renamed the Food Stamp Act of 1977, as amended, to the Food and Nutrition Act of 2008 and renamed the Food Stamp Program as the Supplemental Nutrition Assistance Program (SNAP).

The U.S. Department of Agriculture administers SNAP nationally through the Food and Nutrition Service (FNS). In Virginia, local departments of social services operate the Program at the county/city level under the supervision of the Virginia Department of Social Services.

C. BENEFIT ISSUANCE AND USE

Eligible households receive SNAP benefits electronically. Households receive a plastic EBT card with a magnetic stripe and must use a personal identification number (PIN) to access the benefits.

During the certification interview or other agency contact with eligible households, the agency must advise or discuss with households the following:

- How to access benefits using the EBT card.
 - The Primary Card Holder and authorized representative will each receive a card.
 - Cardholder should sign the EBT card upon receipt.
- Selecting and protecting the PIN and EBT card.
- When benefits will be available after certification and for future months and where to use the benefits. Use the EBT card at any retail store, approved restaurants, or other food

vendors authorized by USDA to accept SNAP benefits. Note that authorized retailers and restaurants participating in Virginia Restaurant Meals Program (VRMP) may display a sign indicating authorization that reads, "We accept SNAP Benefits" or similar language, or that displays the QUEST logo. Other authorized facilities include:

- Nonprofit meal delivery services, such as Meals-On-Wheels, or feeding sites for the elderly;
- Authorized drug addiction and alcoholic treatment and rehabilitation centers;
- Certain group living arrangements;
- Shelters for battered women and children; and
- Authorized nonprofit establishments that feed homeless persons and restaurants authorized to accept SNAP benefits.
- Proper use of the benefits.
 - Purchase any food or food product for human consumption; or
 - Purchase seeds and plants for use in gardens to produce food for the household's personal consumption.
- Using benefits when making purchases.
 - Separate eligible items from ineligible ones at the checkout counter unless the store is electronically programmed to identify eligible and ineligible items.
 - Advise the cashier beforehand of the intent to use SNAP benefits if electronic programming is not available to denote SNAP benefits or when the household will use EBT in conjunction with other payment methods.
- Improper use of benefits. Households may not use SNAP benefits to purchase or pay for the following:
 - Alcoholic beverages or tobacco;
 - Hot foods ready for immediate consumption or food to eat on the store's premises, excluding meals prepared by approved restaurants participating in VRMP and consumed by eligible VRMP SNAP participants;
 - Pet foods, soap products, paper products, or other non-food items usually available in a grocery store;
 - To pay back grocery bills or tabs for food received on credit;
 - Firearms, ammunition, explosives, or controlled substances; or
 - Purchasing a product with SNAP benefits and intentionally:
 - discarding the contents in order to return the container for the return deposit amount;
 - reselling a purchased product for cash; or
 - exchanging a purchased product for cash or for consideration other than eligible food.
- At reapplication or recertification, determine if another EBT card is needed.

The agency must assist households who have difficulty in accessing their SNAP benefits, such as households comprised of elderly or disabled members, homeless households or those without a fixed mailing address. For example, the agency might assist an elderly person who is housebound in finding an authorized representative who might access the household's benefit account and shop for groceries on behalf of the household. To ensure timely participation, the agency should issue a vault card to Address Confidentiality Program participants who elect to use a substitute mailing address. See Part VII.B.

Field offices for the USDA are responsible for authorizing retailers to accept SNAP benefits and are responsible for ensuring compliance of SNAP regulations by retailers. The Richmond Field Office (637) is responsible for Virginia localities. Contact information is:

Food and Nutrition Service, USDA
1606 Santa Rosa Road, Suite 239
Richmond, Virginia 23229-5014

Telephone: (804) 287-1710
Fax: (804) 287-1726

D. PERSONNEL AND OFFICE OPERATIONS (7 CFR 272.4(a))

The local department must provide qualified employees necessary to take prompt action on all applications. Local employees who certify households for participation in the Supplemental Nutrition Assistance Program must meet the same personnel standards as those used by the local agency for personnel who certify applicants for benefits under the federally aided public assistance programs. Only qualified local employees or contract staff may conduct the interview of applicant households required by Part II.D and determine the household's eligibility or ineligibility and the level of benefits. In addition, only authorized employees or agents of the state or locality, or a local issuing agency, without the ability to authorize SNAP or D-SNAP benefits, may issue EBT cards. These individuals will have update capability in the EBT administrative system. Eligibility staff are restricted to inquiry-only access to the EBT administrative system.

The local department must provide timely, accurate, and fair service to SNAP applicants and participants. Each local department must establish office procedures and operations that accommodate the needs of the populations it serves. The local department must not establish any policies, regulations, or rules that create barriers to accessing SNAP benefits. Populations with special needs may include households with members who are elderly or those who have disabilities, homeless households, and households with members who work during normal office hours. The local department must provide bilingual staff and interpreter services to households with limited English proficiency.

E. NONDISCRIMINATION

Federal law and the Virginia Human Rights Act, Virginia Code §2.2-2632 et seq., bar discrimination based on age, race, sex, disability, religious creed, national origin, and political belief. The following civil rights laws apply for SNAP:

- The Age Discrimination Act of 1975, 42 U.S.C. §6101 et seq.
- Section 504 of the Rehabilitation Act of 1973, 29 U.S.C. §794
- The Americans with Disabilities Act of 1990, 42 U.S.C. §12101 et seq.
- Title VI of the Civil Rights Act of 1964, 42 U.S.C. §2000d et seq.

Virginia has established procedures to ensure fair and equitable treatment of applicants and recipients of public assistance. The local department of social services must assure that no person will be subjected to discrimination on the grounds of age, race, color, sex, disability, religious creed, national origin, or political belief.

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Key Principles

Compliance with these laws assures that equal opportunity exists for persons with disabilities to benefit from all aspects of public assistance programs, including access to the proper support services to enable such individuals to work and to keep their families healthy, safe and intact. “Individualized treatment” and “effective and meaningful opportunity” are two key principles that underlie the bar on discrimination against people with disabilities.

Individualized Treatment

“Individualized treatment” requires that individuals with disabilities be treated on a case-by-case basis consistent with facts and objective evidence. Individuals with disabilities must not be treated based on generalizations and stereotypes.

Effective and Meaningful Opportunity

“Effective and meaningful opportunity” means that individuals must be afforded meaningful access to SNAP so that individuals with disabilities benefit from and have meaningful access to SNAP to the same extent as individuals who do not have disabilities.

Legal Requirements

To implement these two principles, the following legal requirements must be met:

- Ensure equal access through the provision of appropriate services to people with disabilities;
- Modify policies, practices and procedures to provide such equal access; and
- Adopt nondiscriminatory methods of administration in the program.

Applicability to All Staff, Contractors, Vendors at the State and Local Levels

In compliance with the federal laws, Virginia does not discriminate against people with disabilities in SNAP. This policy applies to all Department of Social Services state and local staff. The policy also applies to agencies and entities contracted with for services. State and local agencies must ensure that contractors and vendors do not subject recipients to discrimination.

Definition of a Person with a Disability

Federal law protects individuals with a “disability.” This term means a person who has a physical or mental impairment that substantially limits one or more of the major life activities of that individual, a person who has a record of such impairment, or a person who is being regarded as having such impairment. See Definitions for a detailed definition for SNAP applicability.

1. Discrimination Complaints - People who believe that they were subject to discrimination may file a complaint by calling (866) 632-9992 (voice). (800) 877-8339 (Federal Relay Service), or (800) 845-6136 (Spanish), or by writing:

U.S. Department of Agriculture
Director, Office of Civil Rights
1400 Independence Avenue SW
Washington, D.C. 20250-9410

State and local social services departments must accept all written or verbal discrimination complaints, log the complaints, and forward them within five business days to the Department of Agriculture and to the Virginia Department of Social Services.

Civil Rights/EEO Director
USDA - Mid-Atlantic Region
300 Corporate Boulevard
Robbinsville, NJ 08691-1598
Telephone – (609) 259-5123

Civil Rights Program Administrator
Virginia Department of Social Services
5600 Cox Road
Glen Allen, VA 23060

If the individual making the complaint does not put the complaint in writing, the person receiving the complaint must do so. Complaints must be accepted even if the information specified below is not complete. Advise the complainant of the program's restrictions on disclosure of information. A complaint must be filed no later than 180 days from the date of the alleged discrimination. Whenever possible, the complaint should include the following:

- a. Name, address, and telephone number or other means of contacting the person alleging discrimination.
 - b. The location and name of the organization or office that is accused of discriminatory practices.
 - c. The nature of the incident, action, or the aspect of program administration that led the person to allege discrimination.
 - d. The basis for the alleged discrimination (age, sex, race, religion, color, disability, national origin, or political belief).
 - e. The names, addresses, telephone numbers, and titles of persons who may have knowledge of the alleged discriminatory acts.
 - f. The date or dates on which the alleged discriminatory actions occurred or, if continuing, the duration of the actions.
2. Public Notification - Requirements for displaying a nondiscrimination poster are addressed in Part I.I.

3. Annual Training – All persons who interact with SNAP applicants and participants and those who supervise such staff must participate in annual civil rights training. This training is available online through the VDSS Knowledge Center.
4. Reasonable Accommodations - The BPS must consider whether a person may have a disability, and how a person's disability may affect the person's ability to comply with rules, fill out forms, attend appointments, etc. If it is determined that a person has a disability that affects the ability to comply with program rules or procedures, the BPS has the authority to make reasonable modifications to program rules, requirements and procedures to ensure that the person with a disability receives full and meaningful access to SNAP benefits.

Evidence of disability of a household member, including any indications that a household member may have a disability, and all requests for reasonable accommodations must be documented in the case file.

Examples

Ms. A applies for SNAP. She has a learning disability and is unable to complete the application. As a reasonable accommodation, staff assists her to complete the application.

Ms. B is not able to come to the office due to the nature of her disability. Staff arranges to obtain the information by phone.

Ms. C missed repeated appointments. It is determined that she has a mental illness that prevents her from organizing information and keeping track of appointments. The staff phones her on the morning of an appointment to help her to remember to keep the appointment.

F. COLLECTION OF RACIAL/ETHNIC GROUP DATA

Local agencies must record the race and ethnicity of each household.

<u>The racial categories are:</u>	
White	Asian
Black or African American	American Indian or Alaskan Native
Native Hawaiian or other Pacific Islander	
<u>The categories for ethnicity are:</u>	
Hispanic or Latino	Not Hispanic or Latino

Applications for SNAP benefits ask the applicant to identify the racial and ethnic categories for each member. The applicant may select more than one category for race. The BPS must advise the applicant that the information is voluntary, that it will not affect eligibility or benefit level, and that the reason for the collection of this information is to ensure that there is no discrimination regarding the receipt of SNAP benefits.

When the applicant does not voluntarily provide the information, the BPS must code the data based on observation. If a telephone interview is conducted or the BPS is unable to determine the racial or ethnic categories, the BPS must leave the field blank. VDSS must report the racial and ethnic data annually to USDA.

G. RETENTION OF RECORDS (7 CFR 272.1(f))

SNAP documents must be maintained for a minimum of three years from the month of the last benefit issuance or benefit determination of ineligibility. Some records require a longer retention period. The retention period is dependent on the record type and activity related to the record. Annual systematic purging of material unrelated to legal, fiscal, administrative, or program administration is recommended.

1. Certification records must be retained for a minimum of three years from the month of origin of each record. Certification records may include any material that documents the basis for an allotment, the determination of eligibility, or the establishment of a claim. Records needed to support claims collection activity or long-term eligibility determinations or disqualifications must be kept longer than three years. Certification records may also include the authorization and issuance of a vault EBT card or authorization for crediting the card replacement fee back to an EBT account.
 - a. Records related to claims must be kept for three years after a claim is repaid or is administratively closed.
 - b. Records that support investigation of a suspected Intentional Program Violation must be kept until the case has been resolved if the investigation was initiated during the normal three-year retention period for certification actions.
 - c. Records about Intentional Program Violation disqualifications must be kept for the life of the individual or until FNS notifies through the disqualified recipient system that the record is no longer needed.
 - d. Records to document work registration, voluntary quit, or work reduction violations must be retained for the life of the individual who caused the violation or until the person reaches age 60, whichever occurs first.
2. Issuance or administrative records must be retained for a three-year period. The three-year period may be from the month the federal obligation is paid, from the period of final resolution of the issuance billing process or three years from the creation of the record. These records include EBT records.
3. Administrative cost records must be maintained for three years from the date the annual financial status report. These records include fiscal and statistical records, supporting documents, negotiated contracts and any other document related to administrative costs. These records must be retained beyond three years if a claim, litigation or audit is initiated before the end of the three-year period. In these instances, the records must be retained until the claim, litigation, or audit has been resolved.

H. DISCLOSURE OF INFORMATION (7 CFR 272.1(c), 272.1(d))

Use or disclosure of information obtained from SNAP applicant households exclusively for the Supplemental Nutrition Assistance Program is restricted to the following:

1. Persons directly connected with the administration or enforcement of the provisions of the Food and Nutrition Act or regulations, other federal assistance programs, or federally assisted State programs which provide aid, on a means-tested basis, to low-income individuals. This includes the Office of the Inspector General (OIG) and the Statewide Automated Child Welfare Information System (SACWIS).
2. Employees of the Comptroller General's Office of the United States for audit examination authorized by any other provision of law.
3. Local, state, or federal law enforcement officials upon a written request to investigate an alleged SNAP violation. The written request must include the identity of the individual requesting the information and the authority to do so, the violation being investigated, and the name of the person for whom the information is requested.
4. Law enforcement officials upon notification that an individual is fleeing prosecution or imprisonment, is in violation of parole or, that an individual has information needed to investigate a felony or parole violation. The request for information must specify the name of a SNAP household member. Disclosure is limited to an individual's address, Social Security number, and photograph, if available, upon a written request. The agency may not disclose scheduled appointment dates or times, SNAP case information, or EBT account information. In addition, the agency may not disclose information about other unspecified household members or other SNAP cases. The written request must include the identity of the individual requesting the information and the authority to do so, and the violation being investigated.
5. The parent locator service to assist in the Child Support Enforcement Program under Title IV-D, upon request; and
6. Persons directly connected with the verification of immigration status of aliens applying for SNAP benefits through SAVE to the extent the information is necessary to identify the individual for verification purposes.

If there is a written request by a responsible member of the household, its currently authorized representative, or a person acting on its behalf, the household representative must be allowed to review material and information contained in the case file, during normal business hours. The agency may withhold confidential information, however, such as the names of individuals who have disclosed information about the household without the household's knowledge, or the nature or status of pending criminal prosecutions.

All local departments of social services must maintain state regulations and manuals that affect the public for examination by the public on regular workdays during regular office hours.

I. PROGRAM INFORMATIONAL ACTIVITIES (7 CFR 272.5)

SNAP information must be available to the applicant and recipient households in English and in the household's designated language. Program information includes the rights and responsibilities of households. This information may be conveyed through publications, telephone hotlines, and face-to-face contacts.

1. Booklets/Pamphlets

- a. *Virginia Social Services – Benefit Programs* information pamphlet - Applicants may receive this pamphlet at the time of each new application. The BPS may provide the pamphlet the pamphlet at each reapplication or recertification if the household no longer has a copy of the pamphlet
- b. *Appeals and Fair Hearings* pamphlet – Local departments may provide this pamphlet with adverse action notices to reduce or terminate benefits or when applications are denied.
- c. *Virginia EBT Questions and Answers* pamphlet and the EBT wallet card – The local department or the EBT vendor must provide EBT materials to EBT card recipients upon the initial or replacement issuance of the EBT card. The local department must provide these EBT materials upon request after the issuance of the EBT card.

2. Posters

These posters must be prominently displayed where SNAP applications are taken:

- a. "And Justice for All"
- b. "Your SNAP Rights"

3. Other Required Activities

- a. Provide an explanation of household rights when applicants request information about the Supplemental Nutrition Assistance Program. Provide a verbal explanation, or it may provide the *Know Your Rights When Applying for SNAP Benefits* flyer if the applicant is able to read and comprehend the form in English or other available languages.
- b. Complete the *SNAP - Hotline Information* form and provide it to each applicant on the day the applicant files a new application, a reapplication, or a late recertification application.
- c. Try to answer general or specific questions related to the Supplemental Nutrition Assistance Program from persons expressing an interest in applying for program benefits. The department may refer callers to appropriate personnel, and if those persons are not available, the department must arrange to return the call. If it is not possible to return the call, advise the caller to return the call at a prearranged time when the appropriate personnel will be available to answer the questions.

J. CERTIFICATION MATERIALS (7 CFR 272.4)

SNAP information must be available to the applicant and recipient households in English and the household's designated language. Certification materials include the SNAP application or renewal forms, change report form and notices.

K. FAMILY ASSESSMENT

Benefit programs are designed to provide income support benefits to assist families who are unable to provide the necessities of life and maintain minimum standards of health and well-being through their own efforts. Gathering relevant information about a family's situation and assessing that information against the eligibility for benefit programs are the basis for making the eligibility determinations. This process also includes an assessment of need for service programs and other resources to assist the family, which includes following the Practice Model contained in Appendix II of Part I. If other needs exist, the eligibility BPS must refer the family for appropriate services or resources within the agency or community.

L. PRUDENT PERSON CONCEPT

This manual provides guidelines for the Supplemental Nutrition Assistance Program. Material presented here is often broad to allow certification staff sufficient flexibility to make reasonable judgements in evaluating individual household circumstances to determine SNAP eligibility and benefit level.

It is not possible to have every potential situation observed in managing a caseload addressed in this manual so, the eligibility BPS must determine what is reasonable, i.e., the prudent person concept. The eligibility BPS must exercise reasonable judgement based on experience, knowledge of the program and logic. The prudent person concept does not eliminate or replace eligibility requirements or actions. The BPS must sufficiently document the case file to allow supervisory staff, appeals officers, reviewers, and colleagues to be able to understand case actions as well as to permit self-review.

M. PRE-APPLICATION ELIGIBILITY DETERMINATION/DISCUSSION PROHIBITED

SNAP eligibility guidance must be applied to the facts of a specific application submitted by a household; the interview with the household based on the submitted application; and any additional information supplied by an applying household. Prior to receipt of an application, local department of social services employees must not provide advice or answers to hypothetical situations from applicants, potential applicants, or, those acting on behalf of others. Until a complete application is received by the local department of social services, an interview is conducted, and verifications are received, the local department of social services cannot be sure it has all the relevant facts. It is appropriate, however, to explain program eligibility criteria.

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FIPS CODE DIRECTORY

<u>Code</u>	<u>Locality</u>	<u>Code</u>	<u>Locality</u>	<u>Code</u>	<u>Locality</u>
001	Accomack	083	Halifax	171	Shenandoah
003	Albemarle	085	Hanover		Shenandoah Valley
005/	Alleghany	087	Henrico	015	Augusta
560	Clifton Forge	089/	Henry	790	Staunton
580	Covington	690	Martinsville	820	Waynesboro
007	Amelia	091	Highland	173	Smyth
009	Amherst	093	Isle of Wight	175	Southampton
011	Appomattox	095	James City	177	Spotsylvania
013	Arlington	097	King and Queen	179	Stafford
017	Bath	099	King George	181	Surry
019	Bedford	101	King William	183	Sussex
021	Bland	103	Lancaster	185	Tazewell
023	Botetourt	105	Lee	187	Warren
025	Brunswick	107	Loudoun	191	Washington
027	Buchanan	109	Louisa	193	Westmoreland
029	Buckingham	111	Lunenburg	195	Wise
031	Campbell	113	Madison	197	Wythe
033	Caroline	115	Mathews	199/	York
035	Carroll	117	Mecklenburg	735	Poquoson
036	Charles City	119	Middlesex	510	Alexandria
037	Charlotte	121	Montgomery	520	Bristol
041/	Chesterfield	125	Nelson	540	Charlottesville
570	Colonial Heights	127	New Kent	550	Chesapeake
043	Clarke	131	Northampton	590	Danville
045	Craig	133	Northumberland	620	Franklin City
047	Culpeper	135	Nottoway	630	Fredericksburg
049	Cumberland	137	Orange	640	Galax
051	Dickenson	139	Page	650	Hampton
053	Dinwiddie	141	Patrick	670	Hopewell
057	Essex	143	Pittsylvania	680	Lynchburg
059/	Fairfax County	145	Powhatan	683	Manassas
600	Fairfax	147	Prince Edward	685	Manassas Park
610	Falls Church	149	Prince George	700	Newport News
061	Fauquier	153	Prince William	710	Norfolk
063	Floyd	155	Pulaski	720	Norton
065	Fluvanna	157	Rappahannock	730	Petersburg
067	Franklin County	159	Richmond County	740	Portsmouth
069	Frederick	161	Roanoke County	750	Radford
071	Giles	163/	Rockbridge	760	Richmond City
073	Gloucester	530	Buena Vista	770	Roanoke City
075	Goochland	678	Lexington	800	Suffolk
077	Grayson	165/	Rockingham	810	Virginia Beach
079	Greene	660	Harrisonburg	830	Williamsburg
081/	Greensville	167	Russell	840	Winchester
595	Emporia	169	Scott		

Virginia Department of Social Services Practice Model

The Virginia Department of Social Services Practice Model sets forth our standards of professional practice and serves as a values framework that defines relationships, guides thinking and decision-making, and structures our beliefs about individuals, families, and communities. We approach our work every day based on various personal and professional experiences. While our experiences impact the choices we make, our Practice Model suggests a desired approach to working with others and provides a clear model of practice, inclusive of all agency programs and services, that outlines how our system successfully practices. Central to our practice is the family. Guided by this model, we strive to continuously improve the ways in which we deliver programs and services to Virginia's citizens.

1. All children, adults and communities deserve to be safe and stable.

- Every child has the right to live in a safe home, attend a safe school and live in a safe community. Ensuring safety requires a collaborative effort among family, agency staff, and community partners and across all programs and services.
- Every adult has the right to live and work in a safe environment. We value all programs that address domestic and family violence and the abuse, neglect, and exploitation of older or incapacitated adults.
- We value individual and family strengths, perspectives, goals, and plans as central to creating and maintaining a safe environment. The meaningful engagement and participation of children, adults, extended family, and community stakeholders is a necessary component of assuring safety.
- When legal action is necessary to ensure the safety of a child and/or an adult, we use our authority with respect and sensitivity.
- Individuals are best served when services are person-centered, family-focused and community-based and aim to preserve the family unit and prevent family disruption.

2. All individuals deserve a safe, stable and healthy family that supports them through their lifespan.

- We believe mothers, fathers, and children thrive in safe, stable, healthy families. We value family structures that support the best interests of children; however, we believe that children do best when raised in intact, two-parent families.
- Both parents should be actively involved in the lives of their children, even if they are not the primary caregiver.
- Healthy, lifelong family connections are crucial to the development of children, the stability of the family and the support of infirm, dependent or aging adults. Through the services we provide, we seek out, promote, and preserve these healthy ties to family members and to others in the community to whom the family is connected or who may provide support.

3. Self-sufficiency and personal accountability are essential for individual and family well-being.
 - Family members support each other in ways the social services system cannot. We value the intra-family resources and supports that are available within the context of any family as a pathway to self-sufficiency and personal accountability.
 - We believe employment, training, and education are keys to self-sufficiency. We believe in employment and training programs that remove barriers and create opportunities for individuals and families.
 - Individuals and families face unique challenges that impact their ability to maintain self-sufficiency. We value all programs and services that assist individuals and families to regain and maintain self-sufficiency and achieve personal accountability.
 - Both custodial and noncustodial parents should provide necessary financial resources to support their children.
 - We believe that parents and caregivers serve as role models in teaching the importance of self-sufficiency and personal accountability.
 - We support asset development strategies to help individuals and families weather short-term emergencies and improve long-term stability.
4. All individuals know themselves best and should be treated with dignity and respect.
 - All programs and services should be culturally and linguistically sensitive to all individuals.
 - Individuals and families are empowered when they have access to information and resources.
 - We support programs for vulnerable populations including children, the elderly, and individuals with disabilities.
 - The measure of success differs with every individual. We strive to understand children, adults, and families within the context of their own values, traditions, history, and culture.
 - The voices of children, individuals, and families are heard, valued, and included in decision-making processes related to programs and services.
5. When partnering with others to support individual and family success, we use an integrated service approach.
 - Cooperation, coordination and collaboration within and outside of the social services system are essential to providing the most comprehensive services to families. We are committed to working across programs, divisions, agencies, stakeholder groups, and communities to improve outcomes for the children, individuals, families, and communities we serve.
 - Through the development of policies, procedures, standards, and agreements across systems, we will share information, solve problems, and overcome barriers.
 - We value prevention networks that link effective public and private programs and community-based organizations that identify individuals and families before they need services.

- We believe in partnering across programs and systems in order to provide a full array of services along the continuum of care. We are committed to working within and outside of the social services system to identify and address service gaps.
6. How we do our work has a direct impact on the well-being of the individuals, families, and communities we serve.
- Children, individuals and families deserve trained, skillful professionals to engage and assist them. We hire, develop and maintain a workforce that aligns with our practice model.
 - Clear expectations, effective supervision, leadership and proper resource supports are critical for the workforce to do their job effectively.
 - We believe in creating and maintaining a supportive working and learning environment with accountability at all levels.
 - We value the provision of high-quality, timely, efficient, and effective services. We believe relationships and communication should be conducted with honesty, transparency, integrity, empathy, and respect within and outside of our social services system.
 - The collection and sharing of accurate, outcome-driven data and evidence-based information is a critical part of how we continually learn and improve. We use data to inform, manage, improve practice, measure effectiveness and guide decisions.
 - Continuous quality improvement is fundamental to our work.

PART II APPLICATION/PROCESSING

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A. APPLICATION PROCESSING

Application processing includes filing and completing an application, interviewing, and verifying certain information. The local department of social services must act promptly on all applications and provide SNAP benefits retroactive to the month of application to households that complete the application process and are eligible. An application may be an initial application, a reapplication, or a recertification.

This chapter contains the responsibilities of households and local departments in the application process. Expedited service is available to households in immediate need. See Part V for instructions regarding expedited service processing.

B. FILING AN APPLICATION (7 CFR 273.2(c)(1))

Households must file an application for SNAP benefits with the local department of social services in the locality where the household resides. Households may file applications in person, by mail, by fax, by telephone to the Enterprise Customer Service Center (initial application and reapplication only), or online. Households may also file the application through an authorized representative. The application and instructions are contained in Part XXIV.

Each household has the right to file an application for SNAP benefits on the same day it contacts the local department during normal business hours. The local department must document the application filing date by recording the date on which the local department received the application. The date of application will be the date the local department received the application during normal business hours. The next business day will be the application date for any application received outside normal business hours.

Households must normally apply for SNAP benefits for all persons who reside together and who purchase and prepare food together. In some instances, households may choose to exclude certain persons from the application process to avoid providing identifying information about these individuals. Such an instance might include a household with certain immigrant members who want to avoid the receipt of benefits in connection with their immigration status. Another example would be sponsored immigrants who elect not to give information about their sponsors as required in Part XII.C. Households may classify certain members as "nonapplicants" and omit providing Social Security numbers, immigration status and immigration control numbers. If an applicant classifies a mandatory household member as a nonapplicant, as per Part VI.A.2 (spouse, parent, child), the worker must determine the eligibility of the remaining household members using the income and resources of the nonapplicant in the same manner as disqualified members (Part XII.E.2.b). If the nonapplicant is not a mandatory household member, the worker must not count any of the income or resources of the excluded person.

For a resident of a public institution who jointly applies for SSI and SNAP benefits before the release from the institution, the SNAP application filing date will be the date of the applicant's release from the institution.

1. Agency Action for the Initial Contact

When a household contacts the local department and expresses an interest in obtaining

SNAP benefits, at a minimum, the agency must:

- a. Provide an application upon request or, if contacted by telephone or through other means, advise the household that it may obtain the form in the office or that it is available by mail or online. The local department must mail the application the same day it receives a request.
- b. Encourage households to file applications on the same day they contact the agency or when households indicate food insecurity. Advise that completed applications should be submitted as soon as possible. Advise that applications may be submitted by mail, in person, by fax, online, or by telephone
- c. Explain that only SNAP rules are used to determine eligibility so that households should apply for SNAP benefits even if they may not be eligible for other programs.

The local department may get information from potential applicants that indicates probable ineligibility. The local department must not deny persons who contact the department before they file an application nor discourage households from filing applications for SNAP benefits. Persons who express an interest in SNAP benefits must have an opportunity to apply and, if determined ineligible, receive a written denial notice.

2. Agency Actions for the Application Filing Date

Applicants may file an application that contains minimal information to protect the application filing date. Minimal information needed for a valid application is the applicant's name, address, and signature of a responsible household member or authorized representative. (See Part II.D for a discussion of responsible household members.) Depending on the type of application, signature may be written or unwritten. Unwritten signatures may include electronic signature, recorded telephonic signature, or recorded gestured signatures.

Upon receipt of a valid application, the local department must:

- Determine the household's entitlement to expedited service processing.

Local department staff should screen for expedited entitlement while applicants are present in the office when possible. If the applicant is not present in the office, local department staff must review the application on the day of receipt to determine the entitlement to expedited service processing.

If the applicant did not sufficiently complete the application to allow the expedited screening, the local department must attempt to contact the household by telephone if the application contains a number. If contact with the household to obtain the necessary information is not possible within the seven days, the worker must process the application under normal processing policies until further contact with the household allows a delayed screening for expedited processing to take place.

- Complete the *SNAP - Hotline Information* form and provide it to any household that files a new application, a reapplication, or a late recertification application.

3. Subsequent Actions Required After An Application Is Filed

Once the local department receives an application that contains at least the applicant's name, address and signature, advise the applicant that an interview must be conducted before certification. Advise the household that the interview may be conducted in the office or by telephone. Provide the interview scheduling hours for the agency.

4. Withdrawing An Application

The household may voluntarily withdraw its application at any time before the certification interview. The local department must document the case file as to the reason for withdrawal, if the household provides a reason, and that the local department made contact with the household to confirm the withdrawal. If the household makes the withdrawal request in person or submits a written note from a responsible household member, no further confirmation is needed. The local department must advise the household of its right to reapply at any time after the withdrawal. The BPS must send the Notice of Action to deny the application.

5. Contacting The Wrong Locality

Note: The case transfer procedures of Part XIV.A.8 do not apply to this section.

If a household contacts the wrong locality, the local department must give the household the address and telephone number of the appropriate office. The local department must also offer to forward the household's application by mail or courier to the appropriate office that same day if the household completed enough information on the application to file. The local department must offer to forward the application, by fax or other means, the next day as long as the application gets to the receiving agency the same day. The local department must inform the household that the filing date and the processing standards will not begin until the appropriate office receives the application.

If the household mails its application to the wrong office, the local department must mail the application to the appropriate office on the same day. The local department may forward the application the next day by fax or any other means as long as the application gets to the receiving agency the same day. The normal processing time standards described in Part II.F do not begin until the correct office receives the application, except when the Social Security Administration forwards the application and the household meets the expedited processing entitlement, as noted in Part II.H.2.b.

C. HOUSEHOLD COOPERATION (7 CFR 273.2(d))

If the household refuses to cooperate with the local department in completing the application process, the BPS must deny the application at the time of refusal. For the BPS to determine that the household refused to cooperate, the household must be able to cooperate but clearly demonstrate that it will not take required actions that it can take to complete the application process.

Example

An applicant files an application. The BPS notifies the applicant of the interview requirement and schedules an interview. The applicant must refuse the interview, not merely fail to appear for the interview in order for the BPS to deny the application for refusal to cooperate.

If there is any question as to whether the household failed to cooperate or refused to cooperate, the BPS must not deny the household for refusal to cooperate and the BPS must assist the household, as appropriate.

The household will also be ineligible if it refuses to cooperate in any subsequent review of its eligibility, including reviews generated by reported changes and at recertification. Once denied or terminated for refusal to cooperate, the household may reapply but will not be eligible until its members cooperate with the local department. In addition, the household will be ineligible if the members refuse to cooperate for a subsequent review of its eligibility as part of a quality control review. If the BPS closes a household's case for refusal to cooperate with a quality control review, the household will not be eligible again until it cooperates with the quality control reviewer if the household reapplies before the end of the quality control reporting year (generally January 21), regardless of the original sample month.

The household will not be ineligible when a person outside the household fails to cooperate with a request for verification. The agency may not consider disqualified or ineligible people excluded from the Supplemental Nutrition Assistance Program as nonhousehold members. See Part VI.C.

D. INTERVIEWS (7 CFR 273.2(e)(1) and (3))

All applicant households, including those submitting applications by mail, fax, telephone, or electronically, must have an interview with a qualified BPS before initial certification, certification based on a reapplication, or for recertification. The individual interviewed may be the head of household, spouse, any responsible member of the household, or an authorized representative. For the purposes of this manual, when adults and children reside together, a responsible household member means a household member 18 years of age or older who has sufficient knowledge of the household's circumstances to provide any necessary information. The applicant may bring anyone to the interview as desired.

The certification interview may occur by telephone or may occur in the local department or other mutually acceptable site if the household requests a face-to-face interview or if the worker determines a face-to-face interview is warranted for the household. (The agency does not need to document the reason a telephone interview was conducted or why an in-office interview was held.) The interview may take place in the applicant's home provided the BPS arranges for the visit in advance as per Part III.A.3.

The interviewer must not simply review the information that appears on the application but must explore and resolve with the household unclear and incomplete information. At the same time, the BPS must make the applicant feel at ease. The interview must include:

1. An explanation of basic program procedures, including the local agency's responsibilities and application processing time frames. Include an explanation of the issuance process and use of SNAP benefits, as outlined in Part I.C.
2. An explanation of the options available to the household and the advantages and disadvantages of each choice. Include an explanation that the utility standard, homeless shelter standard and medical standard deductions will be used, if appropriate, unless the household opts to use actual amounts. If actual amounts are used, discuss the choice to have expenses averaged or counted only in the month billed.
3. A verbal and written explanation of the household's rights and responsibilities. Include an explanation of the consequences if these responsibilities are not met. Include an explanation of the consequences of voluntarily quitting employment.
4. An explanation that the agency may receive information through the Income and Eligibility Verification System (IEVS) or that the agency will access other computer systems. The agency will use and verify the information. Information that the agency receives may affect the household's eligibility and benefit level.
5. A discussion of appropriate collection actions for households that owe outstanding payments on claims.

In all instances, the agency must respect the household's right to privacy; the BPS must conduct the interview as a confidential discussion of household circumstances. The scope of the interview may not extend beyond the examination of household circumstances that directly relate to the determination of household eligibility.

If the BPS does not conduct the interview on the day the applicant files an application, the agency must schedule an interview. For applications and reapplications, the local agency must schedule interviews as promptly as possible to ensure eligible households receive an opportunity to participate within seven days, if expedited, or within 30 days after the household files an application. The agency should schedule the interview no later than 20 days after the application filing date for households that are not entitled to expedited processing. The BPS must allow households a minimum of 10 days to provide information after the interview is scheduled.

If the household does not respond to the scheduled telephone interview or fails to appear for the scheduled office interview, the local agency must send the household the *Missed Interview Notice*. The notice advises the household to reschedule the interview and that the agency will deny the application if the household does not reschedule the interview. The agency needs to send the notice after the first missed interview appointment only.

The agency must deny the application on the 30th day after the application filing date if the household does not request another interview. If the household requests a second interview during the initial 30-day period, the agency must not deny the application. If the household is eligible for benefits, the agency must issue prorated benefits from the application date.

The agency must not deny the application on the 30th day if the agency has not scheduled the interview before the 30th day. In addition, the agency must not deny the application on the 30th day

if the agency has not allowed the household a minimum of 10 days after the interview to supply verification or needed information to process the application.

For agencies with walk-in systems for interviewing, the agency must assign a specific period for the applicant to appear for the interview if the applicant does not elect to complete the interview on the day of the contact. The agency must schedule an interview even if the agency otherwise advises of the full range of interview hours available. As indicated above, the BPS must send the *Missed Interview Notice* if the interview does not occur when scheduled. The agency must deny the application on the 30th day after the application filing date if the applicant misses the interview and does not reschedule the interview. See Part IV.C.3 for interview time frames for the recertification process.

The agency may request a certified household appear for an in-office interview during the certification period in order to clarify the household's circumstances. The agency may not require an interview however. See Part XIV.A.2 for a discussion of the agency's required actions on changes.

E. NORMAL PROCESSING STANDARD (7 CFR 273.2(g)(1); 274.1)

The filing date of an application is the day the appropriate SNAP office receives an application. The minimal information an application needs is the applicant's name, address, and a signature by either a responsible member of the household or the authorized representative of the household. The local agency must provide eligible households that complete the initial application process an opportunity to participate, as soon as possible, but not later than 30 calendar days following the application filing date.

The 30-day processing standard does not apply for residents of public institutions who apply jointly for SSI and SNAP benefits before their release from the institution. For these applicants, the agency must provide an opportunity to participate as soon as possible, but not later than 30 calendar days from the applicant's release from the institution.

The processing standards for households entitled to expedited service are in Part V. The processing standards for the recertification process are in Part IV.C.

The agency may not impose application procedures or processing standards of other programs on SNAP applicants.

1. Opportunity to Participate (7 CFR 273.2(g))

A household must receive the EBT card, the agency must authorize benefits and the vendor must post authorized benefits to the account in order for the household to have an opportunity to participate timely.

Example

A household files an application on July 15. If the household is eligible, the agency must give the household an opportunity to participate by August 14. If August 14

falls on a Sunday, the EW must process the case by Friday, August 5 so that the household may receive the EBT card by mail by Saturday, August 13 or authorize the issuance of a vault card that the Primary Cardholder or authorized representative could pick up before August 14. Additionally, the SNAP benefits must be posted to the EBT account.

2. Denying the Application (7 CFR 273.2(g)(3))

The agency must send a *Notice of Action* to deny an application if households are ineligible for benefits. The agency must send the denial notice as soon as possible, but not later than 30 days following the application date. Part XXIV contains a copy of the *Notice of Action* and instructions.

3. Processing Cases with Prior Participation in another Locality

When a household indicates on the application or during the interview that it had been certified in another locality or State, for either the month of application or the prior month, the BPS must establish the household's current status with the prior agency. The BPS must establish and document the effective date of case closure with the prior agency.

The new locality may not issue duplicate benefits for any months covered by the application if the agency can establish that the household or any of its members are still active in the prior locality.

Note: Nutrition Assistance Program (NAP) benefits received from Puerto Rico are not SNAP benefits. There is no duplicate benefit if a household applies for SNAP benefits in the same month. There is no need to determine if the NAP case is closed.

Contacts with Other States

For applications filed by persons who claim they have received SNAP benefits in another state, the agency must confirm that the individual is no longer receiving benefits in that state. If the agency is not able to verify this by the end of the processing period and all other eligibility factors have been met, the agency must approve the application. The agency must continue to seek verification from the other state to minimize the overpayment period in case the individual continued to receive benefits in that state however. If there is no response from the other state, the agency must contact the regional consultant who will ensure the information is forwarded to FNS to follow up with the other state.

If duplicate participation occurs, the Virginia agency must file a claim for any benefits the household received while it also received benefits from the other state. The claim will be household-caused if the household failed to report its connection to another state and the receipt of benefits from the other state. An agency-caused claim will exist if the agency failed to verify termination of benefits from another state.

For household members who are subject to the Work Requirement, the agency must also address participation in another state towards the number of countable months if there is

an indication from the application or interview that the member may have received SNAP benefits during the current 36-month period.

F. DELAYS IN PROCESSING

If the local agency does not determine a household's eligibility and provide an opportunity to participate within 30 days following the date the application was filed, the local agency must take the following action:

1. Determining Cause (7 CFR 273.2(h)(1))

The local agency must determine who caused the delay using the following criteria:

- a. A delay must be considered the fault of the household if the household failed to complete the application process even though the local agency took all required action to assist the household. The local agency is required to take the following actions before a delay can be considered the fault of the household:
 - 1) For households that failed to complete the application, the local agency must have offered, or attempted to offer, assistance in its completion.
 - 2) If one or more members of the household failed to register for work, as required in Part VIII.A, the local agency must have informed the household of the need to register and given the household at least 10 days from the date of notification to register these members.
 - 3) In cases where verification is incomplete, the local agency must have provided the household with a statement of required verification and offered to assist the household in obtaining required verification and allowed the household sufficient time to provide the missing verification. Sufficient time will be at least 10 days from the date of the local agency's initial request for the verification that was missing.
 - 4) For households that failed to appear for an interview, the local agency must have scheduled an interview within 30 days following the date the household filed the application. If the household failed to appear for the interview, and the household does not request that the agency reschedule another interview until after the 20th day but before the 30th day following the application filing date, the household must appear for the interview, bring verification and register members for work by the 30th day; otherwise, the delay will be the fault of the household. If the agency must allow the household additional time to provide information or verification, the delay will be the fault of the household. If the household failed to appear for the interview and requests another interview to occur after the 30th day following the date of application, the delay will be the fault of the household. If the household missed the scheduled interview and misses the one it requested, the household must request another interview and any delay will be the fault of the household.

- b. Delays that are the fault of the local agency include, but are not limited to, those cases where the local agency failed to take the actions described in items 1-4 above.
- c. In some situations, a case file is complete except for a household member's failure to comply with an eligibility requirement that results in disqualification for noncompliance (e.g. failure to register for work). In such situations the BPS must:
 - 1) Ensure that the household had at least 10 days to comply. If the household did not have that timeframe, consider the delay agency-caused and hold the application in pending status for an additional 30 days.
 - 2) If an individual must be disqualified, instead of the entire household, process the case for the remaining household members. Consider the disqualification imposed with the effective date of the initial allotment. If the entire household must be disqualified (e.g., the head of the household failed to register for work, or the household simply has one member), extend the pending status of the case an additional 30 days, as client delay.

2. Delays Caused By The Household (7 CFR 273.2(h)(2))

If by the 30th day the local agency cannot take any further action on the application because of the household's delay, the household will lose its entitlement to benefits for the month of application. In addition to the loss of benefits for the month of application, the agency must prorate benefits from the date the household completes its final task for processing the application. The local agency, however, must give the household an additional 30 days to take any required action.

The local agency must send the household the *Notice of Action* to extend the pending status of the application. The agency must send the pending notice on the 30th day following the application filing date, unless the 30th day is a weekend or holiday. The notice must advise the household of the outstanding actions the household must take to complete the processing of the application. The agency does not need to take any further action, including sending an additional notice, after the agency sends the notice if the household fails to take the required action within 60 days following the application filing date.

The local agency may include in the notice a request that the household must report all changes in circumstances since it filed its application.

If the household was at fault for the delay in the first 30-day period, but the agency finds the household eligible during the second 30-day period, the local agency must provide benefits from the day the household completes the final required action or provides the last verification. The household is not entitled to benefits for the month of application when the delay was the fault of the household. Once the household furnishes the information necessary to determine its eligibility, it is the agency's obligation to process the case during the second 30-day period.

3. Delays Caused by the Local Agency (7 CFR 273.2(h)(3))

Whenever a delay in the initial 30-day period is the fault of the local agency, the local agency must take immediate corrective action. The local agency may not deny the application if it caused the delay, but must notify the household that the agency is still holding the application. The BPS must send the *Notice of Action* to notify the household of the extended pending status of the application on the 30th day following the application filing date, unless the 30th day is a weekend or holiday. The *Notice of Action* must also notify the household of any action it must take to complete the application process.

If the agency finds the household eligible during the second 30-day period, the agency must provide the household benefits retroactive to the month of application. If, however, the household is ineligible, the local agency must deny the application. Once the household furnishes the information necessary to determine its eligibility, it is the agency's obligation to process the case during the second 30-day period.

4. Delays Beyond 60 Days (7 CFR 273.2(h)(4))

If the local agency is at fault for not completing the application process by the end of the second 30-day period, and the case file is otherwise complete, the local agency must continue to process the application. If the household is eligible and the local agency was at fault for the delay in the initial 30 days, the household must receive benefits retroactive to the month of application. If, however, the initial delay was the household's fault, the household will receive benefits retroactive only to the day the household completes the final action needed to process the application.

If the local agency was at fault for not completing the application process by the end of the second 30-day period, but the case file is not complete enough for the BPS to determine eligibility the local agency must deny the case and notify the household to file a new application. The agency must also advise the household of its possible entitlement to benefits lost as a result of the agency-caused delays.

If the household provides the necessary information and the agency determines the household eligible for the previous 60-day period, the household must receive benefits retroactive to the month of application if the local agency was at fault for the delay in the initial 30 days. If, however, the initial delay was the household's fault, the household will receive benefits retroactive only to the day the household completes the final action needed to process the application.

If the household is at fault for not completing the application process by the end of the second 30-day period, the local agency must deny the application. The agency must advise the household to file a new application if it wishes to participate. If the household was at fault the first 30 days also, the household would have been sent the Notice of Action to extend the pending status of the application. The local agency does not need to take any further action at the end of the second 30 days if the initial delay is the fault of the household. If the local agency was at fault the first 30 days, the agency must send the Notice of Action to deny the application. The household is not entitled to any lost benefits, even if the delay in the initial 30 days was the fault of the local agency.

5. Reinstatements

The agency must return applications denied incorrectly because of agency error to pending status if the action date is within 60 days from the date of application. After the 60th day, the application must remain denied. The agency must encourage the household to file a new application and determine entitlement to lost benefits, if appropriate. In determining whether to reinstate the pending status within the first 60 days, the agency should consider the nature of the error and the amount of time that has passed which might affect the reliability of the information provided.

Ongoing cases incorrectly closed due to agency error may be reinstated to the certification period at the time of the closure only if the case was correct as of the effective date of the closure. The agency may reinstate the case either before the effective date of the closure or in the month following the closure.

Whenever the agency needs to reinstate an application or ongoing case, agency records must reflect this change. Reinstating cases, as described in this chapter, is only appropriate when an agency error caused the erroneous denial or termination.

G. JOINT PROCESSING AND CATEGORICAL ELIGIBILITY OF PA CASES

This chapter contains requirements for joint processing that apply to SNAP applicants who are also applying for Temporary Assistance for Needy Families (TANF), General Relief – Unattached Child (GR), or Supplemental Security Income (SSI). This chapter also contains procedures for categorical eligibility for SNAP benefits for these public assistance (PA) households. See the PA Case definition in Definitions for program descriptions needed to qualify as a public assistance program.

1. Applications for TANF or GR and SNAP Benefits (7 CFR 273.2(j))

The local agency should encourage households in which all members are applying for TANF or GR – Unattached Child to apply for SNAP benefits at the same time. The agency must regard all applications for TANF and GR – Unattached Child, except those on which the household indicates that it does not want SNAP benefits, as applications for SNAP benefits. If the household's intention to apply for SNAP benefits is unclear, the local agency must determine at the interview or through other contact with the household if the household wants the application processed for SNAP purposes. The BPS must base SNAP eligibility and benefit levels solely on SNAP eligibility criteria and certify the household according to the notice, procedural and timeliness requirements of this manual.

The local agency must not discourage households from applying for SNAP benefits even when there might be encouragement or inducements to avoid dependence on other public assistance programs or benefits.

The local agency must conduct a single interview at initial application for both the public assistance programs and SNAP purposes. The agency must not have different BPS

interview households entitled to joint processing or otherwise subject them to two interviews to obtain the benefits of both programs. Following the single interview, separate workers may process the applications for public assistance and SNAP benefits to determine eligibility and benefit levels. Note however, the SNAP out-of-office interview overrides the requirement for a single interview when a household wants to have a telephone interview for SNAP, in accordance with Part II.D, but a face-to-face interview is needed for the PA eligibility determination.

The BPS must follow the verification procedures described in Part III.A for eligibility factors that are needed to determine the household's SNAP eligibility. For eligibility factors needed to determine both PA and SNAP eligibility, the BPS must use the PA verification rules. The local agency may not delay processing the SNAP application if, at the end of seven days or 30 days following the application date, as appropriate, the agency has sufficient verification to meet SNAP requirements but does not have sufficient verification to meet the PA verification rules.

Because of differences between PA and SNAP application processing procedures and timeliness standards, the BPS may need to determine the SNAP eligibility before determining the household's eligibility for PA payments. The BPS may not delay acting on the SNAP application simply because the PA application is pending. The BPS may not deny the SNAP application because of the pending PA application if the household is otherwise eligible for SNAP benefits.

Inclusion of the initial PA payment in the SNAP benefit calculation depends on whether the BPS knows the date of receipt and amount of the PA payment when the SNAP application is approved. If the BPS can anticipate the amount and the date of receipt of the PA payment, the worker may include the income in computing the allotment for the month(s) the worker anticipates the payment.

The BPS must not count as income any portion of initial PA payments that cover previous months. While the retroactive payment does not count as income, the money must count as a resource.

If the BPS factors in the PA payment in the SNAP benefit calculation at the time of initial certification, the Notice of Action must reflect the varying allotments. When the EW cannot anticipate the PA payment at the time of initial certification, the BPS should note on the Notice of Action that the benefits may be reduced or terminated without another notice once the PA payment is included in the SNAP determination. If the notice did not inform the household of the potential impact, the agency must provide an advance notice if the SNAP benefit is reduced or terminated as a result of the counting the PA payment.

If the BPS denies the PA application, the household does not need to file a new SNAP application. The BPS must determine or continue the SNAP eligibility based on the original applications filed jointly for PA and SNAP purposes. The BPS must use any other documented information obtained after the application if it is relevant to SNAP eligibility or level of benefits.

If the BPS approves the TANF application after the SNAP certification period begins, the BPS may lengthen the SNAP certification period to coincide with the scheduled TANF case review. See Part IV.D.2. for a discussion about lengthening the certification period and the limitations on this process.

2. Application for SSI and SNAP benefits

Households that consist solely of SSI applicants or recipients may apply for SNAP benefits at the Social Security Administration (SSA) Office. SSA personnel will accept SNAP applications at each SSA office. Households must report that there is no SNAP application pending and that they are not current SNAP participants, unless the application is for recertification.

The SSA office and the local social services agency must take the following actions:

- a. Whenever a member of a household consisting only of SSI applicants or recipients transacts business at an SSA office, the SSA office must inform the household of its right to apply for SNAP benefits at the SSA office without going to the local social services office. SSI applicants and recipients may apply at the local social services office if they choose to do so.

SSA staff must complete joint SSI and SNAP applications for residents of public institutions applying for benefits before their release from the institution. In such cases, the date of the SNAP application will be the date of release from the institution. If SSA or the household does not notify the local agency of the applicant's release date, the agency must restore benefits to the applicant back to the date of release.

- b. Within one working day after receipt of a signed application, the SSA office must complete and forward the SNAP application to the local agency along with a transmittal form. The local agency must make an eligibility determination and provide an opportunity to participate within thirty days following the date the SSA office received the signed application. If the household is entitled to expedited service however, the processing time standards will begin on the date the correct local agency receives the application.
- c. The local agency may not subject the household to an additional interview. In addition, the local agency may not contact the household in order to obtain additional information unless:
 - 1) the application is improperly completed;
 - 2) mandatory verification is missing;
 - 3) information received is questionable as determined by the local agency; or,

- 4) it is necessary to discuss options available to the household, e.g., the use of the utility standard or actual bills, the choice to have expenses averaged or counted only in the month billed.

Even when the agency needs additional information, the agency may not require the applicant to appear at the local agency to finalize the eligibility determination for the application taken at the SSA office.

- d. The SSA office must refer persons who are not entitled to joint processing to the local social services agency.
- e. The SSA office must prescreen all applications for entitlement to expedited services on the day the SSA office receives the application. SSA must mark "expedited processing" on the first page of all applications that appear to be entitled to such processing. The SSA office must inform households that appear to meet the expedited service criteria that the household may receive the benefits sooner if the household applies directly with the local social service agency. The household may take the application from SSA directly to the local social service agency.

The local agency must prescreen all applications received from the SSA office for entitlement to expedited service on the day the correct agency receives the application. The local agency must certify all SSI households entitled to expedited services in accordance with Part V except that the expedited service processing time standard will begin on the date the correct agency receives the application.

- f. The local agency must ensure that households whose SNAP applications are forwarded by the SSA office are not already participating in the program in any Virginia locality.
- g. If the SSA office takes the SSI application or re-determination by telephone from a member of a pure SSI household, SSA must also complete the SNAP application during the telephone interview. In these cases, the SNAP application must be mailed to the applicant for signature. The household may return the application to the SSA office or to the local agency. If the SSA office receives the application, SSA will forward the application to the social services agency. The local agency may not require the household be interviewed again and the agency may not contact the household in order to obtain additional information except for those reasons indicated in item c. above.
- h. SSA must send information to SSI recipients being re-determined for SSI by mail to inform them of the right to file a SNAP application at the SSA office (if they are members of a pure SSI household) or at their local social service agency. SSA must also notify SSI recipients of their right to an out-of-office SNAP interview performed by the local agency if the household is unable to appoint an authorized representative.

- i. If the SSA office sends the application to the wrong agency, the local agency must forward the application to the correct agency within one working day. The incorrect mailing will not affect processing time standards except as indicated in Item b above, when the household is entitled to expedited processing.
- j. Recertification - Any household that may apply at the SSA for initial certification has the right to recertify at the SSA office also, regardless of whether the application for initial certification was taken at the SSA office. SSA will interview the applicant, obtain any readily available verification, complete a transmittal form, and send this material to the local agency.

In order to be eligible for uninterrupted benefits, however, applicants must file the recertification application at the SSA office on or before the date on the *Notice of Expiration*.

The local agency may not re-verify information obtained and documented by SSA unless the information is questionable or insufficient.

3. Categorical Eligibility for PA Households (7 CFR 273.2 (j)(2))

- a. Any household in which all members receive or are authorized to receive a cash payment from the TANF, GR – Unattached Child, or SSI Program is eligible for SNAP benefits regarding income and resources. Any household in which at least one person receives or is authorized to receive services funded through the TANF block grant also will be categorically eligible regarding income and resources.

To confer with broad-based categorical eligibility, all households with income below 200 percent of the federal poverty limit and receive or is authorized to receive a non-cash or in-kind TANF funded service will be considered categorically eligible. See the “PA Case” in the Definitions section. Eligibility for SNAP benefits does not apply if the entire household:

- is residing in an institution;
- is disqualified for any reason from receiving SNAP benefits; or
- fails to meet nonfinancial criteria, as addressed in Part VII.

Residents of public institutions who jointly apply for SSI and SNAP benefits before release from the institution will not be categorically eligible when SSA determines potential SSI eligibility before the release. These individuals will be categorically eligible when SSA makes a final SSI determination and the individual leaves the institution.

Eligibility and SNAP benefits determinations will be based on information provided by households. Categorically eligible households are subject to the same verification requirements as other households. However, categorically eligible households meet the following eligibility factors without additional verification:

- Resource limits, except note that categorically eligible households that receive lottery or gambling winnings of **\$4,500** or more are ineligible for benefits as allowed in Part XII.E.3;
- Gross and net income limits (200 percent gross income limit is applicable for broad-based categorical eligible households);
- Social Security number information;
- Sponsored alien information, provided information exists in the PA case; or
- Residency.

Exception: Social Security number information, sponsored alien information, and residency verification is required for broad-based categorical eligible households.

If any of the following factors are questionable, the BPS must verify that the household that is categorically eligible:

- Contains only members that are TANF, GR – Unattached Child, or SSI recipients or that at least one member receives a TANF-funded service;
- Meets the household definition in Part VI.A;
- Includes all persons who purchase and prepare food together in one SNAP household, regardless of whether or not they are separate units for the public assistance program purposes; and,
- Includes no persons as provided in Part II.G.3.b below.

For purposes of determining categorical eligibility, any household in the TANF program that is suspended for TANF or that is entitled to zero benefits under the TANF program will be a TANF household.

Categorical eligibility will continue at recertification even if a TANF review is not completed.

- b. Households in which all members receive TANF, SSI, or GR – Unattached Child income or at least one member receives a TANF-funded service will not be categorically eligible if:
1. Any member who would normally participate with the household has been disqualified for an intentional program violation;
 2. The head of household failed to comply with work registration or employment and training requirements;
 3. The head of the household voluntarily quits or reduces work without good cause (Part VIII.B); or
 4. Any member of the household is ineligible if:
 - i. Any member is fleeing prosecution or imprisonment or is violating probation or parole terms (Part VI.C.2.e); or

- ii. There is a conviction for and sentencing noncompliance for murder or sexual assault crimes (Part VI.C.2.g).

The agency must handle these households using all normal SNAP rules and procedures.

- c. A disqualified or ineligible person who resides with the household and who would normally be included with the household for SNAP participation will not cause the remainder of the household to lose categorical eligibility, except as noted in subsection b above. The remainder of the household must meet the definition in Part II.G.3.a regarding the receipt of income or benefits. The remaining household is eligible if the disqualified or ineligible person is excluded because the person is:
 - 1. an ineligible alien (Part VII.F.);
 - 2. an ineligible student (Part VII.E.);
 - 3. a resident of a nonexempt institution (Part VII.C.);
 - 4. disqualified for failure to apply for a Social Security Number (Part VII.G);
 - 5. ineligible because of failure to comply with a work registration or employment and training requirement by a person other than the head (Part VIII); or
 - 6. ineligible because of the work requirement (Part XV).

For purposes of work registration, the agency must apply the exemptions in Part VIII.A.1 to individuals in categorically eligible households. Individuals who are not exempt from work registration are subject to requirements in Part VIII.A.

4. Application Processing for PA Cases

Once the TANF, GR – Unattached Child, or SSI application is approved, the household is categorically eligible, if conditions of Part II.G.3 are met. If the household's income is at or below the 200% allowable gross income limit, the household meets the income criteria for broad-based categorical eligibility and the application is processed.

In order to determine if a household will be eligible due to its status as a PA household, the local agency may delay the SNAP eligibility determination within the normal timeliness standards of Part II.E. The processing delay may occur as long as the household is not entitled to expedited service processing and it appears to be categorically eligible but it might otherwise be denied due to factors which will not be relevant once the PA application is approved.

The agency must ensure that the denied application of a potentially categorically eligible household is easily retrievable. The *Notice of Action* to deny the SNAP application must inform the household to notify the SNAP worker if its PA benefits are approved.

The local agency must reevaluate any denied application, filed jointly, or pending simultaneously for SNAP and PA benefits, whenever the household requests it or the agency becomes aware of the household's approval for PA benefits. The local agency may not require the client to come to the office for another interview but, must use any available information to update the application that was denied. The local agency may contact the household by mail or telephone to determine any changes in circumstances.

If the applicant amends the application, the household must initial and date any changes, and re-date and re-sign the application.

Except for residents of public institutions who apply jointly for SSI and SNAP benefits before to their release from the institution, any categorically eligible household determined eligible for TANF, SSI or GR – Unattached Child benefits within the 30-day SNAP processing time must receive benefits back to the date of the SNAP application. The agency may not provide SNAP benefits for a month a household is ineligible for PA benefits unless the household is eligible for SNAP benefits as a NA case.

Households that become categorically eligible after the SNAP application is denied or during the extended pending period are eligible for SNAP benefits retroactive to the PA benefit effective date or the SNAP application date, whichever is later. Residents of public institutions who apply jointly for SSI and SNAP benefits before their release from the institution are eligible for benefits from the date of their release from the institution.

Examples

- a. A household files a joint application for TANF and SNAP benefits on 11/15. The household has bank accounts with balances that total \$4200. Because of the difference between the TANF and SNAP Programs in the evaluation of resources, the household would be ineligible for SNAP benefits as a NA household but, categorically eligible if TANF was approved.
 - 1) Suppose TANF eligibility is determined on 12/4, with the first money payment issued for December.

Because the household was determined eligible for TANF within the 30-day SNAP application processing timeframe and was not determined ineligible for TANF for November, the household is considered categorically eligible back to 11/15, the date of the SNAP application.
 - 2) Suppose as of 12/15, a determination on the TANF application has not been made because of exceptions to the 30-day TANF processing period. The agency may deny the SNAP application on the 30th day, keeping it easily retrievable, or issue a *Notice of Action* to extend the pending for an additional 30 days while awaiting a decision on TANF eligibility.

- b. A client applies for SSI on November 10. He does not want to apply for SNAP benefits at that time. On December 3 he changes his mind and files a SNAP application. He would be ineligible for SNAP benefits according to NA standards.

- 1) Suppose SSI determines the household eligible for a money payment on December 30.

Because the household was determined eligible for SSI within the 30-day SNAP application processing time frame, the household is categorically eligible back to December 3, the date of the SNAP application.

- 2) Suppose as of January 2, the SSI determination is pending. The agency chooses to deny the SNAP application on the 30th day.

On February 9, the household informs the agency that SSA approved SSI benefits retroactive to November. The agency reinstates the original SNAP application and provides SNAP benefits back to December 3. That date is the later of the SSI effective date or the SNAP application date.

5. Categorical Eligibility and Benefit Level

Once the worker determines a household's entitlement to SNAP benefits, the benefit level must be determined. Other eligibility factors described in this manual apply to categorically eligible households in determining the benefit amount. The agency must prorate benefits for the initial month based on the application date. The following additional criteria apply:

- a. One- and two-person categorically eligible households are entitled to at least **\$24**, regardless of net SNAP income, except when benefits for the initial month prorate to less than \$10. There will be no issuance in this instance.
- b. Categorically eligible households of four or more members will receive benefits if its net income entitles them to a benefit of \$1.00 or more on the appropriate allotment table, even if its net SNAP income is above the maximum for the household size.
- c. The agency must deny or terminate any categorically eligible household entitled to zero SNAP benefits. The notice must explain that the household will not receive benefits because the benefit amount is \$0 (zero).

H. AUTHORIZED REPRESENTATIVES (7 CFR 273.2(n))

The head of the household, spouse or any other responsible member of the household may designate an authorized representative to act on behalf of the household in applying for SNAP benefits or in using SNAP benefits. In the event that the only adult living with a household is classified as a nonhousehold member (as defined in Part VI.C.), that individual may be the authorized representative for the minor household members. If households designate employers, growers, crew chiefs, etc. as authorized representatives for farm workers or when any single authorized representative has access to a large number of EBT cards, the worker should exercise caution to assure that the household freely requested the help of the authorized representative; the authorized representative is accurately stating the household's situation; and the authorized representative is properly using the SNAP benefits.

1. Making Application

When the head of the household or the spouse cannot file an application, another household member may apply or the household may designate an adult nonhousehold member as the authorized representative for that purpose. The head of the household or the spouse should prepare or review the application whenever possible, even though another household member or the authorized representative will actually be interviewed. Agency staff must inform the household that the household will be liable for any overissuance that results from erroneous information given by the authorized representative, except as specified in Part II.H.5 regarding participation by residents of drug addict/alcoholic treatment and rehabilitation centers.

Households may designate adults who are nonhousehold members as authorized representatives for certification purposes only under the following conditions:

- a. The head of the household, spouse, or another responsible member of the household may designate the authorized representative in writing; and,
- b. The authorized representative is an adult who is sufficiently aware of relevant household circumstances.

The worker may determine, on a case-by-case basis, the frequency with which the agency requests the written designation at a subsequent recertification. The worker may request the household's written designation at the recertification application as often as necessary.

Upon written authorization by the household, the representative must receive copies of all correspondence sent to the household itself. This will include all notices, e.g. *Notice of Action*, *Notice of Expiration*, etc. The agency must send the notices to the representative as long as the representative named on the authorization remains the household's authorized representative unless the written authorization specifies an ending date.

2. Using SNAP Benefits

The authorized representative may use SNAP benefits to purchase food for the household's consumption. The household will give its implied consent to the representative for access to the EBT account as long as the household does not withdraw access to the account by the representative, either by naming another representative or by canceling the representative's access.

3. Restrictions on Appointment

Certain individuals may not serve, as an authorized representative for a household unless the agency determines there is no one else to assist the household in this capacity. Restrictions apply to the designation of the following individuals as authorized representatives:

- a. Local agency employees;
- b. Retailers authorized to accept SNAP benefits;
- c. Individuals disqualified for an intentional program violation;
- d. Homeless meal providers, for homeless recipients.
- e. Previously named representatives who knowingly provided false information about a household's circumstances or improperly used the household's SNAP benefits.

Local agency employees who certify households or who update the EBT administrative terminal or retailers who accept SNAP benefits may not act in any capacity as an authorized representative without a determination by the local agency director that no one else is available to serve. The agency must file the specific written approval of the local agency director in the case file.

Individuals who are disqualified for an intentional program violation may not act as authorized representatives during the disqualification period unless the disqualified individual is the only adult member of a household able to act on its behalf. The local agency must determine that no one else is available to serve. The local agency must determine separately whether the household needs such an individual to apply on behalf of the household, to obtain benefits, and to use the benefits for food for the household.

Example

A household has found an authorized representative to obtain its benefits each month but it has not been able to find anyone to purchase food regularly with the benefits. If the local agency is also unable to find anyone to purchase the food, the disqualified member may do so.

Homeless meal providers may not act as authorized representatives for homeless SNAP households.

4. Documentation and Control

The local agency must ensure that the household properly designate authorized representatives. The household's case file must contain the name of the authorized representative. A household may have any number of authorized representatives to apply on its behalf but may have only one representative to receive its benefits through EBT.

If households designate employers, such as those that employ migrant or seasonal farm workers, as authorized representatives or that a single authorized representative has access to a large number of benefit access devices or coupons, the local agency must exercise caution to assure that:

- a. The household has freely requested the assistance of the authorized representative;
- b. The household's circumstances are correctly represented; and
- c. The authorized representative is properly using the household's benefits.

The local agency may disqualify an authorized representative from serving as a representative for SNAP purposes for up to one year. In order for the agency to disqualify a representative, the agency must have evidence that an authorized representative misrepresented a household's circumstances, knowingly provided false information pertaining to the household, or improperly used SNAP benefits. The local agency must send a letter to the affected household and the authorized representative thirty days before the disqualification date.

- This letter must include at a minimum:
- The proposed action;
- The reason for the proposed action;
- The household's right to request a fair hearing (Note: The authorized representative being disqualified may not request a hearing. Only the household may do so.);
- The telephone of the office; and,
- If possible, the name of the person to contact for additional information.

The provision to disqualify an authorized representative is not applicable in the case of drug and alcoholic treatment centers and group homes that act as the authorized representative for their residents.

5. Drug Addict/Alcoholic Treatment Centers (7 CFR 273.2(n)); 7 CFR 273.11)(e))

Narcotic drug addicts or alcoholics who regularly participate in a drug or alcoholic treatment program on a resident basis may elect to participate in the Supplemental Nutrition Assistance Program. The treatment center must be a private, nonprofit organization or institution or a publicly operated community mental health center, under Section 300x-21 et. seq. of U.S. Code Title 42 (formerly Part B of Title XIX of the Public Health Service Act). See Part VII.C.2.

Residents must apply and be certified through the use of an authorized representative who must be an employee of and designated by the treatment center. The resident household, however, should assist in completing the application and should sign the application along with the authorized representative, prior to certification, if possible.

The treatment center representative will receive an EBT card on the household's behalf. The center must spend the SNAP benefits for food prepared by and/or served to the addict/alcoholic. The household may not directly access the SNAP benefits in the EBT account while residing in the treatment center. See Part VI.E for additional information about residential treatment centers.

6. Group Living Arrangements

Residents of public or private nonprofit settings for blind or disabled individuals may elect to participate in the Supplemental Nutrition Assistance Program. An appropriate agency of the state or locality must certify group living arrangements using regulations based on under Section 1616(e) of the Social Security Act.

Residents of group living arrangements may apply and be certified three ways:

- a. through the use of an authorized representative employed and designated by the facility;
- b. through the use of an authorized representative selected by the resident; or
- c. on their own behalf.

If residents want to apply for themselves, the facility must determine if they are physically and mentally capable of managing their affairs.

In a single facility, there may be a combination of application methods used. For example, the facility may have some residents using authorized representatives and some applying on their own behalf.

The local agency must determine the eligibility of residents of group living arrangements who apply through the use of the facility's authorized representative as one-person households. Household composition provisions of Part VI.A will determine household size if residents apply on their own behalf. See Part VI.E for additional information about group living arrangements.

I. CERTIFICATION NOTICES (7 CFR 273.10(g))

1. Initial and Reapplication

The local agency must provide applicants with a *Notice of Action* after the BPS makes an eligibility determination on each application but, no later than 30 days after the date of the initial application or reapplication. The *Notice of Action* will inform an applicant household that its application has been approved, denied, or is to be held pending. The BPS may not dispose of applications for failure to complete the interview earlier than the 30th day following the filing date. If the 30th day falls on a weekend or holiday, the worker must send the denial notice no earlier than the first business day after the 30th day.

2. Recertification

The local agency must provide households that have filed an application by the 15th of the last month of their certification period with a *Notice of Action* by the end of the current certification period. The local agency must provide households with a *Notice of Expiration* to initiate the recertification process. The local agency must provide households that have received a *Notice of Expiration* at the time of certification and have applied within the prescribed time frames, with a *Notice of Action* not later than 30 days after the date of the household's initial opportunity to obtain its last allotment. Part IV.C describes the recertification procedures.

See Part XXIV for a sample of forms and instructions.

The National Voter Registration Act of 1993 (NVRA) requires local social services agencies offer each applicant for TANF, SNAP benefits, and Medicaid an opportunity to apply to register to vote at initial application and at each review of eligibility. Voter registration application services must also be provided any time a change of address is reported to the local agency in person. Local agency staff must provide the same degree of assistance in completing voter registration applications as is done in completing applications for assistance.

A. Prohibitions

Local social services agencies and agency staff are prohibited from making any statements or taking any action that:

1. seeks to influence customers' political preferences;
2. displays any political preference or party affiliation;
3. discourages individuals from applying to register to vote; or
4. leads individuals to believe that a decision to register or not to register has any impact on their eligibility for assistance or the benefit level that they are entitled to receive.

B. Voter Registration Services

Each local social services agency, including satellite offices, must provide the following services:

1. distribute voter registration application forms for completion by customers at the agency or to be taken for registration by mail;
2. assist customers in completing the voter registration application form unless such assistance is refused;
3. ensure that spaces of the voter registration application are completed, including identifying the locality name on the reverse side of the form;
4. complete the agency certification form;
5. make brochures about amendments to the Virginia constitution available for distribution; and
6. accept voter registration application forms for transmittal to the local general registrar.
 - a. Each completed registration application must be submitted to the local registrar every Friday or on the last working day before Friday if Friday is a holiday. Envelopes with completed registration forms must be marked with an "A" in the upper left corner and the number of registration forms in the envelope.

- b. Registration applications that are mailed to customers or that were obtained from the local agency must be forwarded to the registrar if the completed forms are returned to the agency.
- c. The voter registration application may be mailed to the State Board of Elections by customers at the expense of the customer.

Voter registration application services are not required to be offered when an individual indicates that he/she is currently registered to vote in the locality and there is a completed agency certification form in the customer's case record indicating the same, and the customer has not moved from the address maintained when the registration occurred.

C. Certification

Each customer must be provided the "Certification of Virginia Voter Registration Agency Certification" form at each application or review.

- 1. Customers who refuse to check the appropriate box on the certification form or refuse to sign the form will be considered to have declined the opportunity to register to vote.
- 2. The BPS must sign and date each certification form and complete the appropriate box.
- 3. Certification forms must be retained in the agency case record in accordance with records retention guidelines.
- 4. The bottom of the certification form must be completed when registration applications are mailed with applications for assistance and when an authorized representative files the application on behalf of the household.

D. Individuals Required to be Offered Registration Services

Voter registration services must be offered to an individual who is:

- 1. A member of the TANF or medical assistance unit or SNAP household;
- 2. 18 years of age or who will be 18 by the time of the next general election; and
- 3. Present in the office at the time of the interview or when a change of address is reported. (Note that a registration application must be sent upon request for mail-in purposes for address changes that are not reported in person.)

Individuals accompanying the customer to the local agency who is not a member of the assistance unit or household, including payees and authorized representatives, will not be offered voter registration services by the local agency. A registration application must be provided to the person upon request for mail-in purposes. When an authorized representative is applying on behalf of another, the local agency must offer a mail-in application and the bottom

of the certification form is to be completed accordingly.

The voter registration application must be mailed to an applicant with the application for assistance if a subsequent face-to-face interview will not be required. When an in-office interview is held, voter registration services must be provided at the time of the interview.

VIRGINIA COMBINED APPLICATION PROJECT

The Virginia Combined Application Project (VaCAP) is a partnership between the Virginia Department of Social Services (VDSS), the Social Security Administration (SSA), and the Food and Nutrition Service (FNS) of the United States Department of Agriculture (USDA). This demonstration project streamlines the application process for the Supplemental Nutrition Assistance Program (SNAP) for elderly Supplemental Security Income (SSI) recipients and increases their SNAP participation. It does not replace all SNAP eligibility criteria but streamlines certain criteria as defined in this appendix.

Eligible VaCAP participants are identified through a cross match of the State Data Exchange (SDX) and the current SNAP caseload. SDX information is also used by VDSS to update eligibility for SSI recipients monthly after approval for VaCAP. Applications and recertification applications are mailed monthly.

VDSS notifies applicants that they have the option to apply for and participate in the regular, ongoing SNAP, and have the case managed through the local department of social services (LDSS) according to standard policies and procedures.

VaCAP Eligible Household:

To be eligible for VaCAP, an individual must be identified through the SDX as one who:

- Receives SSI;
- Lives in Virginia;
- Is 65 years of age or older;
- Has any Marital Status other than "Married";
- Is not institutionalized;
- Meets Federal Living Arrangement A (FLA="A"); and
- Has no earned income.

In addition, the individual:

- Is not currently receiving SNAP; and
- Purchases and prepares food separately.

VaCAP Application Procedures:

VDSS will mail a simplified application to SSI recipients who meet the eligibility criteria and who are not currently participating in SNAP. Applicants must sign and return the application to the LDSS in the city or county of residence. If the applicant does not return the application within 30 days, a second application is mailed. If the second application is not returned, an application will be mailed at 12-month intervals until a total of five applications are mailed. Individuals may apply for VaCAP if it is determined they meet the VaCAP criteria but, did not receive a computer-generated application because they had already received five applications, or an application had been mailed less than 12 months ago, or because they were participating in regular SNAP.

Upon receipt of the VaCAP application, the LDSS must screen the application to ensure:

- application is signed;
- the applicant is not already participating in SNAP (eligibility system inquiry); and
- the applicant is not disqualified from participating in SNAP (eDRS inquiry).

VaCAP applications are not screened for expedited processing nor screened for death and incarceration. Death and incarceration are routinely reported in the SDX data.

If shelter expenses are not marked on the application, the LDSS must process the application using the lower shelter expense.

VaCAP participants may request that their VaCAP case be closed in order to apply for regular SNAP benefits. Participants receiving regular SNAP benefits may request that their case be changed to VaCAP if it is determined they meet all of the VaCAP criteria except for not currently receiving SNAP.

VaCAP Interview Procedures:

Unless the applicant requests help with the application, there is no certification interview.

VaCAP Verification:

The SDX provides verification of eligibility factors so no further verification is needed. The applicant's declaration of shelter costs is used.

VaCAP Allotment:

The applicant's declaration of monthly shelter expenses will be used to determine the SNAP benefit amount.

- High benefit - **\$198** - shelter expenses total \$500 or more
- Low benefit - **\$128** - shelter expenses total \$499 or less

Eligibility begins the first day of the month an application is received. There is no proration of benefits based on the application date.

VaCAP Certification:

The certification period for cases will be 36 months.

VaCAP Change Reporting:

Households are not required to report changes. Updates through the SDX satisfy SNAP reporting requirements. If a VaCAP participant reports a change that impacts the household's eligibility for VaCAP or benefit amount, the LDSS must act on the change.

The LDSS worker must also evaluate continued VaCAP eligibility when an alert is received for the following changes reported by the SDX monthly updates:

- the participant moves to another Virginia address;
- a change in the mailing address of an Authorized Representative; and
- a change in the name of an Authorized Representative/payee.

Certain SDX monthly case updates will result in the automatic closure of the VaCAP case. Cases are closed if the SDX reports:

- the participant no longer receives SSI;
- the death of the participant;
- the participant is living in an institution;
- the participant is married;
- a change in the Federal Living Arrangement ;
- the participant has earned income; or
- the participant moved out of state

VaCAP Recertification:

VDSS will generate and mail a combined expiration notice and an application to recertify for VaCAP. VDSS will mail the recertification application to participants in the month before the certification period expires. Participants must complete the application and return it to the local department of social services for processing. Continued eligibility for VaCAP is determined using the same criteria established for the initial application for VaCAP.

There is no interview or additional verifications required.

Eligibility to Opt-Out of VaCAP

A VaCAP participant who wants to opt out of the project must request the case be closed. If the participant subsequently applies for regular SNAP and is found eligible, the participant will not receive a supplement for any month for which VaCAP benefits were received.

Fair Hearings

Fair hearing requests for VaCAP cases are treated the same as all other requests.

Quality Control (Qc) Reviews

VaCAP cases are part of the QC sample for review and are considered in the completion rate. These cases are included in the State's payment error rate calculation. Quality Control identifies VaCAP cases in a state option field for evaluation purposes.

Elderly Simplified Application Project

This appendix describes the provisions of the Elderly Simplified Application Project (ESAP). ESAP seeks to increase SNAP participation among elderly households by streamlining some of the processes.

ESAP is a demonstration project with the Food and Nutrition Service that permits ESAP to operate by waiving some federal regulations. While ESAP is similar to the Virginia Combined Application Project (VaCAP) by avoiding some elements, ESAP does not provide set benefit amounts or require an interface with data matches to generate applications.

Unless specifically addressed in this appendix, all other SNAP provisions addressed in this manual will apply to ESAP households.

Eligible Households

ESAP applies to any household in which:

- All eligible household members are 60 years of age or older; and
- There is no earned income.

Application Procedures

Households may apply for ESAP using a simplified Virginia ESAP application or any Virginia SNAP application, including online.

Upon receipt of SNAP or ESAP applications, local departments must evaluate applications for ESAP eligibility. Households may opt out of having their cases converted to ESAP.

Local departments must screen ESAP applications for expedited processing.

Verification Requirements

To the extent possible, local departments must use available computer-matching systems to verify information to determine eligibility and benefit amounts for ESAP households. When possible, local departments must use computer-matching systems to verify:

- | | |
|---------------------------|--|
| - Gross nonexempt income | - Residency |
| - Identity | - Immigration status |
| - Social Security numbers | - Death match |
| - Prisoner match | - Legally obligated child support payments |

Households must verify the elements above if the information is unclear or questionable. While Part III.F routinely requires secondary verification for some computer-matching systems, secondary verification will not routinely be required for ESAP households unless the information is questionable. Follow up with the household is required however.

Households must claim medical expenses that total a minimum of \$35 per month to qualify for the medical standard deduction. Households will need to verify the \$35 threshold only if the

information is questionable. Local departments must use the medical standard deduction for all ESAP households unless a household verifies medical expenses that exceed the medical standard.

Households must claim shelter expenses. Households will need to verify information only if the information is questionable. If households claim heating or cooling expenses, local departments may apply the utility standard.

Local departments must use the following systems to verify information:

- State Verification & Exchange System (SVES) – to verify income issued through the Social Security Administration (SSA), verify work quarters for immigration, establish prisoner status, confirm Social Security Number (SSN), and verify Medicare premiums.
- Systematic Alien Verification for Entitlements Program (SAVE) – to confirm the immigration status. Households must claim to have an eligible immigration status on the application.
- Automated Program to Enforce Child Support (APECS) – to verify legally obligated child support payments made to establish an income exclusion.
- Division of Motor Vehicles (DMV) – to access driver's license information to establish identity or residency.
- State Online Query – Internet (SOLQ-I) – to verify income issued through the SSA and confirm the SSN.
- Virginia Department of Corrections (DOC) – to check persons held in custody of DOC the previous month.
- Systems Partnering in a Demographic Repository (SPIDeR) – SPIDeR allows workers to collapse system requests for an individual or all household members into a single action.

Local departments must inquire the following systems at application and recertification:

- Virginia Lottery – (<https://www.valottery.com/winnersnews/latestwinners>) - an inquiry of winnings of \$5,000 or more.
- Electronic Disqualification Recipient System (eDRS) – an inquiry of disqualified recipients for an intentional program violation

Interview Requirements

Local departments must conduct an interview for an initial ESAP application or a reapplication.

Certification Period

The certification period for ESAP cases will be 36 months.

Reporting Requirements

ESAP households must report the following changes during the certification period:

- Changes to household composition;
- If a household member receives earned income during the certification period; and
- Lottery and gambling winnings of \$4,500 or more.

During the initial certification interview, local departments must inform participants of the reporting requirements. Local departments must provide a Change Report to ESAP households when applications are approved and when households report changes.

Local departments must act on changes reported by ESAP households during the certification period, regardless of whether households are required to report the changes. Each household must receive a Notice of Action to reflect the impact of changes reported.

ESAP households are exempt from the interim report process.

Recertification/Renewal

The Virginia Case Management System (VaCMS) will generate and mail a combined expiration notice and recertification application to ESAP households in the month before the certification period expires. Participants must complete the application and return it to the local department for processing. Except as noted below, continued ESAP eligibility will be determined using criteria outlined for the initial application for ESAP.

At recertification, the certification interview will not routinely be required. Local departments must conduct an interview at recertification in the following instances:

- If the ESAP household requests an interview;
- Prior to closing or denying an ESAP recertification; or
- If household circumstances have changed or are questionable.

At recertification, local departments must inquire the data matches, noted in the verification section above, to re-verify income and changes in residency. Households must re-verify medical expenses if they exceed the medical standard deduction. Households that have the medical standard deduction applied will not need to re-verify medical expenses over the \$35-threshold unless the expenses are questionable.

Local departments must not deny an ESAP recertification application without first attempting to schedule a recertification interview.

Conversion from/to ESAP

When changes occur during the certification period that cause households to become ineligible for ESAP, local departments must not simply close the case. Workers must determine if households remain eligible for regular SNAP benefits. If cases remain eligible for SNAP benefits, workers must:

- Remove the ESAP Indicator in VaCMS.
- Notify the household of the change and the revised Change Reporting requirements.

The certification period will remain as previously established for ESAP eligibility. Households will be subject to the interim report process at the 12th- or 24th- month interval, as appropriate.

The processes noted here are appropriate if there is sufficient information known about the reported changes. If information is incomplete or unclear, procedures outlined in Part XIV.A.3.d. will apply.

During a SNAP recertification of a SNAP household that is eligible for ESAP or former ESAP households that became ineligible for ESAP, local departments must add these households to ESAP and inform the households of their new status, reporting requirements, and responsibilities. Conversion of these SNAP households must occur unless households opt to remain in SNAP or if there are immediate changes expected that would cause ESAP ineligibility.

Quality Control (QC) Reviews

ESAP cases are subject to QC review to determine if the eligibility determination and benefit level are correct. Active and negative samples must include ESAP cases and include the cases in the state's error rate calculations.

- The reviewer must first determine that the household meets the criteria to participate in ESAP as outlined in this Appendix.
- If a household is incorrectly participating as ESAP, the reviewer must:
 - Review the case against SNAP standards as established in the Food and Nutrition Act and regulations, FNS-approved non-ESAP waivers, or State options.
 - If a household is correctly participating as ESAP, the reviewer must:
 - Review the case against the provisions this Appendix III.
- To determine if a household is or is not correctly participating as ESAP under the rules of the project, the reviewer must:
 - Apply standard verification standards and procedures of all relevant circumstances for the period of time under review as specified in the federal QC Review Handbook

PART III VERIFICATION/DOCUMENTATION

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A. VERIFICATION

Verification is the use of third-party information or documentation to establish the accuracy of statements on the application or Interim Report. Households must be allowed a minimum of ten days to provide required verification.

1. Mandatory Verification at Initial Application/Reapplication

The BPS must verify the following information before certification for households initially applying and for reapplications:

a. Residency

Applicants must establish that they reside in the Virginia locality in which they apply for SNAP benefits. See Part VII.B. Verification of residency is not needed when obtaining proof cannot reasonably be accomplished. Such instances may include homeless households, migrant farm worker households, households newly arrived in a locality, or participants in the Address Confidentiality Program which is available to domestic violence victims.

Where possible, verification of residency may often be accomplished in conjunction with verifying other items such as identity. If the BPS cannot verify residency when verifying other information, the BPS must use a collateral contact or other readily available documentary evidence. Verification may include statements from migrant service agencies or camp officials, letters from the people with whom the household is staying, hotel check-in receipts, day care enrollment forms, and health clinic records for the family. The BPS must accept any document or collateral contact that reasonably establishes the applicant's residency. Households do not have to provide a specific type of verification.

b. Identity

Applicants must verify the identity of the person making the application. When an authorized representative applies on behalf of a household, the agency must verify the identity of both the authorized representative and the head of the household. The BPS may verify identity through readily available documentary evidence, including DMV inquiries through SPIDeR, or through a collateral contact, if no other source is available. Acceptable documentary evidence includes, but is not limited to, a driver's license, work or school identity card, identity card for health benefits or assistance or social services program, a voter registration card, wage stubs, a Social Security card or card stub issued by the Social Security Administration (SSA), or a birth certificate. The BPS must accept any documents that reasonably establish the applicant's identity. Households do not have to provide a specific type of verification.

For drug or alcoholic treatment center residents, the authorized representative may be the resident's collateral contact for purposes of verifying the resident's identity and residency.

c. Gross Nonexempt Income

The BPS must verify gross nonexempt income for each household member before certification. The process of verifying income includes establishing the onset and termination of income.

d. Citizenship and Immigration Eligibility

The applicant must declare in writing the citizenship or immigration status of all household members. Immigrants must present documentation to determine if they are eligible immigrants as defined in Part VII.F. To establish eligibility for immigrants, applicants may need to establish:

- 1) the date of admission;
- 2) the date USCIS granted the status;
- 3) a military connection;
- 4) battered status;
- 5) presence in the U.S. on August 22, 1996;
- 6) the number of work quarters; or
- 7) tribal membership.

While awaiting acceptable documentation, the immigrant in question is ineligible, but the BPS must determine the eligibility of any remaining members, except in the instance when a member disputes the SSA report of countable work quarters to establish eligibility. The member may participate for six months during the SSA investigation. See Part VII.F.3.

The BPS must verify the validity of an immigrant's documents through the U.S Citizenship and Immigration Services (USCIS). See Appendix 2 of Part VII for the Systematic Alien Verification for Entitlements (SAVE) Program verification system

The BPS must not verify the citizenship of household members unless the information provided by the household is questionable. See Part VII.F.4 for suggested forms of verification and the procedures to verify citizenship.

e. Shelter Expenses

Households must declare their shelter costs to receive a deduction for such expenses. Households must also declare their responsibility for heating or cooling expenses or their responsibility for telephone costs for entitlement to use the standard utility allowance or the telephone standard, respectively. The BPS must verify shelter expenses.

NOTE: Recipients of Low-Income Home Energy Assistance payments are entitled to the utility standard, even if they do not incur direct utility costs, if:

- 1) they received energy assistance at the current residence **during the previous 12 months; and**
- 2) **the household contains a household member who is 60 years of age or older or is disabled, as outlined in Definitions.**

The BPS must not verify the shelter expenses of homeless households that qualify for the Homeless Shelter Allowance unless the claim is questionable. See Part X.A.6.

f. Dependent Care Expenses

Households may declare dependent care expenses for a child or other household member that are needed to allow a household member to work, to look for work, or to be in a job training program. See Part X.A.3. The BPS must verify dependent care expenses.

g. Resources

Applicants must declare the amount of their liquid resources at each application. **Because of the adoption of Broad-Based Eligibility allowance by VDSS**, the BPS must not request verification of resources unless the declared amount is questionable, or the household fails to declare an amount.

When verification is requested, the BPS may obtain verification of liquid resources through checking and savings account statements, clearances sent to banks and savings institutions, credit union statements, etc.

h. Medical Expenses

The BPS must verify the amount of any medical expenses that may be deductible, including expenses that the household expects to incur during the certification period to get the medical standard deduction or to claim actual expenses. The agency must also verify amounts for reimbursement of medical costs, such as a reimbursement from an insurance company for a hospital bill. The BPS must obtain verification before initial certification if the household indicates the existence of a deduction for a household member who is 60 years of age or older or disabled, **as outlined in Definitions**. For the medical standard deduction, the household must verify that eligible members incur more than \$35 a month in allowable medical expenses. Households that incur more than \$235 a month in medical expenses may opt out of the medical standard deduction and verify and claim actual expenses. Any expenses that are anticipated, but not verified at certification, will be allowed if verification is provided during the certification period for households claiming actual expenses or the verification establishes entitlement to the medical standard deduction.

i. Social Security Numbers

The BPS must verify the Social Security number (SSN) of all household members reported by the household by submitting the number to the Social Security Administration (SSA) through SVES. The BPS must not delay certification of an otherwise eligible household solely to verify a Social Security number even if the 30-day processing period has not expired. The BPS must certify the household as soon as all other steps necessary to certify a household have been taken, except for verification of the Social Security number.

If the SVES inquiry indicates that SSA is unable to verify the SSN provided by the client, the BPS must contact the household to determine if the information the household provided is correct and obtain the correct information, as appropriate. If the information the agency has is correct, but the information SSA has is incorrect, advise the household to resolve the discrepancy with the SSA.

If the household fails to provide the necessary information that would allow the verification of an SSN, the household member for whom the number is unverified is ineligible.

If a household must provide information or documentation to the local agency or the SSA, the household must complete the action before the next recertification or show good cause why it was unable to do so.

If a household claims it cannot complete required actions for reasons beyond its control, the BPS must verify the household's inability to cooperate. For example, a household may claim it cannot verify a name change because fire destroyed official records. The BPS must verify this claim to the point he/she is satisfied the claim is accurate, i.e., documentation of the name change no longer exists. In these cases, an SSN match cannot be accomplished since SSA records cannot be corrected without the missing documentation. If the BPS verifies that the household is unable to provide the information needed to verify the SSN, the household member will remain eligible. The case file must adequately document the household's inability to provide the information.

Conversely, if the BPS is unable to substantiate the household's claim that it cannot provide the information, the household member will be ineligible.

j. Disability

Disability status of individual household members must be established whether the stricter or more relaxed definition of disability is evaluated. See Disabled Person in Definitions. If a household fails to verify disability when requested, the individual in question is not considered disabled.

Work Registration, Student Identification, Work Requirement

A statement from a licensed medical provider is sufficient for the less restrictive standards for these policy areas. Receipt of temporary or permanent disability payments may also be used.

Separate Household Status for Elderly, Disabled Persons

For elderly, disabled persons who are unable to purchase and prepare meals separately, the agency must first determine the disability and then establish that these persons are unable to purchase and prepare meals because of the disability. The Social Security Administration's list of disability conditions may be used for this evaluation.

If it is obvious that the individual could not purchase and prepare meals because of the disability, the BPS must consider the individual disabled even if the disability is not specifically mentioned on the SSA list. If the disability is not obvious, the BPS must verify the disability by a statement from a licensed medical provider or licensed or certified psychologist, along with a statement that, in the doctor's opinion, the disability prevents the individual from purchasing and preparing meals.

Disabled for Determining Eligibility for Group Homes, Medical Expenses, Unlimited Shelter Expenses, Net Income Standards, 24-month Certification Periods, Resource Eligibility, Immigration Eligibility

Verification of this evaluation of disability, as noted in Definitions, will usually be determined by receipt of or approval for certain income sources or benefits. For example, approval for or receipt of a disability check from the SSA, including SSI, verifies disability.

k. Child Support Payments

A household member's legal obligation to pay child support, the obligated amount of support to be paid, and the amount of child support actually paid must be verified to allow an income exclusion.

Documents which may be used to verify the household's legal obligation to pay child support and the obligated amount include a court or administrative order, or a legally enforceable separation agreement. The actual payment of support may be verified through such methods as cancelled checks, withholding statements from wages or unemployment compensation, statements from custodial parents about direct payments or payments made to third parties, or payment records of the Division of Child Support Enforcement. Documents used to verify legal obligation to support do not constitute verification of actual payments. Therefore, separate verification of the obligation and actual payments must be obtained, unless the information is obtained through APECS.

2. Verification of Questionable Information (7 CFR 273.2(f)(2))

Local departments of social services must not verify any other factors of eligibility prior to certification unless they are questionable and affect a household's eligibility or benefit level. To be considered questionable, the information on the application must be:

- a. inconsistent with statements made by the applicant;
- b. inconsistent with other information on the application or previous applications; or
- c. inconsistent with any other information received by the local department of social services.

When determining if information is questionable, the local department of social services must base the decision on each household's individual circumstances. For example, a household's report of paid expenses that exceed its income may be grounds for a determination that further explanation and possibly verification is required. This circumstance alone may not be grounds for a denial. The local department of social services must explore with the household how it is managing its finances; whether the household receives excluded income or has resources, and how long the household has managed under these circumstances.

If the local department of social services needs verification to resolve questionable information, the BPS must document why it considered the information questionable. The documentation must also include the verification used to resolve the questionable information.

The definition of questionable information contained in this chapter applies to all references of questionable information throughout this manual.

3. Sources of Verification (7 CFR 273.2(f)(4))

Documentary Evidence

Local departments of social services must use documentary evidence as the primary source of verification. Documentary evidence means written confirmation of a household's circumstances. Examples include wage stubs, rent receipts, and utility bills. The BPS is responsible for determining if the evidence provided is sufficient to determine eligibility. Evidence is sufficient if the local department can derive correct information about the element from the evidence provided. For example, the BPS may use the Year-to-Date totals on pay stubs to establish a missing amount.

Although documentary evidence is the primary source of verification, acceptable verification is not limited to any single type of document. The local department may obtain the information through the household or other sources. The local department must use alternate sources of verification such as collateral contacts and home visits whenever the BPS cannot obtain documentary evidence.

To verify residency, a collateral contact, as well as documentary evidence, **may** serve as a primary source of verification.

When attempts to verify countable income are unsuccessful, the BPS must determine an amount to be used for SNAP purposes based on the best available information. The local

department may use the household's statement if alternate sources of verification are not available or are uncooperative with the household and the local department.

Example

A farm owner refuses to verify a tenant's income. The local Migrant Seasonal Farmworker's Association (MSFA) or Agriculture Stabilization and Conservation Service (ASCS) may be able to provide information of expected income.

Where information from another source contradicts statements made by the household, the household must have an opportunity to resolve the discrepancy prior to an eligibility determination and within the maximum time limits described in Part II.F.

Example

A farm owner reports that the applicant, a tenant farmer, earned a specified amount from the sale of a crop. The applicant reports that this amount is incorrect. If there is no one else to verify the income, and the applicant himself is unable to do so, the agency could use an estimate provided by the Agriculture Stabilization and Conservation Service (ASCS).

Collateral Contacts and Home Visits

A collateral contact is a verbal confirmation of a household's circumstances by a person outside of the household. The person supplying the information may be either in person or over the telephone. Before approval of the initial application/reapplication, the BPS may select a collateral contact only if the household fails to designate one or designates one that is unacceptable. Examples of acceptable collateral contacts include employers, landlords, social service agencies, migrant service agencies, and neighbors of the household who can provide accurate third-party verification. If the BPS designates a collateral contact, the BPS may not make the contact without prior written or oral notice to the household. At the time of this notice, the BPS must inform the household that it must consent to the contact; or provide acceptable verification in another form.

If the household fails to choose one of these options, the BPS must deny the application based on the normal procedures for failure to verify necessary information at the end of the processing period.

When the BPS contacts the collateral contact, there must be:

- No disclosure that the household has applied for benefits;
- No sharing of information provided by the household; or
- No suggestion of wrongdoing by the household.

The BPS may disclose to the collateral contact only that information the contact needs to supply the information the agency seeks.

Before approval of the initial application/reapplication, home visits may serve as verification but only if the agency cannot obtain documentary evidence. The BPS must schedule the visit in advance with the household for a time that is acceptable to the household.

Upon approval of the application, requirements for selecting a collateral contact by the household and advance notice of the collateral contact or home visit no longer apply if needed to investigate a possible overissuance. Documentation is necessary before making the collateral contact or home visit as to the information received that indicates the possibility of an overissuance. For example, after an application is approved, the agency may make a home visit without advance notification if an anonymous caller identified an additional household member. The investigation may be to evaluate the possibility of an overissuance that already occurred or to prevent an overissuance from occurring in the future.

Home visits deemed necessary for front-end or preventative investigations are not subject to advance notification and scheduling requirements with the household. Inconsistencies in a household's circumstances may warrant preventative investigations.

4. Checklist of Needed Verifications

The BPS must provide a checklist that informs each applying household of the verifications needed to process the application and the date by which the information is needed. The agency must provide a checklist for each new application, reapplication, and recertification application filed.

B. RESPONSIBILITY FOR OBTAINING VERIFICATION (7 CFR 273.2(f)(5))

The household is primarily responsible for providing documentary evidence to support statements on the application and to resolve any questionable information. Unless verification is readily available to the household, the household is not responsible for providing verification of reported unearned income for which verification is accessible to the BPS through systems of records. These records include APECS, SVES, and the VEC inquiry of unemployment benefits. The household is also not required to verify earned income if verification is accessible through the automated inquiry of the Work Number.

The BPS must assist the household in obtaining requested verifications provided the household is cooperating with the agency as outlined in Part II.C and the household either does not have other verification available or requests assistance in obtaining information. The household may supply documentary evidence in person, through the mail, by facsimile or other electronic means, or through an authorized representative. The household must provide information during the normal business hours for the local office. Information received after normal business hours is counted as being received the next day. Any reasonable documentary evidence provided by the household is acceptable. The focus of the agency must be primarily on how adequately the verification proves the statements on the application.

Whenever a collateral contact must substitute for documentary evidence because documentary evidence is not available, the BPS must generally rely on the household to provide the name of a collateral contact. The household may request assistance in designating a collateral contact. The local department is not required to use a collateral contact designated by the household if the collateral contact cannot provide accurate third-party verification. When the collateral contact designated by the household is unacceptable, the BPS must ask the household to designate another collateral contact, or the BPS will designate the collateral contact. The BPS is responsible for obtaining verification from acceptable collateral contacts.

The BPS may contact only those persons designated as collateral contacts with the permission of the household. In the absence of documentary evidence and any other source of verification, the BPS must determine the amount to use for certification purposes based on the best available information.

In instances when outside knowledge of an application for SNAP benefits may jeopardize the employment or safety of the applicant household, the BPS must determine that that verification source is unavailable. Examples include an employer or a migrant worker's crew leader who may discourage participation in the Supplemental Nutrition Assistance Program, in which case, the BPS must use another source.

C. DOCUMENTATION (7 CFR 273.2(f)(6))

The BPS must document case files to support eligibility, ineligibility, and benefit level determinations. The documentation must be sufficiently detailed to permit a supervisor or reviewer to determine the reasonableness and accuracy of the determination. The documentation must also indicate that the household received all available options to which it is entitled. At a minimum, the BPS must document the following:

1. The reason for withdrawal of an application, if the household provides a reason and confirmation of the withdrawal. (Part II.B.4.)
2. Details regarding refusal to cooperate. (Part II.C.)
3. The reason the BPS considered information questionable, and the information used to resolve the questionable information. This should include an evaluation of the household's actual expenses, if allowing the utility or telephone standard causes the expenses to exceed the income. This evaluation should address if there are unreported sources of income or resources when the income is insufficient to allow the household to meet its financial obligations. (Part III.A.2.)
4. The reason the BPS considered an alternate source of verification (a collateral contact or home visit) necessary. Note that in verifying residency, a collateral contact is a primary source of verification. (Part III.A.3.)
5. The reason the BPS rejected a collateral contact and requested an alternate or why the agency designated a collateral contact. (Parts III.A.3 and III.B.)

6. A statement that the use of actual utility costs, actual medical expenses, or actual homeless shelter expenses was a decision made by the household. (Part X.A.)
7. Results of record/information systems reviews for applications. (Part III.B.)
8. An explanation as to why the household could not reasonably verify residency, e.g., the household has just recently arrived in the locality. (Part III.A.1.a.)
9. Whenever the agency must verify earned income, the BPS must verify and document the rate and frequency of pay. The BPS must determine the payment cycle and document on what day(s) the household member receives pay and when the wages earned during a pay period are available.
10. The number of hours, period and place of employment or other activity used to regain eligibility for the work requirement. (Part XV.C.)

D. VERIFICATION AT RECERTIFICATION (7 CFR 273.2(f)(8))

At recertification, the BPS must verify eligibility factors to determine a household's continued eligibility for SNAP benefits and the amount of benefits to which the household is eligible. In **some** instances, the BPS must verify only the elements that have changed since the last verification. The BPS must not verify **some** unchanged information unless the information is incomplete, inaccurate, or inconsistent.

In addition to the verification requirements for recertification applications, the BPS must monitor all available information systems for all household members, as addressed in Part III.B.

Households must supply requested verifications to allow the BPS to anticipate income and expenses properly for the new certification period. Generally, the BPS must request information from the month before the last month of certification. For households that file recertification applications after the certification period ends or in the month before the last month of certification, the BPS must request verification that reasonably will reflect the first month of the new certification period.

The following chart lists items the BPS must verify at recertification.

Verification at Recertification

Earned income	Verify amount.
Unearned income	Verify changes in the source or the amount if changed by more than \$50.
Shelter expenses	Verify amounts.
Medical expenses: Medical standard deduction used during previous certification period	Household must declare monthly expenses of \$35 or more. Verify the expenses.

Medical standard deduction was not used during previous certification period	Household must declare monthly expenses of \$35 or more. Verify the expenses
Actual expenses exceeding \$235 per month	Verify any expenses reasonably expected to be incurred in the certification period.
Child support expense	Verify new obligation if the obligation changed. Verify the amount paid.
Work hours or other work activity hours of an individual subject to the work requirement who is not receiving time-limited benefits because of a work activity	Verify the number of work hours, hours in a work program, or volunteering is a weekly average of 20 hours or more. Verify that the number of hours assigned for the SNAP E&T work experience component is met.

In addition to the items above, the agency must address the following items:

Change in alien status	Change affecting entitlement to utility and/or telephone standard
Change in loans	Identity of the person filing the recertification application if this person's identity had not previously been verified
Change in residency	Newly obtained Social Security numbers
Incomplete, inaccurate, or inconsistent items	Questionable information, as defined in Part III.A.2

E. VERIFICATION DURING THE CERTIFICATION PERIOD

The provisions of this chapter do not apply to changed elements reported through the Interim Report (Part XIV.C.2.c) or when verification is not routinely required. The verification requirements addressed here are not dependent on whether a household is required to report the change. The BPS must address changes, as outlined in Part XIV.A.2, and may need to verify the information regardless of whether the household is required to report the change. See Part XIV.A.1 for reporting requirements.

1. Impact on the Benefit Level

During the certification period, households may need to verify information if household circumstances change. For changed information that is unrelated to the Interim Report, households must verify elements that cause benefits to increase. The benefit amount for the first month after the change may reflect the reported change without verification, if the verification is unavailable.

The BPS must obtain verification of the change before the household can receive the second issuance of benefits that reflects the change. If the household does not provide verification within 10 days of the verification request, the BPS must change the allotment back to the original amount certified before the change was entered. The BPS does not have to issue an advance notice if benefits revert to the original level because of the lack of verification if the previous notice advised the household that this would happen at the time of the increase.

For changes that result in a decrease in the benefit amount or that cause no change in the benefit amount, the BPS must act on the change with or without verification of the change. If the BPS does not verify the changed element at the time of handling the change, the agency must verify the element in conjunction with processing the Interim Report, if applicable, but not later than for the next recertification.

2. Verification Requirements

The BPS must verify the following elements if changes are reported:

- Earned income. Verify the new amount.
- Unearned income if the source changed or the amount changed by more than \$125 since the last verification.
- Number of hours worked or performed for a work activity for persons subject to the work requirement.
- Voluntarily reported medical expenses that establish the household is eligible for the medical standard deduction. **Verify the new amounts.**
- Voluntarily reported medical expenses for households that are claiming actual medical expenses. **Verify the new amounts.**

If the BPS learns of a change in medical expenses, from a source other than the household, the BPS must act on the change if the expense is verified upon receipt and if the BPS can make the change without additional information or verification from the household. If the change requires additional information from the household, the BPS may not act on the change during the certification period.

- The legal obligation to pay child support or the amount actually paid.

In addition to verifying changed elements that may affect the benefit amount, the agency must address other changes when changes occur, but no later than at recertification, for elements such as:

- Residency
- Identity (if the person whose identity was verified is no longer a household member)
- Immigrant status
- Money received that is reported as a loan

The agency must request verification for any changes where the information provided is questionable, as defined in Part III.A.2, or for information that is incomplete, inaccurate, or inconsistent. The local agency cannot require verification of other changes, except as indicated here, but the agency may seek clarification or explanations of the household's circumstances.

When attempts to verify mandated items are unsuccessful because someone outside the household fails to cooperate with the household or the local agency, the BPS must determine the information to be used for SNAP purposes based on the best available information. The agency must explore alternate sources of verification available.

F. COMPUTER MATCHING REQUIREMENTS

Part III.B assigns households primary responsibility for providing verification except in verifying unearned income that is otherwise available through computer matching. In addition to using systems of record to verify unearned income, matches of systems of record against SNAP applicants and recipients must routinely be made to verify the accuracy of information presented by households.

1. Systems of Record

The chart below identifies systems of record through which inquiries must be made and whether independent or secondary verification must be sought before acting on the information presented.

Systems of Record – Application Match	
Source	Independent/Secondary Verification?
Automated Program to Enforce Child Support (APECS)	
• Support Paid	No
• Support Received	No
Electronic Disqualification Recipient System (eDRS)*	
• Disqualified recipients for an intentional program violation (IPV) and determining the length of an IPV penalty	Yes
State Verification Exchange System	
• Death Match	Yes
• Prisoner Match**	Yes
• Social Security Number Match	No
• Unearned Income received through SSA	No
• Work Credits	No
Virginia Employment Commission (VEC)	
• Earnings	Yes
• Unemployment Benefits	No

* Assessment is optional for minors.

**Assessment must be made of incarceration periods of more than 30 days for adults.

Other systems of record are available for specific inquiry. Caseload matches are not required. The chart below identifies the systems of record through which inquiries may be made.

Systems of Record – Specific Inquiry	
Source	Independent/Secondary Verification?
State Online Query – Internet (SOLQ-I) -SSA Benefits	No

Systems of Record – Specific Inquiry (continued)

Source	Independent/Secondary Verification?
Beneficiary Data Exchange (BENDEX) -SSA Benefits	No
Systematic Alien Verification for Entitlement (SAVE)-Immigration Status	No
State Data Exchange (SDX)-SSI Files	No
Virginia Lottery	Yes

Frequency of Matches

All systems queries, except inquiries through SVES, must occur before the approval of applications, reapplications, or recertification/renewals for each household member, as appropriate. Delayed screening for SVES may result in an agency-caused overpayment however. For eDRS, screenings must also occur when new adult members are added to the SNAP household during the certification period.

In addition to system queries at application, screenings must occur for the interim report evaluation, except for eDRS. The SVES match must occur for the interim evaluation for elderly/disabled households certified longer than 12 months as the screening must occur at least once every 12 months for these households. For all other households, SOLQ-I may be used for the interim report evaluation.

The Virginia Lottery provides an inquiry of winnings of \$5,000 or more. Inquiry is available at <https://www.valottery.com/winnersnews/latestwinners>. At a minimum, screenings must occur for the interim report evaluation and at recertification.

Independent/Secondary Verification

The BPS must assess the results of system queries and include information obtained through the inquiries in the evaluation of the case. The BPS must resolve discrepancies noted between the application and system screenings before processing applications or completing the interim evaluation.

Information provided by system queries may be used in SNAP cases without additional verification if the information is provided by the source that also generates the information. The BPS must obtain additional verification of information that is not generated by the source of such information.

2. Periodic Matches

The Virginia Department of Social Services may occasionally match the caseload or a portion of the caseload against other databases. These matches may be used to determine the continued eligibility of households or individual members. These matches may include:

- Virginia Department of Corrections (DOC) – weekly listing accessible through the Data Warehouse of persons in the custody of DOC the previous month. The DOC listing does not establish current status so contact with the household is encouraged before acting. It is recommended to access the report at least once every six months.

- Public Assistance Reporting Information System (PARIS) – quarterly listing accessible through the Data Warehouse of persons receiving assistance in more than one state simultaneously. Resolve the information generally within 30 days of receipt.

3. Income Eligibility Verification System (IEVS)

The Income Eligibility Verification System (IEVS) provides information by running matches of the client population against the files of other state and federal agencies. Matches include:

- Social Security Administration for earnings information from the Benefit Exchange Earnings Records (BEERS);
- Internal Revenue Service for unearned income, such as interest income (RES).

The BPS must obtain independent verification of information obtained from IEVS by contacting the household or the appropriate source of the income or resource. If the BPS opts to contact the household, informally contact the household, informing of the information received, and requesting that the household respond within 10 days. If the household fails to respond in a timely manner, the BPS must follow up on the information to report the impact on the benefit at recertification or the interim evaluation if the electronic record and Benefit Impact Statement are still available. If the report indicates that the household would be over the allowable gross income level, the BPS must send the Request for Contact, as allowed by Part XIV.A.2.d.

The BPS may contact the appropriate source of the information independent verification. After obtaining independent verification, the BPS must properly notify the household of the action it intends to take and provide the household with an opportunity to request a fair hearing prior to any adverse action.

4. National Directory of New Hires (NDNH)

A match of Social Security Numbers of SNAP household members will occur with the NDNH. NDNH matches may occur on a monthly or quarterly basis and is required to determine eligibility and benefit levels for all new, reapplication, and recertification applications. Alerts will notify the BPS of available match results. Match results will be:

- New Hire information;
- Quarterly wage;
- Unemployment Insurance; and
- Unmatched Social Security Numbers that must be resolved.

The BPS must obtain independent verification of information obtained through the NDNH.

If there is a delay in obtaining sufficient verification or to accommodate expedited processing period, continue processing the application. Upon receipt of subsequent match data or verification that establishes a household's ineligibility or incorrect benefit amount, the BPS must terminate or reduce benefits, as appropriate, and establish a claim to collect overpaid benefits.

PART IV CERTIFICATION PERIODS/RECERTIFICATION

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A. CERTIFICATION PERIODS (7 CFR 273.10(f))

The local department must assign a certification period once the BPS determines that a household is eligible to participate in the Supplemental Nutrition Assistance Program. A certification period is the period of time within which a household is eligible to receive benefits. Certification periods vary depending on the circumstances of the individual household. No household may have a certification period of more than twelve (12) months, except for households comprised of elderly or disabled members, as discussed in Section 2, below, and participants in the Combined Application or the Elderly Simplified Application projects, as described in Appendix II or Appendix III of Part II.

1. Assigning A Certification Period

All certification periods are based on calendar months. At initial application and reapplication, the first month in the certification period is normally the month of application. At recertification, the first month in the certification period is the month following the last month in the previous certification period. The beginning date of the certification period will generally be the filing date of the application for initial applications, reapplications, and recertification applications filed after the previous certification period expired.

The BPS does not need to assign the same certification period at each new eligibility cycle. Rather, the BPS must assign a period for each household based on individual circumstances and household characteristics at the time of consideration.

Eligibility for benefits will cease at the end of each certification period. Participation may not continue beyond the end of the certification period without a new determination of eligibility. The household must receive written notification that the benefit period is ending. The agency may use the *Notice of Expiration* or the *Notice of Action and Expiration* for this purpose, depending on the length of the certification period and the timing of the application approval. Time frames for providing the *Notice of Expiration* for the end of the certification period are described in Part IV.C.

2. Maximum Certification Periods

The maximum amount of time a household may have as a certification period is dependent on a household's circumstances as listed below. The BPS should assign a shorter period than listed if a household's circumstances do not warrant the maximum period. The BPS must consider anticipated changes or other factors that may affect eligibility when setting the certification period. The minimum certification period for all households is one month.

The month when a household receives a partial month's allotment or receives no allotment because of proration will count toward the allowable maximum period.

Period

36 months

Household Characteristics

- Households in which all members are participants in VaCAP or ESAP, as allowed in Appendix II or Appendix III of Part II. These households are not subject to the Interim Report process.

When households become ineligible for ESAP, but they remain eligible for SNAP, the remaining months of the 36-month certification period will remain in effect. These households are subject to the Interim Report process.

- | | |
|----------------|--|
| 24 months | <ul style="list-style-type: none"> Households in which all members are 60 years of age or older or all members are disabled, as outlined in Definitions, may have a certification period up to 24 months if there is no earned income in the household. These households must file an Interim Report of their circumstances by the 12th month to receive benefits for the final 12 months of the certification period. See Part IV.C.8 and Part XIV.B. |
| 6 months | <ul style="list-style-type: none"> Households in which all members are 60 years of age or older or all members are disabled, as outlined in Definitions, may have a certification period up to 6 months if there is no earned income in the household in order to ensure these households will not receive an Interim Report. |
| 6 months | <ul style="list-style-type: none"> Households in which any member is eligible for time-limited benefits through the work requirement may receive benefits for no more than six months. Benefits for the certification period will be allowed as follows: one month of prorated benefits, if appropriate, up to three countable months of time-limited benefits (Y1 or Y2), and a varying number of Special Exemption benefit months (E9). See Part XV for determining eligibility for the work requirement. |
| up to 6 months | <ul style="list-style-type: none"> Households with unstable circumstances may have a certification period of up to six months depending on individual household circumstances. This may include households with members who are homeless or who are migrant/seasonal farm workers, as defined in Definitions. |
| 5 months | <ul style="list-style-type: none"> Households that receive Transitional Benefits for former TANF recipients may receive frozen benefits for five months. Note that ongoing households must have their certification periods lengthened or shortened to the five-month limit. See Parts XII.H and IV.D.3 for a discussion of Transitional Benefits. |
| 12 months | <ul style="list-style-type: none"> All other households not addressed above may have a certification period of 12 months and must file an Interim Report of their circumstances by the sixth month. See Part XIV.B. |

B. NOTICE OF ELIGIBILITY, DENIAL OR PENDING STATUS (7 CFR 273.10(g)(1))

Each household must receive a written decision about its application at initial application, reapplication and recertification. Depending on household preference, notices may be delivered through the mail or electronically. The BPS may:

1. find the household eligible for benefits and approve the application;
2. find household ineligible and deny the application; or

3. be unable to determine the household's eligibility, within the required timeframe, and leave the application remains pending.

The BPS must provide a *Notice of Action* to inform the household of the disposition of its application. The BPS may use the *Notice of Action and Expiration* to inform the household of the approval of the application in the last month of certification.

C. RECERTIFICATION

Each household may apply for recertification before the expiration of the certification period in which it is currently participating.

The BPS must base eligibility for recertification on circumstances anticipated for the month following the expiration of the current certification period. The same anticipated circumstances must be the basis for the level of benefits for the recertification period.

The BPS must complete the application process if the household meets all the requirements and finishes the necessary processing steps in a timely manner, as defined in this chapter, and approve or deny timely applications for recertification prior to the end of the household's current certification period. The BPS must provide eligible households an opportunity to participate by the first of the month following the end of its current certification period.

A household may not receive benefits beyond the end of its certification period unless the household recertifies or unless the agency opts to extend the certification period to match a TANF or Medicaid review period. See Part IV.D for information and limitations on lengthening certification periods.

The joint processing requirements of Part II.G.1 apply to recertification applications. Expedited service processing provisions of Part V apply to recertification applications filed during the month after the previous certification period ends.

The remainder of this chapter describes the processing requirements for recertification applications and the timeframes for each.

1. Notice of Expiration (7 CFR 273.14(b))

The local agency must advise the household that the certification period is about to expire and that a new application is necessary to establish further entitlement. The agency must send the *Notice of Expiration* form to notify households of the end of the certification period. See Part XXIV for the form and instructions.

Except as noted below, households must receive the *Notice of Expiration* no later than the last day of the next to the last month of the current certification period, but no earlier than the first day of the next to the last month of the current certification period. When the agency mails the *Notice of Expiration*, allow two days for delivery in addition to the postmark date. Regardless of when the agency assigns the interview date, the

recertification application will be timely if the household files the application by the 15th calendar day of the last month of certification.

TANF or GR households whose applications are jointly processed for SNAP and TANF or GR benefits, in accordance with Part II.G.1, need not receive a *Notice of Expiration* if they have already filed an application for the PA re-determination and recertification for SNAP benefits by the time the *Notice of Expiration* would have to be provided.

If the BPS approves an application in the last month of the certification period, the BPS must give (or mail, if the applicant is not present) the *Notice of Expiration* to the household at the time of certification. These instances include households that the BPS certified only for the month of application and households that the BPS assigned a two-month certification period only for including benefits retroactive to the month of application. The household has 15 calendar days from the date of the notice to file a timely application for recertification. The BPS may use the *Notice of Action and Expiration* in place of the *Notice of Expiration* and the *Notice of Action* for these households.

2. Timely Application for Recertification (7 CFR 273.14(c))

Timely applications for recertification are:

- a. Households certified in the last month of the certification period, have 15 calendar days from the issuance of the *Notice of Expiration* to file a timely application for recertification. This section applies to households the BPS certifies for the month of application only or for a two-month certification period to include benefits retroactive to the month of application.

Example

Date Application Filed: July 20

Date Certified and benefits issued and available: August 12

Certification Period: July 20 to August 31

Date Notice of Expiration must be mailed: August 12

Date Application must be filed for the household to be assured of uninterrupted benefits: August 29 (August 12 plus 15 days plus 2 days for mailing)

- b. Applications filed by households that submitted completed applications by the 15th day of the last month of the current certification period are timely applications for recertification.

Any household that does not file its application timely for recertification will lose its right to uninterrupted benefits. The BPS must approve or deny the application by the 30th day after the filing date if the household has had at least 10 days to provide all needed verifications. If the 30th day falls during the weekend or on a holiday, the BPS must take the action on the first business day after the 30th day.

NOTE: For households entitled to file applications for recertification at the SSA office under the provisions of Part II.G.2, the application filing date will be the date the SSA receives the signed application.

3. Recertification Interviews (7 CFR 273.14(b)(3))

A household that receives a *Notice of Expiration* must participate in an interview scheduled by the local agency for a date that is on or after a timely application date, to retain its right to uninterrupted benefits. The interview the agency schedules may be face-to-face, by telephone, or by a prearranged home visit.

The agency must schedule interviews for timely filed recertification applications to allow households sufficient time (at least 10 days) to provide necessary verifications to protect the household's right to uninterrupted benefits. However, an interview is still timely if the agency conducts it by the last date the household can provide necessary verifications to receive uninterrupted benefits.

The local agency may schedule an interview for a date before the last month of the certification period. The agency may not deny the household, however, if the household has not yet filed an application. The BPS may not deny the household if the household fails to appear for the interview or is not available for a telephone interview scheduled before the last month of the certification period.

If the agency does not provide an interview date with the Notice of Expiration, or by some other means before the household files its recertification application, the agency must schedule an interview when the household files an application. If the household misses this scheduled interview, the agency must mail the *Missed Interview Notice* form to indicate that the household missed the interview. If the household does not reschedule the interview, the agency must deny the application at the end of the processing period.

If the agency schedules an interview on the *Notice of Expiration*, or by some other means, prior to receiving a timely application, the agency must take no other action if the household misses that interview. If the household files a timely application, the agency must schedule another interview and give uninterrupted benefits if the household provides all necessary verifications before the certification period expires.

If the household files its application for recertification in a timely manner, but due to its fault, is not interviewed in a timely manner, then the household will lose its right to uninterrupted benefits. The BPS must act on the application by the 30th day from the day the application was filed if the household has had at least 10 days to provide needed verifications. If the 30th day falls during the weekend or on a holiday, the agency must take the action on the first business day after the 30th day.

For households that file untimely recertification applications, the agency must schedule interviews to allow households sufficient time (at least 10 days) to provide necessary verifications by the 30-day processing standard.

4. Time Frames for Providing Verification at Recertification (7 CFR 273.14(b)(4))

For a timely recertification application, the household must provide verifications within 10 calendar days of the agency's request or by the last day of the certification period, whichever is later. If the household does not provide verification timely, the household will lose its right to uninterrupted benefits.

The BPS must approve or deny the application by the 30th day after the filing date provided the household has had at least 10 days to provide the verification requested. If the 30th day falls during the weekend or on a holiday, the BPS must take the action on the first business day after the 30th day.

5. Agency Action on Timely Applications for Recertification (7 CFR 273.14(d))

If a household filed a timely application for recertification, as allowed by Part IV.C.2, had an interview, as allowed by Part IV.C.3, and provided requested verifications within the timeframes given in Part IV.C.4, the BPS must provide uninterrupted benefits to the household.

The time standards for providing uninterrupted benefits are as follows:

- a. A household certified in the last month of its certification period must get a notice of its eligibility or ineligibility, and be provided an opportunity to participate, no later than 30 calendar days after the date the household had an opportunity to obtain its last SNAP benefit.
- b. Any other household must have the *Notice of Action* to approve or deny the case mailed by the last day of the current certification period. An eligible household must have an opportunity to participate by the first day of the first month of the new certification period.

The agency must provide an opportunity to participate within five working days after a household supplies any missing verification if the agency is unable to process a timely filed application by the normal processing period because of the 10-day time frame for providing verification. The agency may not prorate benefits if the household provides requested information within the 10-day period.

If the BPS is unable to process a timely application in enough time to give uninterrupted benefits, the BPS must give the household an opportunity to participate the next working day after determining the household eligible. The household must receive a full month's allotment for the first month of the new certification period.

6. Household Failure to Act (7CFR 273.14(e))

A household that submits a timely application for recertification and meets all other required processing steps must have the right to receive uninterrupted benefits, as defined in Part IV.C.5. A household that fails to participate in an interview (Part IV.C.3),

or to submit any required verifications (Part IV.C.4), will lose its right to uninterrupted benefits, if the failures occur after the deadline for filing a timely application (Part IV.C.2).

a. Failure to File a Timely Application

A household that fails to file a timely application for recertification but files an application during the last month of certification, must have an opportunity to participate within 30 calendar days after the application filing date, if eligible. The BPS must determine a household's eligibility and allow at least 10 days for the household to provide needed verification.

The BPS must assess a household's entitlement to expedited service processing whenever a household files an application for recertification during the month after the certification period expires. If the household is eligible for benefits, the BPS must provide an opportunity to participate within seven calendar days of the application filing date. If the household is not entitled to expedited processing, the BPS must determine eligibility and provide benefits within 30 calendar days.

b. Failure to Participate in an Interview

A household that submits a timely recertification application but who is not interviewed timely has no entitlement to uninterrupted benefits. The BPS must, at a minimum, provide an eligible household with an opportunity to participate within 30 calendar days after the application filing date. The BPS must send the *Missed Interview Notice* if the household misses the scheduled interview.

Example

A household files a timely recertification application on January 14. The household misses its scheduled interview set for the 14th so the BPS sends the *Missed Interview Notice*. The household reschedules and participates in an interview on February 2. The BPS must act on the application by February 13, if the household has had at least 10 days to provide necessary verifications.

c. Failure to Provide Verification

If a household submits a timely recertification application but submits required verifications untimely, the agency must provide an opportunity to participate by the 30th day after the application filing date. Untimely means that the household did not provide the information within 10 days of the request date or by the last day of the certification period, whichever is later.

Example

A household files a timely application for recertification on the 12th of the month and attends its interview the same day. The household provides all needed verifications by the 25th. The agency must provide

uninterrupted benefits to the household since the household met all the timeliness standards.

If the household does not provide needed verification until the second of the following month, the agency must act by the 12th of the following month (30 days after the application filing date).

7. Early Filing of Recertifications

If a household files an application for recertification more than two calendar months before the end of the current certification period, the BPS must deny the application as a duplicate application on file. If the household files the application so that the 30th day following the filing is before the end of the current certification period, the BPS must extend the processing time for the case from 30 days to the end of the current certification period.

8. Mandatory Review of Eligibility for 24-Month Certification Periods

Except for households certified for the VaCAP and ESAP components, the BPS must review eligibility for households certified up to 24 months during the certification period. The review must take place anytime a case has a certification period that is over 12 months. The BPS must conduct a review of the household's eligibility during the eleventh month of certification.

The Virginia Department of Social Services will send households an Interim Report form to complete the review. The BPS must note the frequency for sending the Interim Report to initiate the review process.

The BPS must assess the returned Interim Report form for completeness and use the information submitted on the report to determine the household's continued eligibility. If the household fails to submit a completed Interim Report or fails to submit required verification or information, the household's case will automatically close at the end of the 13th month of the certification period unless the BPS takes action to close the case earlier based on the information presented on the Interim Report. See Part XIV.C for a discussion of the Interim Report process.

D. CHANGING THE LENGTH OF THE CERTIFICATION PERIOD

1. Shortening Certification Periods

Once the BPS determines that a household is eligible for benefits, the BPS must establish the number of months the household may receive benefits before the household must file another application and have the eligibility process begin again. A certification period may range from one month to 24 months in length, except for households certified for the VaCAP and ESAP components. Once the BPS establishes the certification period, the BPS may not shorten the period to initiate the recertification process. The BPS may shorten the certification period only for households due Transitional Benefits.

If the BPS determines that the household is not eligible for benefits because of changed circumstances, the BPS must send an adverse action notice (*Notice of Action* or *Advance Notice of Proposed Action*) to close the case. If the BPS is unable to determine the household's eligibility because of suspected changes in the household's circumstances, the BPS must send the household the *Request for Contact* form to request information from the household. The household will have ten days to respond to requests for contact and submission of information.

The BPS must send an adverse action notice to terminate benefits if the household does not respond timely or completely to the *Request for Contact* form. If the household responds timely and completely and the response causes the household to be eligible for a lesser SNAP benefit amount, the BPS must send an adverse action notice to reduce the benefits. See Part XIV.A for other information on handling changes.

2. Lengthening Certification Periods

At its option, the BPS may lengthen a household's certification period to align the SNAP certification period with the review period established for the Medicaid or TANF Programs. The original period and the extended period together may not exceed the 24- or 12-month limits as addressed in Part IV.A.2. The BPS must send the household a *Notice of Action* to advise of the revised certification period.

3. Adjusting Certification Periods for Transitional Benefits

In most instances, when a household's TANF grant terminates, the BPS must switch the household's SNAP eligibility to the Transitional Benefits component. A household may receive Transitional Benefits for a maximum of five months. The BPS must shorten the certification period so that the original certification period will expire at the end of five months if more than five months remain in the original period at the time of the conversion. If there are fewer than five months left in the original certification period at the time of the conversion to Transitional Benefits, the BPS must lengthen the certification period to allow for a five-month period. The BPS must use the *Notice of Action* to notify the household of the reassigned certification period and the amount of the benefits at the time of the conversion to Transitional Benefits. See Part XII.H.

PART V

EXPEDITED SERVICES

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A. ENTITLEMENT TO EXPEDITED SERVICE (7 CFR 273.2(i)(1))

The following households are entitled to expedited services:

1. Households with less than \$150 in countable monthly gross income, provided their countable liquid resources (e.g. cash on hand, checking and savings accounts, savings certificates, and lump sum payments as described in Part IX.C) do not exceed \$100.
2. Migrant or seasonal farm worker households who are destitute, as defined in Part V.F, provided their liquid resources do not exceed \$100.
3. Households whose combined monthly gross income and liquid resources are less than the household's incurred monthly rent or mortgage, and utilities, regardless of how or if the household pays the expenses. If the household indicates it incurs separate heating or cooling costs or that it receives Low Income Home Energy Assistance Program benefits, the BPS should use the utility standard, unless the household chooses to use actual costs.

Do not consider exempted resources or excluded income in making the expedited determination. The penalty PA income for noncompliance and income that has been averaged, such as self-employment, contract, etc., will count however.

Expedited services processing will apply at initial application, reapplication or for households that file recertification applications during the month after the certification period expires.

B. IDENTIFYING HOUSEHOLDS NEEDING EXPEDITED SERVICE

The local department of social services must design its application procedures to identify households eligible for expedited service once the household files an application. The local department must screen all applications except recertification applications that are filed timely. The local department must designate personnel to screen applicants as they contact the local department to request assistance or to review applications for entitlement if the applicant is not in the office to allow the screening. If the applicant is not in the office and the applicant failed to complete the application sufficiently for the local department to screen successfully, the local department must attempt to contact the household by telephone or e-mail if such contact information is on the application.

If the BPS discovers that a household is entitled to expedited service after the initial screening failed to identify entitlement, the BPS must provide expedited service to the household within the processing standards described in Part V.C. The BPS must document expedited screening results for all applications except recertification applications that are filed timely. Methods to document the screening include: the *Expedited Service Checklist*, case narrative comments screens, or the expedited section of the *Application for Benefits*.

C. PROCESSING STANDARDS (7 CFR 273.2(i)(3)(i))

For households entitled to expedited service, except those households entitled to a waiver of the office interview, the local department of social services must make SNAP benefits available to the household no later than seven calendar days after the application filing date. For residents of public institutions who apply for SSI and SNAP benefits before release from the institution, the SNAP application filing date is the date the applicant is released from the institution. Eligible households that apply after the 15th day of the month must also receive benefits for the month following the month of application by the seventh day.

If the local department of social services discovers that a household is entitled to expedited service after the application date, the BPS must determine eligibility and provide benefits within seven calendar days of the discovery date.

Eligible households that provide all the information needed to process the expedited application, within seven calendar days following the date of application, are entitled to receive benefits within seven calendar days following the date of application. If the household provides the information after the seventh day following the date of application, the BPS will have seven calendar days to process the application, beginning with the date the household provides the information. If the household does not provide requested information by the 30th day, the BPS must send the household a notice to extend the processing of the case for an additional 30 days. The BPS must inform the household of the normal verification standards that the household must now meet to determine eligibility. Procedures for verifying information used to determine eligibility are in Part V.D.

Out-of-Office Interviews (7 CFR 273.2(i)(3)(iii))

If the local department of social services arranges an out-of-office interview for a household that is entitled to expedited service, the BPS must conduct the interview and complete the application process within the expedited service standards. Day one of the processing period is the calendar day following the application date. If the BPS conducts a telephone interview and must mail the application to the household for signature, the expedited standards will not include any mailing time involved. Mailing time will only include the days the application is in the mail to and from the household and the days the application is in the household's possession pending signature and mailing.

D. VERIFICATION PROCEDURES FOR EXPEDITED SERVICE (7 CFR 273.2(i)(4)(i); 273.2(i)(4)(ii))

To expedite the certification process, the BPS must postpone all verifications required by Part III.A, except the identity of the applicant, if the BPS is unable to obtain verifications within the allowable processing time. The BPS may verify the identity of the applicant through a collateral contact or readily available documentary evidence.

The BPS must make all reasonable efforts to verify the household's residence, income statement (including a statement that the household has no income) and all other mandatory verifications

within the expedited processing standards. Verification may be obtained through collateral contacts or readily available documentary evidence before certification. The BPS may not delay benefits beyond the expedited processing standards solely because these eligibility factors have not been verified, however.

The BPS must attempt to obtain as much additional verification as possible but should not delay the certification of households entitled to expedited service if the BPS determines that it is unlikely that other verification can be obtained within the expedited period.

Once the household has supplied the name of an acceptable collateral contact or has asked the BPS for assistance in locating such a contact, the BPS must promptly contact the collateral contact or otherwise assist the household in obtaining the necessary verification. If the household is unable to provide documentary evidence or the name of a collateral contact, the BPS must assist the household in obtaining suitable verification.

Households entitled to expedited service must furnish a Social Security number for each person or apply for one for each person by the postponed verification deadline. Household members who are unable to provide the required Social Security number or who do not have one prior to the verification deadline may continue to participate only if they satisfy the good cause requirements specified in Part VII.G.4.

Once the applicant verifies identity, the BPS must not delay benefits beyond the delivery standard defined in Part V.C.

E. CERTIFICATION PROCEDURES FOR EXPEDITED SERVICE (7 CFR 273.2(i)(4)(iii))

Households that are certified on an expedited basis and that have provided all necessary verifications as required must have a normal certification period. The length of the certification period and benefit delivery date is determined by the application date.

1. If verification was postponed, and the application was filed on the 1st through the 15th of the month, the BPS may certify the household for the month of application only; or assign a normal certification period to households whose circumstances would otherwise warrant a longer certification period. In either case, however, benefits may not continue past the month of application if verification continues to be postponed, even if the household is not entitled to an allotment for the month of application because benefits prorated to less than \$10.

If certified only for the month of application, the BPS must send the *Notice of Expiration* as required by Part IV.C. The household must reapply and complete the verification requirements that were postponed. If a certification period of longer than one month is assigned, the BPS must notify the household in writing that no further benefits will be issued until the postponed verification is completed. The notice must also include information that the household must provide the postponed verification by the 30th day following the date of application or the household's case will be closed. Additionally, the notice must advise the household that if verification results in changes in the household's

eligibility or level of benefits, the BPS must act on those changes without an advance notice.

In instances when the household is not entitled to an allotment for the month of application, a determination of ineligibility must be made and the denial notice sent within seven days of the application date. If an eligibility determination can be made for the month following the month of application, that determination must also be made within seven days. If eligible, benefits for the month following the month of application must be issued by the normal issuance cycle however. Verifications must be obtained before benefits may be issued.

If the household fails to provide postponed verification by the 30th day, the BPS must close the case on the 30th day following the application date. If the 30th day falls during a weekend or on a holiday, the BPS must close the case on the next business day. No additional notice to the household is needed.

2. The BPS must certify a household that applies on or after the 16th day of the month for at least the month of application and the next month or assign a longer certification period, if circumstances warrant it. The BPS must issue prorated benefits to the household for the month of application and the second month's full benefit within the expedited processing time if the household is eligible to receive benefits. The household must receive benefits for the second month at the time of certification regardless of whether verifications have been postponed.

The household must submit postponed verifications no later than the last day of the month following the month of application. The BPS must notify the household in writing that the case will be closed if the household does not complete postponed verification by the end of the second month. The household must receive benefits for the third month by the first day of the month, or by the seventh working day, whichever is greater.

If the household fails to provide postponed verification by the last day of the month after the month of application, the BPS must close the case. The BPS must close the case on the last day of the second month unless that day falls during a weekend or on a holiday. The closure must occur on the next business day. No additional notice to the household is needed.

In instances when the household is not entitled to benefits for the month of application, the household must receive benefits for the month following the month of application, if eligible, within seven days of the application date.

3. There is no limit to the number of times a household can be certified under expedited procedures, as long as, prior to each expedited certification, the household either completes the verification requirements that were postponed at the last expedited certification; or, was certified under normal processing standards since the last expedited certification.

A household must reapply if the BPS closes the case because of the household's failure to provide postponed verifications within the 30 days allowed. If the BPS is aware that this is a second expedited application, the household will have seven days following the

application date to provide the postponed verifications from the prior application regardless of how long it has been since the prior application. If the household does not provide verifications within the seven days, then the BPS must process the reapplication under normal processing guidelines.

The second application must have the same case name as the first expedited application for which the verifications were postponed. If the second application is filed in another locality, then the household may provide the postponed verification to either locality.

A household that requests expedited service but is not entitled to it must have the application processed under normal processing guidelines.

F. DESTITUTE MIGRANT OR SEASONAL FARMWORKER HOUSEHOLDS (7 CFR 273.10(e)(3))

Migrant or seasonal farmworker households may have little or no income at the time of application and may be in need of immediate food assistance, even though they receive income at some other time during the month of application. The BPS must use the following procedures to determine when households in these circumstances may be considered destitute and, therefore, entitled to expedited service and special income calculation procedures:

1. Households will be considered destitute and must be provided expedited service when the only income for the month of application was:
 - a. received prior to the date of application; and,
 - b. was from a terminated source.

For migrant workers, the grower, corporation or company is considered the source of income. The crew leader is not considered the source of income. A migrant who moves from one grower, corporation or company is considered to have moved from a terminated income source to a new source. A change of crops, unless it involves a change in growers, is not considered a new source of income.

If income is received on a monthly or more frequent basis, it is considered as coming from a terminated source if it will not be received again from the same source during the balance of the month of application or during the following month.

If income is normally received less often than monthly, however, the nonreceipt of income from the same source in the balance of the month of application or in the following month is inappropriate to use as a guideline to determine whether or not the income is terminated. For households that normally receive income less often than monthly, the income is considered as coming from a terminated source if it will not be received in the month in which the next payment would normally be received.

2. Households whose only income for the month of application is from a new source are considered destitute and must be provided expedited service if income of more than \$25

from the new source will not be received by the 10th calendar day after the date of application. These households may expect to start receiving income from a new job.

Income which is normally received on a monthly or more frequent basis is considered to be from a new source if income of more than \$25 has not been received from that source within 30 days prior to the date the application was filed.

If income is normally received less often than monthly, however, it is considered to be from a new source if income of more than \$25 was not received within the last normal interval between payments.

3. Households may receive both income from a terminated source prior to the date of application, and income from a new source after the date of application. They will still be destitute if:
 - a. they receive no other income in the month of application; and,
 - b. income of more than \$25 from the new source will not be received by the 10th day after the date of application.
4. Destitute migrant or seasonal farmworker households must have their eligibility and level of benefits calculated for the month of application by considering only income which is received between the first of the month and the date of application. Any income from a new source that is anticipated after the day of application must be disregarded.
5. Some employers provide travel advances to cover the travel costs of new employees who must journey to the location of their new employment. To the extent that these payments are excluded as reimbursements, receipt of travel advances will not affect the determination of when a household is destitute. However, if the travel advance is, by written contract, an advance on wages that will be subtracted from wages later earned by the employee, rather than a reimbursement, the wage advance will count as income. Nevertheless, the receipt of a wage advance for the travel costs of a new employee will not affect the determination of whether subsequent payments from the employer are from a new source of income, nor whether a household shall be considered destitute.

Example

A household applies on May 10 and received \$50 as a wage advance for travel from the new employer on May 1. There is a written contract that this is an advance on wages. Other wages from the employer will not start until May 30. The household is considered destitute. The May 30 payment must be disregarded, but the wage advance received prior to the date of application will count as income.

6. A household's source of income is its employer. The source of income is considered to be the grower for whom the migrant is working at a particular point in time, not the crew chief. A migrant who travels with the same crew chief but moves from one grower to another grower has moved from a terminated source of income to a new source of income.

PART VI

HOUSEHOLD COMPOSITION

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A. THE HOUSEHOLD CONCEPT

The BPS must determine the composition of the SNAP household. This chapter describes those who may or may not qualify as household members, and the designation of head of household. For the month of application, the household membership as of the day of application is evaluated, including those persons frequently away from home who are included in the household under the provisions of Part VI.A.6.

No one is permitted to receive SNAP benefits as a part of more than one household in the same month, except for residents of a shelter for battered women and children who were members of a household containing the person who had abused them.

1. General Criteria (7 CFR 273.1(a))

A household is composed of one of the following individuals or groups of individuals, provided they are not residents of an institution, except as specified in Part VII.C, or are not boarders, except as specified in Part VI.B:

- a. An individual living alone.
- b. An individual living with others who customarily purchases and prepares food for home consumption separate and apart from the others. This includes a disabled individual, who is not a required household member, living with others whose food is purchased and prepared separately by someone else.

If an individual has insufficient income and resources to contribute to the purchase of food, certify the individual as a separate household if the individual intends to purchase and prepare food separately, if eligible for SNAP benefits.

- c. A group of individuals living together for whom food is customarily purchased in common and for whom meals are customarily prepared from this food supply by or for all members of the group for home consumption.

Unless there is evidence that contradicts a household's statement, accept the household's word on which household members customarily purchase and prepare meals together, and which members constitute the household for SNAP purposes. Contradictions could include situations where an individual living with others claims to purchase and prepare food apart from the others, but previously the person had been part of the household of the others. Verification in this situation may consist of a signed statement from the applicant and a responsible member of the other household attesting to the separate eating arrangements.

In cases of those without sufficient income and resources who state their intent to purchase and prepare food separate from others in the home after certification, a signed statement may be requested at recertification to verify that the intended separation took place, if the information is questionable.

2. Required Household Members (7 CFR 273.1(a)(2))

The following individuals living with others or groups of individuals living together must be considered as one SNAP household, even if they do not customarily purchase food and prepare meals together:

- a. A spouse of a member of the household. Spouse refers to either of two individuals who would be defined as married to each other under applicable state law or are living together and are holding themselves out to the community as husband and wife by representing themselves as such to relatives, friends, neighbors, or tradespeople.
- b. Children under 18 years of age who are under the parental control of an adult household member other than their parents. For this provision, children must be financially or otherwise dependent on a household member. Parental control will be assumed to exist if an adult household member has legal custody of a child.
- c. Children 21 years of age or younger who live with natural or adoptive parents, unless parental rights have been terminated, or stepparents, unless ties have been severed through divorce.

In the event a child lives in the home with an adult who has parental control (b) and a parent (c), only one SNAP household will exist.

3. Individuals in Foster Care

Households containing individuals in foster care have the option of including individuals in foster care as part of the household or excluding them. This option takes precedence over other guidelines for determining household composition. If the individual is not included as a member of the foster family's SNAP household however, the foster individual may be considered a SNAP household member of any other household in which the individual lives for a portion of the month. A foster care service plan must exist that allows the individual to be a part of another household on a temporary basis, such as a plan that allows weekend visits to the home of the biological parents or prior custodian.

The foster care payment will be counted as income to the foster household if the household elects to count the foster individual as a member of the household for SNAP purposes. The payment is excluded as income if the foster family does not include the foster individual in its request for SNAP benefits. If the foster individual is included in any other SNAP household, only direct payments from the foster care grant from the foster family to the individual or other SNAP household would count as income to that household.

An individual in foster care and residing with others may not be considered as a separate SNAP household. Foster individuals may only receive SNAP benefits as a part of another household in which they live, including a spouse or children living with them. The restrictions described in this section do not apply to persons assigned to the Independent Living Program.

4. Special Consideration for Elderly and Disabled People (7 CFR 273.1(a)(2)(ii))

Normally, everyone who lives together and who purchases and prepares meals together must be a household for SNAP purposes. However, separate household status may be allowed for a person who is 60 years of age or older and who has a permanent disability, as recognized under the Social Security Act, or one who has a non-disease-related, severe, permanent disability. Separate household status will also be allowed for the spouse of an elderly, disabled individual and children under the age of 18 for whom parental control is exercised. The gross income of the remaining household members may not exceed 165% of the Federal Poverty Income Guidelines, as listed below:

<u>Household Size</u>	<u>165% Limit</u>	<u>Household Size</u>	<u>165% Limit</u>
1	\$2,152	6	\$5,934
2	2,909	7	6,690
3	3,665	8	7,446
4	4,421	each additional	
5	5,177	member	+\$757

Do not count the income of the elderly, disabled person and spouse for this calculation. The elderly, disabled person is responsible for obtaining the cooperation of the other individuals in providing necessary income information to the local department of social services.

The key factor in determining whether a disability qualifies a household for separate status under this provision is the inability to purchase and prepare meals. Assessment of a disability under the Social Security Act, as well as other disability programs, is based on an inability to work. The BPS must not automatically assume a disability constitutes an inability to purchase and prepare meals apart from others.

No specific verification is required if it is obvious to the BPS that the person in question could not purchase and prepare meals. However, when the inability to purchase and prepare meals is not obvious, the BPS should request a statement from a physician that the person is unable to purchase and prepare meals separately.

Note: This section does not apply to elderly or disabled individuals whose food is usually purchased and prepared separately from others by someone else.

5. Residing Together Determinations

In some situations, it may become difficult to determine separate household status for people who live together in the same house. Consider factors, such as, but not limited to the following, to determine separate household status:

- a. If there are separate, identifiable units within the dwelling, separate households probably exist.
- b. If common facilities, such as a kitchen and/or a bathroom are shared, separate households probably do not exist.

- c. If a dwelling is constructed as a single-family home, separate households probably do not exist but, a dwelling constructed as a multi-family structure (e.g., a duplex, apartment building), separate households probably exist.

Examples

- 1) A 20-year-old woman lives in two rooms in her parents' basement. She has a bed, sofa, refrigerator, hotplate, etc., but uses the kitchen and bathroom in her parents' home. All residents must participate together since this is a single-family dwelling and common facilities are shared.
- 2) Individuals live together in the same house. One person lives in an apartment in the basement. The apartment contains a kitchenette and bathroom along with other living space. Since the apartment is a separate, identifiable dwelling unit, the residents are not considered as living together.
- 3) Individuals live in separate rooms in a hotel but must share a bathroom down the hall. Since they live in separate, identifiable units, they are not required to participate together even though they share common facilities.

These types of situations require careful case-by-case evaluation, and the BPS must take care not to impose rigid guidelines, such as requiring a separate unit to have a kitchen or requiring separate units within one dwelling to have separate entrances. Document how the decision to consider persons residing together or not was determined in these types of situations.

6. Household Membership of Those Frequently Away from Home

Use the following guidelines to determine household membership when an individual is frequently away:

- a. If an individual spends at least 15 days per month in the home and otherwise meets the definition of a household member, as described in Part VI.A.1 and Part VI.A.2, consider the individual a household member.
- b. If an individual spends fewer than 15 days per month in the home, the applicant may choose whether to include the individual as a household member, provided the individual otherwise meets the definition of a household member and is not certified for SNAP benefits elsewhere. If the individual, who is frequently away, is the spouse of a household member, consider the individual as a household member unless the household can present an address to document where the spouse resides the rest of the month. A required household member, who is part of more than one household, must be considered a member of the unit where most of the time is spent, if both units apply for SNAP benefits.

Example

Household A receives SNAP for a child who visits on the weekends. Household B subsequently applies for SNAP and includes the child, as the child resides with

Household B most of the time. The child must be removed from the case of Household A and added to the case of Household B, after advance notice is provided to Household A.

If the applicant excludes an individual who is frequently away from the home, that individual may not participate as a separate household at the same address if the individual is a required household member, as described in Part VI.A.2.

B. **BOARDERS (7 CFR 273.1(c))**

1. Those Eligible to Participate

An individual residing with a household and paying reasonable compensation to the household for lodging and meals is considered a boarder.

Boarders in commercial boarding houses are ineligible to participate in the program. A commercial boarding house is an establishment licensed as a commercial enterprise that offers meals and lodging for compensation. A commercial establishment, located in an area without licensing requirements, that offers meals and lodging for compensation with the intention of making a profit will also be classified as a commercial boarding house. The number of boarders residing in the house is not a determining factor.

Other boarders are ineligible to participate in the program independent of the household providing the board. They may participate as members of the household providing the board at that household's request. If boarders are excluded, their income and resources will not be considered available to the household providing the board.

The household with which the boarder resides (including the household of the proprietor of a boarding house) may participate in the program, if they meet all the eligibility requirements for participation.

2. Making Boarder Determinations

If an applicant household identifies any individual in the household as a boarder, apply the following conditions to determine if boarder status shall be granted. Boarder status will not be granted to any of the following:

- a. The spouse of a member of the household.
- b. Children under 18 years of age under parental control of a member of the household.
- c. Children under 22 years of age living with their natural, step- or adoptive parents if parental rights have not been terminated or severed through divorce.
- d. Persons paying less than a reasonable monthly payment for meals.

- 1) An individual furnished both meals and lodging but paying less compensation than a reasonable amount, will be considered a member of the household that provides the meals and lodging. Only direct money payments (cash, check, money order) to the household count in making this evaluation. In no event may SNAP benefits be paid for meals and be credited toward the monthly payment. If payment for meals alone cannot be distinguished from payment for lodging and meals, the full payment amount must be used to make the determination.
- 2) A reasonable monthly payment must equal or exceed the following amounts if the boarder takes two meals or less per day in the home.

Number of boarders being considered as a separate household	Minimum monthly payment required This is two-thirds of the maximum benefit amount, rounded down to the nearest whole dollar amount, for each household size indicated.
1	\$ 198
2	364
3	523
4	662
5	788
6	947
7	1,047
8	1,192

- 3) A reasonable monthly payment must equal or exceed the following amounts if the boarder takes more than two meals per day in the home.

Number of boarders being considered as a separate household	Minimum monthly payment required This is the maximum benefit amount for each household size indicated.)
1	\$ 298
2	546
3	785
4	994
5	1,183
6	1,421
7	1,571
8	1,789

If a single board payment is made for more than one boarder, all boarders for whom the payment is made must be considered as a single household.

Example

A mother and daughter board with another household. The mother pays board to the landlord for herself and her daughter. The mother and daughter must be considered as one household if their board payment is equal to or greater than the required minimum monthly payment.

Individuals furnished only meals are not considered boarders. These individuals must be considered members of the household where most of the meals are taken.

If boarder status is questionable, the BPS may require statements from the boarder and the person who receives the payment, attesting to the arrangement and the amount charged or paid.

C. NONHOUSEHOLD MEMBERS (7 CFR 273.1(b))

1. The following individuals who reside with a SNAP household will not be considered household members in determining eligibility or the benefit allotment:
 - a. Roomers: Individuals to whom a household furnishes lodging for compensation but no meals.
 - b. Boarders: Individuals provided meals and lodging for compensation as outlined in Part VI.B.
 - c. Live-in attendants: Individuals who reside with a household to provide medical, housekeeping, childcare, or other similar personal services. Residing with the household means that an individual takes a majority of meals in the home. Dependents of a live-in attendant will be considered as members of the live-in attendant's household. A person cannot be a live-in attendant in his or her own home.
 - d. Ineligible students: Students who are 18 years of age or older and enrolled at least half-time in an institution of higher education who fail to meet the special eligibility criteria outlined in Part VII.E.
 - e. Other individuals who share living quarters with the household but who do not customarily purchase food and prepare meals with the household.

Example

The applicant household shares a house with another family to save on rent. The two groups do not purchase and prepare food together. The members of the other family are not members of the applicant's household.

- f. Individuals in foster care that the household opts to exclude from the SNAP unit.

Roomers, live-in attendants and individuals who share living quarters may participate as separate households, if otherwise eligible. Ineligible students, boarders, and individuals in foster care cannot participate as separate households.

Individuals, who are mandatory household members, as per Part VI.A.1, may not be considered nonhousehold members merely because of their roomer, boarder, or live-in attendant status.

2. The following individuals residing with the household will not count in determining the household's size for assigning a benefit level for the household or for comparing the household's monthly income with the income eligibility standards. Income and resources of these excluded members is countable to the remaining household members in accordance with Part XII.E. These persons may not participate in SNAP as separate households.
 - a. Ineligible Aliens: Individuals who do not meet the citizenship requirement or hold an eligible immigration status (Part VII.F).
 - b. SSN Disqualified: Individuals disqualified for failure to provide a Social Security Number (Part VII.G).
 - c. Fraud Disqualified: Individuals found guilty of committing an intentional program violation against the Supplemental Nutrition Assistance Program by a court of law or an Administrative Disqualification Hearing (ADH), or individuals who signed waivers to an ADH (Part XIX).
 - d. Individuals disqualified for noncompliance with employment program requirements (Part VIII.A).
 - e. Individuals who are fleeing prosecution of felony offenses or imprisonment for felony convictions, or individuals who are in violation of probation or parole conditions are ineligible. Individuals will be considered fleeing if:
 - 1) There is an outstanding felony warrant for the individual by a federal, state, or local law enforcement agency, and the underlying cause for the warrant is for committing or attempting to commit a crime that is a felony under the law of the place from which the individual is fleeing or a high misdemeanor under the law of New Jersey;
 - 2) The individual is aware of, or should reasonably have been able to expect that, the felony warrant has already or would have been issued;
 - 3) The individual has taken action to avoid being arrested or jailed; and
 - 4) The federal, state, or local law enforcement agency is actively seeking the individual by:
 - i. informing a state agency that it intends to enforce an outstanding felony warrant or to arrest an individual for a probation or parole violation within 20 days of submitting a request for information about the individual to the state agency;
 - ii. presenting a felony arrest warrant; or
 - iii. stating that it intends to enforce an outstanding felony warrant or to arrest an individual for a probation or parole violation within 30 days of the date of a request from a state agency about a specific outstanding felony warrant or probation or parole violation.
 - f. Individuals who receive benefits for a three-month period and who subsequently fail to regain eligibility under the Work Requirement (Part XV).
 - g. Individuals convicted of murder or sexual assault on or after February 8, 2014 are

ineligible for benefits. For this section, an individual must have a felony conviction as an adult for an offense listed below and is out of compliance with the sentencing.

- 1) Aggravated sexual abuse under Title 18 United States Code (USC), Section 2241 or a similar state offense;
- 2) Murder under Title 18 USC, Section 1111 or a similar state offense;
- 3) An offense under Title 18 USC, Chapter 110 (sexual exploitation and other abuse of children) or a similar state offense; or
- 4) A federal or state offense involving sexual assault, as defined in Section 40002(a) of the Violence Against Women Act of 1994 (42 USC 13925(a)).

D. HEAD OF HOUSEHOLD (7 CFR 273.1(d))

The head of the household is designated when applications are filed, whether at initial application, reapplication or recertification. The designation of the head will be made either by the household or by the BPS. Under certain circumstances, as described in Part VI.D.3, the head will be defined as the principal wage earner. Whether designated by the household or by the BPS, the head must be identified in the case file at the time of certification or household change.

Other than sanctions for violations described in Part VI.D.3, no special requirements are to be imposed on the household or its head. The agency may not, for example, require that the head appear at the certification office to apply for benefits rather than another responsible household member.

1. Household Designation

Whenever an application is filed, the household may identify on the application a household member to be the head. Households with parent-child combinations may also designate the head whenever there is a change to the household's composition. The person selected as the head must be included on the *Notice of Action* at the time of certification or household composition change.

The household may select as head a household member who is an adult parent of children living in the household, an adult who has parental control of a minor child living in the household, or any other adult member. For an adult parent to be selected, there must be at least one natural, step-, or adopted child of any age in the SNAP household unit with an adult parent. For an adult with parental control to be selected, there must be at least one child under 18 years of age who is supervised or otherwise dependent on an adult living in the SNAP household.

2. Agency Designation

If households fail to designate the head by the 30th day for new applications or reapplications or by the verification deadline for recertification applications, the BPS must determine the head. The BPS must also designate the head if the

household's adult members do not agree with the selection made by the applicant.

The designation by the BPS will remain in effect through the certification period or until the head leaves the household.

3. Principal Wage Earner as Head

Unless the household has selected an adult parent or adult with parental control as head as specified in Part VI.D.1, the principal wage earner will be considered the head of household when evaluating noncompliance with work registration. The principal wage earner must also be considered in determining whether a household member voluntarily quit a job or reduced work hours to less than 30 hours per week.

The principal wage earner is the household member who had the most earned income in the two months prior to the month of the registration noncompliance, job quit, or work reduction. Excluded household members, as defined in Part VI.C.2, are evaluated in determining the principal wage earner. The income used in this evaluation must involve 20 hours or more per week or provide the equivalent of 20 hours multiplied by the federal minimum wage.

The principal wage earner identified will not be applicable if the person who caused the violation lives with a parent or person fulfilling the role of a parent. The principal wage earner designation also will not apply if a parent or person fulfilling that role is registered for work or is exempt from work registration because the parent or person fulfilling the role of a parent is:

- a. subject to and participating in any work requirement under Title IV of the Social Security Act such as the PA Employment Services Program (Part VIII.A.1.c);
- b. receiving unemployment compensation benefits or is registered for work to receive these benefits (Part VIII.A.1.f); or
- c. employed or self-employed and working a minimum of 30 hours weekly or is receiving weekly earnings at least equivalent to 30 hours multiplied by the federal minimum wage.

If there is no principal source of earned income in the household, the household member documented in the case file as the head at the time of the violation will be considered the head of the household.

E. HOUSEHOLDS IN INSTITUTIONS

Residents of certain institutions are eligible for SNAP benefits. This chapter contains special provisions for households residing in eligible institutions. See Part VII.C for a list of eligible

institutions and Part II.I for requirements and allowances for authorized representatives for institutionalized households.

1. Drug Addiction and Alcohol Treatment Centers

Residents of treatment and rehabilitation programs for persons addicted to narcotic drugs or alcohol, including the children of these persons residing in the centers with the parents, may receive SNAP benefits as individual households. The treatment center must be a private, nonprofit organization or institution or a publicly operated community mental health center, under Part B of Title XIX of the Public Health Service Act.

Before certifying treatment center residents for SNAP benefits, the BPS must establish that the center meets Public Health Service Act criteria even if the center is not certified under Part B of Title XIX of the Public Health Service Act. The BPS must also determine if the Food and Nutrition Service (FNS) has certified the facility as a retailer and whether the center has a Point-of-Sale (POS) device to use SNAP benefits at the institution.

To get SNAP benefits, residents of treatment centers must apply and participate through a designated employee of the center. The household must freely choose to apply for benefits. The resident household should assist in completing the application and should sign the application along with the authorized representative before certification, if possible. Normal SNAP certification notices and procedures apply to households that reside in eligible treatment centers except for the requirement that residents must apply through a representative of the center.

a. Accessing and Using SNAP Benefits

To access SNAP benefits, each household or representative must have an EBT card. Eligible household residing in drug or alcohol treatment centers must participate in the Program through an authorized representative. The authorized representative will receive an EBT card to use on behalf of the household. The client may not possess an active EBT card while a resident of the treatment center.

Treatment center representatives must use the SNAP benefits for food prepared by or served to the resident addict/alcoholic. If the treatment center has a POS device, the authorized representative must use each individual household's EBT card to access one-half of the monthly benefit according to the household's assigned benefit issuance date (1st, 4th, 7th). If the treatment center does not have a POS device, the authorized representative must use each resident's EBT card at the grocery store and access up to one-half the benefit amount by the 10th day of each month. The treatment center may access the second half of the benefits on or after the 16th of each month if the resident remains in the center as of the 16th day of the month.

If the household leaves the treatment center before the 16th day of the month, the household is entitled to one-half of the allotment for the month. If the household leaves the treatment center on or after the 16th of the month, the household will not receive any portion of the benefits directly.

b. Responsibilities of the Treatment Center

The treatment center must notify the local agency of changes in the household's income or other household circumstances and upon the departure of the addict or alcoholic from the treatment center. When the resident leaves the facility, the treatment center must provide the resident with the EBT card for the "Primary Cardholder," if the card is available. This is not the card used by the authorized representative. Once the household leaves the treatment center, the center may no longer act as that household's authorized representative.

The center should return the authorized representative's EBT card to the local agency when the resident leaves the facility.

The center must provide the household with a *Change Report* Form to report to the local agency the individual's new address and other circumstances after leaving the center, if possible. The center must also advise the household to report the address change to the local agency within 10 days.

Each treatment and rehabilitation center must submit a certified list of residents who are currently participating in the Program to the local social services agency. This list must include a statement that the information provided is correct and must be signed by a representative of the center. The center must submit the list at least monthly, although local agency officials may request a more frequent list.

c. Penalties

The treatment center is responsible for any misrepresentation or fraud that it knowingly commits in the certification of center residents. As an authorized representative, the treatment center must be knowledgeable about household circumstances and should carefully review those circumstances with residents prior to applying on their behalf. The organization or institution is liable for all losses or misuse of SNAP benefits accessed or used on behalf of resident households and for any overissuance of benefits that occur while the households are residents of the treatment center.

The treatment center may be penalized or disqualified if an administrative or judicial determination establishes that SNAP benefits were misappropriated or used for purchases that did not contribute to a certified household's meals. The treatment center may be prosecuted under applicable federal or state statutes for intentional acts that misrepresent household circumstances.

d. Local Agency Responsibilities

The local agency must ensure that applicants that reside in alcohol or drug treatment centers apply for SNAP benefits through a designated employee of the treatment center. The agency may not process an application signed only by such a resident or conduct the interview without the authorized representative. The

treatment center must receive certification notices and instructions on accessing SNAP benefits through EBT.

The BPS should provide the treatment center with blank *Change Report* forms that the center or household could complete to report changes, including when the household leaves the center. The BPS must take prompt action to remove the authorized representative when the household leaves the treatment center upon learning of the address change.

The local agency must receive a monthly list of residents from the treatment center. The agency may require the treatment center submit the list semimonthly. The local agency must review the list to ensure that only those residents listed are participating as residents of that institution. The agency must resolve any discrepancies immediately between the list submitted by the center and the agency's certification record.

In addition to reviewing the lists of residents in the treatment facility, the local agency must conduct periodic random on-site visits to the center. This review is to ensure the accuracy of the listings and that the local agency's records are consistent and current.

The local agency must promptly notify the Regional Office for the Virginia Department of Social Services when there is reason to believe that a treatment center is misusing SNAP benefits in its possession. The Virginia Department of Social Services must transmit the local agency's findings to USDA. The local agency must not act however, until USDA provides instructions.

2. Group Living Arrangements

Disabled or blind individuals who reside in group living arrangements may be eligible for SNAP benefits. See Part VII.C for specific criteria. Unlike residents of drug or alcohol treatment centers, residents of group living may apply on their own behalf; select an authorized representative; or use an authorized representative employed and designated by the facility.

How residents of group living arrangements apply will determine the household size. For instance, if a resident files an individual application or through a personal authorized representative, the BPS must evaluate household composition based on who purchases and prepares food together but, residents who apply through the use of the facility's authorized representative, will be one-person households, regardless of the eating arrangements.

a. Participating in the Group Living Arrangement

The group living arrangement may purchase and prepare food that eligible residents will consume on a group basis, if residents normally obtain their meals at a central location, e.g. a dining hall, as part of the group living arrangement

services, or if meals are prepared at a central location for delivery to the individual residents.

If residents purchase and/or prepare food for their own consumption, as opposed to communal dining, the group living arrangement must ensure that each resident's SNAP benefits are used for meals intended for that resident.

If residents retain use of their own SNAP benefits, then they may either use the benefits to purchase meals prepared for them by the facility, if group home is authorized by FNS, or purchase food to prepare meals for their own consumption.

If the facility is acting as the authorized representative for the resident, the SNAP benefits may be handled in any of the following ways:

- 1) The facility may spend the benefits, prepare and serve the food to the resident;
- 2) Spend the SNAP benefits and allow the resident to prepare the food; or
- 3) Allow the resident to use some or all of the benefits on his or her own behalf.

If the resident applied on his own behalf, the resident may provide the SNAP benefits to the facility to purchase food for meals served either communally or individually for eligible residents. The eligible resident may also use the SNAP benefits to purchase and prepare food for individual consumption or to purchase meals prepared and served by the group living arrangement.

b. Accessing and Using SNAP Benefits

To access SNAP benefits, each household or representative must have an EBT card. Residents of group living arrangements will receive an EBT card. If the household has an authorized representative, the representative will also receive an EBT card to use on behalf of the household.

The household or authorized representative must use SNAP benefits for food prepared by or served to the resident. If the group home has a POS device, at the beginning of each month, the household or authorized representative must use the individual household's EBT card to access one-half of the monthly benefit. If the group home does not have a POS device, the household or authorized representative must use each resident's EBT card at the grocery store. If the authorized representative is a representative of the group home, the representative may access up to one-half the benefit amount at the beginning of each month. The group home representative may access the second half of the benefits on or after the 16th of each month if the resident remains in the group home as of the 16th day of the month.

If the household leaves the group home before the 16th day of the month, the household is entitled to one-half of the allotment for the month. If the household leaves the group home on or after the 16th of the month, the household will not receive any portion of the benefits directly.

c. Responsibilities of the Group Living Arrangement

If a representative of the group living arrangement acts as an authorized representative, the group living arrangement must notify the local agency of changes in household circumstances and when the individual leaves the group living arrangement.

Once the household leaves the group home, the center may no longer act as the household's authorized representative.

The center should return the authorized representative's EBT card to the local agency when the resident leaves the facility.

The group home must provide the household with a *Change Report* form to report to the local agency the individual's new address and other circumstances after leaving the group home, if possible. The group home must also advise the household to report the address change to the local agency within 10 days.

Each group living arrangement must submit a certified list of residents who are currently participating in the Program to the local social services agency. This list must include a statement that the information provided is correct. A representative of the center must sign the report and submit the list at least monthly, although local agency officials may request a more frequent list.

d. Penalties

When a group living arrangement acts as the household's authorized representative the following additional responsibilities are applicable:

1. The group living facility is responsible for any misrepresentation or fraud that it knowingly commits in the certification of the facility's residents. As an authorized representative, the group living arrangement must be knowledgeable about household circumstances and should carefully review those circumstances with residents prior to applying on their behalf. The group living arrangement is liable for any losses or misuse of SNAP benefits accessed or used on behalf of resident households and for all overissuances that occur while the facility is acting as the household's authorized representative.
2. The facility may be penalized or disqualified if an administrative or judicial determination finds that SNAP benefits were misappropriated or used for purchases that did not contribute to a certified household's meals. The

group home may be prosecuted under applicable federal or state statutes for intentional acts that misrepresent household circumstances.

These provisions do not apply when the resident household applied on its own behalf.

e. Local Agency Responsibilities

The BPS must certify eligible residents of group living arrangements using the same provisions that apply to all other households. Before certifying any residents of a particular facility, the BPS must establish that the group living arrangement is authorized by FNS-USDA to accept SNAP benefits or is certified by an appropriate agency of the state or locality, including that agency's determination that the center is a nonprofit organization.

Before certifying group home residents for SNAP benefits, the BPS must establish that the group living arrangements meets Section 1616(e) of the Social Security Act criteria, even if the group home is not certified under Section 1616(e) of the Social Security Act. The BPS must also determine if the Food and Nutrition Service (FNS) has certified the facility as a retailer and whether the group home has a Point-of-Sale (POS) device to use SNAP benefits at the group home.

The BPS should provide the group living arrangement with blank *Change Report* forms so the group living arrangement or household could complete to report changes, including when the household leaves the group living arrangement. The BPS must take prompt action to remove the authorized representative when the household leaves the group living arrangement upon learning of the address change.

The local agency must receive a periodic list of residents from the group living arrangement. The agency may establish the frequency of receiving the resident lists. The local agency must review the list to ensure that only those residents listed are participating as residents of that institution. The agency must resolve any discrepancies immediately between the list submitted by the group living arrangement and the agency's certification record.

In addition to reviewing the lists of residents in the group living arrangement, the local agency must conduct periodic random on-site visits to the center. This review is to assure the accuracy of the listings and that the local agency's records are consistent and current.

The BPS must promptly notify the Regional Office for the Virginia Department of Social Services when there is reason to believe that a group living arrangement is misusing SNAP benefits. The Virginia Department of Social Services must transmit the local agency's findings to USDA. The BPS must not act however, until USDA provides instructions.

f. FNS Authorization

FNS may authorize group living arrangements as a retail food store. A state or local agency must appropriately certify these facilities. If the facility loses its certification, FNS may withdraw its approval at any time

If FNS disqualifies a facility as a retail food store, the BPS must suspend its authorized representative status for the same period. If a facility loses its certification to use SNAP benefits through wholesalers or its certification from the appropriate State or local agency, residents will not be eligible to participate except those who have applied on their own behalf. Residents who will be ineligible are not entitled to the *Advance Notice of Proposed Action*, but they must receive a written notice explaining the termination and the effective date.

3. Shelters for Battered Women and Their Children

a. Determination of Acceptable Shelter Status

Before certifying residents of shelters for battered women, the BPS must determine that the shelter for battered women and children meets the definition of Part VII.C.1.d. of this manual. The BPS must maintain documentation to support the determination to show that the shelter meets the criteria.

If a shelter has authorization by FNS to use SNAP benefits, the shelter will meet the criteria and will need no further determination by the local agency.

b. Special Eligibility Considerations

Many shelter residents will have recently left a household containing the person who abused them. The former household may be certified for participation in the program and its certification may be based on a household size that includes the women and children who have just left. Shelter residents who are included in such certified households may, nevertheless, apply for and, if otherwise eligible, participate in the Program as separate households if the previously certified household that includes them also contains the person who abused them.

Shelter residents who are included in such certified households may receive an additional allotment as a separate household only once a month. The BPS must certify shelter residents who apply as separate households solely based on their income and resources and the expenses for which they are responsible. The BPS must not consider the income, resources, and expenses of their former household in certifying these applicants. Jointly held resources must be considered inaccessible for battered women and children if access to the value of the resource depends on the agreement of a joint owner who still resides in the former household.

Room payments to the shelter are allowable shelter expenses.

The BPS must take prompt action to ensure that the former household's eligibility or allotment reflects the change in the household's composition.

PART VII NONFINANCIAL ELIGIBILITY CRITERIA

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A. NONFINANCIAL ELIGIBILITY CRITERIA

Participation in the Supplemental Nutrition Assistance Program is based on both financial and nonfinancial eligibility criteria. This chapter contains a discussion of most of the nonfinancial eligibility criteria. A household will meet the nonfinancial eligibility criteria if it:

1. Resides in the locality of application; (7 CFR 273.3) (Part VII.B.)
2. Resides in a noninstitutional setting or in an eligible institution; (7 CFR 273.1(b)(7)(vi)) (Part VII.C.)
3. Contains no persons currently on strike unless the household would have been eligible before the strike; (7 CFR 273.1(g)(1)) (Part VII.D.)
4. Contains a student enrolled in an institution of higher education who meets certain special eligibility requirements; (7 CFR 273.5) (Part VII.E.)
5. Contains citizens of the United States or eligible aliens (7 CFR 273.4) (Part VII.F.)
6. Registers for work, unless otherwise exempt (7 CFR 273.7). (Part VIII.A.)
7. Does not have a primary wage earner who voluntarily quits or reduces work without good cause (7 CFR 273.7(n)) (Part VIII.B.)
8. Provides Social Security numbers for household members (7 CFR 273.6(a)(1)). (Part VII.G.)

The presence of cooking facilities is not a criterion for determining SNAP eligibility.

B. RESIDENCY (7 CFR 273.3)

Residence is defined as physical presence in a locality with the intent to remain either temporarily or permanently.

Households do not have to live in the locality for a particular length of time to get SNAP benefits, nor do they have to have any intent of staying any length of time. Persons vacationing in an area cannot be considered as residents.

Households must reside in the locality in which they apply for SNAP benefits. Households do not have to reside in a permanent dwelling or have a fixed mailing address as a condition of eligibility. Migrant campsites, motels, or other temporary shelters meet the residency requirements. Households may live in vehicles, such as cars, buses, or trucks, etc. Other individuals may live on the street. If households maintain a physical presence in the locality, they will meet residency requirement. Households may not participate in more than one locality at a time.

Participants in the Address Confidentiality Program (ACP) must declare they reside in the locality in which they apply for SNAP benefits. The ACP authorization card will establish participation in that

program. Participants may use the substitute mailing address (P.O. Box 1133, Richmond, VA 23218-1133) and the assigned authorization code as the address for SNAP purposes. The substitute mailing address is not relative to the physical address.

See Part III.A and D for a discussion of the verification of residency.

Note: The BPS may choose to keep an ongoing case in active status during a temporary move from the locality. This policy is discussed in Part XIV.A.7.

C. RESIDENTS OF INSTITUTIONS (7 CFR 273.1(b)(7)(vi))

Except for the institutions listed in this section, residents of institutions will not be eligible for SNAP benefits.

1. Definition of a Resident of an Institution

Individuals will be considered residents of an institution when the institution provides them with most of their meals (over 50% of three meals daily) as a part of its normal service, whether the meal service is mandatory. In instances where meal service is optional, individuals will not be considered residents of the institution unless they participate in the meal plan. Residents who do not receive most of their daily meals from the institution may be eligible for benefits if all other eligibility factors are met.

Residents of public institutions who apply for SSI before their release from an institution under the Social Security Administration's Prerelease Program for the Institutionalized may apply for SNAP benefits at the same time they apply for SSI. For these applicants, the filing date of the SNAP application will be the date of release of the applicant from the institution.

2. Eligible Institutional Residents

Residents of following facilities may receive SNAP benefits:

- a. Residents of any federally subsidized housing for the elderly.
- b. Narcotic drug addicts or alcoholics or the children of these individuals who reside at a facility or treatment center under the supervision of a drug or alcoholic treatment and rehabilitation program.

A drug or alcoholic treatment and rehabilitation program means a program leading to rehabilitation conducted by a private, nonprofit organization or institution or a publicly operated community health center under Section 300x-21 et. seq. of U.S. Code Title 42; meets the criteria that would make it eligible to receive funds under Section 300x-21 et. seq. of Title 42, even if it does not actually receive funds from that source; provides treatment and rehabilitation of drug addicts or alcoholics to further the purposes of Section 300x-21 et. seq. of Title 42; or is authorized as a retailer by the FNS.

The treatment program must present information or documentation to show that it meets the eligibility criteria. See Part VI.E for additional information about treatment centers.

- c. Disabled or blind individuals who are residents of a public or private, nonprofit residential setting that serves no more than sixteen residents. These group living arrangements must be certified by an appropriate agency of the state or locality under Section 1616(e) of the Social Security Act and regulations based on it. See Part VI.E for a discussion of this group living arrangement.
- d. Individuals temporarily residing in a shelter for those fleeing domestic violence. A shelter for individuals fleeing domestic violence refers to a public or private nonprofit residential facility that serves individuals fleeing domestic violence and their children. If such a facility serves other individuals, a portion of the facility must be set aside on a long-term basis to serve only those fleeing domestic violence and their children.
- e. Residents of public or private nonprofit shelters for homeless individuals.

D. STRIKERS (7 CFR 273.1(g)(1))

1. Definition of a Striker

- a. For SNAP purposes, a striker is defined as:
 - 1) Anyone involved in a strike; or,
 - 2) Anyone involved in a concerted stoppage of work by employees (including a stoppage by reason of the expiration of a collective bargaining agreement); or,
 - 3) Anyone involved in any concerted slowdown (or other concerted interruption of operations by employees).
- b. Examples of non-strikers include:
 - 1) Employees whose workplace is closed by an employer in order to resist demands of employees, e.g., lockout.
 - 2) An individual who would have been exempt from work registration on the day prior to the strike, other than those exempt solely on the grounds that they are employed at the struck plant, e.g., the individual may be the caretaker of a child under 6 years of age and, therefore, would not be affected by the striker provisions.
 - 3) Employees unable to work as a result of striking employees, e.g., striking newspaper pressmen preventing newspapers from being printed and, consequently, truck drivers are not working because there are no papers to deliver.

- 4) Employees who are not part of the bargaining unit on strike who do not want to cross a picket line due to fear of personal injury or death.

2. Determining Striker Eligibility at Initial Certification

Households with striking members shall be ineligible to participate unless the household was eligible immediately prior to the strike. This restriction does not include individuals exempt from work registration. This means that the BPS must determine the household's income as though the household applied on the day before the strike for all individuals in the household on that date. Do not account for changes between this date and the date of application in the eligibility determination. For example, if an individual was in the home on the day before the strike, receiving \$100 per month, and on the date of application this individual is no longer in the home, eligibility must still be based on this individual being in the home and the income he or she was receiving. Also, in considering the striker's income as though the household applied on the day before the strike, if the striker was absent from work for one week due to sickness, for example, a full month's income is still to be counted. Normal verifications must be obtained (FNS Policy Memo 82-4).

If the household would have been ineligible had they applied the day before the strike, the BPS must deny the application.

If the household would have been eligible if an application had been filed on the day before the strike, the BPS must compare the striking member's income before the strike to the striker's current income. Add the higher of the two to the current income of members who are not on strike that is anticipated to determine the household's eligibility at the time of application.

Use only current resources in determining resource eligibility.

Strikers who are eligible are subject to the work registration requirements of Part VIII.A.

3. Determining Striker Eligibility for Ongoing Cases

If a member of a currently certified household becomes involved in a strike, the definition of a striker described in Part VII.D.1 still applies. The household containing a person defined as a striker shall not receive an increased allotment as the result of a decrease in income of the striking member(s). The BPS must compare the striker's income before the strike to the striker's current income and add the higher of the two to the countable income of nonstriking members.

Use only current resources in determining resource eligibility.

Strikers who are eligible are subject to the work registration requirements in Part VIII.A.

4. Changes in Striker Status

If a striker officially terminates employment with the struck employer, he/she will no longer be considered a striker. The employer or other acceptable sources must verify an official termination.

If a striker accepts temporary employment with the intent of returning to his struck job once the strike ends, he is still considered a striker.

E. STUDENTS (7 CFR 273.5)

1. Definition of a Student

For the purposes of this chapter, the term student refers to a person who is enrolled at least halftime in an institution of higher education. The term student will refer to a person who is:

- a. is enrolled in a business, technical, trade, or vocational school that normally requires a high school diploma or equivalency certificate for enrollment; or,
- b. is enrolled in a regular curriculum at a college or university that offers degree programs, regardless of whether a high school diploma is required.

Once a student enrolls in an institution of higher education, the enrollment will continue through all normal periods of class attendance, vacation, and recess unless the student graduates, is suspended or expelled, drops out, or does not intend to register for the next normal school term (excluding summer school).

Enrollment begins on the first day of the school term of the institution of higher education.

2. Student Exemptions (7 CFR 273.5(b))

To be eligible for SNAP benefits, students, as identified above, must meet special criteria listed below. The resources of students who are not eligible are not considered in determining the eligibility or benefit level of other household members. See Part XI.G for evaluating the income of ineligible students.

An eligible student must meet at least one of the following criteria:

- a. Be 17 years of age or younger or, age 50 or older;
- b. Be mentally or physically unfit;
- c. Be employed for an average of 20 hours per week or 80 hours per month and be paid for such employment, including hours worked during school breaks that do not exceed one month;
- d. Be employed in a self-employed business for an average of 20 hours per week and receive weekly earnings at least equal to the federal minimum wage multiplied by 20 hours;
- e. Be participating in a state or federally financed work-study program during the regular school year;
- f. Be responsible for the care of a dependent household member under the age of six;

- g. Be responsible for the care of a dependent household member who is age six through age eleven where the BPS has determined that adequate childcare is not available to enable the student to both attend class and satisfy the 20 hour per week work requirement or participate in work study;
- h. Be a full-time student and a single parent or caretaker who is responsible for the care of a dependent household member who is under age 12;
- i. Be receiving benefits from the TANF Program;
- j. Be participating in a work incentive program under Title IV of the Social Security Act, i.e. Virginia Initiative for Education and Work (VIEW) Program;
- k. Be participating in an on-the-job training program; or,
- l. Be assigned to or placed in an institution of higher education through:
 - 1) Programs under the Workforce Innovation and Opportunity Act (WIOA);
 - 2) SNAP Employment and Training (SNAPET);
 - 3) Part of a career and technical education program as allowed by section 3 of the Carl D. Perkins Career and Technical Education Act of 2006 provided the program or course of study is:
 - i. Designed to be completed in four years or less; or
 - ii. Limited to remedial courses, literacy, adult education, or English as a second language.Programs such as Fast Forward, Great Expectations or the Chancellors Merit programs operated through the Virginia Community College system will meet the career and technical education goals to enhance participants' employability. Students must verify enrollment in the program.
 - 4) A program under Section 236 of the Trade Act; or,
 - 5) An employment and training program operated by state or local governments where one or more of the program's components are comparable to SNAPET components.

Students paid or subsidized for in-class hours are not considered employed during that time so such class attendance would not make a student eligible under the minimum 20 hour per week work requirement. In addition, the exemption for on-the-job training is valid only for the period the person is being trained by the employer.

In evaluating a student's eligibility based on the work-study provision, note that the student must be approved for work-study at the time of the application for SNAP benefits. In addition, the work-study must be approved for the school term. This exemption will begin either the month the school term starts or the month the work-study is approved, whichever

is later. The student's exemption may not continue beyond the month the school term ends or when it becomes known that a work-study assignment has been refused nor, is the exemption continued between terms when there is a break of a full month or more, unless the student is participating in work-study during the break.

In evaluating whether adequate childcare is not available for children who have reached the age of 6 but are not yet 12, the following guidelines have been developed. If:

- a. There is no licensed day care facility available; or
- b. The student cannot afford the day care; or
- c. There is no reliable or reasonable transportation to the day care provider, then it is probably likely that adequate childcare is not available. Note, however, that even if these factors exist, adequate childcare is deemed available if the student has arranged for day care.

F. CITIZENSHIP AND ELIGIBLE IMMIGRANTS

Only U.S. citizens and certain immigrants are eligible for SNAP benefits. Based on the household's written declaration on the application, the BPS must determine if each household member is a citizen or an immigrant. If a member is an immigrant, the BPS must determine if that member is an eligible immigrant. The sponsored immigrant policies described in Part XII.C must also be evaluated for eligible immigrants who have sponsors.

Compacts of Free Association (COFA) citizens of the Federated States of Micronesia, the Republic of the Marshall Islands, and the Republic of Palau who lawfully reside in the United States are eligible for SNAP. All persons born in the Commonwealth of Puerto Rico, American Samoa, Guam, Mariana Islands, and the U.S. Virgin Islands are U.S. citizens or nationals.

1. Eligibility of Immigrants

The following categories of immigrants are eligible for SNAP benefits:

- a. A refugee admitted under Section 207 of the Immigration and Nationality Act (INA). This category includes Afghan and Iraqi Special Immigrant visa holders.

Individuals who are victims of human trafficking must also be evaluated as refugees. This designation may include the minor children, spouse, parents, or the unmarried minor siblings of the trafficking victim. These refugees must present a letter from the Office of Refugee Resettlement (ORR) or present a T visa that certifies or documents the status.
- b. An immigrant granted asylum under INA Section 208.
- c. An immigrant living in the U.S. and for whom deportation is being withheld under INA Section 243(h) or Section 241(b)(3).

- d. A Cuban or Haitian entrant, as defined in Section 501(e) of the Refugee Education Assistance Act of 1980. This designation includes participants in the Haitian Family Reunification Parole Program until their status is adjusted to lawful permanent residents. This designation may include refugee or parole status.
- e. An Amerasian immigrant as documented by the I-94 or other forms with notations of AM1, AM2, AM3, AM6, AM7, or AM8.
- f. Lawful permanent resident immigrants who have worked for 40 qualifying quarters of coverage under Title II of the Social Security Act are eligible for SNAP benefits.

Quarters of work for jobs not covered by Title II of the Social Security Act may be credited toward the qualifying minimum. For quarters after December 1996, no federal means-tested public benefits may be received to count as a qualifying quarter. For this provision, public benefits are TANF, SSI, Medicaid and SNAP benefits. This provision also includes Nutritional Assistance Program benefits from Puerto Rico, American Samoa, and the Northern Mariana Islands.

Quarters earned by the spouse of the permanent resident immigrant during the marriage, provided they are still married to each other, may be counted. Quarters earned by parents, including step- or adoptive parents, of a permanent resident immigrant before the alien turns 18, may be counted toward the qualifying minimum for the immigrant, including any quarters earned prior to a child's birth.

- g. Native Americans entitled to cross the border of the United States into Canada or Mexico. This group comprises persons born in Canada to whom INA Section 289 applies or members of an Indian tribe, as defined in Section 4(e) of the Indian Self-Determination and Education Assistance Act.
- h. Highland Laotians and Hmong tribe members who are lawfully residing in the United States and who were part of a Highland Laotian or Hmong tribe between August 5, 1964 and May 7, 1975 when such tribes assisted U.S. personnel. The unmarried dependent children, spouse, and the surviving spouse who has not remarried of tribal members are also eligible.

Immigrants who originally had an exempt status (items a-e) but, who subsequently gain permanent resident status are eligible for SNAP indefinitely, before and after their status adjustment.

2. Conditional Eligibility of Immigrants

- a. The following categories of immigrants are eligible for SNAP benefits provided they also meet a qualified category in subsection b:
 - 1. An individual who has been in the U.S. as a qualified immigrant for five years or more from the date of entry in the country or from the date of a change in the immigration status. The five-year period may or may not be a consecutive period as temporary absences from the U.S. of less than six

months will not affect the status if there is no intention of abandoning U.S. residency. Absences of periods of more than six months will be presumed to be an interruption unless the resident is able to show intent to resume U.S. residency. If there is an interruption in residency, the BPS must consider the amount of time in the U.S. before and after the interruption.

2. Veterans with honorable discharges for reasons not related to alien status and persons who are on active duty in the Armed Forces of the United States, other than training. To be an eligible veteran, one must have served a minimum of 24 months or the period for which the person was called to active duty. The term veteran includes military personnel who die during active duty served in the Philippine Commonwealth Army during World War II or as Philippine Scouts following the war.

The spouse or unmarried dependent child of a veteran or person on active duty is also eligible. The surviving spouse of a deceased veteran or of an individual who died while on active duty is also eligible. Eligibility of the surviving spouse is allowed provided the spouse has not remarried and that the marriage was for at least one year, or that they were married before the end of a 15-year period following the end of the period of military service in which the injury or disease was incurred or aggravated; or, that they were married for any period if a child was born of the marriage or was born before the marriage.

3. An individual who receives payments or assistance for blindness or disability, as defined in Definitions.
4. An individual lawfully residing in the U.S. on August 22, 1996 and who was born on or before August 22, 1931.
5. A child under 18 years of age lawfully residing in the U.S.

b. A qualified immigrant is one who is:

1. a lawful permanent resident;
2. a refugee admitted under INA Section 207;
3. a person granted asylum admitted under INA Section 208;
4. one whose deportation is being withheld under INA Section 243(h) or 241(b)(3);
5. a parolee admitted under INA Section 212(d)(5) and the status is granted for at least one year;
6. a conditional entrant admitted under INA Section 203 as in effect as of April 1, 1980;

7. a battered spouse or child, as established by INS and the agencies providing benefits that a substantial connection exists between the battery and the need for benefits;
8. a Cuban or Haitian entrant; or
9. an Amerasian immigrant.

3. Verification of Immigrant Status

Verification of immigrant status is mandatory for initial applications and as new household members are added. While awaiting acceptable verification, except as noted below, the immigrant whose status is unverified is ineligible, but the eligibility of any remaining household members must be determined. The income and resources of the immigrant whose status is unverified is considered available in determining the eligibility of any remaining members, as described in Part XII.E. If verification of eligible status is later received, the BPS must treat this as a reported change in household size.

Verification of the number of qualifying quarters an immigrant may directly or indirectly claim access for SNAP purposes will primarily be available from the Social Security Administration (SSA). Verification of the quarters of coverage may be accessed through the State Verification Exchange System (SVES). If verification is not obtained through SVES or, in some instances, from SSA directly, the household will be responsible for supplying proof of the amount of past wages to document the quarters earned. The household will also be responsible for providing proof if the SSA information is contested by the household or is incomplete.

In instances when the number of countable quarters verified by SSA is in dispute, an immigrant will be allowed to receive SNAP benefits for up to six months while working with SSA to resolve the issue.

As with other mandatory verifications, verification of immigration status may be postponed for households entitled to expedited service processing. However, the household member must claim to be of an eligible immigrant category before participation is allowed for the first month.

Documentation from the U.S. Citizenship and Immigration Services (USCIS) or other sources that the EW determines constitutes reasonable evidence of immigrant status is acceptable. If an immigrant does not have proof of the immigration status, the local agency must advise the household to contact USCIS to obtain verification. Form G-845S in Appendix II of this Part may be used to obtain information from USCIS when evidence presented is not clear or the applicant cannot provide information.

Documentation provided by the household must be submitted to USCIS for validation through the Systematic Alien Verification for Entitlement Programs (SAVE) system. The SAVE procedures are outlined in Appendix II of Part VII.

Immigration documentation includes, but is not limited to, the forms listed below.

- a. Resident Alien Card, Form I-551: This form, called the green card, is issued to immigrants admitted for permanent residence.

A foreign passport or USCIS documents, other than the I-551, will be acceptable proof of permanent residency if it has the endorsement: "Processed for I-551. Temporary Evidence of Lawful Admission for Permanent Residence. Valid until _____. Employment Authorized."

- b. Arrival - Departure Record, Form I-94: This form is issued by USCIS to persons who may or may not be eligible for SNAP benefits. Eligible aliens with I-94s must have certain INA Sections or terms listed on the forms. INA Sections 207, 208, or 243(h) or terms, such as refugee or asylum, on the I-94 reflect eligible alien status.
- c. Employment Authorization Document, Forms I-688B or I-766: These forms are issued to persons who may or may not be eligible for SNAP benefits

The I-688B will be sufficient verification for these citations:

<u>Citation</u>	<u>Status</u>
274a.12(a)(1)	Lawful permanent resident
274a.12(a)(3)	Refugee
274a.12(a)(5)	Asylum
274a.12(a)(10)	Deportation Withheld

The I-766 will be sufficient verification if annotated with the following:

A3	Refugee
A5	Asylum
A10	Deportation withheld

- d. Documents such as the Employment Authorization Card, Form I-688A or the Fee Receipt, Form I-689 may be used with other verification to establish alien eligibility. These forms alone do not provide ample verification of eligible alien status.

4. Verification of Citizenship

Citizenship must not be verified unless the household's statement that one or more of its members are U.S. citizens is questionable. If questionable, the household must be asked to provide acceptable verification. Acceptable forms of verification include:

- a. birth certificates
- b. religious records
- c. voter registration cards
- d. certificates of citizenship or naturalization provided by USCIS, including passports

General appearance of the applicant, foreign accent, inability to speak English, employment as a migrant farm worker, or a foreign sounding name are not sufficient reasons, in and of themselves, to consider information about citizenship questionable.

If the above forms of verification cannot be obtained and the household can provide a reasonable explanation as to why verification is not available, the BPS must accept a signed statement from someone who is a U.S. citizen which declares, under penalty of perjury, that the member in question is a U.S. citizen. The signed statement must contain a warning of the penalties for helping someone commit fraud, such as: "If you intentionally give false information to help this person get SNAP benefits, you may be fined, imprisoned, or both."

The member whose citizenship is in question is not allowed to participate until proof of U.S. citizenship is obtained. Until proof of U.S. citizenship is obtained, the member in question will have his or her income, less a pro rata share, and all other resources considered available to any remaining household members. (See Part XII.E.)

If the BPS reduces or terminates a household's benefits within the certification period because one or more of its members is disqualified as an ineligible alien, the BPS must issue the *Advance Notice of Proposed Action* to inform the household that the individual is disqualified, the reason for the disqualification, the eligibility and benefit level of the remaining members, and the actions the household must take to end the disqualification, if applicable.

5. Reporting Illegal Aliens (7 CFR 273.4(b))

The local agency must report to the USCIS any individual who the agency "knows" to be in the United States in violation of the Immigration Nationality Act. The household must present a Final Order of Deportation for the local agency to "know" that the person is in violation to make the report to the USCIS. In no other instance may the agency make the report to the USCIS.

If a household member presents a Final Order of Deportation issued by USCIS or by the Executive Office of Immigration Review, the local agency director must report to USCIS. The report must include the individual's:

- name
- address
- other identifying information

The agency must send the report to:

Director
Policy Directives and Instructions Branch
U.S. Citizenship and Immigration Service
425 I Street, N.W.
Room 4034
Washington, D.C. 20535
ATTN: USCIS No 2070-00

G. SOCIAL SECURITY NUMBERS (7 CFR 273.6)

1. Requirements for Participation

An applicant must provide the local agency with the Social Security number (SSN) of each household member or apply for a number before certification. This provision applies to participating or applying households.

During the eligibility interview, the BPS must explain to the applicant or participant that, without good cause, refusal or failure to provide or apply for an SSN will result in disqualification of the individual for whom the number is not obtained.

If an individual has more than one SSN, the BPS must request and the household must provide all the numbers.

2. Obtaining a Social Security Number

For individuals who provide the SSN before certification or at any other time, the BPS must record the SSN and verify it according to Part III.A.1.i and Part III.F.1.

For individuals who do not have a SSN, those who do not know if they have a number, those who are unable to find and therefore cannot provide their number or those whose numbers appear questionable, the BPS must direct the household to submit Form SS-5, Application for a Social Security Number, to the Social Security Administration (SSA). The BPS must advise the household where to file the application for an SSN and discuss what evidence will be needed to obtain an SSN. Evidence needed includes a U.S. public record of birth established before age five or other verification of birth, such as religious records whose validity is not questionable, or hospital records, if they can be verified by the SSA. While religious and hospital records will entitle the individual to an SSN, further proof of birth is required by the SSA to establish eligibility for Social Security benefits.

If the household is unable to provide proof of application for the number for a newborn, the household must provide the number or proof of application at its next recertification or within six months, whichever is later. If the household is unable to provide the number or proof of application within the time allowed, the BPS must determine if good cause provisions exist.

The BPS must advise the household that proof of the application for an SSN from SSA will be required prior to certification, and suggest that the household member ask the SSA for proof of the application for an SSN. The "Receipt for Application for a Social Security Number" may be used for this purpose. The local agency may also devise a form for this purpose; however, the local agency must consult with the Regional SNAP Consultant before using such a form.

3. Failure to Comply (7 CFR 273.6(c))

If the BPS determines that a household has refused or failed to show good cause to provide the number or apply for a number, the individual without the SSN is disqualified from receiving SNAP benefits. The disqualification applies only to the individual for whom the

SSN is not provided, not the entire household. Part XII.E contains instructions for the treatment of income and resources of the disqualified household member.

4. Determining Good Cause (7 CFR 273.6(d))

In determining if good cause exists for failure to comply with the requirement to provide an SSN, the BPS must consider information from the household member and SSA.

Good cause for failing to apply for a number includes documentary evidence or collateral information that the household has made every effort to supply SSA with the necessary information to complete an application for an SSN. Good cause does not include delays due to illness, lack of transportation or temporary absences, because SSA makes provisions for mailing in applications for the SSN. If a household can show good cause why an application for an SSN has not been completed, the member in question is allowed to participate for one month in addition to the month of application for SNAP benefits. Good cause for failure to apply must be shown monthly thereafter for such a household member to continue to participate.

If the household is unable to obtain the documents required by SSA to apply for an SSN, the BPS must assist the individual in obtaining these documents.

5. Ending Disqualification (7 CFR 273.6(e))

Once a person has been disqualified for refusal or failure to provide an SSN or apply for an SSN, the disqualified member must provide an SSN before eligibility can be established.

SSA Quarters of Coverage Verification Procedures for Legal Immigrants

Individuals who are not citizens of the U.S. may be eligible for SNAP benefits depending on their immigration status. (See Part VII.F.1.) One of the eligible classes requires that the immigrant must be credited with 40 quarters of work. This appendix contains the process for determining the number of qualifying quarters with which an individual can be credited.

To determine the number of quarters available to an eligible immigrant household member, the BPS must obtain answers to the following questions:

1. How long has the applicant, the applicant's spouse, or the applicant's parents (before the applicant turned 18) lived in the U.S.?
2. How many years has the applicant, the applicant's spouse, or the applicant's parents (before the applicant turned 18) commuted to work in the U.S. from another country before coming to the U.S. to live, or worked abroad for a U.S. company or in self-employment while a legal resident of the U.S.?

(If the total number of years to both questions is less than 10 years, the BPS does not need to ask question 3 because the 40-quarter standard cannot be met.)

3. In how many of the years reported in answer to question 1, did the applicant, the applicant's spouse, or the applicant's parent earn money through work?

(To determine whether the applicant's earnings were sufficient to establish "quarters of coverage" in those years, the BPS should refer to the income chart included in this appendix.)

If the answer to question 3 is 10 years or more, the BPS must verify the date of entry into the country for the applicant, spouse and/or parent using USCIS documents or other documents. If the dates are consistent with having 10 or more years of work, an inquiry through SVES must be made.

Information received through SVES will not report earnings for the current year and possibly not the last year's earnings. The household must provide verification of earnings through pay stubs, W-2 forms, tax records, employer records, or other documents, if the quarters of this period are needed to qualify for assistance.

If the household believes the information from SSA is inaccurate or incomplete, beyond the current two-year lag period, advise the household to provide verification to the SSA to correct the inaccurate income records.

In evaluating the verification received directly from the household or through SVES, the BPS must exclude any quarter, beginning January 1997 in which the person who earned the quarter received TANF, SSI, Medicaid or SNAP benefits. This evaluation also includes benefits from the Nutritional Assistance Program from Puerto Rico, the Northern Mariana Islands, or American Samoa.

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Establishing Quarters

The term “quarter” means the 3-calendar-month period that ends with March 31, June 30, September 30, and December 31 of any year. Social Security credits (formerly called “quarters of coverage”) are earned by working at a job or as a self-employed individual. A maximum of 4 credits can be earned each year. Credits are based solely on the total yearly amount of earnings. All types of earnings follow this rule. The amount of earnings needed for each credit and the amount needed for a year to receive four credits are listed below.

Year	Quarter Minimum	Annual Minimum	Year	Quarter Minimum	Annual Minimum
1978	\$250	\$1000	2002	\$870	\$3480
1979	\$260	\$1040	2003	\$890	\$3560
1980	\$290	\$1160	2004	\$900	\$3600
1981	\$310	\$1240	2005	\$920	\$3680
1982	\$340	\$1360	2006	\$970	\$3880
1983	\$370	\$1480	2007	\$1000	\$4000
1984	\$390	\$1560	2008	\$1050	\$4200
1985	\$410	\$1640	2009	\$1090	\$4360
1986	\$440	\$1760	2011	\$1120	\$4480
1987	\$460	\$1840	2012	\$1130	\$4520
1988	\$470	\$1880	2013	\$1160	\$4640
1989	\$500	\$2000	2014	\$1200	\$4800
1990	\$520	\$2080	2015	\$1220	\$4880
1991	\$540	\$2160	2016	\$1260	\$5040
1992	\$570	\$2280	2017	\$1300	\$5200
1993	\$590	\$2360	2018	\$1320	\$5280
1994	\$620	\$2480	2019	\$1360	\$5440
1995	\$630	\$2520	2020	\$1410	\$5640
1996	\$640	\$2560	2021	\$1470	\$5880
1997	\$670	\$2680	2022	\$1510	\$6040
1998	\$700	\$2800	2023	\$1640	\$6560
1999	\$740	\$2960	2024	\$1730	\$6920
2000	\$780	\$3120	2025	\$1810	\$7240
2001	\$830	\$3320			

If a quarter for the current year is included in the computation, use the current year amount as the divisor to determine the number of quarters available.

For quarters earned before 1978:

- A credit was earned for each calendar quarter in which an individual was paid \$50 or more in wages (including agricultural wages for 1951-1955);
- Four credits were earned for each taxable year in which an individual's net earnings from self-employment were \$400 or more; and/or
- A credit was earned for each \$100 (limited to a total of 4) of agricultural wages paid during the year for years 1955 through 1977.

Systematic Alien Verification for Entitlements Program

Section 121 of the Immigration Reform and Control Act of 1986 (IRCA), Public Law 99-603, required a system for verifying the immigration status of immigrants who apply for certain types of benefits. The Systematic Alien Verification for Entitlements (SAVE) Program was developed to prevent the issuance of benefits to ineligible immigrants. The use of SAVE is required for determining SNAP eligibility.

Immigrants must present documentation of their immigration status before eligibility can be determined for SNAP benefits. Part VII.F outlines the categories of eligible immigrants. Once the household provides documentation, the BPS may determine the validity of the documents by comparing the information submitted with current immigration records maintained by the United States Citizenship and Immigration Service (USCIS). The process described in this appendix may also be used to obtain information about an immigrant's sponsor to satisfy the requirements of Part XII.C.

Verification for immigrants with permanent status should not be resubmitted through SAVE once information has been obtained through SAVE. SAVE should be accessed periodically for immigrants with a temporary or conditional status however.

Primary Verification

Primary verification is the online access to immigration records. The BPS must attempt the online method before attempting the manual, paper-trail method of secondary verification unless circumstances listed in the Secondary Verification section exist.

Information obtained through SAVE should be compared with the original immigration document. If discrepancies are noted, initiate the secondary verification process. The BPS must not take any negative action based on the automated verification only.

Secondary Verification

The following circumstances require that the BPS skip online procedures and perform secondary verification when:

- Items presented as documentation appear altered or counterfeit.
- Documents have no Alien Registration Number (A-Number).
- Documents contain an A-Number in the A60 000 000 or A80 000 000 series.
- The document presented is any other form of USCIS fee receipt.
- The document presented is Form I-181 or I-94 in a foreign passport that is endorsed "Processed for I-551, Temporary Evidence of Lawful Permanent Residence," and the I-181 or I-94 is over one year old.
- The document presented is a receipt for an application for a replacement document for a qualified status as listed in Part VII.F.1.g.

- Additional information is needed regarding sponsorship status or for the name and address of the sponsor(s).
- Documentation is needed to substantiate the status as a victim of abuse.
- Expired documents are presented and the immigrant has a physical or mental disability that prevents new documents from being obtained from USCIS.

In addition to the situations above, secondary verification should also occur when there is a discrepancy in the records, when there is no USCIS file for the individual, or when the online response is "Institute Secondary Verification."

Secondary Verification Procedures

1. Complete Part 1 of form G-845, Verification Request. Separate forms must be completed for each immigrant. A copy of the form follows this section.
2. Submit readable copies (front and back) of original immigration documents to the upper left corner of form G-845. Copies of other documents used to make the initial immigrant status determination must also be submitted. Other documentation could include marriage records or court documents that indicate the identity or immigration status of the holder.
3. The BPS must email the SAVE program at saveregistration@uscis.dhs.gov and receive approval before you submit Form G-845
4. While awaiting the secondary verification from USCIS, the BPS must not take any negative action against the case or individual based on the immigration status.
5. Upon receipt of a response from USCIS, the BPS must compare the information with the case record. If eligibility of the immigrant is confirmed, the BPS must document the case and take no further action. If the USCIS response does not confirm the household member's status, the BPS must take the appropriate action to reduce or terminate benefits.
6. If requested by USCIS, the BPS must complete Part 1 of Form G-845 Supplement, Verification Request. The BPS must submit the G-845 Supplement with Form 845 and email the SAVE program at saveregistration@uscis.dhs.gov and receive approval before submitting the Forms.

Form G-845 and Form G-845 Supplement are available at <https://www.uscis.gov/g-845> and <https://www.uscis.gov/g-845-supplement>, respectively.

PART VIII EMPLOYMENT SERVICES AND VOLUNTARY QUIT/WORK REDUCTION

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A. WORK REGISTRATION AND SNAP EMPLOYMENT AND TRAINING

The BPS must evaluate and record each household member's work registration status based on the exemption criteria in Part VIII.A.1. The information must be reviewed and updated as needed at recertification. The BPS must explain to the applicant the work registration requirements and the consequences of a mandatory registrant voluntarily quitting a job or reducing work hours without good cause.

Work registration status information in VaCMS is used to register participants for the SNAP E&T component. SNAP E&T is operated through 37 local social services departments. Participation in SNAP E&T is voluntary, however; the BPS should encourage participation in SNAP Employment and Training (SNAP E&T) and review the SNAP E&T script with the applicant, if applicable.

1. Exemption from Work Registration

The following persons are exempt from the work registration requirement:

- a. Any household member who is younger than 16 years of age or who is 60 years of age or older.
- b. Any household member 16 or 17 years of age who is not the head of the household as defined in Part VI.D.
- c. Employment services program participants. This exemption applies to TANF recipients who participate in the Virginia Initiative for Employment not Welfare (VIEW) or refugee services programs.
- d. A parent/caretaker of a child under 6. Accept the client's statement unless the information given is questionable. The registration requirement must be fulfilled at the next scheduled recertification following the child's 6th birthday, unless otherwise exempt.

In two-parent situations, only one parent may receive the exemption for the children. If more than one family unit exists in the SNAP household, only one adult per family unit may receive the exemption.

When persons who are not siblings are present in the SNAP household, the BPS must determine, through client statement, which adults in the home exert parental control over which children for purposes of determining the exemption.

Examples

- 1) A household consists of a married couple and their 4-year-old son. Mr. X is disabled and receiving SSI. He is exempt based on his disability. Mrs. X is exempt based on a child under 6.
- 2) A household consists of a married couple and two children, ages 2 and 4. Either parent is exempt based on children under 6. The other parent must be registered for work if no other exemption exists.
- 3) A household consists of two adult sisters, each of whom has a child under 6. Each sister is exempt

- e. An attendant for an incapacitated person. The incapacitated person is not required to be a SNAP household member. Accept the client's statement unless the information given is questionable.
- f. Applicants for and recipients of unemployment benefits in Virginia. Since persons who apply for unemployment benefits in Virginia (for Virginia benefits) are automatically registered for work for SNAP purposes, no additional registration is necessary except for persons who are on strike. Persons on strike who have applied for, but are not receiving unemployment benefits, are not registered for work by the Virginia Employment Commission (VEC) and, therefore, do not meet this exemption.

If the exemption claimed is questionable, the BPS must verify the information with the appropriate VEC Office. Persons who have applied for unemployment benefits in another state and are not yet receiving the benefit however, are not automatically exempt from work registration. The BPS must contact the other state to determine if registration for work occurred when the application for unemployment benefits was filed. Persons who have filed an interstate claim in Virginia against the state they have recently left are exempt.

- g. Participants in a drug or alcoholic treatment and rehabilitation program. Accept the client's statement unless the information given is questionable.
- h. Persons employed for cash wages, in any amount, or self-employed and working a minimum of 30 hours per week. This includes migrant and seasonal farm workers who are under contract or similar agreement with an employer or crew chief to begin employment within 30 days. In determining whether an applicant is working a minimum of 30 hours per week, fluctuating work hours may be averaged. Since this exemption is tied to a weekly figure, the period for averaging should also be tied to a weekly figure. The number of weeks to be averaged cannot exceed either the length of the certification period or the twelve-month work registration period. The average may be based on any number of weeks less than either of these two periods which will allow a reasonable approximation of the number of hours worked per week. Accept the client's statement unless the information given is questionable.
- i. Persons working less than 30 hours per week but earning at least the equivalent of the federal minimum wage multiplied by 30 hours.
- j. Persons who are obviously physically or mentally incapacitated. When disability is not obvious or the individual does not attend the eligibility interview or other office visit, proof of the disability may be established by the approval for or receipt of disability benefits. See Definitions. Also, approval for or receipt of benefits such as TANF, Medicaid, or Workers Compensation based on a disability which has been verified by that program will be considered as proof of disability. Other individuals claiming a disability exemption must substantiate such disability by a medical statement from a licensed medical provider or licensed or certified psychologist or social worker or by approval for or receipt of benefits upon verification of same, such as an insurance company.

- k. A student, enrolled at least half-time in an institution of higher education, who meets the special eligibility criteria of Part VII.E.
- l. Other persons enrolled, at least half-time in any recognized school or training program, including summer school.

NOTE: Placement in a school or training program by the SNAP E&T will not exempt a person from work registration.

2. Frequency of Registration for Work

The BPS must register all household members who are not exempted from the work registration requirements at the time of application or reapplication, and every twelve months thereafter. New household members, added during the certification period, must be registered at recertification.

If a household member who is subject to the time-limited benefits of Part XV loses the exemption status within the certification period because of a change in the number of work hours, the BPS must register that household member when the change is reported. The BPS must explore with the household whether an exemption to the work registration requirements exists.

Household members who lose their exemptions due to a change in circumstances that is not subject to the reporting requirements of Part XIV.A must register for work at the household's next recertification.

3. Method of Registration for Work

Work registration must be identified at:

- a. Initial Application and Reapplication. Registration information will be forwarded to the SNAP E&T worker.
- b. Every twelve months thereafter.
- c. Changes in Work Registration Information. The BPS must record changes to the work registration status within 10 days from the date the change becomes known to the BPS. Changes include noting that an individual is no longer required to be registered.

The BPS must notify the SNAP E&T Worker through the ESP Communication Form when there are changes in household or individual circumstances that affect registration or compliance with SNAP E&T requests. Conversion of the SNAP case to transitional benefits is an example of a change that should be shared.

- d. Recertification. At each recertification, the BPS must evaluate each household member to determine the work registration status of each member.

B. VOLUNTARY QUIT AND WORK REDUCTION (7 CFR 273.7(j))

Individuals who quit a job of 30 hours or more per week or who reduce the work effort so that less than 30 hours per week remain after the reduction are not eligible for SNAP benefits unless the person is exempted from work registration requirements, as outlined in Part VIII.A.1 or unless good cause exists for the quit or reduction. If the person is the head of the household, as defined in Part VI.D, the entire household is ineligible for SNAP benefits. The length of time the individual or household is ineligible will be determined by the number of previous violations for this Part that have been incurred by the individual. The disqualification periods are listed in Part VIII.C.

At application, the BPS must explain the consequences of a household member quitting a job or reducing the number of hours worked without good cause and the consequences of a person joining the household as its head if that individual has voluntarily quit a job or reduced the hours worked. The BPS must assess whether voluntary quit or work reduction applies at application. While households are not required to report job losses or reduction of work hours during the certification period, as per Part XIV.A, the BPS must evaluate voluntary quit or work reduction when it is discovered. If good cause does not exist, the household or individual is disqualified from receiving future benefits, as allowed in this chapter.

The BPS must provide the *SNAP Sanction Notice for Noncompliance with a Work Requirement* when a case is negatively affected when one voluntarily quits a job or reduced the hours worked without good cause.

1. Exemptions from Voluntary Quit and Work Reduction Provisions

Most persons, who are exempt from the work registration provisions in Part VIII.A.1 at the time of the quit or work reduction, will be exempt from the voluntary quit and work reduction provisions. Voluntary quit and work reduction provisions will apply to TANF recipients and refugees who are exempted from the work registration provisions because of their employment services registration and persons who are exempted because of employment (Part VIII.A.1(c and h)).

For applicants, if the quit or work reduction occurred before the date of application, evaluate work registration on the date of application to determine whether the household is exempt from voluntary quit or work reduction provisions. If the quit or work reduction occurred after the date of application, but before the case was processed, evaluate work registration status on the day of the quit or work reduction to determine whether the household is exempt from voluntary quit or work reduction provisions.

For participating households, evaluate the household member's work registration status on the day of the quit or work reduction to determine whether the household is exempt from voluntary quit or work reduction provisions.

2. Determination of Voluntary Quit or Work Reduction

When a household files an application for participation or when a participating household reports the loss of a source of income or reduced income, the BPS must determine

whether any household member quit a job or purposefully reduced the number of hours worked.

- a. Voluntary quit provisions apply if:
 - 1) the employment involved 30 hours or more per week or provided weekly earnings at least equivalent to the federal minimum wage multiplied by 30 hours;
 - 2) the quit occurred within 60 days prior to the date of application or any time thereafter; and
 - 3) the quit was without good cause.
- b. Work reduction provisions apply if:
 - 1) the employment involved more than 30 hours per week;
 - 2) fewer than 30 hours per week exist after the reduction;
 - 3) the reduction occurred within 60 days prior to the date of application or any time afterwards; and
 - 4) the reduction was without good cause.

Changes in employment status that result from ending a self-employment enterprise or resigning from a job at the demand of the employer do not count as voluntary quit for purposes of this chapter. Changes in employment status will also include situations in which renewal contracts are not offered or a decision is made not to reenlist in the military. Failure to accept a renewal offer of a contract with comparable terms will count as voluntary quit.

An employee of the federal, state or local government who participates in a strike against that government and is dismissed from the job because of participation in the strike, will be considered to have voluntarily quit the job without good cause.

If an individual quits a job, secures new employment at comparable wages or hours, and is then laid off, or through no fault of his own loses the new job, the earlier quit will not form the basis of a disqualification.

3. Voluntary Quit or Work Reduction at Application

Upon a determination that a household member voluntarily quit employment or reduced the work effort, the local agency must determine if the quit or reduction was for good cause, as defined in Part VIII.B.7.

For an applicant household, if the quit or reduction was without good cause, the household's application must be denied and a sanction imposed in accordance with Part VIII.C. The

sanction period will be from the date of the quit or work reduction. The BPS must provide the household with a *Notice of Action* to deny the application. The notice must inform the household of the proposed disqualification period, its right to reapply at the end of the disqualification period, and of its right to a fair hearing. For voluntary quits or work reductions that occur after the date of application but before the application is processed, the household may be eligible for benefits for the period prior to imposition of the sanction. See Part XIII.D.2. for information on prorating benefits in these situations.

An application filed in the last month of disqualification must be used for the denial of benefits in the remaining month of disqualification and for certification for any subsequent month(s), if all other eligibility criteria are met.

4. Voluntary Quit or Work Reduction for Participating Households

The BPS may discover retroactively that an individual in a participating household quit a job or reduced work without good cause. If an individual who is not otherwise exempt from work registration at the time of a job quit or work reduction without good cause, the individual or household must be disqualified. The disqualification may result from a quit or work reduction that occurred during the certification period, an infraction that occurred within 60 days prior to application for benefits, or one that occurred between application and certification. In these instances, the BPS must provide the household with an Advance Notice of Proposed Action within 10 days after the determination of a quit or reduction. The notice must include the act of noncompliance committed, the proposed period of ineligibility, and it must specify that the household may reapply at the end of the disqualification period. The period of ineligibility will be assigned according to Part VIII.C and will run continuously beginning with the first of the month after all normal procedures for taking adverse action have been followed.

If a voluntary quit or work reduction occurs in the last month of a certification period or is discovered in the last month of the certification period, the procedure the BPS follows depends on whether a recertification application is filed. If a recertification application is filed by the end of the certification period, the household must be denied or the individual will be disqualified beginning with the day after the certification period ends.

If the household does not apply for recertification by the end of the certification period, establish a claim for benefits received for up to the number of months for the penalty, beginning the first of the month after the month in which the quit or reduction occurred. If there are fewer than the number of months for the penalty from the first of the month after the quit or work reduction occurred to the end of the certification period, the BPS must establish a claim and the household remains ineligible for the balance of the disqualification period. If no claim is warranted, the household is ineligible for the number of months for the penalty, beginning with the first month following the end of the certification period.

Example

Certification period ends March 31. The BPS discovers on March 4 that a quit or work reduction occurred January 22. This is the second violation incurred by the household member.

- a. A recertification is filed March 15. Deny the recertification for three months, from April through June.
- b. No recertification is filed by March 31. Establish a claim beginning February 1, the first of the month following the quit.

There are two months from February to March, the last month of the certification period. Consider the period of ineligibility to extend through April to complete the three-month period of ineligibility.

Each household has a right to a fair hearing to appeal a termination or reduction of benefits due to a determination that the household's head or other household member voluntarily quit a job or reduced the work effort without good cause. If the participating household requests a hearing and receives continuation of benefits and the local agency determination is upheld, the disqualification period will begin the first of the month after the hearing decision is rendered.

5. Changes in Household Composition After a Sanction Has Been Determined

A sanction will follow an individual who voluntarily quit or reduced employment when the person leaves the household of which he/she was a member when the quit or reduction occurred. The sanction will follow such a member who joins another participating household as its head if the original sanction period has not yet expired. The *Advance Notice of Proposed Action* must be sent to close the case if the household is currently certified. If the individual files an application alone or with persons who are not receiving SNAP benefits, the application must be denied if the original sanction period has not yet expired. The new household remains ineligible for the remainder of the sanction period. If an individual who voluntarily quit or reduced work joins a new household and is not its head, the individual remains disqualified for the balance of the sanction period.

If a participating household reports the addition of a person who quit a job within 60 days of the report, and that individual meets the definition of the head of the household, the BPS must evaluate voluntary quit provisions.

6. Ending a Voluntary Quit or Work Reduction Disqualification

Following the end of the disqualification period, a household may reapply and be eligible for SNAP benefits.

Eligibility may be reestablished during a disqualification period and the household is allowed to resume participation if the member who caused the disqualification leaves the household.

Eligibility may also be reestablished if the violator becomes exempt from the work registration requirements under Part VIII.A.1 except for TANF Employment Services Program registration (Part VIII.A.1.c) or an application for or receipt of Unemployment Compensation (Part VIII.A.1.f).

A household determined ineligible because of a voluntary quit may reestablish eligibility if a new and otherwise eligible member joins as its head, provided the original head has left the household.

If the member who caused the disqualification leaves the household or becomes exempt from work registration before the effective date of the case closure or while an application is still pending, the BPS must reestablish eligibility without requiring another application, provided the household is otherwise eligible. For currently eligible households, the action to reestablish the case may be taken in the month following the effective date of the closure as long as the member left before the effective date.

Example

- a. The head of household quit a job without good cause on May 2. The BPS takes action to close the case effective May 31. On May 27 the household reports that the individual who quit the job has left the household. The case must be reestablished without requiring a new application.
- b. The head of household reduced the number of hours worked without good cause on May 2. On June 3, the household reports that the head left the household that morning. The household must reapply.

For pending applications, the application must be denied for the period the disqualification is appropriate, and certified from the date the disqualification can end.

For applications that have already been denied, a reapplication is needed.

If a sanctioned household splits into more than one household, the sanction will follow the member who caused the disqualification.

7. Good Cause

Good cause for leaving employment may include but is not limited to the following:

- a. Discrimination by an employer based on age, race, sex, color, handicap, religious beliefs, national origin, or political beliefs;
- b. Work demands or conditions that render continued employment unreasonable, such as working without being paid on schedule;
- c. Enrollment of the head of household or other individual required to register at least half-time in any recognized school, training program, or institution of higher education that requires the household member to leave employment;
- d. Acceptance by any other household member of employment or enrollment at least half-time in any recognized school, training program, or institution of higher

education in another county or similar political subdivision that requires the household to move and thereby requires the head of household or other individual required to register for work to leave employment;

- e. Resignations by persons under the age of 60 that are recognized by the employer as retirement;
- f. Acceptance of a bona fide offer of employment of 30 hours or more a week or in which the weekly earnings are equivalent to the federal minimum wage multiplied by 30 hours by the head of household or other individual required to register. Good cause will also include acceptance of such employment which, because of circumstances beyond the control of the household member, subsequently either does not materialize or results in employment of less than 30 hours a week or weekly earnings of less than the federal minimum wage multiplied by 30 hours.
- g. Leaving a job in connection with patterns of employment in which workers frequently move from one employer to another, such as migrant farm labor or construction work. There may be some circumstances where households will apply for SNAP benefits between jobs, particularly in cases where work may not yet be available at the new job site. Even though employment at the new job site has not actually begun, the quitting of the previous employment will be considered as good cause if it is part of the pattern of that type of employment.
- h. Leaving a job because of other circumstances beyond the member's control, such as, illness, illness of another household member requiring the presence of the person claiming good cause, a household emergency, or the unavailability of transportation.
- i. Employment which is considered unsuitable by not meeting the following criteria:
 - 1) The employment pays less than the federal minimum wage or, if the employment does not fall under federal guidelines, pays less than 80% of the federal minimum wage.
 - 2) The employment is on a piece-rate basis and earnings are expected to be less than the federal minimum wage or, if the employment does not fall under federal guidelines, pays less than 80% of the federal minimum wage.
 - 3) The employment would require joining, resigning from, or refraining from joining any legitimate labor organization.
 - 4) The work offered is at a site subject to a strike or lockout at the time of the offer, unless the strike has been enjoined under the Taft-Hartley Act or an injunction has been issued under Section 10 of the Railway Labor Act.
 - 5) The employment would be hazardous to the registrant's safety and/or health.

- 6) The registrant is physically or mentally unfit to perform the employment, as documented by a medical statement provided by a physician or licensed or certified psychologist or information from another reliable source.
- 7) Daily travel to and from work will exceed two (2) hours round trip, exclusive of time necessary to transport children to and from a childcare facility. Employment will not be considered suitable if the distance to the place of employment prohibits walking and neither public nor private transportation is available to transport persons to the job site.
- 8) Working hours or the nature of the employment would conflict with the registrant's religious convictions, beliefs or observations.

It is the responsibility of the BPS to investigate any allegations of employment unsuitability. The case record must contain the facts regarding a determination of unsuitable employment, the date of substantiation and the method of securing the information.

8. Verification

To the extent that the information given by the household is questionable, the BPS must request verification of the household's statements. The primary responsibility for providing verification rests with the household. If it is difficult or impossible for the household to obtain documentary evidence in a timely manner, the BPS must offer to help the household to obtain the needed verification. Acceptable sources of verification include, but are not limited to, the previous employer, employee associations, union representatives, farm worker service organizations, and grievance committees or organizations. Whenever documentary evidence cannot be obtained, the BPS must substitute a collateral contact. The BPS is responsible for obtaining verification from acceptable collateral contacts provided by the household.

If the household and the BPS are unable to obtain requested verification from these or other sources about the cause for the quit or work reduction, the household will not be sanctioned. This may include instances when the employer cannot be located or when the employer refuses to address requests about the job quit.

C. SANCTION PERIODS FOR NONCOMPLIANCE

Individuals or entire households will be barred from receiving SNAP benefits for periods when household members quit a job or reduce work efforts without good cause. Only the person who quits or reduces work will be disqualified unless that person is the head of the household. See Part VI.D to determine the head of household. The disqualification procedures of Part XII.E must be followed to attribute income and resources to the remaining household members. The entire household will be ineligible for the sanction period for the time listed below if the person who quit or reduced work is the head of household.

The duration of the disqualification period is dependent on the number of times the household member fails to comply. For each act of noncompliance by an individual, the length of the disqualification is increased. Violations by one household member must not be added to actions by another member to determine the sanction period.

The individual or household sanction periods are:

	Participating Household Voluntary Quit/Reduction	Applying Household Voluntary Quit/Reduction
Violation 1	One month	30 days
Violation 2	Three months	90 days
Violation 3 or more	Six months	180 days

For applying households, the penalty period is assessed from the day of the quit or work reduction.

The sanction period must be served before the individual or household regains eligibility except in instances when an individual who causes the action leaves the household or becomes exempt from work registration and related requirements. After the sanction period has been served, eligibility may be regained by the individual or household for voluntary quit or work reduction violations.

See Part XIII.D.2 for a discussion of prorating benefits for households that reapply before the sanction period expires.

PART IX	RESOURCES	
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A. RESOURCES (7 CFR 273.8)

Only liquid assets will count in determining the eligibility of households except for determining the net worth of incorporated businesses. Households must report all countable resources held by its members at the time of application and any the members expect to receive during the certification period. The BPS must document the assets in sufficient detail. The household's available resources at the time of the interview will determine whether the assets are below the maximum allowable resource limit.

B. RESOURCE LIMITS

The household's total nonexempt resources may not exceed:

- \$4,500 if the household has at least one member who is 60 years of age or older or a member who is disabled, as defined in Definitions.
- \$3,000 if the household does not have a member who is 60 years of age or older or one who is disabled, as defined in Definitions.

The resource limits do not apply to categorically eligible households or members, including those who meet BBCE requirements. See Part II.G.3.

C. NONEXEMPT RESOURCES

Resources used to determine eligibility include:

1. Liquid assets, such as, but not limited to:

- a. Cash on hand. This provision includes money that remains on an income debit card, such as the EPPICard for TANF or DCSE, after the month the income is deposited when such a card is not otherwise connected to an account as addressed in b below.
- b. Money in accounts. "Account" means a contract of deposit of funds between a depositor and a financial institution. This includes checking accounts, savings accounts, certificates of deposit, share accounts (i.e., credit union accounts), or like arrangements.
- c. Receipt of lottery or gambling winnings. Receipt of lottery or gambling winnings of \$4,500 or more for a single game before taxes or other withholdings will cause households to be ineligible for benefits. If multiple persons shared in the purchase of a bet or ticket, only the portion allocated to a SNAP household member is countable.
- d. Stocks or bonds.
- e. Lump sum payments, such as income tax refunds, rebates or credits, lump sum insurance settlements, refunds of security deposits on rental property or utilities, retroactive lump sum SSA, Public Assistance, Railroad Retirement benefits, or other

payments. Lump sum payments also include accumulated vacation, sick, or severance pay of terminated employees received in one installment.

- f. Funds in a trust or transferred to a trust except as stated in Part IX.D.9.d.
- g. Earned income tax credits count two months after the month of receipt regardless of whether the payments were received as a tax refund or periodically throughout the year. Earned income tax credits are excluded as a resource for the month of receipt and the following month.

NOTE: When determining the amount of nonexempt liquid resources to count, especially bank accounts, do not consider any amount that would count as income for the same month.

Example

An applicant deposited his Social Security check into a checking account. The resource amount of the checking account would be the account balance minus the amount of the deposit.

Presume that joint bank accounts belong to the parties in proportion to their net contributions during the lifetime of all parties. A joint account between persons married to each other belongs to each party equally (half and half) however. Except for persons married to each other, each party's net contribution to the account may be established by signed statements from all parties if the verbal claim is questionable. If the parties can establish that they intended a different ownership arrangement, that ownership arrangement prevails over the above presumption.

Example

A household member's name is listed on her elderly mother's savings account. Both the household member and her mother provide statements that the daughter has not contributed any money to the account. The account is not a resource to the client.

If parties married to each other are divorced by final decree, ownership of a joint account is proportional to their net contributions unless the divorce decree specifies otherwise.

- 2. That portion of the liquid resources of an alien's sponsor and the sponsor's spouse (if living with the sponsor) deemed to be those of the alien according to procedures established in Part XII.C.2.
- 3. Business resources of self-employment arrangements. The worker must assess the business structure to determine countable resources. Determine the number of business owners and whether the business is incorporated. For arrangements that are not incorporated, assess liquid resources as belonging to the business owners in proportion to their ownership percentage. For businesses that are incorporated, calculate the company's net worth by adding all business resources such as accounts, cash, inventory, vehicles, buildings, etc. and subtract all business liabilities/debts/expenses. Apply each owner's share of the net worth toward the resource maximum. Note that limited liability companies (LLC) are not incorporated so the resources belong to the company owners.

D. EXEMPT RESOURCES

Resources that will not count in determining eligibility include:

1. Real property, regardless of acreage.
2. Mobile homes, regardless of lot ownership.
3. Vehicles.
4. Household goods, such as furniture and appliances, and personal effects, such as clothing and jewelry. All tools are exempt, whether they are essential to the employment or self-employment of a household member.
5. Burial plots. In addition, the value of bona fide funeral agreements is exempt.
6. Cash value of life insurance policies.
7. Money in pension or retirement plans. This exemption includes plans authorized under the Internal Revenue Code or funds in a Federal Thrift Savings Plan account. This exemption includes Individual Retirement Accounts, 401(k), 403(b), and KEOGH plans. Money withdrawn from an exempt fund will count as income when it is withdrawn unless lump sum provisions of Part XI.F.9 apply.
8. The contract amount for land, buildings, and vehicles, sold on an installment basis.

Examples

- a. An applicant sells a piece of land for \$3,000. The applicant continues to hold the deed while the buyer pays \$100 per month. The \$3,000 selling price is exempt, but the \$100-payment counts as income.
 - b. An applicant sells a car for \$1,900 (which is its "Blue Book" value) but continues to hold title to the car while the buyer pays \$75 per month. The monthly payment of \$75 will count as income.
9. Resources whose cash value is not accessible to the household, such as, but not limited to:
- a. Security deposits on rental property or utilities.
 - b. Property in probate. For example, any property inaccessible to the household until there is a judicial determination concerning the validity of a will.
 - c. Some profit-sharing programs. For example, a program that makes money available to the employee only when necessary to allow the employee to pay excessive medical expenses is exempt.
 - d. Irrevocable trust funds. These are any funds in a trust or transferred to a trust, and the income produced by that trust to the extent that it is not available to the

household provided that the following four criteria are met:

- 1) The trust arrangement is not likely to cease during the certification period and no household member has the power to revoke the trust arrangement or change the name of the beneficiary during the certification period;
- 2) The trustee administering the fund is either:
 - a) A court, or an institution, corporation, or organization which is not under the direction or ownership of any household member; or,
 - b) An individual appointed by the court who has court-imposed limitations placed on the use of the funds which meet the requirements of this chapter;
- 3) Trust investments made on behalf of the trust do not directly involve or assist any business or corporation under the control, direction, or influence of a household member; and,
- 4) The funds held in irrevocable trust are either:
 - a) Established from the household's own funds, if the trustee uses the funds solely to make investments on behalf of the trust or to pay the educational or medical expenses of any person named by the household creating the trust, or
 - b) Established with funds of a person outside the household.

If the trust arrangement does not meet the four conditions listed above, the household must initiate court action to establish inaccessibility within the application processing timeframes for determining eligibility. Until the court renders a decision, the trust is available to the household.

10. Governmental payments designated for the restoration of a home damaged in a disaster, if the household is subject to legal sanctions in the event the funds are not used as intended. These types of payments include:
 - a. The Department of Housing and Urban Development or through the Individual and Family Grant Program.
 - b. The Small Business Administration as disaster loans or grants.
11. Resources that have been prorated as income for self-employed persons will not count as a resource. This includes profits from the annual sale of crops.
12. Resources of nonhousehold members, including ineligible students. See Part VI.C.1 for a list of these persons. The resources of disqualified household members are countable, however. (See Parts VI.C.2 and XII.E.)

13. Resources excluded by law. (Admin. Notice A-39-97). This includes:

- a. Benefits received from the supplemental food program for the Women, Infants and Children program (WIC) (P.L. 100-435).
- b. Reimbursements from Title II of the Uniform Relocation Assistance and Real Property Acquisition Policy Act of 1970. (P.L. 91-646, Section 216).
- c. Earned income tax credits excluded as follows:
 1. Federal earned income tax credits received as a lump sum or as payment for the month of receipt and the next month.
 2. Federal, state or local earned income tax credits for 12 months from receipt if the individual receiving the tax credit was receiving SNAP benefits when the tax credit was received and provided that the household continuously participates during the 12-month period. In determining the 12-month period, temporary breaks of one month or less will not be considered as nonparticipation.
- d. Payments for meals for children or adults on whose behalf the payment is made through the Child and Adult Care Food Program, Section 12(3) of the School Lunch Act.
- e. Energy Assistance payments, including payments from the Low-Income Home Energy Assistance Program (i.e., the Virginia Fuel Assistance Program), CSA payments, HUD and FmHA utility reimbursements. (P.L. 99-425).
- f. Financial assistance from a program funded in whole or in part under Title IV of the Higher Education Act and the Bureau of Indian Affairs, as amended. Exclude also any money incurred or issued through the U.S. Department of Education or received under the Carl D. Perkins Vocational and Applied Technology Education Act (P.L. 99-498 and 100-50).
- g. Payments to certain U.S. citizens of Japanese ancestry and resident Japanese aliens and certain Aleuts, under the Wartime Relocation of Civilians Act (P.L. 100-383).
- h. Payments from the Agent Orange Settlement Fund or any other fund established for settlement of Agent Orange product liability litigation. (P.L. 101-201 and 101-239).
- i. All compensation from the Alaska Native Claims Settlement Act and amendments (P.L. 92-203 and 100-241).
- j. Payments authorized under the Disaster Relief Act of 1974, as amended (P.L. 100-707) and the Disaster Relief and Emergency Assistance amendments of 1988. The President must declare the disaster or emergency. This exclusion applies to federal payments and comparable disaster assistance provided by States, local governments and disaster assistance organizations.

Payments through the Federal Emergency Management Agency (FEMA) to property owners under the National Flood Insurance Act of 1968 to reduce risks of flood damage are excluded. Most funds from FEMA are excluded, but payments made when there is no declared disaster or emergency, such as rent assistance for a homeless household, are not excluded.

k. The following payments to or land of Indian tribes:

- Indian land held jointly with the tribe or land that can be sold only with the approval of the Department of the Interior's Bureau of Indian Affairs.
- Payments under the SAC and Fox Indian claims agreement (P.L. 94-189).
- Payments received by certain Indian tribal members for submarginal land held in trust by the United States (P.L. 94-114, Section 6).
- Payments received from the disposition of funds to the Grand River Band of Ottawa Indians (P.L. 94-540).
- Payments received by the Confederate Tribes and Bands of Yakima Indian Nation and the Apache Tribe of the Mescalero Reservation from the Indian Claims Commission (P.L. 95-433, Section 2).
- Payments from the Maine Indian Claims Settlement Act of 1980 to the Passamaquoddy Tribe, the Penobscot Nation, and the Houlton Band of Maliseet (P.L. 96-420, Section 9c).
- Payments of relocation assistance to members of the Navajo and Hopi Tribes (P.L. 93-531, Section 22).

Per capita interests in trust or restricted lands under the Indian Tribal Judgment Fund Use (P.L. 93-134 and 97-458).

- Payments to the Chippewa Tribes: Turtle Mountain, Red Lake, Mississippi, Lake Superior, Saginaw or White Earth (P.L. 97-403, 98-123, 99-146, 99-264, 99-346, and 99-377).
- Payment to the Blackfeet, Grosventre, and Papago Tribes (P.L. 97-408).
- Payments to the Assiniboine Tribes (P.L. 98-124, Section 5 and 97-408).
- Payments to the Seneca Nation (P.L. 101-503).
- Payments to the Puyallup Tribe (P.L. 101-41).
- Payments, except for per capita payments over \$2000, to the Seminole Nation of Oklahoma, the Seminole Tribe of Florida, and the Miccosukee Tribe of Florida and the independent Seminole Tribe of Florida (P.L. 101-277).

- Payments made under the Confederated Tribes of the Colville Reservation Grand Coulee Dam Settlement Act (P.L. 103-436).
- l. Resources of SSI or TANF recipients. A separate evaluation of resources for SNAP purposes is not needed for a household in which all members are SSI or TANF recipients. In addition to the receipt of TANF income, the resource exclusion also applies to a household in which any member receives a TANF-funded service as defined as a PA Case in Definitions. The BPS must evaluate the resources of household members who do not receive SSI or TANF.
- m. Amounts paid to individuals under the Radiation Exposure Compensation Act for injuries or death resulting from exposure to radiation from nuclear testing and uranium mining in Arizona, Nevada and Utah (P.L. 101-426).
- n. Payments to individuals because of their status as victims of Nazi persecution (P.L. 103-286).
- o. Payments through the Department of Veteran Affairs to children of Vietnam veterans who are born with congenital spina bifida and payments to children of female Vietnam veterans who are born with certain birth defects (P.L. 104-204 and P.L. 106-419).
- p. Money in an Achieving a Better Life Experience (ABLE) account. ABLE accounts are set up to provide funding for disability-related expenses for individuals determined to be disabled before age 26.
- 14. HUD retroactive tax and utility cost subsidy payments issued pursuant to the settlement of Underwood v. Harris, for the month in which payment was received and the following month.
- 15. Resources under a lien.
- 16. Money in individual development accounts (IDA). These exempt funds may be in the form of a trust, trust account or a custodial account. The owner of the account must be a current or former TANF recipient or one who is ineligible for TANF if the person's income is less than 200 percent of the federal poverty guidelines. Funds in the account are exempt if they are not withdrawn. The account will remain exempt if the household withdraws the funds and uses the money to pursue post-secondary education, to purchase a house, to start a business or to meet an emergency need approved by the sponsoring agency. In Virginia, the accounts are called the Virginia Individual Development Account (VIDA) and Assets for Independence Account (AFIA).
- 17. Money in an escrow account established by the Family Self-Sufficiency Program through the U.S. Department of Housing and Urban Development.
- 18. Money in educational accounts. These accounts include Coverdell Savings accounts and qualified tuition accounts (Internal Revenue Codes 529 and 530).

E. HANDLING OF EXEMPT FUNDS (7 CFR 273.8(f))

1. Liquid assets that are exempt from consideration, as outlined in Chapter D, that are kept in a separate and identifiable account from nonexempt funds remain exempt as a resource for an unlimited time.
2. Exempt funds kept in an account along with other nonexempt funds remain exempt for six months from the date the funds are commingled. After six months from the date the funds are commingled, all funds in the commingled account are countable as a resource.

Example

A two-person household has a savings account with a balance of \$900. The household receives a payment of \$1,200 from the Individual and Family Grant Program (IFG) in January. If the household places the IFG funds in a separate and identifiable account, the IFG funds will remain exempt indefinitely. If the household deposits these funds in the savings account containing \$900, however, the IFG funds will remain exempt for only six months from the date they are commingled with the nonexempt funds.

If the funds are commingled in January, the total amount in the account as of July will count towards the resource level.

3. Funds exempted under Part IX.D.11 will retain the exemption as a resource for the full period over which they have been prorated as income, even if commingled with nonexempt funds.

Example

A self-employed farmer receives a \$1,000 payment that is prorated as income over 10 months. This money is deposited in the household's regular checking account with other nonexempt funds. Any portion of the payment that remains in the checking account will be exempt as a resource for the full 10-month period over which the income is prorated. After the 10-month period, any part of the payment remaining in the account with the nonexempt funds will count a resource.

4. Where a resource is exempt because of its use by or for a household member, the exemption will also apply when the resource is used by or for a disqualified person whose resources count as part of the household's resources. This could include the work-related equipment essential to the employment of an ineligible alien household member or disqualified person, as allowed under Part IX.D.4, or burial plots for ineligible alien or disqualified household members, as allowed under Part IX.D.5.

F. TRANSFER OF RESOURCES (7 CFR 273.8(i))

At the time of application, households must provide information about any resources transferred during the three-month period immediately preceding the date of application. The BPS must

assess any resource transfer by a household member or disqualified person whose resources count to the household. If resources have knowingly been transferred during this period to qualify or attempt to qualify for SNAP benefits, the household will be disqualified from participation in the program for up to one year from the date of discovery of the transfer.

Example

A client transferred resources on November 20 to be eligible for SNAP benefits. The household filed an application the following February 21. Since the transfer occurred more than three months before the application date, there would be no disqualification because of the transfer.

Disqualification will also apply if the household acquires resources after being certified and then knowingly transfers the resources to avoid going over the maximum resource limit.

The following transfers will not affect eligibility:

1. Resources that would not affect eligibility, e.g., exempt personal property such as furniture, or nonexempt funds, such as money that, when added to other household nonexempt resources, totals less at the time of transfer than the resource limit.
2. Resources transferred between members of the same SNAP household, including ineligible aliens and disqualified persons whose resources count to the household.
3. Resources transferred for reasons other than qualifying for SNAP benefits. For example, a parent placing funds into an educational trust fund.

If the BPS establishes that an applicant household knowingly transferred resources to qualify for or to attempt to qualify for SNAP benefits, the BPS must provide the household the *Notice of Action* to deny the application. The notice must explain the reason for denial and the length of the disqualification. The disqualification period will begin in the month of application. If the household is participating at the time the transfer is discovered, the BPS must send an *Advance Notice of Proposed Action* or *Notice of Action* to explain the reason for closure and length of disqualification. The disqualification period will be effective with the first allotment to be issued after the advance notice period has expired, unless the household has requested a fair hearing and continued benefits.

If the BPS learns that the person who transferred the resources that resulted in disqualification left the household, eligibility for remaining household members can be determined without regard to the rest of the disqualification period. The disqualification period will follow the member who improperly transferred the resources, however.

Example

A nine-month disqualification is imposed on January 3 for the period January through September. The household reapplies June 12, and the member who transferred a bank account is no longer a household member. Eligibility for the rest of the household can be evaluated from the date of the reapplication on June 12.

The length of the disqualification is based on the amount by which nonexempt transferred resources, when added to other nonexempt resources, exceed the allowable resource limit.

Example

A household has \$3,400 in a savings account. To become eligible for SNAP benefits, the household transferred \$1,500 from the bank account to someone outside the SNAP household. The resource limit for this household is \$3,000. The amount of the transferred resource used in determining the length of the disqualification period will be \$400.

The following chart is used to determine the disqualification period:

Amount in Excess of the Resource Limit	Period of Disqualification
\$.01 to \$249.99	1 month
\$250 to \$999.99	3 months
\$1000 to \$2999.99	6 months
\$3000 to \$4999.99	9 months
\$5000 or over	12 months

PART X INCOME DEDUCTIONS

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A. INCOME DEDUCTIONS (7 CFR 273.9(d))

Financial eligibility of a household is based on gross or net income, as described in Part XI.A. Benefit level is based on net income which is defined as the total of all countable income, both earned and unearned, after appropriate allowable deductions have been made.

In evaluating expenses toward the calculation of the net income, the household is given credit only for expenses for which a money payment is made or due to someone outside the household. Except for Low-Income Home Energy Assistance Program (LIHEAP) payments, deductions will not be allowed for expenses or the portion of expenses made through vendor payments or for which the household will be reimbursed. LIHEAP participants may have actual utility expenses considered or, **for households with an elderly or disabled member**, may have the utility standard applied even if the expenses are covered by fuel assistance vendor payments. Utility expenses reimbursed or paid through HUD or FmHA utility reimbursements are not deductible.

All households with income will be allowed the following deductions, if appropriate, in determining net income. The BPS must assess each potential deduction and use the allowable standard amounts unless the household elects to use actual amounts or is not entitled to use the standard. The BPS must also assess who has responsibility to pay expenses and whose income is used to pay to determine if the full expense or a prorated amount is used. If an eligible household member is responsible for an expense or pays an expense, the household is entitled to the full expense. If a disqualified household member is responsible for an expense or pays an expense, the expense may be subject to proration as allowed by Part 12.E.

1. Standard Deduction (7 CFR 273.9(d)(1))

Each household is entitled to a standard deduction from the total gross income of the household. The amount of the deduction is dependent on the number of eligible household members. To determine the standard deduction, household size must not include disqualified or ineligible members.

Household Size	Standard Deduction
1-3 members	\$209
4 members	\$223
5 members	\$261
6 or more members	\$299

2. Earned Income Deduction (7 CFR 273.9(d)(2))

Each household with countable earned income may have an earned income deduction. Twenty (20) percent of the countable gross earnings will be deducted.

The earned income deduction is not allowed when determining the amount over issued if the basis for the claim is because the household failed to report earned income timely.

3. Dependent Care Expense (7 CFR 273.9(d)(4))

Dependent care expenses are allowed as a deduction only if it is necessary for household members to accept or continue employment, seek employment, comply with employment and training requirements, attend training or pursue education that is preparatory for employment. The expense may be incurred for the care of a child or other dependent. An expense that could qualify as a dependent care expense or a medical expense may be allowed as either dependent care or medical, but not both.

See Part III.A for verification requirements of dependent care expenses. Verification is **required**. Acceptable forms of verification include a signed statement from the provider, receipts signed by the provider, or statements from agencies or organizations assisting with childcare expenses.

4. Shelter Expense (7 CFR 273.9(d)(5))

The cost of shelter is allowable after all other deductions have been determined. The BPS must add together all expenses that are part of the cost of shelter, except food, to arrive at a total shelter cost figure. That portion of the monthly shelter costs that exceeds 50 percent of the household's adjusted net income will be a deduction, up to **\$744** per month, except as noted below. The adjusted net income is determined by subtracting the standard deduction, earned income deduction, dependent care deduction, child support deduction, homeless shelter standard and medical deduction from the total gross income.

The allowable deduction for shelter may not exceed **\$744** except for households that contain a member who is 60 years of age or older or who is disabled, as defined in Definitions. Households with an elderly or disabled member may receive an excess shelter deduction that exceeds the shelter maximum allowed for other households. These households will receive the actual amount that exceeds half the adjusted net income.

In determining the amount to use as the cost of shelter, the following expenses will count unless vendor payments are made on a household's behalf, except as noted in item e. See Parts XI.F.3 and XIII.B for a discussion of vendor payments. Note the special provisions in section 7 for assessing shelter costs for homeless households.

- a. Rent, mortgage, loan payments, or other continuing charges that lead to ownership of a home, mobile home, or other type of shelter, are allowable. This includes second and/or third mortgages and condominium or association fees. It includes the initial cost of moving a mobile home from a dealer to a lot, along with any set-up charges at the lot. For a subsequent move of a mobile home, only the set-up costs at the new lot are allowable. Costs incurred by a tenant in lieu of full or partial rent are allowable rental costs, provided the arrangement is with the mutual agreement of the landlord.
- b. Real estate taxes or personal property taxes on mobile homes are allowable. Taxes on the contents are not allowable.

- c. Insurance premiums on the home structure are allowable. Separate costs for insuring furniture or personal belongings are not allowable. If insurance premiums on the home structure are combined with other costs that cannot be separated, the total premium is allowable.
- d. Repair costs that result from a fire or flood or a similar disaster are allowable, provided the household will not receive reimbursement or assistance from some other source such as insurance or private or public relief agencies. The disaster does not have to be a presidential declaration but can be a personal disaster, such as a fire damaging only one home.
- e. Utilities incurred separately and apart from the rent or mortgage cost are allowable. Actual direct utility costs may be used in determining shelter costs.

Households may be entitled to use a standard utility amount as its utility expense instead of its actual utility expenses. A standard utility allowance has been established based on the number of persons in the residence. The utility standard includes allowances for heat, electricity, gas, water, sewerage, septic tank maintenance fees, garbage collection and telephone costs. Households may use the standard utility allowance only if the household is responsible for an identifiable heating or cooling expense or an established percentage of an identifiable expense. A household may use the utility standard for a full year if the household incurs a heating or cooling expense at any point during the year or anticipates such an expense.

Recipients of Low-Income Home Energy Assistance payments may claim the utility standard, even if they do not incur direct utility costs, if:

- 1) they received energy assistance at the current residence **during the previous 12 months; and**
- 2) **the SNAP household contains a household member who is 60 years of age or older or is disabled, as outlined in Definitions.**

The current standard utility allowance amounts are:

Number of Persons	Utility Standard
1 - 3	\$375
4 or more	\$476

Multiple family units living in the same residence may have only one standard utility allowance for the residence, based on the total number of people in the residence. The BPS must divide the one utility standard among the units that contribute to meeting heating or cooling costs, regardless of whether each unit is applying for or receiving SNAP benefits. In these instances, each unit may use only its prorated share of the standard allowance, unless it uses its actual costs. The BPS may not prorate the standard allowance if the nonhousehold members are all excluded from the household because they are ineligible to receive SNAP benefits.

Example

A three-person SNAP household lives in a house with another person. The SNAP household and the other person each pay half of the heating costs. The SNAP household's standard utility allowance is **\$238**, i.e. **\$476** based on the total number of persons in the home (4 or more) divided by 2, the number of units contributing to heating costs. The SNAP household may opt to use **\$238** as its utility costs, or it may use its actual utility expense amount.

Examples

- 1) The SNAP household pays for electricity that the household needs to operate the oil furnace. Other persons in the home buy oil. The SNAP household is not entitled to the utility standard since there is no expense for the primary fuel source. The actual electric bill is allowable since this is a direct utility expense.
- 2) A SNAP household cuts its own wood. This wood is free, but the household incurs expenses for gas and oil for the chain saw. The household may not use the utility standard since the household does not incur an expense for the primary fuel source. The actual incidental expenses connected with obtaining the wood are not allowable since these are not direct utility expenses.

If a household incurs a utility expense, such as electricity or gas, that includes heating or cooling along with other uses, e.g., cooking or lights, the utility standard may still be used. If the household does not incur a separate expense for heating or cooling, it is not entitled to the utility standard unless it receives LIHEAP payments, **as stipulated above**. Actual costs for utilities incurred by households that are not entitled to the utility standard are allowable shelter expenses.

Households that have their utilities included in their rent, but who may, on occasion, be required to pay an excess utility charge, may not claim the utility standard unless they receive LIHEAP payments **as stipulated above**. Households that receive HUD or FmHA payments may use the utility standard if they are responsible for utility costs beyond the HUD or FmHA payment. Households that pay a flat amount, not a percentage, for utilities to the homeowner instead of the utility vendor may not use the utility allowance. Actual or anticipated amounts for these utility charges are allowable.

Examples

- 1) A household buys oil twice a year in November and February to heat the home. This household is entitled to use the utility standard for the full twelve months of the year.
- 2) A household lives in an apartment where heat is included in the rent. The household, however, uses an air conditioner in the summer and is responsible for the electric bill for the apartment. Since a cooling expense is incurred, the household is entitled to use the utility standard for the full twelve months of the year.

Each household must receive a thorough explanation of the options available in considering utility expenses. The household may switch between use of the standard and actual costs only at the time of certification. If a household moves while certified, the household may switch from one to the other. If the household initially chose to use actual utility costs but the utility standard was allowed because the household failed to declare costs or verify questionable information timely, the household may not switch to actual costs once the verification is provided.

- f. The utility standard includes the basic service fee for a telephone so a household that uses the utility standard may not also claim a separate telephone expense. For a household that uses actual utility expenses and who incurs an expense for basic telephone service, or has an established percentage of such an expense, the household must use a telephone standard of **\$54**, or the appropriate percentage of the standard.

The BPS must divide the telephone standard among households sharing the expense. A telephone expense is allowable even if the household is not entitled to any other utility allowance.

Example

Two SNAP units live together and each pays half of the telephone bill. The bill includes charges for basic service. Each household will receive half the telephone standard as its telephone expense.

- g. Initial installation fees charged by a telephone, utility, or septic tank company are allowed as an expense, over and above the cost of the actual utility. Initial installation fees are allowable even if the utility or phone standards are used. The household may choose to have the installation bill averaged over the months in the certification period or to have the bill assigned to the month received or due. If a payment or budget plan has been established, the expense may be allowed for each month in the payment plan.
- h. One-time deposits for utilities, telephones, housing, etc., will not count as shelter costs.
- i. Shelter expenses, as described above, include the costs for a home (owned or rented) that is temporarily unoccupied provided the household intends to return to the home. The home may be unoccupied because of employment, training, illness, or a natural disaster or loss. If the household has shelter expenses for both an occupied and unoccupied home, the household is entitled to only one utility or telephone standard.

The cost of shelter cannot be claimed if the vacated home is rented to someone else or if a rent-free occupant is claiming the cost of shelter for the home for SNAP purposes.

- j. Verification requirements for shelter expenses are addressed in Part III.A. Receipts or statements from the provider are sources of acceptable verification.

5. Medical Expenses (7 CFR 273.9(d)(3))

The cost of medical expenses incurred by elderly or disabled household members, excluding special diets, is allowed as a deduction for those households when the cost exceeds \$35 a month. If the cost is \$35 or less, no deduction is allowed. The \$35-threshold applies to the entire household and is not applied individually to the expenses of members who may be entitled to a deduction.

A medical standard deduction of **\$235** has been established. Households must verify that eligible members incur more than \$35 in allowable medical expenses per month to get a medical deduction of **\$200**. Households that incur more than \$235 in allowable medical expenses per month may opt out of using the medical standard deduction. These households may verify and claim all their medical expenses and have them evaluated as allowed by Part XIII.B.4. Households may switch between the medical standard deduction and actual costs only at the time of certification except when the household was not previously entitled to the standard. Once imposed, the medical standard deduction will remain in place for the balance of the certification period provided the household contains at least one elderly or disabled member who was part of the household at certification.

Persons who are 60 years of age or over or who are disabled, as described in Definitions, may be eligible for the medical deduction. An individual must be elderly or disabled when the medical expense is incurred. Spouses or other persons receiving benefits as a dependent of the eligible individual are not entitled to a medical deduction.

a. Allowable expenses include:

- 1) Medical and dental care, including psychotherapy and rehabilitation services provided by a licensed practitioner authorized by state law or other qualified health professional.
- 2) Hospitalization or outpatient treatment, nursing care, and nursing home care. Costs for persons who were household members immediately prior to entering a nursing home or hospital, will also be allowed.
- 3) Prescriptive drugs, when prescribed by a licensed or qualified practitioner, and other over-the-counter medication (including insulin, aspirin, antacids, etc.) which is approved by a licensed or qualified practitioner. Costs of medical supplies, sick room equipment (including rental), or other prescribed equipment are deductible.
- 4) Health and hospitalization insurance policy premiums. Costs of health and accident policies such as those payable in lump sum settlements for death
- 5) Medicare premiums related to coverage under Title XVIII of the Social Security Act and any cost-sharing or spend-down expenses incurred by Medicaid recipients.

- If a Medicaid application is pending when the SNAP benefit application is approved, the Medicare premium is allowed as a medical expense.
 - If a Medicaid application has already been approved when the SNAP benefit application is approved, the Medicare premium is not allowed as a medical expense once Medicaid begins paying the expense as verified through SOLQ-I or SVES.
- 6) Costs of dentures, hearing aids, and prosthetics.
- 7) Costs of securing and maintaining a Seeing Eye or hearing dog or other attendant animal as well as veterinarian bills and food for the animal. This excludes costs for emotional support animals.
- 8) Costs of eyeglasses prescribed by a physician skilled in eye disease or by an optometrist.
- 9) Reasonable costs of transportation and lodging to obtain medical treatment or services. Actual verified amounts may be used. If specific amounts cannot be verified, then the prevailing rate in the community or the state mileage allowance must be used.
- 10) Costs of maintaining an attendant, homemaker, home health aide, or childcare services or housekeeper, necessary due to age, infirmity, or illness. In addition, an amount equal to the one-person benefit allotment must be deducted if the household furnishes more than half of the attendant's meals. The benefit allotment that is in effect at the time of certification will be used and updated at the next recertification, if there has been an adjustment in benefit allotments.
- If a household incurs attendant care costs, as defined above, that qualify as both a medical deduction and dependent care deduction, the expense may be allowed as a medical expense or a dependent care expense, but not both.
- 11) Telephone fees for amplifiers and warning signals for disabled persons and costs of typewriter equipment for the hearing impaired. (These costs may not be entered as shelter costs.)

The expenses listed above are also allowable when incurred by a household member who subsequently dies if the expenses are the responsibility of the remaining household members.

b. Disallowed Expenses:

Only those costs listed above will be considered as a medical expense. Any portion of the cost that is reimbursable by insurance policies or covered by Medicaid will not

be given as a deduction until the household verifies the portion of the cost that is its responsibility.

Example

A household consists of one member who is 64 years old. An allowable medical expense of \$200 is incurred monthly. Insurance policies reimburse the household \$100 a month for the expense. Disallowing the first \$35 a month, the monthly medical deduction for this expense is \$65 if the household elects to use actual amounts instead of the medical standard deduction.

6. Homeless Shelter Allowance

Households in which all members are homeless, as defined in Definitions, are allowed a deduction for incurred or estimated shelter expenses. The homeless shelter standard is **\$198.99** per month. This standard is not calculated as part of the shelter expense deduction described in section 4 of this chapter.

To be eligible for the homeless shelter allowance, a household must incur or reasonably expect to incur shelter costs during a month. Homeless households that incur no shelter costs during the month and anticipate none are not eligible for this shelter allowance.

The BPS must accept the household's declaration of expenses unless the declaration is questionable. If the BPS determines that verification is needed but the household has difficulty in obtaining traditional types of verification of shelter costs, the BPS must use prudent judgement in determining if verification is adequate.

Example

A homeless individual claims to have incurred shelter costs for several nights at a hotel. The costs reported are reasonable. The BPS may accept this information as adequate and allow the household to use the shelter estimate.

No other shelter costs, including the utility standard or telephone standard, may be used if the homeless shelter allowance is used. The homeless shelter allowance also may not be used if the household claims shelter costs that exceed the allowance. Higher or other shelter costs must be handled as a part of the shelter expense deduction (Part X.A.4) in which case, the household may or may not receive an actual deduction.

B. VERIFICATION OF DEDUCTIONS (7 CFR 273.2(f)(3))

Deductible expenses must be verified. If obtaining the verification delays the household's certification, the BPS must advise the household that the eligibility and benefit level determination may be made without allowing a deduction for the unverified expenses. If the expense cannot be verified within 30 days of the date of application, the BPS must determine the household's eligibility and benefit level without providing a deduction for the unverified expense. If a household wants to claim actual utility costs but does not provide verification of its shelter expenses by the 30th day, the utility standard must be allowed if the household is entitled to it. The household is not entitled to restoration of lost benefits when expenses are not deducted because verification could not be obtained. If, however, the expense could not be verified within the thirty-day processing standard because the BPS failed to allow the household at least 10 days to provide the verification, lost benefits must be restored.

If a household would be ineligible without a deductible expense, the BPS must send the household the Notice of Action to extend the pending status of the case on the 30th day after the initial application or reapplication was filed. If the lack of verification is the fault of the household, the household will have an additional 30 days to take the required action. If eligible, the household is entitled to benefits only from the day the household provides the last verification or takes the last required action. (See Part II.G.2.). If the lack of verification is the fault of the local department of social services, and the household is eligible, the household is entitled to benefits retroactive to the month of application. (See Part II.G.3.). If a recertification application is filed, verification time frames at recertification (Part IV.C.4) will apply and the ability to extend the pending status of the application is not allowed.

PART XI	INCOME	
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A. INCOME ELIGIBILITY STANDARDS (7 CFR 273.9(a))

To be eligible for SNAP benefits, the countable gross monthly income of broad-based categorically eligible households may not exceed 200 percent of the gross income limit shown below. The countable gross monthly income of non-categorically eligible households may not exceed 130 percent of the gross monthly income limits shown below. Households with at least one member who is 60 years of age or over or with at least one member who is disabled, as described in Definitions must only meet the 100 percent net monthly income limits. This exception will also apply to a household with a member whose 60th birthday is in the month of application.

All households, except those that are categorically eligible, must be determined eligible based only on net income (gross income less allowable deductions listed in Part X.A). The maximum net income limits are shown below.

Federal Poverty Level (FPL) Gross and Net Income Eligibility Limits			
Household Size	200% FPL Gross Income Limit	130% FPL Gross Income Limit	100% FPL Net Income Limit
1	\$2,608	\$1,696	\$1,305
2	3,525	2,292	1,763
3	4,441	2,888	2,221
4	5,358	3,483	2,680
5	6,275	4,079	3,138
6	7,191	4,675	3,596
7	8,108	5,271	4,055
8	9,025	5,867	4,513
Each additional member	+\$916	+\$596	+\$459

Net income determines the amount of SNAP benefits all eligible households will receive. While categorically eligible households, excluding broad-based categorical eligibility, as defined in Part II.G.3, do not have to meet either the gross or net income eligibility standards, the net income limit will determine entitlement to an allotment even for these households.

B. COUNTABLE INCOME

Countable income is all household income, earned and unearned, from whatever source, excluding only that income specified in Part XI.F.

Income received by one person for another person or for multiple beneficiaries is considered the income of the person receiving it, unless the provisions of Part XI.G (earned income of several members combined into one payment) apply. Evaluate any income exclusions, such as third-party fund exclusion, according to Part XI.F.

When verification of income is required, the BPS must verify gross amounts and the rate and frequency (i.e., weekly, semi-monthly, etc.) of the income received. For income received more often than monthly, verify the payment cycle, i.e., the day the income is received.

C. EARNED INCOME (7 CFR 273.9(b)(1))

Earned income includes:

1. Wages and Salaries

All wages and salaries for services performed as an employee. This includes wages held by an employer at the employee's request and advances on wages, as discussed in Part XII.G. Gross wages are considered regardless of the amount and nature of deductions, unless any portion of the gross pay is excludable under Part XI.F or, if the gross amount reflects credit for employee benefits. In situations where benefits are reflected as credits and where the employee cannot elect to receive a cash payment, the amounts shown on the pay stub will not count as income. If an employee elects to have money withheld from the earnings to pay for employee benefits, that money must be counted as income.

Consider vacation pay as earned income if the employer still considers an individual as an employee. Consider sick pay as earned income if the payment to the employee is made directly from the employer or through the employer from insurance obtained by the employer. Consider sick pay as unearned income if the payment is made directly from an insurance company to the employee.

If an individual has terminated employment, consider severance pay and accumulated vacation and sick pay as earned income if the individual receives more than one installment. Severance and accumulated pay will be a lump sum resource if the individual receives only one payment. Laid-off employees are terminated employees for the purposes of this policy. If a laid-off employee opts not to withdraw vacation and/or sick pay, the value of such funds counts as an available resource.

Consider bonus pay as earned income.

2. Self-Employment Income

The gross income from a self-employment enterprise, including the total gain from the sale of any capital goods or equipment related to the business, excluding the cost of doing business. (See Part XII.A.) For self-employed households, the BPS must exclude the cost of doing business to determine the countable income.

Ownership of rental property is a self-employment enterprise; however, income derived from the rental property counts as earned income only if a household member actively manages the property for a minimum of 20 hours a week.

Payments from roomers and boarders count as earned self-employment income.

3. Training Allowances

Training allowances from vocational and rehabilitative programs recognized by federal, state or local governments when they do not constitute a reimbursement. (See Part XI.F.) These include, but are not limited to, vocational rehabilitation incentive payments.

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Income received by individuals who are participating in on-the-job training programs funded through the Workforce Innovation and Opportunity Act is considered earned income. This provision includes on-the-job training programs funded under the National and Community Services Act, Americorps, the Summer Youth Employment and Training Program, and the Youthbuild Program. This provision, however, does not apply to household members under 19 years of age who are under the parental control of another household member, regardless of school attendance and/or enrollment as discussed in Part XI.F.8. See also Part XI.F.11.d.

4. Payments under Title I of the Domestic Volunteer Service Act of 1973

Payments under Title I of the Domestic Volunteer Service Act of 1973 (VISTA, etc.) count as earned income unless they are excluded from consideration. See Part XI.F.11.c.

5. Payments to Day Care Providers

Payments to day care providers for meals served to children, other than their own, funded by the School Lunch Act will count as earned income to the provider. These payments do not count as reimbursement. See Part XII.A.7 for allowable business costs.

6. Jury Duty Pay

Jury duty pay is countable earned income unless it meets the infrequent/irregular income or reimbursement policy of Part XI.F.4 or F.6.

Use the following documents or records to verify the earned income of the household. The documents are often available from the applicant.

Pay stubs	Pay envelopes
Employee's W-2 Form	Wage tax receipts
State or federal income tax return	Self-employment bookkeeping records
Sales and expenditure records	

Verification from other sources might include:

Employer's wage records	VEC Office
Statement from the employer	State Income Tax Bureau

D. SPECIAL INCOME OF MILITARY PERSONNEL (FNS Policy Memos 81-1, 81-5, and 81-13 and Admin Notice A-24-91)

Many members of the military receive special allowances that count in determining the eligibility and the benefit amount of households containing such persons. Military personnel may receive the following allowances:

1. Basic Allowance for Housing (BAH)

The BAH is considered as earned income for SNAP purposes. The household is also entitled to a shelter deduction. In some instances, the BAH may be listed as income and then all or a portion of the amount deducted on the leave and earnings statement because he or she lives on the base. Use the amount listed to compute the SNAP shelter deduction.

2. Basic Allowance for Subsistence (BAS)

The BAS is paid daily in cash or three months in advance by check. The BAS is not considered a part of the wages. The BAS will appear on the leave and earnings statement monthly. The BAS is considered as earned income for SNAP purposes.

3. Clothing Maintenance Allowance (CMA)

The CMA is excluded as income for SNAP purposes. The payment is counted as a reimbursement for the job-related expense of uniforms under Part XI.F.6.

Any amount received by or made available to household members for deployment or service in a combat zone will not count as income for SNAP purposes unless the payment was received before the deployment. This exclusion includes items such as, but not limited to, incentive pay for hazardous duty, special pay for imminent duty or hostile fire duty or certain reenlistment bonuses, or special pay for certain occupational or educational skills.

E. UNEARNED INCOME (7 CFR 273.9(b)(2))

Unearned income includes:

1. Assistance Payments

Assistance payments from federal, federally aided, or state-local public assistance programs, based on need. Examples are:

- a. Temporary Assistance to Needy Families (TANF)
Note that payments received through the Diversionary Assistance Program as a lump sum are excluded as income. See Part XI.F.9.
- b. General Relief (GR)
- c. Supplemental Security Income (SSI)

Income from these assistance programs will count as unearned income even if provided in the form of a vendor payment, unless the provisions of Part XI.F.3 apply that prohibit considering certain vendor payments as countable income. Assistance payments from programs that require the actual performance of work without compensation, other than the assistance payments themselves, count as unearned income.

2. Annuities and Pensions

Annuities and pensions, such as:

- a. Retirement benefits
- b. Veteran's benefits
- c. Disability benefits
- d. Old age, survivors, and Social Security benefits (OASDI)

3. Workmen's or Unemployment Compensation

4. Strike Benefits

5. Foster Care Payments

Foster care payments made to a household on behalf of a legally assigned individual in foster care. Note: Foster care payments will be considered the income of the foster family if the household elects to count the foster individual as a household member for SNAP purposes. Therefore, if the foster person is excluded from the household under the provisions of Part VI.A.3, the payment is not considered income to the rest of the household.

6. Certain Rental Property Income

Income derived from rental property in which a household member is not actively engaged in the management of the property at least an average of 20 hours a week. Except for the fact that the earned income deduction (Part XIII.A.2) does not apply, treat this income the same as a self-employment enterprise. (See Part XII.A.)

7. Support and Alimony Payments

Support and alimony payments made directly to the household from a nonhousehold member. This includes payments redirected to the household from the Division of Child Support Enforcement (DCSE). Payments received by or for TANF recipients that the household should send to the DCSE as a condition of TANF eligibility will not count even if the household fails to redirect the payments.

8. Dividends, Royalties and Interest

Payments received in the form of dividends or royalties are countable. Interest payments will count as income if the amount averages more than \$10.00 per month.

9. Money Withdrawn from Trust Funds or Improper IDA Withdrawals

Money withdrawn or dividends that are or that the household could receive from trust funds do not count as a resource under Part IX.E.12. Trust withdrawals will count as income in the month received unless they are otherwise exempt. Dividends that the household has the option of either receiving as income or reinvesting in the trust will count as income in the month they become available to the household unless they are otherwise exempt.

Withdrawals from an individual development account (IDA) will not count as income if the withdrawal is for pursuing post-secondary education, purchasing a home, starting a business or as an approved household emergency. All other withdrawals from the IDA will count as unearned income in the month of the withdrawal.

10. Income Available to Sponsored Aliens (7 CFR 273.9(b)(4); 7 CFR 273.11(h)(2)(iv))

For households that contain sponsored aliens (as defined in Part XII.C.), unearned income will also include that amount of the monthly income of an alien's sponsor and the sponsor's spouse (if living with the sponsor) deemed to be that of the alien according to the procedures in Part XII.C.3 and 5. Income deeming applies unless the sponsored alien is otherwise exempt from this provision as allowed in Part XII.C.1.

Actual money paid to the alien by the sponsor or the sponsor's spouse does not count as income to the alien unless the amount paid exceeds the amount attributed to the sponsor. See Part XII.C.4. The amount paid that exceeds the amount attributed will count as income to the alien in addition to the amount attributed to the alien.

11. Funds Deposited into Joint Accounts

Funds deposited into a joint bank account by a nonhousehold member count as income to the household, to the extent the deposited funds are intended for household use. The BPS must use this policy only when deposited funds are intended for household use.

In situations where a SNAP household member's name is on a joint account with a nonhousehold member and the funds deposited by the nonhousehold member are clearly not intended for the household member's use, no income to the household will be counted. The BPS must evaluate the account balance as a resource to the household as allowed by Part IX. C.1.

The BPS must verify the household member's statement concerning the amount of money available as income. If all the money deposited into the joint account is intended for the household's use, then verification of the amount deposited would suffice. When this is not the case however, it will be necessary to verify the amount through the nonhousehold member.

If the statements of the household and nonhousehold member differ regarding the amount of money intended for the household's use, the BPS must resolve the discrepancy and document the case record.

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12. Other Money Payments

All other direct money payments from any source that can be construed to be a gain or benefit to the SNAP household, other than monetary gifts for an identifiable one-time occasion or normal annual occasion.

In verifying unearned income of the household, the following documents or records are generally available through the applicant:

RSDI award letter (note that changes in benefits will not always be reflected)	Benefit payment check
Unemployment Compensation award letter	Pension award notice
Veterans Administration award notice	Correspondence on benefits
Income tax records	Railroad Retirement award letter
Support and alimony payments evidenced by court order, divorce or separation papers, contribution check	

Verification from other sources include:

Social Security (Form SSA-1610)	Social Security District Office files
VEC - Unemployment Compensation Section	Employer's record
Union records	Workers Compensation records
Veterans Administration	Insurance company records
Tax records	Railroad Retirement Board records
PA case file	

F. EXCLUDED INCOME (7 CFR 273.9(b)(5); 273.9(c))

The following income will not count in determining eligibility or benefit level:

1. Repayment of a Prior Overpayment

Repayment of a prior overpayment provided that the income was not excludable elsewhere in this chapter at the time of the overpayment. This includes:

- a. Money withheld from an assistance payment, from earned income, or from any other income source to repay a prior overpayment received from that income source.
- b. Money received from any income sources that the household voluntarily or involuntarily returns to repay a prior overpayment received from that income source.

Example

A TANF recipient is entitled to a grant of \$225.00 but the amount of

the actual payment is \$175.00. The agency withheld \$50.00 to repay a prior overpayment. The overpayment was not the result of the household's failure to comply with the TANF program requirements. The net amount received by the TANF recipient is the amount that will count as income for SNAP purposes.

However, money withheld from an assistance program that results from the household's failure to comply with the requirements of the other program will count as income as specified in Part XII.D.

2. Payments Received by the Division of Child Support Enforcement (DCSE)

Payments received and kept by the DCSE on behalf of TANF recipients will not count as income. Payments redirected to households by the DCSE or supplemented through the TANF Program will count as income. Payments received by TANF recipients that the recipient must direct to DCSE as a condition of TANF eligibility will not count as income even if the household keeps the payments.

3. In-Kind Benefits and Vendor Payments

In-kind benefits and vendor payments are any gains or benefits that are not in the form of money payable directly to the household.

a. In-Kind Benefits

In-kind benefits are benefits for which no monetary payment occurs on behalf of the household. These benefits include meals, clothing, housing or produce from a garden.

b. Vendor Payments

A vendor payment is a money payment made on behalf of a household by a person or organization outside of the household to a service provider or creditor of the household. Vendor payments made to a third party on behalf of the household are included or excluded as income as described below:

1. PA vendor payments, excluding GR vendor payments

Vendor payments from PA programs, other than GR, are excluded as income if they are made for:

- a. Medical assistance;
- b. Childcare assistance;
- c. Energy assistance;
- d. Emergency assistance;

- e. Special and emergency assistance, not specifically excluded by other provisions of this section, made over and above the normal grant; or
- f. Emergency TANF vendor payments on behalf of a migrant or seasonal farm worker household while the household is in the job stream.

2. GR Vendor Payments

Except for some vendor payments for housing, GR vendor payments do not count as income. A housing vendor payment will count as income unless the payment is for:

- a. Utility costs;
- b. Energy assistance;
- c. Housing assistance from a state or local housing authority;
- d. Special and emergency assistance, not specifically excluded by other provisions of this section, made over and above the normal grant; or
- e. Emergency GR vendor payments on behalf of a migrant or seasonal farm worker household while the household is in the job stream.

3. HUD Vendor Payments

Rent or mortgage payments made by the Department of Housing and Urban Development (HUD) to landlords or mortgagees are excluded. This includes TANF payments for housing made through HUD.

4. Educational Assistance Vendor Payments

Educational assistance paid on behalf of households for living expenses are excluded.

5. Vendor Payments that are Reimbursements

Vendor payments that are also in the form of reimbursements are excluded.

6. Demonstration Project Payments

In-kind or vendor payments that would normally not count as income, but which are converted, in whole or in part, to a direct cash payment under a federally authorized demonstration project or a waiver of federal law provisions are excluded.

7. Other Third-Party Payments

Money which is legally obligated and otherwise payable to the household must be counted as income and not excluded as vendor payments when they are diverted to a third party by the provider of the payment for a household expense. Court-ordered support or alimony payments and wages are examples of payments that will count as income regardless of diverted payments to third parties.

4. Infrequent or Irregular Income

Any income in the certification period that is received too infrequently or irregularly to be reasonably anticipated, but which is not more than \$30 in a calendar quarter. This may include interest payments on bank accounts or other financial instruments if the average monthly payment is less than \$10.00 per month.

5. Loans

All loans. The loan may be from a private individual as well as from a commercial institution. Verify that money received by the household is a loan if circumstances are questionable as per Part III.A.2. When verifying that income is exempt as a loan, a legally binding agreement is not required. A simple statement of both parties that indicates that the payment is a loan and that the household must repay the loan will be sufficient verification. If the household receives payments on a recurrent or regular basis from the same source however, but claims the payments are loans, the BPS may also require that the lender provide a statement that addresses that repayments are being made or that payments will be made according to an established repayment schedule.

6. Reimbursements

Reimbursement on past or future expenses, to the extent that:

- a. They do not exceed actual expenses.
- b. They do not represent a gain or benefit to the household.

Reimbursements for normal household living expenses, such as rent or mortgage, personal clothing, or food eaten at home are a gain or benefit, and, therefore, are not excluded. To exclude this money, these payments must be for an identified expense, other than normal living expenses, and the recipient must use the money for the purpose intended.

When a reimbursement covers multiple expenses, including a flat allowance, it is not necessary to identify each expense separately if none of the reimbursement covers normal living expenses.

The amount by which a reimbursement exceeds the actual incurred expense will count as income. It is not necessary to consider whether reimbursements exceed actual expenses

unless the provider or the household indicates the amount is excessive. This applies to anticipated expenses as well as past expenses for which reimbursement covers.

Jury duty pay may count as a reimbursement if it meets the criteria of this section.

Examples of reimbursements that do not represent a gain or benefit to the household are:

- a. Reimbursement or flat allowances for job or training related expenses, such as:
 - 1) Travel
 - 2) Per diem
 - 3) Uniforms
 - 4) Transportation to and from the job or training site, including reimbursements for the travel expenses incurred by migrant workers.
- b. Reimbursements for out-of-pocket expenses of volunteers incurred in the course of their work.
- c. Medical reimbursements.
- d. Dependent care reimbursements.
- e. Reimbursements received by households to pay for services provided by Title XX of the Social Security Act.

7. Third Party Funds

Monies received and used for the care and maintenance of a third-party beneficiary who is not a household member. If the intended beneficiaries of a single payment are both household and nonhousehold members, any identifiable portion of the payment intended and used for the care and maintenance of the nonhousehold member will not count. If the nonhousehold member's portion cannot be readily identified, the payment will be evenly prorated among intended beneficiaries and the exclusion applied to the nonhousehold member's pro rata share or the amount used for the nonhousehold member's care and maintenance, whichever is less. The term nonhousehold member refers both to persons residing with the SNAP household but considered nonhousehold members according to the provisions of Part VI.C and persons who do not reside with the SNAP household.

Examples

- a. Ms. X is payee for Social Security benefits for two children who do not live with her. The check totals \$200. Ms. X gives the children's guardian \$100. In addition, she deposits \$25 in a savings account for the children and spends the remaining \$75 on items for the children.

Ms. X has no income assigned from this source. The BPS must count \$200 to the children's household. If Ms. X could not account for any portion of the \$200, that portion would count as income to her.

- b. Ms. Y receives child support for her two children. One child does not live with her. The father sends \$200 (\$100 prorated for each child). Ms. Y sends \$150 to the child who is not in her home.

The income for Ms. Y's household is \$100. The second child's income is \$150 (\$100 child support and a contribution of \$50 from the mother).

- c. Ms. Z and her four children receive a TANF check of \$300. The oldest child is in Job Corps in another city, so the SNAP unit excludes this child. Ms. Z sends the child \$50 a month from the TANF check to cover his living expenses.

The child's prorated share of the TANF check is \$300 divided by 5 = \$60. The mother sends \$50. The lesser amount, \$50, is excluded income in the SNAP calculation.

- d. Household A requests the inclusion of children who reside in Household B part of the month. A member of Household A pays child support to Household B for one or more of these children. Household B uses that income to pay household and the children's personal expenses. The child support will not count as income to Household A but would count toward Household B if that household applies for SNAP benefits.

8. Earnings of Children

The earned income of children who are under age 18 and who attend elementary or high school, or who attend GED classes that are operated, supervised, or recognized by the local school board are excluded. This exclusion also applies to participants of elementary or high school level home-school programs that are approved by the local school superintendent as meeting the state's home-school law. The children must also be:

- a. Certified with a natural, adoptive or step-parent, or
- b. Under the control of a household member other than a parent, as defined in Part VI.A.2.b.

This exclusion will continue to apply during temporary interruptions in school attendance due to semester or vacation breaks, provided the child's enrollment will resume following the break. If the child's earnings or amount of work performed cannot be differentiated from that of other household members, the total earnings must be divided equally among the working members and the child's pro rata share excluded.

This exclusion will end the month following the month in which the child turns 18 and the money becomes countable.

9. Lump Sum Payments

Monies received in the form of a nonrecurring lump sum payment, including but not limited to:

- a. Income tax refunds, rebates or credits;
- b. Retroactive lump sum Social Security, public assistance, Railroad Retirement benefits or other payments;
- c. Lump sum insurance settlements;
- d. Refunds of security deposits on rental property or utilities.
- e. Accumulated vacation, sick, or severance pay of terminated employees received in a lump sum;
- f. Gambling winnings;
- g. Monetary gifts for identifiable one-time occasions or normal annual occasions; and
- h. Retroactive SSI payments even when received in multiple installments.

These payments will count as resources in the month received unless specifically excluded from consideration as a resource by other federal laws. The fact that the household or agency can anticipate a lump sum payment does not affect the exclusion as income.

Irregular unemployment compensation benefits will not count as lump sum payments although they may include amounts intended to cover prior periods.

Irregular support payments generally will not count as lump sum payments. The TANF disregarded support payment received for a prior period and support payments made through one-time payments such as the withholding of federal or state tax refunds will count as a lump sum resource, however. The disregarded incentive support payment will be for a prior period if the entitlement date is two or more months prior to the check date. This exclusion does not include the TANF monthly supplement payment received for the prior month.

10. Self-Employment Expenses

The cost of producing self-employment income. The procedures for computing the cost of producing self-employment income are described in Part XII.A.5 and 9.

11. Exclusion by Law

Income specifically excluded by federal law from consideration as income in determining SNAP eligibility or benefits. This includes:

- a. Reimbursements from the Uniform Relocation Assistance and Real Property Acquisition Policy Act of 1970 (P.L. 91-646, Section 216).
- b. All compensation received under the Alaska Native Claims Settlement Act and amendments (P.L. 92-203 and 100-241).
- c. Payments to volunteers under programs covered by the Domestic Volunteer Services Act of 1973, as amended (P.L. 93-113). This includes:
 - Title I - Payments to VISTA volunteers if the volunteers were receiving SNAP benefits or public assistance when they joined the Title I program. This also includes payments to VISTA volunteers if the payment is less than the federal minimum wage.
 - Title II - This includes the Retired Senior Volunteer Program, Foster Grandparents, and the Senior Companion Program.
- d. Payments from programs funded in whole or in part under the Workforce Innovation and Opportunity Act (WIOA), except for on-the-job training programs funded through the WIOA. Payments from on-the-job training programs under this section are considered countable earned income, except for persons under 19 who are under parental control of a household member. For such individuals, the on-the-job WIOA payments are excluded.

This exclusion includes projects conducted under the National and Community Services Act, Americorps, and the Summer Youth Employment and Training Program, as if the projects were conducted under the WIOA. Payments made under the Youthbuild Program through the Housing and Community Development Act must also be treated like WIOA payments (P.L. 97-300, 99-198, 101-610, 102-367, 102-550).

- e. Payments from the Community Service Employment Program under Title V of the Older Americans Act (P.L. 100-175). Some organizations that receive Title V funds are:
 - Experience Works (formerly Green Thumb)
 - National Council on Aging
 - National Council on Black Aging
 - American Association of Retired Persons
 - U.S. Forest Service
 - National Association for Spanish Speaking Elderly

- National Urban League
- National Council of Senior Citizens
- f. Payments from private nonprofit charitable organizations, not more than \$300 per fiscal quarter, which are not already excluded as a lump sum resource. Any amount over the \$300 limit is counted as unearned income (P.L. 100-232).
- g. Payments under the Wartime Relocation of Civilians Act to certain U.S. citizens of Japanese ancestry and resident Japanese aliens and certain Aleuts (P.L. 100-383).
- h. Payments from the Agent Orange Settlement Fund or any other fund established for settlement of Agent Orange product liability litigation (P.L. 101-201 and P.L. 101-239.)

Payments to veterans with a service-connected disability resulting from Agent Orange exposure are countable (P.L. 102-4).
- i. Payments under the Disaster Relief Act of 1974, as amended, and the Disaster Relief and Emergency Assistance amendments of 1988. The President must declare the event a federal disaster or emergency. The exclusion applies to federal payments and comparable disaster assistance provided by States, local governments and disaster assistance organizations (P.L. 100-707).

Payments through the Federal Emergency Management Agency (FEMA) to property owners under the National Flood Insurance Act of 1968 to reduce risks of flood damage are excluded.

Most payments from FEMA are excluded, but payments made when there is no declared disaster or emergency, such as rent assistance for the homeless household, are not excluded.
- j. The value of any childcare provided, arranged, or reimbursed under the Social Security Act through the block grant childcare program (Section 6585, P.L. 102-586, as amended).
- k. Earned income tax credits (P.L. 101-508).
- l. Salary reductions for military personnel which are used to fund the GI bill (P.L. 99-576).
- m. The following payments to Indian tribes:
 - Income from certain submarginal land of the U.S. which is held in trust for certain Indian tribes (P.L. 94-114, Section 6).
 - Income from the disposition of funds to the Grand River Band of Ottawa Indians (P.L. 94-540).

- Payments by the Indian Claims Commission to the Confederated Tribes and Bands of Yakima Indian Nation and the Apache Tribe of the Mescalero Reservation (P.L. 95-433, Section 2).
 - Payments from the Maine Indian Claims Settlement Act of 1980 to the Passamaquoddy Tribe, the Penobscot Nation, and the Houlton Band of Maliseet (P.L. 96-420, Section 9c).
 - Payments of relocation assistance to members of the Navajo and Hopi Tribes (P.L. 93-531, Section 22).
 - Per capita payments of up to \$2,000 per calendar year under the Indian Judgment Fund Act as amended (P.L. 93-134 and 97-458).
 - Payments to the Chippewa Tribes: Turtle Mountain, Red Lake, Mississippi, Lake Superior, Saginaw, or White Earth (P.L. 97-403, 98-123, 99-146, 99-264, 99-346, and 99-377).
 - Payments to the Blackfeet, Grosventre, and Papago Tribes (P.L. 97-408).
 - Payments to the Assiniboine Tribes (P.L. 98-124, Section 5 and 97-408).
 - Payments to the Seneca Nation (P.L. 101-503).
 - Payments to the Puyallup Tribe (P.L. 101-41).
 - Payments to the Sac and Fox Tribes (P.L. 94-189).
 - Payments, except for per capita payments over \$2000, to the Seminole Nation of Oklahoma, the Seminole Tribe of Florida, the Miccosukee Tribe of Florida, and the independent Seminole Tribe of Florida (P.L. 101-277).
 - Payments made under the Confederated Tribes of the Colville Reservation Grand Coulee Dam Settlement Act (P.L. 103-436).
- n. Payments under the Radiation Exposure Compensation Act (P.L. 101-426).
- o. Contributions of an SSI recipient into a Plan for Achieving Self Support (PASS) account (PL 102-237).
- p. Payments for meals for children or adults on whose behalf the payment is made through the Child and Adult Care Food Program, Section 12(a) of the School Lunch Act.
- q. Payments to individuals because of their status as victims of Nazi persecution (P.L. 103-286).

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- r. Payments through the Department of Veteran Affairs to children of Vietnam veterans who are born with congenital spina bifida and payments to children of female Vietnam veterans who are born with certain birth defects (P.L. 104-204 and P.L. 106-419).
- s. Money contributed to Achieving a Better Life Experience (ABLE) accounts or money distributed from such accounts for disability-related expenses are excluded as income. ABLE accounts are set up for persons determined to be disabled before age 26.

12. Government Subsidies for Housing and Energy/Utility Payments

Payments or allowances made for housing, energy assistance or utility payments under any federal, state or local government program will not count. This includes payments received from the Low-Income Home Energy Assistance Program (Virginia Energy Assistance Program), HUD and FmHA utility payments.

13. Shared Shelter Arrangements

In some situations, SNAP households may share shelter expenses with others. Money may exchange hands between the units to facilitate bill paying. This exchange of money for the purposes of bill paying in a shared shelter arrangement is not considered income to the person receiving it. Each household is entitled to its share of the shelter expenses.

Allow the household to describe/define the arrangements. Allow each household to claim its portion of the shelter costs if the arrangement is for the purpose of splitting living costs as opposed to a rental arrangement where one household elects to charge another household for shelter costs.

Note: This policy does not replace the roomer/boarder and rental property situations.

14. Funds Deposited in an Individual Development Account (IDA) or HUD Escrow Account

Money deposited in an IDA on behalf of a household member will not count as income nor money deposited in an escrow account established by HUD.

15. VIEW Supportive Services Payments

Payments made directly or indirectly to household members for supportive services through VIEW will not count as income. This exclusion does not include VIEW Transitional Payments.

16. Educational Benefits

Money received for educational purposes. These payments include, among others, scholarships, grants, educational loans, veteran's educational benefits, and work-study.

17. Legally Obligated Child Support Payments

Child support payments paid by a household member to an individual or agency outside the household are allowable as an income exclusion. Payments to a third party on behalf of a child, including payments to obtain health insurance for the child, in accordance with the support order, will also be included in the income exclusion. An income exclusion for amounts paid toward arrearages are allowable. Administrative fees charged by an employer to collect support through wages are allowable.

The legal obligation to pay child support, the amount of support obligated, and the amount of support actually paid must be verified before the income exclusion is allowed. The allowable income exclusion may not exceed the monthly obligated amount unless the amount paid includes an amount in arrears.

The child support exclusion may not include alimony or spousal support payments made to or for a nonhousehold member.

G. INCOME OF EXCLUDED HOUSEHOLD MEMBERS (7 CFR 273.9(b)(3); 273.11(d))

Individual household members may be disqualified from receiving SNAP benefits or may be ineligible to participate. See Part VI.C for a discussion of nonhousehold members. See Part XII.E for a discussion of how to handle the income of a disqualified household member to the remaining members.

For excluded household members who are ineligible rather than disqualified, such as ineligible students, the income of the ineligible member is not considered available to the household. Any cash payments from the ineligible member to the household must be considered income under the normal income standards described in this manual. If the household shares deductible expenses with the ineligible member, only the amount actually paid or contributed by the eligible members is allowed as an expense. If these payments or contributions cannot be differentiated, the expenses must be prorated evenly among the persons paying or contributing to the expense and only the eligible members' pro rata share deducted.

When the earned income of one or more household members and the earned income of an ineligible member are combined into one wage, the income of the household members must be determined as follows:

- If the household's share can be identified, count that portion due to the household as earned income.
- If the household's share is not identifiable, prorate the earned income among those it was intended to cover and count the prorated portion to the household.

PART XII SPECIAL INCOME DETERMINATIONS

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A. SELF-EMPLOYMENT INCOME

1. Definition

Self-employment income includes:

- a. The total gross income from a self-employment enterprise. Self-employment income also includes the total gain from the sale of any capital goods or equipment related to the business.
- b. Farm income. Income from farming will be that income derived from activities such as:
 - 1) the production and sale of crops and livestock for food;
 - 2) the raising of livestock to produce items such as eggs, wool, milk, etc.; and
 - 3) the production and sale of tobacco, cotton and other non-food crops.
- c. Payments from roomers and boarders.
- d. Income from rental property. (See Part XI.C.2 and E.6.)

The BPS must assess the business structure of self-employment arrangements to determine if the business is incorporated and the number of business owners. Income from business arrangements that are not incorporated must be calculated as described in this chapter and divided over the number of business owners. Income from business arrangements that are incorporated must be handled as wages/salaries (Part XI.C.1), not self-employment income. Note that limited liability companies (LLC) are not incorporated so the income is considered as self-employment. See Part IX.C.3 for a discussion of business resource assessments for SNAP purposes.

2. Averaging of Self-Employment Income (7 CFR 273.11(a))

All self-employment income is calculated in the same manner described below, except income from boarders not residing in a commercial boarding house. Instructions for computing this type of income are described in Part XII.B.

- a. Self-employment income, which represents a household's annual support, must be annualized over a 12-month period, even if the income is received in a shorter period. For example, income from a farmer's crop that represents the farmer's annual support must be averaged over a 12-month period, even though the income is received in a shorter time frame. In addition, self-employment income that represents a household's annual support must be annualized even if the household has income from other sources.

Note: It may be difficult to determine if self-employment income represents a household's annual support when the household has income from other sources. Consider other factors, in addition to the household's statement, to indicate how long the household could sustain itself on such income. Factors include, but are not limited to, the previous year's business and personal expenses, tax records, anticipated expenses for the current year, income expected to be received from other sources during the coming year, and so on. These factors, when compared with the income from seasonal self-employment, should provide a basis for determining how long the income is intended to support the household.

For example, if the previous year's expenses were proportionate to the household's income from self-employment, it could be an indication that the income would sustain the household for a year; therefore, the household's income should be annualized. If expenses were not proportionate with the income, it might be determined that such income could not sustain the household for a year; therefore, income should be averaged over the period of time the income is intended to cover.

- b. Self-employment income received on a monthly basis but representing a household's annual support must normally be averaged over a 12-month period. Examples of this type of self-employment includes most small businesses, such as grocers, or some farmers. If the averaged amount does not accurately reflect the household's true monthly circumstances because of a substantial increase or decrease in business, the self-employment income must be calculated based on anticipated earnings.
- c. Self-employment income that does not represent a household's annual support must be averaged over the period of time the income is intended to cover. This type of seasonal self-employment includes vendors who receive their income in the summer or during the tourist season and supplement it through another source during the rest of the year.
- d. Households with newly formed enterprises that have been in existence less than a year must have their self-employment income averaged over the amount of time the business has been in operation, and the monthly amount projected for the coming year. If the business has been in operation for such a short time that there is insufficient information to make a reasonable projection, a certification period should be assigned which allows for a timely review of the household's circumstances.

If a household farming for the first year has not yet received its first income, or an established farming household has not yet realized a change in income due to a change in the amount or type of crops raised, the BPS should not anticipate the amount of the expected income from the new crop when determining the household's income.

3. Determining Monthly Income from Self-Employment (7CFR 273.11(a)(2))

- a. For the period over which self-employment income is determined, the BPS must:
 - 1) Add all gross self-employment income, including capital gains, for the period of time over which income is determined.
 - 2) Subtract the cost of producing the self-employment income (See Part XII.A.5.)
 - 3) Divide the remaining self-employment income by the number of months over which the income will be averaged.
- b. When self-employment income is not averaged but is calculated on an anticipated basis, the BPS must:
 - 1) Determine any capital gains the household anticipates receiving during the period over which the income is averaged which is likely to be the certification period.
 - 2) Divide the amount by 12 (use this amount in successive certification periods during the next 12 months unless the anticipated amount of capital gains changes. If this should occur, a new average monthly amount must be calculated.)
 - 3) Add anticipated monthly amount of capital gains to anticipated monthly self-employment income.
 - 4) Subtract the cost of producing the self-employment income. The cost of producing the self-employment income will be calculated by anticipating the monthly allowable costs of producing the income.

If obtaining verification of the cost of doing business will delay the household's certification, the BPS must advise the household that the household's eligibility and benefit level may be determined without providing a deduction for these costs. If these costs or a portion of them cannot be verified within 30 days of the date of application, the BPS must determine the household's eligibility and benefit level without providing a deduction for the unverified portion. The household must be given at least 10 days to provide the verification. For initial applications and reapplications, if the household would be ineligible unless these unverified costs are allowed, the household will have an additional 30 days to take the required action. Action must be taken on recertification applications as allowed by the verification time frames described in Part IV.C.4.

One or more payments to farmers from the Disaster Assistance Act of 1988 must be counted as earned income. These payments, made to farmers who are adversely affected by a drought, are given for crop losses or to buy feed grain. This income is considered a replacement for income lost because of a drought, and for self-employed farmers, the

income must be processed using normal annualizing procedures for self-employment income. Since the payment is counted as income, it is excluded as a resource

4. Capital Gains (7 CFR 273.11(a)(3))

The proceeds from the sale of capital goods or equipment are calculated in the same manner as a capital gain for federal income tax purposes. Even if only 50% of the proceeds from the sale of capital goods is taxed, the BPS must count the full amount of the capital gain as income for SNAP purposes.

Example

Farmer A purchased a tractor for \$3,000. Over a period of 10 years, he claimed \$3,000 in depreciation on the tractor. After 10 years, he sold the tractor for \$1,000. For income tax purposes, the transaction appears as follows:

Purchase price		\$3,000
Depreciation claim	<u>3,000</u>	
Purchase base		0
Sale price		\$1,000
Reported as gross		<u>x 50%</u>
Taxable income		\$ 500

For SNAP purposes, the entire proceeds or \$1,000 would be included as gross income.

5. Allowable Costs of Producing Self-Employment Income (7 CFR 271.11(a)(4))

Allowable costs of producing self-employment income include, but are not limited to, the following:

- a. the identifiable costs of labor, stock, raw material, seed and fertilizer.
- b. payments on the principal of the purchase price of income producing real estate and capital assets, equipment, machinery and other durable goods or on the principal for improvements to real estate.
- c. interest paid to purchase income producing property, capital assets, equipment, machinery, and other durable goods.
- d. insurance premiums paid on income producing property.
- e. taxes paid on income producing property.
- f. costs of repairs to property needed for general maintenance.
- g. identifiable shelter costs needed for the business enterprise.

For households whose mortgage payments represent an investment in the household's residence as well as an investment in income producing property, the mortgage payment, interest, and taxes will be deductible only as part of the household's shelter costs and not as a cost of producing income. If the household can document, however, that costs on that portion of the home used in the self-employment enterprise are separate and identifiable, payments on the mortgage principal, taxes, interest, and other identifiable costs may be deducted as a cost of doing business.

6. Costs Not Allowed (7 CFR 273.11(a)(4)(ii))

The following items are not deductible as a cost of doing business:

- a. net losses from previous periods.
- b. federal, state, and local income taxes.
- c. money set aside for retirement purposes.
- d. other work-related personal expenses, such as transportation to and from work.
- e. depreciation.

NOTE: "b", "c", and "d" are included in the 20% earned income deduction.

7. Allowable Costs of Producing Income for Day Care Providers

When day care is provided in the home of a member of one household to children other than those living in the same SNAP household, an allowance must be made for the cost of meals and snacks that are provided. The allowance is as follows, unless the provider documents actual costs that exceed these amounts:

Breakfast - **\$1.70** per meal; Lunch or Supper - **\$3.22** per meal; Snacks - **\$.96** per meal.

Money paid to day care providers under Section 12 of the School Lunch Act to serve meals to children, other than their own, is countable. Allowable business costs, as described above, are given.

8. Net Loss from Farm or Fishing Operations (7 CFR 273.11(a)(2)(iii))

Self-employed farmers, as defined in Part XII.A.1.b, and self-employed fishermen may have a net loss once allowable costs of doing business are deducted from gross farm income. If the farmer or fisherman receives annual gross proceeds of \$1,000 or more from the farming or fishing enterprise, any net loss amount must be prorated over the year in the same manner used to prorate the farm or fishing income. Losses from farm or fishing self-employment enterprises are offset in two phases. The first phase is offsetting against non-farm or fishing self-employment income. The second phase is offsetting against the total of

earned and unearned income. The gross income eligibility standard is applied after offsetting. The earned income deduction is based on wages and salaries, and any income from self-employment remaining after the first phase of offsetting.

9. Depreciation

Depreciation is not allowed as a cost of producing self-employment income for equipment, machinery or other capital investments necessary to the self-employment enterprise.

B. BOARDERS (7 CFR 273.11(b))

The income of households owning and operating a commercial boarding house is handled as self-employment income under Part XII.A.2 and 3. A commercial boarding house is an establishment licensed as a commercial enterprise that offers meals and lodging for compensation. In localities without licensing requirements, a boarding house is a commercial establishment that offers meals and lodging for compensation with the intent of making a profit. The number of boarders residing in a boarding house is not used to determine if a boarding house is a commercial enterprise.

For all other households containing boarders, the income from the boarders must be calculated following the procedures in this chapter. See Part VI.B. to determine boarder status.

1. Income from the Boarder

The income from boarders must include all direct payments to the household for room and meals, including payments to the household for part of the shelter expenses. Shelter expenses paid by boarders directly to someone outside the household (such as a landlord or utility company) are not counted as income to the household.

2. Cost of Doing Business

To determine the net amount of countable income from a boarder the BPS must deduct the cost of doing business from the gross monthly income figure.

The cost of doing business is equal to one of the following:

- a. The maximum SNAP benefit amount for the number of boarders If the boarders are provided more than two meals per day; or,
- b. Two-thirds of the maximum SNAP benefit amount for the number of boarders If the boarders are provided two meals or less per day; or,
- c. The actual documented costs for providing room and meals, if they are higher than the appropriate SNAP benefit amount.

The allowable cost of doing business may never exceed the amount the household receives from the boarder. If actual costs are used, only separate and identifiable costs of providing rooms and meals to the boarders are allowed.

3. Earned Income Deduction

The 20% earned income deduction as defined in Part X.A.2, will be allowed for all income from boarders. The net boarder payment must be added to all other earned income before allowing the 20% deduction.

C. SPONSORED IMMIGRANTS (7 CFR 273.4(c))

Affected Groups

All immigrants granted U.S. visas based on family connections and some employment-based immigrants must have a sponsor in order to obtain permanent residency. The sponsor must execute an affidavit of support on behalf of the immigrant to demonstrate financial responsibility for the immigrant.

This chapter applies to persons who file visa applications on or after December 19, 1997, and for persons who file for an adjustment of status on or after December 19, 1997.

Individual sponsors must document that they have the capacity to financially support and maintain an immigrant, generally at 125 percent of the federal poverty level. The sponsor must execute a legally enforceable affidavit of support, INS Form 864, on behalf of each immigrant. The sponsorship affidavit also requires an agreement to reimburse agencies for any means-tested public benefits obtained by the sponsored immigrant.

The BPS must evaluate the provisions of this chapter for immigrants who are eligible for SNAP benefits as permanent resident immigrants with 40 quarters of work credited to them (Part VII.F.1.f.) and for permanent residents who are conditionally eligible for SNAP benefits if they meet a qualified status (Part VII.F.2.).

Exemptions

The provisions of this chapter do not apply to the following groups:

- Immigrants without sponsors. This group includes persons who entered the United States without an individual sponsor who signed a legally binding affidavit of support. These immigrants include refugees, asylees, persons whose deportation is withheld, Amerasians and Cuban/Haitian entrants. Note, however, that this exemption does not include Haitian entrants who gain lawful permanent resident status through the Haitian Family Reunification Parole Program if a sponsor executes an affidavit of support.
- Immigrants whose sponsors signed affidavits of support before December 19, 1997 or persons whose sponsors have not signed a legally enforceable affidavit of support.
- Immigrant children under 18 years of age.
- Immigrants who would be indigent without SNAP benefits or other public assistance in

that the household's income, including any assistance from the sponsor, is insufficient to provide food or shelter. Indigence here means that the household's own income and any direct cash or in-kind contribution from the sponsor or others do not exceed the gross income level for the household's size. The only income the BPS may deem from the sponsor for a 12-month renewable period is the amount the sponsor provides if the immigrant is indigent. The BPS must report the immigrant and sponsor's names to the USCIS if an immigrant is determined to be indigent.

This exemption will last for one year from the date of the indigence determination. The BPS may renew the indigence determination for additional 12-month periods.

Before determining indigence, the BPS must explain the determination and reporting requirements to the household or representative. If the household elects not to proceed, the BPS must explain the consequences of this action and of being a "nonapplicant," as addressed in Part II.B. The BPS must not report the names of the sponsored immigrant or sponsor to the USCIS in this instance.

- An immigrant determined to be a battered spouse, child or parent or subject to extreme cruelty in the U.S. The person must be living separately from the batterer. This exemption covers any 12-month period. The exemption may be extended for additional 12-month periods if the immigrant shows that a court, administrative order or the USCIS recognizes the battery and if the BPS determines the battery has a substantial connection to the receipt of SNAP benefits.

1. Computing the Countable Income of Sponsors

A portion of the monthly income of the sponsor and the sponsor's spouse, if he or she executed the affidavit of support, must be considered in determining the eligibility and benefit level of the household of which a sponsored immigrant is a member. The BPS must make the determination as follows:

- a. Calculate the earned income of the sponsor and the sponsor's spouse.
- b. Deduct the 20% earned income deduction from this amount.
- c. Add the unearned income of the sponsor and the sponsor's spouse.
- d. Deduct the gross income eligibility limit for the size of the sponsor's household including any person who is claimed or could be claimed by the sponsor or the sponsor's spouse as a dependent for federal income tax purposes.
- e. The remainder is the countable income for the sponsored immigrant for SNAP purposes.

If the immigrant has already reported gross income information about the sponsor for the sponsored alien rules for TANF, that income amount may be used for SNAP purposes. Allowable deductions are limited to the 20% earned income deduction and the SNAP gross monthly income amount stated above.

If a sponsored immigrant can demonstrate to the satisfaction of the BPS that the sponsor is responsible for other immigrants, the income deemed here must be divided by the number of sponsored immigrants. The process described here to arrive at the deemed income must also be used to exclude the amount for a sponsored immigrant or citizen child.

Money paid to the immigrant by the sponsor (or the sponsor's spouse) will not count as income unless the amount paid exceeds the amount attributed to the immigrant under Part XII.C.1.a.

Examples

- | | | |
|---|---|-------|
| • | Sponsor's income attributed to immigrant | \$100 |
| | Amount paid directly to the immigrant by the sponsor for an "odd job" | \$ 60 |

This \$60.00 amount will not count as income to the immigrant's household.

- | | | |
|---|---|-------|
| • | Sponsor income attributed to immigrant | \$100 |
| | Amount paid directly to the immigrant by the sponsor for an "odd job" | \$120 |

The \$20.00 over the \$100 attributed income is countable income to the immigrant's household.

2. Computing Countable Resources of Sponsors

Resources of the sponsor and the sponsor's spouse count towards the immigrant household. The total amount of the sponsor's and spouse's nonexempt resources must be reduced by \$1500. If a sponsored immigrant can demonstrate to the satisfaction of the BPS that the sponsor is responsible for other immigrants, the resources counted here must be divided by the number of sponsored immigrants that apply for or are receiving SNAP benefits. Exclude the amount that would be attributed to a sponsored immigrant or citizen child.

3. Termination of the Sponsor's Obligation

The evaluation and use of the income and resources of the sponsor and spouse of the sponsor must continue toward the SNAP eligibility and benefit level of the immigrant until the immigrant becomes a U.S. citizen. The evaluation of the sponsor's obligation will also terminate when the immigrant can be credited with 40 quarters of work coverage, provided the immigrant received no public benefits for any quarter beginning January 1997. (See Part VII.F. for a discussion of qualifying quarters of work.)

Other conditions that will cause the sponsor's support obligation to end are the death of either the sponsored immigrant or the sponsor, or instances when the immigrant leaves the country or no longer holds permanent resident status.

4. Responsibilities of the Sponsored Immigrant

The immigrant is responsible for the following:

- a. obtaining the cooperation of the sponsor;
- b. providing information or documentation necessary to calculate the countable income and resources of the sponsor at application and recertification; and,
- c. providing the names or other identifying information about immigrants for whom the sponsor has signed an agreement to support to enable the BPS to determine how many of these sponsored immigrants applied for or are receiving SNAP benefits so that the sponsor's attributed income and resources can be divided by the number of such immigrants.

If information about other immigrants for whom the sponsor is responsible is not provided, the income and resource amounts will be attributed to the immigrant in their entirety until the information is provided.

The immigrant is also responsible for:

- reporting the required information about the sponsor and sponsor's spouse if a different sponsor is obtained during the certification period; and,
- reporting a change in income should the sponsor or the sponsor's spouse changes or loses employment, or dies during the certification period. These changes must be handled according to the timeliness standards in Parts XIV.A.

The household is primarily responsible for obtaining the information or verification needed to determine the sponsor's or spouse's income and resources but, the BPS must provide assistance as required by Part III.B.

5. Reimbursement Procedures

After SNAP benefits are issued to a sponsored immigrant, the BPS must pursue collection of the total amount of benefits issued. The BPS may lump together the amount of all public benefits issued by the local department instead of pursuing separate collections for each program. Legal and other collection costs may be included in the reimbursement requests.

The BPS must exclude any sponsor who is receiving SNAP benefits from the reimbursement procedures.

The request for reimbursement must be sent to the sponsor by personal service and must include the following:

- a. Date of the sponsor's affidavit or support;
- b. Sponsored immigrant's name;
- c. Immigrant's registration number;

- d. Address of the immigrant;
- e. Immigrant's date of birth;
- f. Type of public benefit received;
- g. Date(s) benefits received; and,
- h. Total amount of benefits received.

The request for reimbursement must advise the sponsor to respond within 45 days of the request by paying the requested amount or by arranging a payment plan that is satisfactory to the BPS.

If the sponsor does not respond to the reimbursement request, the BPS may file a civil suit against the sponsor at the end of the 45-day period. If a final judgment is obtained against the sponsor, the BPS must mail a certified copy of the judgment and a cover letter containing the reference "Civil Judgment for Congressional Report - 213A(i)(3)IIRIRA" to:

United States Citizenship and Immigration Services
Statistics Branch
425 I Street NW
Washington, D.C. 20536

The BPS must send any reimbursement payments for SNAP benefits and a copy of the reimbursement request letter to:

U.S. Department of Agriculture
Food and Nutrition Service
Mid-Atlantic Regional Office
P.O. Box 953772
St. Louis, MO 63195-3772

The BPS must send a copy of the reimbursement request letter and reimbursement check to:

U.S. Department of Agriculture
Food and Nutrition Service
Mid-Atlantic Regional Office
300 Corporate Boulevard
Robbinsville, NJ 08691-1598

Note that while a sponsor's obligation may be terminated for conditions noted in Section b. above, that termination does not relieve the sponsor or the sponsor's estate of the obligation to reimburse programs for the issuance of public benefits provided before the support agreement terminated.

Efforts to collect amounts issued to sponsored immigrants through the Supplemental Nutrition Assistance Program or other means-tested public benefits must be made within 10 years of the date of the last issuance.

6. Awaiting Verification

If the information necessary to determine the amount of the sponsor's or sponsor's spouse's income and resources attributed to the immigrant, is not received or verified in a timely manner, the sponsored immigrant will be ineligible until all necessary facts are obtained. In addition, if questions arise about whether an immigrant has a sponsor, the date of entry, or the date of the adjustment of status, such questions must be resolved before SNAP eligibility can be established for the immigrant. The eligibility of any remaining household members must be determined. The income and resources of the ineligible immigrant (excluding the attributable income and resources of the alien's sponsor and sponsor's spouse) must be treated in the same manner as a disqualified member as set forth in Parts XI.G and XII.E, and considered available in determining the eligibility and benefit level of the remaining household members.

If the sponsored immigrant refuses to cooperate in providing and/or verifying needed information, other adult members of the immigrant's household will be responsible for providing and/or verifying the information required. If the household refuses to cooperate in this regard, the entire household is ineligible. If the information or verification is subsequently received, the BPS must act on the information as a reported change in household membership as required by the timeliness standards in Part XIV.A.

If the same sponsor is responsible for the entire household, the entire household will be ineligible until the needed sponsor information is provided and/or verified.

D. HOUSEHOLDS WITH A DECREASE IN INCOME DUE TO FAILURE TO COMPLY WITH ANOTHER PROGRAM'S RULES

SNAP benefits must not be increased when a household's benefits from another means-tested, publicly funded program are reduced, terminated, or suspended because of a failure to comply with that program's requirements. Changes that are not related to the penalty imposed by the other program must continue to be reflected in the SNAP benefit amount, including adding household members who may be barred from receiving benefits from other public assistance programs. The public assistance income, as a penalty, must not be counted in the calculation of SNAP benefits if the public assistance case is closed at the household's request, failing to sign the VIEW Agreement of Personal Responsibility or for a reason other than noncompliance, regardless of prior case actions that may have been taken due to noncompliance.

1. For federal, state, or local public assistance programs, such as TANF or GR-Unattached Child, failure to comply will be determined to exist after it has been established that policy exemptions and good cause provisions, if appropriate, have not been met. Failure to comply may also be evidenced by a court conviction for a fraud conviction or a finding through the ADH process.

When TANF or GR-Unattached Child benefits are decreased because of the household's failure to comply with that program's requirements, the SNAP benefit amount must be based on both the actual amount of the TANF or GR-Unattached Child payment and the amount of the reduction or penalty. The penalty income must be counted as long as the reduced payment is received. If the PA case is closed, the penalty income must be counted in the SNAP calculation for a minimum of six months following the closure of the PA case or longer if the PA case remains under care.

Example

The BPS reduced a household's TANF grant from \$291 to \$241 per month. The reduction occurred because of the household's failure to comply with the immunization requirements needed by TANF program rules. The TANF amount to be used for SNAP purposes is \$291.

The penalty amount will no longer count if the household reapplies and is approved again for TANF or GR-Unattached Child benefits within the six-month period.

2. Social Security (OASDI) benefits, unemployment compensation and veteran's benefits are not means-tested programs. If reduced payments occur for these programs because of a failure to comply, the SNAP benefit amount must be based only on the actual amount of the payment(s).
3. HUD payments and SSI are publicly funded and means-tested programs. If reduced payments occur for these programs because of a failure to comply however, the SNAP benefit amount must be based only on the actual amount of the check(s), to the extent the payment is counted as income for SNAP purposes.

E. DISQUALIFIED INDIVIDUALS OR HOUSEHOLDS (7 CFR 273.11(c))

Individual household members or entire households may be disqualified from receiving SNAP benefits. The reason for disqualification will affect procedures for calculating income and will affect the eligibility and benefit level of the remaining household members.

- 1 Disqualified Individuals – Prorated Income/Deductions
This section applies to disqualified individuals because:
 - Failure to obtain or refusal to provide a Social Security Number (Part VII.G);
 - An ineligible immigrant (Part VII.F);
 - Questionable citizenship (Part VII.F); or
 - Ineligible because of time-limited benefits because of the work requirement (Part XV).
 - a. Resources – Resources of disqualified individuals count in full to the remaining household members.
 - b. Income – Prorate the income of the disqualified individual. Subtract allowable

exclusions. Divide the income evenly among all household members, including the disqualified individual. Count all but the disqualified individual's portion.

- c. Deductions – Assess who is responsible for an expense or who pays an expense. Divide the expenses of the disqualified individual evenly among all household members, including the disqualified individual. Count all but the disqualified individual's portion except allow the utility standard in full for households entitled to the utility standard regardless of who pays heating or cooling expenses.

Provisions allowed here for the disqualified individual do not alter or cancel provisions of Part X.A when an eligible household member is responsible for or pays an expense. If an eligible household member is responsible for an expense or pays the expense, allow the household the entire expense even if the disqualified individual is also responsible for the expense.

- d. Eligibility and Benefit Level – Do not include the disqualified individual to:
- Assess the resource eligibility limit;
 - Assess the income eligibility limit;
 - Allow the unlimited shelter deduction if there are no other elderly or disabled household members;
 - Assign the benefit level; or
 - Assign the standard deduction.

2. Disqualified Individuals – Fully Countable Income/Deductions

This section applies to disqualified individuals because of:

- An intentional program violation (Part XVII);
- Voluntarily quit a job or reduced work without cause (Part VIII.B)
- Fleeing prosecution/imprisonment or in violation of parole or probation (Part VI.C.2.e) or
- A felony conviction for sexual abuse, sexual assault, or murder (Part VI.C.2.h).

- a. Resources – Resources of disqualified individuals count in full to the remaining household members.
- b. Income – Income of disqualified individuals count in full to the remaining household members.
- c. Deductions– Count allowable deductions in their entirety to the remaining household members.
- d. Eligibility and Benefit Level – Do not include the disqualified individual to:
- Assess the resource eligibility limit;
 - Assess the income eligibility limit;
 - Assign the benefit level; or
 - Assign the standard deduction.

3. Disqualified Households

Households that contain members who receive lottery or gambling winnings equal to or greater than the resource limit for elderly or disabled households are ineligible upon receipt of the money. See Part IX.B. The households will remain ineligible until they reapply for benefits and meet allowable income and resource eligibility levels. This disqualification will include categorically eligible households and households with elderly or disabled members.

F. AVERAGING CONTRACT AND SELF-EMPLOYMENT INCOME (7 CFR 273.10(c)(3)(ii))

1. Annualization

Households that derive their annual income by contract or self-employment in a period of time shorter than one year must have that income averaged over a 12-month period. Prorating the income over 12 months is appropriate as long as the income from the contract is not received on an hourly or piecework basis. Provisions of this chapter do not apply to migrant or seasonal farm workers but may include school employees, sharecroppers, farmers, and other self-employed households.

Contract income that is not the household's annual income in that it is intended to meet the household's needs for only part of the year must be prorated over the period the income is intended to cover. The procedures for averaging self-employment income for shorter periods than 12 months are described in Part XII.A.2.

The statement of an hourly rate of pay in a contract does not necessarily mean the contract is on an hourly basis and therefore is not to be annualized. If the total amount of annual income for the contract period can be derived from the information contained in the contract, or information that is readily available, exclusive of days which may be missed due to circumstances such as illness or bad weather, the income must be annualized.

Examples

1. A school bus driver's contract states he will receive \$7 per hour for 5 hours per day over the 180-day school year. The school board states the school year has 180 days. Since a total amount of income can either be derived from the contract or is readily available ($7 \times 5 \times 180 = \6300 per year), the total income is annualized.
2. A school cafeteria worker's contract calls for \$7 per hour over the school year of 180 days, but the number of hours available is not indicated. The number of hours per day varies, and the school board cannot anticipate the number. The total amount of income for the contract period cannot be derived from either the contract or other information and, therefore, income is not annualized.

There may be instances in which a contract is initiated for a partial year after the start of the normal contract period. In these instances, the income must be prorated over the partial contract period in the same manner as if the person was hired for the entire contract period.

Example

A contract for a school employee is entered into in January. The regular contract period is September - June. Income for SNAP purposes would normally be prorated from September through August. For this partial year, the income must be prorated from January through August.

2. Adjustments to Annualized Amounts

In cases where a contract specifies a set amount over the contract period, plus additional monies of an uncertain amount if additional work is available and done, only the base contract amount is annualized. Additional monies earned over and above the base contract are counted as income when they can be anticipated. The BPS must explore with the household the past receipt of such income and whether the person is receptive and therefore available for the extra employment. In some instances, the pattern of past receipt of extra earnings may suggest that such money should be anticipated.

Example

A school bus driver's contractual amount is \$6300 per year. However, the driver can earn an extra \$10 per trip driving for special school functions. \$6300 divided by 12 equals 525 per month to count as income from the contract.

Suppose in March the client earns an additional \$40 driving to basketball games. He reports receipt of this income to the BPS. No additional money is expected because no other trips are currently planned and his work history shows that no special trips occur after the basketball season. The annualized contract amount of \$525 is the only income considered for future months.

In cases where a contract calls for no pay for those days not worked, income averaging over a 12-month period is still appropriate. If it can be anticipated at the time of certification that certain days will be missed, the salary for these days should not be counted. Otherwise, the income calculation is to be based on the maximum salary. The household may then inform the BPS as days are missed. The average will then be adjusted for the remaining months.

Example

A school bus driver's contract states that he will receive \$1250 for the year, but that he will not be paid for days the school is closed or for days he is sick. When he applies on March 10, he has already missed three days for snow in the contract year and he was sick for two days. The contract reads that \$10 will be deducted for each day not worked. The household is certified with income of \$100 per month ($\$1250 - \$50 = \$1200 \div 12 = \100.00).

On April 5, the household reports that another two days have been missed which were not anticipated at the time of certification. The household's SNAP income is then adjusted to \$98.33 ($\$1200 - \$20 = \$1180 \div 12 = \98.33). With

the effective date of the next contract, the maximum income from that contract will be averaged over the year, less the income for any anticipated absences.

It will also be necessary to adjust the average if the contract amount changes during the contract period as a result of an increase in salary. As in the situation above, the average is adjusted for the remaining months of the annualized period.

Example

A school employee signs a contract that states that he will receive \$3600 per year. The contract runs from September through June. \$300 is assigned to each month in the year, beginning in September. Effective in January, the employee reports that his salary was increased to \$4800 per year. Now, \$400 is assigned to the months remaining in the contract period ($\$4800 \div 12 = \400).

3. Termination of Annualized Income

If no further income from the same source is expected, contract income that has been annualized is considered terminated as of the last month included in the annualization.

Example

A contract school employee is paid \$6,000 over the ten months in the school year, September through June. She grosses \$600 in each of the 10 months. She does not plan to work for the school board in the next school year.

The BPS annualizes the income over the year September through August and counts $\$6,000 \div 12 = \500 per month.

Should the employee apply in June, the income is not considered terminated in June even though June is the last month she receives pay. The income is terminated in August, the last month included in the annualization.

Income that is interrupted within the contract period is considered terminated the month the change in contract employee status occurs.

Example

A school employee stops work in February. The BPS annualized her contract income and assigned income to the months September through August. The income will no longer count for February.

Self-employment income that has been annualized is considered terminated as of the month the person terminates the self-employment enterprise.

G. WAGES HELD BY AN EMPLOYER

Wages held by an employer at the request of the employee will count as income to the household for the month the wages would otherwise have been paid by the employer. Wages held by the employer as a general practice will not count as income to the household even if it is in violation of law. Held wages will count if the household expects to ask for and receive an advance, or expects to receive income from wages that the employer previously held as a general practice.

This income will count if the BPS did not previously count the income.

Advances on wages count as income in the month received only if the BPS can reasonably anticipate the receipt of the income as defined in Part XIII.A.3. Conversely, when an employer withholds wages to repay an advance that previously counted as income in a SNAP determination, the wages withheld will not count as income.

H. TRANSITIONAL BENEFITS FOR FORMER TANF RECIPIENTS

Transitional Benefits allow SNAP benefits to continue in a frozen amount for a brief period while former TANF recipients adjust financially to the loss of the TANF-related income. References to TANF in this chapter also refer to View Transitional Payments. At any time during the Transitional Benefits period, the household may reapply and receive regular SNAP benefits. The Transitional Benefits component does not apply to Diversionary Assistance cases.

1. Transitional Benefits Eligibility

Transitional Benefits will apply to any SNAP case if at least one household member is the Case Name or Payee for a TANF case that closed. When a TANF case closes, the BPS must convert the SNAP case to Transitional Benefits unless:

- the SNAP household is ineligible for Transitional Benefits, as listed below;
- the household requests to remain in the regular program; or
- the household requests closure of the SNAP case.

Transitional Benefits will not apply when:

- there is no active case certified to receive SNAP benefits at the time of the action to close the TANF case;
- the TANF case is closed or there is no TANF payment because of noncompliance with TANF Program rules when:
 - there is a sanction or disqualification of the TANF benefits;
 - the household requests closure of a TANF case that is already being sanctioned because of noncompliance;
 - the household preempts the implementation of a sanction or disqualification by requesting closure of the TANF case; or

- a sanctioned or disqualified case is closed for a reason unrelated to an act of noncompliance but the TANF sanction/disqualification remains in effect.
- the TANF case is closed for failing to sign the VIEW Agreement of Personal Responsibility.
- the TANF case is closed because there are no eligible children in the home as a result of a child protective services investigation;
- the TANF case is closed after discovery that the case was approved in error;
- the SNAP case is sanctioned for noncompliance with SNAP rules or all household members are ineligible or disqualified from receiving SNAP benefits; or
- the TANF case closed because of the household's failure to renew its eligibility at the end of the certification period.

Transitional benefits will also not apply while a TANF case is suspended. Once the TANF case closes however, conversion will be appropriate if the reason for the closure is not one that is listed above.

2. Calculation of Benefits

Households will receive benefits during the transitional period based on the circumstances that existed at the time of the TANF case closure. The SNAP benefit amount must exclude the TANF grant as income for the month of the TANF case closure. The SNAP calculations must not include any new income amount that may have caused the TANF case closure. Note, however, new income amounts may be reflected in the SNAP calculations if there is a delay in the closure of the TANF case. The BPS must leave all other eligibility factors in place, including income, deductions and household composition.

The BPS must not reflect any changes in the SNAP benefit amount during the Transitional Benefits period. As the BPS discovers changes or the household reports changes in its circumstances, the BPS must act on those changes for SNAP benefits but override any system recalculations of the benefit amount to reflect the "frozen" amount as calculated above. In instances where household members leave the household and subsequently apply in another SNAP household, the BPS must delete the household members who are in another SNAP household and adjust the allotment for the new household size. In other words, during the Transitional Benefits period, except for household composition changes to delete members to prevent duplicate participation, the BPS must not adjust benefits to reflect changes.

Households receiving Transitional Benefits will not be entitled to adjusted benefits through a mass change if a mass change occurs during the Transitional Benefits period.

3. Transitional Benefits Procedures

The Transitional Benefits period will be for five calendar months after the effective date of the TANF case closure. The certification period for Transitional Benefits cases will be five months. The BPS must adjust the original certification period to lengthen or shorten the period so that the certification period will be five months.

The BPS must provide the household with a Notice of Action to notify the household of the revised benefit amount and new certification period. The BPS must send the Notice of Expiration before the last month of the new certification period to notify the household to reapply for benefits to continue to receive SNAP benefits.

Households that receive Transitional Benefits are not required to report changes in their circumstances for SNAP purposes. These households are not subject to the Interim Reporting requirements as addressed in Part XIV.

4. Ending Transitional Benefits

- Eligibility for Transitional Benefits will end the month an application for TANF benefits is filed if any member of the TANF household reapplies for TANF assistance. The BPS must provide an adequate notice for the closure. The application will be treated as an application for SNAP benefits unless the household elects not to apply for SNAP benefits.
- Eligibility for Transitional Benefits will also end as soon as administratively possible if a TANF case is reinstated because of the household's request for continued benefits for a timely-filed appeal. The SNAP case must be changed to reflect the original certification period and calculations that existed before the conversion to Transitional Benefits. The BPS must provide an adequate notice.
- Transitional Benefits will end as soon as administratively possible when the household requests closure of the case. The BPS does not need to send a notice to the household if the request is made in writing or in person. The household must reapply for SNAP benefits to receive additional benefits.
- Transitional Benefits will end when a household moves from Virginia. The BPS does not have to provide either an advance or an adequate notice.

PART XIII ELIGIBILITY DETERMINATIONS AND BENEFIT LEVELS

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A. DETERMINING HOUSEHOLD ELIGIBILITY AND BENEFIT LEVELS (7 CFR 273.10(a))

Eligibility and the level of SNAP benefits for households submitting an initial application, reapplication or recertification must be based on circumstances reasonably anticipated for the months of eligibility.

Applicant households consisting of residents of a public institution who apply jointly for SSI and SNAP benefits prior to release from the institution will have their eligibility determined for the month in which the applicant was released from the institution.

Because of anticipated changes, a household may be eligible for the month of application, but ineligible in the subsequent month. The household is entitled to benefits for the month of application even if the processing of its application results in the benefits being issued in a subsequent month. Similarly, a household may be ineligible for the month of application, but eligible in a subsequent month due to anticipated changes in circumstances. Even though denied for the month of application, the household does not have to reapply in the subsequent month. [The same application must be used for the denial for the month of application and the determination of eligibility for subsequent months, within the timeliness standards in Part II.F.]

As a result of anticipating changes, the amount of SNAP benefits for a household for the month of application may differ from the benefit amount in subsequent months. The BPS must establish a certification period for the longest possible period as allowed by Part IV.A.2 over which changes in the household's circumstances can be reasonably determined. The household's benefit amount may vary month to month within the certification period to reflect changes determined at the time of certification. Benefits for the initial month or a subsequent month must be prorated from the day of application, the day the household provides the last verification or takes the final action, or the day the household establishes eligibility according to Part XIII.D.

1. Household Composition

A household's membership for eligibility determination and benefit level is assessed as of the application date for the month of application or the first day of the month following entry or attachment to the household for ongoing eligibility. See Part VI for guidelines in determining household composition.

If any household member is included in another active SNAP case for the month of application, reapplication or recertification, eligibility for the remaining household members must be determined. The household member included in another case is added to the current case as soon as administratively possible.

The BPS must add the individual to the gaining household for the earliest possible month after the move. However, if the person cannot be removed from the old household effective the following month, the person cannot be added to the new household until the person is deleted from the old one. For example, a member moves on June 28 and there is insufficient time to send advance notice effective July 1, so the deletion is effective August 1. A new member cannot be added to the household until the individual's income and resources have been determined and eligibility determined.

If the individual's move coincides with the gaining household's recertification, the new member is added in the same timeframes as though the change occurred during the certification period. The new member is added for the earliest possible month, and depending on the dates involved, the recertification may be processed without the new member being immediately included.

NOTE: Participation in more than one household in a month is prohibited, except as noted in Part VII for people who leave a household containing a person who abused them and enter a shelter for individuals fleeing domestic violence.

When a household reports the loss of a member, the individual is deleted as soon as administratively possible. The BPS has a maximum of 10 days to act on the change. A 10-day advance notice period must be provided if the deletion results in negative action.

When an individual is deleted from a household, the income and deductible expenses of the person must be deleted effective the same month, unless the provisions for considering income and expenses of ineligible or disqualified members are applicable.

2. Special Circumstances

The BPS must evaluate issues related to changes in the age of household members if the change occurs in the month of application or the month following the application filing date. The BPS should factor in age changes when assigning the certification period as related to issues such as income exclusions and work requirement exemptions. The BPS must evaluate any age changes that occur during the certification period at recertification/renewal. Except for the allowance of medical expenses, issues related to changes in age must be reflected the month after the household member's birthday.

3. Income and Deductions (7CFR 273.10(c))

The BPS must calculate the allotment using the household members' anticipated income and deductible expenses.

The provisions of this chapter do not generally apply to households with self-employment or contract income. Household members whose income is from self-employment (Part XII.A) or a contract (Part XII.F) will have these types of income averaged as described in the chapters cited. The income is assigned to the months over which it is averaged. If a household member's status as a self-employed person or contract employee changes, the last month to consider income from those sources is the month the change in status occurs.

Households receiving monthly or semi-monthly income, such as state or federal assistance payments, or semi-monthly pay checks, must have the income assigned to the normal month of receipt, even if mailing cycles, weekends or holidays cause the income to be received in a different month.

For the online systems used to verify child support or unemployment benefits, mailing and processing days must be added to the payment dates shown to reflect the period of receipt properly for SNAP purposes. Checks are prepared and mailed on the business day following

the APECS disbursement date or the VEC warrant date. Allow two mail days to determine the payment date and month of receipt. Allow two business days for electronic funds transfer payments to reach the designated debit card or bank account to determine the payment date and month of receipt.

The BPS must:

- Consider the income already received by the household during the application process.
- Consider any anticipated income the household and the BPS are reasonably certain will be received during the months of certification.
 - If the amount of income or when it will be received, is uncertain, that portion of the household's income that is uncertain must not be counted.
 - If the total amount of the income is unknown, the portion that the BPS can anticipate with reasonable certainty is countable as income.
 - Do not automatically project amounts of past income or assume that current income will continue without exploring the situation with the household.
- Consider work patterns or patterns of receiving income in determining income or in determining whether to average several monthly amounts to project future income more accurately. In discussions with the household, consider:
 - the number of days and hours normally worked;
 - whether overtime pay is available or likely;
 - whether the job is subject to external forces, such as weather; or
 - the number of days usually missed and if pay is affected.

For migrant and seasonal farm workers:

- Be reasonably certain that income is likely to be received based on formal or informal commitments for work for individual instead of the general availability of work in an area.
- Do not base income on an assumption of optimum weather or field conditions

For new income sources, the BPS must determine:

- rate of pay,
- the number of hours expected, and
- pay date, including the pay period and date of receipt.

Complete information must be known before counting the income. Estimating amounts by using the rate of pay multiplied by the expected number of hours is acceptable if representative pay stubs are not available. After the initial pay cycles are established, pay stubs or payroll records must be used to project the income unless the BPS documents that the information is not representative and why an estimate should be used.

For all application types, generally evaluate income received during the 30-day period before the application filing date. If the income for this period does not reflect the amount the household expects to receive during the certification period, the BPS must work with the household to determine a more appropriate amount.

The BPS must establish the onset and termination of income. If income amounts change by \$25 or more from one pay period to the next, amounts from additional periods may be needed to determine a more representative amount to use.

If income fluctuates so much that the prior 30-day period does not accurately reflect the income, a longer period may be used if it provides a more accurate indication of fluctuations in future income. The length of time used to create a reasonably accurate amount anticipated does not need to equal the same number of months in the certification period.

If the household's income fluctuates seasonally, it may be appropriate to use the most recent season comparable to the certification period instead of the 30-day period before the application date as an indicator of future income. Use caution however, in using income from a past season as an indicator of current income since the income may fluctuate between the same seasons of different years.

Past income may not be used as an indicator of future income when changes in income can be anticipated.

Whenever income is anticipated for every pay period in a month and it is received on a weekly or biweekly basis, the BPS must convert the income to a monthly amount by multiplying weekly amounts by 4.3 and biweekly amounts by 2.15. If the household will receive less than a full month's pay, or if less than a full month's pay is to be counted for SNAP purposes, either the exact amount of income, if it can be anticipated, or an average per pay period times the actual number of pays, can be used.

Pay received daily must be converted to a weekly or biweekly amount and then converted to a monthly amount by multiplying the weekly amounts by 4.3 and the biweekly amounts by 2.15.

The BPS must document:

- Decisions made regarding averaging;
- the exclusion or inclusion of certain amounts,
- reasons for using a wider time period to average/anticipate amount
- reasons why amounts are not representative.

B. EVALUATING EXPENSES (7CFR 273.10(d))

An expense is defined as a service provided by someone outside of the SNAP household for which a money payment is made. If a deductible expense is covered by an excluded reimbursement, as defined in Part XI.F.6, or is paid by a vendor payment, as defined in Part XI.F.3, no deductions will be given except for certain energy assistance payments, as described in Part X.A, and any payments that are also personal loans.

Methods of evaluating expenses are described below.

1. As billed - Expenses considered in determining shelter or dependent care costs are allowed only for the month the expense is billed or otherwise becomes due, regardless of when the household intends to pay or pays the expense. Expenses paid in advance are allowed in the month the expense would have been due. Amounts carried forward from past billing periods cannot be allowed as a part of the cost of shelter or dependent care even if included with the most recent bill.

Expenses incurred more frequently than monthly must be converted to a monthly amount by considering 4.3 weeks in a month or by considering the actual amount billed during the month.

Example

A household buys coal by the bag every 3 days, at \$3.00 per bag. By considering 4.3 weeks in a month, the expense is computed as follows: $7 \div 3 = 2.33$ bags per week $\times 4.3 = 10.02$ bags per month $\times \$3 = \30.06 .

By considering the actual amount billed during the month, the expense is computed as follows: 10 bags purchased $\times \$3 = \30.00 .

2. Averaged - Expenses which fluctuate from month to month and those which are billed less frequently than monthly may be averaged over the period the expense is intended to cover and reflected in the allotment calculation for those months. The certification period assigned would have no effect on the months in which the allowance is given. A one-time only expense may be averaged over the entire certification period.

Example

A household presents an oil bill of \$250. The oil was received in December and is expected to last until February. The expense of \$250 is averaged over 3 months, and \$83.33 is assigned to the months of December, January, and February and reflected in the allotment calculations for those months.

The household must be given the opportunity to choose between having expenses averaged or counted as billed.

3. Anticipated - Expenses for which the household anticipates being billed during the certification period are allowed. These expenses will be treated as billed or averaged over the period the bill will cover. For example, if a household anticipates a bill for property tax during the certification period, it may be allowed as a deductible expense in the month billed or averaged over the number of months the tax bill will cover. Another example is utility expenses that fluctuate month to month for households that opt to use actual utility costs. The BPS may evaluate changes in the amount billed monthly by evaluating the previous year's bills for the same months in question, updated by overall price increases. If a recent bill amount is the only information available, the BPS may use the utility company's estimate.

Example

The household presents all oil bills received the past winter. The household expects the amount of oil to be the same this winter. The oil vendor gives the BPS the current price per gallon. The BPS may use the information to project the household's costs for the current season.

The BPS may not average prior expenses to determine the expenses without considering whether the averaged amount reflects anticipated expenses.

4. Medical Expenses - Households that incur and verify medical expenses of more than \$35 a month are allowed the medical standard deduction. Households that incur and verify allowable medical expenses of \$235 or more per month may opt to use actual expenses instead of the medical standard deduction. The provisions of this chapter apply only to households with medical expenses of \$235 or more per month.

At the time of certification, households must report and verify allowable medical expenses or, at recertification, report changes in expenses previously reported. Households may also report allowable medical expenses that the household expects to incur during the certification period.

Because of the different ways in which individual medical expenses are incurred, the method for counting each bill must be considered individually. Any portion of a medical expense that is reimbursable by insurance policies will not be given as a deduction until the household verifies the portion of the cost that is its responsibility. The portion of the cost that is not reimbursable will be allowed as a deduction at the time the reimbursement is received or otherwise becomes known, even though this may be in a later certification period.

When determining the monthly medical deduction, the BPS must consider each of the methods described below for each expense.

For a household comprised of elderly or disabled members who have a 24-month certification period, the BPS must review the household's eligibility before the twelfth month. If the household reports a one-time medical expense incurred during the first 12 months, the BPS must give the household the option of deducting the expense for one month, averaging the expense over the remaining months of the first 12 months or averaging the expense over the remaining months of the certification period. If the household reports a one-time expense after the twelfth month, the household may elect to deduct the expense in one month or over the remaining months of the certification period.

- a. Lump sum deduction. The household may get a deduction for medical expenses as a lump sum in the month the expense is billed or become due or, for items such as drugs that have no billing, the month the household incurs the expense. If the household cannot establish a due date for an expense, the due date will be the month after the original billing date or incurred date.
- b. Averaging. One-time medical bills may be averaged over the certification period in which they are billed or become due. At certification, it will be the household's option whether to count a one-time bill as a lump sum or to average it. If the household reports a one-time bill during a certification period, the household may have the deduction as a lump sum, if possible, or averaged over the remainder of the certification period and reflected as an expense for those months.

Example

A household with an elderly or disabled member reports a one-time only medical expense of \$325.00 on March 5. The household's certification

period is February 1 through July 31. The household may choose to take the entire deduction in April, the month the change would be effective, or have the expense averaged over the remainder of the certification period.

Lump Sum Deduction:

\$325.00	one-time only medical expense
<u>- 35.00</u>	
\$290.00	medical deduction for April

Averaged Deduction:

\$325.00 ÷ 4 months (April through July)	\$81.25
	<u>-35.00</u>
Monthly Medical deduction	\$46.25

For recurring medical expenses for which a bill is not customarily issued, a monthly amount can be determined by averaging costs for a past period that is long enough to include all the expenses. These recurring expenses include prescriptions, transportation costs to obtain medical services or pet food for an attendant animal. The averaged amount will serve as the medical expense.

Example

A client has 4 regular prescriptions. One is refilled every 6 weeks, one is refilled every 2 months, one is refilled every 3 weeks, and one is refilled as needed, usually once every four months. Prescription expenses from the prior 4 months include each of the expenses at least once. The total is \$180.
 $\$180/4 \text{ months} = \$45 \text{ average monthly expense.}$

- c. Expected rate of payment. Many persons make regular payments on large medical bills over a period of months or years. If regular payments on medical bills are arranged before the bill is overdue these may be allowed as medical deductions in the month the installment payment is due.

Example

In January, a new applicant reports an ongoing medical expense of \$50.00 per month. This is a payment on a hospital bill of \$1,000.00 that was incurred six months earlier. The client arranged the \$50 per month installment payment before the bill was considered past due. A balance of \$700.00 remains due. The expected rate of pay of \$50 per month may be allowed.

- d. Anticipated expenses

Allowable medical expenses which the household expects to incur during the certification period may be deducted. Reasonable estimates of the expected expense will be allowed for the certification period. The household is not required to report or

verify further the actual expenses when it is incurred. An anticipated expense, for which adequate verification has been provided at certification, may be averaged over the certification period or allowed as a one-time expense.

C. COMPUTATION OF NET INCOME AND BENEFIT LEVEL

All households, except elderly and disabled households as described in Part XI.A, must pass gross income prescreening. All households must meet net income eligibility standards.

Monthly gross and net income amounts are determined in the following manner:

- Step 1 Assess the income of each household. Exclude all allowable income sources and amounts, including amounts for legally obligated child support payments made by the household. Do not exceed the legally obligated amount unless a portion covers a legally obligated amount that is in arrears. (Part XI.F.17)
- Step 2 List the household's total gross earned income. Include the total net income from self-employment enterprises (gross income from self-employment minus the allowable costs of doing business).
- Note: Farm and fishing self-employment losses may be offset against other income. Subtract the farm or fishing loss from non-farm/fishing self-employment income. If the non-farm/fishing gain is greater than the farm or fishing loss, offsetting is complete. Apply this result toward the gross income total.
- If the farm or fishing loss is greater than the non- farm/fishing gain, or if there was no non-farm/fishing self-employment income in the household, the negative balance of the calculation gain minus loss, or the farm or fishing loss will be applied against the adjusted gross earned and unearned income total.
- Step 3 List the household's total gross unearned income.
- Step 4 Total the adjusted earned income amount with the unearned income amount.
- Step 5 Subtract the excess farm or fishing loss, if any, from Step 2.
- Step 6 At this point, all households, except elderly, disabled or categorically eligible ones must pass gross income eligibility limits listed in Part XI.A. For elderly, disabled and categorically eligible households and for all other households that pass gross income prescreening, continue the calculation to apply appropriate deductions to the case.
- Step 7 Subtract the earned income deduction. Compute the earned income deduction by multiplying the combined net self-employment and gross earned income figures by 20%.

- Step 8 Subtract the standard deduction appropriate for the number of eligible members in the household. (Part X.A.1)
- Step 9 Subtract dependent care costs. (Part X.A.3)
- Step 10 Subtract the shelter allowance for homeless households that incur or expect to incur shelter expenses during the month. No other shelter costs may be allowed (Step 12) if the shelter allowance is used.
- Step 11 List medical expenses of members eligible for this deduction. Compute the medical deduction by totaling the expenses and subtracting \$35. (Part X.A.5)
- Step 12 The remaining figure is the adjusted net income. To compute the shelter deduction, compare shelter expenses to half the adjusted net income. If shelter expenses exceed half the adjusted net income, the excess shelter expenses can be allowed as a deduction under these guidelines:
- a) If the household does not contain an elderly or disabled member, the excess shelter expense cannot exceed the maximum deduction for shelter (Part X.A.4);
 - b) If the household contains an elderly or disabled member, any amount of excess shelter expense can be allowed as a deduction.
- Step 13 Subtract the shelter deduction from the remaining income to determine the net income.
- Step 14 Round down to the nearest whole dollar amount if the net income amount ends in 1-49 cents. If the net income amount ends in 50-99 cents, round up to the nearest whole dollar amount.
- Eligibility and benefit amounts are based on the net income. See Part XI.A for allowable net income standards and Part XXIII for the benefit amounts for each household size.

D. PRORATION OF BENEFITS (7 CFR 273.10(a))

The benefit level for the household for all applications, except timely filed recertification applications, will be based on the day of the month the household applies for benefits or, in some instances, the day the household supplies needed verifications or takes required actions. The date of application for persons in public institutions jointly applying for SSI and SNAP benefits prior to release from the institution will be the day the person is released from the institution. Using a 30-day calendar, households will receive benefits prorated from the date of application, as defined in Part II.B, the date of eligibility, or the date actions/verifications are provided to the end of the month. (A household applying on the 31st day of a month will be treated as if it applied on the 30th day of the month.)

After using either table described below to determine the benefit amount, the BPS must round the product down if it ends in \$.01 through \$.99. If this computation results in a benefit amount of less than \$10, then no issuance will be made for the initial month however, this month will count as the first month of the certification period. This policy applies to all eligible households, including one- and two-person households who otherwise would be entitled to a minimum allotment of **\$24**.

1. Initial Month Benefits

The initial month of application for the purposes of proration is defined as:

- a. The first month in which a household applies for benefits in a Virginia locality; or
- b. The first month in which a household files a reapplication for benefits, as defined in Definitions.

Example

- 1) A household applies on July 15. The application is denied for July but approved for August. The application is processed within the initial 30-day period. The household must be given a full month's benefits for August.
- 2) A household's certification period ended June 30. The household reapplies on August 15. The application is approved on August 20. Benefits for August would be prorated because August is the "initial month of application" as defined above.
- c. The first month after the 30th day in which an applicant household supplies any remaining verification or finally provides required information needed to process the application.

Example

A household applies on July 15. The household fails to submit verifications or to take actions until August 20, 36 days after the application date. The household caused the processing delay so benefits must be prorated from August 20.

- d. The first month in which a household files an application for benefits following the end of the last certification period.

Example

A household's certification period ends June 30. The household files another application on July 15. If the household is determined eligible, benefits for July must be prorated.

NOTE: For migrant or seasonal farm worker households, the initial month's benefits will not be prorated if the household has received SNAP benefits anywhere within the 30 days prior to the date of application.

2. Proration for Special Circumstances

SNAP benefits are generally calculated from the date of application or for an entire month. In some instances, however, it may be necessary to calculate benefits and eligibility from a date other than the application date or the first of a month. The instances in which this proration is permitted follows:

- a. The head of the household quits a job or reduces work without good cause after an application is filed but before the household is certified. Benefits must be prorated for the period between the application date and the date of the quit or reduction, if the household is otherwise eligible.

Examples

- 1) A household applies on April 12. The head of household reduces his work hours on April 21 before the household is certified. The sanction is imposed on April 21; the household may be eligible for 9 days benefits for April, i.e., April 12-20, inclusive.
 - 2) A household applies April 17. The head of household quits his job on May 4, before the household has been certified. The sanction period begins May 4. The household may be entitled to April benefits prorated from the date of application and benefits for the first 3 days of May.
- b. The head of the household quit or reduced work without good cause resulting in the ineligibility of the household. The household reapplies before the sanction period expires. (The application must be denied if the sanction period does not expire during the month of application.) Benefits must be prorated from the day after the sanction period expires through the last day of the month.

Example

A household is sanctioned for voluntary quit. The last day of the sanction period is April 12. The household files a reapplication on April 9. April's benefits are prorated from the day after the sanction period ends, i.e., April 13.

- c. A reapplication is filed for a household that lost its eligibility because of the Work Requirement. The household will regain eligibility after the application date by completing a work activity within 30 days as required by Part XV.C. Benefits must be prorated from the day after eligibility is regained through the last day of the month. (The application must be denied if eligibility is not regained during the month of application.)

Example

A one-person household, subject to the Work Requirement, received its three initial months of benefits during January, February and March. (The household was subsequently denied or it would have been denied because of the Work Requirement if an application had been filed.) A reapplication is filed on June 11 showing that the applicant started to work on May 17. It is projected that the applicant will have completed 80 work hours on June 15. Benefits must be prorated from June 16 if verification supports the claim that a minimum of 80 hours has been completed within the 30-day period.

Proration of benefits from a date other than the application date, for the situations described here, is appropriate only when an entire household is penalized through disqualification or ineligibility. Individual household members must be reconnected to the ongoing case at the beginning of the month following the end of the sanction period or the date eligibility is regained.

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3. Proration Charts

CHART 1

The following formula is to be used to determine the amount of the prorated allotment. Find the date of application, the date actions/verifications are provided, or date of entitlement in Column 1. Multiply the monthly benefit amount by Column 2.

<u>Column 1</u>	<u>Column 2</u>	<u>Column 1</u>	<u>Column 2</u>	<u>Column 1</u>	<u>Column 2</u>
1	1.0	11	.6667	21	.3334
2	.9667	12	.6334	22	.3
3	.9334	13	.6	23	.2667
4	.9	14	.5667	24	.2334
5	.8667	15	.5334	25	.2
6	.8334	16	.5	26	.1667
7	.8	17	.4667	27	.1334
8	.7667	18	.4334	28	.10
9	.7334	19	.4	29	.0667
10	.7	20	.3667	30	.0334
				31	.0334

CHART 2

The following table may be used to prorate a month's benefits that are calculated based on a specific number of days of eligibility, rather than calculated from a particular date to the end of the month. Column 1 is the number of days of eligibility; column 2 is the proration factor. Multiply the full month's allotment by the proration factor for the number of days for which benefits are being provided.

<u>Column 1</u>	<u>Column 2</u>	<u>Column 1</u>	<u>Column 2</u>	<u>Column 1</u>	<u>Column 2</u>
1	.0334	11	.3667	21	.70
2	.0667	12	.40	22	.7334
3	.10	13	.4334	23	.7667
4	.1334	14	.4667	24	.80
5	.1667	15	.50	25	.8334
6	.20	16	.5334	26	.8667
7	.2334	17	.5667	27	.90
8	.2667	18	.60	28	.9334
9	.30	19	.6334	29	.9667
10	.3334	20	.6667	30	1.0
				31	1.0

PART XIV

HANDLING CHANGES

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A. CHANGES DURING THE CERTIFICATION PERIOD

When changes occur within the certification period that affect the household's eligibility or the amount of the benefit allotment, the BPS must act to adjust the household's benefit level. The responsibility for changes lies with both the recipient household and the local department of social services. The household must report certain changes in income and household status; the BPS must adjust entitlement to benefits and benefit levels based on reported changes and for changes the BPS initiates. Households certified for seven months or longer must file an Interim Report about their circumstances during the certification period except households certified through the VaCAP or ESAP component.

1. Changes that Must Be Reported

The length of the certification period determines change-reporting requirements for each household.

a. Certification periods - one to four months

Households certified up to four months must report the following items:

- Change in household composition with members moving in or out of the SNAP household;
- Change in the household's residence and shelter costs that result from a move;
- Change in legally obligated child support paid outside the household;
- Receipt of lottery or gambling winnings of \$4,500 or more;
- Change if the number of hours worked per week for persons who are subject to time-limited benefits is less than 20 hours per week;
- Change of more than \$125 in the amount of income;
- Change in the source of income including starting or stopping a job; and
- Changing from full-time to part-time status or from part-time to full-time status.

The household does not have to report changes in TANF income for a Virginia TANF case.

b. Certification periods – five months or longer

Except for households that receive benefits through the Transitional Benefits component for former TANF recipients or certified through VaCAP, households certified for five months or longer must report the following items:

- Receipt of lottery or gambling winnings of \$4,500 or more;
- Change if the number of hours worked per week for persons who are subject to time-limited benefits is less than 20 hours per week; and
- The total income exceeds the gross income limit based on household size as established as of certification, the Interim Report evaluation, or a change reported during the certification period. The income limits of the first chart below will apply to most households but the income limits of the second chart apply for households that are ineligible for Broad-Based Categorical Eligibility. The income limits are:

Chart 1 (Gross Income Limit 200%)					Chart 2 (Gross Income Limit 130%)				
HH Size	Monthly	Weekly	Every 2 Weeks	Twice a Month	HH Size	Monthly	Weekly	Every 2 Weeks	Twice a Month
1	\$2,608	\$ 606.51	\$1,213.02	\$1,304.00	1	\$1,696	\$ 394.41	\$ 788.83	\$ 848.00
2	3,525	819.76	1,639.53	1,762.50	2	2,292	533.02	1,066.04	1,146.00
3	4,441	1,032.79	2,065.58	2,220.50	3	2,888	671.62	1,343.25	1,444.00
4	5,358	1,246.04	2,492.09	2,679.00	4	3,483	810.00	1,620.00	1,741.50
5	6,275	1,459.30	2,918.60	3,137.50	5	4,079	948.60	1,897.20	2,039.50
6	7,191	1,672.32	3,344.65	3,595.50	6	4,675	1,087.20	2,174.41	2,337.50
7	8,108	1,885.58	3,771.16	4,054.00	7	5,271	1,225.81	2,451.62	2,635.50
8	9,025	2,098.83	4,197.67	4,512.50	8	5,867	1,364.41	2,728.83	2,933.50
Additional members	+\$916.00	+\$213.02	+\$426.04	+\$458.00	Additional members	+\$596.00	+\$138.60	+\$277.20	+\$298.00

- c. ESAP households must report the following changes during the certification period:
- Changes to household composition;
 - If a household member receives earned income during the certification period; and
 - Lottery and gambling winnings of \$4,500 or more.

2. Time Required and Methods for Reporting Changes

Households must report required changes listed above within 10 calendar days from the date the change occurs or, at the latest, 10 days into the next month after the month the change occurs.

Households may report changes using the Change Report form, by telephone, by personal contact, by mail, or electronically. The household may also report a change of its circumstances with the filing of the Interim Report. A household member, an authorized representative, or any person having knowledge of the household's circumstances may report the change to any staff member of the local department of social services. When the household reports the change by mail, the report will be timely if the postmark of the letter is within the required 10-day period regardless of when the local department of social services receives the information.

During the interview, the BPS must advise applicants:

- the responsibility to report changes;
- when changes need to be reported;
- how to report changes;
- the changes that need to be reported; and
- the telephone number of the local office and, if necessary, a toll-free number or a number for accepting collect calls from households outside the local calling area.

The BPS must provide the Change Report form to each household at initial application, reapplication, and when the household size changes. Additionally, the BPS must provide the form at recertification, if the household needs another form, whenever the household returns a form, or reports a change in the number of household members.

3. Local Agency Action on Changes (7 CFR 273.12(c), 273.2(f))

Except when households receive Transitional Benefits for former TANF recipients, the BPS must act promptly to terminate or to adjust benefits when changes in household circumstances are reported by recipient households, including information about an upcoming or future change reported at application/renewal or through the interim report. For changes that will occur in the future, the BPS is encouraged to use electronic or manual reminders to adjust the benefit level or a household's eligibility for benefits timely when the change finally occurs. For Transitional Benefits cases, the BPS must input changed information during the Transitional Benefits period, but the benefit amount must remain in the same amount calculated when the TANF case closed, i.e., overriding a calculated benefit amount. (See Part XII.H.)

The SNAP case must reflect the following changes:

- changes reported by the household;
 - If the household reports an address change, the BPS must inquire about shelter costs that result from the move. If the household fails to **declare and verify** new shelter costs, the BPS must remove existing shelter costs from the SNAP calculations.
- changes put into VaCMS to meet reporting or policy requirements of another program;
- changes to prevent duplicate participation; and
- changes that are considered verified upon receipt, such as information about the removal of a child from the home by a foster care worker or information from a drug treatment center that says a client moved.

Other information may become known to the BPS through other means than listed above. If the change is one that the household was required to report, the BPS must act on the information. If the change is a change that was not required to be reported, the BPS must hold the information and evaluate it at the next interim report or renewal, whichever comes first.

The Appendix to this chapter contains charts that outline the procedures for handling changes reported or discovered during the certification period.

The BPS has 10 days from the date the BPS learns of a change to act on the new information. When the reported change requires a reduction, termination or suspension of benefits, the BPS must issue an advance notice within 10 calendar days, beginning with the date the BPS receives the change, unless one of the exemptions for mailing the notice in Part XIV.D is applicable. In these cases, depending on the change, the BPS must send an adequate notice if a notice is required at all.

Part III.F contains required BPS actions needed in response to information obtained through IEVS. The household or the source of information must verify unverified information received through IEVS. If the BPS opts to obtain verification from the household, the BPS must request the information and allow the household 10 days to respond, as allowed in section d below.

If the household reports the addition of a new member, that person may not be included in the allotment until the BPS knows the income and resource information about the individual.

a. Required Supplemental Allotments

If the reported change requires an increase in the household's benefits, the change must be reflected no later than the first allotment issued ten (10) days after the date the change was reported. However, if the increase in benefits is a result of the addition of a new household member or is the result of a decrease of \$50 or more in the household's gross monthly income, the BPS must reflect the change no later than the month following the month in which the change was reported. If it is too late in the month to adjust the upcoming month's allotment, it will be necessary to issue a supplementary allotment by the 10th of the upcoming month.

b. Voluntary Supplemental Allotments

At its option, the local agency may give a supplemental allotment for individual household changes in the month of the changes. The agency may not give supplemental allotments for household composition changes. The agency may give supplemental allotments for income reductions or increased shelter, medical or dependent care expenses.

If the agency opts to provide supplements, the agency must give the supplements for all similar situations, e.g., medical expenses more than \$100, loss of income or income reductions of \$200 or more, etc.

c. Changes and Verification

Households may need to verify information that changes during the certification period. See Part III.E for a discussion of verification requirements for changes unrelated to the Interim Report process. See Part XIV.C.2.c for a discussion of verification requirements for changes related to the Interim Report.

d. Contacting the Household

Whenever the BPS learns of a change or a potential change in the household's circumstances during the certification period, the BPS must determine the impact of the change on the household's eligibility and benefit level based on the information reported. The BPS must initiate the review of the change within ten days of the notification of the change.

1) Informal Contact

Depending on the source of the information reported, as addressed above, and the completeness of the report, the BPS may need to contact the household for additional information or clarification. If the BPS is unable to determine the impact of the information as reported, the BPS should

contact the household by telephone or letter/memo to clarify the information. If the BPS is unable to obtain clarification, the BPS must address the information at renewal or the interim evaluation, whichever is first.

2) Request for Contact

Upon receipt of unclear or unverified information, additional information will be needed before the BPS may act on the information. The BPS must pursue clarification and verification, if appropriate. The BPS must assess:

- If the information is fewer than 60 days old;
- Whether the household would be required to report the information based on the household's reporting requirement, if the information was accurate; or
- If the information significantly conflicts with information presented at certification.

If these conditions apply, the BPS must send the household the *Request for Contact*. The *Request for Contact* must also be sent when mail is returned by the post office as undeliverable. The BPS must complete the form to request information or to request that the household complete an action within ten calendar days. The BPS must not send the *Request for Contact* to evaluate changes the household is not required to report or that do not meet one of the four instances for responding to changes immediately, as outlined above in section 2. See Part XXIV for the *Request for Contact* form.

Timely Response - No change Reported

If the household responds timely to the *Request for Contact* form and there are no changes in the household's circumstances, the BPS must take no other case action related to the change report.

Timely Response - Changes Reported

The BPS must send the household a *Request for Contact* form when a household must clarify its situation or provide additional information as indicated above. The household has ten days to provide the requested information. If the household responds to the request for information within the ten-day limit and reports changes in its circumstances, the BPS must evaluate the changed information within ten days of receiving the information. If the change results in an increased allotment, the BPS must send the *Notice of Action* to show the allotment change for the next month. If the agency provides voluntary supplemental allotments for similarly reported changes, the BPS must approve the supplemental allotment for the current month, in addition to the change for the next month. If the change results in a reduction or termination of benefits, the BPS must send the household the *Advance Notice of Proposed Action* or the *Notice of Action* to allow a minimum of ten days for the household to appeal before the reduction or termination becomes effective.

Untimely Response - No Changes

The BPS must send a SNAP household a *Request for Contact* form when a

household must clarify its situation or provide additional information as indicated above. The household has ten days to provide the requested information. If the household does not respond within the ten-day period, the BPS must send the household an *Advance Notice of Proposed Action* or *Notice of Action* to close the case. If the household responds before the effective date of the closure and there are no changes in the household's circumstances, the BPS must rescind the adverse action notice and reinstate the case.

Untimely Response - Changes Reported

The BPS must send a household a *Request for Contact* form when a household must clarify its situation or provide additional information as indicated above. The household has ten days to provide the requested information. If the household does not respond within the ten-day period, the BPS must send the household an *Advance Notice of Proposed Action* or *Notice of Action* to close the case. If the household responds after the reporting period but before the effective date of the closure, and reports changes to its circumstances, the BPS must review the change report and determine the impact, if any, on the household's eligibility or benefit level. If the household remains entitled to an allotment despite the information, the BPS must send a *Notice of Change* to increase benefits from zero to the revised amount.

No Response to the Request for Contact

If the household does not respond to the request for information by the tenth day, the BPS must send the household an adverse action notice to close the case. The basis for the case's closure will be the household's failure to provide clarification.

If the contact request form is undeliverable by the post office because of the address, the BPS must send the contact request to the new address, if one is supplied by the post office and the new address is in the same Virginia locality as the BPS taking the action. If a returned address indicates that the household is no longer in the locality, the BPS must close the case. Depending on when the changes occurred in a household's circumstances, the BPS might need to file a claim for benefits that the household incorrectly received.

e. Suspension

When changes cause a household to become ineligible and it appears that the ineligibility will be temporary, the BPS may suspend benefits for one month rather than close the case. The BPS must send An *Advance Notice of Proposed Action* to suspend unless the change meets one of the exceptions for sending the notice. After the month of suspension, if ineligibility continues, the BPS must close the case. The BPS must send another *Advance Notice of Proposed Action*. If the ineligibility is indeed temporary, the BPS must reinstate the case effective the month following the suspension.

4. Changes in Public Assistance (7 CFR 273.12(f))

The provisions described in this section do not apply to households converting to Transitional Benefits when a TANF case closes. If a change for a PA case requires either a reduction or termination in public assistance benefits and reduction or termination in SNAP benefits, the BPS must issue a single *Advance Notice of Proposed Action* for both the public assistance and SNAP actions.

If the household requests a fair hearing within the period provided by the *Advance Notice of Proposed Action*, the BPS must continue the household's SNAP benefits on the basis authorized immediately before sending the notice. The household must reapply for SNAP benefits if the certification period expires before the fair hearing process is over, however. If the household does not appeal, the change goes into effect according to the procedures specified in Part XIV.A.2.

If any household's benefits will increase because of the reduction or termination of public assistance benefits, the BPS must not take any action to increase the household's SNAP benefits until the household decides whether it will appeal the public assistance adverse action. If the household decides to appeal and its PA benefits continue, the household's SNAP benefits must continue at the previous allotment amount. If the household does not appeal, the BPS must make the change effective according to the procedures in Part XIV.A.2 except the date the notification of the change is received is the day after the date the Public Assistance *Advance Notice of Proposed Action* expires.

If a change results in the termination of a household's PA benefits and the BPS does not have enough information to determine how the change affects the household's SNAP eligibility or benefit level, the BPS must take the following action:

- a. When the BPS sends the PA *Advance Notice of Proposed Action* the BPS must wait until the notice period expires or until the household requests a fair hearing, whichever occurs first. If the household requests a fair hearing and the PA benefits continue pending the appeal, the household's SNAP benefits must continue at the previous benefit amount.
- b. If a PA *Advance Notice of Proposed Action* is not required or the household decides not to request a fair hearing or continuation of PA benefits, the BPS must send the household a *Request for Contact* form to seek information or clarification from the household. If the household does not respond within ten days, the BPS must send an adverse action notice to close the case.

In jointly processed cases in which the SSI determination results in a denial and the BPS believes that SNAP eligibility or benefit levels may be affected, the BPS must send the *Request for Contact* form for the household to clarify its situation within ten days. The BPS must close the case if the household does not respond to the clarification request.

5. Mass Changes (7 CFR 273.12(e))

A mass change is one that affects the entire caseload or significant portions of the caseload. Mass change notices are not required if the change does not affect current benefits such as an increase in net income limits. For mass changes that only affect benefits for a portion of the caseload, the BPS may opt to send notices to the households potentially or actually affected by the change only instead of the entire caseload. These changes could include a mass change in TANF grant amounts. For mass changes that result in a reduction or termination of benefits, the BPS does not need to send an *Advance Notice of Proposed Action*. Each household must receive an individual notice that a change will occur, however.

A general notice may be used for mass changes. Households must receive the notice no later than the benefit availability date. Minimal information needed on the mass change notice includes:

- a. the general nature of the change;
- b. examples of the change's effect on allotments;
- c. the month in which the change will take effect;
- d. the household's right to a fair hearing;
- e. the household's right to continue benefits as long as its appeal is filed in a timely manner and the issue appealed is the improper computation of SNAP eligibility or benefits, or the misapplication or misinterpretation of federal law or regulation;
- f. general information on whom to contact for additional information; and
- g. the liability the household will incur for any overissued benefits if the fair hearing decision is adverse.

Instead of the above notice, the BPS may send each household an individual *Notice of Action*.

Mass changes include (7 CFR 273.12(e)):

- a. adjustment to the maximum allowable monthly income.
- b. adjustment to the shelter cost deduction.
- c. adjustments to the dependent care deduction.
- d. adjustment of the utility standard.
- e. adjustment of the standard deduction.

- f. adjustment of the full benefit amount.
- g. cost-of-living adjustments in Social Security and SSI benefits.
- h. any other cost-of-living adjustments in benefits such as VA or Black Lung when VDSS notifies local agencies that a change will be a mass change.
- i. mass changes to TANF or GR grants.
- j. monthly supplements to TANF grants based on the receipt of child support issued at the beginning of the month.

Many of the mass changes listed in this section may be effective on October 1 of each year.

Local and state agencies will receive instructions for implementing mass changes as the changes occur.

6. Failure to Report Changes

Households must report certain changes in circumstances as specified in Part XIV.A. If the BPS discovers during the certification period that a household failed to report a change as required and, as a result, received benefits to which it was not entitled, the BPS must issue an *Advance Notice of Proposed Action* and establish a claim against the household according to Part XVII.A if the BPS has enough information to determine ineligibility or the new benefit level. If the BPS does not have enough information to determine a new benefit level or ineligibility, the BPS must send the *Request for Contact* to allow the household ten days to clarify information or to supply verification. The household must supply information or take required action within ten days or the BPS must close the case. The BPS will have ten days to act on the change from the date the BPS learns of the change.

The BPS may not disqualify household members for failing to report a required change unless the BPS establishes, through investigation, that an intentional program violation occurred. In addition, the BPS may not file a claim against a household for failure to report a change that it is not required to report.

7. Reductions or Terminations Due to Disqualification (7 CFR 273.11(c)(3))

When the BPS determines that an individual is ineligible within the household's certification period, the BPS must determine the eligibility or ineligibility of the remaining household members.

- a. If a household's benefits are reduced or terminated within a certification period because one of its members was disqualified due to intentional program violation, the BPS must notify the remaining members of their eligibility and benefit level at the same time the excluded member is notified of his or her

disqualification. The household is not entitled to an *Advance Notice of Proposed Action* but may request a fair hearing to contest the reduction or termination of benefits, unless the household has already had a hearing on the amount of the claim.

- b. If a household's benefits are reduced or terminated within the certification period because one or more of its members is disqualified, as addressed in Part XII.E, the BPS must issue an *Advance Notice of Proposed Action* that informs the household of the disqualification, the reason for the disqualification, the eligibility and benefit level of the remaining members and the actions the household must take to end the disqualification, if appropriate.

8. Retention of Cases When Households Temporarily Leave Project Area

The provisions of this section will not apply to households with active TANF, Refugee Assistance, or Medicaid cases if the BPS transfers a TANF or Refugee Assistance case.

When a participating household is forced to seek temporary housing outside the city/county of usual residence, but still in Virginia, the original locality may, at its option, keep the SNAP case in an active status for up to two calendar months after the move to another Virginia locality. The BPS must transfer the SNAP case at the end of the second month if the household does not return to the original locality, provided the household maintains contact with the BPS. The BPS must transfer the case even if the household intends to return to the locality.

Changes to reflect the new address, shelter costs, income, household composition, or any other reported changes must be acted on and verified, if necessary, in accordance with the "Local Agency Action on Changes" section of this chapter and Part III.E.

The BPS should consider the distance to the household's temporary address in deciding to keep a case active after the move from the locality. If the distance and/or other concerns such as inadequate transportation would hinder continued participation, the BPS should transfer the case. The BPS must close the case if the household requests closure.

This policy only applies to ongoing cases, including households due for recertification. Newly applying and reapplying households must file applications in the current locality of residence. If the household moves while an application (new or reapplication) is pending, the original locality must determine eligibility for the month of application and any other month during which the household was in the locality on the first day of the month and then transfer the case.

9. Transfer of SNAP Cases

When a household moves from one Virginia locality to another, beyond a temporary move as addressed in subsection 8 of this chapter, the agency must generally transfer the case to the other Virginia locality. Agencies must work cooperatively to ensure that there is no break in certification and the issuance of benefits for affected households or that

households are not referred to the original office to file applications, Interim Reports, etc. once they visit or make other contact with the new office.

a. Cases to Be Transferred

The transferring agency may generally transfer any certified, ongoing SNAP case with at least one month remaining in the certification period. These cases may include regularly certified cases and cases receiving transitional benefits. The transferring agency must complete any processes related to the Interim Report and postponed verifications for applications certified under expedited service processing.

If a household moves while an application/renewal is pending, the transferring agency must process the application and generate benefits for any month the household was residing in the locality. After the application has been processed, the transferring agency must transfer the case to the new locality.

In some instances, the BPS may request a closed case file when a household reapplies for benefits in another locality. The transferring agency must also honor the request for a closed case file and transfer the case file promptly.

b. Cases that Cannot Be Transferred

The BPS must not transfer SNAP cases in the following instances:

- The household moves from a Virginia locality to another state. The BPS must close the case.
- There is a pending application/renewal. The BPS in the original locality must process the application. The BPS must secure sufficient information to process the application.
- A case is suspended because of ineligibility unrelated to the move from the locality that is projected to last one month. Resolve the issues that lead to the projected ineligibility and then either close the case or transfer it to the new locality.
- The Interim Report process is incomplete. Resolve any issues related to the Interim Report. Transfer the case if the household remains eligible after evaluation of the Interim Report. If the household contacts the new locality without having submitted the Interim Report, the new locality should provide the Interim Report. If the completed Interim Report and needed verification are provided to the new locality, both the interim and verification must be forwarded to the original locality.
- There is a loss of contact with the household, but the BPS has information that the household no longer resides in the locality.

c. Case Transfer Process for the Transferring Agency

Within five working days after being notified that a household has moved from the locality, the BPS must complete a desk review of the case. The desk review is to ensure that documents are properly filed; the record is complete and orderly; and that documentation of case actions is complete. The BPS must also review the accuracy of the benefit amount in relation to the reported move. The BPS must complete the address change and other changes such as household composition, income or shelter expense changes that result from the move or reported before the move occurs. If the household fails to provide new shelter costs, the BPS must remove existing shelter costs from the SNAP calculations. The BPS must provide sufficient documentation to advise the receiving agency to initiate claims collection activities after the transfer occurs. The case documentation must also support ongoing collection actions.

While the assessment of the case must take place within five days of the reported move, there are instances when the transferring agency must wait a month before completing the transfer. The final assessment of the case must take place after handling postponed verifications for an expedited case or after processing the interim report. The final assessment of the case may take place as late as a month after the report of the move.

If the household reports changes in household circumstances, verification of the changed elements may be needed before the second month, by the next recertification, or for the Interim Report, depending on the impact of the changes on the allotment. Verification will be needed before the second month if the SNAP benefit will increase because of the reported changes. The transferring agency must notify the household on the *Notice of Action* that reflects the allotment change to provide the new verifications to the new agency. The transferring agency must also notify the receiving agency on the *Case Record Transfer Form* to obtain the verification or change the allotment back to the original amount.

The BPS must complete the *Case Record Transfer Form* and forward it to the receiving agency. The transferring agency must transfer the entire case file. At its option, the agency may keep photocopied or other duplicates of case documents. The transferring agency may not keep any of the original documents from the case file except when the transferring and receiving agency both use a compatible electronic filing system or when there is an ongoing claims investigation in which case the agency may keep applicable case information and send a copy of the documents to the receiving agency or arrange to secure the necessary documents later from the receiving agency.

The BPS must complete a *Notice of Transfer* form to notify the household of the transfer of the case. The BPS must send the Notice of Transfer to the household along with a *Change Report* form.

The transferring agency must deliver the intact case file to the receiving agency by certified mail, by authorized courier service, or hand delivery by local agency personnel. The transferring agency must obtain a receipt for the case file from the receiving agency. Note: If the transferring and receiving agency both use a compatible electronic filing system, the transferring agency may share the case information electronically if that is acceptable to the receiving agency. If the receiving agency does not use an electronic filing system, the transferring agency must print the case information and send the documents to the receiving agency.

d. Case Transfer Process for the Receiving Agency

Within five days of receiving a case file transferred from another Virginia locality, the receiving agency must review the case file and determine the continued eligibility and benefit level. The household is not required to report or verify any eligibility elements that may have changed because of the move beyond the mandatory reporting elements (i.e., income that exceeds the gross income level and number of work hours for persons whose benefits would be time-limited).

The receiving agency will be responsible for all future processes related to the transferred case, including such actions as but not limited to, sending the *Notice of Expiration* for the end of the certification period, receiving applications for continued benefits, establishing claims or providing restoration, or responding to quality assurance or hearing officer requests.

The receiving agency must not return a case transferred to it unless the case was sent to the incorrect locality. The receiving agency must not return a case even if the case was not eligible for transfer as noted in section b above.

B. CHANGES REPORTED BY AN APPLICANT HOUSEHOLD WHILE AN APPLICATION IS PENDING

Households must report required changes, as outlined in Part XIV.A.1, no later than 10 days after receiving the Notice of Action to approve the application. If households report any changes before the application is processed however, the BPS must act on that information using the following steps.

1. Assess the information to determine applicability to the month of application or a subsequent period.
2. Determine if verification is needed. If verification of the element is needed, as per Part III.A and Part III.E, request the information from the household. Send a revised verification checklist, allowing the household 10 days to supply the verification.

If this 10-day period would cause the application to be held more than 30 days, extend the processing time, even if all other verification/information has already been provided. If the household provides the verification on or before the 10th day, the household would receive

benefits for the month of application. (Code the delay in processing as Agency Delay so that the household may receive benefits for the month of application, provided the verification is provided by the 30th day or the 10th day noted above.)

3. If the change is reported after Day 30 so that the processing period has already been extended, the household would still get 10 days to provide the additional information. Benefits would be prorated back to the date of the request for the additional information if the verification is provided on or before the 10th day instead of prorating from the date when the final element was verified.
4. Once the changed element has been verified, the new information must be factored in the benefit calculation for the month of application as well as any months that follow the application month. Eligibility and benefit level for the household must be based on the income and expenses already received/reported as well as elements that are anticipated with reasonable certainty to occur during the month.
5. There will be instances when the change will not affect the application month. Such an instance would be when there is a change in the household's composition. Part XIII.A.1 requires that household composition must be evaluated as of the application date so that any change to the household's membership would be reflected the month after the month of the change. This restriction would also include any associated changes such as calculating the income or personal deductions for a specific member.
6. The application must be denied if the household fails to verify the new elements or the items requested originally.

C. INTERIM REPORT FILING

All households must file an Interim Report by the sixth or twelfth month of the certification period unless they are exempt from filing as noted below. In instances where households lose ESAP eligibility, the Interim Report may be due by month 24. Household composition and financial circumstances at the time of application will be the basis of the SNAP benefit amount for the first half of the certification period unless the household reports a change during the certification period before the Interim Report period. Household composition and financial circumstances reported on the Interim Report will be the basis of the SNAP benefit amount for the remainder of the certification period unless the household reports additional changes after filing the Interim Report.

1. Exemption from Filing

The following households are exempt from filing Interim Reports:

- a. Households with certification periods of six months or less which may include:
 - 1) Households with unstable or changeable circumstances, such as homeless households and households with migrant or seasonal farm workers.
 - 2) Households that receive Transitional Benefits for former TANF recipients.

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- b. Households with certification periods of 12 months or less if all household members are elderly or permanently disabled and there is no earned income.
- c. Households certified through VaCAP or ESAP.

2. Interim Reporting Filing

The Virginia Department of Social Services will generate and mail Interim Reports to certified households for which the sixth or twelfth month of the certification period is the following month. A list of cases sent the Interim Report each month and a copy of individual reports are available online.

- a. Household Responsibilities
The household must:
 - Complete the Interim Report and return it to the local department of social services by the fifth day of the sixth or twelfth month. Any responsible household member or authorized representative may complete the Interim Report.
 - Supply verification of changed elements.
 - Provide additional information or verifications, as requested, within 10 days of the request.
- b. Agency Responsibilities
The BPS must:
 - Assess Interim Report forms returned from households for completeness, accompanied verifications and reported changes.
 - Remove all shelter expenses if the household fails to declare shelter expenses that result from a move reported on the Interim Report.
 - Give no allowance for unverified or undeclared expenses. Leave the prior child support payment amount in place but remove all existing shelter expense amounts.
 - Assess and act on returned Interim Report forms:
 - Interim Report forms returned on or by the 20th of the sixth/twelfth month (or the 18th or 19th of February, as appropriate), complete the assessment and reinstate the case to provide benefits timely for month seven/thirteen for eligible households.
 - Interim Report forms returned after the 20th of the sixth/twelfth month (or after the 18th or 19th of February, as appropriate), complete the assessment and reinstate the case to provide benefits within 10 days of receipt, as all other reports of changes. The BPS is encouraged to act promptly to avoid case closures and delay of benefits. (See Part XIV.A.2.)
 - Evaluate and act on completed interim report forms returned in month seven/thirteen after closure of a case. If eligible for benefits, reinstate the case without requiring the household to reapply.
 - Provide benefits, as allowed in section d. below, after

- determining the cause of the delay.
 - Provide benefits, as allowed in section d. below, after determining the cause of the delay.
 - Require the household to reapply for benefits if the household returns the interim report after month seven/thirteen.
- Send the *Interim Report Form - Request for Action* form
 - If the household fails to return a completed Interim Report timely. Send the *Interim Report Form-Request for Action* by the 15th of the month when the Interim Report is missing. Provide another Interim Report if the household requests it.
 - If the returned Interim Report is incomplete or lacks required verifications of reported income changes and the BPS is unable to obtain information from the household by telephone or other household contact. Send the original Interim Report to the household along with the *Interim Report Form-Request for Action* if information is not obtained.
 - If the returned Interim Report lacks a signature. Send the original Interim Report to the household.
 - The household will have 10 days to supply information, verification, or to complete the form, even if the 10-day period expires after the case should automatically close.
 - Photocopy an incomplete Interim Report before sending the form back to the household.
- If the household fails to return an Interim Report or fails to return a completed Interim Report by the VaCMS cutoff of month six/twelve, the case will automatically close at the end of the sixth or twelfth month, as appropriate. The BPS must send an adequate notice before closure of the case if the household fails to submit a completed Interim Report. The BPS must also send an adequate notice before closure of the case if the household fails to take required actions or to supply requested verifications.

Incomplete Interim Reports

The Interim Report is incomplete if:

- The case name, head of the household, responsible household member or authorized representative has not signed the form;
- The household fails to answer each question or fails to submit verification of income; or
- The household fails to provide information needed to determine eligibility or benefit level, such as failing to note if changes have occurred in household composition or the address.

The BPS must use reasonable judgement to determine if the Interim Report is incomplete. For example, if the household indicates that no changes have occurred for income but supplies new pay stubs, the report is complete. Consider the Interim Report complete even if the household fails to:

- Provide proof of reported changes in its child support obligation or the amount paid; or
 - Declare new shelter expenses that result from a move to a new residence.
- c. **Verification Requirements**
To determine eligibility for the second half of a certification period, the household must provide the following:
- Proof of changed income amounts, ($\geq$ \$125) or source changes, including starting or stopping. The BPS must request sufficient income verification that will allow a reasonable monthly estimate of the income expected.
- Note: The household does not need to submit verification of self-employment or contract income that has been averaged or verify exempt income or resources.
- Proof of other elements. The household may need to verify other eligibility elements reported on the Interim Report, as needed.
- d. **Calculation of Benefits**
The BPS must:
- Determine a household's continued eligibility and benefit level effective the seventh or thirteenth month based on information provided through the Interim Report or generated through systems inquiries if the source generated and verifies the information.
 - Determine the date of receipt of the Interim Report or required verification if it is received in month seven/thirteen.
 - Determine who caused the delay. A delay will be agency-caused if agency actions contribute to a delay in the return of the Interim Report (such as an incorrect address) or if the initial request for required verification or information is delayed so that the 10-day period to return the information extends into month seven/thirteen.
 - Agency Delay: Provide benefits for month seven/thirteen in full without proration.
 - Household delay: Prorate benefits for month seven/thirteen from the date when the Interim Report is submitted or when the last required verification or information element is provided.
 - Reinstate the case after the evaluation of the Interim Report; and
 - Provide an adequate notice to the household, as appropriate, of ineligibility or the benefit calculation for the second half of the certification period that results from the evaluation of the Interim Report.

D. ADVANCE NOTICE OF PROPOSED ACTION

The household must receive written notice prior to any action to reduce or terminate benefits within the certification period. The advance notice period is 10 days and begins with the day following the date the BPS gives or mails the notice to the household. The BPS may use the Notice of Action for

this purpose, unless benefits in both TANF and SNAP are reduced or terminated simultaneously. In that case, the BPS may use the Advance Notice of Proposed Action. Both forms and instructions are in Part XXIV.

Neither an advance notice nor an adequate notice is necessary when (7 CFR 273.13(b)):

1. All members of the household have died.
2. The household has moved from the locality, except in those situations where the agency transfers the case or opts to retain the case as allowed by Part XIV.A.7.
3. Restoration of benefits is complete and the household had previous notification when the increased benefits would terminate.
4. The allotment fluctuates monthly due to anticipated changes and the household had prior notice at the time of certification.
5. Simultaneous applications were made for TANF/GR and SNAP benefits and the household was notified that receipt of financial assistance could reduce the benefit level.
6. A household is given a normal certification period under expedited service contingent on the receipt of postponed verification, provided the household receives written notice that benefits may be reduced or terminated upon receipt of the postponed verification or if verifications postponed are not received.
7. A household's benefits increased based on a reported change and later decreased to the original amount when the household fails to provide verification, provided the local department advised the household at the time of the increase. (See Part XIV.A.2.)
8. All members have moved into an ineligible institution (one that does not meet the requirements of Part VII.C.1a-d).
9. The household voluntarily requests to end its SNAP benefits or requests to end Transitional Benefits and makes the request in writing or in the presence of a worker. If the household does not provide a written request, the local department must send the household a letter to confirm the voluntary withdrawal.
10. A participating household fails to respond to a demand letter requesting repayment of a claim and the local department initiates benefit reduction.
11. A household is converted from cash and/or a voluntary benefit repayment of a claim to benefit reduction. (See Part XVII.F.)

In instances where the BPS does not need to send a notice if the household had prior notice of the change, the BPS must send an advance notice if the household did not receive a notice. In addition, the advance notice is not necessary when the household reports a change before the beginning of the certification period even though the Notice of Action to inform the household of

approval may have already been sent.

Example

A household files for recertification and approved on July 18. The BPS provides a Notice of Action on this same day. The new certification period is to begin August 1. On July 25, the household reports a change that would decrease the benefits for August. The Advance Notice of Proposed Action is not required. Instead, provide a revised Notice of Action.

The advance notice may be retracted if it is mailed by mistake. It may also be retracted if it becomes unnecessary because the household's situation changes during the advance notice period. The household must be informed of the retraction.

If an advance notice is mailed giving erroneous information, a corrected notice must be mailed. If the new allotment will be more than that which the household has already been told, the BPS must continue with the original effective date. If the new allotment amount will be less than that which the household has already been told, the BPS must begin the 10-day advance notice period again.

Example

An advance notice is mailed on October 20 to decrease benefits to \$50. The new amount should have been \$45. A corrected notice is mailed on October 25.

Decrease benefits to \$50 effective November 1. Decrease benefits to \$45 effective December 1.

E. ADEQUATE NOTICE

Adequate notice of a change in benefits is by the time the changed benefits are received by the household, or by the time the benefits would have been received if the case had not been closed. The *Notice of Action* may be used for this purpose. The form and instructions are in Part XXIV.

Adequate notice is necessary In the following situations:

1. Certain mass changes take place. (See Part XIV.A.4.)
2. A waiver to an *Advance Notice of Proposed Action* is signed because continuing the original benefit amount will result in a claim for which the household may be required to repay. The BPS must explain to the household that it is the household's choice whether to sign the waiver.
3. Benefit reduction is invoked when a participating household responds to a demand letter by requesting renegotiation of the repayment schedule but the BPS determines renegotiation is not warranted. (See Part XVII.F.)

4. The person is a resident of a drug or alcoholic treatment center or group living arrangement and the facility loses its FNS authorization or its certification from the appropriate state or local agency.

Note: Residents of group living arrangements applying on their own behalf are still eligible to participate.

5. A household member is disqualified for fraud, or the benefits of the remaining household members are reduced or terminated to reflect the disqualification of that household member.
6. The BPS determines that, based on reliable information, the household will not be residing in the locality as of the first day of the next month unless the agency opts to retain the case, as allowed by Part XIV.A.7, or unless there is sufficient information to allow the agency to transfer the case, as allowed by Part XIV.A.8.
7. A certified household's address is unknown and mail has been returned by the post office indicating no known forwarding address. The agency must send the Request for Contact in response to the returned, undeliverable mail.
8. A household files a timely request for a fair hearing and requests continuation of benefits in response to a prior notice to reduce or terminate benefits.
9. A household becomes ineligible for Transitional Benefits, such as when it reapplies for TANF assistance.
10. The BPS completes an evaluation of eligibility and benefit level based on a returned, completed Interim Report.
11. The household files an incomplete Interim Report or the household failed to submit a completed Interim Report.

CHANGES IN INCOME, DEDUCTIONS, RESOURCES

Within 10 days of the report from one of the four sources listed in Part XIV.A.2, the BPS must:

- Determine the amount:
Income: Frequency, rate, dates of receipt
Deductions: Frequency, amounts, due dates, entitlement
- Include in existing calculations to determine continued eligibility and benefit level.
- Compare to gross/net income standards, resource or deduction maximum, as appropriate.

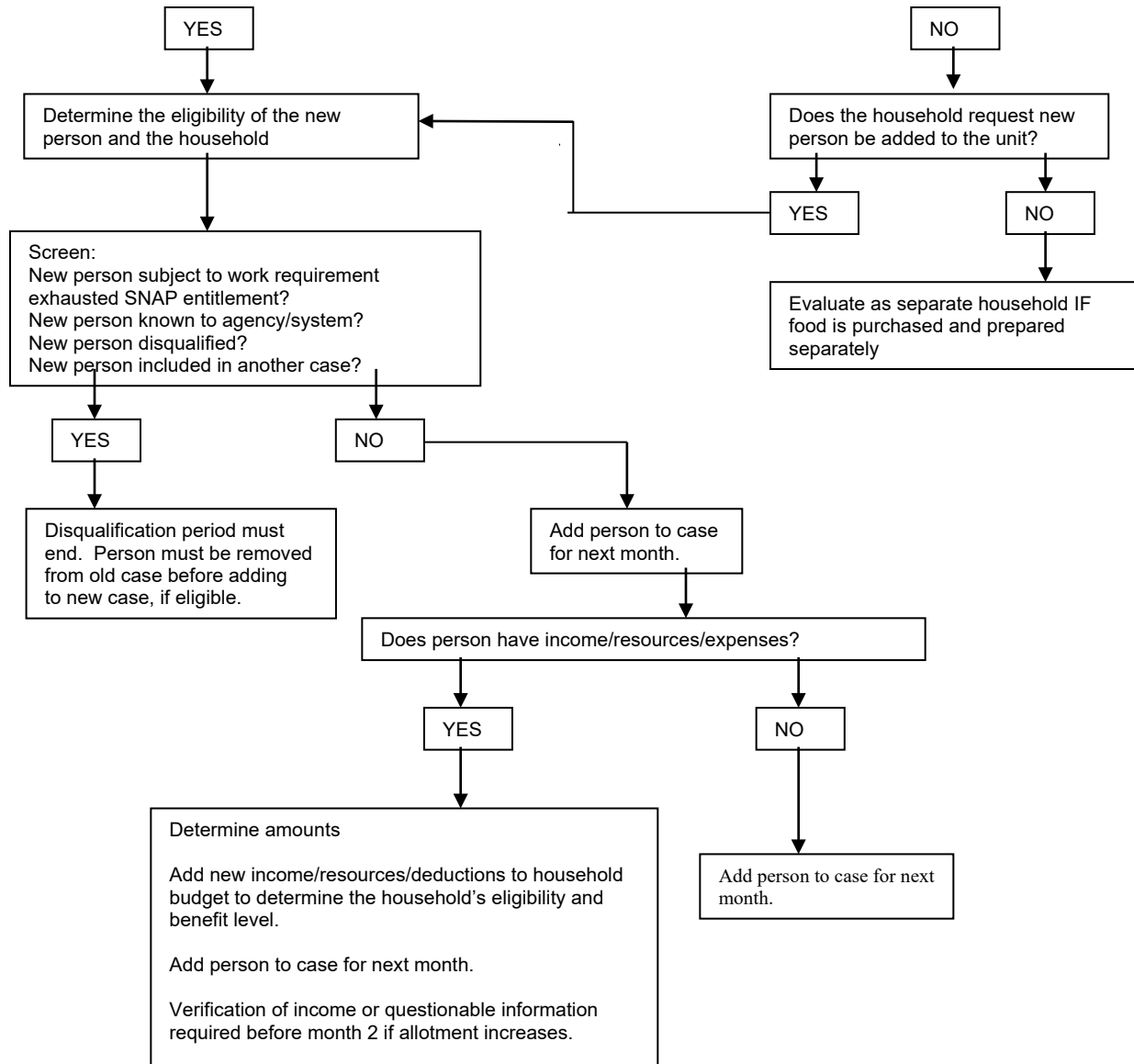
After change evaluation, is the household still eligible?

Yes	No	Unknown
Send 10-day advance notice if the benefits decrease. Verification needed at recertification. Send Notice of Action if the benefits increase. Verify new information before Month 2. If not verified, amount is returned to the original amount.	Send 10-day advance notice to close case or to suspend case for one month. Verify information if questionable.	Household must clarify or verify change within 10 days. Contact the household informally. If the household does not respond or take sufficient action, consider the information at recertification or for the interim, whichever is first.

The BPS must normally make changes for the month after the month the change is reported. Except for household composition changes, the BPS may give supplemental allotments for reevaluations made in the month of the change. The BPS may authorize supplemental allotments at the local agency's discretion but must do so uniformly. If the agency makes voluntary supplements, the BPS must provide supplements for all comparable changes.

CHANGES IN HOUSEHOLD COMPOSITION

New Household Member Reported - Is person required to be in the household?



Other actions due with change evaluation: Alien status established
Student eligibility established

Actions due at recertification: Social Security number obtained or proof of application for number
Work registration completed
Alien registration number obtained

These actions may be discussed and information obtained at the time of the change report however, no negative action may be taken if processes are not completed at this time.

PART XV WORK REQUIREMENT

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A. GENERAL PROVISIONS

All individuals, able to work, must be working or actively engaged in a work activity to receive SNAP benefits. Unless an exemption to the work requirement exists, individuals may receive SNAP benefits for only three months during a 36-month period. Individuals must be evaluated for exemptions as allowed in Part XV.B. After the initial three-month period (Y1 benefits), an individual may receive benefits through a Special Exemption (E9) to allow certification up to six months. Special Exemption E9 months may also extend the certification period to six months for households with members who regain eligibility (Y2 benefits), as allowed in Part XV.C. The E9 allowance does not apply when an individual's status changes during an established certification period. After the initial and regained benefit months (Y1, Y2) have been exhausted, an individual may receive benefits only if there is an exemption to the work requirement.

To receive SNAP benefits beyond three months, a nonexempt able-bodied household member must:

1. work for cash wages in any amount or for in-kind goods or services for 20 hours or more per week, averaged monthly;
2. participate in and comply with requirements of an employment services program operated by the Department of Social Services, other than job search, for 20 hours or more per week or for the number of hours assigned for the work experience component as calculated by the household's allotment divided by the federal minimum wage;
3. participate in and comply with non-departmental (VDSS) work programs for 20 hours or more per week;
4. serve in an unpaid, volunteer capacity for a public or private agency, at a minimum, for the number of hours that is equal to the household's allotment divided by the federal minimum wage; or
5. any combination of these activities.

If the member was unable to work, as described above, and is able to show good cause, the member will meet the work requirement as long as the absence is temporary and the member retains the job.

The 36-month period is a fixed period from the first of the month in which a household containing an individual between 18 and **65** years of age is certified in Virginia. The 36-month period will begin and continue for any household member who is at least 18 and under **65** years of age, even if an exemption from the work requirement exists for that member at the time of certification or other case action. Tracking must be completed for all individuals within the age range, even when they are exempt.

Any month in which an affected individual receives the full benefit month as part of a certified household will count toward the three-month limit.

Months in which a household receives prorated benefits will not count toward the three-month limit. Months in which a household does not receive an allotment because benefits are prorated to zero (i.e., less than \$10) will also not count toward the limit. Months in which a certified household is eligible to receive benefits but does not actually participate do not count toward the three-month period. Months for which a household repays benefits received erroneously also will not count toward the three-month limit once the household repays the claim in full.

For the purposes of this provision, a work program will include programs operated under the Workforce Innovation and Opportunity Act (WIOA) and the Trade Adjustment Assistance Act in addition to the agency-sponsored employment and training programs. Job search activities assigned through SNAP E&T or other state or local social services programs are not acceptable tasks to count toward establishing a household member's eligibility for continuing benefits beyond the initial three-month limit. Job search activities assigned through WIOA will be evaluated as an acceptable task, however.

An unemployed (0 work hours) or underemployed (<30 work hours) individual is not entitled to additional benefits during the balance of the 36-month period after receiving benefits for three countable months, unless the individual meets an exemption from the work requirement or meets the regaining provisions of Part XV.C. The BPS must send an advance notice to participating households when a member becomes ineligible to participate further because of the work requirement. Such a household member is a disqualified household member during any period in which the individual does not meet the work requirement. See Parts VI.C and XII.E for a discussion of disqualified household members.

Ongoing households with members who are not eligible because of the work requirement must continue to report changes involving these members.

B. WORK REQUIREMENT EXEMPTIONS

The following individuals are exempt from the work requirement:

1. Any individual who is under 18 years of age or **65** years of age or older. See Part XIII.A.2.
2. Any individual who is medically certified as mentally or physically unfit for work or has other barriers that make them unfit for work, such as chronic homelessness. Chronic homelessness is defined as meeting at least one of the components of the homeless household found in Definitions for six months or more.
3. Any adult member of a SNAP household of which a child under age **14** is part of the SNAP household.
4. A pregnant woman.
5. Any resident of an exempt locality. The exemption may be based on the unemployment rate of the locality or its identification as a Labor Surplus Area.

6. **An individual who is:**
 - a. **An Indigenous Person.** This section refers to one who is called an Indian, Native American, Alaska Native, Indigenous Person, or Tribal Member. This section also references units as tribes, bands, nations, or other organized groups or communities based on limited definitions of the Indian Health Care Improvement Act (IHCIA), or any Alaska Native village or group or regional or village corporation pursuant to the Alaska Native Claims Settlement Act.
 - b. **An Urban Indigenous Person.** This is one who:
 - 1) resides in an urban center which is any community with a sufficient urban indigenous population, whether they live on or near a reservation, and meet one of the following:
 - a. is a member or a first- or second-degree descendant of a member of a tribe that has been terminated since 1940 and those recognized now or in the future by the State in which they reside; or
 - b. is determined to be indigenous by the U.S. Secretaries of Interior or Health and Human Services.
 - 2) is an Eskimo or Aleut or other Alaska Native.
 - c. **An individual is a "California Indigenous Person" who:**
 - 1) is a member of a federally recognized tribe;
 - 2) is a descendant of an Indigenous Person who was residing in California on June 1, 1852, if the descendant:
 - a. is a member of the community served by a local program of the Indian Health Service; and
 - b. is regarded as an Indigenous Person by the community in which the person lives.
 - 3) is an Indigenous Person who holds trust interests in public domain, national forest, or reservation allotments in California; or
 - 4) is an Indigenous Person of California listed on the distribution plans for assets of rancherias and reservations located in California under the Act of August 18, 1958, and any descendants.
7. Any individual who is otherwise exempt from work registration as outlined in Part VIII.A.1, **excluding age**.

The BPS must:

- assess every household member for exemption from time-limited benefits;
- assess fitness for employment at certification or recertification; and
- document that the household was informed of the exemptions or how to comply, **including providing verification of one's tribal affiliation of indigenous status.** Documentation may include that the SNAP Time-Limited Benefit flyer was provided.

The BPS must establish the 36-month period and track the reasons for the exemption for everyone who meets an exemption other than age.

C. REGAINING ELIGIBILITY

Nonexempt individuals denied eligibility after being eligible for three months of Y1 initial benefits, or those who would have been denied if an application had been filed, can regain eligibility. These individuals may regain eligibility only under specific conditions for the balance of the 36-month period. Individuals who regain eligibility by being exempted from the requirement will remain eligible as long as the exemption exists. Individuals, who regain eligibility through work activities, as listed below, are eligible for a maximum of three months of regained benefits (Y2) if they are no longer working or involved in a work activity.

1. Eligibility Dependent on Changes in Circumstances

SNAP eligibility may be reestablished for an individual who loses eligibility because of the work requirement if the individual becomes exempt from the work requirement as listed in Chapter B. For participating households, an individual may regain eligibility the month following the month the change occurs. Reapplying households may regain eligibility on the date of application or a later date if the individual's status has changed.

2. Eligibility Dependent on Work Activities

Nonexempt individuals denied after being eligible for the initial three-month period of Y1 benefits, or any subsequent period of unemployment, may regain eligibility only if the individual:

- a. works 80 hours or more during a 30-calendar day period; or
- b. complies with requirements of work programs identified in Part XV.A for 80 hours or more during a 30-calendar day period.

The BPS must document the case to show that the required work effort met the 80-hour/30-day requirement. The documentation must include the number of hours, place, and period of employment. Households may not use any work activities performed before the three-month eligibility period for Y1 or Y2 benefits have expired to regain eligibility.

Nonexempt individuals who have received their three initial months of benefits (Y1) can receive SNAP benefits for up to three consecutive months (Y2) once the 80-hour, 30-day requirement has been satisfied. Once the evaluation period for regained benefits begins, the period must continue even if the individual is ineligible for SNAP benefits during a portion of the period. Benefits for the second three-month period may be provided only if the qualifying work (a-b above) has terminated or is reduced below the qualifying standards of Chapter A. Once the BPS establishes eligibility for Y2 benefits, the certification period must end.

If the qualifying work continues after the initial 80 hours, eligibility may continue under the normal work requirement rules. Entitlement to the Y2 benefits is postponed until a later time during which the household member is no longer working or is no longer exempt from the Work Requirement.

Applications filed for nonexempt household members before the completion of the 80 hours/30-day rule must be denied if the 80 hours will not be completed during the month of application. If the 80 hours will be completed during the month of application but after the application filing date, benefits must be prorated from the date after eligibility is established. See Part XIII.D.2 for additional information regarding the calculation of benefits.

Regaining and Maintaining Eligibility

After receipt or authorization of the second set of benefits (Y2), following subsequent periods of unemployment or under-employment (less than 20 hours per week), a nonexempt member must regain (a–b above) and maintain that eligibility by engaging in a work activity as required by Chapter A. During a period of unemployment or underemployment, a nonexempt member is not eligible for benefits. There is no limit to the number of times a member may engage in this regaining-maintaining eligibility cycle.

Localities Whose Residents Are Exempted from the Work Requirement*

April 2020- June 2023	July 2023- June 2024	July 2024- June 2025	July 2025-
Statewide Exemption	Brunswick Buchanan Danville Dinwiddie Franklin City Greensville/ Emporia Hopewell Nottoway Petersburg Portsmouth Prince George Sussex	Brunswick Buchanan Danville Dickenson Dinwiddie Greensville Emporia Hopewell Martinsville Petersburg Surry Sussex	No exempt areas

*The BPS must track the work requirement for all household members except those persons under 18 or over age 54.

PART XVI RESTORATION OF LOST BENEFITS

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A. RESTORATION OF LOST BENEFITS (7 CFR 273.17(a) and (b))

1. The local agency must restore any benefits that the household lost whenever:
 - a. The State Department or local agency causes an error that results in a loss, including an invalid denial of an application or termination of benefits;
 - b. Federal regulations or instructions specifically provide for restoration of lost benefits; or,
 - c. The loss was due to an intentional program violation disqualification based on a court conviction and the decision of the court is reversed.

The local agency must also restore benefits whenever the loss was caused by an error of the Social Security Administration (SSA) when the error resulted from joint processing of an SSI household. Such an error would include, but is not limited to, the loss of a SNAP application after the applicant filed an application with SSA.

2. Households will not normally receive restoration for an action that occurred more than 12 months before the most recent of the following:
 - a. The month the household, or another person or agency notified the local agency in writing or orally of the possible loss to a specific household;
 - b. The month the BPS discovers, in the normal course of business, that a loss to a specific household has occurred; or,
 - c. The date the household requested a fair hearing to contest the adverse action that resulted in the loss.

Any exceptions to the 12-month restriction on restoration, will be noted at the time specific policy requiring a restoration is issued.

If the state or local agency determines that a loss of benefits has occurred and the household is entitled to restoration of those benefits, the BPS must act immediately to restore any benefits lost within the limits described above. No action by the household is necessary.

The BPS must notify the household of its entitlement and other pertinent information by providing the household with the *Entitlement to Restoration of Lost Benefits*. See Part XXIV for a copy of the form and instructions. The BPS must also use the form to notify households who have requested a review of their case for lost benefits that the household is not entitled to restored benefits.

The BPS must provide restoration benefits to any household entitled to the benefits even if the household is currently ineligible.

B. COMPUTING THE AMOUNT TO BE RESTORED (7 CFR 273.17(d))

After correcting the error and excluding those months for which benefits may have been lost prior to the 12-month time limits described in Part XVI.A., the BPS must calculate the amount to be restored as follows:

1. If the household was eligible but received an incorrect allotment, the BPS must calculate lost benefits only for those months the household participated.
2. If the loss was caused by an incorrect denial or termination of benefits, the BPS must calculate the months affected by the loss as follows:
 - a. If an eligible household's initial application or reapplication was erroneously denied, the month the loss initially occurred will be the month of application, or for an eligible household filing a timely application for recertification, the month following the expiration of its certification period.
 - b. If an eligible household's benefits were erroneously terminated, the month the loss initially occurred will be the first month benefits were not received because of the erroneous action.

Example

An eligible household's benefits were erroneously terminated effective June 30. The error was discovered in August and the household was given an opportunity to participate in August. The household is entitled to restoration of lost benefits for the month of July.

After computing the date the loss initially occurred, the loss must be calculated for each month after that date until either the first month the error is corrected or the first month the household is found ineligible.

Examples

- 1) The BPS has determined that a household is entitled to restoration of lost benefits beginning July 1. The error made by the local agency was corrected in September and an opportunity to receive the correct allotment was provided in September. Benefits must be restored for July and August.
- 2) The BPS has determined that another household is also entitled to restoration of lost benefits beginning July 1. The error was found in September, at which time it was determined that the household would not have been eligible for other reasons in either August or September. The household would have been eligible in July. Benefits must be restored for July only.

3. For each month affected by the loss, the BPS must determine if the household was indeed eligible. In cases where there is no information in the household's case file to document that the household was eligible in that month, the BPS must advise the household of what information must be provided to determine eligibility for these months. For each month the household cannot provide the necessary information to demonstrate its eligibility, the household is ineligible.
4. For the months the household was eligible, the BPS must calculate the allotment the household should have received. If the household received a smaller allotment than it was eligible to receive, the difference between the actual and correct allotments equals the amount to be restored.

Example

A household was certified for benefits for \$70.00 for the months of July through September. The household participated, i.e., benefits were posted to the EBT account each of these three months. The benefit amount should have been \$100.00 each month. As a result, the household is entitled to \$90.00 in lost benefits ($\$100.00 - \$70.00 = \$30.00 \times 3 \text{ months} = \90.00).

5. If a claim against a household is unpaid or if an overissuance and an underissuance of benefits are discovered at the same time, the BPS must offset the amount to be restored against the amount due on the claim before the household will receive any restored. Claims may not be offset against the household's current month's even if the initial allotment includes a retroactive amount.

C. METHOD OF RESTORATION (7 CFR 273.17(f))

Regardless of whether a household is currently eligible or ineligible, the BPS must restore lost benefits to a household by issuing an allotment equal to the benefit amount that were lost. The BPS must provide the restored amount in addition to the monthly benefits currently eligible households are entitled to receive.

The BPS must honor reasonable requests by households to restore lost benefits in monthly installments. A reasonable request would include that the amount to be restored is more than the household can use in a reasonable period.

D. RESTORING BENEFITS TO HOUSEHOLDS NOT RESIDING IN THE LOCALITY

There may be times when a household no longer residing in the locality is due restoration of lost benefits. In these instances, if the household is receiving SNAP benefits in another Virginia locality, the BPS must notify the new locality and submit documentation to allow the new agency to authorize restored benefits. If the household is not receiving SNAP benefits in another Virginia locality, the agency must authorize restored benefits.

E. CHANGES IN HOUSEHOLD COMPOSITION (7 CFR 273.17(g))

Whenever a household is due lost benefits and the household's membership has changed, the BPS must restore the lost benefits to the household that contains most of the individuals who were household members at the time the loss occurred. If the BPS cannot locate or determine the household that contains most of household members, the BPS must restore the lost benefits to the household containing the person designated as the head of the household at the time the loss occurred.

F. RECORD KEEPING (7 CFR 273.17(h))

The local agency must maintain any documentation that supports the entitlement to restoration for each instance in which restoration of lost benefits is appropriate.

G. DISPUTED BENEFITS (7 CFR 273.17(c))

If the BPS determines that a household is entitled to restoration of lost benefits, but the household does not agree with the amount to be restored as calculated by the local BPS, the household may request a fair hearing within 90 days of the date the household is notified of its entitlement to restoration of lost benefits. The household may also request a hearing on any other action taken to restore lost benefits. If the household requests a hearing before or during the time BPS is restoring lost benefits, the household will receive the lost benefits as determined by the local agency pending the results of the fair hearing. If the fair hearing decision is favorable to the household, the local agency must restore the additional lost benefits in accordance with the decision.

If a household believes it is entitled to restoration of lost benefits, but the BPS does not agree after reviewing the case file, the household has 90 days from the date of the local BPS determination to request a fair hearing. The BPS must restore lost benefits to the household only if the fair hearing decision is favorable to the household. The household is not entitled to benefits lost more than twelve (12) months before the date the local agency initially discovered the household's possible entitlement to lost benefits.

PART XVII RECIPIENT CLAIMS

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PART XVII

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A. CLAIMS AGAINST HOUSEHOLDS (7 CFR 273.18(a))

A claim against a household is an amount owed because:

- A household received more SNAP benefits than it was entitled to receive, resulting in an overpayment; or
- SNAP benefits were trafficked which is the buying or selling of SNAP benefits for cash or consideration other than eligible food; or for the exchange of firearms, ammunition, explosives, or controlled substances.

B. TYPES OF CLAIMS (7 CFR 273.18(b))

There are three types of claims:

1. Agency Error (AE) Claims

An Agency Error is any claim for an overpayment caused by an action or failure to take action by the state or local department of social services.

2. Inadvertent Household Error (IHE) Claims

An Inadvertent Household Error is any claim for an overpayment that results from a misunderstanding or unintended error on the part of the household.

3. Intentional Program Violation (IPV) Claims

An Intentional Program Violation is any claim for an overpayment or trafficking resulting from an intentional error on the part of the household. An IPV is defined in Definitions.

In order for a claim to be an IPV, there must be a finding of IPV or fraud by a court, a signed waiver to an Administrative Disqualification Hearing (ADH), or a finding of IPV by a hearing officer as a result of an ADH.

Prior to the determination of IPV, a claim against the household must be established as an IHE claim, except for a trafficking claim, which may only be established as an IPV. However, if the prosecutor advises that collection action may prejudice the case, or the person responsible for signing ADH referrals decides to postpone collection action on cases referred for ADH, no collection action should be taken. If the household member is found not guilty of IPV, either by a court or through an ADH, the claim must be handled as an IHE claim.

a. Referral for Prosecution (7 CFR 273.16(a))

The local department of social services must confer with the local prosecutor to determine the types of cases acceptable for possible prosecution and actual cases of alleged IPV to refer for prosecution. An agreement between the local department of

social services and the prosecutor must include information on how and under what circumstances cases will be accepted for possible prosecution and any other criteria set by the prosecutor for accepting cases for prosecution, such as a minimum amount of overpayment.

The local department of social services may refer a case for prosecution regardless of an individual's current eligibility. The local department of social services is encouraged to refer for prosecution persons suspected of committing an IPV where large amounts of overpaid benefits are involved or where more than one intentional act is suspected. The local department of social services should also encourage the prosecutor to recommend to the court that a disqualification penalty be imposed in addition to any other criminal penalties for such violations. Information on a prior IPV should be shared with the prosecutor to support the assignment of an appropriate disqualification period.

b. Referral for Administrative Disqualification Hearing (ADH) (7 CFR 273.16(e))

See Part XIX for complete ADH guidelines.

An ADH is an impartial review by a hearing officer of a household member's actions involving alleged IPV. The hearing officer must decide if a household member is guilty or not guilty of committing an IPV.

The local department of social services may refer an individual for an ADH regardless of the current eligibility of the individual.

The local department of social services should request an ADH when:

- the agency believes the facts of the case do not warrant criminal prosecution through the courts;
- a case referred for prosecution was declined by the prosecutor;
- a case referred for prosecution was formally withdrawn by the local department of social services because no action was taken by the prosecutor within a reasonable period.

Cases dismissed or acquitted in court may not be referred for an ADH. A case may not be referred for an ADH while its referral for prosecution is in process. An ADH does not prevent the local department of social services, state or federal government from prosecuting the household member for an IPV in a court of appropriate jurisdiction.

C. CALCULATING THE CLAIM AMOUNT (7 CFR 273.18(c))

1. Claims Not Related to Trafficking

A claim must be calculated back to at least twelve months prior to when the BPS discovered

the overpayment, except for an IPV claim, which must be calculated back to the month the act of intentional program violation first occurred. In addition, for all claims, the BPS must not include any period that occurred more than six years before the BPS discovered the overpayment.

The BPS must determine the correct benefit amount for each month the household participated. The income conversion factors of 4.3 or 2.15 must be used, if appropriate, based on Part XIII.A.3, to determine the monthly income. If the claim is an IHE or an IPV claim, the BPS must not apply the earned income deduction to that part of any earned income that the household failed to report in a timely manner.

If, due to either an inadvertent error on the part of the household or an intentional act on the part of the household, a household failed to report a required change in its circumstances within the prescribed time limits provided in Part XIV.A, the first month that benefits were overpaid will be the first month in which the change would have been effective had it been reported timely. Factor in only the 10-day reporting period and the advance notice period. In no event, however, may the BPS determine as the first month in which the change would have been effective, any month later than two months from the month in which the change in household circumstances occurred.

If the household reported a change within the prescribed time limits, but the BPS did not act on the change timely, the first month affected by the failure to act must be the first month the BPS should have made the change effective. Therefore, if an advance notice was required but was not sent, the local department of social services BPS must assume that the maximum advance notice period, as provided in Part XIV.D, would have expired without the household requesting a fair hearing. Do not factor in a 10-day agency action period.

If an overpayment is discovered for a month or months in which a mandatory SNAPET participant has already participated in a work experience assignment, the BPS must determine if the person who performed the work is still subject to a work obligation and determine how many extra hours were worked because of the improper benefit. The participant must be credited that number of hours toward future work obligations.

Once the BPS calculates the amount of correct benefits the household should have received, the BPS must subtract the correct amount of benefits from the benefits the household received to determine the amount of the overpayment or claim.

After calculating the amount of the claim, the BPS must offset the amount of the claim by any amounts which have not yet been restored to the household. The BPS must also offset the amount of the overpayment by the amount of any electronic benefits expunged from the household's EBT account. The difference is the amount of the claim.

If the information needed to compute an overpayment is lacking, no claim can be established until the information is received.

Averaged Income Calculation for Cases Pending Prosecution

The provisions of this section will apply only after the local department of social services has attempted to obtain monthly wage information through all possible means, including issuing

a subpoena duces tecum. A subpoena duces tecum is not appropriate if an employer confirms a monthly breakdown of the income is not available or if the employment records are maintained in another state as some states may not honor another state's subpoena.

The BPS must:

- Verify the beginning and end dates of each period of employment.
- Evaluate the individual's tax return or W-2 forms to calculate a monthly average if other records are not available. VEC records may not be used.
- Establish the claim with NFD (No Fraud Decision) status code. Use the NFD code even if there is an agreement with the Commonwealth's Attorney (CA) to pursue collection prior to prosecution.
 - Advise the CA the overpayment amount was calculated by using a monthly average instead of the actual monthly wages.
- If the case is not accepted for prosecution or the person is found not guilty, collection may still be appropriate and if so, an IDL is required.
 - Annotate the Overpayment Calculation form generated with the IDL with: *"To calculate the overissuance, we used a monthly average as we were not able to get your actual monthly wages from your employer. If you disagree with the use of a monthly average, you may request an agency conference and provide your actual income, and we will recalculate your overissuance to determine if there is any change."*

2. Trafficking Claims

The amount of a claim resulting from trafficking of SNAP benefits will be determined by:

- The individual's admission of the amount trafficked;
- A determination by a court; or
- Documentation that forms the basis for the trafficking determination, such as EBT transaction data.

For both trafficking and non-trafficking claims, the local department of social services must maintain documentation to support how the claim was calculated.

D. CLAIM ESTABLISHMENT (7 CFR 273.18(d)(1))

A claim must be established before the end of the calendar quarter following the quarter in which the overpayment or trafficking incident was discovered, except as allowed below. The date of discovery is the date the BPS has sufficient information to determine that an overpayment or trafficking offense has occurred. The BPS must document the date of discovery. The BPS must also ensure that no less than 90 percent of all potential claims are either established or disposed of within this time frame.

Timely claim establishment exception: Trafficking claims where the court conviction date or ADH decision date causes the claim to be established outside of the timeliness standard. The BPS must have documentation to support the determination of an IPV by a court, a Waiver, or an ADH and the claim should be established within 30 days of the disposition of a court or an ADH.

1. Claim Thresholds (7 CFR 273.18(e)(2)(ii))

The BPS must establish a claim for any household-caused overpayment that totals more than \$125 and for any agency-caused overpayment that exceeds \$300. The BPS may initiate collection action for household-caused claims under the \$125 threshold or when multiple overpayments for a household within the last six years total or exceed the threshold for the claim type.

2. Liable Persons (7 CFR 273.18(a)(4))

The following persons are responsible, or liable, for paying a claim:

- a. Each person who was, or should have been, an adult member of the household, age 18 or older, when the overpayment or trafficking occurred; and
- b. A person connected to the household, such as an authorized representative, who actually caused an overpayment or trafficking.

E. INITIATING COLLECTION ACTION (7 CFR 273.18 (e))

1. Demand Letters

The BPS must initiate collection action by mailing or otherwise delivering to the household the appropriate initial demand letter, *Request for Repayment of Extra SNAP Benefits* and a *Repayment Agreement*. The demand letter and repayment agreement must be sent immediately following the establishment of the claim, unless the household cannot be located or a court ordered repayment of the claim. Additionally, if a claim is established as an IHE and collection action is being postponed because the case is being referred for prosecution or an ADH, the BPS must initiate collection action by sending the demand letter and a repayment agreement, if the case is not accepted for prosecution or an ADH. The local department of social services must retain a copy of the initial demand letter to document the claim was properly established.

The household has 30 days from the date of the initial demand letter to tell the BPS how the household intends to repay the claim. The household must make its first payment within 30 days of the date of the letter. If the household pays the claim, follow the procedures in Part XVII.Q for submitting payments.

If a participating household does not respond to the initial demand letter, benefit reduction must be initiated. The household's benefit must be reduced not later than the first day of the second month following the date of the initial demand letter.

If a non-participating household does not respond to the initial demand letter, a *Request for Extra SNAP Benefits-Follow-Up* demand letter and *Repayment Agreement* should be sent at 30-day intervals until the household responds by paying, agrees to pay the claim, or until the criteria for terminating collection action have been met, as specified in Part XVII.K.

If a non-participating household agrees to repay the amount of the overpayment but does not make a payment by the due date specified on the *Repayment Agreement*, the BPS should send a *Request for Repayment of Extra SNAP Benefits-Payment Overdue* letter at 30-day intervals until the household begins to pay again, or until the criteria for terminating collection action, as specified in Part XVII.K have been met. If the household makes the overdue payments and wishes to continue payments based on the previous schedule, these payments will be considered voluntary unless a new Repayment Agreement is signed. If the household renegotiates a new Repayment Agreement with the local department of social services and makes a payment before the end of the 60-day Notice period, any further involuntary collection will be prevented if the terms of the agreement are kept. Only the Treasury Offset Program (TOP) Coordinator may negotiate a new repayment agreement once a claim has been certified to TOP.

If the household requests renegotiation and the BPS concurs with the request, the household may negotiate a new payment schedule. Both the BPS and the household have the option to initiate renegotiation of the payment schedule if they believe that the household's economic circumstances have changed enough to warrant such action.

If a participating household agrees to repay the claim by making installment payments but does not submit a payment by the specified due date, the BPS must invoke benefit reduction.

2. Compromising Claims

The BPS may determine that a household's economic circumstances dictate that a claim will not be paid in three years. The BPS may compromise the claim amount or a portion of the claim by reducing the amount owed to allow the household to pay the claim within three years. Note that the monthly payment amount determined through the Repayment Agreement may result in a claim being repaid in a period that is longer than three years. A claimant may request a compromise at any time after a claim is established but only one compromise will be allowed per claim.

A claim may not be compromised if:

- the claim is the result of an intentional program violation (IPV);
- the claim has been certified to the Treasury Offset Program (TOP); or
- the gross income for the SNAP claim household exceeds 200% of the Federal Poverty Level at the time the compromise is requested.

Compromise Process

The local department of social services should use the Compromising Claims worksheet (032-03-0572-00-eng) to project the repayment amount expected in three years. The entire balance may be compromised if the household's actual monthly shelter expenses and actual monthly medical expenses exceed the household's monthly gross income and there are no changes expected in the household's economic circumstances.

The evaluation process factors in household income, expenses, and liquid resources. The process also requires the agency to:

- Determine the household size at the time the overpayment occurred;
- Determine 200% of the Federal Poverty Level for household size;
- Determine available funds by subtracting household expenses from calculated income and resources;
- Multiply 10% of the available funds for repayment by 36 months.
- The compromised amount is the difference between the amount to be paid and the total overpayment.

Example

A claim was established for \$1000 due to an agency error. The household requests a compromise stating an inability to pay the amount owed.

- The difference between the monthly expenses, monthly income and 10% of the resources is \$200 which is the calculated funds available for repayment.
- 10% of the available funds is \$20; ($\$20 \times 36 \text{ months} = \720), the amount the household is expected to repay in 36 months.
- \$280 is the compromised claim amount ($\$1000 - \$720 = \$280$).
- Enter the compromised amount as a payment using the code CR.
- The household must repay \$720.

The BPS must document the reason for the compromise or if the request is denied.

The BPS may use the full amount of the claim, including any amount compromised, to offset a restoration of lost benefits. The BPS may reinstate any compromised portion of the claim, if the claim becomes delinquent. The BPS must notify the claimant that the compromised amount may be restored to the claim balance if the claim becomes delinquent.

F. COLLECTION METHODS (7 CFR 273.18(f)&(g))

1. Allotment Reduction (7 CFR 273.18(g)(1))

A household may choose to have its SNAP benefits reduced to repay a claim. However, the local department of social services must implement allotment reduction against a participating household unless the household is making regular payments in an amount greater than the amount that could be recovered through allotment reduction.

Prior to reduction, the local department of social services must inform the household orally or in writing of the appropriate formula for determining the amount of SNAP benefits to be recovered each month and the effect of that formula on the household's allotment, i.e., the amount of SNAP benefits the local department of social services expects will be recovered each month.

For an AE or an IHE claim, the amount of the reduction must be limited to 10% of the allotment or \$10, whichever is greater, unless the household agrees to a higher amount. For an IPV claim, the amount of the reduction must be limited to 20% or \$20, whichever is greater, unless the household agrees to a higher amount. The *Repayment Agreement* must be used to document the household's request for a higher allotment.

The BPS may not reduce the initial month's allotment at application or reapplication unless the household agrees to the reduction. The BPS must document this agreement.

The local or state department of social services may not use involuntary collection methods, such as state or federal offsets, against individuals in a household that is having its allotment reduced.

2. Lump Sum Payments (7 CFR 273.18(g)(4))

The local department of social services must accept any payment for a claim, whether it represents full or partial payment. The payment may be made with cash, check, or money order. The local department of social services may accept a credit or debit card for payments if the agency has the capability to accept these types of payments. The local department of social services must retain appropriate documentation of the payment.

3. Installment Payments (7 CFR 273.18(g)(5))

The local department of social services may accept installment payments as the result of a negotiated repayment agreement. The repayment agreement must include a due date for the payments. The payments may be made by cash, check, or money order. The local department of social services may accept a credit or debit card for payments if the agency has the capability to accept these types of payments. Unless a court order prohibits it, a certified household must make installment payments in an amount that is greater than the amount that is recoverable through benefit reduction. The local department of social services must retain appropriate documentation of the payments.

If the household does not submit a payment according to the terms of its negotiated repayment agreement, the claim is delinquent and subject to additional collection actions. If the household is participating in the program, benefit reduction must be invoked.

4. Electronic Benefit Transfer (EBT) Accounts (7 CFR 273.18(g)(2))

The local department of social services must allow a household to pay its claim using benefits from its EBT account. At the household's request, this reduction may be used in addition to allotment reduction or other repayment methods. If a certified household chooses EBT account deduction as the primary collection method, the monthly payment must be greater than the amount that is recoverable through allotment reduction, unless a court order prohibits it.

The local department of social services must obtain written permission from the household to collect from an EBT account. The household should complete the *Repayment Agreement* form to note permission for a one-time or monthly payment from the EBT account. The agency must send the household a receipt of each transaction.

After 365 days of inactivity, the local department of social services must also use any benefits expunged from the household's EBT account of which the local department of social services is aware to offset the amount of the claim. This offset may be done at any time during the

collection process. The local department of social services does not need the household's permission to apply expunged benefits to a claim but the agency must send the household a receipt to note the claim reduction. The agency may use the Request/Receipt for EBT Account Deduction as the receipt

5. Offsets to Restored Benefits (7 CFR 273.18(g)(3))

The BPS must reduce any restored benefits owed to a household by the amount of any outstanding claim. This offset may be done at any time during the collection process.

6. Public Service (7 CFR 273.18(g)(7))

The local department of social services may accept public service as a form of payment, but only if a court orders the public service specifically in lieu of paying the claim. The local department of social services, in conjunction with the court, should set the hourly rate for the work performed. The local department of social services must retain appropriate documentation.

7. Treasury Offset Program (7 CFR 273.18(n))

The Virginia Department of Social Services must refer eligible claims that are delinquent for 180 days or more to Treasury Offset Program (TOP) for offset against any eligible federal payment. This includes, but is not limited to, federal tax refunds, salaries of federal employees and retirement benefits. The Virginia Department of Social Services will submit claims to TOP using instructions of the Treasury Department. See Appendix I of this chapter for TOP procedures.

8. Other Collection Actions (7 CFR 273.18(g)(8))

The local department of social services may employ involuntary collection action to collect delinquent claims against non-participating households. These actions include, but are not limited to, civil action, to include wage garnishments and/or liens against property, referral to public or private collection agencies, and the repayment of claims by offsetting the balance against state tax refunds or lottery payments. Note that SNAP debts are not subject to credit reporting and may not appear on individual credit records.

9. Unspecified Collections

When funds are received for a combined public assistance/SNAP benefit claim and the household does not specify to which claim to apply the collection, each program must receive its pro rata share of the amount collected.

10. Overpaid Claims

If a household overpays a claim, the household must be provided a refund as soon as possible after the over-collection is discovered, unless the over-collection is attributed to an expunged EBT benefit. The method of refund will depend on what caused the over-collection. For example, an over-collection due to allotment reduction will be refunded by a restoration to the household.

G. COLLECTING IPV CLAIMS

When a household member is found to have committed an IPV by a court of appropriate jurisdiction, the local department of social services must request the matter of restitution be brought before the court. If the court mandates restitution, the amount of the claim against the household will be established by the court, even if the amount of restitution ordered is less than the amount of the original claim. The court order to repay will serve as the household's demand letter.

The BPS must initiate collection action if:

- the court does not rule on restitution;
- the IPV was established by an ADH; or
- the household member waived his/her right to an ADH.

The BPS must send the household the demand letter, *Request for Repayment of Extra SNAP Benefits (IPV)* and a *Repayment Agreement* unless:

- The household has repaid the overpayment because of an IHE demand letter; or,
- The BPS has documentation that shows the household cannot be located.

An IPV demand letter and a repayment agreement must also be sent for any unpaid or partially paid IPV claim, even if the household has previously received an IHE demand letter.

The local department of social services should pursue other collection action to obtain restitution against any household that fails to respond to a written demand letter for repayment of any IPV claim if the claim cannot be collected through direct payment or allotment reduction, unless the agency determines that other means are generally not cost effective.

If an individual who was court ordered to repay the overpayment does not pay as ordered, the local department of social services should advise the local prosecutor or the probation office, as appropriate.

H. CHANGES IN HOUSEHOLD COMPOSITION (7 CFR 273.18(g)(1)(vii))

If a household's membership has changed since the overpayment occurred, the BPS may pursue collection action against any household which has a member who was an adult member of the household that received the overpayment. The BPS may also offset the amount of the claim against restored benefits owed to any household which has a member who was an adult member of the original household at the time the overpayment occurred. See Part XVI.B.5. for the process to apply amounts due for restoration against outstanding claims.

The local department of social services may also pursue collection from any individual liable for the claim that is not currently a member of a participating household that is undergoing allotment reduction.

I. DETERMINING DELINQUENCY (7 CFR 273.18(e)(5))

A claim must be considered delinquent if:

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- The claim has not been paid by the due date on the initial demand letter or repayment agreement and a satisfactory payment arrangement has not been made; or
- A payment arrangement has been established and a scheduled payment, either no payment or one in a lesser amount, has not been made by the due date on the repayment agreement.

The claim will remain delinquent until payment is received in full, a satisfactory payment agreement is negotiated or allotment reduction is invoked.

A claim will not be considered delinquent if:

- Another claim for the same household is currently being paid, either through an installment agreement or allotment reduction, and the local department of social services expects to begin collection on the claim once the prior claim(s) is paid in full; or
- The local department of social services is unable to determine delinquency status because collection is coordinated through the court or probation office; or
- A fair hearing has been requested and a hearing decision has not been rendered.

J. TERMINATING COLLECTION (7 CFR 273.18(e)(8))

A claim must be terminated if the claim meets any of the following criteria and the action is supported by documentation:

- All adult members of the household are dead and there are no plans by the local department of social services to pursue collection from the estate;
- A claim has an outstanding balance of \$25 or less and no payment has been made for 90 days or more;
- A claim is delinquent for three years or longer; no payments have been received in three years and the claim has not been certified to TOP;
- The household cannot be located, unless the claim has been referred to TOP. If the claim has been referred to TOP, the local department of social services may keep the claim active until the claim meets criteria #3, listed above;
- A claim has been discharged through bankruptcy. The discharge of the debt removes the liability from all liable persons, not just the individual who filed bankruptcy, unless contrary to the court order;
- A claim has been transferred to another state for collection; or.
- It is no longer cost effective to pursue the claim as the balance is less than \$1 for a participating household or less than \$5 for a household that is not currently participating.

A claim must also be terminated if there is insufficient information or documentation to substantiate that the claim was properly established or to determine the correctness of the balance due. Properly established means that an initial demand letter was mailed or a court ordered repayment.

The local department of social services must document the reason for termination.

Note that a terminated claim may be reinstated if a new collection method or a specific event (such as winnings the lottery) increases the likelihood of further collections.

K. INVALID CLAIMS

A claim found to be invalid through a fair hearing, the ADH process, a court determination, or discovered as erroneously established by the State or local department of social services, must be deleted. If the documentation to support the claim is no longer available and cannot be recreated, the claim must be terminated. Deleted claims are treated as terminated claims.

L. IPV DISQUALIFICATION PENALTIES (7 CFR 273.16(b))

1. IPV Penalties

Individuals found to have committed an IPV, either by a court of appropriate jurisdiction or by an ADH or, who waived their right to an ADH, are ineligible to receive SNAP benefits for:

- a. One year for the first violation;
- b. Two years for the second violation;
- c. Permanently for the third violation; and
- d. Ten years for a determination that fraudulent statements or representations of identity or residency were made to receive benefits in more than one household at the same time. The ten-year penalty does not apply when a household fails to report a move to the agency at a former address.

An individual may receive more than one IPV by violating two or more unrelated program rules, such as change reporting and trafficking, during the same period.

In addition to these disqualification penalties, individuals may be disqualified from the program for other program violations. Individuals will be disqualified for two years for a finding by a court that they used SNAP benefits to purchase illegal drugs. A second court finding regarding these purchases will result in permanent disqualification from the program. Individuals will be permanently disqualified from the program based on a court finding that SNAP benefits were used to purchase firearms, ammunition, or explosives, even if it is the first such finding.

A conviction of trafficking in SNAP benefits of \$500 or more will also result in the permanent disqualification of the individual.

2. Reporting Procedures (7 CFR 273.16(i))

The BPS must enter information in the Electronic Disqualified Recipient Subsystem (eDRS) to report information about individuals disqualified for an IPV. The disqualification may be based on an ADH, a conviction by a court of appropriate jurisdiction, or a waiver to an ADH. The BPS must enter information in the eDRS within 30 days of the effective date of disqualification. In cases where the disqualification for IPV is reversed by a court of appropriate jurisdiction, or was submitted in error, the agency must update the eDRS to delete the information relating to the disqualification.

3. Imposition of Disqualification Penalties

To determine the appropriate disqualification penalty to impose on an individual who has been found to have committed fraud or an IPV, BPS must access the eDRS to see if there is a record of other IPV rulings for individual household members. One or more IPV disqualifications that occurred before April 1, 1983, will be considered as only one previous disqualification when determining the appropriate penalty to impose in a case under consideration.

When eDRS is used to determine the disqualification penalty for an individual found to have committed an IPV, the BPS must verify the information with the Locality Contact provided by the eDRS. A verbal confirmation from the Locality Contact may be accepted for the initial assessment but documentation that supports the prior disqualification(s), must be obtained before a final determination is made of the length of the penalty.

The actual number of prior disqualifications will determine the penalty for a new IPV, not the disqualification number that a State or a Virginia locality assigned to the offense. Only the individual found guilty of IPV is disqualified, not the entire household.

If a court fails to impose a disqualification period for the IPV or fraud conviction, the BPS must impose the disqualification penalties described in this chapter unless it is contrary to the court order. If disqualification is ordered by the court, but a date for initiating the disqualification period is not specified, the individual must be disqualified beginning with the first month which follows the date of the court decision. The BPS must send the Notice of Disqualification before the effective date of the disqualification.

If a hearing officer rules that the household member committed an IPV, that member must be disqualified beginning with the first month that follows the date the household member received written notification of the hearing decision. If the household member signed a waiver to an ADH, that member must be disqualified beginning with the first month which follows the date the signed waiver was received by the agency. The BPS must send the Notice of Disqualification before the effective date of the disqualification.

For a disqualification that results from a court decision or the ADH process, the local department of social services must send the Notice of Disqualification to inform the household of the length, reason and starting date of the disqualification. The BPS must send the Notice of Disqualification before the effective date of the disqualification. The BPS must maintain a copy of the notice.

A BPS may not lengthen the disqualification period after it has been imposed by judicial decision, ADH, or waiver. Once a disqualification penalty has been imposed, the period of disqualification must continue uninterrupted until completed, regardless of the eligibility of the disqualified member's household. If an additional IPV is determined for a person who is already serving a disqualification period, the new disqualification period(s) must begin before the original period expires so that the disqualification periods run concurrently. If the BPS determines the household member is currently serving a disqualification imposed by another locality within Virginia or imposed by another state, the BPS must calculate how much time

is remaining in the disqualification period before adding the person to the case as an active household member. If one or more months remain in the disqualification period, the BPS must disqualify the household member for the remainder of the disqualification period.

If the BPS fails to impose the disqualification within the timeframes described above, an agency-caused claim (AE) must be established for the months the individual should have been disqualified. A household-caused claim (IHE) must be established if the agency discovers that a member participated during a disqualification period imposed by another locality or state.

4. Use of eDRS Prior to Certification

As outlined in Part III.F.1, all adult household members must be screened through eDRS prior to certification for a new application or a reapplying household. Information obtained from the eDRS must be independently verified. A verbal response from the eDRS Locality Contact is acceptable for the initial assessment. The household must be given an opportunity to respond to the verbal information obtained from the Locality Contact. If the household affirms the verbal information provided by the Locality Contact, a determination on the individual member's eligibility may be made without additional documentation from the Locality Contact. The household is allowed a minimum of 10 days to respond to the eDRS findings.

If the household member disputes the information or fails to respond to the request for information, the BPS must get written documentation from the Locality Contact to process the application or to determine the length of the disqualification penalty. If the household is not entitled to expedited processing, the BPS must hold the application pending until the written verification from the Locality Contact is received. Applications entitled to expedited processing must be processed and benefits delivered within the required seven-day period, even if the household's affirmation or written documentation from the Locality Contact is not received by the seventh day. An IHE claim must be established, however, for any overpaid benefits.

M. DOCUMENTATION

The local department of social services that establishes the claim must maintain documentation to support proper establishment of the claim, including how the overpayment amount was determined, documentation to support the date of discovery and documentation to support disqualification. In addition, documentation to support the balance due must also be maintained by the agency(s) collecting the payments. Documentation includes, but is not limited to, verifications from employers, landlords, schools; applications with false or omitted information; a copy of the initial demand letter; a copy of the *Notice of Disqualification*; and receipts for cash payments. If the local department of social services does not have documentation to support the claim, the claim must be terminated.

N. INTERSTATE CLAIMS COLLECTION (7 CFR 273.18(i))

In cases where a household moves out of Virginia, the local department of social services must initiate or continue collection action against the household for any overpayment to the household which occurred while the household was under the local department's jurisdiction. The local department of social services may transfer a claim to another state if the receiving state agrees to accept the claim. The local department of social services must provide documentation needed to show the claim is legally enforceable to allow the receiving state to pursue collection. Terminate the claim when it is transferred to another state.

Local departments of social services may accept claims established in another state if requested. The local department must receive documentation needed to show the claim is legally enforceable from the other state and must confirm that the other state terminated the claim prior to initiating collection activity in Virginia.

O. BANKRUPTCY (7 CFR 273.18(j))

Local departments of social services may act on behalf of, and, as the USDA, in any bankruptcy proceeding against bankrupt households owing SNAP claims. Local departments of social services possess any rights, priorities, interests, liens or privileges, and must participate in any distributions of assets, to the same extent as the USDA. Acting as the USDA, local departments have the power and authority to file objections to discharge, proofs of claims, exceptions to discharge, petitions for revocation of discharge, and any other documents, motions or objections that USDA might have filed. Any amounts collected under this authority must be transmitted to the Virginia Department of Social Services as normal claims payments.

All collection activity on a claim must cease upon receipt of the notice of bankruptcy filing, pending the outcome. If the notice of discharge identifies USDA, FNS, VDSS, or the local department of social services as a creditor whose debt has been discharged, the claim must be terminated and any amounts collected after the date of the bankruptcy filing must be refunded. The discharge of the debt removes the liability from all liable persons, not just the individual who filed bankruptcy. If the discharge notice does not identify USDA, FNS, VDSS or the local department of social services as a creditor whose debt has been discharged, collection activity on the claim will resume.

P. SUBMISSION OF PAYMENTS (7 CFR 273.18(l))

Once a month, local departments of social services must submit one consolidated check to cover cash and state tax intercept payments received from all households for the month. The check, payable to the "Treasurer of Virginia" must be sent to:

Virginia Department of Social Services
Division of Finance, SNAP Collections Unit
5600 Cox Road
Glen Allen, VA 23060-

The *Monthly Payment Record* (MPR) must be sent with the consolidated check. If no cash or state tax intercept payments are received during the month, the local department of social services must send an e-mail to barbara.mosley@dss.virginia.gov and jewel.lee-gaines@dss.virginia.gov and copy emory.freeman@dss.virginia.gov to acknowledge that no payments were received. The check and MPR, or e-mail must be sent to be received by the 15th day of the month following the report month.

Q. DISPUTED CLAIMS

If a fair hearing or a court did not establish the amount of a claim and/or the individual(s) liable for repaying the claim, the household has 90 days from the date of the demand letter to appeal the amount and /or their liability by requesting a fair hearing. The household must also be notified of the following actions relating to claims and has the right to appeal these:

- After initial notification, whenever the amount of the claim changes;
- Whenever a claim is used to offset a restoration and prior notification of the claim had not been given;
- When multiple overissuances within the last six years total \$125 or more and collection action is now being initiated, and prior notification of the claim had not been given.

If the fair hearing determines that the claim is valid, the BPS must re-notify the household of the claim amount. The post-fair hearing notice must inform the household that the claim amount is still due and that repayment is required. A *Repayment Agreement* must be sent with the re-notification. The household cannot request a fair hearing based on this second notice. Delinquency will be determined by the due date of this subsequent notice, not the original demand letter.

R. OTHER MONEY RETURNS

Money is sometimes returned to the agency for reasons other than because of a claim. In these instances, the money is not to be submitted to the State Office as claims payments would be. A check or money order payable to "USDA-FNS-HQ" and a letter explaining the circumstances must be submitted to:

USDA-FNS-HQ
P.O. Box 953807
St. Louis, MO 63195-3809

S. SYSTEM OF RECORD

Virginia Case Management System (VaCMS) is the system of record for claims. This means VaCMS must be used to:

- establish all claims;

- reflect all payments received;
- report terminations of claims; and
- reflect dates for:
 - initial demand letter;
 - follow-up demand letters; and
 - court-ordered restitution.

Treasury Offset Program

The Treasury Offset Program (TOP) is used to recover delinquent SNAP claims through the offset of federal payments. Federal payments, such as tax refunds, Social Security benefits and salaries or retirement benefits of federal employees, may be used to repay SNAP claims. A debtor referred to TOP may have any eligible federal payment due to them intercepted through TOP.

All liable persons are equally responsible for the full amount and any fees associated with TOP.

The Finance Division of the Virginia Department of Social Services is responsible for the administration of TOP. The Finance Division's system will determine if claims are delinquent, refer claims for TOP certification and will keep all payment and intercepts information.

Referral Process

Recipient claims that are delinquent for 120 days and are legally enforceable must be referred to TOP. This excludes a debtor who is a member of a participating household whose benefits are being reduced.

Legally enforceable claims are those where the debtor:

- received a 60-day notice;
- was given the right to appeal;
- no longer participates in the Supplemental Nutrition Assistance Program; and
- currently has an outstanding balance. The outstanding balance must be more than \$25.

Exceptions to Referring to TOP

Claims will not be referred to TOP if any of the following apply:

- The debtor is currently paying on any approved existing claim;
- The claim is in pending status because collection has been postponed awaiting a court or Administrative Disqualification Hearing (ADH) decision;
- The debtor enters into a repayment agreement and makes a payment during the 60-day notice period;
- A court orders the debtor to pay the claim through court or a probation office;
- The debtor is a member of a participating household undergoing allotment reduction; or
- The debtor has filed for or is in bankruptcy proceedings.

Notification

The debtor must be given notice 60 days in advance of the impending referral to TOP. The 60-day notice will be sent to an address that has been verified as an adequate address by the Food and Nutrition Service (FNS). The notice will inform all liable debtors that the claim amount and the appropriate action needed to prevent the debt from being offset. The notice must advise the debtor of the right to appeal the referral at both the state and federal level and provide the timeframe for requesting an appeal.

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The LDSS may negotiate a new repayment agreement any time prior to the end of the 60-Day Notice period. A new repayment agreement will prevent any further involuntary collection if the terms of the agreement are kept. The repayment agreement must be initiated to have the claim repaid in full within 36 months of receipt of the 60-day notice. When this is not possible due to the client's financial situation, the repayment amount should be a minimum payment of \$25.00 per month. The LDSS must evaluate financial hardship prior to accepting a repayment of less than \$25 per month.

If a claim has been certified to TOP, only the State TOP Coordinator may negotiate a new repayment agreement

TOP Appeal

A debtor should request an appeal within 30 days of the 60-day notice. Regardless of the request date, the BPS must conduct a desk review and render a decision. The request for an appeal must be in writing to the local department of social services. A TOP appeal is a desk review, not a fair hearing, which is completed by the local supervisor or designated staff. The desk review is to ensure the debt is past due and legally enforceable. The supervisor or designee must verify that:

- The request for the review was timely;
- The client received an initial demand letter or there is a court order;
- The claim calculation is complete and accurate;
- The claim is delinquent; and
- The debtor is not currently in a participating household.

The decision from a TOP appeal must be in writing within 30 days of request. The decision must give instructions for requesting a federal appeal, contain the FNS address, instruct the debtor to send proof of the reason why the claim is not past due and legally enforceable and instruct the debtor to provide the applicable case number. Send TOP appeal requests to

Attn: Treasury Offset Program Review
Supplemental Nutrition Assistance Program
USDA/Food and Nutrition Service
Mercer Corporate Park
300 Corporate Blvd
Robbinsville, New Jersey 08691-1598

Claims in TOP

When a claim is in TOP, the Division of Finance must ensure:

- That the date of delinquency is correct;
- The status of the debt is accurate;
- The balance is adjusted when payments are made outside of TOP; and
- All refunds due to over collection by TOP are reported to TOP.

Inactivating Claims in TOP

A claim must be made inactive in TOP if:

- The debtor is a member of a participating household whose benefits are being reduced;
- DOF renders a decision that an acceptable arrangement has been made for the debtor to resume payments; or
- There is any pending litigation on the claim.

Removing Claims from TOP

A claim must be removed from TOP if:

- FNS or the Treasury Department instructs the local department of social services to remove the claim;
- The claim is paid in full;
- The claim is disposed of through a hearing, termination, compromised, bankruptcy proceeding or any other means;
- The claim was referred in error;
- The debtor is a member of a participating household whose benefits are being reduced; or
- DOF renders a decision that an acceptable arrangement has been made for the debtor to resume payments.

PART XVIII REPLACEMENT OF EBT CARDS, BENEFITS AND FOOD

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A. Replacement of EBT Cards

This chapter covers general guidance for replacing EBT cards, benefits in electronic benefit accounts and food purchased with SNAP benefits destroyed in a household disaster. See Chapter G of the Virginia EBT Policies and Procedures Guide for additional information.

Households need an EBT card to access SNAP benefits. The cardholder may call the Customer Service Representative (CSR) for the EBT card vendor to request a replacement card or contact the local agency. The CSR will validate the system address before issuing a replacement card if the cardholder calls Customer Service for a replacement card. If the address is incorrect, the card vendor cannot mail a replacement card. The CSR will status the card if lost or stolen and will refer the cardholder to the local agency to have the address updated. The local agency must issue a replacement card via mail or a vault card, per the household's request.

The local agency must offer a vault card as a replacement card upon request by the SNAP household. The agency must status the card immediately upon notification from the cardholder that the card is lost and/or stolen. A member of the eligibility staff in the local agency must complete the *Internal Action and Vault EBT Card Authorization* form to authorize the issuance of a vault card and notify the card issuance unit so that the card is available for pick as soon as administratively possible. Document crediting the replacement fee to the household's account. See Part XXIV for a copy of the *Internal Action and Vault EBT Card Authorization* form.

A request for a replacement card will result in the deduction of a \$2.00 card replacement fee from a household's EBT account, unless the fee is waived by the local agency depending on the household's circumstances. The vendor cannot waive the card replacement fee. The local agency must credit the fee back to the household's account if the replacement is due to a household disaster, lost or stolen, if the original is undelivered through the mail, the card is worn, or violence against the household or for improperly manufactured cards. See Part XVIII.A.4 for information about assigning and crediting of the fee for replacement cards.

1. Undelivered EBT Card

a. Undeliverable, Returned Cards

The post office will not deliver EBT cards with inaccurate or incomplete addresses. The post office will not forward EBT cards to a new or changed address if households move but fail to report the change to the local agency.

If the card is undeliverable because of an incomplete or inaccurate address for the primary cardholder or the authorized representative, the BPS must update the mailing address, as appropriate.

b. Nonreceipt of the EBT Card

In instances when cardholders report the nonreceipt of a mailed EBT card to the local agency, the agency must check the EBT account to determine the mailing date and check if the status of the card has been changed. If more than six mail

days have passed and the status of the card is unchanged, the local agency must offer the household a vault card. The local agency must issue the replacement card via the method requested by the household, either a vault card or sent vial mail.

If the cardholder reports the nonreceipt of a mailed EBT card to Customer Service after a sufficient mail period, the CSR will change the status of the card to cancel the card. The vendor will mail another card to the household or, at the cardholder's option, defer mailing another card to allow the cardholder to receive a vault card at the local agency. In either case, the card must be available for pick up in the agency or is mailed within two business days of the cardholder's report.

Households will not have the \$2.00 card replacement fee assessed against their benefit accounts when they receive replacement of undelivered cards. Households will generally have the card replacement fee automatically deducted from the account except when there is a replacement card for a card in an inactive status such as the initial card lost in the mail or one returned as undeliverable.

2. Lost, Stolen, Damaged Cards

When a cardholder reports an inability to access the household's benefits because the EBT card is unavailable for use, the cardholder must call the agency or the CSR to request deactivation of the card. Deactivation will prevent the usage of the card should the cardholder or someone else attempt to use the card.

The cardholder must request replacement of the card through the CSR or the local agency. The cardholder must note the reason for the replacement to the local agency. A replacement card must be available for pick up or mailed immediately.

The reason for the destruction or unavailability of the original card will determine whether the local agency credits the replacement fee back to the household's account. Reasons for replacing an EBT card include:

- Lost – The cardholder loses or misplaces the card.
- Stolen – The cardholder loses the card through violence exerted upon a household in an act of robbery or burglary committed by someone outside the household.
- Household Disaster – The cardholder loses or damages the card through a household fire or natural disaster, such as a flood or tornado.
- Card Damage (negligence) – The card is unusable because of the cardholder's neglect.
- Card Damage (improperly manufactured) – The card is unusable because of a manufacturing error

3. EBT Card Replacement Fee

Each cardholder will receive written and verbal instruction on how to protect the EBT card. When an EBT card is or becomes unusable for any reason, the cardholder must obtain a

replacement card to access the household's EBT account. The EBT card vendor will deduct \$2.00 from each SNAP case benefit account for replacement EBT cards in nearly every instance when a cardholder receives a replacement card.

The automatic fee deduction will not occur when the original card has an inactive status or when a household reapplies for benefits. The chart below summarizes application of the card replacement fee.

No Fee	Fee Deducted	Fee Credited
Reapplication		x (if applied)
Inactive card, such as lost in the mail		x (if applied)
	Lost	
	Stolen/robbery	x
	Household disaster	x (verify if questionable)
	Improperly manufactured	X
	Cardholder name change	X
	Card damaged/destroyed	
		x Agency-caused error, such as misspelled name

4. EBT Card Replacement Fee Credit

The EBT vendor will automatically deduct a \$2.00 fee from a household's SNAP EBT account in most instances when a cardholder requests a replacement card. There are instances however, when, despite proper care of the card by the cardholder, the household experiences loss or destruction of the EBT card. In these instances, the local agency must credit the \$2.00 replacement fee back to the household's account.

An eligibility or administrative unit supervisor must authorize the fee credit on the *Internal Action and Vault EBT Card Authorization* form.

The local agency must credit the card replacement fee when a household experiences an individual household disaster or there is a natural disaster. An EBT card destroyed by fire or a flood, tornado, hurricane or earthquake would allow the agency to credit the replacement fee back to the household. The agency must verify the impact of the disaster upon the household if the report is questionable, otherwise, the household's statement is acceptable.

The local agency must also credit the replacement fee when a cardholder loses the card through violence inflicted upon the household or cardholder by someone outside the household. The agency may verify the existence of the police report if the information is questionable, otherwise, the household's statement is acceptable. In addition to crediting the replacement fee for instances of a household disaster or violence against the household, the local agency must credit the replacement fee if the agency discovers an improperly manufactured card after a cardholder receives the card. The agency must also credit the

replacement fee if the vendor fails to identify a replacement card at reapplication or a replacement for an inactive card. The local agency may also credit the fee back to the household's account, if requested, when the household identifies another primary cardholder or authorized representative.

The chart above summarizes instances when the local agency must credit the card replacement fee to the household. As indicated above, an eligibility or administrative supervisor must authorize the credit. The Issuance Supervisor must provide the credit.

B. BENEFIT REPLACEMENT

Households will not receive a replacement for benefits lost due to loss of the EBT card and/or PIN up to the time that the cardholder reports the loss to CSR or the local agency. Households will have benefits replaced if someone accesses the benefits after the household reported to CSR that the card was lost or stolen. Households will also receive replacement for benefits lost due to a system error.

C. REPLACEMENT OF FOOD DESTROYED IN A DISASTER

Households may request a replacement for food purchased with SNAP benefits and that was subsequently destroyed in a household disaster. This policy may apply to an individual household disaster or a disaster that affects more than one household.

The BPS must use prudent judgement when households request a food replacement. Eligibility for a replacement must be based on the benefit amount for the month, the amount of the food loss reported, and time of the month when the loss occurred on a case-by-case basis. The agency may deny replacement requests, such as for unsupported explanations or unacceptable collateral contacts. See Part III.A.3 for a discussion of collateral contacts. Households may appeal the denial of a replacement request or the authorized amount.

Normally, replacements would only be made to currently participating households, but this is not a requirement for a food replacement. The household must be able to provide a reasonable explanation to document the food purchase with SNAP benefits and the amount of time lapsed from participation in the program.

The household may be entitled to a replacement of the actual value of the loss but the amount may not exceed the benefit amount for one month. The household must report the disaster within 10 days of the loss. A household member must sign the *Food Replacement Request* form attesting to the loss. If the local agency does not receive the affidavit within 10 days after the report of the loss, the household will not receive a replacement. If the 10th day occurs when the local agency is closed and the affidavit is received the day after the local agency reopens, the BPS must consider the statement as received timely. See Part XXIV for the Food Replacement Request form.

The BPS must verify the household's disaster. Sources of verification include community agencies, such as the Red Cross or fire department or the power company to determine power outages.

Replacement may be provided for food destroyed after power outages that exceed eight hours.

The agency must provide replacement benefits within 10 days of the reported loss or within 2 working days of receiving the affidavit, whichever is later.

There is no limit on the number of times a household may receive replacement of food destroyed in a disaster. If USDA issues a disaster declaration and the household is eligible for emergency benefits under that policy, the household may not receive both the emergency benefits and a replacement for the same period. See Part XX for a discussion of the disaster program.

PART XIX FAIR HEARINGS AND ADMINISTRATIVE DISQUALIFICATION HEARINGS

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A. INTRODUCTION (7 CFR 273.15(c))

The Food and Nutrition Act requires that each state provide a fair hearing to any household aggrieved by any action of the local social services agency that affects the household's receipt of SNAP benefits.

An individual has the right to appeal and receive a fair hearing when:

- a claim for benefits is denied, or is not acted upon with reasonable promptness;
- the individual is aggrieved by any other agency action that affects entitlement to or receipt of benefits; or
- agency policy in its administration of the Program affects the individual's situation.

Within 60 days of receipt of a request for a fair hearing, the State must assure that the hearing is conducted, a decision is reached, and the household and local agency are notified of the decision.

1. Role of the Commissioner of Social Services

§63.2-517 through §63.2-519 of the Code of Virginia give the Commissioner of Social Services ultimate authority and responsibility for the appeal process. The State Board of Social Services, as authorized by §63.2-801 of the Code of Virginia, establishes policies and procedures to implement SNAP, including the appeal process, according to federal regulations.

The Commissioner may delegate authority to make decisions in any appeal case. The Commissioner must appoint a panel to review hearing decisions upon the request of either the household or the local agency. The panel must report periodically to the Commissioner regarding the need for changes in the conduct of future hearings, or to policy and procedures related to the issue of the appeal.

2. Definitions

The following definitions will be applicable to the terms used in this chapter.

- a. State Hearing Authority - A comprehensive term used to designate the State decision-maker in appeal cases; as such, it includes the Commissioner and qualified hearing officers of the Virginia Department of Social Services. Hearing officers have the authority to make binding decisions in appeal cases in the name of the State Hearing Authority.
- b. Hearing Officer - An impartial representative of the State to whom appeals are assigned and by whom they are heard. The hearing officer must not have been involved in any way with the agency action on appeal. The hearing officer has the authority to conduct and control hearings and to decide appeal cases.
- c. Claimant - The SNAP household that files an appeal about an aspect of its entitlement to SNAP benefits.

B. RIGHT OF APPEAL

The agency must inform applicant households of the following:

- the right to a fair hearing;
- how a hearing may be requested;
- the right to be represented by others or for self-representation

In addition to information about the right of appeal, the BPS must advise SNAP households of the right to appeal when:

- there is dissatisfaction with the agency's action or the failure to act in relation to the household's eligibility or level of participation; or
- action is taken to deny or reduce benefits

Households denied expedited service must also be offered an opportunity to request an agency conference. During a conference, households must receive an explanation of why they were denied expedited service processing and must have an opportunity to present any information on which disagreement with such action is based. The Notice of Action and the Advance Notice of Proposed Action forms may be used interchangeably for denial or negative actions, except as required for issuing a joint notice with public assistance programs (See Part XIV.A.3).

Each household has a right to a fair hearing to appeal a denial, reduction, or termination of benefits due to a determination that a household member is not exempt from work registration and employment services requirements, or a determination of failure to comply with work registration and employment services requirements.

Individuals or households may appeal local agency actions related to work registration and employment services if the individual or household believes that a finding of failure to comply has resulted from improper decisions on these matters. These actions include exemption status, the type of employment and training requirement imposed, or local agency refusal to make a finding of good cause.

C. HEARING REQUEST (7 CFR 273.15 (h))

A household that is aggrieved by any local agency action may request a hearing by any clear expression, oral or written, to the effect that an opportunity to present the case to a higher authority is desired. Such request may be made by a household member, the authorized representative, or some other person acting on the household's behalf, such as a legal representative, relative or friend. The right to make such a request is not to be limited or interfered with in any way. If a household makes an oral request for a hearing, the local agency must complete the procedures necessary to start the hearing process. The Notice of Appeal form must be made available to the household to facilitate appeal requests; however, completion of this form by the household is not required if a clear expression for a hearing has been made by some other method. Local agencies must help the claimant submit and process the request, and prepare the case, if needed. Information and referral services must be provided to help claimants make use of any legal services available in the community that can provide legal representation at the hearing.

Upon request, the local agency must make available, without charge, information from the case file for a household or its representative to determine whether a hearing should be requested or to prepare for a hearing. Confidential information, such as the names of individuals who have disclosed information about the household without its knowledge or the nature or status of pending criminal prosecutions, must be protected from release.

D. TIME LIMITS FOR REQUESTING A HEARING (7 CFR 273.15 (g))

A household must be allowed to request a hearing on any adverse action or loss of benefits which occurred in the prior ninety (90) days. Action by the agency will also include a denial of a request for restoration of any benefits lost more than 90 days, but less than a year prior to the request. The household must be allowed to appeal and request a hearing at any time during the certification period if it is dissatisfied with the current level of benefits.

If the amount of a claim was not established by a fair hearing or a court, the household will have 90 days from the date of notification of the claim to appeal the amount or establishment of the claim.

E. LOCAL AGENCY CONFERENCE (7 CFR 273.15 (d))

When a household advises the local agency that it wishes to appeal denial of expedited service processing, the BPS must offer an agency conference. At the conference, the recipient may be represented by an authorized representative, legal counsel, relative or friend. Upon receipt of a request for such a conference, the BPS must schedule the conference within two working days, unless the household requests that the conference be scheduled later. The household's failure to request a BPS conference has no effect upon the right to appeal and have a fair hearing or upon the right to continued participation.

The conference with local agency staff is designed to allow the household to receive, a verbal explanation of the reason expedited service was denied. The conference is to avoid a lack of understanding by the household. The household should be given the opportunity to explain why it is entitled to expedited service processing.

The conference may be attended by the BPS but must be attended by an eligibility supervisor or the director and a household member or its representative.

The local agency conference may or may not result in a change in the agency decision regarding entitlement to expedited service. Regardless of the result of the conference, the household must be provided with a fair hearing unless there is a written withdrawal of the request for a hearing. The agency must provide the results of the conference in writing to the household. The fact that the conference was held will not affect an appeal or the required time limits for filing or implementing a decision.

F. PARTICIPATION DURING APPEAL (7 CFR 273.15 (k))

When a verbal or written hearing request is made during the adverse (advance or adequate) notice

period, the household is entitled to continued participation until the end of the current certification period or until a decision on the fair hearing is reached, unless the household specifically waives continuation of benefits in writing. The household's participation in the Program will be continued on the basis authorized immediately prior to the adverse action notice. Continuation of benefits during the appeal process is only appropriate if the appeal is a result of a change which occurred during the certification period and for which an adverse action notice was issued or required. The agency must explain to the household that continuation of benefits is strictly at the household's option and that should it elect to have benefits continued and the hearing decision upholds the agency action, the household will be required to repay the value of any benefits overissued prior to and during the period such benefits were continued. A Notice of Action must be provided to the household when benefits are continued.

1. Determining Continuation of Benefits During the Appeal Process

The local agency must be aware that an appeal was made during the required time frame prior to authorizing continued participation. This means that the local agency must have

- (1) received the request directly from the household, or
- (2) written or verbal confirmation from the Hearings Manager or a hearing officer that a timely appeal request was received.

If a hearing request is not made within the period provided by the adverse action notice, benefits must be reduced or terminated as provided in the notice. If the household establishes that its failure to make the request within the adverse notice period was for good cause, the hearing officer must require that the local agency reinstate the benefits to the prior basis.

When benefits are reduced or terminated due to a mass change, participation on the prior basis must be reinstated only if the issue being contested is that the SNAP eligibility or benefit amount was improperly computed or that federal law or regulation is being misapplied or misinterpreted by the state. Households requesting an appeal of a mass change are eligible for continuation of benefits as long as they request a hearing within 90 days of the action being appealed and meet the requirements of this paragraph.

2. Exceptions to Continuation of Benefits

Once benefits have been continued or reinstated during the appeal process, they must not be reduced or terminated prior to the receipt of the official hearing decision unless:

- a. the certification period expires;
- b. the appeal issue is one of federal law or regulation and written notice has been received from the hearing officer;
- c. a change in circumstances affecting the household's eligibility or benefit level occurs while the hearing decision is pending and a request for a second hearing has not been received; or,
- d. a mass change occurs.

G. PREPARATION FOR THE HEARING

The appeal request, upon receipt by the Hearings Manager, must be assigned to a hearing officer who will validate the appeal and acknowledge the request by letter to the claimant with a copy to the BPS and other appropriate parties. Appeals staff will arrange with the local appeal coordinator to gather sufficient information to determine the validity of appeal requests. The local department of social services must provide validating information within five business days of the request for information.

The BPS must prepare a Summary of Facts of the case and forward it to the hearing officer within five days prior to the hearing. A general outline of this summary follows, although the content may vary to fit case situations. All statements made should be factual and phrased in a way not objectionable to the claimant.

For appeals that involve work registration or SNAP E&T noncompliance, eligibility staff and E & T staff must prepare the Summary of Facts jointly except when a household member refuses to register.

The Summary of Facts should include the following:

1. Identifying Information:

- Name of local agency
- Name, address and case number of claimant
- Persons included in the SNAP household
- Name, age, relationship to claimant
- Other persons in household
- Name, relationship

2. Date of Request and Reason for Appeal (quote the claimant in requesting the hearing)

3. Statement of Agency Action

- a. Give a brief, factual statement of the reason for agency action, or failure to act, and the nature and date of agency action. Note if there was an agency error, negligence or administrative breakdown.
- b. Under the heading "Agency Policy", cite and quote passages from the Virginia SNAP certification manual on which agency action was based.
- c. If the level of participation is in question, give a detailed breakdown of the claimant's financial circumstances as it appears on the SNAP application with whatever explanation may be necessary.
- d. Note the date and result of an agency conference on the denial of expedited service, if appropriate.

4. State whether participation is continuing during the appeal process on the basis authorized immediately prior to the adverse action notice.

5. The Summary must be signed and dated by the agency director or designee. The BPS must retain a copy of the Summary, which is the official document for presentation of its case at the hearing.

The BPS must provide a copy of the Summary and any other documents and records which are to be used at the hearing to the claimant or representative. The summary or documents must be provided at a reasonable time prior to the date of the hearing.

If documents pertinent to the hearing are received by the local department of social services or there are changes in the situation following transmittal of the Summary, copies of the documents and a written statement of the changes must be mailed in advance of the hearing to the hearing officer. Copies of the additional information must also be made available to the claimant or representative.

During the period between the filing of the appeal and the receipt of the decision from the State Hearing Authority, the local department of social services continues to be administratively responsible for the case on appeal. This responsibility includes appropriate adjustment in eligibility status or level of participation necessitated by changes in the claimant's situation, income, changes in household composition, or changes for any other reason.

If a change in circumstances occurs during the appeal process that results in a reduction or termination of benefits, an advance notice must be sent. If the claimant fails to appeal the proposed additional change, participation will be adjusted with respect to this change in circumstances. The change must be reported to the hearing officer for consideration of possible effect on the decision.

H. RESPONSIBILITIES OF HEARING AUTHORITY (7 CFR 273.15 (i))

In preparation of the hearing, the hearing authority must consider and act on the following situations:

1. If the request for a hearing is from a household, such as migrant farm workers, that plans to move from the locality, the hearing must be held as quickly as possible so a decision may be reached before the household leaves the area.
2. If the household requests postponement of the hearing, it must be granted. The postponement may not exceed 30 days. The time limit for action on the decision may be extended for as many days as the hearing is postponed.
3. If there are a series of individual requests for hearings, the appropriateness of conducting a single group hearing must be determined. The hearing officer may consolidate only cases in which the sole issue is one of State and/or federal law, regulation or policy, and with the consent of the appealing parties.

In all group hearings, the policies governing hearings must be followed. Each individual claimant must be permitted to present his own case or be represented by legal counsel or other spokesman. If the claimants request a group hearing on an issue specified in this chapter, the request must be granted.

I. DENIAL OR DISMISSAL OF REQUEST FOR HEARING (7 CFR 273.15(j))

A request for a hearing will not be denied or dismissed unless:

1. The request is not received within 90 days of the date of agency action or failure to act;
2. The request is withdrawn in writing by the household or its representative;
3. The household or its representative fails, without good cause, to appear at the scheduled hearing; or
4. Files an oral request to withdraw without coercion. The hearing officer must send the household a notice to confirm the withdrawal and offers the household an opportunity to reinstate the hearing within ten days. If reinstated, the 60-day process period will begin anew.

J. HEARING PROCEDURE

The hearing must be conducted at a time, date, and place convenient to the claimant(s). Preliminary written notice must be given at least 10 days prior to the hearing. (Allow two days for mailing in addition to the postmark date.) The claimant will be requested to advise the local department of social services immediately if the scheduled date or place is inconvenient, but, without such notification, it is assumed the arrangements are convenient. The hearing may be conducted through a teleconference.

The local department of social services is responsible for assuring that the claimant has transportation to the hearing if the claimant is unable to make arrangements.

When a claimant indicates that the scheduled date is not convenient, the hearing date may be extended. The hearing officer will determine whether the provision of extension is being abused and reserves the right to set a date beyond which the hearing will not be delayed.

The hearing is to be conducted in an informal atmosphere and every effort will be made to arrive at the facts of the case in a way that will put the claimant at ease. It is the hearing officer's responsibility to assure that this is done, and the hearing officer may, within the discretion allowed, designate those persons who may attend the hearing or the particular portion of the hearing they may attend. The hearing officer has full authority to recess the hearing or to continue to another date in the interest of fairness.

When the issue on appeal is of a medical nature, (e.g., concerning a diagnosis, an examining physician's report, or a Disability Determination Services decision), the hearing officer may request a medical assessment by someone other than the person(s) involved in making the original examination. Such an assessment will be obtained at combined State and local expense from a source satisfactory to the claimant and will be made a part of the hearing record.

Any material from the SNAP case record must be made available to the claimant and/or his representative upon request. Additionally, a household must be allowed to examine its employment component case file at a reasonable time before the date of the fair hearing. Confidential or other information, which the head of the household or his representative does not have an opportunity to hear, see, and respond to, must not be introduced at the hearing, nor will it become a part of the hearing record. It is within the discretion of the hearing officer to designate what is pertinent to an issue on appeal and admissible as evidence during the hearing, including the entire case record, if appropriate.

When benefits are continued pending a hearing decision, the hearing officer must rule at the hearing whether the issue being appealed is one of federal law, regulation or policy, or whether the issue relates to a matter of fact or judgement applicable to an individual case. If the hearing officer rules that the issue being appealed is one of federal law, regulation or policy, benefits will be reduced or terminated as proposed by the Advance Notice of Proposed Action or the Notice of Action.

If, during the appeal process, the need for adjustment in eligibility or basis of issuance in favor of the claimant becomes evident, reconsideration or modification of the former decision will be made by the local department of social services. If an adjustment is satisfactory to the claimant, the claimant may withdraw the appeal or of have a formal decision made by the Hearing Authority.

The local department of social services employment services staff or the agency's designee operating the relevant employment and training component must receive sufficient advance notice of the hearing so that representatives may attend the hearing or are available for questioning by telephone during the hearing. If a hearing is scheduled by households appealing a work registration or employment and training issue, the results of the hearing are binding on the local department of social services.

K. EVENTS OF THE HEARING

The hearing must be attended by the BPS and the claimant or a representative. The household may also bring relatives or friends along if it so chooses. The hearing officer has the authority to limit the number of persons present if space limitations exist. The hearing officer will coordinate the following activities at the hearing:

1. Identification of those present for the record.
2. Provide an opening statement to explain the hearing purpose, procedure to be followed, how and by whom a decision may be made and to be communicated to claimant and local agency, and the option of either party, if decision is made by the hearing officer, to request review of the decision by the Commissioner.
3. The claimant or his representative must be given the opportunity to:
 - a) examine all documents and records which are used at the hearing;

- b) present the case or have it presented by legal counsel or other person;
 - c) bring witnesses;
 - d) establish pertinent facts and advance arguments; and,
 - e) question or refute any testimony or evidence, including the opportunity to confront and cross-examine adverse witnesses.
4. The local department of social services will have the opportunity to clarify or modify its statements contained in the Summary of Facts and to question the claimant, his representative, or witnesses on the important issue(s). The local department of social services has the same rights as the claimant to examine documents, bring witnesses, advance arguments, question evidence and submit evidence.
5. Evidence admissible at the hearing is limited to information that is related to the issue(s) being appealed. Such issues include those given by the claimant at the time of the appeal request and those given by the local department of social services as a basis for its actions or inaction under appeal. The hearing officer must determine whether an issue, other than the one being appealed, may be introduced, but no additional issues are admissible without concurrence of the claimant and local department of social services.

L. DUTIES OF THE HEARING OFFICER

The hearing officer must:

1. Ensure that all relevant issues are considered.
2. Request, receive, and make part of the record all evidence determined necessary to decide the issues being raised.
3. Regulate the conduct of the hearing consistent with due process to ensure an orderly hearing.
4. Order an independent medical assessment or professional evaluation from a source mutually satisfactory to the household and the local department of social services if it is relevant and useful.
5. Render a decision in the name of the State Hearing Authority. Decisions must comply with regulations as stated in the Virginia SNAP Certification Manual and the Virginia EBT Policies and Procedures Guide and must be based on the hearing record. An official report containing the substance of what transpired at the hearing, the findings and conclusions of the hearing officer, together with all papers and requests filed in the proceeding, will constitute the record for the decision.
6. Provide a copy of the decision that reverses the actions of a local department of social services to the SNAP Regional Consultant.

M. HEARING DECISION (7 CFR 273.15(q))

An official report containing the substance of the hearing, together with the findings and conclusions of the hearing officer, and all papers filed in the proceeding, will constitute the record for the decision. The household and the local department of social services must each be notified of the decision by a copy of the written official report of the decision.

The decision of the hearing officer will be final and binding when presented in writing to the claimant and the local department of social services.

The claimant, the claimant's representative, and the local department of social services must be given written notice of the right to request a review of the hearing officer's decision by the Appeals Review Panel. The decision must be put into effect regardless of whether review by the Appeals Review Panel of the decision has been requested. In addition to the claimant's right to request a review by the Appeals Review Panel, the claimant may seek a judicial review of the decision.

The request for the Appeals Review Panel review by either party must be submitted in writing within 10 days following the date of the hearing officer's written decision with a written statement of the reasons for the objection to the decision. A copy of the review request by the local department of social services must be submitted to the claimant.

The Appeals Review Panel will make recommendations about future policy changes or the conduct of future hearings only. The claimant, the claimant's representative, and local department of social services will not be notified about the panel's recommendations.

When the decision of the hearing officer is adverse to the claimant, all available administrative remedies have been exhausted.

All hearing records and decisions are available for public inspection and copying, subject to the disclosure safeguards, provided identifying names and addresses of household members and other members of the public are kept confidential.

N. IMPLEMENTATION OF DECISIONS

All final hearing decisions must be reflected in the household's benefits within time limits specified in this section. Local departments of social services must provide documentation to the hearing officer of compliance with hearing decisions.

1. Decisions that result in an increase in household benefits must be reflected in the benefit amount within 10 days of the receipt of the hearing decision, even if the local agency must provide a supplementary allotment or otherwise provide the household with an opportunity to obtain the allotment outside of the normal issuance cycle. The local department of social services may take longer than 10 days if it elects to make the decision effective in the household's normal cycle, provided that the issuance will occur within 60 days from the household's request for the hearing.
2. Decisions that result in a decrease in household benefits must be reflected in the next

scheduled issuance following receipt of the hearing decision. No additional notice to the household is needed.

3. When the decision of the hearing officer or Commissioner, as appropriate, determines that a household has been improperly denied program benefits or as been issued a smaller benefit amount than it was due, lost benefits must be provided to the household as allowed by Part XVI.A.
4. When the decision of the hearing officer or Commissioner, as appropriate, upholds the action of local department of social services, a claim against the household must be prepared, as allowed by Part XVII.A for any overissuances.

O. INTRODUCTION TO ADMINISTRATIVE DISQUALIFICATION HEARINGS (ADH) (7 CFR 273.16(e))

An Administrative Disqualification Hearing (ADH) is an impartial review by a hearing officer of a household member's actions involving an alleged intentional program violation (IPV) for the purpose of rendering a decision of guilty or not guilty of committing an IPV.

In order to request an ADH, there must be clear and convincing evidence that demonstrates that a household member committed or intended to commit an IPV as described in the Definitions section. Examples of evidence include, but are not limited to, the following:

1. Written verification of unreported income or resources received by the household;
2. Verification that the household understands its reporting requirements by its signature under the rights and responsibilities section of the application or on some other form;
3. An application or change report form submitted during the period the IPV is alleged to have occurred which omits the information in question; and
4. Documented contacts with the household during the period the IPV is alleged to have occurred in which the household failed to report information in response to agency queries about household circumstances.

Each example noted above does not have to be presented to document intentionality, however, it is likely that such deliberateness can only be shown through the presentation of more than one of these evidence examples.

P. INITIATION OF AN ADH

The local department of social services must ensure that the evidence against the household member alleged to have committed the IPV is reviewed by either an eligibility supervisor or agency director to certify that such evidence warrants a referral for an ADH.

Prior to submitting the Referral for Administrative Disqualification Hearing to the State Hearing Authority, the local department of social services must provide the forms, Notification of Intentional

Program Violation and Waiver of Administrative Disqualification Hearing and may provide the "Administrative Disqualification Hearings" pamphlet to the household member suspected of the IPV. To determine the appropriate disqualification period for the notification form, the agency must access the electronic Disqualified Recipient Subsystem (eDRS) to determine the number of prior disqualifications an individual may have. The eDRS information about prior disqualifications must be verified before deciding on the length of the penalty. See Part XVII.L.2 for additional information about eDRS.

The waiver must be returned to the agency within 10 days from the date notification is sent to the household to avoid submission of the Referral for ADH. If a signed waiver is received, no ADH is conducted and the disqualification period is imposed in accordance with policy at Part XVII.L.1. No further administrative appeal procedure exists after an individual waives his/her right to an ADH and a disqualification penalty has been imposed. The disqualification period cannot be changed by a subsequent fair hearing decision. The household member is entitled to seek relief in a court having appropriate jurisdiction and the period of disqualification may be subject to stay or other injunctive remedy by a court of appropriate jurisdiction. Allegations of coercion by the household member, household head, or legal representative to VDSS or the local department of social services will negate the waiver however and the case must be referred for an ADH.

If no waiver to the ADH is received within 10 days, the local department of social services must submit the Referral for Administrative Disqualification Hearing to the Hearings Manager by the 15th day following the date notification was sent to the household. The additional five days allows for possible mail delivery delays. The form must include the following information:

1. Identifying Information as requested at the top of the form;
2. Summary of the Allegation(s);
3. Summary of the Evidence; and
4. Copies of documents supporting the allegation.

The referral must be signed and dated by the supervisor or director.

If a case is referred for an ADH, it must not simultaneously be referred for prosecution. The local department of social services may combine a fair hearing and an ADH into a single hearing if the factual issues arise out of the same or related circumstances and the household receives prior notice that hearings will be combined.

If the ADH and fair hearing are combined, the agency must follow timeframes for conducting an ADH. If the hearings are combined for the purpose of settling the amount of the claim at the same time as determining whether the IPV has occurred, the household will lose its right to a subsequent fair hearing on the amount of the claim. However, the local department of social services must, at the household's request, allow the household to waive the 30-day advance notice period for the scheduling of the ADH when the hearings are combined.

Q. SCHEDULING THE ADH

Upon receipt of the request for the ADH, the Hearings Manager will forward the request to the appropriate hearing officer.

1. Advance Notice of ADH (7 CFR 273.16(e)(3))

The hearing officer must schedule a date for the ADH and provide written notification to the household member suspected of IPV at least 30 days in advance of the date the ADH has been scheduled. The form, "Advance Notice of Administrative Disqualification Hearing" is used for this purpose. The pamphlet that describes the ADH procedures may be sent with the advance notice. The ADH advance notice may be sent by first class mail, certified mail - return receipt requested, or be any other reliable method. If the notice is sent by first class mail and it is subsequently returned as undeliverable, the hearing may still be held.

Once the ADH has been scheduled, the ADH is to be conducted and a decision made within 90 days of the date the household is notified in writing that the ADH has been scheduled. A copy of the decision must be provided to the household and the local agency.

2. Time and Place of the ADH (7 CFR 273.16(e)(4))

The time and place of the ADH must be arranged so that the hearing is accessible to the household member suspected of IPV. The member or representative may request a postponement of the ADH if the request for postponement is made at least 10 days in advance of the date of the scheduled hearing. The ADH will not be postponed for more than 30 days and the State Hearing Authority may limit the number of postponements to one. When a hearing is postponed, the time limit for rendering and notifying the household and agency of the decision is extended for as many days as the hearing is postponed.

3. Failure of Household Member to Appear at the ADH

If proof of nonreceipt of the ADH advance notice has not been received, the requirement to notify the individual alleged to have committed the IPV has been met. The ADH may be held even if the member or representative subsequently cannot be located or fails to appear without good cause.

The individual has 10 days from the date of the scheduled ADH to present reasons other than nonreceipt of the notice to show good cause for failure to appear at the hearing. Good cause reasons based on nonreceipt of the notice must be presented within 30 days of the scheduled hearing.

Even though the household member is not represented, the hearing officer must carefully consider the evidence and determine if an IPV was committed based on clear and convincing evidence. If the household member is found to have committed IPV but a hearing officer later determines there was good cause for not appearing, the previous decision is no longer valid and a new ADH shall be conducted. The hearing officer who originally ruled on the case may conduct the new hearing. The good cause decision must be entered into the hearings record by the hearing officer.

4. Participation While Awaiting a Hearing (7 CFR 273.16(e)(5))

A pending ADH will not affect the household's right to be certified and receive SNAP benefits. The household member alleged to have committed an IPV cannot be disqualified through an ADH until a hearing officer finds the individual guilty of IPV, so the eligibility and benefit level of the household is determined in the same manner as for any other household.

R. CONDUCT OF THE ADH

The hearing officer will preside and conduct the hearing informally. Technical rules of evidence are not required. The hearing may be conducted via a teleconference. The hearing may also be recorded.

1. Attendance at the ADH

The ADH is attended by persons directly concerned with the issue. This normally means a representative of the local department of social services and the household member alleged to have committed an IPV and/or the household's representative. If space is limited, the hearing officer may limit the number of persons in attendance.

2. Responsibilities and Duties of Hearing Officer

The hearing officer must:

- a. Identify those present for the record;
- b. Advise the household member or representative that he/she may refuse to answer questions during the hearing;
- c. Explain the purpose of the ADH, the procedure, how and by whom a decision will be reached and communicated, and the option of either the local department of social services or the household to request a review of the hearing officer's decision by the Commissioner;
- d. Consider all relevant issues. Even if the household is not present, the hearing officer must carefully consider the evidence and determine if an IPV was committed based on clear and convincing evidence;
- e. Request, receive and make part of the record all evidence determined necessary to render a decision; and
- f. Regulate the conduct and course of the hearing consistent with due process to insure an orderly hearing.

3. Rights of the Household

The household member alleged to have committed IPV and/or the representative must be given adequate opportunity to:

- a. Examine all documents and records to be used at the ADH at a reasonable time prior to the ADH as well as during the ADH. The contents of the case file, including the application form and documents of verification used by the BPS to establish the alleged IPV, must be made available, provided that confidential information, such as the names of individuals who have disclosed information about the household without its knowledge, or the nature and status of pending criminal prosecutions, is protected from release.

The local agency must provide a free copy of the portions of the case file that are relevant to the hearing if requested by the household or its representative. Confidential information that is protected from release and other documents or records which the household will not otherwise have an opportunity to contest or challenge may not be introduced at the hearing or affect the hearing officer's decision.

- b. Present its case or have it presented by legal counsel or another person.
- c. Bring witnesses.
- d. Advance arguments without undue interference.
- e. Question or refute any testimony or evidence, including the opportunity to confront and cross-examine witnesses.
- f. Submit evidence to establish all pertinent facts and circumstances in the case.

As the household may not be familiar with the rules of order, it may be necessary to make particular efforts to arrive at the facts of the case in a way that makes the household feel most at ease.

The household member or representative may refuse to answer questions during the hearing.

4. Responsibilities and Duties of Local Agency

The local agency representative is responsible for presenting the agency's case in the ADH. The agency representative has the same rights as the household as listed in Part XIX.R.3., items a. through f. above.

S. NOTIFICATION OF ADH DECISION (7 CFR 273.16(e)(9))

The hearing officer is responsible for rendering a decision. The decision must be based on clear and convincing evidence from the hearing record, which is an official report of the hearing, including all papers and requests filed in the proceeding. The hearing officer must substantiate the decision by identifying supporting evidence and applicable regulations.

Following the ADH, the hearing officer must prepare a written report of the substance of the hearing that must include findings, conclusions, decision and appropriate recommendations. The decision must specify the reasons for the decisions, identify the supporting evidence, identify pertinent SNAP regulations and respond to reasoned arguments made by the household member or representative.

The hearing officer must notify the household member of the decision. The form "Administrative Disqualification Hearing Decision" must accompany the findings. The hearing officer must inform the household of its right to request review of the decision. If the household member is found guilty of IPV, the decision must advise the household that disqualification will occur.

The determination of IPV by the hearing officer cannot be reversed by a subsequent fair hearing decision.

The household member is entitled to seek relief in a court of appropriate jurisdiction. The period of disqualification may be subject to stay by a court of appropriate jurisdiction or other injunctive remedy.

The amount of the overissuance subject to repayment may be appealed by a fair hearing, provided that the household member did not request a fair hearing for that reason that was consolidated with the ADH.

If the household member or representative did not appear at the hearing and the hearing officer determines that an IPV was committed, the hearing officer will delay notification of the decision until 10 days after the date of the hearing to allow the individual time to present good cause for failing to attend.

T. IMPLEMENTATION OF THE ADH DECISION

Upon receipt of the notice of a decision from the hearing officer finding the household member guilty of an IPV, the local agency must inform the household of the disqualification by sending a "Notice of Disqualification Due to Intentional Program Violation" or other disqualification notice approved for use. The notice must inform the household of the reason for disqualification and must inform the household that the disqualification will be effective upon receipt of the notice. The household member who committed the IPV must be disqualified in accordance with the length of time specified in Part XVII.M.1. The local agency must also provide written notice to the household of the benefit amount that will be received or advise that a recertification application must be filed if the certification period has expired.

If it is determined that the individual did not commit an IPV, no disqualification will be imposed and any overissuance must be handled as a nonfraud claim.

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VIRGINIA LEGAL AID PROJECTS

1-866-LEGLAID (1-866-534-5243) Legal Aid Hotline, www.valegalaid.org

Blue Ridge Legal Services, Inc.
204 N. High Street
Harrisonburg VA 22803
540- 433-1830
www.brls.org

Blue Ridge Legal Services, Inc.
303 S. Loudoun Street, Suite D
Winchester VA 22604
540-662-5021
www.brls.org

Blue Ridge Legal Services, Inc.
215 S. Main Street
Lexington VA 24450
540-463-7334
www.brls.org

Blue Ridge Legal Services, Inc.
132 Campbell Ave., SW, Suite 300
Roanoke VA 24011
540-344-2080
www.brls.org

Central VA Legal Aid Society
101 West Broad Street, Suite 101
Richmond VA 23220
804-648-1012, 800-868-1012
www.cvlas.org

Central VA Legal Aid Society
103 E. Water Street, Suites 201-202
Charlottesville VA 22901
434-296-8851, 800-390-9983
www.cvlas.org

Central VA Legal Aid Society
229 N. Sycamore Street, Suite A
Petersburg VA 23803
804-862-1100, 800-868-1012
www.cvlas.org

Legal Aid Justice Center
626 E. Broad Street, Suite 200
Richmond, VA 23219
804-643-1086
www.justice4all.org

Legal Aid Justice Center
6402 Arlington Blvd., Suite 1130
Falls Church, VA 22042
703-778-3450
www.justice4all.org

Legal Aid Justice Center
1000 Preston Avenue, Suite A
Charlottesville, VA 22903
434-977-0553
www.justice4all.org

Legal Aid Society of Roanoke Valley
132 Campbell Avenue SW, Suite 200
Roanoke VA 24011
540-344-2088
www.lasrv.org

Legal Aid Society of Eastern VA
125 St. Paul's Boulevard, Suite 400
Norfolk VA 23510
757-627-5423
www.laseva.org

Legal Services of Northern VA
10700 Page Avenue, Suite 100
Fairfax VA 22030
703-778-6800, 866-534-5243
www.lsnv.org

Legal Services of Northern VA
100 N. Pitt Street, Suite 307
Alexandria VA 22314
703-778-6800, 866-534-5243
www.lsnv.org

Legal Services of Northern VA
3401 Columbia Pike, Suite 301
Arlington VA 22204
703-778-6800, 866-534-5243
www.lsnv.org

Legal Services of Northern VA
8A South Street, SW
Leesburg VA 20175
703-778-6800, 866-534-5243
www.lsnv.org

Legal Services of Northern VA
500 Lafayette Boulevard, Suite 140
Fredericksburg VA 22401
703-778-6800, 866-534-5243
www.lsnv.org

Legal Services of Northern VA
9240 Center Street
Manassas VA 20110
703-778-6800 866-534-5243
www.lsnv.org

Legal Services of Northern VA
8350 Richmond Highway, Suite 309
Alexandria, VA 22309
703-778-6800, 866-534-5243
www.lsnv.org

Legal Aid Works
500 Lafayette Boulevard, Suite 100
Fredericksburg VA 22401
540-371-1105
LAWfred@LegalAidWorks.org

Rappahannock Legal Services, Inc.
1200 Sunset Lane, Suite 2122
Culpeper VA 22701
540-825-3131
LAWculp@LegalAidWorks.org

Legal Aid Works
311 Virginia Street
Tappahannock VA 22560
804-443-9394
LAWtapp@LegalAidWorks.org

Southwest VA Legal Aid Society, Inc.
227 West Cherry Street
Marion VA 24354
276-783-8300
svlas.org

Southwest VA Legal Aid Society, Inc.
155 Arrowhead Trail
Christiansburg VA 24073
540-382-6157
svlas.org

Southwest VA Legal Aid Society, Inc.
16932 West Hills Drive
Castlewood VA 24224
276-762-9354
svlas.org

Virginia Legal Aid Society
513 Church Street
Lynchburg VA 24504
434- 846-1326
vlas.org

Virginia Legal Aid Society
519 Main Street
Danville VA 24541
434-799-3550
vlas.org

Virginia Legal Aid Society, Inc.
217 E. Third Street
Farmville VA 23901
434-392-8108
vlas.org

Virginia Legal Aid Society, Inc.
16 Liberty Street Extension
Martinsville VA 24112
434-799-3550
vlas.org

Virginia Legal Aid Society, Inc.
2480 Pruden Blvd.
Suffolk VA 23434
757-539-3441
vlas.org

TRANSMITTAL #35

PART XX DISASTER SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM (D-SNAP)

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PART XX DISASTER SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM (CONTINUED)

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A. Introduction

If there is an emergency or major disaster, such as a hurricane, tornado, storm, flood, snowstorm, drought, fire, explosion or other disaster, the regular program may not be able to handle the increased number of households needing food assistance. Under certain conditions, localities and states can petition the Food and Nutrition Service (FNS) to authorize implementation of the Disaster Supplemental Nutrition Assistance Program (D-SNAP).

This chapter outlines how the Commonwealth of Virginia will administer an effective and efficient D-SNAP. Depending on the circumstances, Virginia will request program waivers, as appropriate. Additionally, the Virginia Department of Social Services will advise local departments (LDSS) of changes to required information needed for eligibility determinations.

The D-SNAP Web-Based Eligibility Application User's Guide outlines procedures for accessing the online D-SNAP system. The User's Guide is available at <https://fusion.dss.virginia.gov/bp/BP-Home/SNAP/Disaster-SNAP>.

B. Local Planning

Each LDSS must develop and maintain a local disaster plan. Local plans must be submitted annually by April 15th to the state office D-SNAP coordinator electronically for storage on a state shared drive. See Part D, Assessment and Evaluation of a Disaster for elements that should be included in the plan. A disaster planning guide is available online at <https://fusion.dss.virginia.gov/bp/BP-Home/SNAP/Disaster-SNAP>.

When a disaster occurs, VDSS will communicate with local personnel identified as the Local Contact for the affected locality. This contact will be to discuss the feasibility and desirability of operating a D-SNAP. A list of local contacts is available online at <https://fusion.dss.virginia.gov/bp/BP-Home/SNAP/Disaster-SNAP>.

If many localities are affected by the disaster, VDSS will hold a conference call with the Local Contacts to review the criteria for operating the D-SNAP. If one or more LDSS opts to apply, VDSS will convene regional, face-to-face, or teleconference meetings to discuss aligning program days/hours of operation and program options within the region. If appropriate, all localities must operate the D-SNAP during the same days and use the same program options.

Each locality offers different resources and may face different challenges in terms of staffing of the local social services department, physical space and community demand. If a disaster occurs, the need for assistance can vary greatly from one area to another.

Each LDSS must develop a local disaster plan that addresses issues and prepares the community to meet the needs of the citizens. The local plan must identify and include appropriate community partners.

The plan should also include other city/county government agencies that will share responsibilities during the disaster. The LDSS, with the help of its partners, will carry out those plans in the event of a disaster that warrants implementation of the D-SNAP.

C. PRE-CONDITIONS FOR AUTHORIZATION OF THE DISASTER PROGRAM

1. The following pre-conditions must be met before the D-SNAP may be authorized:
 - a. The President must proclaim a disaster for individual assistance in Virginia. After this decision, states and localities can request the D-SNAP.
 - b. Commercial channels of food distribution (wholesale and retail food outlets) must have been both DISRUPTED and subsequently RESTORED such that they are now currently available.
 - c. The regular program must be unable to handle the increased number of households needing food assistance expeditiously.
2. Commercial channels of food distribution must be DISRUPTED under any of the following conditions, provided the condition was directly caused by the disaster:
 - a. Retail food outlets are closed.
 - b. Normal operating hours of food outlets are reduced to the extent that a household's opportunity to purchase food supplies is significantly reduced.
 - c. Power failure significantly restricts the operation of food outlets.
 - d. Household access to retail food outlets is limited because of disruption to transportation (such as damage to roads or bridges or disruption in otherwise availability of public transportation).
 - e. Unusually heavy demand for food exists such that a household's opportunity to purchase food supplies is significantly reduced.
 - f. Delivery of food supplies to food outlets is significantly hampered to the extent that a household's opportunity to purchase food supplies is significantly reduced.
3. Commercial channels of food distribution will be considered RESTORED when conditions or operations have been improved to the extent that households have reasonable access to food outlets with sufficient food supplies.

D. ALTERNATIVES TO THE DISASTER PROGRAM

Implementation of the D-SNAP is not appropriate for every disaster. The choice of whether to utilize the regular program or to request FNS authorization of the D-SNAP depends on the nature of the disaster.

1. The following factors suggest continued utilization of the regular program or a modified program:

- a. The affected population is fairly small.
 - b. The affected population is mostly the same population that is already eligible for or would be eligible for food assistance under the regular program.
 - c. The disaster appears to be fairly short term.
 - d. The increase in the demand for food assistance is expected to be manageable.
 - e. The regular program would be able to adequately respond to the needs of the affected population.
2. The following factors suggest implementation of the Disaster Program:
- a. The affected population is large.
 - b. The affected population includes a large population that would not be eligible for food assistance under the regular program.
 - c. The disaster is severe and widespread.
 - d. The increase in the demand for food assistance is expected to be dramatic.
 - e. The damage is so severe and widespread that application procedures under the regular program would be too cumbersome.
 - f. The disaster is such that many households would not have the verifications required by the regular program.
 - g. The affected population needs benefits more quickly than would be provided under the regular program.
 - h. The regular program would not be able to adequately respond to the immediate needs of the affected population.

E. ASSESSMENT AND EVALUATION OF A DISASTER

Once a disaster has occurred, the local department of social services director in each locality affected must contact the Director of Benefit Programs or specified designee in the Home Office of the Virginia Department of Social Services to provide information regarding the extent of the damage caused by the disaster. This contact is to discuss and determine information specific to the disaster that may need to be gathered and submitted with the request to run a disaster program, e.g., data from the electric company about the extent of power outages. The local agency and Home Office will also discuss whether the D-SNAP or a modified disaster program is the appropriate response.

The local social services agency must request approval to run the D-SNAP. The request must be in writing and submitted to the Director of Benefit Programs or specified designee. The plan must be designed to provide benefits to applicants within three calendar days. (The first day is the day after the application is filed.) A sample cover letter and template for the request are in Appendix III of this chapter. The request to operate the disaster program must include the following information:

1. Names, positions and phone numbers of key contact people responsible for the operation of the D-SNAP. Include also the date of request.
2. Completion of a needs assessment that includes:
 - Status of food distribution, i.e., a statement whether commercial channels of food distribution have been both disrupted and restored.
 - A statement of why the food assistance needs of these households cannot be met by the regular program.
 - An estimate of the number of households expected to apply, and whether the D-SNAP is needed to meet the needs. There must be separate calculations for applicants and ongoing recipients.

An estimate of how long it will take to accept and process D-SNAP applications from the affected population. The disaster application processing period cannot exceed seven days. Include the date application processing is anticipated to begin and the date it will end.

 - Indicate the disaster period requested, i.e., whether a full or half-month of benefits is requested. This recommendation will be based on the nature, severity, and anticipated duration of the disaster. (FNS will make the final determination)
3. Public information plans for informing the public about the availability of the D-SNAP. The LDSS must identify newspapers, radio stations, television stations, and key media and government websites that cover its service area.
4. List of volunteers and their contact information to assist the LDSS in the operation of the D-SNAP. Information about any disaster relief agencies that the local agency wants to use in administering the D-SNAP. Examples include the Red Cross or Salvation Army. Specify the functions that will be delegated to the disaster relief agency in connection with the certification and issuance of benefits and the geographical areas in which these functions will be performed. NOTE: Volunteers, including relief agencies, may not conduct eligibility interviews or determine eligibility.

The Virginia disaster state plan does not assign a role to private disaster relief agencies within the Commonwealth. However, access to volunteers from those agencies is available, if needed. During a declared State of Emergency, VDSS is the lead agency for Emergency Support Function (ESF)-6 with responsibility for mass care, housing and human services. In this role, the Virginia Voluntary Organizations Active in Disasters

(VVOAD) is a support organization to ESF-6. VVOAD is an organization of over 20 non-profit groups including faith-based organizations. Several of these organizations support feeding operations within impacted areas during emergencies.

5. Indicate the number of BPS available to process applications. Include how you will be able to contact your own employees (home phone numbers, cell phone, etc.) Also, include a plan to house staff in case of an extreme emergency.

Each LDSS is responsible for obtaining sufficient personnel to administer the D-SNAP. Such staff includes persons to provide clerical, eligibility determination, issuance, and crowd control duties or functions. Staffing considerations must factor in language needs of the community by having bilingual staff available. To ensure that sufficient staff is in place for a disaster, each LDSS must have a plan in place to expand the number of available workers to perform functions related to the D-SNAP. These additional workers may include workers from other programs within the LDSS, other city/county staff, staff from other LDSS, and volunteers. VDSS will perform a broker function and match volunteers from one LDSS to work temporarily for another LDSS when necessary.

6. List of workers and their contact information willing to assist other LDSS in the event a D-SNAP is operating in another county or city.
7. Procedures for working with power companies – determine what type of data they will provide. Also give any additional information that may be helpful such as conditions in the locality (e.g., duration of power outages, shut down of major employers.)
8. Identification of local demographic data that is available such as population counts of low income individuals and the elderly population in various parts of the locality. If only part of the locality was affected, use street names and zip codes to define geographical areas within the locality in need of assistance. Provide maps if available.
9. The LDSS must identify one or more alternate certification sites to operate a D-SNAP. This option may be necessary if the LDSS is unavailable or inaccessible because of the disaster or because it cannot accommodate an anticipated volume of applicants. In determining the location of the alternate site, the LDSS must consider the accessibility of the location to parking, the location's accommodations for disabled individuals, power and telecommunications arrangements, and the capacity to establish Internet access for multiple computers.

A contingency plan for supplying additional hardware for operations should be identified, if necessary.

10. The LDSS is responsible for ensuring that all personnel implementing a D-SNAP is adequately trained. VDSS staff will provide initial face-to-face training or videoconference training sessions for affected localities. VDSS will provide an electronic version of all training materials for ongoing reference.

Once a county/city has been approved to operate a D-SNAP, the LDSS must determine the training needs for all staff involved. At a minimum, each LDSS should have two

representatives attend the VDSS-provided training. Additionally, there will be daily conference calls where any LDSS staff member may call-in and ask questions of VDSS staff regarding the operation of the D-SNAP.

11. Describe procedures for accepting and processing applications, including crowd management procedures at application and issuance sites and fraud prevention measures. Describe also any pre-screening activities. If any volunteers will be there, explain where they are from and what their duties will be.

Volunteers may perform screening activities that do not involve duplicate participation checks. They cannot perform any interview or certification activities.

12. Plan for crowd control including procedures to reduce applicant hardship (i.e. water, bathrooms, etc.) Include information about how to provide accessibility for the elderly or disabled.

Crowd Control

It is anticipated that the number of applicants for the D-SNAP will be significantly larger than the normal flow of SNAP applicants and recipients. The LDSS must have a plan to address an increased number of people.

In order to even out the flow of applicants on a daily basis, the local agency may ask potential applicants to apply alphabetically or according to birth date or Social Security number. Arrangements should be made to acquire crowd control equipment such as rope barriers, directional signs and some form of public address system.

The plan must provide for the deployment of additional staff and volunteers to carry out various functions. These functions may include maintaining orderly lines, assigning numbers to applicants in order for them to be served, informing applicants of the approximate waiting time, or cutting off lines at the closing hour of business identified in the local plan for operating the D-SNAP.

Human Comforts

The LDSS must attempt to provide basic human comforts to those individuals seeking assistance at D-SNAP certification sites. These comforts include bathroom facilities, access to emergency medical care (which may require having a nurse or other medical personnel on site), and the provision of water and small snacks, which may be available from the local Red Cross or other emergency providers.

Some applicants, such as the elderly, those with disabilities, and those whose primary language is not English, may have special needs that must be addressed. This would include ensuring that certification sites and bathroom facilities are handicapped-accessible and that there is adequate, appropriate staff to assist applicants who are blind or deaf or have other impairments. In some instances, the LDSS may need to arrange transportation, conduct home visits, and secure translation services.

13. Plan for handling employee applications.
14. Describe procedures for issuing benefits. This would include the plan for the physical security and tracking of EBT cards, the data entry process, card delivery or card replacement. Include any recipient training or customer service training to be implemented.

D-SNAP households will be issued EBT cards over-the-counter. Designated local agency issuance personnel may access the card issuance screen in the EBT system using Manual Account Setup prior the demographic and benefit files being transmitted to issue vault cards to eligible households. Cardholders must sign for receipt of the card. Cardholders must select a Personal Identification Number (PIN) by calling the EBT vendor's Automated Response Unit. The LDSS is encouraged to provide a telephone for cardholder use in acquiring the PIN.

Disaster benefits must be provided within 3 days of the application date. (Day 1 is day after the application is filed.) Disaster benefits will be available for household use for 274 days. The EBT system will expunge unused benefits on the 275th day the benefits were issued for the D-SNAP.

15. Fraud prevention procedures. This would be a description of application/issuance site controls and possible use of onsite fraud investigators. Include in this any specific plans to handle employee applications.

While the primary focus of the D-SNAP is to distribute benefits to eligible disaster victims as quickly as possible, precautions must be taken to guard against fraudulent receipt of benefits. Workers must verbally advise applicants of D-SNAP rules and of the penalties for fraudulent receipt or use of benefits. A checklist given to eligibility workers should include circumstances that would trigger a referral to an investigator.

The automated system will cross check data entered to ensure that new applicants and household members for the D-SNAP are not already receiving either regular SNAP benefits or D-SNAP benefits. The automated system will also check to ensure that the case has not already been found to be ineligible for benefits in any jurisdiction. The system will perform an edit check on any Virginia Department of Social Services employee applying for the D-SNAP. The system will identify the receipt of support through the Division of Child Support Enforcement.

If the automated system is unavailable, the LDSS must maintain lists of applicants/recipients, which must be checked for duplicates at the close of each business day. Other fraud prevention measures will include investigation of questionable information. In no event however, must any investigative activity delay the issuance of D-SNAP benefits beyond three days.

16. There needs to be confirmation that the LDSS can access the following documents from this chapter in electronic format:
 - D-SNAP client application (Appendix 1)

- Cover letter to VDSS requesting to operate a D-SNAP and the application to run the program template (Appendix III)
- Press release and fact sheet which is also a flyer that can be posted (Appendix VI)

F. APPLICATION TO FNS FOR AUTHORIZATION OF THE DISASTER SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM

Upon completion of the application to operate the D-SNAP, local officials must submit the application to Director of the Benefits Division or designee at the Virginia Department of Social Services. Virginia Department of Social Services staff will submit the application to FNS on the locality's behalf first by email or fax and then a hard copy will be mailed.

G. FNS AUTHORIZATION TO IMPLEMENT THE DISASTER PROGRAM

1. APPROVAL OR DENIAL. FNS approval or denial will be made to Home Office. The letter of approval will generally contain procedures the locality must follow that are specific to the disaster. The approval or denial may be as immediate as the next day.

If the application is denied, Home Office may request a review of the denial should additional information subsequently become available to substantiate the request for authorization.

2. GEOGRAPHICAL AREA. FNS will specify the locality or parts of localities where the D-SNAP is authorized.
3. DISASTER APPLICATION PERIOD. FNS will authorize a period of up to seven days for receiving, processing, and approving applications. Depending on the volume, processing applications may continue to occur after the expiration of the application period.

No D-SNAP application may be taken after the expiration of the disaster application period.
4. DISASTER BENEFIT PERIOD. For the D-SNAP, FNS will specify either a half-month or a full month disaster benefit period, depending on the nature, severity, and anticipated duration of the disaster.
5. USE OF DISASTER RELIEF AGENCY. FNS will authorize the use of any disaster relief agency in administering the Disaster Program as well as specifically authorize which functions the agency may perform in connection with the certification and distribution of D-SNAP benefits.

H. APPLICATION TO FNS FOR EXTENSION OF THE DISASTER PROGRAM

An extension of the GEOGRAPHIC AREA covered by the D-SNAP may be requested if the effects of the disaster are more widespread than originally determined.

An extension of the DISASTER APPLICATION PERIOD may be requested if a significant number of D-SNAP applications cannot be taken during the original application processing period.

I. INFORMING THE PUBLIC

During a disaster, state and local levels will disseminate information about the D-SNAP. The VDSS will issue press releases and have information available on its public website about the operation of the D-SNAP in different counties and cities. When a disaster occurs where the LDSS has been approved to operate a D-SNAP, VDSS will contact media and government outlets identified by the LDSS. The press release may include information about:

- Supplemental Nutrition Assistance Program background
- Eligibility requirements
- Locations and the hours of operation
- The distribution of food and commodities through the Red Cross and other organizations

Additionally, the LDSS should arrange for food retailers, advocacy organizations and community and faith based organizations to display posters and distribute flyers. Posters should be displayed in local businesses and areas where disaster victims may congregate or seek other assistance.

The LDSS must also issue press releases and post information on its website to update the public on the status of the D-SNAP.

Local agencies serving affected areas must ensure the public is advised:

- about the availability of disaster benefits;
- how to apply for benefits;
- where and when to apply for disaster benefits;
- eligibility and verification requirements;
- the proper use of D-SNAP benefits and EBT cards;
- retailer availability;

- penalties for fraud; and
- a post-disaster review of D-SNAP applications.

Special efforts must be made to contact those segments of the community that may not be reached by mainstream media, such as persons living in rural areas, the elderly and disabled, the deaf and hearing impaired, and the non-English speaking. Suggested wording for a flyer and news release are in Appendix VI of this chapter. A poster that must be at all application sites is also in Appendix VI.

J. MAJOR DIFFERENCES BETWEEN THE REGULAR PROGRAM AND THE DISASTER PROGRAM

There are major differences between the regular program and the D-SNAP.

1. **ELIGIBILITY CRITERIA.** Eligibility criteria are less strict to provide food assistance to households that might not otherwise qualify for the regular program.
2. **VERIFICATION.** Depending on the nature of the disaster, verification rules are relaxed to streamline the application and eligibility determination process. For example, if homes are destroyed in a tornado, verification might not be available.

At a minimum, the identity of the applicant must be verified. Residence verification is also requested but not required; i.e., the application can be processed without verification of residence.

Households may be required to verify income and resources depending on the nature of the disaster. There is a standard deduction for disaster related expenses and verification will not be required.

If a household must provide additional verification after the interview, the worker must advise the household that the information must be provided by the end of the period the agency is authorized to take disaster applications.

3. **AMOUNT OF BENEFITS.** An eligible household will be provided the maximum allotment for the household size. The allotment will not vary depending on income, as it does in the regular program.
4. **DELIVERY OF BENEFITS.** In the D-SNAP, benefits are provided within three calendar days of the date of application (day one is the day after the application date), or, if verification is still needed, within three calendar days of the household providing verification, but no later than the last authorized date of the disaster period.
5. **NON-FINANCIAL FACTORS.** Some non-financial factors are not asked about or evaluated in the D-SNAP. These factors include:
 - Citizenship and alien status

- Student eligibility (Students living in institutions are not eligible.)
- Striker
- Work registration
- Disqualification under the regular program
- Work Requirement and time-limited benefits

K. HOUSEHOLD APPLICATION PROCEDURES FOR THE DISASTER PROGRAM

To apply for D-SNAP benefits, a household member or its authorized representative must complete and submit an *Application for Disaster Supplemental Nutrition Assistance Program Benefits*. See Appendix I of this chapter for a copy of the application. The household or its authorized representative must be interviewed. At a minimum, the identity of the applicant must be verified.

If an authorized representative is applying on behalf of a household, written permission from the head of the household must be provided.

1. **FILING AN APPLICATION.** If the web-based D-SNAP application is used, the household must sign a *Request for Disaster Benefit Assistance* in order to inform the household that the Social Security Numbers and names of household members will be matched against various files. See Appendix I of this chapter for a copy of the request form.

If a paper application is used, the household must submit a completed and signed D-SNAP application to the local agency authorized for the D-SNAP, either in person or through an authorized representative. The agency must record the date the application is received.

The household must file the application during the disaster application processing period authorized by FNS. If a D-SNAP application is mistakenly filed outside of this disaster intake period, it must be denied.

Households that apply outside of this disaster intake period may complete an application for the regular program and have the application processed according to the regular program application procedures.

2. **MATCHES.** Applicants must be screened to prevent duplicate participation. They also will be subject to various other matches. To prevent multiple issuances of Disaster SNAP benefits to an individual by more than one locality simultaneously, the local agency must accept applications and inform applicants that eligibility is contingent upon a subsequent check for duplicate participation.

If the web-based application is used, the household will be screened automatically against extracts from VaCMS, the Division of Human Resources State Employee Database, Child Support Enforcement, and the web-based file itself. Match results will be provided to the worker online for information and evaluation. The local agency must screen all household members against SPIDeR and the local employee database(s). In some disasters, persons who match in VaCMS, and who have already received benefits through the regular program will not be eligible for D-SNAP benefits. A match with the VDSS state employee file is an

indication to the worker of an income source to explore during the interview. A match with support enforcement files is an indication to the worker of a possible income source to explore during the interview. A match with the disaster file itself shows people who have already applied for D-SNAP benefits and the disposition of that application.

If a paper application is used, the household members on the application must be entered into the web-based automated system to check for duplicate participation prior to approval. The application will be automatically screened against the same sources noted above as the web-based application.

3. **INTERVIEWS.** The household must be interviewed. The individual interviewed may be the head of the household, spouse, any other responsible member of the household, or an authorized representative. If an authorized representative is applying, that person must have written permission from the household. The interviewer must review the information that appears on the application and resolve unclear or incomplete information with the household.

In addition, the interviewer must advise the household of its rights and responsibilities, including the right to a fair hearing, the proper use of benefits and EBT cards, penalties for fraud, and the civil and criminal penalties for violations of the Food and Nutrition Act. The interviewer must advise the household that it may be subject to a post-disaster review.

The interviewer must inform each household of the ongoing food assistance program and how to apply for benefits.

Local agency certification staff, other designated agency staff, staff from other local agencies and state social services staff, may be used to interview households and to determine eligibility.

4. **VERIFICATIONS.** Verification requirements will depend on the nature of the disaster, e.g., if homes were leveled, verification of several elements may be waived. Identity of the applicant is always verified. Examples of acceptable verification of identity include, but are not limited to, a driver's license, work or school ID, voter registration card, or birth certificate. A collateral contact may be used as a source of verification if the applicant's identity cannot be verified through documentary evidence.

For items where verification can be waived, the household declaration on the application must be used in the eligibility determination.

5. **HOUSEHOLD COOPERATION.** If the household refuses to cooperate with any aspect of the application process, the application must be denied at the time of refusal. For a determination of refusal to be made, the household must be able to cooperate, but clearly demonstrate that it will not take actions that it can take and that are required to complete the application process.
6. **BENEFIT AMOUNT CALCULATION.** Households determined eligible for Disaster Program assistance must receive either a half-month or a full month allotment, depending on which disaster benefit period level was authorized by FNS.

The actual amount of the allotment will be based on the household size. The benefit allotment tables must be used to determine the amount of the allotment.

7. **PROCESSING STANDARD.** Eligible households that complete the D-SNAP application must have their eligibility determined the same day, or as soon thereafter as possible, to ensure that benefits are issued no later than the third calendar day following the date the application was filed. Ex: Application date is September 17, so September 18 is day one of the processing period.

Ideally, an opportunity to obtain benefits should be provided the same day the application is approved. Benefits will be issued by vault EBT cards.

If, due to the volume of applications, additional processing time is needed, the local agency must forward the request for additional time to the VDSS SNAP Unit. The request must indicate the date by which all D-SNAP applications will be processed.

8. **CERTIFICATION NOTICES.** The household must be advised in writing of the disposition of the application. See Appendix I of this chapter for the Notice of Action for the Disaster Program. If an application is approved, the household must be advised of the amount of the allotment and the period the benefits are intended to cover. If the application is denied, the basis of denial must be explained. If an application is withdrawn, list the date of the withdrawal on the notice to confirm it. Appeal information is on the notice.
9. **HANDLING CURRENT SNAP HOUSEHOLDS.** In some disasters, ongoing recipients may apply for and be certified for disaster benefits. FNS has previously approved options such as the issuance of automatic replacements to ongoing households. The way ongoing households are to be handled will be determined in negotiations with FNS at the time of a disaster.

L. ELIGIBILITY REQUIREMENTS FOR D-SNAP

To be eligible for the D-SNAP, a household must meet basic eligibility factors or requirements. These eligibility factors are for the household to: live in the affected area (Residency); intend to purchase and prepare food during the disaster benefit period (Purchase and Prepare); have suffered an adverse effect other than loss of food as a result of the disaster (Adverse Effect); be evaluated with people who would normally be part of the household (Household Composition), and to meet the income and resource eligibility test (Income and Resource Test). These factors are explained fully below.

1. **RESIDENCY.** At the time the disaster struck, the household must have been residing within the geographical area authorized for implementation of the Disaster Program. Such a household may be certified even though it is temporarily residing outside of this area. In this situation, the household would need to apply at the local agency where it lived at the time of the disaster. There may be exceptions for those who worked in the disaster area but do not live there. This will depend on the disaster circumstances.

2. PURCHASE AND PREPARE. The household must intend to purchase food and prepare meals during the disaster benefit period.
3. ADVERSE EFFECT. Depending on the disaster, the household must have experienced one or more of the following adverse effects that directly result from the disaster. Additional adverse effects may be identified at the time of the disaster.

- a. Loss or Inaccessibility of Income.

Loss or inaccessibility of income means a reduction or termination of income, or a significant delay in receipt of income, due to the disaster. This could occur, for example, if a disaster has caused a place of employment to close or reduce its work days, or if the work location is inaccessible due to the disaster (e.g., roads washed out).

- b. Inaccessibility of Liquid Resources.

Inaccessibility of liquid resources includes situations in which the financial institutions in which the household has its resources are expected to be closed due to the disaster for at least half of the disaster benefit period.

Note: This may be an infrequent occurrence, as households can usually access their resources via online banking or ATMs even if the bank branches are closed in the affected area.

- c. Disaster-Caused Expenses Due to Damage to the Home Property or Self-Employment Business.

The household must have had damage to the home property or self-employment business and have unreimbursed out-of-pocket expenses to qualify under this criterion for the D-SNAP. The client will not have to verify these expenses.

Eligible expenses include but are not limited to; home and business repairs, home and business protection, temporary shelter expenses, evacuation expenses, medical expenses due to personal injury, disaster-related funeral expenses, disaster-related pet boarding fees, disaster-related damaged vehicle expenses, storage expenses, expenses for clean-up supplies, and expenses related to replacement of items, such as clothing, appliances, tools and educational materials.

- d. Loss of Food. (state option)

Food lost or damaged in a disaster or lost because of a power outage that exceeded four hours.

Virginia utilizes a Disaster Standard Expense Deduction (DSED) in lieu of actual disaster expenses incurred by a household. Only households with actual unreimbursed disaster-related expenses equal to or greater than \$100 qualify for the DSED. Households with deductible

disaster-related expenses that fall below the \$100 threshold will have their eligibility determined using their actual expenses.

The DSED is designed to capture food loss along with other disaster-related expenses, such as loss of income and damage to or destruction of property. The DSED must not be applied to cases in which food loss is the only disaster-related expense.

All applicants must list the type and value of their disaster-related expenses on their D-SNAP applications.

Example

Client applies for D-SNAP for herself, her husband, and two children. She stated they have disaster-related expenses, but the expenses are \$75 due to their insurance deductible. Since the family's disaster-related expenses fall below the \$100 threshold, the BPS must enter the household's actual expense of \$75.

4. **HOUSEHOLD COMPOSITION.** The household must include as part of the application process the people normally living and eating together when the disaster occurred. Do not include any persons temporarily staying with the household or with whom the household is temporarily staying. If members of the family are not together on the date of application because of circumstances directly related to the disaster, but they were living and eating together on the date of the disaster, include those persons also.

Examples

In the following examples, the date of the disaster is September 18 and the disaster benefit period is September 18 – October 3. The date of application is September 30.

- a) Client applies 9/30 for herself. Her husband, who was in the home on 9/18, went to jail on 9/20. He is not included as a household member; he is not there on the date of application and his absence is not related to the disaster.
- b) Client and her husband moved in temporarily with her mother because their house was flooded. Do not include the mother because the client and her husband are temporarily staying there.
- c) Client's sister moved in with her temporarily because the sister has no power. Do not include the sister on the client's application.
- d) Client applies for herself and a baby born 9/20. The new baby is included because he is now part of the permanent household, even though he was not there on the date of the disaster.
- e) Client and her husband have four children. Their home was destroyed in a tornado. Nobody can house all six of them, so three children are

with their grandmother, and the other three people are with the client's sister. The application can include the family of six, because they were living and eating together on the date of the disaster and the reason they are scattered is directly due to the disaster.

- f) Client's daughter is home from college because the college closed. Do not include the college student because she is there temporarily.
- g) Client normally resides in the barracks on a military base. He is not eligible for benefits because he is in a facility that provides him food.

Students or others who have meals provided are considered residents of institutions and are not eligible for the D-SNAP.

5. **INCOME AND RESOURCES TEST.** The household must meet the disaster income limits. This is determined as follows:

- a. Determine the household's gross earned and unearned income during the disaster benefit period. For self-employment income, count the amount that remains after costs of producing the income are subtracted.

Count income the household has received during the disaster benefit period, or expects to receive with reasonable certainty during this period.

Income that is countable in the regular program will be countable for disaster benefits. Similarly, excluded payments under the regular program will be excluded for disaster benefit determinations.

For the D-SNAP, average weekly and bi-weekly income must NOT be converted to a monthly figure by the 4.3 or 2.15 conversion factors used in the regular program. Instead, the BPS must determine the income already received during the disaster period, and anticipate the income expected for the rest of the disaster period.

Example

The disaster period is August 17 through September 16. The household files a D-SNAP application on August 30. The client has four pay dates during the disaster period. He had a full paycheck on August 23, but no pay on August 30 because the business flooded. He expects full pay again for the next two pay dates, because he is back at work. Count the one pay received and the two anticipated basing the amounts for the anticipated two on the one received.

D-SNAP income does NOT include any disaster assistance payments received or expected to be received during this period from Federal, State, or local government agencies or disaster assistance or relief organizations.

- b. Determine the household's accessible liquid resources as of the date of application.

All liquid resources that the household can access must be counted. They include, but are not limited to, cash on hand, money in checking, savings, and credit union accounts, Christmas or Vacation Club accounts, certificates of deposit, and money market accounts.

Jointly held resources between married persons belong to each party equally. Jointly held resources between other people belong to the parties in proportion to their net contributions. If the parties establish that they intended a different ownership arrangement, that arrangement prevails.

Example

A daughter is listed on her elderly mother's bank account. The daughter and her mother say the money belongs to the mother. The account is not a countable resource to the daughter.

Individual Retirement Accounts, stocks, bonds and Keogh plans are not counted.

Do not count the same money as income and a resource for the same month.

Example

A client's paycheck is deposited directly in a checking account. Count the paycheck as income but deduct that amount from the resource balance.

- c. To be eligible for benefits, households' income and accessible liquid resources must be below the allowable levels.

For households with \$100 or more in unreimbursed disaster-related expenses use Chart A. The income levels in Chart A incorporates the Disaster Standard Expense Deduction (DSED). Households whose total income plus accessible liquid resources that are less than or equal to the levels in Chart A would qualify for D-SNAP.

For households with \$100 or less in unreimbursed disaster-related expenses, or food loss is the only expense use Chart B. The income levels in Chart B does not incorporate the Disaster Standard Expense Deduction (DSED). Households whose total income plus its accessible liquid resources minus their actual disaster-related expenses must be less than or equal to the levels in Chart B to qualify for D-SNAP.

If the household's income is at or below the limit for its size, the household is eligible for the benefit shown:

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Chart A (DSED):

Household Size	Income Limit	Benefit Amount Full Month	Benefit Amount* Half Month
1	\$3,269	\$ 298	\$ 149
2	4,243	546	273
3	4,870	785	393
4	5,733	994	497
5	6,314	1,183	592
6	7,049	1,421	711
7	7,584	1,571	785
8	8,117	1,789	895
Each additional person	+\$533	\$218	\$109

Chart B (DGIL):

Household Size	Income Limit	Benefit Amount Full Month	Benefit Amount* Half Month
1	\$2,258	\$ 298	\$ 149
2	2,716	546	273
3	3,174	785	393
4	3,647	994	497
5	4,143	1,183	592
6	4,639	1,421	711
7	5,098	1,571	785
8	5,556	1,789	895
Each additional person	+\$459	\$218	\$109

* The half-month benefit amount is calculated by dividing the full month amount by two and rounding up to the nearest whole dollar amount.

- d. For eligible households, the BPS must complete the Internal Action Form for Disaster Benefits to authorize the issuance of the EBT card. See Appendix I for a copy of the form.

M. DISASTER PROGRAM BENEFIT PERIOD

1. The benefit period for the D-SNAP is not based on a calendar month as it is for the regular program. The benefit period is determined by the disaster benefit period authorized by FNS. The period will be either a half-month (15 days) or a full month (30 days).
2. The full amount of accessible liquid resources must be counted regardless of whether the length of the disaster benefit period is a half month or a full month.

3. If the disaster benefit period is a half-month, income over the 15-day period must be counted. If the disaster benefit period is a full month, then income during the 30-day period must be counted. The maximum income limit for the appropriate household size must not exceed the disaster income eligibility limit as shown in the table in Chapter L.

N. VAULT CARD ISSUANCE PROCEDURES

For the D-SNAP, eligible households must receive a new EBT card and EBT account. There must be a new card and account even if households are already known to the EBT system. Procedures for setting up EBT accounts are in Appendix IV of this chapter.

To issue EBT cards in the D-SNAP, the local agency must issue vault cards in the same manner they are issued for regular program operations. The eligibility worker must authorize issuance of a vault card in the stand-alone D-SNAP system and prepare the Internal Action Form. Refer to the EBT Policy and Procedures Guide.

The agency must provide an overview of the issuance process and use of benefits to the applicant. The overview must also advise the applicant of the approximate time when the EBT card will be available for use and when to select the Personal Identification Number (PIN). Households must select or change the PIN to access benefits through the Automated Response Unit.

O. FAIR HEARING

Households denied Disaster Program benefits may request a fair hearing in accordance with Part XIX. If the household decides to withdraw its request for a fair hearing, the request must be in writing.

P. TRANSITION TO THE REGULAR PROGRAM

Households that are issued D-SNAP benefits may follow up and file applications for the regular program. In such situations, benefits for the regular program must be prorated from the day following the end of the disaster benefit period, or the day of application for the regular program, whichever is later.

Example

The D-SNAP benefit period is August 18 through September 17. The household filed for and was approved for disaster benefits on September 1. The household files an application for the regular program on September 15. If eligible, benefits are prorated from September 18, the day following the end of the disaster benefit period.

Q. DISASTER REPORTS

The VDSS must report daily to FNS the number of households and persons approved for disaster benefits. The report must distinguish between households and persons participating in the normal, ongoing program and new, nonparticipating households and persons. This information will be gathered at the end of each business day from the web-based system or the Master Issuance File or EBT files if a paper application is used. Daily reports will also capture the value of benefits issued and the number of households denied benefits.

The VDSS must submit additional reports at the end of the disaster period. These reports include:

FNS - 292B	Report of Supplemental Nutrition Assistance Program Benefit Issuance for Disaster Relief
FNS – 388	Monthly Issuance Report
FNS – 209	Status of Claims Against Households Report
FNS – 46	Issuance Reconciliation Report

Appendix VII contains guidance for the completion of these reports.

The VDSS will complete reconciliation and settlement reports through established processes and must address card production and delivery, benefit authorization, and posting issues.

R. RECIPIENT CLAIMS AND ENTITLEMENT TO RESTORATION

The LDSS must establish and pursue collection of claims for disaster benefits issued incorrectly. The LDSS must establish claims as soon possible, but no later than the end of the quarter following discovery of the overpayment. Regular Program rules apply for establishing and collecting amounts. See Part XVII.

The LDSS must restore benefits to any household that was incorrectly denied or that received too few benefits. The LDSS may discover the need for restoration through the fair hearing process, post-disaster review, or evaluation of household complaints. Regular program requirements apply for restoration so restored benefits may be offset against an existing claim. See Part XVI.

S. INTENTIONAL PROGRAM VIOLATION DISQUALIFICATION

Disqualification in the regular program does not disqualify a person from the Disaster Program. Committing an Intentional Program Violation (IPV) in the Disaster Program will count towards disqualification in the regular program, however. See Part XVII.

T. POST-DISASTER REVIEW

After operations for a disaster program have ended, the VDSS will review a sample of certified cases. The VDSS will select a sample of 0.5 percent of the cases certified for the D-SNAP, up to a maximum of 500 cases. Following the reviews, errors identified will be analyzed and

corrective actions developed and implemented. Cases identified as being over- or under-issued will be referred to the local agency for appropriate action. Potential fraud cases will also be referred.

In addition to the sample of cases, all applications of VDSS and LDSS personnel will be reviewed.

The VDSS will provide a report on the post-disaster review within six months of the close of the disaster period or as specified in the authorization from FNS to operate a D-SNAP.

U. Retention of Records

Each agency must maintain D-SNAP records in accordance with its established filing system. Program records must be retained for a minimum of three years.

APPENDIX I

DISASTER FORMS

<u>FORM NUMBER</u>	<u>NAME</u>	<u>PAGES</u>
032-03-1120-06-eng	Application for Disaster Supplemental Nutrition Assistance Program Benefits	1-10
032-03-0663-01-eng	Request for Disaster Assistance	11-12
032-03-0664-03-eng	Internal Action and Vault EBT Card Authorization for Disaster Benefits	13-14
032-03-0662-02-eng	Notice of Action–Disaster Supplemental Nutrition Assistance Program	15-18
032-03-0391-00-eng	Vault EBT Card Issuance Log	19-20
	D-SNAP Card Activation and PIN Selection Handout	21

APPLICATION FOR DISASTER SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM BENEFITS

Disaster Benefit Period	AGENCY USE ONLY			
	CASE NAME	FIPS	CASE NUMBER	ATTACHMENTS: Y or N # _____
	WORKER NAME	WORKER NUMBER	DATE RECEIVED	
TO				

INSTRUCTIONS:
Complete this application honestly and to the best of your knowledge. If you give false or misleading information or withhold information to receive benefits, you may be prosecuted or referred for an Administrative Disqualification Hearing. You may also be required to repay any benefits you erroneously received. If your household knows and refuses to give the needed information, you will not be eligible to receive Disaster Supplemental Nutrition Assistance Program benefits. The information you give, including Social Security numbers, may be matched against federal, state, and local records to determine if it is accurate. In addition, this information will be used to prevent duplicate receipt of benefits from more than one social service agency at the same time, and to inquire the Department of Human Resources state employee database. At your interview, you must provide proof of your identity. You may also be required to provide proof of residence, income, and resources. Tell your worker if you want someone who is not in your household to apply for and/or pick up and/or use your Disaster SNAP benefits on your behalf.

HEAD OF HOUSEHOLD (LAST NAME, FIRST, MIDDLE/ MAIDEN, SUFFIX):		PERMANENT ADDRESS (STREET, CITY, ZIP):
TEMPORARY ADDRESS (IF DIFFERENT):	Telephone:	AUTHORIZED REPRESENTATIVE: Written permission from the household to apply for benefits? __YES __NO Written permission from the household to access the account? __YES NO

PART I: HOUSEHOLD SITUATION

CIRCLE ONE		
YES	NO	1. Were you residing in the disaster area at the time of the disaster?
YES	NO	2. Has your home property or self-employment property in the disaster area been damaged or destroyed by the disaster?
YES	NO	3. Will you be purchasing food during the Disaster Benefit Period indicated above?
YES	NO	4. Did your household lose food because of the disaster?
YES	NO	5. Has your income been delayed, reduced, or stopped because of the disaster?
YES	NO	6. Does your household have any cash or money in bank or other financial institution accounts that are <u>not</u> accessible to your household to use because of the disaster?
YES	NO	7. Do you or anyone in your household currently receive SNAP benefits? Name of person: _____ From where: _____ Amount: \$ _____

PART II: HOUSEHOLD MEMBERS, INCOME AND RESOURCES

List ALL persons normally living and eating with you as of the date of this application. Do not include any persons temporarily staying with you or with whom you are temporarily staying. If members of your family are not together today because of circumstances directly related to the disaster, but they were living and eating with you on the date of the disaster, including those persons also.

Enter the total amount of ALL earned and unearned income received or expected to be received for ALL household members during the DISASTER BENEFIT PERIOD indicated above. Income includes, but is not limited to, gross salary and wages for full and part-time jobs, pensions, self-employment, child support, Social Security death, retirement, and disability benefits, and Supplemental Security Income. Source means: for wages- name of employer, for self-employment- name of business, and for child support- name of payor. Do not include disaster assistance payments you expect to receive from federal, state, or local governments or disaster assistance agencies during the benefit period. List all income including any received for a child or children in your household.

Enter the amount of ALL accessible resources as of the date of this application for ALL household members. Resources include, but are not limited to, cash on hand, money in checking and regular savings accounts, certificates of deposit, money market accounts, and Christmas and Vacation Club accounts. Resources do NOT include IRA Accounts, stocks, bonds, and KEOGH Plans. Source means: for all types, except cash on hand, the name of the financial institution. Please be sure to enter an answer in every row. If a person does not have the income or resource type listed, enter NA for not applicable.

IF YOU NEED TO INCLUDE ADDITIONAL HOUSEHOLD MEMBERS, INCOME, OR RESOURCES, PLEASE ASK FOR ANOTHER COPY OF THIS PAGE.

List Head of Household under 1. List other household members under 2 through 5. List a Social Security Number (SSN) and date of birth (DOB) for all members. List an amount and source (if applicable) for each income and resource type listed below. TYPE			1.NAME (Last, First, MI, Suffix):	2.NAME (Last, First, MI, Suffix):	3.NAME (Last, First, MI, Suffix):	4.NAME (Last, First, MI, Suffix):	5.NAME (Last, First, MI, Suffix):
			SSN:	SSN:	SSN:	SSN:	SSN:
			DOB:	DOB:	DOB:	DOB:	DOB:

DISASTER BENEFIT PERIOD to INCOME AMOUNTS	GROSS WAGES/SALARY	AMOUNT					
		SOURCE					
	NET SELF-EMPLOYMENT	AMOUNT					
		SOURCE					
	CHILD SUPPORT	AMOUNT					
		SOURCE					
	SOCIAL SECURITY (DEATH, RETIREMENT, DISABILITY)	AMOUNT					
		SOURCE					
	PENSION	AMOUNT					
		SOURCE					
	SUPPLEMENTAL SECURITY INCOME	AMOUNT					
		SOURCE					
	OTHER INCOME (SUCH AS VETERANS, UNEMPLOYMENT, TANF) LIST ALL INCOME INCLUDING ANY RECEIVED FOR A CHILD OR CHILDREN IN YOUR HOUSEHOLD.	AMOUNT					
		SOURCE					

CURRENT RESOURCE AMOUNTS	CASH ON HAND	AMOUNT					
		SOURCE					
	CHECKING ACCOUNT(S)	AMOUNT					
		SOURCE					
	SAVINGS ACCOUNT(S) CHRISTMAS CLUBS, VACATION CLUBS	AMOUNT					
		SOURCE					
	OTHER RESOURCES	AMOUNT					
		SOURCE					

DISASTER EXPENSES AMOUNTS

Please list the disaster expenses that you have paid or expect to pay out-of-pocket during the disaster benefit period. If you have received or anticipate receiving reimbursement for an expense, please list only the net expense. DO NOT INCLUDE EXPENSES THAT WERE PAID OR EXPECTED TO BE PAID BY SOMEONE OUTSIDE YOUR HOUSEHOLD.

EXPENSE TYPE	AMOUNT	SOURCE
HOME OR BUSINESS REPAIRS		
TEMPORARY SHELTER		
EVACUATION EXPENSES		
MEDICAL EXPENSES DUE TO PERSONAL INJURY		
DISASTER-DAMAGE VEHICLE EXPENSES		
FUEL FOR PRIMARY HEATING SOURCE		
CLEAN-UP ITEMS EXPENSES		
STORAGE EXPENSES		
EXPENSES RELATED TO REPLACING ITEMS, SUCH AS CLOTHING, APPLIANCES, TOOLS, AND EDUCATIONAL MATERIALS		
DISASTER-RELATED PET BOARDING		
DISASTER-RELATED FUNERAL EXPENSES		
HOME OR BUSINESS PROPERTY PROTECTION		
OTHER (EXPLAIN)		

PART III: PENALTY WARNING

If you give false or misleading information or withhold information to receive benefits, you may be prosecuted or referred for an Administrative Disqualification Hearing. You also may be required to repay any benefits you erroneously received. If your household receives SNAP benefits, you must not (1) give or sell SNAP electronic benefit cards to anyone not authorized to use them; (2) alter any SNAP electronic benefit cards to get benefits you are not entitled to receive; (3) use SNAP benefits to buy unauthorized items, such as alcoholic drinks, tobacco, or paper products; and (4) use another household's SNAP electronic benefit card for your household.

Any member of your household who breaks any of these rules on purpose could be barred from the Supplemental Nutrition Assistance Program for 12 months, 24 months, or permanently and may be fined, imprisoned, or both. Anyone court convicted of trading SNAP benefits for a controlled substance could be barred for 24 months or permanently, and permanently if court convicted of trading SNAP benefits for firearms, ammunition, or explosives. Anyone who intentionally gives false information or hides information about identity or residence to get SNAP benefits in more than one locality at the same time could be barred for 10 years.

PART IV: YOUR SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM RIGHTS

In accordance with federal law and U.S. Department of Agriculture policy, we are prohibited from discriminating on the basis of race, color, national origin, sex, age, religion, political beliefs, and disability. To file a complaint of discrimination, write USDA, Director, Office of Civil Rights, Room 326-W, Whitten Building, 1400 Independence Avenue, SW, Washington, DC. 20250-9410 or call (202) 720-5964 (Voice and TDD). USDA is an equal opportunity provider and employer.

PART V: CERTIFICATION AND SIGNATURE

I understand the questions on this application and the penalty for withholding or giving false or misleading information. I certify, under penalty of perjury, the information I have given is correct and complete to the best of my knowledge. I authorize the release of any information necessary to review actions related to this application. I understand that if I disagree with the decisions made on my application, I have a right to ask for a fair hearing. I understand my household may be selected for a federal or state review to examine actions taken in connection with this application.

Signature (Mark) of Applicant or Authorized Representative: _____ Witness of Mark: _____ Date: _____

Signature of Worker: _____ Worker Number: _____ Date: _____

USDA NONDISCRIMINATION STATEMENT

In accordance with federal civil rights law and U.S. Department of Agriculture (USDA) civil rights regulations and policies, this institution is prohibited from discriminating on the basis of race, color, national origin, sex (including gender identity and sexual orientation), disability, age, or reprisal or retaliation for prior civil rights activity.

Program information may be made available in languages other than English. Persons with disabilities who require alternative means of communication to obtain program information (e.g., Braille, large print, audiotope, American Sign Language), should contact the responsible state or local agency that administers the program or USDA's TARGET Center at (202) 720-2600 (voice and TTY) or contact USDA through the Federal Relay Service at (800) 877-8339.

To file a program discrimination complaint, a Complainant should complete a Form AD-3027, USDA Program Discrimination Complaint Form which can be obtained online at: <https://www.usda.gov/sites/default/files/documents/ad-3027.pdf>, from any USDA office, by calling (866) 632-9992, or by writing a letter addressed to USDA. The letter must contain the complainant's name, address, telephone number, and a written description of the alleged discriminatory action in sufficient detail to inform the Assistant Secretary for Civil Rights (ASCR) about the nature and date of an alleged civil rights violation. The completed AD-3027 form or letter must be submitted to USDA by:

- (1) mail:
U.S. Department of Agriculture
Office of the Assistant Secretary for Civil Rights
1400 Independence Avenue, SW
Washington, D.C. 20250-9410; or
- (2) fax: (833) 256-1665 or (202) 690-7442; or
- (3) email: program.intake@usda.gov

This institution is an equal opportunity provider.

AGENCY USE ONLY

DISASTER ALLOTMENT CALCULATION

1. Anticipated Income \$ _____
2. Disaster Income Limit: HH Size _____ \$ _____
 - INELIGIBLE if #1 is greater than #2
3. Resources \$ _____
 - INELIGIBLE if #1 plus #3 is greater than #2
4. Total Disaster related expenses* \$ _____
 - INELIGIBLE if #1 plus #3 minus #4 is greater than #2
 - ELIGIBLE if household meets the income test (#1 plus #3 minus #4 is less than or equal to #2)
 - WITHDRAWN on: _____
 - DENIED because: _____
 - APPROVED on: _____
 - DISASTER ALLOTMENT AMOUNT: \$ _____

WORKER: _____ Date: _____

DEPENDING ON THE DISASTER, CALCULATION FOR CURRENTLY CERTIFIED HOUSEHOLDS

1. DISASTER ALLOTMENT AMOUNT \$ _____
2. Ongoing Allotment (prorated) minus \$ _____
3. Difference (1 minus 2) \$ _____
4. Amount of Food Loss plus \$ _____
5. DISASTER ALLOTMENT AMOUNT (3 plus 4) \$ _____

WORKER: _____ Date: _____

**Households with actual, unreimbursed disaster-related expenses equal to or greater than \$100 qualify for Disaster Standard Expense Deduction. Households with countable disaster-related expenses that fall below the \$100 threshold should have the eligibility determined using actual expenses.*

IDENTITY VERIFIED YES NO	RESIDENCE VERIFIED YES NO	INCOME VERIFIED YES NO	RESOURCES VERIFIED YES NO
METHOD and DATE:	METHOD and DATE:	SOURCE, METHOD, and DATE:	SOURCE, METHOD, and DATE:
RECEIVED BY:	RECEIVED BY:	RECEIVED BY:	RECEIVED BY:

NOTES:

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Application For Disaster Supplemental Nutrition Assistance Program_Benefits

Form Number – 032-03-1120

Purpose of Form – To record a household's request for disaster benefit assistance and provide information about the household's circumstances to determine eligibility. To serve as a paper back-up for the automated disaster system.

Number of Copies – One.

Disposition of Form – The application must be completed by the household or on behalf of the household by an authorized representative. An authorized representative must have written permission from an adult member of the household to file the application. The application must be filed in a disaster case record and retained for a minimum of three years.

Instructions For Preparation of The Form – The Disaster Benefit Period will be pre-printed on the form in four different places before reproduction of it. The BPS must complete the Agency Use Section on page 1, with identifying information. Note whether there are attachments (e.g., the household needed an additional sheet to list more than 5 household members) by circling Y or N in the Attachments block and show how many pages are attached.

The household or its authorized representative must complete and sign the application. If any information needs to be changed after it has been entered, the applicant or the authorized representative must initial and date the changes.

The Agency Worker must sign and date the application on page 3 underneath the client's or authorized representative's signature. The worker must complete page 4, with the eligibility documentation and determination of benefits if the automated system is not available.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF SOCIAL SERVICES
SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM (SNAP)
REQUEST FOR DISASTER SNAP ASSISTANCE

General Information

This request for assistance is the first part of the application process for the Disaster SNAP Program. You must also complete the second part of the application process by:

1. Having an interview and
2. Signing an Application for Disaster SNAP Program Benefits

Complete and Accurate Information

You must give complete, accurate, and truthful information. If you give false or misleading information to receive benefits, you may be prosecuted or referred for an Administrative Disqualification Hearing. You may also be required to repay any benefits you erroneously received. If your household knows and refuses to give the needed information, you will not be eligible to receive Disaster SNAP Benefits.

Verification and Use of Information

The information that you give, including Social Security Numbers, may be matched against Federal, State and local records to determine if it is accurate. In addition, the information will be used to prevent receipt of benefits from more than one social service agency at the same time, and to inquire the Department of Human Resources state employee database.

Completing the Request for Assistance

If you are applying for your own household, please enter your name and other information requested in the space provided.

You may complete this request for assistance for someone else, if you have been authorized by that person to represent them. You will need a signed and dated statement from the person for whom you are applying before you can complete the application process. If you are applying for someone else, please enter the name and information of the person for whom you are applying. In addition, please enter your name and other information in the space provided.

Applicant Name	Date of Birth
Address	Social Security Number
	Telephone
Signature or Mark	Date

Authorized Representative Name	Relationship to Applicant
Address	Telephone
Signature or Mark	Date

Your SNAP Rights

The U.S. Department of Agriculture (USDA) prohibits discrimination in all its programs and activities on the basis of race, color, national origin, sex, religion, age, disability, political beliefs, sexual orientation, or marital or family status. (Not all prohibited bases apply to all programs.) Persons with disabilities who require alternative means for communication of program information (Braille, large print, audiotope, etc.) should contact USDA's TARGET Center at (202) 720-2600 (voice and TDD).

To file a complaint of discrimination, write USDA, Director, Office of credible, Room 326-W, Whitten Building, 14th and Independence Avenue, SW, Washington, DC 20250-9410, or call (202) 720-5964 (voice and TDD). USDA is an equal employment provider and employer.

Request For Disaster SNAP Assistance

Form Number: 032-03-0663

Purpose of Form: To indicate intent to apply for the Disaster Supplemental Nutrition Assistance Program by an applicant or an authorized representative.

Use of Form: To be completed by an applicant or authorized representative to begin the application process when using the automated Disaster Eligibility System. The form will notify the applicant or the household's authorized representative of various database screenings.

Number of Copies: One

Disposition of Form: The form must be retained in the case record with the signed Application for Disaster Supplemental Nutrition Assistance Program Benefits.

Instructions for Preparation of the Form: The applicant must complete the identifying information. If this form is completed by the applicant's authorized representative, the authorized representative must complete the identifying information for the applicant. In addition, the authorized representative must complete his/her own identifying information. The form must be signed by either the applicant or an authorized representative of the household.

INTERNAL ACTION AND VAULT EBT CARD AUTHORIZATION FOR DISASTER BENEFITS

DATE: _____

TO: _____ Vault Card Issuance Unit _____ EBT Administrative Terminal Personnel

FROM: BPS/Supervisor: _____ Telephone Number: _____

RE: Case Name: _____ Case Number: _____

Amount Authorized: \$ _____

Household Size: _____

- I. ☐ Authorization for a Vault EBT Card
Vault card reason: (1) ☐ Timely processing (2) ☐ Household emergency (3) ☐ Agency determination

Case Name Social Security Number _____ **Case Name Birth Date** _____

Address of household: _____

[] Release vault card to Authorized Representative _____

- II. ☐ Authorization for crediting the card replacement fee to the household's account

Reason: ☐ Household disaster ☐ Lost in the mail ☐ Household Violence
☐ Improperly manufactured ☐ Reapplication, no card ☐ Cardholder name changed

- III. ☐ Administrative error – Debit account for \$ _____.

- IV. ☐ Repay SNAP Claim of \$ _____ from ☐ EBT account

Issuance/Administrative Unit Use

- I. EBT Vault Card Number:

6	2	2	0	4	4										
---	---	---	---	---	---	--	--	--	--	--	--	--	--	--	--

Type of identification seen:

☐ Driver's License ☐ Rent/Utility Bill/Receipt ☐ School ID Card ☐ Work ID Card
☐ Library Card ☐ Social Security Card ☐ Other: _____

I acknowledge that I received my EBT card. I understand that I need to call the Automated Response Unit (ARU) to select a Personal Identification Number (PIN) to use my benefits.

Applicant or Authorized Representative Signature or Mark _____ Date _____

☐ Cardholder failed to pick up vault card ☐ Card destroyed on _____ ☐ Vault card not prepared

II. Replacement fee credited on _____

III. EBT account debited for \$ _____ for an administrative error on ____/____/____

IV. Repaid \$ _____ to SNAP Claim on ____/____/____.

Completed By: _____ Date _____
Issuance/Administrative Worker

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Internal Action and Vault EBT Card Authorization For Disaster Benefits

Form Number - 032-03-0664 (Note: This form will only be used if issuance must be performed manually. In all other instances, the internal action form will be generated through the Web-based disaster eligibility system.)

Purpose of Form – This form documents that the BPS authorizes the Issuance Worker to set up an EBT account and post benefits. It also documents that the household received its EBT card.

Use of Form - The BPS completes the top portion of the form to authorize the Issuance Unit to prepare and issue a vault card to a Disaster benefit household. The Issuance and Administrative Unit completes the bottom portion of the form to document that an account was set up and benefits were posted. The applicant or the applicant's authorized representative must sign the form to acknowledge receipt of the vault card.

The agency must also use the internal action form to document repayment of a claim with funds in an EBT account or to debit an account for an administrative error.

Number of Copies - One.

Disposition of Form - The form is retained in the disaster case file for a minimum of three years.

Instructions for Preparation of Form - The BPS or Supervisor must complete the identifying case and unit information. For approved disaster applications, the BPS must enter the amount of disaster benefits authorized, the household size, the Social Security number and date of birth of the case name, and the household's address.

The Eligibility Supervisor or designee must complete Section II to authorize crediting the card replacement fee back to the household's EBT account. The Eligibility Supervisor must also complete Section III to debit benefits from an account that were erroneously deposited because of an administrative error.

Generally, the Issuance Unit should prepare a vault card for the household on the same day the form is received. The Issuance Worker with either Update 1 or Update 2 role in EPPIC issues the vault card after the case had been transmitted to EPPIC. The Issuance Worker must record identity verification before releasing the vault card to the cardholder and secure the signature of the applicant or the applicant's authorized representative on the form.

The Issuance Unit must destroy the card after five business days if the card is not picked up by the applicant or the authorized representative. The Issuance Worker must note the date of the destruction of the card on the form.

The supervisor of the Issuance or Administrative Unit must complete the section to credit the card replacement fee back to the household's EBT account.

The Issuance or Administrative Worker or Supervisor must sign and date the form.

**NOTICE OF ACTION - DISASTER SUPPLEMENTAL
NUTRITION ASSISTANCE PROGRAM**

THIS IS TO INFORM YOU OF ACTION TAKEN ON YOUR APPLICATION FOR DISASTER
SNAP BENEFITS.

CASE NUMBER
DATE
COUNTY/CITY

[]

[]

ACTION ON APPLICATION DATED _____

- ☐ Approved for \$ _____ for Disaster Benefit Period _____ to _____
- ☐ Denied Reason _____
- ☐ Withdrawn Application withdrawn by household on _____

If you do not agree with the action we have taken or the amount of benefits you are receiving, you can have a fair hearing on your case. At the hearing you will have a chance to explain why you think we made a mistake, and a hearing officer will decide if you are right. To request a fair hearing, you may call me at the number below or write to the Virginia Department of Social Services, Attention: Manager, Appeals and Fair Hearings, 5600 Cox Road, Glen Allen, Virginia 23060. You may also request a fair hearing by calling toll free 1-800-552-3431. You must request your hearing within the next 90 days.

In addition to filing an appeal, you also have the right to a conference with your local social services agency, at which time the agency must give you an explanation of its action. You must also be given the opportunity to present any information on which your disagreement with the agency's action is based. At the conference, you have the right to have your story presented by an authorized representative, such as a friend, relative or lawyer. The local agency must provide a conference within three working days from the time of your request. If you would like to have a conference, please call me at the number below.

A fair hearing provides you the opportunity to review the way a local agency social services agency has handled your situation concerning your stated need for benefits. The fair hearing is a private, informal meeting at the local social services agency with you and anyone you wish to bring as a witness or to help you tell your story, such as a lawyer. A representative of the local agency will be present as well as a hearing officer. The person who conducts the hearing is someone from the State Department of Social Services, not someone from your local social services agency. The hearing officer makes a decision on your appeal.

You will be notified of the date and time for your hearing at the local social services agency or at a location agreeable to you and the agency. If you cannot be there on that day, call your eligibility worker immediately. If you need transportation, the local agency will provide it. You may bring a representative and/or witnesses to the hearing to help you tell your story. Your Benefit Programs Specialist, a local agency supervisor, and possibly other agency staff who know about your case may also be at the hearing to tell how the agency's decision was reached.

At the hearing, you and/or your representative will have the opportunity to:

- (1) Examine all documents and records which are used at the hearing;
- (2) Present your case or have it presented by a lawyer or by another authorized representative;
- (3) Bring witnesses;
- (4) Establish pertinent facts and advance arguments; and
- (5) Question or refute any testimony or evidence, including the opportunity to confront and cross- examine adverse witnesses.

The decision or recommendation of the hearing officer shall be based exclusively on evidence and other material introduced at the hearing, except when medical information is requested or other essential information is needed. In such an event, you and the local social services agency would be given the opportunity to question or refute this additional information.

You will be notified in writing of the hearing officer's decision on your appeal within 60 days of the date your appeal request is received by the State Department of Social Services.

It is YOUR RIGHT TO APPEAL decisions of the local social services agency; consequently, if you want more information or help with an appeal, you may contact the local social services agency. It will not cost you anything to request a fair hearing, and you will not be penalized for asking for a fair hearing. If you desire free legal advice, you may contact your local legal aid office.

Benefit Programs Specialist	Telephone Number	For Free Legal Advice Call 1-866-534-5243
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APPEALS AND FAIR HEARINGS

If you do not agree with the action we are proposing or the amount of benefits you are receiving, you may have a fair hearing on your case. At the hearing you will have a chance to explain why you think we made a mistake and a hearing officer will decide if you are right. A hearing gives you a chance to review the way a local social services agency handled your situation about your need for SNAP benefits. The hearing is a private, informal meeting at the local social services agency with you and anyone you want to bring as a witness or to help you tell your story, such as a lawyer. A representative of the local agency will be present as well as a hearing officer. The hearing officer is the official representative of the Virginia Department of Social Services.

It is YOUR RIGHT TO APPEAL decisions of the local social services agency. If you want more information or help with an appeal, you may contact the local social services agency. It will not cost you anything to request a fair hearing, and you will not be penalized for asking for a fair hearing. If you want free legal advice, you may contact your local legal aid office.

How to File an Appeal

- Send a written request to the Virginia Department of Social Services, Attention: Hearing and Legal Services Manager, 5600 Cox Road, Glen Allen, Virginia 23060.
- Call me at the number listed on the front.
- Call 1-800-552-3431

When to Appeal

- Within the next 90 days.

*Note that you may have to repay benefits you received during the appeal process if the hearing decision supports the agency action.

Hearing Process and Decision

The hearing officer will notify you of the date and time for your hearing at the local social services agency or at a location agreeable to you and the agency. If you cannot be there on that day, call the hearing officer and your Benefit Program Specialist immediately. If you need transportation, the local agency will provide it.

At the hearing, you and/or your representative will have the opportunity to:

- Examine all documents and records used at the hearing;
- Present your case or have it presented by a lawyer or by another authorized representative;
- Bring witnesses;
- Establish pertinent facts and advance agreements; and
- Question or refute any testimony or evidence, including the opportunity to confront and cross-examine witnesses.

The hearing officer will base the decision only on the evidence and other material introduced at the hearing, except when medical information is requested or other essential information is needed. In this event, you and the local social services agency would have the opportunity to question or refute this additional information.

NONDISCRIMINATION STATEMENT

In accordance with federal civil rights law and U.S. Department of Agriculture (USDA) civil rights regulations and policies, this institution is prohibited from discriminating on the basis of race, color, national origin, sex (including gender identity and sexual orientation), religious creed, disability, age, political beliefs, or reprisal or retaliation for prior civil rights activity.

Program information may be made available in languages other than English. Persons with disabilities who require alternative means of communication to obtain program information (e.g., Braille, large print, audiotope, American Sign Language), should contact the agency (state or local) where they applied for benefits. Individuals who are deaf, hard of hearing or have speech disabilities may contact USDA through the Federal Relay Service at (800) 877-8339.

To file a program discrimination complaint, a Complainant should complete a Form AD-3027, USDA Program Discrimination Complaint Form which can be obtained online at: <https://www.usda.gov/sites/default/files/documents/ad-3027.pdf>, from any USDA office, by calling (866) 632-9992, or by writing a letter addressed to USDA. The letter must contain the complainant's name, address, telephone number, and a written description of the alleged discriminatory action in sufficient detail to inform the Assistant Secretary for Civil Rights (ASCR) about the nature and date of an alleged civil rights violation. The completed AD-3027 form or letter must be submitted to:

1. **mail:** Food and Nutrition Service, USDA, 1320 Braddock Place, Room 334, Alexandria, VA 22314; or
2. **fax:** (833) 256-1665 or (202) 690-7442; or
3. **email:** FNCSIVILRIGHTSCOMPLAINTS@usda.gov

This institution is an equal opportunity provider.

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Notice Of Action –Disaster Supplemental Nutrition Assistance Program

Form Number – 032-03-0662

Purpose of Form - To notify an applicant of eligibility action taken on an application for disaster benefits.

Use of Form - To be prepared and provided immediately or within the appropriate time standard following action on an Application for Disaster Supplemental Nutrition Assistance Program Benefits.

Number of Copies - Two.

Disposition of Form - The original is to be provided to the household or authorized representative. One (1) copy is to be retained in the case file.

Instructions For Preparation of Form

Complete the identifying information at the top of the form.

Enter the date of the application.

Check the appropriate box to show the disposition of the application.

For approvals, indicate the allotment amount and the period the allotment is to cover (disaster benefit period).

For denials, indicate the reason the application was denied.

For withdrawals, enter the date the household requested the application be withdrawn.

Sign the form. Enter a telephone number for the worker and the telephone number of the local legal aid office.

VAULT EBT CARD ISSUANCE LOG

Agency/Location _____

Month _____ Year _____

	Date	Case Number	Cardholder Name	Reason for Vault Card (1, 2, 3)	Card Number (16 digits)	Issued By (Initials)
1.						
2.						
3.						
4.						
5.						
6.						
7.						
8.						
9.						
10.						
11.						
12.						
13.						
14.						
15.						
16.						
17.						
18.						
19.						
20.						

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Vault EBT Card Issuance Log

Form Number - 032-03-0391

Purpose of Form - This log provides a monthly listing of the over-the-counter vault cards the local agency issued for the Disaster Program. The log compiles information from the internal action forms and will support inventory control and requisitioning.

Use of Form - The Issuance Unit must prepare the issuance log upon receipt of the Internal Action and Vault EBT Card Authorization form from the Eligibility Unit and after the Issuance Worker links the vault card in the EBT System.

Number of Copies - One.

Disposition of Form - The Issuance Worker must retain the log for the current month with copies of the Internal Action and Vault EBT Card Authorization forms received in the month.

Instructions For Preparation of Form - The Issuance Worker must complete the log based on information from the internal action form. The Issuance Worker must also initial the log.

**DISASTER SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM
ELECTRONIC BENEFIT TRANSFER (EBT) CARD PIN SELECTION**

You must select a Personal Identification Number (PIN) before you will be able to buy groceries using your *Virginia EBT card*. Complete the following steps to select your PIN.

STEP 1 – Call 1-866-281-2448. This is a toll-free number.

Press or say 1 for English, 2 for Spanish.

STEP 2 – Enter your 16-digit card number. You may have to re-enter the number if you make a mistake or if you do not enter the entire number.

You will hear: “To select or change your PIN, you will need some personal information of the person whose name is on the case.”

STEP 3 – Enter the last 4 digits of the Social Security Number of the person whose name is on the case, followed by the pound sign. The system will ask if this is correct, press 1. If not, press 2. If you do not have a social security number, you will be asked to enter your 7-digit case number.

STEP 4 – Enter the two digits for the month of birth for the person whose name is on the case. For example, if the person’s birthday is May, enter 05. Then enter the two digits for the day of birth. If the person’s was born on the 8th, enter 08. Then enter the 4 digits for the year of birth. The system will ask you if this is correct, press 1. If not, press 2.

STEP 5 – Enter your new 4-digit PIN, followed by the pound sign.

STEP 6 – To verify your entry, please re-enter your new 4-digit PIN, followed by the pound sign.

When you successfully complete the steps, you will hear this message: “You successfully selected your PIN. Your card is ready to use. Please do not write your PIN on your card.”



Disaster Supplemental Nutrition Assistance Program

Administrator's Planning Guide

Introduction

The United States Department of Agriculture (USDA) can authorize the implementation of a short-term Disaster Supplemental Nutrition Assistance Program (D-SNAP) when there is a major disaster. The purpose of the D-SNAP is to provide emergency food assistance to disaster victims as effectively and efficiently as possible. As a result, the D-SNAP is much more streamlined than the regular Supplemental Nutrition Assistance Program (SNAP). Eligibility criteria are much less stringent, and generally most items of information do not need to be verified. In order to implement a D-SNAP in the throes of an emergency, advance planning is crucial.

The Commonwealth of Virginia has submitted a plan to USDA to outline how the D-SNAP will operate in Virginia. The issuance of cards will be handled through the existing EBT system. This Administrator's Planning Guide provides guidance for planning for the implementation of a D-SNAP on the local level.

Briefly, the D-SNAP includes a determination of eligibility and an issuance of benefits. There must be a separation of duties between the eligibility and issuance tasks.

The eligibility portion is accomplished by:

- Completing the application on-line with a web-based disaster application. The application must be printed and signed by the applicant and interviewer. The web-based application screens for matches with VaCMS, the Virginia Department of Social Service Employee Database, APECS, and with the Disaster Database itself. The web-based application calculates the disaster benefit and produces the Internal Action Form for the eligibility staff to authorize the issuance of a vault card.
- If logistics are such that paper applications are used, the paper application is taken, signed by the applicant and interviewer, then data-entered into the web-based system for matching and benefit calculation.
- Either process must ensure that all applicants are interviewed, and applications are signed and dated by the applicant and the interviewer.

The issuance portion is accomplished by:

- Automatic establishment of an EBT account and posting of benefits;
- Issuance of vault cards as no initial EBT cards will be mailed; or

The Planning Process

Members of the community who will be partners in implementing the D-SNAP should be identified and included in the planning process. This group should include social service providers, providers of emergency food assistance, police departments and members of county and municipal governments who may be able to provide additional staff or other resources to assist you in administering the D-SNAP.

It is further recommended that local agencies coordinate within the region to set the same parameters for the D-SNAP. This effort will result in less confusion for the public and will allow for the use of one media spokesperson for the region. VDSS will convene regional meetings or conference calls after a disaster to facilitate this process.

Planning should cover the activities that are outlined in this Planning Guide. Suggestions or edits related to this or other guidance should be submitted to the Division of Benefit Programs.

Decision to Implement a D-SNAP

The decision to implement a D-SNAP should be made by key decision makers in a jurisdiction. The D-SNAP should be implemented only in those cases where it is not practical to operate the regular program. Factors that may lead one to decide that a D-SNAP is the appropriate option include:

- A large population of prospective applicants – If damage from the disaster is severe or widespread, affecting many households not already participating in the program, then this volume of applicants may not be able to be served through the existing application and eligibility determination process. Damage could include damage to individual residences, or loss of income due to closing of employment locations.
- The disaster is such that many households would not have the verifications required by the regular program, (e.g., houses were leveled in a tornado.)
- The affected population needs benefits more quickly than would be provided under the regular program, and they have used available income and resources that could have been used for food on disaster related expenses.
- Availability of grocery stores – USDA will only approve the operation of a disaster program if food retailers are open for business in the community. Additionally, the point of sale (POS) devices that enable an EBT/credit/debit card transaction must be operational.

In making the decision to operate the program, there should be designations for:

- The contact person and back up contact for the D-SNAP.
- A contact list including home and cell phone numbers of the key decision-makers including the Department Director, Board members, and other county officials.
- Assignment of personnel to gather information and prepare the application to VDSS.
- Identification of the information sources necessary to prepare an application.
- Identification of the need for additional employees to have EPPIC Update 1 authorization to issue vault cards.

When the community decides to operate a D-SNAP, the application form (Appendix III) should be completed and submitted to the Home Office via e-mail.

Operating the D-SNAP

Notifications

Operating the D-SNAP requires certain notifications including:

- How staff and other agencies involved will be notified
 - Develop a call tree with essential names and telephone numbers.
 - Develop an email distribution list of key contacts.
- How the public will be notified
 - Identify key information hubs including local newspapers, radio stations, television stations, government offices, and government web sites.
 - Identify a single spokesperson for the locality and consider designating one spokesperson for a group of localities.
 - Include social service agencies and other disaster relief agencies.
 - Consider developing posters in advance. Specifics of dates and hours of operation can be completed manually when needed.
 - Have a strategy for keeping the public informed throughout the disaster period.

Locations

In determining locations for the application sites, consideration should be given to these factors:

- Staff and applicant security, including during extended hours of operation.
- Availability of public transportation and parking.
- Accessibility to delivery vehicles for commodity distribution.
- Adequate space and facilities for human comfort concerns, such as:
 - Arrange to protect people from the elements;
 - Place water and food stations near areas of long waits;
 - Arrange for bathroom facilities and supplies;
 - Provide ample waiting areas.
- Adequate space to accommodate the anticipated number of applicants.
- Security of the facility for EBT cards and issuance activities.
- Accessibility to the elderly and disabled.
- Adequacy and accessibility of power sources and supplies.
- Availability of Internet access.
- Consideration of other county or city facilities.
- Consideration of social service agency offices.
- Consideration of use of trailers or tents for waiting areas.
- Consideration of entering into agreements with adjoining LDSS to handle each other's applicants.

Staffing

The local agency will want to decide:

- Staffing needs for implementation of the program.
- Sources of additional staff.
 - Consider training agency staff not ordinarily involved in the regular program to be prepared to take applications for the D-SNAP.
 - Arrange with other county or municipal departments to lend staff to assist.
 - Arrange with community agencies to lend staff.
 - Consider using volunteers (cannot be used for interviewing or determining benefits)
 - Maintain a list of the names of staff that are willing to help in other jurisdictions if their own is not affected by the disaster, and submit to the Division of Benefit Programs, which will then act as a clearinghouse for matching staff with locations of need.
- How training will be provided for staff not trained by state staff.
- What resources other agencies can provide.
- How the need for additional certification sites will be assessed, and what sites are available.

Equipping the Site

The local administrator should consider:

- How the need for equipment (including computers and a printer for each computer) and supplies will be determined.
- How needed equipment and supplies will be acquired and distributed (source, actual acquisition).
- Ensuring that supplies of applications, forms and vault cards are available.
- Making arrangements in advance of the disaster for the loan of equipment from other agencies or Home Office.

Crowd Management

In operating the D-SNAP, crowd management will be an important factor. These factors can assist with crowd control:

- Determine client flow.
- Estimate wait time from certain points and post signs to inform crowd.
- Consider separate lines for elderly or disabled applicants.
- Consider staggering applications by asking people to apply by birth date, Social Security Number, alphabetically, or some other method.
- Consider giving people in line information sheets indicating what items of information they need to apply so if they are not prepared they can get the information.
- Consider giving numbers or colored chips to bring back the next day to people who are in line when lines are cut off so they can be seen the next day without standing in line again.
- Arrange for equipment such as ropes, barriers and bullhorns as well as other staff to establish lines, block access to secure areas, and direct traffic flow.

Administrative Considerations

The local agency will be faced with other considerations. These include:

- How the need for extension of the D-SNAP will be assessed and request made, if warranted.
- How information necessary for daily reports will be gathered.
- How and by whom reports will be submitted.
- How program operation will be assessed.
- How adjustments to program operations will be made.
- How to handle employee applications; it is recommended that specific supervisory personnel be designated to take and process employee applications.

Reimbursement of Expenses

The local agency should keep detailed records of expenses that may be submitted for reimbursement. During the most recent disaster, the criteria for reimbursement were:

- The expenditure must be the result of the declared disaster.
- The expenditure must be a cost incurred for an activity for which the agency is directly responsible.
- The expenditure must have been incurred within the locality's jurisdiction.
- The expenditure must be a cost incurred in excess of what the insurance covers.

Applicable disaster-related expenditures include overtime costs, food for staff, staff travel to additional work sites, staff lodging and any special equipment purchases. All reported expenditures must include all backup documentation. Documentation may include, but is not limited to receipts, timesheets, copies of purchase orders and warrant registers.

Sample Cover Letter to Operate the D-SNAP

Local Agency Address

Date

Director's name
Director of Benefit Programs
5600 Cox Road
Glen Allen, VA 23060

Dear

The President has declared a disaster in Virginia. Based on this, we in _____ county request authorization to operate the Disaster Supplemental Nutrition Assistance Program (D-SNAP). Considering that our entire county (or a significant area --whichever fits the situation better) has been affected by this disaster, we want to operate the full D-SNAP and not a modified plan. The population is also too large to operate the regular program.

We have attached the Application for Disaster Supplemental Nutrition Assistance Program. We have ensured that the issuance and certification staff is separate and that the same person does not determine eligibility and then issue benefits.

According to our plan, we will be able to operate the D-SNAP successfully and provide benefits within three days.

Please advise as soon as possible if we have been approved to operate the D-SNAP.

Sincerely,

Director or designee

City/County of
DEPARTMENT OF HUMAN SERVICES

APPLICATION FOR
DISASTER SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM
(Date)

1. Type of Disaster and Date of On-set: *EX: Hurricane, September 18, 2003. Include a statement that a Presidential declaration has been granted.*
2. Description of the geographical area: *EX: The entire county was affected by the hurricane. EX: Only the southern part of the county was affected by the flood, primarily residences in zip code 22407.*
3. Status of Food Distribution: *(USDA requires commercial trade networks to be operational again before approving a disaster SNAP program or an estimate given when they will be restored.) EX: Retail food outlets were closed for two days and all major grocery stores are now in operation. Point-of-sale (POS) devices are operational.*
4. Needs Assessment Part A: *(Statement explaining why the food needs cannot be met by the regular program and that the volume of affected households cannot be adequately served). EX: There are many citizens who have been unable to work due to the business closures from flooding. In addition, there was widespread property damage along the tributaries of the river where flash floods wiped out the community around the courthouse.*
5. Needs Assessment Part B: *(Provide separate estimates of the number of ongoing and new households involved in the disaster. Depending on the nature of the disaster, there may be other options available for consideration in the plan, such as automatic replacements for ongoing households.) EX: Our current participation is xxx number of households. We anticipate XXX new households needing disaster services.*
6. Needs Assessment Part C: *If disaster resulted in loss of food only, the plan must include:*
 - a. *Statement of outage duration*
 - b. *Geographical limits*
 - c. *Percentage of customers affected*
 - d. *Indication of whether food loss alone allows household eligibility*
7. Description of Residency Requirement *(Does the applicant need to reside in the locality? Is a household working but not living in the affected area eligible?)*
8. Application Processing Estimate: *(Indicate the time frame for taking applications for the D-SNAP, including the beginning date normally not to exceed 7 days.) EX: If approval is received by October 9, we will initiate operations on October 10 and take*

TRANSMITTAL #35

applications for five calendar days. Benefits will be issued no later than three days following the date of application.

9. Length of Duration of the Program: *(Indicate the disaster period requested, by indicating the start and end date, usually a full month. Depending on the nature of the disaster, USDA may advise the state of the parameters.) EX: A full month's benefit period is requested because of the severity of the flooding and the fact that affected households lost all food in addition to lost income and disaster-related expenses.*
10. Disaster Relief Agencies: *(Indicate which other agencies will participate in taking and processing applications or issuing benefits and specify the functions they will perform.) Other agencies could include the Red Cross or Salvation Army. EX: We do not anticipate using a Disaster Relief Agency to certify or issue benefits.*
11. Public Information: *(Identify the newspapers, radio stations, television stations, and key media outlets or government web sites the local agency will use.) EX: We will contact the Independent News Courier and WPDK radio to disseminate information about the program, the criteria, and hours of operation. We will post the information on the City's web page, and direct community partners to the city and state web sites.*
12. Procedures for Processing and Accepting Applications: *Explain where applications will be taken, including crowd management at sites and fraud prevention measures.) EX: Applications will be taken for 7 days, October 7 through October 13, from 9 a.m. to 7 p.m. at the City Human Resources Center. Designated senior management will take and process any employee applications. All applications will be screened for duplicate participation. The Sheriff's Department is on call to assist with security of the facility. The plan needs to address:*
 - a. *Description of any activities to help applicants understand how to complete the application (language issues)*
 - b. *Screening activities*
 - c. *Any volunteers used*
 - d. *Description of alternate locations*
 - e. *Procedures to reduce applicant hardship (i.e. water, bathrooms, etc.)*
 - f. *Accessibility for the elderly or disabled*
13. Procedures for Processing Benefits: *(Explain benefit issuance procedures.) EX: Applicants will be screened to prevent duplicate participation. Benefits to eligible households will be issued on a vault card by staff authorized to set up accounts in the EBT system and post benefits. Will the client be given a card the day of the application or will they be required to pick up the card another day? Specify different procedures for:*
 - a. *Ongoing households*
 - b. *New applicants*
 - c. *Special needs population (elderly, disabled, etc)*
 - d. *Estimate how long it will take to process applications*
 - e. *Describe any alternate sites that will be used*
 - f. *Crowd control measures*

14. Number of benefit program specialists: *(Number of eligibility workers available to process D-SNAP applications)*
15. Any additional information that you believe may be helpful in processing your application. *(Provide detailed, specific information on conditions in your county/city, such as duration of power outages, shut down of key employers, lack of other resources to meet needs, how you will contact employees.)*
16. Fraud Prevention Procedures: *This would include a description of:*
- a. Application/issuance site controls*
 - b. Use of onsite fraud investigators*
 - c. Specific plans to handle employee applications.*
 - d. Separation of duties*
 - e. Signs will be posted to notify of fraud prevention and audit)*
17. Name, Title, and Telephone number of Requesting Official:
18. Date of Request:

Electronic Benefits Transfer (EBT) Disaster Issuance Process

Eligibility for the Disaster Supplemental Nutrition Assistance Program (D-SNAP) process is outside of VaCMS. Benefits approved in the D-SNAP system are merged with the regular benefit approvals and changes in VaCMS and forwarded to the EBT vendor. Batch cutoff times are 9:00 a.m., 11:00 a.m., 1:00 p.m., 3:00 p.m., 5:00 p.m., and 8:00 p.m. After each cutoff, the benefit file is transmitted at 10 minutes past the hour and the demographic file follows at 20 minutes past the hour.

The process described in this Appendix outlines how to attach an EBT vault card to a D-SNAP case and how to issue the EBT vault card to the Case Name or the household's authorized representative. Workers with an Update function profile in EPPIC will issue vault cards. There will be no initial mailing of cards in the operation of the D-SNAP.

If additional workers need the capacity to issue vault cards to meet the emergency need, the local security officer may add or change duties as necessary. Please note the separation of duties between eligibility staff and issuance staff must be maintained, i.e., workers responsible for determining eligibility for or approving case actions in the D-SNAP system must also not have the role of issuing cards.

General EBT Card Issuance Instructions:

- Step 1 Receive the case file, *Request for D-SNAP Assistance*, application, *Internal Action and Vault EBT Card Authorization for Disaster Supplemental Nutrition Assistance Program Benefits* and notice of action from the BPS. The application and internal action form must be provided because information from these forms will be needed to issue an EBT vault card. Cards may be issued to the primary cardholder in advance of the case appearing in the issuance system through manual account setup. Clients must be advised of the time their cards will be available for PIN selection and when benefits will be accessible. Cards issued to authorized representatives can not be issued through manual account setup. Issuance staff must wait for these cases to appear in the issuance system prior to issuing.
- Step 2 Access the case in the EBT system, by performing a case number or case name search.
- Step 3 Take a vault card from the supply. Write the vault card number on the internal action form. Initial and date the internal action form next to the card number.
- Step 4 Complete the *Vault EBT Card Issuance Log*.
- Step 5 Access the Recipient Card Issue screen in the EBT system, choose vault card as the method of issuance, and enter the vault card number associated with that case in the card number field.
- Step 6 Obtain the case name or authorized representative's signature on the Internal Action Form when the card is given to the person.
- Step 7 Ensure that the cardholder has the Q&A brochure which explains PIN selection and care of the EBT card.

LOGIN PROCESS

The following information is needed to log on to the EBT system EPPIC:

EPPIC Functionality

■ Logon Screen

Virginia EBT
ELECTRONIC BENEFITS TRANSFER

USER ID

PASSWORD

LOGIN

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USER ID - User Id is the assigned logon ID (lower case only)

PASSWORD - Initial password will be communicated to the worker by the local security office. The worker will be prompted to change the password to a strong password at the first login.

- **STRONG PASSWORD GUIDELINES**
Passwords must be eight to ten characters long.
They must have at least one upper- and lower-case letters and must be alphanumeric.
Passwords are case sensitive.
Punctuation symbols are not allowed (e.g., ?, %, @)
Passwords must be changed every 30 days.

1. Enter the User ID in the User ID field.
2. Enter the Password in the Password field.
3. Click Login or hit Enter.

The EPPIC Main Menu displays.

EPPIC Functionality

■ Main menu

The screenshot shows the EPPIC main menu. At the top is the EPPIC logo. Below it is a 'User Info' box containing the following text: 'Name: Team 01', 'Login: 07/25/2007 13:10:02', and 'Act.: 07/25/2007 13:10:02'. Below the user info is a vertical list of buttons: 'Recipient Account', 'Financial Accounting', 'Reconciliation', 'Reports', 'Voucher Management', 'User Management', 'Retailer Management', 'Password Change', and 'Log out'.

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The Update Worker must click “Recipient Account” and then “Account Maintenance” to issue a vault card. The Recipient Search Screen will appear.

EPPIC Functionality

■ Search screen

The screenshot shows the 'Recipient Search' screen. It has a title bar that says 'Recipient Search'. Below the title bar is a section titled 'Select search method' with four radio button options: 'Case Number' (which is selected), 'Last and First Name', 'SSN', and 'Card Number'. Below these options is a text input field containing the value '0059265'. Below the input field is the label 'Case Number'. At the bottom of the form are two buttons: 'SEARCH' and 'RESET'.

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Recipient Search

Select the search method. The Internal Action Form should have the client’s D-SNAP case number and name on it. Enter the desired search method and click “search.” The Recipient Search Results screen will display.

If the applicant’s name is not found in EPPIC, the Update Worker should go through the Manual Account Setup feature to issue a vault card.

EPPIC Functionality

■ Search Results Screen

Recipient Search Results

Recipient Search Results

Recipients Found

Type	Case Nbr	Name ▲	SSN	Address	City	ST	
PRIMARY	0059265	CONFUSED, CANT B	*****3185	1 S ADAMS DR	RICHMOND	VA	CASES
AUTH REP	0059265	YOU, HASSELL	*****3185	59 S 18TH ST	RICHMOND	VA	CASES

[SEARCH](#)

Find the person to whom the vault card will be issued. Click on “Cases” for the “Recipient Case Management Screen.”

EPPIC Functionality

■ Case Management Screen

EPPIC™ Recipient Case Management

Recipient Info

CANT B
CONFUSED
05/08/1987
*****3185
1 S ADAMS DR
RICHMOND
VA 23225-0000

Case Number
0059265

[Recipient Account](#)
[Financial Accounting](#)
[Reconciliation](#)
[Reports](#)
[Voucher Management](#)
[User Management](#)
[Retailer Management](#)
[Password Change](#)
[Log out](#)

Case Profile

Case Nbr	Status	Issue Date	Last Access	Balance	Available Balance	
0059265	OPEN	07/20/2007	07/20/2007	\$128.70	\$43.70	DETAILS

Total Balance

Food Stamp Balance	\$128.70	Food Stamp Available	\$43.70
--------------------	----------	----------------------	---------

Cardholders

Type	Name	Card Nbr	Access Status		
PRIMARY	CONFUSED, CANT	6220441006951112	Active	DETAILS	CARD
AUTH REP	YOU, HASSELL	622044200610955	Active	DETAILS	CARD

[SEARCH](#) [RECIPIENT](#) [CASES](#) [CARDS](#) [TRANSACTION](#)

Within the Cardholders tab, click “Card”. When Account Management Card Issuance appears, select VAULT.

Enter the vault card number of the card to attach to this EBT account. Click “Issue.” A gray dialog box appears to say the card has been issued. Click OK.

The vault card has been issued. The client will need to call the ARU to select a PIN, and then the card can be used.

The same steps are used to issue the card to an authorized representative. The Update Worker must locate the representative in EPPIC before the card can be attached.

CARD DESTRUCTION

If a vault card is prepared in advance of the client or representative being present, and is not picked up after five business days, the card must be destroyed. The Issuance Worker must note the date of destruction on the internal action form in the appropriate disaster case file. The Issuance Worker must record the destruction on the *Undelivered EBT Cards – Destruction Record*.

ADDITIONAL BENEFITS ADDED TO DISASTER EBT ACCOUNTS

In some instances, there may be more than one D-SNAP benefit added to an account. This may occur when the BPS is aware that a mistake was made in the calculation of benefits or when the household reports a change. The additional benefit must be authorized in the D-SNAP system and will be transmitted by batch to the EBT account.

REPAYMENTS

Repayments on D-SNAP cases are handled the same way repayments on regular accounts are handled.

TROUBLESHOOTING

Unresolved error messages must be referred to the Help Desk at 1-800-223-8846.

SAMPLE FLYER

DISASTER SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM FOR VICTIMS OF HURRICANE _____

The City of _____ is authorized to implement the Disaster SUPPLEMENTAL NUTRITION ASSISTANCE Program to assist the victims of Hurricane _____. Hurricane victims may be eligible for a one-time only benefit issuance. You must have incurred disaster related expenses to be eligible.

Where to Apply: Hurricane victims may apply for Disaster Food Assistance at:

The office will take applications Monday - Friday from ____ am to ____ pm.

Who May Apply: A responsible adult household member may apply for the family.

Time Limits: Applications may be submitted from _____ through _____.

Who's Eligible: The household must have lived in the City of _____ during Hurricane _____. The household must also have suffered a loss of income or damage to home property or self-employment business.

To determine the household's income, the net income (take-home pay) from wages or self-employment, assistance payments and other unearned income, such as Social Security or child support, that a household receives will be added to cash on hand and other accessible funds (such as money in checking and savings accounts). Compare your income and household size to the following income limits:

Number in Household	1	2	3	4	5	6	7	8
Income Limit	\$3,156	\$4,107	\$4,720	\$5,561	\$6,130	\$6,848	\$7,369	\$7,892

Note: For households of 9 or more, add+\$523
\$393 for each additional household member to the limit.

Benefit Levels: Eligible households will receive a one-time, ne-month allotment of food assistance benefits.

Verification Needed: Individuals applying for disaster food assistance need to bring documents to prove their identity and residence in the City of _____.

Sample Wording for a News Release

USDA TO ISSUE EMERGENCY FOOD ASSISTANCE IN _____ COUNTY.

RICHMOND – The U.S. Department of Agriculture has approved the issuance of Disaster Supplemental Nutrition Assistance benefits for hurricane victims in _____ County.

County residents can begin applying for disaster food assistance on _____ at the _____ County Department of Social Services, _____, _____. The site will be open _____ from ____ am until ____ pm. County residents who are not usually eligible for benefits may qualify temporarily if their home property or self-employment business was damaged or destroyed or if they have lost income as a result of the hurricane. Eligibility is based on available income and resources. For a family of four with an income of _____ or less, the SNAP benefit amount would be \$_____.

Those applying for help need to bring identification, which could be a driver's license, school or work ID, birth certificate or other identification. Also, proof of residency, such as utility bills or tax statements, should be brought.

County residents who are already receiving benefits will need to call the _____ Department of Social Services at _____.

State and Federal officials are committed to providing benefits to all eligible households. Fraud staff may be on-site to make sure only eligible households receive disaster benefits.

ATTENTION APPLICANTS

BE SURE TO TELL THE TRUTH WHEN YOU APPLY FOR BENEFITS!

- People who give false or misleading information or withhold information to receive benefits may be prosecuted or referred for an Administrative Disqualification Hearing.
- People who break the Supplemental Nutrition Assistance Program rules may be disqualified from the program, fined and/or imprisoned.
- People who get benefits they are not entitled to may be required to pay them back.
- We will check to see if you have received disaster benefits more than once. The information you give, including Social Security Numbers, may be matched against Federal, State and local records to determine if the information you provide is accurate.

**DO NOT SELL, TRADE, OR GIVE AWAY YOUR
Virginia EBT Card!**

VDSS Information Security Policy and Procedures Disaster Food Stamp System Access

This document describes the procedures users must follow to gain access to the Disaster Supplemental Nutrition Assistance Program (D-SNAP) System when a disaster is declared within the State of Virginia and a locality opts to implement the Disaster Supplemental Nutrition Assistance Program. The Director of the Division of Benefit Programs, the Supplemental Nutrition Assistance Program Manager or the Manager of the Business Operations Unit must notify the Director of the Division of Information Systems that a disaster has been declared in the State of Virginia and there is likely interest in the Disaster Supplemental Nutrition Assistance Program. Upon notification from the Director of Information Systems, the Information Systems Security Unit will implement the procedures outlined in this Appendix.

Information Systems Security Unit Responsibilities

1. Once a disaster has been declared, the Information Systems Security Unit will ensure the following areas within DIS have been notified at the direction of the Director.
 - # Network Firewall for D-SNAP access implemented by On-Call Network Security Engineer
 - # Remote Dial-up/VPN implemented by VITA/DSS Telecommunications Group
 - # URL for application implemented by Information Systems DBA Group
 - # LDAP User Administration support implemented by Web Development Staff in Public Affairs
 - # Customer Care Center Supervisor notified
2. The Information Systems Security Unit will maintain a form entitled "VDSS Disaster System Access Request Form" on the Technology Business Support Services (TBSS) website that each locality will use to gain access to the system. The URL for the TBSS website is: http://www.localagency.dss.virginia.gov.us/tech_supp/index.cgi
3. The Information Systems Security Unit will e-mail an additional form to each local department Director and Agency Security Officer when there is a disaster to request remote access or an additional EBT Issuance Profile (Profile 6), if these functions are needed. The Information Systems Security Unit will process these requests with the additional approval from the EBT Group. This additional approval will help ensure a separation of duties from normal eligibility processes when possible. These documents should be faxed to the Information Systems Security Unit at (804) 726-7891 once they have been fully completed and appropriately signed. These requests will be processed upon receipt from local departments.
4. As each form is processed, the Information Systems Security Unit will notify the User and the Agency Security Officer by e-mail everyone's User Id and password. The Information Systems Security Unit will provide each user requiring remote access instructions for downloading and installing the VPN software and the disaster.pcf file.

Local Agency Responsibilities

- 1) The Agency Director/Designee must determine the need for D-SNAP System access, remote access, or additional issuance profiles.
- 2) Each user who will require access to the Disaster eligibility system must complete the *VDSS Disaster System Access Request Form* located on the TBSS website. The document must be completed fully and signed and dated by the User, Supervisor, and Director/Designee.
- 3) The local Security Officer must use the LDAP User Administration tool to turn on the Disaster Food Stamp Access for everyone for whom a signed access form was received. Three (3) additional locality FIPS may be turned on if directed by the Agency Director. Additional FIPS designations may be requested on the Disaster Supplemental Nutrition Assistance Program Access form at the time of implementation or in the form of an email later from the local agency Director and may be used to assist other localities in a disaster. If a local worker is designated to assist another locality, then it will be the sole responsibility of the local worker's Director to direct the worker's Security Officer to turn on an additional FIPS. The local Security Officer must retain the completed request form and all related e-mails at the local level for five years.

Disaster Closure

Upon the completion of the disaster, all disaster system accesses will be deactivated and returned to their original state in the preparation for future disasters. These accesses include:

# removal of the network access to the system	#D-SNAP LDAP User Administration availability
#deactivation of remote access	#removal of the URL to the application
#suspension of EBT issuance profiles	#passwords reset

VDSS Security is responsible for removing all disaster FIPS from appropriate tables. All logs, documents, and files pertaining to this disaster must be maintained for a minimum of five years.

Helpful Information

The disaster eligibility system is accessible at <https://dssiad2.dss.virginia.gov/D-SNAP>

Questions or issues with the User ID or passwords should be directed to the Information Systems Security Unit at security@dss.virginia.gov. All other issues or concerns while using the disaster eligibility system should be directed to the Division of Information Systems Customer Care Center at 1-800-223-8846.

COMMONWEALTH OF VIRGINIA
VDSS DISASTER SYSTEM ACCESS REQUEST FORM
DISASTER SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM

The following information will be used to grant access to the Disaster System. **This document must be retained at the locality for a period of five years.**

Note: This access will be removed after the disaster period ends.

Existing VA EBT User ID						Existing User Profile #			
User's Full Name:									
Position/Title:					Phone # with area code				
Agency/Division				FIPS:			Additional FIPS required:		
Acknowledgment:									
Inappropriate access to or use of Disaster Food Stamp System and or computer application/systems is a violation of the Department's Security Policy and may result in the Department initiating administrative and/or criminal action against the responsible party. By signing I acknowledge that the password and other access devices are my responsibility to safeguard.									
User Signature						Date:			
Approval:									
Supervisor's Signature						Date:			
Director/Designee's Signature						Date:			
(Agency Security Officer Use Only)									
Additional FIPS									
Agency Security Officer Signature / Date:									
Form retained by Agency Security Officer for a period of 5 years									
Created 08/08/05									

COMMONWEALTH OF VIRGINIA
VDSS DISASTER PROFILE/REMOTE ACCESS REQUEST FORM
DISASTER SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM

The following information will be used to grant remote access or an additional EBT Issuance Profile for the Disaster System. **You must fax the completed form to the Security Unit at Home Office: Fax # 804-726-7891. Incomplete forms will be returned.**
Note: This access will be removed after the disaster period ends.

Existing VA EBT User ID		Existing User Profile #	
User's Full Name:			
Position/Title:		Phone # with area code	
Agency/Division		FIPS:	
Access Authorization:			
Does this user require remote access to the VDSS Disaster System?		Yes ☐	NO ☐
Does this user require EBT Issuance Profile 06 to the VDSS Disaster System?		Yes ☐	NO ☐
Acknowledgment:			
Inappropriate access to or use of Disaster System and or computer application/systems is a violation of the Department's Security Policy and may result in the Department initiating administrative and/or criminal action against the responsible party. By signing I acknowledge that the password and other access devices are my responsibility to safeguard.			
User Signature		Date:	
Approval:			
Supervisor's Signature		Date:	
Director/Designee's Signature		Date:	
(Information Security Unit Use Only)			
EBT Disaster Profile assigned:			
Initial Password:			
Remote Access User ID:			
Initial Password:			
EBT Unit Signature / Date:			
Info Security Signature / Date:			
If you have questions regarding your User ID, contact the Information Security Unit at security@dss.virginia.gov			
Form retained by Information Security Unit for 5 years		Created 08/08/05	rev: 10/01/09

REMOTE ACCESS/VPN DOWNLOAD INSTRUCTIONS

Your Remote account is xxxxxx. Your password is: xxxxxx.

The remote access account is accessible through Dial-up via modem or Virtual Private Network (VPN) connection via high speed connection via cable modem.

DIAL-UP VIA MODEM

To use dial-up access, the PC must be equipped with an internal or external modem.

Dial-up phone numbers:

Local 804-786-0578**

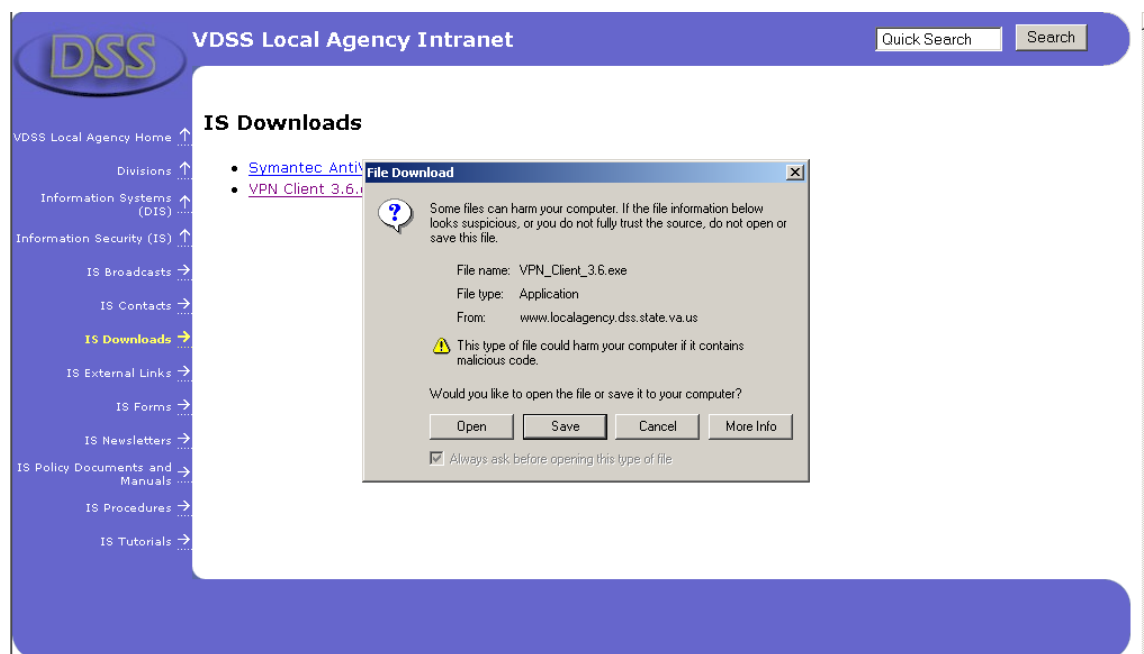
Toll Free 877-216-0122

**Please use the local dial-up phone number in the local calling area.

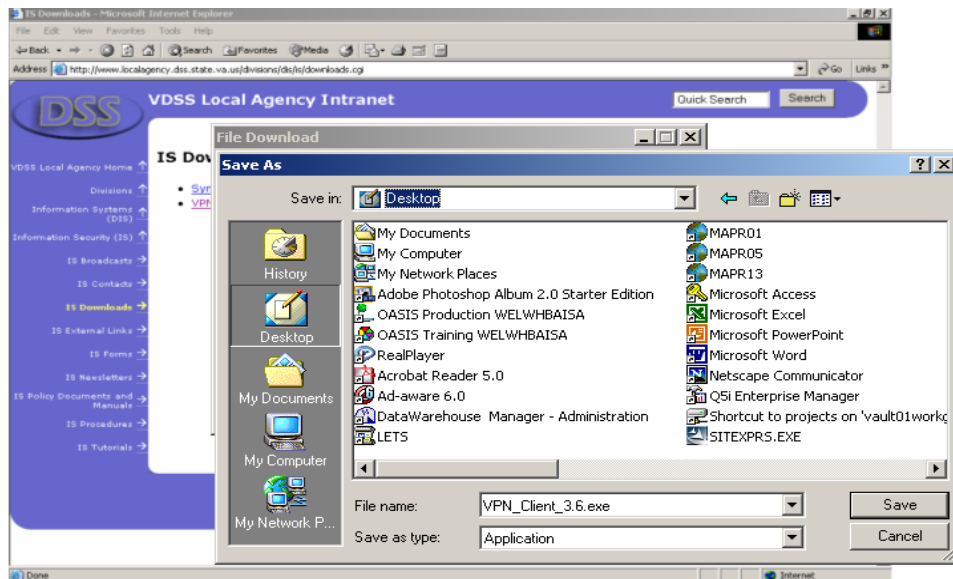
VPN SOFTWARE INSTALLATION

The VPN software is downloadable from the DSS network. The address is <http://www.localagency.dss.virginia.gov/divisions/dis/is/downloads.cgi>.

Access to the network is available at <https://webmail.dss.virginia.gov/vpnclients/>. Once the download is complete, place the attached disaster.pcf file in the Profiles folder of the VPN software.



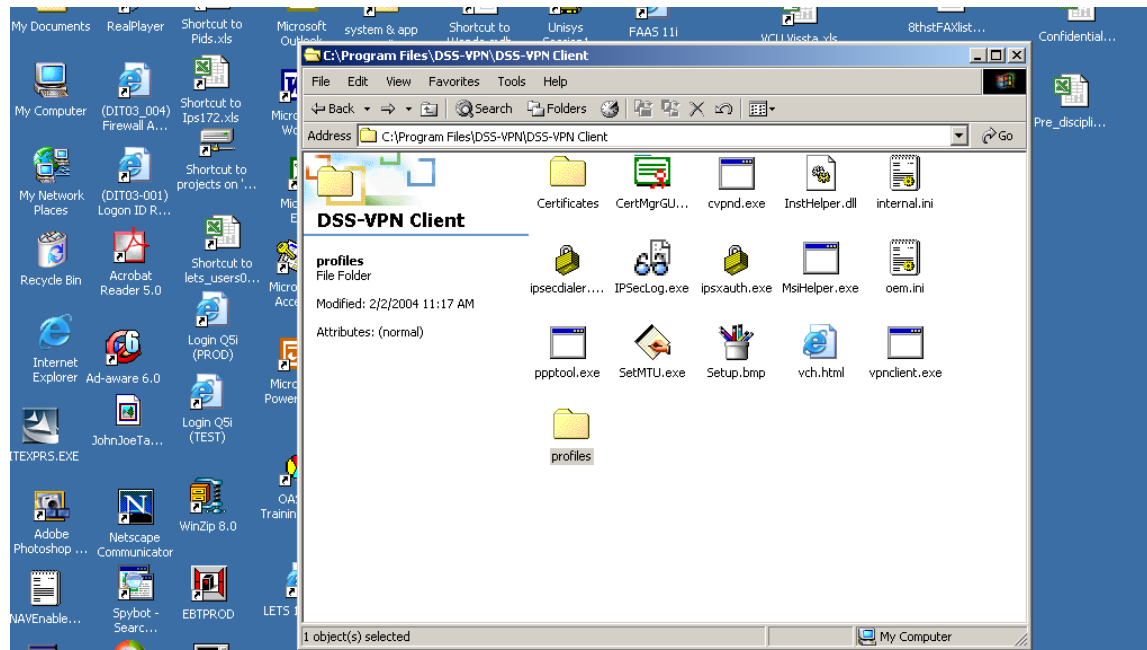
Click on Save to my Computer



1. Click Save, Save in: Desktop, when download completes
2. Go to your Desktop. Double click on VPN_Client 3.6.exe
3. Follow the onscreen instructions to complete installation.

Double click My Computer
 Open: C: Local Disk
 Open: Program Files
 Open: DSS-VPN
 Click on: DSS-VPN Client

Drop the attached disaster.pcf file into the Profiles folder.



If the yellow Profiles folder is not visible, access files in the following order:

My Computer

C:

Program Files

Show Files

DSS-VPN

DSS-VPN Client (This is where the Yellow "Profiles" folder should be. If it is not there, create it using the steps below.)

Click on File

Click on New

Folder

Type the name of the new folder Profiles and copy and drop the disaster.pcf file in that folder.

D-SNAP DAILY REPORT

Note: If additional counties are added, the formulas in Location & Program Totals will need to be adjusted.

[illegible]

FNS-292B

Final disaster figures must be submitted on the FNS-292B Report of Supplemental Nutrition Assistance Program Benefit Issuance for Disaster Relief within 45 days of the end of a D-SNAP operation. VDSS must submit the report electronically through the Food Programs Reporting System (FPRS). The report will provide the following elements for D-SNAP operations:

- Number of Households – new households issued D-SNAP benefits
- Total Number of Persons Assisted - new persons issued D-SNAP benefits
- Number of Certified Persons - ongoing households issued supplements
- Value of Benefits Issued - total of benefits issued to new households and supplements issued to ongoing households.

The FNS-292B report should not include the value of any replacements issued.

FNS-388

The Monthly Issuance Report (FNS-388) will reflect disaster issuance and participation figures. This report must include replacement benefits. Replacement benefits must be reported for the month for which they are intended.

FNS-209

The number of claims established and collected against D-SNAP benefits must be entered in the Remarks section of the Status of Claims Against Households Report (FNS-209). These numbers must also be included in newly established claims (line 4) and collection summary (lines 14, 16 and 18(a)). D-SNAP claims must be identified on backup documentation in accounting systems for the FNS-209.

FNS-46

The portion of D-SNAP benefits reported in the Gross, Returns, and Net Issuance must be explained in the Remarks Section of the Issuance Reconciliation Report (FNS-46). The FNS-46 and FNS-388 must reconcile with the reported Net Issuance amount.

PART XXI REDUCTION, SUSPENSION, CANCELLATION OF SNAP BENEFITS

<u>CHAPTER</u>	<u>SUBJECT</u>	<u>PAGES</u>
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B.	DEFINITIONS	1
	1. Reduction	1
	2. Cancellation	1
	3. Suspension	1
C.	REDUCTION	1
D.	SUSPENSIONS AND CANCELLATIONS	1
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	1. Notifying Eligible Households	2
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	3. Record Keeping	2
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	6. Certification Periods	3
	7. Action to be Taken When The Suspension or Cancellation Is Lifted	3
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A. GENERAL PURPOSE

This chapter provides guidelines local agencies must use if the USDA orders a reduction, suspension or cancellation of SNAP benefits. Depending upon the orders issued by USDA, there could be a suspension or cancellation of benefits for one or more months, a reduction for one or more months or a combination of these.

B. DEFINITIONS

1. Reduction - A reduction of SNAP benefits means that there will be a percentage reduction of the maximum benefit amounts. Local agencies will receive benefit tables that reflect the reduction as it applies to each household size at each income increment.
2. Cancellation - A cancellation of SNAP benefits means that there will be no benefits issued for a particular month or months.
3. Suspension - A suspension of SNAP benefits is basically the same as a cancellation except it should be more temporary. The net effect of a suspension may mean that eligible household would receive benefits a delayed basis.

C. REDUCTION

The Virginia Department of Social Services will notify local agencies if there must be a reduction of SNAP benefits. The notification will include the effective date of the reduction and the percentage.

When agencies receive the notice that a reduction must occur, local workers must act immediately to implement the order. Modification of the statewide computer system must also occur so that households would receive the appropriate benefit amounts.

Any household with one or two members whose reduced benefits would be less than \$24 would generally receive a minimum benefit of \$24. If there is a reduction rate of 90% or more for the affected month, one or two-person households would not receive the \$23 minimum. Benefit levels of \$1, \$3 and \$5 must be rounded up to \$2, \$4 and \$6 respectively.

D. SUSPENSION AND CANCELLATIONS

The Virginia Department of Social Services will notify local agencies if there must be a suspension or cancellation of SNAP benefits and the effective date of the suspension or cancellation.

Households will not receive a minimum benefit if benefits are suspended or cancelled.

When agencies receive the notice that a suspension or cancellation must take place, local workers must act immediately to implement the order. Reprogramming for the statewide computer system must also occur timely to make necessary computer adjustments.

E. GENERAL OPERATING PROCEDURES

1. Notifying Eligible Households

A reduction, suspension or cancellation of benefits would be a mass change. Normal requirements applied to mass changes would be used:

- a. Notification of recipients through news media.
- b. Posters in certification offices.
- c. General explanatory notices mailed to participating households.

The BPS may not use the Advance Notice of Proposed Action to notify households if there is a reduction, suspension or cancellation of benefits.

2. Restoration of Benefits

Households receiving restored benefits or who are to receive retroactive benefits at the time of the order for reduction, suspension or cancellation of benefits, will not have these benefits affected during the month(s) the action is in effect.

Households who receive reduced or cancelled benefits because of these procedures are not entitled to restoration of benefits at a future date unless USDA orders the restoration.

3. Record Keeping

There must be a record of benefits that households receive during a month(s) when a reduction is in effect and the amount households would have received had full monthly benefits been distributed. There must also be records kept showing the benefit amount households would have received if there is a cancellation of benefits.

4. Eligibility Determination

An order for a reduction, suspension or cancellation of benefits will not affect the determination of eligibility. The BPS must accept and process applications within normal time frames. If an applicant is determined eligible and a reduction is in effect, that household must receive benefits according to the revised issuance tables that reflect the reduction.

If an applicant is eligible and a cancellation is in effect, the household will not receive any benefits.

5. Expedited Services

- a. Households eligible for expedited processing who apply during month(s) when a reduction or suspension is in effect must be processed as allowed by expedited procedures.

- 1) If a reduction is in effect the allotment issued must reflect the reduction.
 - 2) If a suspension is in effect at the time of certification, the eligible household will not receive any benefits until the suspension of benefits is no longer in effect.
 - b. Households eligible for expedited processing who apply during month(s) in which cancellations are in effect must have their cases processed either in seven calendar days or by the end of the month of application, whichever date is later.
6. Certification Periods
- A reduction, suspension or cancellation will have no effect on the certification periods assigned to eligible households.
- Normal recertification procedures will also apply during a reduction, suspension or cancellation of benefits.
7. Action to be Taken When the Suspension or Cancellation is Lifted
- Local agencies will receive immediate notice that the suspension or cancellation of benefits is over. Local agencies and the State Office must resume all actions to post full benefits to EBT accounts of certified households as soon as possible.
8. Fair Hearings
- Households may request a fair hearing if the household believes that the benefit level was computed incorrectly or that the rules were misapplied or misinterpreted for benefits that were reduced, suspended or cancelled by this policy. Under no circumstances will households have a right to continuation of benefits, even if they appeal in a timely manner.
- If a hearing determines that a household received fewer benefits than it should have, the household may be entitled to restoration of lost benefits for the difference.

10/24

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PART XXII WORKFARE - RESERVED

PART XXIII

BENEFIT ALLOTMENTS

CHAPTER

SUBJECT

PAGES

A. CALCULATING BENEFIT ALLOTMENTS

1

B. BENEFIT ALLOTMENT TABLES

1-90

A. CALCULATING BENEFIT ALLOTMENTS

The tables on the following pages show the appropriate benefits for household sizes 1 through 10.

For household sizes 1 and 2, **\$24** is the minimum allotment for all eligible households, including categorically eligible households. The maximum monthly net income does not apply to categorically eligible households, however.

For household sizes 3 through 10, the allotment tables reflect the maximum benefit allotment to the \$1 minimum allotment. **NOTE: ONLY CATEGORICALLY ELIGIBLE HOUSEHOLDS ARE ELIGIBLE FOR ALLOTMENTS WHERE THE HOUSEHOLD'S NET INCOME EXCEEDS THE NET INCOME MAXIMUM.** For example, for a 4-person household, the maximum net income is **\$2,680**. The allotment offered at that level of income is **\$190**. The rest of the allotment table, from the net income of **\$2,681** through **\$3,310**, the last income figure, for which an allotment is available, applies to categorically eligible households only.

To calculate issuances to households of more than ten persons, use the following formula:

1. Maximum Benefit Allotment. If there are more than ten household members, add **\$218** to the monthly maximum benefit allotment.
2. Maximum Monthly Net Income. If there are more than ten household members, add **\$459** to the monthly maximum net income. **NOTE:** Maximum monthly net income limits do not apply to categorically eligible households.

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
0 - 0	298	546	785	994	1183	1421	1571	1789	2007	2225
1 - 3	297	545	784	993	1182	1420	1570	1788	2006	2224
4 - 6	296	544	783	992	1181	1419	1569	1787	2005	2223
7 - 10	295	543	782	991	1180	1418	1568	1786	2004	2222
11 - 13	294	542	781	990	1179	1417	1567	1785	2003	2221
14 - 16	293	541	780	989	1178	1416	1566	1784	2002	2220
17 - 20	292	540	779	988	1177	1415	1565	1783	2001	2219
21 - 23	291	539	778	987	1176	1414	1564	1782	2000	2218
24 - 26	290	538	777	986	1175	1413	1563	1781	1999	2217
27 - 30	289	537	776	985	1174	1412	1562	1780	1998	2216
31 - 33	288	536	775	984	1173	1411	1561	1779	1997	2215
34 - 36	287	535	774	983	1172	1410	1560	1778	1996	2214
37 - 40	286	534	773	982	1171	1409	1559	1777	1995	2213
41 - 43	285	533	772	981	1170	1408	1558	1776	1994	2212
44 - 46	284	532	771	980	1169	1407	1557	1775	1993	2211
47 - 50	283	531	770	979	1168	1406	1556	1774	1992	2210
51 - 53	282	530	769	978	1167	1405	1555	1773	1991	2209
54 - 56	281	529	768	977	1166	1404	1554	1772	1990	2208
57 - 60	280	528	767	976	1165	1403	1553	1771	1989	2207
61 - 63	279	527	766	975	1164	1402	1552	1770	1988	2206
64 - 66	278	526	765	974	1163	1401	1551	1769	1987	2205
67 - 70	277	525	764	973	1162	1400	1550	1768	1986	2204
71 - 73	276	524	763	972	1161	1399	1549	1767	1985	2203
74 - 76	275	523	762	971	1160	1398	1548	1766	1984	2202
77 - 80	274	522	761	970	1159	1397	1547	1765	1983	2201

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
81 - 83	273	521	760	969	1158	1396	1546	1764	1982	2200
84 - 86	272	520	759	968	1157	1395	1545	1763	1981	2199
87 - 90	271	519	758	967	1156	1394	1544	1762	1980	2198
91 - 93	270	518	757	966	1155	1393	1543	1761	1979	2197
94 - 96	269	517	756	965	1154	1392	1542	1760	1978	2196
97 - 100	268	516	755	964	1153	1391	1541	1759	1977	2195
101 - 103	267	515	754	963	1152	1390	1540	1758	1976	2194
104 - 106	266	514	753	962	1151	1389	1539	1757	1975	2193
107 - 110	265	513	752	961	1150	1388	1538	1756	1974	2192
111 - 113	264	512	751	960	1149	1387	1537	1755	1973	2191
114 - 116	263	511	750	959	1148	1386	1536	1754	1972	2190
117 - 120	262	510	749	958	1147	1385	1535	1753	1971	2189
121 - 123	261	509	748	957	1146	1384	1534	1752	1970	2188
124 - 126	260	508	747	956	1145	1383	1533	1751	1969	2187
127 - 130	259	507	746	955	1144	1382	1532	1750	1968	2186
131 - 133	258	506	745	954	1143	1381	1531	1749	1967	2185
134 - 136	257	505	744	953	1142	1380	1530	1748	1966	2184
137 - 140	256	504	743	952	1141	1379	1529	1747	1965	2183
141 - 143	255	503	742	951	1140	1378	1528	1746	1964	2182
144 - 146	254	502	741	950	1139	1377	1527	1745	1963	2181
147 - 150	253	501	740	949	1138	1376	1526	1744	1962	2180
151 - 153	252	500	739	948	1137	1375	1525	1743	1961	2179
154 - 156	251	499	738	947	1136	1374	1524	1742	1960	2178
157 - 160	250	498	737	946	1135	1373	1523	1741	1959	2177
161 - 163	249	497	736	945	1134	1372	1522	1740	1958	2176

October 2025
Benefit Issuance by Household Size

Monthly Net Income			1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
164	-	166	248	496	735	944	1133	1371	1521	1739	1957	2175
167	-	170	247	495	734	943	1132	1370	1520	1738	1956	2174
171	-	173	246	494	733	942	1131	1369	1519	1737	1955	2173
174	-	176	245	493	732	941	1130	1368	1518	1736	1954	2172
177	-	180	244	492	731	940	1129	1367	1517	1735	1953	2171
181	-	183	243	491	730	939	1128	1366	1516	1734	1952	2170
184	-	186	242	490	729	938	1127	1365	1515	1733	1951	2169
187	-	190	241	489	728	937	1126	1364	1514	1732	1950	2168
191	-	193	240	488	727	936	1125	1363	1513	1731	1949	2167
194	-	196	239	487	726	935	1124	1362	1512	1730	1948	2166
197	-	200	238	486	725	934	1123	1361	1511	1729	1947	2165
201	-	203	237	485	724	933	1122	1360	1510	1728	1946	2164
204	-	206	236	484	723	932	1121	1359	1509	1727	1945	2163
207	-	210	235	483	722	931	1120	1358	1508	1726	1944	2162
211	-	213	234	482	721	930	1119	1357	1507	1725	1943	2161
214	-	216	233	481	720	929	1118	1356	1506	1724	1942	2160
217	-	220	232	480	719	928	1117	1355	1505	1723	1941	2159
221	-	223	231	479	718	927	1116	1354	1504	1722	1940	2158
224	-	226	230	478	717	926	1115	1353	1503	1721	1939	2157
227	-	230	229	477	716	925	1114	1352	1502	1720	1938	2156
231	-	233	228	476	715	924	1113	1351	1501	1719	1937	2155
234	-	236	227	475	714	923	1112	1350	1500	1718	1936	2154
237	-	240	226	474	713	922	1111	1349	1499	1717	1935	2153
241	-	243	225	473	712	921	1110	1348	1498	1716	1934	2152
244	-	246	224	472	711	920	1109	1347	1497	1715	1933	2151

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Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
247 - 250	223	471	710	919	1108	1346	1496	1714	1932	2150
251 - 253	222	470	709	918	1107	1345	1495	1713	1931	2149
254 - 256	221	469	708	917	1106	1344	1494	1712	1930	2148
257 - 260	220	468	707	916	1105	1343	1493	1711	1929	2147
261 - 263	219	467	706	915	1104	1342	1492	1710	1928	2146
264 - 266	218	466	705	914	1103	1341	1491	1709	1927	2145
267 - 270	217	465	704	913	1102	1340	1490	1708	1926	2144
271 - 273	216	464	703	912	1101	1339	1489	1707	1925	2143
274 - 276	215	463	702	911	1100	1338	1488	1706	1924	2142
277 - 280	214	462	701	910	1099	1337	1487	1705	1923	2141
281 - 283	213	461	700	909	1098	1336	1486	1704	1922	2140
284 - 286	212	460	699	908	1097	1335	1485	1703	1921	2139
287 - 290	211	459	698	907	1096	1334	1484	1702	1920	2138
291 - 293	210	458	697	906	1095	1333	1483	1701	1919	2137
294 - 296	209	457	696	905	1094	1332	1482	1700	1918	2136
297 - 300	208	456	695	904	1093	1331	1481	1699	1917	2135
301 - 303	207	455	694	903	1092	1330	1480	1698	1916	2134
304 - 306	206	454	693	902	1091	1329	1479	1697	1915	2133
307 - 310	205	453	692	901	1090	1328	1478	1696	1914	2132
311 - 313	204	452	691	900	1089	1327	1477	1695	1913	2131
314 - 316	203	451	690	899	1088	1326	1476	1694	1912	2130
317 - 320	202	450	689	898	1087	1325	1475	1693	1911	2129
321 - 323	201	449	688	897	1086	1324	1474	1692	1910	2128
324 - 326	200	448	687	896	1085	1323	1473	1691	1909	2127
327 - 330	199	447	686	895	1084	1322	1472	1690	1908	2126

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Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
331 - 333	198	446	685	894	1083	1321	1471	1689	1907	2125
334 - 336	197	445	684	893	1082	1320	1470	1688	1906	2124
337 - 340	196	444	683	892	1081	1319	1469	1687	1905	2123
341 - 343	195	443	682	891	1080	1318	1468	1686	1904	2122
344 - 346	194	442	681	890	1079	1317	1467	1685	1903	2121
347 - 350	193	441	680	889	1078	1316	1466	1684	1902	2120
351 - 353	192	440	679	888	1077	1315	1465	1683	1901	2119
354 - 356	191	439	678	887	1076	1314	1464	1682	1900	2118
357 - 360	190	438	677	886	1075	1313	1463	1681	1899	2117
361 - 363	189	437	676	885	1074	1312	1462	1680	1898	2116
364 - 366	188	436	675	884	1073	1311	1461	1679	1897	2115
367 - 370	187	435	674	883	1072	1310	1460	1678	1896	2114
371 - 373	186	434	673	882	1071	1309	1459	1677	1895	2113
374 - 376	185	433	672	881	1070	1308	1458	1676	1894	2112
377 - 380	184	432	671	880	1069	1307	1457	1675	1893	2111
381 - 383	183	431	670	879	1068	1306	1456	1674	1892	2110
384 - 386	182	430	669	878	1067	1305	1455	1673	1891	2109
387 - 390	181	429	668	877	1066	1304	1454	1672	1890	2108
391 - 393	180	428	667	876	1065	1303	1453	1671	1889	2107
394 - 396	179	427	666	875	1064	1302	1452	1670	1888	2106
397 - 400	178	426	665	874	1063	1301	1451	1669	1887	2105
401 - 403	177	425	664	873	1062	1300	1450	1668	1886	2104
404 - 406	176	424	663	872	1061	1299	1449	1667	1885	2103
407 - 410	175	423	662	871	1060	1298	1448	1666	1884	2102

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Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
411 - 413	174	422	661	870	1059	1297	1447	1665	1883	2101
414 - 416	173	421	660	869	1058	1296	1446	1664	1882	2100
417 - 420	172	420	659	868	1057	1295	1445	1663	1881	2099
421 - 423	171	419	658	867	1056	1294	1444	1662	1880	2098
424 - 426	170	418	657	866	1055	1293	1443	1661	1879	2097
427 - 430	169	417	656	865	1054	1292	1442	1660	1878	2096
431 - 433	168	416	655	864	1053	1291	1441	1659	1877	2095
434 - 436	167	415	654	863	1052	1290	1440	1658	1876	2094
437 - 440	166	414	653	862	1051	1289	1439	1657	1875	2093
441 - 443	165	413	652	861	1050	1288	1438	1656	1874	2092
444 - 446	164	412	651	860	1049	1287	1437	1655	1873	2091
447 - 450	163	411	650	859	1048	1286	1436	1654	1872	2090
451 - 453	162	410	649	858	1047	1285	1435	1653	1871	2089
454 - 456	161	409	648	857	1046	1284	1434	1652	1870	2088
457 - 460	160	408	647	856	1045	1283	1433	1651	1869	2087
461 - 463	159	407	646	855	1044	1282	1432	1650	1868	2086
464 - 466	158	406	645	854	1043	1281	1431	1649	1867	2085
467 - 470	157	405	644	853	1042	1280	1430	1648	1866	2084
471 - 473	156	404	643	852	1041	1279	1429	1647	1865	2083
474 - 476	155	403	642	851	1040	1278	1428	1646	1864	2082
477 - 480	154	402	641	850	1039	1277	1427	1645	1863	2081
481 - 483	153	401	640	849	1038	1276	1426	1644	1862	2080
484 - 486	152	400	639	848	1037	1275	1425	1643	1861	2079
487 - 490	151	399	638	847	1036	1274	1424	1642	1860	2078
491 - 493	150	398	637	846	1035	1273	1423	1641	1859	2077

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Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
494 - 496	149	397	636	845	1034	1272	1422	1640	1858	2076
497 - 500	148	396	635	844	1033	1271	1421	1639	1857	2075
501 - 503	147	395	634	843	1032	1270	1420	1638	1856	2074
504 - 506	146	394	633	842	1031	1269	1419	1637	1855	2073
507 - 510	145	393	632	841	1030	1268	1418	1636	1854	2072
511 - 513	144	392	631	840	1029	1267	1417	1635	1853	2071
514 - 516	143	391	630	839	1028	1266	1416	1634	1852	2070
517 - 520	142	390	629	838	1027	1265	1415	1633	1851	2069
521 - 523	141	389	628	837	1026	1264	1414	1632	1850	2068
524 - 526	140	388	627	836	1025	1263	1413	1631	1849	2067
527 - 530	139	387	626	835	1024	1262	1412	1630	1848	2066
531 - 533	138	386	625	834	1023	1261	1411	1629	1847	2065
534 - 536	137	385	624	833	1022	1260	1410	1628	1846	2064
537 - 540	136	384	623	832	1021	1259	1409	1627	1845	2063
541 - 543	135	383	622	831	1020	1258	1408	1626	1844	2062
544 - 546	134	382	621	830	1019	1257	1407	1625	1843	2061
547 - 550	133	381	620	829	1018	1256	1406	1624	1842	2060
551 - 553	132	380	619	828	1017	1255	1405	1623	1841	2059
554 - 556	131	379	618	827	1016	1254	1404	1622	1840	2058
557 - 560	130	378	617	826	1015	1253	1403	1621	1839	2057
561 - 563	129	377	616	825	1014	1252	1402	1620	1838	2056
564 - 566	128	376	615	824	1013	1251	1401	1619	1837	2055
567 - 570	127	375	614	823	1012	1250	1400	1618	1836	2054
571 - 573	126	374	613	822	1011	1249	1399	1617	1835	2053
574 - 576	125	373	612	821	1010	1248	1398	1616	1834	2052

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Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
577 - 580	124	372	611	820	1009	1247	1397	1615	1833	2051
581 - 583	123	371	610	819	1008	1246	1396	1614	1832	2050
584 - 586	122	370	609	818	1007	1245	1395	1613	1831	2049
587 - 590	121	369	608	817	1006	1244	1394	1612	1830	2048
591 - 593	120	368	607	816	1005	1243	1393	1611	1829	2047
594 - 596	119	367	606	815	1004	1242	1392	1610	1828	2046
597 - 600	118	366	605	814	1003	1241	1391	1609	1827	2045
601 - 603	117	365	604	813	1002	1240	1390	1608	1826	2044
604 - 606	116	364	603	812	1001	1239	1389	1607	1825	2043
607 - 610	115	363	602	811	1000	1238	1388	1606	1824	2042
611 - 613	114	362	601	810	999	1237	1387	1605	1823	2041
614 - 616	113	361	600	809	998	1236	1386	1604	1822	2040
617 - 620	112	360	599	808	997	1235	1385	1603	1821	2039
621 - 623	111	359	598	807	996	1234	1384	1602	1820	2038
624 - 626	110	358	597	806	995	1233	1383	1601	1819	2037
627 - 630	109	357	596	805	994	1232	1382	1600	1818	2036
631 - 633	108	356	595	804	993	1231	1381	1599	1817	2035
634 - 636	107	355	594	803	992	1230	1380	1598	1816	2034
637 - 640	106	354	593	802	991	1229	1379	1597	1815	2033
641 - 643	105	353	592	801	990	1228	1378	1596	1814	2032
644 - 646	104	352	591	800	989	1227	1377	1595	1813	2031
647 - 650	103	351	590	799	988	1226	1376	1594	1812	2030
651 - 653	102	350	589	798	987	1225	1375	1593	1811	2029
654 - 656	101	349	588	797	986	1224	1374	1592	1810	2028
657 - 660	100	348	587	796	985	1223	1373	1591	1809	2027

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Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
661 - 663	99	347	586	795	984	1222	1372	1590	1808	2026
664 - 666	98	346	585	794	983	1221	1371	1589	1807	2025
667 - 670	97	345	584	793	982	1220	1370	1588	1806	2024
671 - 673	96	344	583	792	981	1219	1369	1587	1805	2023
674 - 676	95	343	582	791	980	1218	1368	1586	1804	2022
677 - 680	94	342	581	790	979	1217	1367	1585	1803	2021
681 - 683	93	341	580	789	978	1216	1366	1584	1802	2020
684 - 686	92	340	579	788	977	1215	1365	1583	1801	2019
687 - 690	91	339	578	787	976	1214	1364	1582	1800	2018
691 - 693	90	338	577	786	975	1213	1363	1581	1799	2017
694 - 696	89	337	576	785	974	1212	1362	1580	1798	2016
697 - 700	88	336	575	784	973	1211	1361	1579	1797	2015
701 - 703	87	335	574	783	972	1210	1360	1578	1796	2014
704 - 706	86	334	573	782	971	1209	1359	1577	1795	2013
707 - 710	85	333	572	781	970	1208	1358	1576	1794	2012
711 - 713	84	332	571	780	969	1207	1357	1575	1793	2011
714 - 716	83	331	570	779	968	1206	1356	1574	1792	2010
717 - 720	82	330	569	778	967	1205	1355	1573	1791	2009
721 - 723	81	329	568	777	966	1204	1354	1572	1790	2008
724 - 726	80	328	567	776	965	1203	1353	1571	1789	2007
727 - 730	79	327	566	775	964	1202	1352	1570	1788	2006
731 - 733	78	326	565	774	963	1201	1351	1569	1787	2005
734 - 736	77	325	564	773	962	1200	1350	1568	1786	2004
737 - 740	76	324	563	772	961	1199	1349	1567	1785	2003
741 - 743	75	323	562	771	960	1198	1348	1566	1784	2002

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Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
744 - 746	74	322	561	770	959	1197	1347	1565	1783	2001
747 - 750	73	321	560	769	958	1196	1346	1564	1782	2000
751 - 753	72	320	559	768	957	1195	1345	1563	1781	1999
754 - 756	71	319	558	767	956	1194	1344	1562	1780	1998
757 - 760	70	318	557	766	955	1193	1343	1561	1779	1997
761 - 763	69	317	556	765	954	1192	1342	1560	1778	1996
764 - 766	68	316	555	764	953	1191	1341	1559	1777	1995
767 - 770	67	315	554	763	952	1190	1340	1558	1776	1994
771 - 773	66	314	553	762	951	1189	1339	1557	1775	1993
774 - 776	65	313	552	761	950	1188	1338	1556	1774	1992
777 - 780	64	312	551	760	949	1187	1337	1555	1773	1991
781 - 783	63	311	550	759	948	1186	1336	1554	1772	1990
784 - 786	62	310	549	758	947	1185	1335	1553	1771	1989
787 - 790	61	309	548	757	946	1184	1334	1552	1770	1988
791 - 793	60	308	547	756	945	1183	1333	1551	1769	1987
794 - 796	59	307	546	755	944	1182	1332	1550	1768	1986
797 - 800	58	306	545	754	943	1181	1331	1549	1767	1985
801 - 803	57	305	544	753	942	1180	1330	1548	1766	1984
804 - 806	56	304	543	752	941	1179	1329	1547	1765	1983
807 - 810	55	303	542	751	940	1178	1328	1546	1764	1982
811 - 813	54	302	541	750	939	1177	1327	1545	1763	1981
814 - 816	53	301	540	749	938	1176	1326	1544	1762	1980
817 - 820	52	300	539	748	937	1175	1325	1543	1761	1979
821 - 823	51	299	538	747	936	1174	1324	1542	1760	1978
824 - 826	50	298	537	746	935	1173	1323	1541	1759	1977

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Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
827 - 830	49	297	536	745	934	1172	1322	1540	1758	1976
831 - 833	48	296	535	744	933	1171	1321	1539	1757	1975
834 - 836	47	295	534	743	932	1170	1320	1538	1756	1974
837 - 840	46	294	533	742	931	1169	1319	1537	1755	1973
841 - 843	45	293	532	741	930	1168	1318	1536	1754	1972
844 - 846	44	292	531	740	929	1167	1317	1535	1753	1971
847 - 850	43	291	530	739	928	1166	1316	1534	1752	1970
851 - 853	42	290	529	738	927	1165	1315	1533	1751	1969
854 - 856	41	289	528	737	926	1164	1314	1532	1750	1968
857 - 860	40	288	527	736	925	1163	1313	1531	1749	1967
861 - 863	39	287	526	735	924	1162	1312	1530	1748	1966
864 - 866	38	286	525	734	923	1161	1311	1529	1747	1965
867 - 870	37	285	524	733	922	1160	1310	1528	1746	1964
871 - 873	36	284	523	732	921	1159	1309	1527	1745	1963
874 - 876	35	283	522	731	920	1158	1308	1526	1744	1962
877 - 880	34	282	521	730	919	1157	1307	1525	1743	1961
881 - 883	33	281	520	729	918	1156	1306	1524	1742	1960
884 - 886	32	280	519	728	917	1155	1305	1523	1741	1959
887 - 890	31	279	518	727	916	1154	1304	1522	1740	1958
891 - 893	30	278	517	726	915	1153	1303	1521	1739	1957
894 - 896	29	277	516	725	914	1152	1302	1520	1738	1956
897 - 900	28	276	515	724	913	1151	1301	1519	1737	1955
901 - 903	27	275	514	723	912	1150	1300	1518	1736	1954
904 - 906	26	274	513	722	911	1149	1299	1517	1735	1953
907 - 910	25	273	512	721	910	1148	1298	1516	1734	1952

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
911 - 913	24	272	511	720	909	1147	1297	1515	1733	1951
914 - 916	24	271	510	719	908	1146	1296	1514	1732	1950
917 - 920	24	270	509	718	907	1145	1295	1513	1731	1949
921 - 923	24	269	508	717	906	1144	1294	1512	1730	1948
924 - 926	24	268	507	716	905	1143	1293	1511	1729	1947
927 - 930	24	267	506	715	904	1142	1292	1510	1728	1946
931 - 933	24	266	505	714	903	1141	1291	1509	1727	1945
934 - 936	24	265	504	713	902	1140	1290	1508	1726	1944
937 - 940	24	264	503	712	901	1139	1289	1507	1725	1943
941 - 943	24	263	502	711	900	1138	1288	1506	1724	1942
944 - 946	24	262	501	710	899	1137	1287	1505	1723	1941
947 - 950	24	261	500	709	898	1136	1286	1504	1722	1940
951 - 953	24	260	499	708	897	1135	1285	1503	1721	1939
954 - 956	24	259	498	707	896	1134	1284	1502	1720	1938
957 - 960	24	258	497	706	895	1133	1283	1501	1719	1937
961 - 963	24	257	496	705	894	1132	1282	1500	1718	1936
964 - 966	24	256	495	704	893	1131	1281	1499	1717	1935
967 - 970	24	255	494	703	892	1130	1280	1498	1716	1934
971 - 973	24	254	493	702	891	1129	1279	1497	1715	1933
974 - 976	24	253	492	701	890	1128	1278	1496	1714	1932
977 - 980	24	252	491	700	889	1127	1277	1495	1713	1931
981 - 983	24	251	490	699	888	1126	1276	1494	1712	1930
984 - 986	24	250	489	698	887	1125	1275	1493	1711	1929
987 - 990	24	249	488	697	886	1124	1274	1492	1710	1928

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
991 - 993	24	248	487	696	885	1123	1273	1491	1709	1927
994 - 996	24	247	486	695	884	1122	1272	1490	1708	1926
997 - 1000	24	246	485	694	883	1121	1271	1489	1707	1925
1001 - 1003	24	245	484	693	882	1120	1270	1488	1706	1924
1004 - 1006	24	244	483	692	881	1119	1269	1487	1705	1923
1007 - 1010	24	243	482	691	880	1118	1268	1486	1704	1922
1011 - 1013	24	242	481	690	879	1117	1267	1485	1703	1921
1014 - 1016	24	241	480	689	878	1116	1266	1484	1702	1920
1017 - 1020	24	240	479	688	877	1115	1265	1483	1701	1919
1021 - 1023	24	239	478	687	876	1114	1264	1482	1700	1918
1024 - 1026	24	238	477	686	875	1113	1263	1481	1699	1917
1027 - 1030	24	237	476	685	874	1112	1262	1480	1698	1916
1031 - 1033	24	236	475	684	873	1111	1261	1479	1697	1915
1034 - 1036	24	235	474	683	872	1110	1260	1478	1696	1914
1037 - 1040	24	234	473	682	871	1109	1259	1477	1695	1913
1041 - 1043	24	233	472	681	870	1108	1258	1476	1694	1912
1044 - 1046	24	232	471	680	869	1107	1257	1475	1693	1911
1047 - 1050	24	231	470	679	868	1106	1256	1474	1692	1910
1051 - 1053	24	230	469	678	867	1105	1255	1473	1691	1909
1054 - 1056	24	229	468	677	866	1104	1254	1472	1690	1908
1057 - 1060	24	228	467	676	865	1103	1253	1471	1689	1907
1061 - 1063	24	227	466	675	864	1102	1252	1470	1688	1906
1064 - 1066	24	226	465	674	863	1101	1251	1469	1687	1905
1067 - 1070	24	225	464	673	862	1100	1250	1468	1686	1904
1071 - 1073	24	224	463	672	861	1099	1249	1467	1685	1903

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
1074 - 1076	24	223	462	671	860	1098	1248	1466	1684	1902
1077 - 1080	24	222	461	670	859	1097	1247	1465	1683	1901
1081 - 1083	24	221	460	669	858	1096	1246	1464	1682	1900
1084 - 1086	24	220	459	668	857	1095	1245	1463	1681	1899
1087 - 1090	24	219	458	667	856	1094	1244	1462	1680	1898
1091 - 1093	24	218	457	666	855	1093	1243	1461	1679	1897
1094 - 1096	24	217	456	665	854	1092	1242	1460	1678	1896
1097 - 1100	24	216	455	664	853	1091	1241	1459	1677	1895
1101 - 1103	24	215	454	663	852	1090	1240	1458	1676	1894
1104 - 1106	24	214	453	662	851	1089	1239	1457	1675	1893
1107 - 1110	24	213	452	661	850	1088	1238	1456	1674	1892
1111 - 1113	24	212	451	660	849	1087	1237	1455	1673	1891
1114 - 1116	24	211	450	659	848	1086	1236	1454	1672	1890
1117 - 1120	24	210	449	658	847	1085	1235	1453	1671	1889
1121 - 1123	24	209	448	657	846	1084	1234	1452	1670	1888
1124 - 1126	24	208	447	656	845	1083	1233	1451	1669	1887
1127 - 1130	24	207	446	655	844	1082	1232	1450	1668	1886
1131 - 1133	24	206	445	654	843	1081	1231	1449	1667	1885
1134 - 1136	24	205	444	653	842	1080	1230	1448	1666	1884
1137 - 1140	24	204	443	652	841	1079	1229	1447	1665	1883
1141 - 1143	24	203	442	651	840	1078	1228	1446	1664	1882
1144 - 1146	24	202	441	650	839	1077	1227	1445	1663	1881
1147 - 1150	24	201	440	649	838	1076	1226	1444	1662	1880
1151 - 1153	24	200	439	648	837	1075	1225	1443	1661	1879
1154 - 1156	24	199	438	647	836	1074	1224	1442	1660	1878

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
1157 - 1160	24	198	437	646	835	1073	1223	1441	1659	1877
1161 - 1163	24	197	436	645	834	1072	1222	1440	1658	1876
1164 - 1166	24	196	435	644	833	1071	1221	1439	1657	1875
1167 - 1170	24	195	434	643	832	1070	1220	1438	1656	1874
1171 - 1173	24	194	433	642	831	1069	1219	1437	1655	1873
1174 - 1176	24	193	432	641	830	1068	1218	1436	1654	1872
1177 - 1180	24	192	431	640	829	1067	1217	1435	1653	1871
1181 - 1183	24	191	430	639	828	1066	1216	1434	1652	1870
1184 - 1186	24	190	429	638	827	1065	1215	1433	1651	1869
1187 - 1190	24	189	428	637	826	1064	1214	1432	1650	1868
1191 - 1193	24	188	427	636	825	1063	1213	1431	1649	1867
1194 - 1196	24	187	426	635	824	1062	1212	1430	1648	1866
1197 - 1200	24	186	425	634	823	1061	1211	1429	1647	1865
1201 - 1203	24	185	424	633	822	1060	1210	1428	1646	1864
1204 - 1206	24	184	423	632	821	1059	1209	1427	1645	1863
1207 - 1210	24	183	422	631	820	1058	1208	1426	1644	1862
1211 - 1213	24	182	421	630	819	1057	1207	1425	1643	1861
1214 - 1216	24	181	420	629	818	1056	1206	1424	1642	1860
1217 - 1220	24	180	419	628	817	1055	1205	1423	1641	1859
1221 - 1223	24	179	418	627	816	1054	1204	1422	1640	1858
1224 - 1226	24	178	417	626	815	1053	1203	1421	1639	1857
1227 - 1230	24	177	416	625	814	1052	1202	1420	1638	1856
1231 - 1233	24	176	415	624	813	1051	1201	1419	1637	1855
1234 - 1236	24	175	414	623	812	1050	1200	1418	1636	1854
1237 - 1240	24	174	413	622	811	1049	1199	1417	1635	1853

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
1241 - 1243	24	173	412	621	810	1048	1198	1416	1634	1852
1244 - 1246	24	172	411	620	809	1047	1197	1415	1633	1851
1247 - 1250	24	171	410	619	808	1046	1196	1414	1632	1850
1251 - 1253	24	170	409	618	807	1045	1195	1413	1631	1849
1254 - 1256	24	169	408	617	806	1044	1194	1412	1630	1848
1257 - 1260	24	168	407	616	805	1043	1193	1411	1629	1847
1261 - 1263	24	167	406	615	804	1042	1192	1410	1628	1846
1264 - 1266	24	166	405	614	803	1041	1191	1409	1627	1845
1267 - 1270	24	165	404	613	802	1040	1190	1408	1626	1844
1271 - 1273	24	164	403	612	801	1039	1189	1407	1625	1843
1274 - 1276	24	163	402	611	800	1038	1188	1406	1624	1842
1277 - 1280	24	162	401	610	799	1037	1187	1405	1623	1841
1281 - 1283	24	161	400	609	798	1036	1186	1404	1622	1840
1284 - 1286	24	160	399	608	797	1035	1185	1403	1621	1839
1287 - 1290	24	159	398	607	796	1034	1184	1402	1620	1838
1291 - 1293	24	158	397	606	795	1033	1183	1401	1619	1837
1294 - 1296	24	157	396	605	794	1032	1182	1400	1618	1836
1297 - 1300	24	156	395	604	793	1031	1181	1399	1617	1835
1301 - 1303	24	155	394	603	792	1030	1180	1398	1616	1834
1304 - 1306	24	154	393	602	791	1029	1179	1397	1615	1833
1307 - 1310	24	153	392	601	790	1028	1178	1396	1614	1832
1311 - 1313	24	152	391	600	789	1027	1177	1395	1613	1831
1314 - 1316	24	151	390	599	788	1026	1176	1394	1612	1830
1317 - 1320	24	150	389	598	787	1025	1175	1393	1611	1829
1321 - 1323	24	149	388	597	786	1024	1174	1392	1610	1828

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
1324 - 1326	24	148	387	596	785	1023	1173	1391	1609	1827
1327 - 1330	24	147	386	595	784	1022	1172	1390	1608	1826
1331 - 1333	24	146	385	594	783	1021	1171	1389	1607	1825
1334 - 1336	24	145	384	593	782	1020	1170	1388	1606	1824
1337 - 1340	24	144	383	592	781	1019	1169	1387	1605	1823
1341 - 1343	24	143	382	591	780	1018	1168	1386	1604	1822
1344 - 1346	24	142	381	590	779	1017	1167	1385	1603	1821
1347 - 1350	24	141	380	589	778	1016	1166	1384	1602	1820
1351 - 1353	24	140	379	588	777	1015	1165	1383	1601	1819
1354 - 1356	24	139	378	587	776	1014	1164	1382	1600	1818
1357 - 1360	24	138	377	586	775	1013	1163	1381	1599	1817
1361 - 1363	24	137	376	585	774	1012	1162	1380	1598	1816
1364 - 1366	24	136	375	584	773	1011	1161	1379	1597	1815
1367 - 1370	24	135	374	583	772	1010	1160	1378	1596	1814
1371 - 1373	24	134	373	582	771	1009	1159	1377	1595	1813
1374 - 1376	24	133	372	581	770	1008	1158	1376	1594	1812
1377 - 1380	24	132	371	580	769	1007	1157	1375	1593	1811
1381 - 1383	24	131	370	579	768	1006	1156	1374	1592	1810
1384 - 1386	24	130	369	578	767	1005	1155	1373	1591	1809
1387 - 1390	24	129	368	577	766	1004	1154	1372	1590	1808
1391 - 1393	24	128	367	576	765	1003	1153	1371	1589	1807
1394 - 1396	24	127	366	575	764	1002	1152	1370	1588	1806
1397 - 1400	24	126	365	574	763	1001	1151	1369	1587	1805
1401 - 1403	24	125	364	573	762	1000	1150	1368	1586	1804
1404 - 1406	24	124	363	572	761	999	1149	1367	1585	1803

October 2025
Benefit Issuance by Household Size

Monthly Net Income			1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
1407	-	1410	24	123	362	571	760	998	1148	1366	1584	1802
1411	-	1413	24	122	361	570	759	997	1147	1365	1583	1801
1414	-	1416	24	121	360	569	758	996	1146	1364	1582	1800
1417	-	1420	24	120	359	568	757	995	1145	1363	1581	1799
1421	-	1423	24	119	358	567	756	994	1144	1362	1580	1798
1424	-	1426	24	118	357	566	755	993	1143	1361	1579	1797
1427	-	1430	24	117	356	565	754	992	1142	1360	1578	1796
1431	-	1433	24	116	355	564	753	991	1141	1359	1577	1795
1434	-	1436	24	115	354	563	752	990	1140	1358	1576	1794
1437	-	1440	24	114	353	562	751	989	1139	1357	1575	1793
1441	-	1443	24	113	352	561	750	988	1138	1356	1574	1792
1444	-	1446	24	112	351	560	749	987	1137	1355	1573	1791
1447	-	1450	24	111	350	559	748	986	1136	1354	1572	1790
1451	-	1453	24	110	349	558	747	985	1135	1353	1571	1789
1454	-	1456	24	109	348	557	746	984	1134	1352	1570	1788
1457	-	1460	24	108	347	556	745	983	1133	1351	1569	1787
1461	-	1463	24	107	346	555	744	982	1132	1350	1568	1786
1464	-	1466	24	106	345	554	743	981	1131	1349	1567	1785
1467	-	1470	24	105	344	553	742	980	1130	1348	1566	1784
1471	-	1473	24	104	343	552	741	979	1129	1347	1565	1783
1474	-	1476	24	103	342	551	740	978	1128	1346	1564	1782
1477	-	1480	24	102	341	550	739	977	1127	1345	1563	1781
1481	-	1483	24	101	340	549	738	976	1126	1344	1562	1780
1484	-	1486	24	100	339	548	737	975	1125	1343	1561	1779
1487	-	1490	24	99	338	547	736	974	1124	1342	1560	1778

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
1491 - 1493	24	98	337	546	735	973	1123	1341	1559	1777
1494 - 1496	24	97	336	545	734	972	1122	1340	1558	1776
1497 - 1500	24	96	335	544	733	971	1121	1339	1557	1775
1501 - 1503	24	95	334	543	732	970	1120	1338	1556	1774
1504 - 1506	24	94	333	542	731	969	1119	1337	1555	1773
1507 - 1510	24	93	332	541	730	968	1118	1336	1554	1772
1511 - 1513	24	92	331	540	729	967	1117	1335	1553	1771
1514 - 1516	24	91	330	539	728	966	1116	1334	1552	1770
1517 - 1520	24	90	329	538	727	965	1115	1333	1551	1769
1521 - 1523	24	89	328	537	726	964	1114	1332	1550	1768
1524 - 1526	24	88	327	536	725	963	1113	1331	1549	1767
1527 - 1530	24	87	326	535	724	962	1112	1330	1548	1766
1531 - 1533	24	86	325	534	723	961	1111	1329	1547	1765
1534 - 1536	24	85	324	533	722	960	1110	1328	1546	1764
1537 - 1540	24	84	323	532	721	959	1109	1327	1545	1763
1541 - 1543	24	83	322	531	720	958	1108	1326	1544	1762
1544 - 1546	24	82	321	530	719	957	1107	1325	1543	1761
1547 - 1550	24	81	320	529	718	956	1106	1324	1542	1760
1551 - 1553	24	80	319	528	717	955	1105	1323	1541	1759
1554 - 1556	24	79	318	527	716	954	1104	1322	1540	1758
1557 - 1560	24	78	317	526	715	953	1103	1321	1539	1757
1561 - 1563	24	77	316	525	714	952	1102	1320	1538	1756
1564 - 1566	24	76	315	524	713	951	1101	1319	1537	1755
1567 - 1570	24	75	314	523	712	950	1100	1318	1536	1754

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
1571 - 1573	24	74	313	522	711	949	1099	1317	1535	1753
1574 - 1576	24	73	312	521	710	948	1098	1316	1534	1752
1577 - 1580	24	72	311	520	709	947	1097	1315	1533	1751
1581 - 1583	24	71	310	519	708	946	1096	1314	1532	1750
1584 - 1586	24	70	309	518	707	945	1095	1313	1531	1749
1587 - 1590	24	69	308	517	706	944	1094	1312	1530	1748
1591 - 1593	24	68	307	516	705	943	1093	1311	1529	1747
1594 - 1596	24	67	306	515	704	942	1092	1310	1528	1746
1597 - 1600	24	66	305	514	703	941	1091	1309	1527	1745
1601 - 1603	24	65	304	513	702	940	1090	1308	1526	1744
1604 - 1606	24	64	303	512	701	939	1089	1307	1525	1743
1607 - 1610	24	63	302	511	700	938	1088	1306	1524	1742
1611 - 1613	24	62	301	510	699	937	1087	1305	1523	1741
1614 - 1616	24	61	300	509	698	936	1086	1304	1522	1740
1617 - 1620	24	60	299	508	697	935	1085	1303	1521	1739
1621 - 1623	24	59	298	507	696	934	1084	1302	1520	1738
1624 - 1626	24	58	297	506	695	933	1083	1301	1519	1737
1627 - 1630	24	57	296	505	694	932	1082	1300	1518	1736
1631 - 1633	24	56	295	504	693	931	1081	1299	1517	1735
1634 - 1636	24	55	294	503	692	930	1080	1298	1516	1734
1637 - 1640	24	54	293	502	691	929	1079	1297	1515	1733
1641 - 1643	24	53	292	501	690	928	1078	1296	1514	1732
1644 - 1646	24	52	291	500	689	927	1077	1295	1513	1731
1647 - 1650	24	51	290	499	688	926	1076	1294	1512	1730
1651 - 1653	24	50	289	498	687	925	1075	1293	1511	1729

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
1654 - 1656	24	49	288	497	686	924	1074	1292	1510	1728
1657 - 1660	24	48	287	496	685	923	1073	1291	1509	1727
1661 - 1663	24	47	286	495	684	922	1072	1290	1508	1726
1664 - 1666	24	46	285	494	683	921	1071	1289	1507	1725
1667 - 1670	24	45	284	493	682	920	1070	1288	1506	1724
1671 - 1673	24	44	283	492	681	919	1069	1287	1505	1723
1674 - 1676	24	43	282	491	680	918	1068	1286	1504	1722
1677 - 1680	24	42	281	490	679	917	1067	1285	1503	1721
1681 - 1683	24	41	280	489	678	916	1066	1284	1502	1720
1684 - 1686	24	40	279	488	677	915	1065	1283	1501	1719
1687 - 1690	24	39	278	487	676	914	1064	1282	1500	1718
1691 - 1693	24	38	277	486	675	913	1063	1281	1499	1717
1694 - 1696	24	37	276	485	674	912	1062	1280	1498	1716
1697 - 1700	24	36	275	484	673	911	1061	1279	1497	1715
1701 - 1703	24	35	274	483	672	910	1060	1278	1496	1714
1704 - 1706	24	34	273	482	671	909	1059	1277	1495	1713
1707 - 1710	24	33	272	481	670	908	1058	1276	1494	1712
1711 - 1713	24	32	271	480	669	907	1057	1275	1493	1711
1714 - 1716	24	31	270	479	668	906	1056	1274	1492	1710
1717 - 1720	24	30	269	478	667	905	1055	1273	1491	1709
1721 - 1723	24	29	268	477	666	904	1054	1272	1490	1708
1724 - 1726	24	28	267	476	665	903	1053	1271	1489	1707
1727 - 1730	24	27	266	475	664	902	1052	1270	1488	1706
1731 - 1733	24	26	265	474	663	901	1051	1269	1487	1705
1734 - 1736	24	25	264	473	662	900	1050	1268	1486	1704

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
1737 - 1740	24	24	263	472	661	899	1049	1267	1485	1703
1741 - 1743	24	24	262	471	660	898	1048	1266	1484	1702
1744 - 1746	24	24	261	470	659	897	1047	1265	1483	1701
1747 - 1750	24	24	260	469	658	896	1046	1264	1482	1700
1751 - 1753	24	24	259	468	657	895	1045	1263	1481	1699
1754 - 1756	24	24	258	467	656	894	1044	1262	1480	1698
1757 - 1760	24	24	257	466	655	893	1043	1261	1479	1697
1761 - 1763	24	24	256	465	654	892	1042	1260	1478	1696
1764 - 1766	24	24	255	464	653	891	1041	1259	1477	1695
1767 - 1770	24	24	254	463	652	890	1040	1258	1476	1694
1771 - 1773	24	24	253	462	651	889	1039	1257	1475	1693
1774 - 1776	24	24	252	461	650	888	1038	1256	1474	1692
1777 - 1780	24	24	251	460	649	887	1037	1255	1473	1691
1781 - 1783	24	24	250	459	648	886	1036	1254	1472	1690
1784 - 1786	24	24	249	458	647	885	1035	1253	1471	1689
1787 - 1790	24	24	248	457	646	884	1034	1252	1470	1688
1791 - 1793	24	24	247	456	645	883	1033	1251	1469	1687
1794 - 1796	24	24	246	455	644	882	1032	1250	1468	1686
1797 - 1800	24	24	245	454	643	881	1031	1249	1467	1685
1801 - 1803	24	24	244	453	642	880	1030	1248	1466	1684
1804 - 1806	24	24	243	452	641	879	1029	1247	1465	1683
1807 - 1810	24	24	242	451	640	878	1028	1246	1464	1682
1811 - 1813	24	24	241	450	639	877	1027	1245	1463	1681
1814 - 1816	24	24	240	449	638	876	1026	1244	1462	1680
1817 - 1820	24	24	239	448	637	875	1025	1243	1461	1679

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
1821 - 1823	24	24	238	447	636	874	1024	1242	1460	1678
1824 - 1826	24	24	237	446	635	873	1023	1241	1459	1677
1827 - 1830	24	24	236	445	634	872	1022	1240	1458	1676
1831 - 1833	24	24	235	444	633	871	1021	1239	1457	1675
1834 - 1836	24	24	234	443	632	870	1020	1238	1456	1674
1837 - 1840	24	24	233	442	631	869	1019	1237	1455	1673
1841 - 1843	24	24	232	441	630	868	1018	1236	1454	1672
1844 - 1846	24	24	231	440	629	867	1017	1235	1453	1671
1847 - 1850	24	24	230	439	628	866	1016	1234	1452	1670
1851 - 1853	24	24	229	438	627	865	1015	1233	1451	1669
1854 - 1856	24	24	228	437	626	864	1014	1232	1450	1668
1857 - 1860	24	24	227	436	625	863	1013	1231	1449	1667
1861 - 1863	24	24	226	435	624	862	1012	1230	1448	1666
1864 - 1866	24	24	225	434	623	861	1011	1229	1447	1665
1867 - 1870	24	24	224	433	622	860	1010	1228	1446	1664
1871 - 1873	24	24	223	432	621	859	1009	1227	1445	1663
1874 - 1876	24	24	222	431	620	858	1008	1226	1444	1662
1877 - 1880	24	24	221	430	619	857	1007	1225	1443	1661
1881 - 1883	24	24	220	429	618	856	1006	1224	1442	1660
1884 - 1886	24	24	219	428	617	855	1005	1223	1441	1659
1887 - 1890	24	24	218	427	616	854	1004	1222	1440	1658
1891 - 1893	24	24	217	426	615	853	1003	1221	1439	1657
1894 - 1896	24	24	216	425	614	852	1002	1220	1438	1656
1897 - 1900	24	24	215	424	613	851	1001	1219	1437	1655
1901 - 1903	24	24	214	423	612	850	1000	1218	1436	1654

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
1904 - 1906	24	24	213	422	611	849	999	1217	1435	1653
1907 - 1910	24	24	212	421	610	848	998	1216	1434	1652
1911 - 1913	24	24	211	420	609	847	997	1215	1433	1651
1914 - 1916	24	24	210	419	608	846	996	1214	1432	1650
1917 - 1920	24	24	209	418	607	845	995	1213	1431	1649
1921 - 1923	24	24	208	417	606	844	994	1212	1430	1648
1924 - 1926	24	24	207	416	605	843	993	1211	1429	1647
1927 - 1930	24	24	206	415	604	842	992	1210	1428	1646
1931 - 1933	24	24	205	414	603	841	991	1209	1427	1645
1934 - 1936	24	24	204	413	602	840	990	1208	1426	1644
1937 - 1940	24	24	203	412	601	839	989	1207	1425	1643
1941 - 1943	24	24	202	411	600	838	988	1206	1424	1642
1944 - 1946	24	24	201	410	599	837	987	1205	1423	1641
1947 - 1950	24	24	200	409	598	836	986	1204	1422	1640
1951 - 1953	24	24	199	408	597	835	985	1203	1421	1639
1954 - 1956	24	24	198	407	596	834	984	1202	1420	1638
1957 - 1960	24	24	197	406	595	833	983	1201	1419	1637
1961 - 1963	24	24	196	405	594	832	982	1200	1418	1636
1964 - 1966	24	24	195	404	593	831	981	1199	1417	1635
1967 - 1970	24	24	194	403	592	830	980	1198	1416	1634
1971 - 1973	24	24	193	402	591	829	979	1197	1415	1633
1974 - 1976	24	24	192	401	590	828	978	1196	1414	1632
1977 - 1980	24	24	191	400	589	827	977	1195	1413	1631
1981 - 1983	24	24	190	399	588	826	976	1194	1412	1630
1984 - 1986	24	24	189	398	587	825	975	1193	1411	1629

October 2025
Benefit Issuance by Household Size

Monthly Net Income			1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
1987	-	1990	24	24	188	397	586	824	974	1192	1410	1628
1991	-	1993	24	24	187	396	585	823	973	1191	1409	1627
1994	-	1996	24	24	186	395	584	822	972	1190	1408	1626
1997	-	2000	24	24	185	394	583	821	971	1189	1407	1625
2001	-	2003	24	24	184	393	582	820	970	1188	1406	1624
2004	-	2006	24	24	183	392	581	819	969	1187	1405	1623
2007	-	2010	24	24	182	391	580	818	968	1186	1404	1622
2011	-	2013	24	24	181	390	579	817	967	1185	1403	1621
2014	-	2016	24	24	180	389	578	816	966	1184	1402	1620
2017	-	2020	24	24	179	388	577	815	965	1183	1401	1619
2021	-	2023	24	24	178	387	576	814	964	1182	1400	1618
2024	-	2026	24	24	177	386	575	813	963	1181	1399	1617
2027	-	2030	24	24	176	385	574	812	962	1180	1398	1616
2031	-	2033	24	24	175	384	573	811	961	1179	1397	1615
2034	-	2036	24	24	174	383	572	810	960	1178	1396	1614
2037	-	2040	24	24	173	382	571	809	959	1177	1395	1613
2041	-	2043	24	24	172	381	570	808	958	1176	1394	1612
2044	-	2046	24	24	171	380	569	807	957	1175	1393	1611
2047	-	2050	24	24	170	379	568	806	956	1174	1392	1610
2051	-	2053	24	24	169	378	567	805	955	1173	1391	1609
2054	-	2056	24	24	168	377	566	804	954	1172	1390	1608
2057	-	2060	24	24	167	376	565	803	953	1171	1389	1607
2061	-	2063	24	24	166	375	564	802	952	1170	1388	1606
2064	-	2066	24	24	165	374	563	801	951	1169	1387	1605
2067	-	2070	24	24	164	373	562	800	950	1168	1386	1604

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
2071 - 2073	24	24	163	372	561	799	949	1167	1385	1603
2074 - 2076	24	24	162	371	560	798	948	1166	1384	1602
2077 - 2080	24	24	161	370	559	797	947	1165	1383	1601
2081 - 2083	24	24	160	369	558	796	946	1164	1382	1600
2084 - 2086	24	24	159	368	557	795	945	1163	1381	1599
2087 - 2090	24	24	158	367	556	794	944	1162	1380	1598
2091 - 2093	24	24	157	366	555	793	943	1161	1379	1597
2094 - 2096	24	24	156	365	554	792	942	1160	1378	1596
2097 - 2100	24	24	155	364	553	791	941	1159	1377	1595
2101 - 2103	24	24	154	363	552	790	940	1158	1376	1594
2104 - 2106	24	24	153	362	551	789	939	1157	1375	1593
2107 - 2110	24	24	152	361	550	788	938	1156	1374	1592
2111 - 2113	24	24	151	360	549	787	937	1155	1373	1591
2114 - 2116	24	24	150	359	548	786	936	1154	1372	1590
2117 - 2120	24	24	149	358	547	785	935	1153	1371	1589
2121 - 2123	24	24	148	357	546	784	934	1152	1370	1588
2124 - 2126	24	24	147	356	545	783	933	1151	1369	1587
2127 - 2130	24	24	146	355	544	782	932	1150	1368	1586
2131 - 2133	24	24	145	354	543	781	931	1149	1367	1585
2134 - 2136	24	24	144	353	542	780	930	1148	1366	1584
2137 - 2140	24	24	143	352	541	779	929	1147	1365	1583
2141 - 2143	24	24	142	351	540	778	928	1146	1364	1582
2144 - 2146	24	24	141	350	539	777	927	1145	1363	1581
2147 - 2150	24	24	140	349	538	776	926	1144	1362	1580

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
2151 - 2153	24	24	139	348	537	775	925	1143	1361	1579
2154 - 2156		24	138	347	536	774	924	1142	1360	1578
2157 - 2160		24	137	346	535	773	923	1141	1359	1577
2161 - 2163		24	136	345	534	772	922	1140	1358	1576
2164 - 2166		24	135	344	533	771	921	1139	1357	1575
2167 - 2170		24	134	343	532	770	920	1138	1356	1574
2171 - 2173		24	133	342	531	769	919	1137	1355	1573
2174 - 2176		24	132	341	530	768	918	1136	1354	1572
2177 - 2180		24	131	340	529	767	917	1135	1353	1571
2181 - 2183		24	130	339	528	766	916	1134	1352	1570
2184 - 2186		24	129	338	527	765	915	1133	1351	1569
2187 - 2190		24	128	337	526	764	914	1132	1350	1568
2191 - 2193		24	127	336	525	763	913	1131	1349	1567
2194 - 2196		24	126	335	524	762	912	1130	1348	1566
2197 - 2200		24	125	334	523	761	911	1129	1347	1565
2201 - 2203		24	124	333	522	760	910	1128	1346	1564
2204 - 2206		24	123	332	521	759	909	1127	1345	1563
2207 - 2210		24	122	331	520	758	908	1126	1344	1562
2211 - 2213		24	121	330	519	757	907	1125	1343	1561
2214 - 2216		24	120	329	518	756	906	1124	1342	1560
2217 - 2220		24	119	328	517	755	905	1123	1341	1559
2221 - 2223		24	118	327	516	754	904	1122	1340	1558
2224 - 2226		24	117	326	515	753	903	1121	1339	1557
2227 - 2230		24	116	325	514	752	902	1120	1338	1556
2231 - 2233		24	115	324	513	751	901	1119	1337	1555

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
2234 - 2236		24	114	323	512	750	900	1118	1336	1554
2237 - 2240		24	113	322	511	749	899	1117	1335	1553
2241 - 2243		24	112	321	510	748	898	1116	1334	1552
2244 - 2246		24	111	320	509	747	897	1115	1333	1551
2247 - 2250		24	110	319	508	746	896	1114	1332	1550
2251 - 2253		24	109	318	507	745	895	1113	1331	1549
2254 - 2256		24	108	317	506	744	894	1112	1330	1548
2257 - 2260		24	107	316	505	743	893	1111	1329	1547
2261 - 2263		24	106	315	504	742	892	1110	1328	1546
2264 - 2266		24	105	314	503	741	891	1109	1327	1545
2267 - 2270		24	104	313	502	740	890	1108	1326	1544
2271 - 2273		24	103	312	501	739	889	1107	1325	1543
2274 - 2276		24	102	311	500	738	888	1106	1324	1542
2277 - 2280		24	101	310	499	737	887	1105	1323	1541
2281 - 2283		24	100	309	498	736	886	1104	1322	1540
2284 - 2286		24	99	308	497	735	885	1103	1321	1539
2287 - 2290		24	98	307	496	734	884	1102	1320	1538
2291 - 2293		24	97	306	495	733	883	1101	1319	1537
2294 - 2296		24	96	305	494	732	882	1100	1318	1536
2297 - 2300		24	95	304	493	731	881	1099	1317	1535
2301 - 2303		24	94	303	492	730	880	1098	1316	1534
2304 - 2306		24	93	302	491	729	879	1097	1315	1533
2307 - 2310		24	92	301	490	728	878	1096	1314	1532
2311 - 2313		24	91	300	489	727	877	1095	1313	1531
2314 - 2316		24	90	299	488	726	876	1094	1312	1530

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
2317 - 2320		24	89	298	487	725	875	1093	1311	1529
2321 - 2323		24	88	297	486	724	874	1092	1310	1528
2324 - 2326		24	87	296	485	723	873	1091	1309	1527
2327 - 2330		24	86	295	484	722	872	1090	1308	1526
2331 - 2333		24	85	294	483	721	871	1089	1307	1525
2334 - 2336		24	84	293	482	720	870	1088	1306	1524
2337 - 2340		24	83	292	481	719	869	1087	1305	1523
2341 - 2343		24	82	291	480	718	868	1086	1304	1522
2344 - 2346		24	81	290	479	717	867	1085	1303	1521
2347 - 2350		24	80	289	478	716	866	1084	1302	1520
2351 - 2353		24	79	288	477	715	865	1083	1301	1519
2354 - 2356		24	78	287	476	714	864	1082	1300	1518
2357 - 2360		24	77	286	475	713	863	1081	1299	1517
2361 - 2363		24	76	285	474	712	862	1080	1298	1516
2364 - 2366		24	75	284	473	711	861	1079	1297	1515
2367 - 2370		24	74	283	472	710	860	1078	1296	1514
2371 - 2373		24	73	282	471	709	859	1077	1295	1513
2374 - 2376		24	72	281	470	708	858	1076	1294	1512
2377 - 2380		24	71	280	469	707	857	1075	1293	1511
2381 - 2383		24	70	279	468	706	856	1074	1292	1510
2384 - 2386		24	69	278	467	705	855	1073	1291	1509
2387 - 2390		24	68	277	466	704	854	1072	1290	1508
2391 - 2393		24	67	276	465	703	853	1071	1289	1507
2394 - 2396		24	66	275	464	702	852	1070	1288	1506
2397 - 2400		24	65	274	463	701	851	1069	1287	1505

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
2401 - 2403		24	64	273	462	700	850	1068	1286	1504
2404 - 2406		24	63	272	461	699	849	1067	1285	1503
2407 - 2410		24	62	271	460	698	848	1066	1284	1502
2411 - 2413		24	61	270	459	697	847	1065	1283	1501
2414 - 2416		24	60	269	458	696	846	1064	1282	1500
2417 - 2420		24	59	268	457	695	845	1063	1281	1499
2421 - 2423		24	58	267	456	694	844	1062	1280	1498
2424 - 2426		24	57	266	455	693	843	1061	1279	1497
2427 - 2430		24	56	265	454	692	842	1060	1278	1496
2431 - 2433		24	55	264	453	691	841	1059	1277	1495
2434 - 2436		24	54	263	452	690	840	1058	1276	1494
2437 - 2440		24	53	262	451	689	839	1057	1275	1493
2441 - 2443		24	52	261	450	688	838	1056	1274	1492
2444 - 2446		24	51	260	449	687	837	1055	1273	1491
2447 - 2450		24	50	259	448	686	836	1054	1272	1490
2451 - 2453		24	49	258	447	685	835	1053	1271	1489
2454 - 2456		24	48	257	446	684	834	1052	1270	1488
2457 - 2460		24	47	256	445	683	833	1051	1269	1487
2461 - 2463		24	46	255	444	682	832	1050	1268	1486
2464 - 2466		24	45	254	443	681	831	1049	1267	1485
2467 - 2470		24	44	253	442	680	830	1048	1266	1484
2471 - 2473		24	43	252	441	679	829	1047	1265	1483
2474 - 2476		24	42	251	440	678	828	1046	1264	1482
2477 - 2480		24	41	250	439	677	827	1045	1263	1481
2481 - 2483		24	40	249	438	676	826	1044	1262	1480

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
2484 - 2486		24	39	248	437	675	825	1043	1261	1479
2487 - 2490		24	38	247	436	674	824	1042	1260	1478
2491 - 2493		24	37	246	435	673	823	1041	1259	1477
2494 - 2496		24	36	245	434	672	822	1040	1258	1476
2497 - 2500		24	35	244	433	671	821	1039	1257	1475
2501 - 2503		24	34	243	432	670	820	1038	1256	1474
2504 - 2506		24	33	242	431	669	819	1037	1255	1473
2507 - 2510		24	32	241	430	668	818	1036	1254	1472
2511 - 2513		24	31	240	429	667	817	1035	1253	1471
2514 - 2516		24	30	239	428	666	816	1034	1252	1470
2517 - 2520		24	29	238	427	665	815	1033	1251	1469
2521 - 2523		24	28	237	426	664	814	1032	1250	1468
2524 - 2526		24	27	236	425	663	813	1031	1249	1467
2527 - 2530		24	26	235	424	662	812	1030	1248	1466
2531 - 2533		24	25	234	423	661	811	1029	1247	1465
2534 - 2536		24	24	233	422	660	810	1028	1246	1464
2537 - 2540		24	23	232	421	659	809	1027	1245	1463
2541 - 2543		24	22	231	420	658	808	1026	1244	1462
2544 - 2546		24	21	230	419	657	807	1025	1243	1461
2547 - 2550		24	20	229	418	656	806	1024	1242	1460
2551 - 2553		24	19	228	417	655	805	1023	1241	1459
2554 - 2556		24	18	227	416	654	804	1022	1240	1458
2557 - 2560		24	17	226	415	653	803	1021	1239	1457
2561 - 2563		24	16	225	414	652	802	1020	1238	1456
2564 - 2566		24	15	224	413	651	801	1019	1237	1455

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
2567 - 2570		24	14	223	412	650	800	1018	1236	1454
2571 - 2573		24	13	222	411	649	799	1017	1235	1453
2574 - 2576		24	12	221	410	648	798	1016	1234	1452
2577 - 2580		24	11	220	409	647	797	1015	1233	1451
2581 - 2583		24	10	219	408	646	796	1014	1232	1450
2584 - 2586		24	9	218	407	645	795	1013	1231	1449
2587 - 2590		24	8	217	406	644	794	1012	1230	1448
2591 - 2593		24	7	216	405	643	793	1011	1229	1447
2594 - 2596		24	6	215	404	642	792	1010	1228	1446
2597 - 2600		24	5	214	403	641	791	1009	1227	1445
2601 - 2603		24	4	213	402	640	790	1008	1226	1444
2604 - 2606		24	3	212	401	639	789	1007	1225	1443
2607 - 2610		24	2	211	400	638	788	1006	1224	1442
2611 - 2613		24	1	210	399	637	787	1005	1223	1441
2614 - 2616		24		209	398	636	786	1004	1222	1440
2617 - 2620		24		208	397	635	785	1003	1221	1439
2621 - 2623		24		207	396	634	784	1002	1220	1438
2624 - 2626		24		206	395	633	783	1001	1219	1437
2627 - 2630		24		205	394	632	782	1000	1218	1436
2631 - 2633		24		204	393	631	781	999	1217	1435
2634 - 2636		24		203	392	630	780	998	1216	1434
2637 - 2640		24		202	391	629	779	997	1215	1433
2641 - 2643		24		201	390	628	778	996	1214	1432
2644 - 2646		24		200	389	627	777	995	1213	1431
2647 - 2650		24		199	388	626	776	994	1212	1430

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
2651 - 2653		24		198	387	625	775	993	1211	1429
2654 - 2656		24		197	386	624	774	992	1210	1428
2657 - 2660		24		196	385	623	773	991	1209	1427
2661 - 2663		24		195	384	622	772	990	1208	1426
2664 - 2666		24		194	383	621	771	989	1207	1425
2667 - 2670		24		193	382	620	770	988	1206	1424
2671 - 2673		24		192	381	619	769	987	1205	1423
2674 - 2676		24		191	380	618	768	986	1204	1422
2677 - 2680		24		190	379	617	767	985	1203	1421
2681 - 2683		24		189	378	616	766	984	1202	1420
2684 - 2686		24		188	377	615	765	983	1201	1419
2687 - 2690		24		187	376	614	764	982	1200	1418
2691 - 2693		24		186	375	613	763	981	1199	1417
2694 - 2696		24		185	374	612	762	980	1198	1416
2697 - 2700		24		184	373	611	761	979	1197	1415
2701 - 2703		24		183	372	610	760	978	1196	1414
2704 - 2706		24		182	371	609	759	977	1195	1413
2707 - 2710		24		181	370	608	758	976	1194	1412
2711 - 2713		24		180	369	607	757	975	1193	1411
2714 - 2716		24		179	368	606	756	974	1192	1410
2717 - 2720		24		178	367	605	755	973	1191	1409
2721 - 2723		24		177	366	604	754	972	1190	1408
2724 - 2726		24		176	365	603	753	971	1189	1407
2727 - 2730		24		175	364	602	752	970	1188	1406

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
2731 - 2733		24		174	363	601	751	969	1187	1405
2734 - 2736		24		173	362	600	750	968	1186	1404
2737 - 2740		24		172	361	599	749	967	1185	1403
2741 - 2743		24		171	360	598	748	966	1184	1402
2744 - 2746		24		170	359	597	747	965	1183	1401
2747 - 2750		24		169	358	596	746	964	1182	1400
2751 - 2753		24		168	357	595	745	963	1181	1399
2754 - 2756		24		167	356	594	744	962	1180	1398
2757 - 2760		24		166	355	593	743	961	1179	1397
2761 - 2763		24		165	354	592	742	960	1178	1396
2764 - 2766		24		164	353	591	741	959	1177	1395
2767 - 2770		24		163	352	590	740	958	1176	1394
2771 - 2773		24		162	351	589	739	957	1175	1393
2774 - 2776		24		161	350	588	738	956	1174	1392
2777 - 2780		24		160	349	587	737	955	1173	1391
2781 - 2783		24		159	348	586	736	954	1172	1390
2784 - 2786		24		158	347	585	735	953	1171	1389
2787 - 2790		24		157	346	584	734	952	1170	1388
2791 - 2793		24		156	345	583	733	951	1169	1387
2794 - 2796		24		155	344	582	732	950	1168	1386
2797 - 2800		24		154	343	581	731	949	1167	1385
2801 - 2803		24		153	342	580	730	948	1166	1384
2804 - 2806		24		152	341	579	729	947	1165	1383
2807 - 2810		24		151	340	578	728	946	1164	1382
2811 - 2813		24		150	339	577	727	945	1163	1381

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
2814 - 2816		24		149	338	576	726	944	1162	1380
2817 - 2820		24		148	337	575	725	943	1161	1379
2821 - 2823		24		147	336	574	724	942	1160	1378
2824 - 2826		24		146	335	573	723	941	1159	1377
2827 - 2830		24		145	334	572	722	940	1158	1376
2831 - 2833		24		144	333	571	721	939	1157	1375
2834 - 2836		24		143	332	570	720	938	1156	1374
2837 - 2840		24		142	331	569	719	937	1155	1373
2841 - 2843		24		141	330	568	718	936	1154	1372
2844 - 2846		24		140	329	567	717	935	1153	1371
2847 - 2850		24		139	328	566	716	934	1152	1370
2851 - 2853		24		138	327	565	715	933	1151	1369
2854 - 2856		24		137	326	564	714	932	1150	1368
2857 - 2860		24		136	325	563	713	931	1149	1367
2861 - 2863		24		135	324	562	712	930	1148	1366
2864 - 2866		24		134	323	561	711	929	1147	1365
2867 - 2870		24		133	322	560	710	928	1146	1364
2871 - 2873		24		132	321	559	709	927	1145	1363
2874 - 2876		24		131	320	558	708	926	1144	1362
2877 - 2880		24		130	319	557	707	925	1143	1361
2881 - 2883		24		129	318	556	706	924	1142	1360
2884 - 2886		24		128	317	555	705	923	1141	1359
2887 - 2890		24		127	316	554	704	922	1140	1358
2891 - 2893		24		126	315	553	703	921	1139	1357
2894 - 2896		24		125	314	552	702	920	1138	1356

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
2897 - 2900		24		124	313	551	701	919	1137	1355
2901 - 2903		24		123	312	550	700	918	1136	1354
2904 - 2906		24		122	311	549	699	917	1135	1353
2907 - 2910		24		121	310	548	698	916	1134	1352
2911 - 2913				120	309	547	697	915	1133	1351
2914 - 2916				119	308	546	696	914	1132	1350
2917 - 2920				118	307	545	695	913	1131	1349
2921 - 2923				117	306	544	694	912	1130	1348
2924 - 2926				116	305	543	693	911	1129	1347
2927 - 2930				115	304	542	692	910	1128	1346
2931 - 2933				114	303	541	691	909	1127	1345
2934 - 2936				113	302	540	690	908	1126	1344
2937 - 2940				112	301	539	689	907	1125	1343
2941 - 2943				111	300	538	688	906	1124	1342
2944 - 2946				110	299	537	687	905	1123	1341
2947 - 2950				109	298	536	686	904	1122	1340
2951 - 2953				108	297	535	685	903	1121	1339
2954 - 2956				107	296	534	684	902	1120	1338
2957 - 2960				106	295	533	683	901	1119	1337
2961 - 2963				105	294	532	682	900	1118	1336
2964 - 2966				104	293	531	681	899	1117	1335
2967 - 2970				103	292	530	680	898	1116	1334
2971 - 2973				102	291	529	679	897	1115	1333
2974 - 2976				101	290	528	678	896	1114	1332
2977 - 2980				100	289	527	677	895	1113	1331

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
2981 - 2983				99	288	526	676	894	1112	1330
2984 - 2986				98	287	525	675	893	1111	1329
2987 - 2990				97	286	524	674	892	1110	1328
2991 - 2993				96	285	523	673	891	1109	1327
2994 - 2996				95	284	522	672	890	1108	1326
2997 - 3000				94	283	521	671	889	1107	1325
3001 - 3003				93	282	520	670	888	1106	1324
3004 - 3006				92	281	519	669	887	1105	1323
3007 - 3010				91	280	518	668	886	1104	1322
3011 - 3013				90	279	517	667	885	1103	1321
3014 - 3016				89	278	516	666	884	1102	1320
3017 - 3020				88	277	515	665	883	1101	1319
3021 - 3023				87	276	514	664	882	1100	1318
3024 - 3026				86	275	513	663	881	1099	1317
3027 - 3030				85	274	512	662	880	1098	1316
3031 - 3033				84	273	511	661	879	1097	1315
3034 - 3036				83	272	510	660	878	1096	1314
3037 - 3040				82	271	509	659	877	1095	1313
3041 - 3043				81	270	508	658	876	1094	1312
3044 - 3046				80	269	507	657	875	1093	1311
3047 - 3050				79	268	506	656	874	1092	1310
3051 - 3053				78	267	505	655	873	1091	1309
3054 - 3056				77	266	504	654	872	1090	1308
3057 - 3060				76	265	503	653	871	1089	1307
3061 - 3063				75	264	502	652	870	1088	1306

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
3064 - 3066				74	263	501	651	869	1087	1305
3067 - 3070				73	262	500	650	868	1086	1304
3071 - 3073				72	261	499	649	867	1085	1303
3074 - 3076				71	260	498	648	866	1084	1302
3077 - 3080				70	259	497	647	865	1083	1301
3081 - 3083				69	258	496	646	864	1082	1300
3084 - 3086				68	257	495	645	863	1081	1299
3087 - 3090				67	256	494	644	862	1080	1298
3091 - 3093				66	255	493	643	861	1079	1297
3094 - 3096				65	254	492	642	860	1078	1296
3097 - 3100				64	253	491	641	859	1077	1295
3101 - 3103				63	252	490	640	858	1076	1294
3104 - 3106				62	251	489	639	857	1075	1293
3107 - 3110				61	250	488	638	856	1074	1292
3111 - 3113				60	249	487	637	855	1073	1291
3114 - 3116				59	248	486	636	854	1072	1290
3117 - 3120				58	247	485	635	853	1071	1289
3121 - 3123				57	246	484	634	852	1070	1288
3124 - 3126				56	245	483	633	851	1069	1287
3127 - 3130				55	244	482	632	850	1068	1286
3131 - 3133				54	243	481	631	849	1067	1285
3134 - 3136				53	242	480	630	848	1066	1284
3137 - 3140				52	241	479	629	847	1065	1283
3141 - 3143				51	240	478	628	846	1064	1282
3144 - 3146				50	239	477	627	845	1063	1281

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
3147 - 3150				49	238	476	626	844	1062	1280
3151 - 3153				48	237	475	625	843	1061	1279
3154 - 3156				47	236	474	624	842	1060	1278
3157 - 3160				46	235	473	623	841	1059	1277
3161 - 3163				45	234	472	622	840	1058	1276
3164 - 3166				44	233	471	621	839	1057	1275
3167 - 3170				43	232	470	620	838	1056	1274
3171 - 3173				42	231	469	619	837	1055	1273
3174 - 3176				41	230	468	618	836	1054	1272
3177 - 3180				40	229	467	617	835	1053	1271
3181 - 3183				39	228	466	616	834	1052	1270
3184 - 3186				38	227	465	615	833	1051	1269
3187 - 3190				37	226	464	614	832	1050	1268
3191 - 3193				36	225	463	613	831	1049	1267
3194 - 3196				35	224	462	612	830	1048	1266
3197 - 3200				34	223	461	611	829	1047	1265
3201 - 3203				33	222	460	610	828	1046	1264
3204 - 3206				32	221	459	609	827	1045	1263
3207 - 3210				31	220	458	608	826	1044	1262
3211 - 3213				30	219	457	607	825	1043	1261
3214 - 3216				29	218	456	606	824	1042	1260
3217 - 3220				28	217	455	605	823	1041	1259
3221 - 3223				27	216	454	604	822	1040	1258
3224 - 3226				26	215	453	603	821	1039	1257
3227 - 3230				25	214	452	602	820	1038	1256

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
3231 - 3233				24	213	451	601	819	1037	1255
3234 - 3236				23	212	450	600	818	1036	1254
3237 - 3240				22	211	449	599	817	1035	1253
3241 - 3243				21	210	448	598	816	1034	1252
3244 - 3246				20	209	447	597	815	1033	1251
3247 - 3250				19	208	446	596	814	1032	1250
3251 - 3253				18	207	445	595	813	1031	1249
3254 - 3256				17	206	444	594	812	1030	1248
3257 - 3260				16	205	443	593	811	1029	1247
3261 - 3263				15	204	442	592	810	1028	1246
3264 - 3266				14	203	441	591	809	1027	1245
3267 - 3270				13	202	440	590	808	1026	1244
3271 - 3273				12	201	439	589	807	1025	1243
3274 - 3276				11	200	438	588	806	1024	1242
3277 - 3280				10	199	437	587	805	1023	1241
3281 - 3283				9	198	436	586	804	1022	1240
3284 - 3286				8	197	435	585	803	1021	1239
3287 - 3290				7	196	434	584	802	1020	1238
3291 - 3293				6	195	433	583	801	1019	1237
3294 - 3296				5	194	432	582	800	1018	1236
3297 - 3300				4	193	431	581	799	1017	1235
3301 - 3303				3	192	430	580	798	1016	1234
3304 - 3306				2	191	429	579	797	1015	1233
3307 - 3310				1	190	428	578	796	1014	1232

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
3311 - 3313					189	427	577	795	1013	1231
3314 - 3316					188	426	576	794	1012	1230
3317 - 3320					187	425	575	793	1011	1229
3321 - 3323					186	424	574	792	1010	1228
3324 - 3326					185	423	573	791	1009	1227
3327 - 3330					184	422	572	790	1008	1226
3331 - 3333					183	421	571	789	1007	1225
3334 - 3336					182	420	570	788	1006	1224
3337 - 3340					181	419	569	787	1005	1223
3341 - 3343					180	418	568	786	1004	1222
3344 - 3346					179	417	567	785	1003	1221
3347 - 3350					178	416	566	784	1002	1220
3351 - 3353					177	415	565	783	1001	1219
3354 - 3356					176	414	564	782	1000	1218
3357 - 3360					175	413	563	781	999	1217
3361 - 3363					174	412	562	780	998	1216
3364 - 3366					173	411	561	779	997	1215
3367 - 3370					172	410	560	778	996	1214
3371 - 3373					171	409	559	777	995	1213
3374 - 3376					170	408	558	776	994	1212
3377 - 3380					169	407	557	775	993	1211
3381 - 3383					168	406	556	774	992	1210
3384 - 3386					167	405	555	773	991	1209
3387 - 3390					166	404	554	772	990	1208
3391 - 3393					165	403	553	771	989	1207

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Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
3394 - 3396					164	402	552	770	988	1206
3397 - 3400					163	401	551	769	987	1205
3401 - 3403					162	400	550	768	986	1204
3404 - 3406					161	399	549	767	985	1203
3407 - 3410					160	398	548	766	984	1202
3411 - 3413					159	397	547	765	983	1201
3414 - 3416					158	396	546	764	982	1200
3417 - 3420					157	395	545	763	981	1199
3421 - 3423					156	394	544	762	980	1198
3424 - 3426					155	393	543	761	979	1197
3427 - 3430					154	392	542	760	978	1196
3431 - 3433					153	391	541	759	977	1195
3434 - 3436					152	390	540	758	976	1194
3437 - 3440					151	389	539	757	975	1193
3441 - 3443					150	388	538	756	974	1192
3444 - 3446					149	387	537	755	973	1191
3447 - 3450					148	386	536	754	972	1190
3451 - 3453					147	385	535	753	971	1189
3454 - 3456					146	384	534	752	970	1188
3457 - 3460					145	383	533	751	969	1187
3461 - 3463					144	382	532	750	968	1186
3464 - 3466					143	381	531	749	967	1185
3467 - 3470					142	380	530	748	966	1184
3471 - 3473					141	379	529	747	965	1183
3474 - 3476					140	378	528	746	964	1182

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
3477 - 3480					139	377	527	745	963	1181
3481 - 3483					138	376	526	744	962	1180
3484 - 3486					137	375	525	743	961	1179
3487 - 3490					136	374	524	742	960	1178
3491 - 3493					135	373	523	741	959	1177
3494 - 3496					134	372	522	740	958	1176
3497 - 3500					133	371	521	739	957	1175
3501 - 3503					132	370	520	738	956	1174
3504 - 3506					131	369	519	737	955	1173
3507 - 3510					130	368	518	736	954	1172
3511 - 3513					129	367	517	735	953	1171
3514 - 3516					128	366	516	734	952	1170
3517 - 3520					127	365	515	733	951	1169
3521 - 3523					126	364	514	732	950	1168
3524 - 3526					125	363	513	731	949	1167
3527 - 3530					124	362	512	730	948	1166
3531 - 3533					123	361	511	729	947	1165
3534 - 3536					122	360	510	728	946	1164
3537 - 3540					121	359	509	727	945	1163
3541 - 3543					120	358	508	726	944	1162
3544 - 3546					119	357	507	725	943	1161
3547 - 3550					118	356	506	724	942	1160
3551 - 3553					117	355	505	723	941	1159
3554 - 3556					116	354	504	722	940	1158
3557 - 3560					115	353	503	721	939	1157

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
3561 - 3563					114	352	502	720	938	1156
3564 - 3566					113	351	501	719	937	1155
3567 - 3570					112	350	500	718	936	1154
3571 - 3573					111	349	499	717	935	1153
3574 - 3576					110	348	498	716	934	1152
3577 - 3580					109	347	497	715	933	1151
3581 - 3583					108	346	496	714	932	1150
3584 - 3586					107	345	495	713	931	1149
3587 - 3590					106	344	494	712	930	1148
3591 - 3593					105	343	493	711	929	1147
3594 - 3596					104	342	492	710	928	1146
3597 - 3600					103	341	491	709	927	1145
3601 - 3603					102	340	490	708	926	1144
3604 - 3606					101	339	489	707	925	1143
3607 - 3610					100	338	488	706	924	1142
3611 - 3613					99	337	487	705	923	1141
3614 - 3616					98	336	486	704	922	1140
3617 - 3620					97	335	485	703	921	1139
3621 - 3623					96	334	484	702	920	1138
3624 - 3626					95	333	483	701	919	1137
3627 - 3630					94	332	482	700	918	1136
3631 - 3633					93	331	481	699	917	1135
3634 - 3636					92	330	480	698	916	1134
3637 - 3640					91	329	479	697	915	1133
3641 - 3643					90	328	478	696	914	1132

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
3644 - 3646					89	327	477	695	913	1131
3647 - 3650					88	326	476	694	912	1130
3651 - 3653					87	325	475	693	911	1129
3654 - 3656					86	324	474	692	910	1128
3657 - 3660					85	323	473	691	909	1127
3661 - 3663					84	322	472	690	908	1126
3664 - 3666					83	321	471	689	907	1125
3667 - 3670					82	320	470	688	906	1124
3671 - 3673					81	319	469	687	905	1123
3674 - 3676					80	318	468	686	904	1122
3677 - 3680					79	317	467	685	903	1121
3681 - 3683					78	316	466	684	902	1120
3684 - 3686					77	315	465	683	901	1119
3687 - 3690					76	314	464	682	900	1118
3691 - 3693					75	313	463	681	899	1117
3694 - 3696					74	312	462	680	898	1116
3697 - 3700					73	311	461	679	897	1115
3701 - 3703					72	310	460	678	896	1114
3704 - 3706					71	309	459	677	895	1113
3707 - 3710					70	308	458	676	894	1112
3711 - 3713					69	307	457	675	893	1111
3714 - 3716					68	306	456	674	892	1110
3717 - 3720					67	305	455	673	891	1109
3721 - 3723					66	304	454	672	890	1108
3724 - 3726					65	303	453	671	889	1107

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
3727 - 3730					64	302	452	670	888	1106
3731 - 3733					63	301	451	669	887	1105
3734 - 3736					62	300	450	668	886	1104
3737 - 3740					61	299	449	667	885	1103
3741 - 3743					60	298	448	666	884	1102
3744 - 3746					59	297	447	665	883	1101
3747 - 3750					58	296	446	664	882	1100
3751 - 3753					57	295	445	663	881	1099
3754 - 3756					56	294	444	662	880	1098
3757 - 3760					55	293	443	661	879	1097
3761 - 3763					54	292	442	660	878	1096
3764 - 3766					53	291	441	659	877	1095
3767 - 3770					52	290	440	658	876	1094
3771 - 3773					51	289	439	657	875	1093
3774 - 3776					50	288	438	656	874	1092
3777 - 3780					49	287	437	655	873	1091
3781 - 3783					48	286	436	654	872	1090
3784 - 3786					47	285	435	653	871	1089
3787 - 3790					46	284	434	652	870	1088
3791 - 3793					45	283	433	651	869	1087
3794 - 3796					44	282	432	650	868	1086
3797 - 3800					43	281	431	649	867	1085
3801 - 3803					42	280	430	648	866	1084
3804 - 3806					41	279	429	647	865	1083
3807 - 3810					40	278	428	646	864	1082

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
3811 - 3813					39	277	427	645	863	1081
3814 - 3816					38	276	426	644	862	1080
3817 - 3820					37	275	425	643	861	1079
3821 - 3823					36	274	424	642	860	1078
3824 - 3826					35	273	423	641	859	1077
3827 - 3830					34	272	422	640	858	1076
3831 - 3833					33	271	421	639	857	1075
3834 - 3836					32	270	420	638	856	1074
3837 - 3840					31	269	419	637	855	1073
3841 - 3843					30	268	418	636	854	1072
3844 - 3846					29	267	417	635	853	1071
3847 - 3850					28	266	416	634	852	1070
3851 - 3853					27	265	415	633	851	1069
3854 - 3856					26	264	414	632	850	1068
3857 - 3860					25	263	413	631	849	1067
3861 - 3863					24	262	412	630	848	1066
3864 - 3866					23	261	411	629	847	1065
3867 - 3870					22	260	410	628	846	1064
3871 - 3873					21	259	409	627	845	1063
3874 - 3876					20	258	408	626	844	1062
3877 - 3880					19	257	407	625	843	1061
3881 - 3883					18	256	406	624	842	1060
3884 - 3886					17	255	405	623	841	1059
3887 - 3890					16	254	404	622	840	1058

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
3891 - 3893					15	253	403	621	839	1057
3894 - 3896					14	252	402	620	838	1056
3897 - 3900					13	251	401	619	837	1055
3901 - 3903					12	250	400	618	836	1054
3904 - 3906					11	249	399	617	835	1053
3907 - 3910					10	248	398	616	834	1052
3911 - 3913					9	247	397	615	833	1051
3914 - 3916					8	246	396	614	832	1050
3917 - 3920					7	245	395	613	831	1049
3921 - 3923					6	244	394	612	830	1048
3924 - 3926					5	243	393	611	829	1047
3927 - 3930					4	242	392	610	828	1046
3931 - 3933					3	241	391	609	827	1045
3934 - 3936					2	240	390	608	826	1044
3937 - 3940					1	239	389	607	825	1043
3941 - 3943						238	388	606	824	1042
3944 - 3946						237	387	605	823	1041
3947 - 3950						236	386	604	822	1040
3951 - 3953						235	385	603	821	1039
3954 - 3956						234	384	602	820	1038
3957 - 3960						233	383	601	819	1037
3961 - 3963						232	382	600	818	1036
3964 - 3966						231	381	599	817	1035
3967 - 3970						230	380	598	816	1034
3971 - 3973						229	379	597	815	1033

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
3974 - 3976						228	378	596	814	1032
3977 - 3980						227	377	595	813	1031
3981 - 3983						226	376	594	812	1030
3984 - 3986						225	375	593	811	1029
3987 - 3990						224	374	592	810	1028
3991 - 3993						223	373	591	809	1027
3994 - 3996						222	372	590	808	1026
3997 - 4000						221	371	589	807	1025
4001 - 4003						220	370	588	806	1024
4004 - 4006						219	369	587	805	1023
4007 - 4010						218	368	586	804	1022
4011 - 4013						217	367	585	803	1021
4014 - 4016						216	366	584	802	1020
4017 - 4020						215	365	583	801	1019
4021 - 4023						214	364	582	800	1018
4024 - 4026						213	363	581	799	1017
4027 - 4030						212	362	580	798	1016
4031 - 4033						211	361	579	797	1015
4034 - 4036						210	360	578	796	1014
4037 - 4040						209	359	577	795	1013
4041 - 4043						208	358	576	794	1012
4044 - 4046						207	357	575	793	1011
4047 - 4050						206	356	574	792	1010
4051 - 4053						205	355	573	791	1009
4054 - 4056						204	354	572	790	1008

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
4057 - 4060						203	353	571	789	1007
4061 - 4063						202	352	570	788	1006
4064 - 4066						201	351	569	787	1005
4067 - 4070						200	350	568	786	1004
4071 - 4073						199	349	567	785	1003
4074 - 4076						198	348	566	784	1002
4077 - 4080						197	347	565	783	1001
4081 - 4083						196	346	564	782	1000
4084 - 4086						195	345	563	781	999
4087 - 4090						194	344	562	780	998
4091 - 4093						193	343	561	779	997
4094 - 4096						192	342	560	778	996
4097 - 4100						191	341	559	777	995
4101 - 4103						190	340	558	776	994
4104 - 4106						189	339	557	775	993
4107 - 4110						188	338	556	774	992
4111 - 4113						187	337	555	773	991
4114 - 4116						186	336	554	772	990
4117 - 4120						185	335	553	771	989
4121 - 4123						184	334	552	770	988
4124 - 4126						183	333	551	769	987
4127 - 4130						182	332	550	768	986
4131 - 4133						181	331	549	767	985
4134 - 4136						180	330	548	766	984
4137 - 4140						179	329	547	765	983

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
4141 - 4143						178	328	546	764	982
4144 - 4146						177	327	545	763	981
4147 - 4150						176	326	544	762	980
4151 - 4153						175	325	543	761	979
4154 - 4156						174	324	542	760	978
4157 - 4160						173	323	541	759	977
4161 - 4163						172	322	540	758	976
4164 - 4166						171	321	539	757	975
4167 - 4170						170	320	538	756	974
4171 - 4173						169	319	537	755	973
4174 - 4176						168	318	536	754	972
4177 - 4180						167	317	535	753	971
4181 - 4183						166	316	534	752	970
4184 - 4186						165	315	533	751	969
4187 - 4190						164	314	532	750	968
4191 - 4193						163	313	531	749	967
4194 - 4196						162	312	530	748	966
4197 - 4200						161	311	529	747	965
4201 - 4203						160	310	528	746	964
4204 - 4206						159	309	527	745	963
4207 - 4210						158	308	526	744	962
4211 - 4213						157	307	525	743	961
4214 - 4216						156	306	524	742	960
4217 - 4220						155	305	523	741	959
4221 - 4223						154	304	522	740	958

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
4224 - 4226						153	303	521	739	957
4227 - 4230						152	302	520	738	956
4231 - 4233						151	301	519	737	955
4234 - 4236						150	300	518	736	954
4237 - 4240						149	299	517	735	953
4241 - 4243						148	298	516	734	952
4244 - 4246						147	297	515	733	951
4247 - 4250						146	296	514	732	950
4251 - 4253						145	295	513	731	949
4254 - 4256						144	294	512	730	948
4257 - 4260						143	293	511	729	947
4261 - 4263						142	292	510	728	946
4264 - 4266						141	291	509	727	945
4267 - 4270						140	290	508	726	944
4271 - 4273						139	289	507	725	943
4274 - 4276						138	288	506	724	942
4277 - 4280						137	287	505	723	941
4281 - 4283						136	286	504	722	940
4284 - 4286						135	285	503	721	939
4287 - 4290						134	284	502	720	938
4291 - 4293						133	283	501	719	937
4294 - 4296						132	282	500	718	936
4297 - 4300						131	281	499	717	935
4301 - 4303						130	280	498	716	934
4304 - 4306						129	279	497	715	933

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
4307 - 4310						128	278	496	714	932
4311 - 4313						127	277	495	713	931
4314 - 4316						126	276	494	712	930
4317 - 4320						125	275	493	711	929
4321 - 4323						124	274	492	710	928
4324 - 4326						123	273	491	709	927
4327 - 4330						122	272	490	708	926
4331 - 4333						121	271	489	707	925
4334 - 4336						120	270	488	706	924
4337 - 4340						119	269	487	705	923
4341 - 4343						118	268	486	704	922
4344 - 4346						117	267	485	703	921
4347 - 4350						116	266	484	702	920
4351 - 4353						115	265	483	701	919
4354 - 4356						114	264	482	700	918
4357 - 4360						113	263	481	699	917
4361 - 4363						112	262	480	698	916
4364 - 4366						111	261	479	697	915
4367 - 4370						110	260	478	696	914
4371 - 4373						109	259	477	695	913
4374 - 4376						108	258	476	694	912
4377 - 4380						107	257	475	693	911
4381 - 4383						106	256	474	692	910
4384 - 4386						105	255	473	691	909
4387 - 4390						104	254	472	690	908

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
4391 - 4393						103	253	471	689	907
4394 - 4396						102	252	470	688	906
4397 - 4400						101	251	469	687	905
4401 - 4403						100	250	468	686	904
4404 - 4406						99	249	467	685	903
4407 - 4410						98	248	466	684	902
4411 - 4413						97	247	465	683	901
4414 - 4416						96	246	464	682	900
4417 - 4420						95	245	463	681	899
4421 - 4423						94	244	462	680	898
4424 - 4426						93	243	461	679	897
4427 - 4430						92	242	460	678	896
4431 - 4433						91	241	459	677	895
4434 - 4436						90	240	458	676	894
4437 - 4440						89	239	457	675	893
4441 - 4443						88	238	456	674	892
4444 - 4446						87	237	455	673	891
4447 - 4450						86	236	454	672	890
4451 - 4453						85	235	453	671	889
4454 - 4456						84	234	452	670	888
4457 - 4460						83	233	451	669	887
4461 - 4463						82	232	450	668	886
4464 - 4466						81	231	449	667	885
4467 - 4470						80	230	448	666	884

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
4471 - 4473						79	229	447	665	883
4474 - 4476						78	228	446	664	882
4477 - 4480						77	227	445	663	881
4481 - 4483						76	226	444	662	880
4484 - 4486						75	225	443	661	879
4487 - 4490						74	224	442	660	878
4491 - 4493						73	223	441	659	877
4494 - 4496						72	222	440	658	876
4497 - 4500						71	221	439	657	875
4501 - 4503						70	220	438	656	874
4504 - 4506						69	219	437	655	873
4507 - 4510						68	218	436	654	872
4511 - 4513						67	217	435	653	871
4514 - 4516						66	216	434	652	870
4517 - 4520						65	215	433	651	869
4521 - 4523						64	214	432	650	868
4524 - 4526						63	213	431	649	867
4527 - 4530						62	212	430	648	866
4531 - 4533						61	211	429	647	865
4534 - 4536						60	210	428	646	864
4537 - 4540						59	209	427	645	863
4541 - 4543						58	208	426	644	862
4544 - 4546						57	207	425	643	861
4547 - 4550						56	206	424	642	860
4551 - 4553						55	205	423	641	859

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
4554 - 4556						54	204	422	640	858
4557 - 4560						53	203	421	639	857
4561 - 4563						52	202	420	638	856
4564 - 4566						51	201	419	637	855
4567 - 4570						50	200	418	636	854
4571 - 4573						49	199	417	635	853
4574 - 4576						48	198	416	634	852
4577 - 4580						47	197	415	633	851
4581 - 4583						46	196	414	632	850
4584 - 4586						45	195	413	631	849
4587 - 4590						44	194	412	630	848
4591 - 4593						43	193	411	629	847
4594 - 4596						42	192	410	628	846
4597 - 4600						41	191	409	627	845
4601 - 4603						40	190	408	626	844
4604 - 4606						39	189	407	625	843
4607 - 4610						38	188	406	624	842
4611 - 4613						37	187	405	623	841
4614 - 4616						36	186	404	622	840
4617 - 4620						35	185	403	621	839
4621 - 4623						34	184	402	620	838
4624 - 4626						33	183	401	619	837
4627 - 4630						32	182	400	618	836
4631 - 4633						31	181	399	617	835
4634 - 4636						30	180	398	616	834

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
4637 - 4640						29	179	397	615	833
4641 - 4643						28	178	396	614	832
4644 - 4646						27	177	395	613	831
4647 - 4650						26	176	394	612	830
4651 - 4653						25	175	393	611	829
4654 - 4656						24	174	392	610	828
4657 - 4660						23	173	391	609	827
4661 - 4663						22	172	390	608	826
4664 - 4666						21	171	389	607	825
4667 - 4670						20	170	388	606	824
4671 - 4673						19	169	387	605	823
4674 - 4676						18	168	386	604	822
4677 - 4680						17	167	385	603	821
4681 - 4683						16	166	384	602	820
4684 - 4686						15	165	383	601	819
4687 - 4690						14	164	382	600	818
4691 - 4693						13	163	381	599	817
4694 - 4696						12	162	380	598	816
4697 - 4700						11	161	379	597	815
4701 - 4703						10	160	378	596	814
4704 - 4706						9	159	377	595	813
4707 - 4710						8	158	376	594	812
4711 - 4713						7	157	375	593	811
4714 - 4716						6	156	374	592	810
4717 - 4720						5	155	373	591	809

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
4721 - 4723						4	154	372	590	808
4724 - 4726						3	153	371	589	807
4727 - 4730						2	152	370	588	806
4731 - 4733						1	151	369	587	805
4734 - 4736							150	368	586	804
4737 - 4740							149	367	585	803
4741 - 4743							148	366	584	802
4744 - 4746							147	365	583	801
4747 - 4750							146	364	582	800
4751 - 4753							145	363	581	799
4754 - 4756							144	362	580	798
4757 - 4760							143	361	579	797
4761 - 4763							142	360	578	796
4764 - 4766							141	359	577	795
4767 - 4770							140	358	576	794
4771 - 4773							139	357	575	793
4774 - 4776							138	356	574	792
4777 - 4780							137	355	573	791
4781 - 4783							136	354	572	790
4784 - 4786							135	353	571	789
4787 - 4790							134	352	570	788
4791 - 4793							133	351	569	787
4794 - 4796							132	350	568	786
4797 - 4800							131	349	567	785
4801 - 4803							130	348	566	784

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
4804 - 4806							129	347	565	783
4807 - 4810							128	346	564	782
4811 - 4813							127	345	563	781
4814 - 4816							126	344	562	780
4817 - 4820							125	343	561	779
4821 - 4823							124	342	560	778
4824 - 4826							123	341	559	777
4827 - 4830							122	340	558	776
4831 - 4833							121	339	557	775
4834 - 4836							120	338	556	774
4837 - 4840							119	337	555	773
4841 - 4843							118	336	554	772
4844 - 4846							117	335	553	771
4847 - 4850							116	334	552	770
4851 - 4853							115	333	551	769
4854 - 4856							114	332	550	768
4857 - 4860							113	331	549	767
4861 - 4863							112	330	548	766
4864 - 4866							111	329	547	765
4867 - 4870							110	328	546	764
4871 - 4873							109	327	545	763
4874 - 4876							108	326	544	762
4877 - 4880							107	325	543	761
4881 - 4883							106	324	542	760
4884 - 4886							105	323	541	759

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
4887 - 4890							104	322	540	758
4891 - 4893							103	321	539	757
4894 - 4896							102	320	538	756
4897 - 4900							101	319	537	755
4901 - 4903							100	318	536	754
4904 - 4906							99	317	535	753
4907 - 4910							98	316	534	752
4911 - 4913							97	315	533	751
4914 - 4916							96	314	532	750
4917 - 4920							95	313	531	749
4921 - 4923							94	312	530	748
4924 - 4926							93	311	529	747
4927 - 4930							92	310	528	746
4931 - 4933							91	309	527	745
4934 - 4936							90	308	526	744
4937 - 4940							89	307	525	743
4941 - 4943							88	306	524	742
4944 - 4946							87	305	523	741
4947 - 4950							86	304	522	740
4951 - 4953							85	303	521	739
4954 - 4956							84	302	520	738
4957 - 4960							83	301	519	737
4961 - 4963							82	300	518	736
4964 - 4966							81	299	517	735
4967 - 4970							80	298	516	734

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
4971 - 4973							79	297	515	733
4974 - 4976							78	296	514	732
4977 - 4980							77	295	513	731
4981 - 4983							76	294	512	730
4984 - 4986							75	293	511	729
4987 - 4990							74	292	510	728
4991 - 4993							73	291	509	727
4994 - 4996							72	290	508	726
4997 - 5000							71	289	507	725
5001 - 5003							70	288	506	724
5004 - 5006							69	287	505	723
5007 - 5010							68	286	504	722
5011 - 5013							67	285	503	721
5014 - 5016							66	284	502	720
5017 - 5020							65	283	501	719
5021 - 5023							64	282	500	718
5024 - 5026							63	281	499	717
5027 - 5030							62	280	498	716
5031 - 5033							61	279	497	715
5034 - 5036							60	278	496	714
5037 - 5040							59	277	495	713
5041 - 5043							58	276	494	712
5044 - 5046							57	275	493	711
5047 - 5050							56	274	492	710

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
5051 - 5053							55	273	491	709
5054 - 5056							54	272	490	708
5057 - 5060							53	271	489	707
5061 - 5063							52	270	488	706
5064 - 5066							51	269	487	705
5067 - 5070							50	268	486	704
5071 - 5073							49	267	485	703
5074 - 5076							48	266	484	702
5077 - 5080							47	265	483	701
5081 - 5083							46	264	482	700
5084 - 5086							45	263	481	699
5087 - 5090							44	262	480	698
5091 - 5093							43	261	479	697
5094 - 5096							42	260	478	696
5097 - 5100							41	259	477	695
5101 - 5103							40	258	476	694
5104 - 5106							39	257	475	693
5107 - 5110							38	256	474	692
5111 - 5113							37	255	473	691
5114 - 5116							36	254	472	690
5117 - 5120							35	253	471	689
5121 - 5123							34	252	470	688
5124 - 5126							33	251	469	687
5127 - 5130							32	250	468	686
5131 - 5133							31	249	467	685

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
5134 - 5136							30	248	466	684
5137 - 5140							29	247	465	683
5141 - 5143							28	246	464	682
5144 - 5146							27	245	463	681
5147 - 5150							26	244	462	680
5151 - 5153							25	243	461	679
5154 - 5156							24	242	460	678
5157 - 5160							23	241	459	677
5161 - 5163							22	240	458	676
5164 - 5166							21	239	457	675
5167 - 5170							20	238	456	674
5171 - 5173							19	237	455	673
5174 - 5176							18	236	454	672
5177 - 5180							17	235	453	671
5181 - 5183							16	234	452	670
5184 - 5186							15	233	451	669
5187 - 5190							14	232	450	668
5191 - 5193							13	231	449	667
5194 - 5196							12	230	448	666
5197 - 5200							11	229	447	665
5201 - 5203							10	228	446	664
5204 - 5206							9	227	445	663
5207 - 5210							8	226	444	662
5211 - 5213							7	225	443	661
5214 - 5216							6	224	442	660

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
5217 - 5220							5	223	441	659
5221 - 5223							4	222	440	658
5224 - 5226							3	221	439	657
5227 - 5230							2	220	438	656
5231 - 5233							1	219	437	655
5234 - 5236								218	436	654
5237 - 5240								217	435	653
5241 - 5243								216	434	652
5244 - 5246								215	433	651
5247 - 5250								214	432	650
5251 - 5253								213	431	649
5254 - 5256								212	430	648
5257 - 5260								211	429	647
5261 - 5263								210	428	646
5264 - 5266								209	427	645
5267 - 5270								208	426	644
5271 - 5273								207	425	643
5274 - 5276								206	424	642
5277 - 5280								205	423	641
5281 - 5283								204	422	640
5284 - 5286								203	421	639
5287 - 5290								202	420	638
5291 - 5293								201	419	637
5294 - 5296								200	418	636
5297 - 5300								199	417	635

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
5301 - 5303								198	416	634
5304 - 5306								197	415	633
5307 - 5310								196	414	632
5311 - 5313								195	413	631
5314 - 5316								194	412	630
5317 - 5320								193	411	629
5321 - 5323								192	410	628
5324 - 5326								191	409	627
5327 - 5330								190	408	626
5331 - 5333								189	407	625
5334 - 5336								188	406	624
5337 - 5340								187	405	623
5341 - 5343								186	404	622
5344 - 5346								185	403	621
5347 - 5350								184	402	620
5351 - 5353								183	401	619
5354 - 5356								182	400	618
5357 - 5360								181	399	617
5361 - 5363								180	398	616
5364 - 5366								179	397	615
5367 - 5370								178	396	614
5371 - 5373								177	395	613
5374 - 5376								176	394	612
5377 - 5380								175	393	611
5381 - 5383								174	392	610

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
5384 - 5386								173	391	609
5387 - 5390								172	390	608
5391 - 5393								171	389	607
5394 - 5396								170	388	606
5397 - 5400								169	387	605
5401 - 5403								168	386	604
5404 - 5406								167	385	603
5407 - 5410								166	384	602
5411 - 5413								165	383	601
5414 - 5416								164	382	600
5417 - 5420								163	381	599
5421 - 5423								162	380	598
5424 - 5426								161	379	597
5427 - 5430								160	378	596
5431 - 5433								159	377	595
5434 - 5436								158	376	594
5437 - 5440								157	375	593
5441 - 5443								156	374	592
5444 - 5446								155	373	591
5447 - 5450								154	372	590
5451 - 5453								153	371	589
5454 - 5456								152	370	588
5457 - 5460								151	369	587
5461 - 5463								150	368	586
5464 - 5466								149	367	585

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
5467 - 5470								148	366	584
5471 - 5473								147	365	583
5474 - 5476								146	364	582
5477 - 5480								145	363	581
5481 - 5483								144	362	580
5484 - 5486								143	361	579
5487 - 5490								142	360	578
5491 - 5493								141	359	577
5494 - 5496								140	358	576
5497 - 5500								139	357	575
5501 - 5503								138	356	574
5504 - 5506								137	355	573
5507 - 5510								136	354	572
5511 - 5513								135	353	571
5514 - 5516								134	352	570
5517 - 5520								133	351	569
5521 - 5523								132	350	568
5524 - 5526								131	349	567
5527 - 5530								130	348	566
5531 - 5533								129	347	565
5534 - 5536								128	346	564
5537 - 5540								127	345	563
5541 - 5543								126	344	562
5544 - 5546								125	343	561
5547 - 5550								124	342	560

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
5551 - 5553								123	341	559
5554 - 5556								122	340	558
5557 - 5560								121	339	557
5561 - 5563								120	338	556
5564 - 5566								119	337	555
5567 - 5570								118	336	554
5571 - 5573								117	335	553
5574 - 5576								116	334	552
5577 - 5580								115	333	551
5581 - 5583								114	332	550
5584 - 5586								113	331	549
5587 - 5590								112	330	548
5591 - 5593								111	329	547
5594 - 5596								110	328	546
5597 - 5600								109	327	545
5601 - 5603								108	326	544
5604 - 5606								107	325	543
5607 - 5610								106	324	542
5611 - 5613								105	323	541
5614 - 5616								104	322	540
5617 - 5620								103	321	539
5621 - 5623								102	320	538
5624 - 5626								101	319	537
5627 - 5630								100	318	536

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
5631 - 5633								99	317	535
5634 - 5636								98	316	534
5637 - 5640								97	315	533
5641 - 5643								96	314	532
5644 - 5646								95	313	531
5647 - 5650								94	312	530
5651 - 5653								93	311	529
5654 - 5656								92	310	528
5657 - 5660								91	309	527
5661 - 5663								90	308	526
5664 - 5666								89	307	525
5667 - 5670								88	306	524
5671 - 5673								87	305	523
5674 - 5676								86	304	522
5677 - 5680								85	303	521
5681 - 5683								84	302	520
5684 - 5686								83	301	519
5687 - 5690								82	300	518
5691 - 5693								81	299	517
5694 - 5696								80	298	516
5697 - 5700								79	297	515
5701 - 5703								78	296	514
5704 - 5706								77	295	513
5707 - 5710								76	294	512
5711 - 5713								75	293	511

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
5714 - 5716								74	292	510
5717 - 5720								73	291	509
5721 - 5723								72	290	508
5724 - 5726								71	289	507
5727 - 5730								70	288	506
5731 - 5733								69	287	505
5734 - 5736								68	286	504
5737 - 5740								67	285	503
5741 - 5743								66	284	502
5744 - 5746								65	283	501
5747 - 5750								64	282	500
5751 - 5753								63	281	499
5754 - 5756								62	280	498
5757 - 5760								61	279	497
5761 - 5763								60	278	496
5764 - 5766								59	277	495
5767 - 5770								58	276	494
5771 - 5773								57	275	493
5774 - 5776								56	274	492
5777 - 5780								55	273	491
5781 - 5783								54	272	490
5784 - 5786								53	271	489
5787 - 5790								52	270	488
5791 - 5793								51	269	487
5794 - 5796								50	268	486

October 2025
Benefit Issuance by Household Size

Monthly Net Income	1 Person	2 Persons	3 Persons	4 Persons	5 Persons	6 Persons	7 Persons	8 Persons	9 Persons	10 Persons
5797 - 5800								49	267	485
5801 - 5803								48	266	484
5804 - 5806								47	265	483
5807 - 5810								46	264	482
5811 - 5813								45	263	481
5814 - 5816								44	262	480
5817 - 5820								43	261	479
5821 - 5823								42	260	478
5824 - 5826								41	259	477
5827 - 5830								40	258	476
5831 - 5833								39	257	475
5834 - 5836								38	256	474
5837 - 5840								37	255	473
5841 - 5843								36	254	472
5844 - 5846								35	253	471
5847 - 5850								34	252	470
5851 - 5853								33	251	469
5854 - 5856								32	250	468
5857 - 5860								31	249	467
5861 - 5863								30	248	466
5864 - 5866								29	247	465
5867 - 5870								28	246	464
5871 - 5873								27	245	463
5874 - 5876								26	244	462
5877 - 5880								25	243	461

October 2025
Benefit Issuance by Household Size

[illegible]

October 2025
Benefit Issuance by Household Size

[illegible]

October 2025
Benefit Issuance by Household Size

[illegible]

October 2025
Benefit Issuance by Household Size

[illegible]

October 2025
Benefit Issuance by Household Size

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October 2025
Benefit Issuance by Household Size

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October 2025
Benefit Issuance by Household Size

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October 2025

Benefit Issuance by Household Size

[illegible]

October 2025

Benefit Issuance by Household Size

[illegible]

October 2025

Benefit Issuance by Household Size

[illegible]

October 2025
Benefit Issuance by Household Size

[illegible]

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Benefit Issuance by Household Size

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Benefit Issuance by Household Size

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Benefit Issuance by Household Size

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Benefit Issuance by Household Size

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Benefit Issuance by Household Size

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Benefit Issuance by Household Size

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October 2025
Benefit Issuance by Household Size

[illegible]

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Benefit Issuance by Household Size

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GENERAL INFORMATION

With this application, you may apply for one or more of the following assistance programs:

- Auxiliary Grants (AG)
- Refugee Cash Assistance (RCA)
- Temporary Assistance for Needy Families (TANF)
- General Relief – Unattached Child (GR)
- Supplemental Nutrition Assistance Program (SNAP)
- TANF Diversionary Assistance (TANF DA)
- TANF Emergency Assistance (TANF EA)

Note that an application for TANF will be treated as an application for SNAP. Be sure to mark **TANF-No SNAP** in the **Household Composition** section if you only want to apply for TANF.

COMPLETING THE APPLICATION

If you need help completing this application, a friend or relative or your eligibility worker can help you. If you are completing this application for someone else, answer each question as if you were that person. If you need to change an answer or make a correction, write the correct information nearby and put your initials and date next to the change. If there are more than 6 people living in your home and you need more space to list everyone, tell the agency you need extra pages. If you have a disability or have difficulty with English, you may receive extra help to make sure you get the assistance or services you are eligible to receive.

Make sure you sign this application on Page 11.

COMPLETE AND ACCURATE INFORMATION

You must give complete, accurate, and truthful information. If you do not give needed information, we may not be able to determine your eligibility for assistance. If you knowingly give false, incorrect, or incomplete information, or fail to report changes, you could lose your benefits and be arrested, prosecuted, fined and/or imprisoned. If you knowingly give false, incorrect, or incomplete information to help someone else receive benefits, you could be arrested and prosecuted for fraud.

FILING THE APPLICATION

You may apply for benefits by leaving a completed application at the agency or by leaving a partially completed application with at least your name, address, and signature, or, for SNAP only, by tearing off and leaving the half-sheet on Page iii with your name, address, and signature. You must complete the rest of this application before your eligibility can be determined. For some programs, including SNAP, you must also be interviewed, but you may turn in your application before your interview. You may turn in your application any time during office hours the same day as you contact your local agency. You have the right to turn in your application even if it looks like you may not be eligible for benefits. This is important because, if you are eligible for the month in which you apply, your benefit amount will be based on the date you turn in your application.

VERIFICATION AND USE OF INFORMATION

Information you give on this application, including Social Security numbers (SSN), may be matched against federal, state, and local records. These records include:

- Virginia Employment Commission (VEC)
- Internal Revenue Service (IRS)
- Social Security Administration (SSA)
- Department of Motor Vehicles (DMV)
- US Citizenship and Immigration Services (USCIS)
- Income and Eligibility Verification System IEVS)

Any difference between the information you give and these records will be investigated. Information from these records may affect your eligibility and benefit amount. Information may be used to:

- determine the correctness, accuracy, and truthfulness of the application;
- verify your identity and citizenship; verify wages and salary, unemployment benefits, and unearned income, such as Social Security and Supplemental Security Income (SSI) benefits; verify quarters of coverage under Social Security for an alien, or to verify the status of aliens;
- prevent receipt of benefits from more than one social service agency at the same time;
- make required program changes;
- allow disclosure for official examination and to law enforcement officials to assist in apprehending persons fleeing to avoid the law; or
- assist in SNAP claims collection actions.

Your information may also be used or disclosed to study public benefit programs, such as SNAP or TANF.

Information regarding your race and ethnicity is not required and will not affect your eligibility or benefit amount. This information is requested to be sure that program benefits are provided without regard to race, color, or national origin.

NONDISCRIMINATION STATEMENT

In accordance with federal civil rights laws and U.S. Department of Agriculture (USDA) civil rights regulations and policies, the USDA, its agencies, offices, and employees, and institutions participating in or administering USDA programs are prohibited from discriminating based on race, color, national origin, sex (including gender identity and sexual orientation), religious creed, disability, age, political beliefs, or reprisal or retaliation for prior civil rights activity in any program or activity conducted or funded by USDA. Programs that receive federal financial assistance from the U.S. Department of Health and Human Services (HHS), such as Temporary Assistance for Needy Families (TANF), and programs HHS directly operates are also prohibited from discrimination under federal civil rights laws and HHS regulations.

Persons with disabilities who require alternative means of communication for program information (e.g., Braille, large print, audiotape, American Sign Language), should contact the agency (state or local) where they applied for benefits. Individuals who are deaf, hard of hearing or who have speech disabilities may contact USDA through the Federal Relay Service at (800) 877-8339. Additionally, program information may be made available in languages other than English.

CIVIL RIGHTS COMPLAINTS INVOLVING USDA PROGRAMS

USDA provides federal financial assistance for many food security and hunger reduction programs such as the Supplemental Nutrition Assistance Program (SNAP), the Food Distribution Program on Indian Reservations (FDPIR) and others. To file a program complaint of discrimination, complete the Program Discrimination Complaint Form, (AD-3027) found online

at: <https://www.usda.gov/sites/default/files/documents/USDA-OASCR-P-Complaint-Form-0508-0002-508-11-28-17Fax2Mail.pdf>, and at any USDA office or write a letter addressed to USDA and provide in the letter all of the information requested in the form. To request a copy of the complaint form, call (866) 632-9992. Submit your completed form or letter to USDA by:

1. **mail:** Food and Nutrition Service, USDA, 1320 Braddock Place, Room 334, Alexandria, VA 22314; or
2. **fax:** (833) 256-1665 or (202) 690-7442; or
3. **phone:** (833) 620-1071; or
4. **email:** FNSCIVILRIGHTSCOMPLAINTS@usda.gov.

For any other information regarding SNAP issues, persons should either contact the USDA SNAP hotline number at (800) 221-5689, which is also in Spanish, or call the [state information/hotline numbers](#) (click the link for a listing of hotline numbers by state); found online at: [SNAP hotline](#).

CIVIL RIGHTS COMPLAINTS INVOLVING HHS PROGRAMS

HHS provides federal financial assistance for many programs to enhance health and well-being, including TANF, Head Start, the Low-Income Home Energy Assistance Program (LIHEAP), and others. If you believe that you have been discriminated against because of your race, color, national origin, disability, age, sex (including pregnancy, sexual orientation, and gender identity), or religion in programs or activities that HHS directly operates or to which HHS provides federal financial assistance, you may file a complaint with the Office for Civil Rights (OCR) for yourself or for someone else.

To file a complaint of discrimination for yourself or someone else regarding a program receiving federal financial assistance through HHS, complete the form online through OCR's Complaint Portal at <https://ocrportal.hhs.gov/ocr/>. You may also contact OCR via

1. **mail:** Centralized Case Management Operations, U.S. Department of Health and Human Services, 200 Independence Avenue, S.W., Room 509F HHH Bldg., Washington, D.C. 20201; or
2. **fax:** (202) 619-3818; or
3. **email:** OCRmail@hhs.gov.

For faster processing, we encourage you to use the OCR online portal to file complaints rather than filing via mail. Persons who need assistance with filing a civil rights complaint can email OCR at OCRMail@hhs.gov or call OCR toll-free at 1-800-368-1019, TDD 1-800-537-7697. For persons who are deaf, hard of hearing, or have speech difficulties, please dial 7-1-1 to access telecommunications relay services. We also provide alternative formats (such as Braille and large print), auxiliary aids and language assistance services free of charge for filing a complaint.

This institution is an equal opportunity provider.

INSTRUCTIONS FOR COMPLETING THE APPLICATION

1. Do not write in shaded areas. These areas are for agency use only.
2. Complete **SECTION A: APPLICANT INFORMATION**. Complete the grid in **SECTION B: Household Composition** for everyone who lives in your home, even if you are not applying for that person. You may leave questions about citizenship, immigration and Social Security Number blank for anyone for whom you are NOT requesting assistance.
3. Answer the questions in **SECTION C: INCOME** for everyone for whom you are applying. In addition, if you are applying for **TANF**, also provide income information for children age 18 or under, even if you are not applying for that child, and for the stepparent of the children for whom you are applying.
4. Answer the questions in **SECTION D: RESOURCES** for everyone for whom you are applying unless you are applying only for TANF.
5. After completing Sections A through D, answer the questions in the sections indicated below, depending on the type of assistance you are requesting.

TANF	Section E, page 5	TANF Diversionary/Emergency Assistance	Section F, page 6
SNAP	Section G, page 6	Auxiliary Grants	Section H, pages 7-8
6. Complete **SECTION I** for all programs if you want to have an Authorized Representative act on your behalf.
7. Read **CHANGE REPORTING AND PENALTIES** on pages 9-10.
8. Read and complete the last page of this application. Be sure to sign and date the application on Page 11.

EXPEDITED SERVICE FOR SNAP BENEFITS

Your household may qualify for Expedited Service and receive SNAP benefits within 7 days if you are eligible. To qualify for Expedited Service: 1) your gross monthly income must be less than \$150 and liquid resources \$100 or less; 2) your monthly shelter bills must be higher than your household's gross monthly income plus your liquid resources; or 3) someone in your household must be a migrant or seasonal farm worker with little or no income and resources. **GIVE THE INFORMATION BELOW SO YOUR ELIGIBILITY FOR EXPEDITED SERVICE CAN BE DETERMINED.**

Name: _____

Date of Birth: _____

Address: _____

Social Security Number: _____

Telephone Number: _____

Signature:

Date

Total income received/expected this month before deductions

\$ _____

Total cash, money in checking/savings accounts, CDs, etc.

\$ _____

Total rent or mortgage for this month

\$ _____

Utility expenses for this month

\$ _____

Which utilities do you pay? (check all that apply)

☐ Heat ☐ Lights ☐ Telephone ☐ Electricity for Air Conditioning

☐ Water ☐ Sewer ☐ Garbage ☐ Other

Is anyone in your household a migrant or seasonal farm worker?

☐ YES ☐ NO

COMMONWEALTH OF VIRGINIA VOTER REGISTRATION AGENCY CERTIFICATION

If you are not registered to vote where you live now, would you like to apply to register to vote here today?

(Please check only one)

- ☐ I am already registered to vote at my current address, or I am not eligible to register to vote and do not need an application to register to vote.
- ☐ Yes, I would like to apply to register to vote. (Please fill out the voter registration application form)
- ☐ No, I do not want to register to vote.

If you do not check any box, you will be considered to have decided **not to** register to vote at this time. Applying to register to vote or declining to register to vote will not affect the assistance or services that you will be provided by this agency.

If you decline to register to vote, this fact will remain confidential. If you do register to vote, the office where your application was submitted will be kept confidential, and it will be used only for voter registration purposes.

If you would like help filling out the voter registration application form, we will help you. The decision whether to seek or accept help is yours. You may fill out the application form in private if you desire.

If you believe that someone has interfered with your right to register or to decline to register to vote, your right to privacy in deciding whether to register or in applying to register to vote, you may file a complaint with: Secretary of the Virginia State Board of Elections, Washington Building, 1100 Bank Street, Richmond, VA 23219-3497, Telephone (804) 864-8901.

Voter Registration Applicant Name

Signature for Voter Registration

Date

for agency use only

Voter Registration form completed: ☐ Yes ☐ No

Voter Registration form given to applicant for later mailing (at applicant's request)

☐ Yes ☐ No

Agency Staff Signature

Date:

AGENCY USE ONLY		
CASE NAME		
CASE NUMBER		
LOCALITY	SCREENER	DATE
EXPEDITED SERVICE DETERMINATION Income < \$150 + resources ≤ \$100 ☐ YES ☐ NO Income + resources < shelter bills ☐ YES ☐ NO For migrant or seasonal farm workers: Resources ≤ \$100 and ≤ \$25 is expected in next 10 days from new income; ☐ YES ☐ NO OR Resources ≤ \$100 and \$0 income is expected from a terminated source for the rest of this month or next month. ☐ YES ☐ NO EXPEDITE IF <u>YES</u> TO ANY OF THE ABOVE.		

Commonwealth of Virginia
Department of Social Services

APPLICATION FOR BENEFITS

Return your completed application to:

_____ County/City DSS

A. APPLICANT INFORMATION

Your Contact Information

Your Name (last, first, middle initial)

Your Street Address (include apartment number)

City, State, ZIP

Your Mailing Address (if different from your street address)

City, State, ZIP

In what city or county do you live?

Email Address

Primary Telephone Number

Alternate Telephone Number

What is the primary language spoken in your household?

- | | | | | | |
|------------------------------------|---|----------------------------------|----------------------------------|-----------------------------------|---|
| ☐ English | ☐ Vietnamese | ☐ Laotian | ☐ Somali | ☐ French | ☐ Other (specify): |
| ☐ Spanish | ☐ Farsi | ☐ Chinese | ☐ Kurdish | ☐ German | _____ |
| ☐ Cambodian | ☐ Haitian-Creole | ☐ Korean | ☐ Arabic | ☐ Japanese | _____ |

Primary Method of Correspondence

If you would like to receive either text or email messages notifying you that some notices about your benefits may be accessed electronically through CommonHelp (www.CommonHelp.Virginia.gov), select one of the choices below. List either a cell telephone number or an email address. Once you choose a preferred electronic method of correspondence, it will be used for all programs on the case for which you have applied. If you do not choose to be notified by text or email, you will receive all written correspondence through the U.S. mail. If you are completing this application on behalf of another individual as an authorized representative, all correspondence to you will be mailed. The applicant may contact the local department of social services to learn how to change the method of correspondence.

☐ Text ☐ Email Cell Phone Number _____ Email Address _____

- ☐ YES ☐ NO 1. Have you or anyone for whom you are applying ever applied for, or received, or are currently receiving any benefits from a social services agency, including SNAP (Food Stamps), TANF, Medicaid, General Relief, Auxiliary Grant, Foster Care, Adoption Assistance, or Refugee Cash Assistance? If **YES**, enter the information below.
Name: _____ Type of Benefit Received: _____
When: _____ From What County, City, or State: _____
- ☐ YES ☐ NO 2. Have you or anyone for whom you are applying ever been convicted of making false or misleading statements about your identity or address to receive TANF, SNAP, or Medicaid in two or more states at the same time? If **YES**, give date and place of conviction. _____
- ☐ YES ☐ NO 3. Have you or anyone for whom you are applying ever been disqualified from participating in TANF, SNAP, or Medicaid? If **YES**, give date and place of all disqualifications. _____
- ☐ YES ☐ NO 4. Are you or anyone for whom you are applying in violation of parole or probation or fleeing capture to avoid prosecution or punishment of a felony? If **YES**, explain _____
- ☐ YES ☐ NO 5. Have you or anyone for whom you are applying ever been convicted of a felony as an adult on or after February 8, 2014 for the following:
a. Aggravated sexual abuse under Title 18 United States Code (USC), Section 2241 or a similar state offense? ☐ YES ☐ NO
b. Murder under Title 18 USC, Section 1111 or a similar state offense? ☐ YES ☐ NO
c. An offense under Title 18 USC, Chapter 110 (sexual exploitation and other abuse of children) or a similar state offense? ☐ YES ☐ NO
d. A federal or state offense involving sexual assault, as defined in Section 40002(a) of the Violence Against Women Act of 1994 (42 USC 13925(a)) ? ☐ YES ☐ NO
If **YES** to any of the above, who? _____
If **YES** to any of the above, are you in compliance with the terms of the sentence? ☐ YES ☐ NO

B. HOUSEHOLD COMPOSITION: This section includes information about everyone living in your home, even if you are not applying for that person. You may leave the Social Security Number blank if you are not applying for assistance for the person. List yourself first.

1

Name (last, first, middle initial) _____
Social Security Number: _____
Gender: ☐ Male ☐ Female
Marital Status: ☐ Married ☐ Never Married
☐ Separated ☐ Divorced ☐ Widowed
Highest Grade Completed: _____
School Name if a Student: _____
Are you a veteran or dependent? ☐ Yes ☐ No:
Program(s) Requested:
☐ None ☐ AG ☐ GR ☐ RCA ☐ SNAP
☐ TANF ☐ TANF DA or EA ☐ TANF--No SNAP

Self

Relationship to You _____ **Birth Date** (mm-dd-yyyy) _____
City, State, Country of Birth: _____
Are you a U.S. citizen? ☐ Yes ☐ No
If No, immigration status: _____
US Residency Date: __/__/____
Alien Registration Number: _____
Are you disabled or pregnant? ☐ Yes ☐ No
Are you temporarily living away from home? ☐ Yes ☐ No
Date Left __/__/____ **Expected Return Date** __/__/____
Reason for being away: _____

Providing the following information is voluntary and will not affect eligibility. Please check all that apply.

Ethnicity: ☐ Hispanic/Latino ☐ Not Hispanic/Latino
Racial Heritage: ☐ White ☐ Black/African American ☐ Asian ☐ Asian & Black/African American ☐ Asian & White
☐ American Indian/Alaskan Native ☐ Black/African American & White ☐ American Indian/Alaskan Native & White
☐ Native Hawaiian/Other Pacific Islander ☐ American Indian/Alaskan Native & Black ☐ Other/Unknown

2

Name (last, first, middle initial) _____
Social Security Number: _____
Gender: ☐ Male ☐ Female
Marital Status: ☐ Married ☐ Never Married
☐ Separated ☐ Divorced ☐ Widowed
Highest Grade Completed: _____
School Name if a Student: _____
Is this person a veteran or dependent? ☐ Yes ☐ No
Program(s) Requested:
☐ None ☐ AG ☐ GR ☐ RCA ☐ SNAP
☐ TANF ☐ TANF DA or EA ☐ TANF--No SNAP

Relationship to Applicant _____ **Birth Date** (mm-dd-yyyy) _____
City, State, Country of Birth: _____
Is this person a U.S. citizen? ☐ Yes ☐ No
If No, immigration status: _____
US Residency Date: __/__/____
Alien Registration Number: _____
Is this person disabled or pregnant? ☐ Yes ☐ No
Is this person temporarily away from home? ☐ Yes ☐ No
Date Left __/__/____ **Expected Return Date** __/__/____
Reason for being away: _____

Providing the following information is voluntary and will not affect eligibility. Please check all that apply.

Ethnicity: ☐ Hispanic/Latino ☐ Not Hispanic/Latino
Racial Heritage: ☐ White ☐ Black/African American ☐ Asian ☐ Asian & Black/African American ☐ Asian & White
☐ American Indian/Alaskan Native ☐ Black/African American & White ☐ American Indian/Alaskan Native & White
☐ Native Hawaiian/Other Pacific Islander ☐ American Indian/Alaskan Native & Black ☐ Other/Unknown

3

Name (last, first, middle initial) _____
Social Security Number: _____
Gender: ☐ Male ☐ Female
Marital Status: ☐ Married ☐ Never Married
☐ Separated ☐ Divorced ☐ Widowed
Highest Grade Completed: _____
School Name if a Student: _____
Is this person a veteran or dependent? ☐ Yes ☐ No
Program(s) Requested:
☐ None ☐ AG ☐ GR ☐ RCA ☐ SNAP
☐ TANF ☐ TANF DA or EA ☐ TANF--No SNAP

Relationship to Applicant _____ **Birth Date** (mm-dd-yyyy) _____
City, State, Country of Birth: _____
Is this person a U.S. citizen? ☐ Yes ☐ No
If No, immigration status: _____
US Residency Date: __/__/____
Alien Registration Number: _____
Is this person disabled or pregnant? ☐ Yes ☐ No
Is this person temporarily away from home? ☐ Yes ☐ No
Date Left __/__/____ **Expected Return Date** __/__/____
Reason for being away: _____

Providing the following information is voluntary and will not affect eligibility. Please check all that apply.

Ethnicity: ☐ Hispanic/Latino ☐ Not Hispanic/Latino
Racial Heritage: ☐ White ☐ Black/African American ☐ Asian ☐ Asian & Black/African American ☐ Asian & White
☐ American Indian/Alaskan Native ☐ Black/African American & White ☐ American Indian/Alaskan Native & White
☐ Native Hawaiian/Other Pacific Islander ☐ American Indian/Alaskan Native & Black ☐ Other/Unknown

HOUSEHOLD COMPOSITION (continued)

If you need more space to list your household members, please ask for another form or write the information on a separate sheet.

4

Name (last, first, middle initial) _____
Social Security Number: _____
Gender: ☐ Male ☐ Female
Marital Status: ☐ Married ☐ Never Married
☐ Separated ☐ Divorced ☐ Widowed
Highest Grade Completed: _____
School Name if a Student: _____
Is this person a veteran or dependent? ☐ Yes ☐ No
Program(s) Requested:
☐ None ☐ AG ☐ GR ☐ RCA ☐ SNAP
☐ TANF ☐ TANF DA or EA ☐ TANF--No SNAP

Relationship to Applicant _____ **Birth Date** (mm-dd-yyyy) _____
City, State, Country of Birth: _____
Is this person a U.S. citizen? ☐ Yes ☐ No
If No, immigration status: _____
US Residency Date: __/__/____
Alien Registration Number: _____
Is this person disabled or pregnant? ☐ Yes ☐ No
Is this person temporarily away from home? ☐ Yes ☐ No
Date Left __/__/____ **Expected Return Date** __/__/____
Reason for being away: _____

Providing the following information is voluntary and will not affect eligibility. Please check all that apply.

Ethnicity: ☐ Hispanic/Latino ☐ Not Hispanic/Latino
Racial Heritage: ☐ White ☐ Black/African American ☐ Asian ☐ Asian & Black/African American ☐ Asian & White
☐ American Indian/Alaskan Native ☐ Black/African American & White ☐ American Indian/Alaskan Native & White
☐ Native Hawaiian/Other Pacific Islander ☐ American Indian/Alaskan Native & Black ☐ Other/Unknown

5

Name (last, first, middle initial) _____
Social Security Number: _____
Gender: ☐ Male ☐ Female
Marital Status: ☐ Married ☐ Never Married
☐ Separated ☐ Divorced ☐ Widowed
Highest Grade Completed: _____
School Name if a Student: _____
Is this person a veteran or dependent? ☐ Yes ☐ No
Program(s) Requested:
☐ None ☐ AG ☐ GR ☐ RCA ☐ SNAP
☐ TANF ☐ TANF DA or EA ☐ TANF--No SNAP

Relationship to Applicant _____ **Birth Date** (mm-dd-yyyy) _____
City, State, Country of Birth: _____
Is this person a U.S. citizen? ☐ Yes ☐ No
If No, immigration status: _____
US Residency Date: __/__/____
Alien Registration Number: _____
Is this person disabled or pregnant? ☐ Yes ☐ No
Is this person temporarily away from home? ☐ Yes ☐ No
Date Left __/__/____ **Expected Return Date** __/__/____
Reason for being away: _____

Providing the following information is voluntary and will not affect eligibility. Please check all that apply.

Ethnicity: ☐ Hispanic/Latino ☐ Not Hispanic/Latino
Racial Heritage: ☐ White ☐ Black/African American ☐ Asian ☐ Asian & Black/African American ☐ Asian & White
☐ American Indian/Alaskan Native ☐ Black/African American & White ☐ American Indian/Alaskan Native & White
☐ Native Hawaiian/Other Pacific Islander ☐ American Indian/Alaskan Native & Black ☐ Other/Unknown

6

Name (last, first, middle initial) _____
Social Security Number: _____
Gender: ☐ Male ☐ Female
Marital Status: ☐ Married ☐ Never Married
☐ Separated ☐ Divorced ☐ Widowed
Highest Grade Completed: _____
School Name if a Student: _____
Is this person a veteran or dependent? ☐ Yes ☐ No
Program(s) Requested:
☐ None ☐ AG ☐ GR ☐ RCA ☐ SNAP
☐ TANF ☐ TANF DA or EA ☐ TANF--No SNAP

Relationship to Applicant _____ **Birth Date** (mm-dd-yyyy) _____
City, State, Country of Birth: _____
Is this person a U.S. citizen? ☐ Yes ☐ No
If No, immigration status: _____
US Residency Date: __/__/____
Alien Registration Number: _____
Is this person disabled or pregnant? ☐ Yes ☐ No
Is this person temporarily away from home? ☐ Yes ☐ No
Date Left __/__/____ **Expected Return Date** __/__/____
Reason for being away: _____

Providing the following information is voluntary and will not affect eligibility. Please check all that apply.

Ethnicity: ☐ Hispanic/Latino ☐ Not Hispanic/Latino
Racial Heritage: ☐ White ☐ Black/African American ☐ Asian ☐ Asian & Black/African American ☐ Asian & White
☐ American Indian/Alaskan Native ☐ Black/African American & White ☐ American Indian/Alaskan Native & White
☐ Native Hawaiian/Other Pacific Islander ☐ American Indian/Alaskan Native & Black ☐ Other/Unknown

C. INCOME

1. Do you or anyone who lives with you receive or expect to receive any of the following types of money from working? Include money from all jobs that you have now or expect to begin, full time, part time, seasonal, temporary, self-employment. Answer Yes or No below and provide the requested information:

Yes	No	Yes	No	Yes	No
☐	☐ Wages/Salary	☐	☐ Earned Sick Pay	☐	☐ Domestic Work
☐	☐ Contract Income	☐	☐ Babysitting/Child or Adult Care	☐	☐ Self-employment
☐	☐ Vacation Pay	☐	☐ Farming/Fishing	☐	☐ Any other money from working
☐	☐ Commissions, Bonuses, Tips	☐	☐ Odd jobs		

a.	
Name (last, first, middle initial)	Employer Name, Address and Telephone Number
Number of Hours Per Week	Rate of Pay
Date Job Started	Next Pay Date (mm-dd-yyyy)
	Pay Schedule
	☐ Weekly ☐ Monthly
	☐ Biweekly ☐ Twice a Month
	☐ Other
b.	
Name (last, first, middle initial)	Employer Name, Address and Telephone Number
Number of Hours Per Week	Rate of Pay
Date Job Started	Next Pay Date (mm-dd-yyyy)
	Pay Schedule
	☐ Weekly ☐ Monthly
	☐ Biweekly ☐ Twice a Month
	☐ Other

- ☐ YES ☐ NO 2. Has anyone been fired, laid off, gone on sick or maternity leave, gone on strike, quit a job, or reduced hours worked in the last 60 days? If **YES**, give name and explain: _____

3. Do you or anyone who lives with you (including children) receive or expect to receive any of the following? Answer yes or no below and provide the requested information.

Yes	No	Yes	No	Yes	No
☐	☐ Social Security	☐	☐ Cash gifts or contributions	☐	☐ Strike benefits
☐	☐ SSI	☐	☐ Unemployment benefits	☐	☐ Prize winnings
☐	☐ VA benefits	☐	☐ Room/board income	☐	☐ All food, clothing, utilities, or rent
☐	☐ Child support, alimony	☐	☐ Black Lung benefits	☐	☐ Other retirement
☐	☐ Public Assistance (TANF, GR, etc.)	☐	☐ Worker compensation	☐	☐ Interest, dividends
☐	☐ Military Allotment	☐	☐ Rental Income	☐	☐ Insurance settlement
☐	☐ Training allowances (WIA, etc.)	☐	☐ Inheritance	☐	☐ Refugee Matching Grant
☐	☐ Loans	☐	☐ Railroad retirement	☐	☐ Any other type of money

a.	
Name of Person	Amount
Type of Money or Help	How Often Received?
b.	
Name of Person	Amount
Type of Money or Help	How Often Received?
c.	
Name of Person	Amount
Type of Money or Help	How Often Received?

- ☐ YES ☐ NO 4. Does anyone besides the people on your case pay directly for you, help you pay, or lend you money to pay rent, utilities, medical bills or any other bills? OR does anyone totally supply food, shelter or clothing for you or someone else on a regular basis? If **YES**, give name, amount, and explain: _____

- ☐ YES ☐ NO 5. Does anyone have a day care expense for a child, an elderly person, or an adult with a disability? If **YES**, give name, amount and explain: _____

- ☐ YES ☐ NO 6. Does anyone pay legally obligated child support to someone who is not in the household? If **YES**, give name of person paying, person supported, and amount: _____

D. RESOURCES

You do not have to complete this section if you are only applying for TANF. Otherwise, answer for everyone for whom you are applying. Include any resources anyone owns, or that are jointly owned with someone else, even if that person does not live with you. List the names of all joint owners.

1. Do you or anyone who lives with you have any of the following resources or assets?

Yes	No	Yes	No	Yes	No
☐	☐ Cash \$ _____	☐	☐ Checking, Savings	☐	☐ Credit Union
☐	☐ 401K, 403B, etc	☐	☐ Promissory notes	☐	☐ Money Market Funds
☐	☐ Individual Retirement Account (IRA)	☐	☐ Christmas Club	☐	☐ Deeds of Trust
☐	☐ Deferred Compensation Plan	☐	☐ Uniform Gift to Minor Account	☐	☐ Retirement accounts
☐	☐ Keogh Plan	☐	☐ Certificate of Deposit (CD)	☐	☐ Trust funds
☐	☐ Stocks or bonds	☐	☐ Pension plans	☐	☐ ABLE Account
☐	☐ Other _____				

— If **Yes to any of the above**, please provide the following information:

a.

Owner Name (last, first, middle initial)		Co-Owner Name (last, first, middle initial)	
Name of Bank or Institution	Account Type	Account Number	Balance
Address of Bank or Institution			

b.

Owner Name (last, first, middle initial)		Co-Owner Name (last, first, middle initial)	
Name of Bank or Institution	Account Type	Account Number	Balance
Address of Bank or Institution			

- ☐ YES ☐ NO 2. Has anyone received or expect to receive winnings of \$4,250 or more from lottery or gambling? If **YES**, explain: _____
- ☐ YES ☐ NO 3. Has anyone sold, transferred or given away any resources in the last 3 months (for SNAP) or in the last 3 years (for Auxiliary Grants)? If **YES**, explain: _____

E. TEMPORARY ASSISTANCE FOR NEEDY FAMILIES (TANF) (ASK FOR AN EXTRA PAGE IF YOU NEED MORE SPACE)

1. CHILD/PARENT INFORMATION	2. IMMUNIZATION
List each child for whom you are applying. Then, list the names of both parents. You must identify both parents in order to receive TANF. If you intentionally misidentify a parent, you shall be prosecuted	(Answer only if applying for TANF.) Has the child received ALL of the immunizations required according to the child's age? Check (√) Yes Or No Or Unknown
Child's Name	Yes () No () Unknown ()
Mother	
Father	
Child's Name	Yes () No () Unknown ()
Mother	
Father	
Child's Name	Yes () No () Unknown ()
Mother	
Father	
Child's Name	Yes () No () Unknown ()
Mother	
Father	

F. TANF DIVERSIONARY ASSISTANCE/EMERGENCY ASSISTANCE

- ☐ YES ☐ NO 1. Does your household have an emergency need related to basic needs (food, shelter, shelter items, potential eviction, medical expenses, childcare expenses or the costs associated with getting or keeping employment including transportations costs)? If **YES**, give date and explain below.
- ☐ YES ☐ NO 2. Does anyone have emergency needs that result from a natural disaster or fire such as replacement of clothing, or the repair or replacement of household equipment and supplies which were destroyed? If **YES**, explain below.
- ☐ YES ☐ NO 3. Has your household experienced an involuntary loss or reduction of income (except TANF/Refugee Cash Assistance) in the six months prior to the date of application?
- ☐ YES ☐ NO 4. Does your household have a delay in starting to receive income resulting in the current emergency? (The income must start within 60 days following the application date.) If **YES**, who? _____

Date, description, and cause of emergency:

G. SNAP BENEFITS

1. List the name of the person who is the head of your household: _____.
- ☐ YES ☐ NO 2. Is anyone living in your home NOT included in your SNAP application? If **YES**, do you and everyone for whom you are applying usually purchase and prepare meals apart from these people? Or, do you intend to do so if your application for SNAP benefits is approved? Check (✓) ☐ YES ☐ NO
- ☐ YES ☐ NO 3. Is anyone living in your home renting a room from you (a roomer) or being provided a room and food (a boarder)? If **YES**, list names: _____
- ☐ YES ☐ NO 4. Is anyone age 60 or older **or** approved to receive Medicaid because of a disability **or** receiving any type of disability payment? If **YES**, list all current medical expenses for these people.

Household Member with Medical Expense	Type of Expense	Amount	Name of Doctor, Hospital, Pharmacy

- ☐ YES ☐ NO 5. Do you have any of the following shelter expenses? If **YES**, list your current expenses. Check (✓) here ☐ if these expenses are for a house that you do not live in.

Expense	Amount Billed	How Often Billed?	Who is Responsible for the Bill?
Rent/Mortgage			
Taxes/ Insurance			
Electricity			
Gas/Oil/Kerosene/Coal/Wood			
Water/Sewage/Garbage			
Telephone			
Installation			

6a How do you heat your home? _____

- ☐ YES ☐ NO 6b Do you have air conditioning in your home?
- ☐ YES ☐ NO 6c Did you receive energy/fuel assistance during this past year while living in your current home?
- ☐ YES ☐ NO 6d Are you staying temporarily in someone else's home, an emergency shelter, welfare hotel, other halfway house, or a place not usually used for sleeping? If **YES**, how much does it cost to stay there during the month?

If you are staying temporarily in someone else's home, when did you move there? _____

- ☐ YES ☐ NO 7a Is any member of your household between the ages of 18 and 24? If **YES**, who? _____

- ☐ YES ☐ NO 7b For any household member between the ages of 18 and 24, were they in foster care on their 18th birthday ?

H. AUXILIARY GRANTS (AG)

- ☐ YES ☐ NO 1 Do you live in an Assisted Living Facility, an Adult Foster Care Home, a Nursing Facility, or other institution?
If **YES**, Date Applicant Entered _____
City/County and State where you lived before entering the institution _____.
If **outside Virginia**, was placement made by a government agency? ☐ YES ☐ NO

- ☐ YES ☐ NO 2 Have you applied for or are you applying for supportive housing?

- ☐ YES ☐ NO 3 Do you have a spouse who does not live in the home? If **YES**, enter the Spouse's Name and address _____

- ☐ YES ☐ NO 4. Have you lived in Virginia for the past 90 days?

- ☐ YES ☐ NO 5 Do you owe or did you pay any bills you had in the month of entry into an assisted living facility or adult foster care?

- ☐ YES ☐ NO 6. Do you have any unpaid medical bills for the three months before the application month?

Description of Bills	Dates of Bills	Dates Bills Paid

- ☐ YES ☐ NO 7. Do you own any household goods or personal effects worth more than \$500, such as silver, fine china, furs, artwork, jewelry, or other items held for their value or as an investment?

Description and Value of Items

- ☐ YES ☐ NO 8. Do you have any burial plots, burial arrangements or trust funds for burial?

Owner(s)	Number of Plots	Where	Value \$	Date Acquired
	Type of Arrangement:		Amount Owed \$	
Owner(s)	Burial contract/agreement type: ☐ Irrevocable ☐ Revocable	Trustee/Authority/Funeral Home:	Funds Required \$	Amount Paid \$
Other information:				

- ☐ YES ☐ NO 9. Does anyone own any personal property, such as campers/trailers, non-motorized boats, utility trailers, tools, equipment, supplies, or livestock?

Owner(s)	Type	Is this property used in your business or trade, including farming? YES () NO ()	Value	Amount Owed	Date Acquired

- ☐ YES ☐ NO 10. Does anyone own any real property, including life estates, inherited property, land, buildings, or mobile homes?
If **YES**, do you live there? Check (✓): ☐ YES ☐ NO

Owner(s)	Type	YES () NO () Currently rented? YES () NO () Income-producing? YES () NO () Currently for sale?	Value \$	Amount Owed \$	Date Acquired

- ☐ YES ☐ NO 11. Does anyone own vehicles, such as cars, trucks, vans, motorboats, motor homes, recreational vehicles, or motorcycles/mopeds?

Owner(s)	Type, Make, Model, Year	Currently Licensed? ☐ YES ☐ NO	Vehicle ID# License #	Value Amount Owed \$	How Used	Date Acquired
			# #	\$ \$		

H. AUXILIARY GRANTS (AG) (continued)

- ☐ YES ☐ NO 12. Does anyone have any life insurance? If **YES**, provide information about each policy. List each policy separately. Attach a separate sheet if necessary.

Owner	Person Insured	Type of Insurance ☐ Whole Life ☐ Term	Face Value \$	Cash Value \$
Company Name	Policy Number			
Owner	Person Insured	Type of Insurance ☐ Whole Life ☐ Term	Face Value \$	Cash Value \$
Company Name	Policy Number			
Owner	Person Insured	Type of Insurance ☐ Whole Life ☐ Term	Face Value \$	Cash Value \$
Company Name	Policy Number			

An application for AG is also an application for Medicaid. The following questions will help determine Medicaid eligibility through the Department of Social Services or possible eligibility for Advanced Premium Tax Credits (APTC) for private health insurance through the Federal Marketplace (Healthcare.gov).

- ☐ YES ☐ NO 13. Does anyone have health insurance? If **Yes**, complete the following:

Policy Holder:	Person(s) Insured:
Company Name, Address, Phone:	
Coverage Type:	Begin Date: / / End Date: : / /
ID Number:	Premium Amount: \$

- ☐ YES ☐ NO 14. Does anyone have Medicare?

Person Insured	Claim Number	Coverage
		☐ Part A ☐ Part B
		☐ Part A ☐ Part B

15. List the names of everyone expected to be included on the same tax return as you for this year, whether or not they live in the same home as you. For anyone in the home that does not file taxes and does not expect to be on anyone else's tax return, list those names under "Non-filer(s)".

Tax Filer:	
Joint Taxpayer:	
Tax Dependent(s):	
Non-filer(s):	

I. Authorized Representative

An authorized representative may apply for benefits on your behalf or receive copies of your program notices. Your representative may also receive and use your SNAP benefits on your behalf. If you want to name an authorized representative, please give the information below about the representative and what you want the representative to do on your behalf. Note that you may have only one representative who can access your benefits.

Name, Address and Telephone Number of the Authorized Representative	Check (✓) each duty authorized for that person
	☐ Apply for benefits ☐ Receive correspondence ☐ Access or use SNAP benefits
	☐ Apply for benefits ☐ Receive correspondence ☐ Access or use SNAP benefits

CHANGE REPORTING, RESPONSIBILITIES, AND PENALTIES
(READ THIS SECTION CAREFULLY BEFORE SIGNING THIS APPLICATION)

REPORTING CHANGES

You must report changes that occur. What you need to report and when you need to report it varies by each program as listed below or on the next page for SNAP.

TANF/Refugee Cash Assistance: Report within 10 days, but no later than the 10th day of the month after a change occurs. Report these changes:

- Your household income goes over 130% of the Federal poverty level. See the Change Report or the Notice of Action for the amount or visit www.dss.virginia.gov.
- Your address changes.
- An eligible individual leaves or enters the home.
- Changes that may affect your participation in VIEW such as, changes in income, employment, education, training, transportation, and child care.

General Relief-Unattached Child: Report the day the change occurs or the first day that the agency is open after the change occurs. Report these changes:

- Your address changes.
- The amount of your monthly income changes.
- There are other changes that may affect eligibility.

Auxiliary Grants: Report changes within 10 days. Report these changes:

- Your address changes.
- The amount of your monthly income changes.
- There are changes in your resources, including transferring assets/property or in any motor vehicles owned.

PENALTIES FOR TANF AND REFUGEE CASH ASSISTANCE (RCA) VIOLATIONS

You must not knowingly give false information, hide information, or fail to report changes on time in order to receive TANF or RCA, or to receive supportive or transitional services such as child care or assistance with transportation.

If you are found guilty of intentionally breaking these rules, you will be ineligible to receive TANF or RCA for yourself for 6 months (1st violation), 12 months (2nd violation), or permanently (3rd violation). In addition, you may be prosecuted under Federal or State law.

Anyone convicted of misrepresenting his or her residence to get TANF, Medicaid, SNAP benefits or SSI in two or more states is ineligible for TANF for 10 years.

DOMESTIC VIOLENCE INFORMATION

Domestic violence information and services are available to anyone experiencing violence or abuse from their partner. If you are in immediate danger, call 911. If you would like to speak with, text or chat with someone who understands these issues or to learn about services and safety options, contact the Virginia Statewide Hotline.

- Call and speak with an advocate toll-free at 1-800-838-8238. (Note: Interpreters are available for more than 200 languages via the Language Line.)
- Text with an advocate at 804-793-9999.
- Chat with an advocate at <https://www.vadata.org/chat/>. (Chat feature works best on a computer or tablet.)
- Call and speak with an advocate - LGBTQ Helpline: 1-866-356-6998

SNAP CHANGE REPORTING, RESPONSIBILITIES, AND PENALTIES
(READ THIS SECTION CAREFULLY BEFORE SIGNING THIS APPLICATION)

You must report changes that occur for SNAP but, what you must report is tied to how long you are determined eligible for benefits, the certification period. You must report changes that occur during the certification period within 10 days, but no later than the 10th day of the month after the change occurs.

Changes that you need to report during the certification period for SNAP will depend on the length of the certification period. "Simplified Reporting" applies to households that are eligible for SNAP benefits for five (5) months or longer. "Change Reporting" applies to households that are eligible for one (1) month to four (4) months. Changes that need to be reported for each category are listed below.

INTERIM REPORT FILING

In addition to reporting changes when they occur during the SNAP certification period, Simplified Reporting households may be required to submit an Interim Report in the sixth or twelfth month. The Interim Report is used to determine the amount of SNAP benefits households will receive for the second half of the certification period. The Interim Report provides a snapshot of household circumstances that were presented at the time of application. We will ask for proof of income changes and changes in legal obligations to pay child support. If households fail to return the completed Interim Report by the fifth of the month, SNAP benefits for the seventh or thirteenth month may be delayed or closed. Assistance for filing the Interim Report is available by calling the telephone number printed on the form.

REPORTING REQUIREMENTS – SIMPLIFIED REPORTING HOUSEHOLDS

Certified five months or longer, households must report:

- The number of work hours goes under 20 per week for anyone between the ages of 18-49 if there are no children in your SNAP household;
- You have lottery or gambling winnings of \$4,250 or more; or
- All the income for your household, before taxes, goes over 130% of the Federal poverty level. See the Change Report or the Notice of Action for the amount or visit www.dss.virginia.gov.

REPORTING REQUIREMENTS – CHANGE REPORTING HOUSEHOLDS

Certified four months or less), households must report:

- There is a change in the number of people in your household;
- Your address changes, including shelter expenses that change resulting from the move;
- The obligation to pay child support changes or the amount paid to someone outside the household changes;
- Your liquid resources, such as bank accounts, cash, bonds, etc. are \$2,750 or \$4,250 or more;
- You have lottery or gambling winnings of \$4,250 or more;
- The number of work hours goes under 20 per week for anyone between the ages of 18-50 if there are no children in the home; or
- There are changes in income:
 - There are income changes of more than \$125 except, you do not have to tell us if your TANF income changes if your TANF case is in Virginia;
 - The source of your income changes, including if you start or stop a job; or
 - Your job switches from full-time to part-time or part-time to full-time.

SNAP RESPONSIBILITIES AND PENALTIES FOR VIOLATIONS

You must not:

- give false information or hide information to get SNAP benefits;
- trade or sell EBT cards or attempt to trade or sell EBT cards;
- use SNAP benefits to buy non-food items, such as alcohol, tobacco or paper products;
- use someone else's EBT card for your household;
- buy an item and discard the contents in order to get the return deposit for the container;
- resell a purchased product for cash or exchange a purchased product for consideration other than eligible food; or
- purchase food on credit.

If you intentionally break any of these rules, you could be barred from getting SNAP benefits for 12 months (1st violation), 24 months (2nd violation), or permanently (3rd violation); fined up to \$250,000, imprisoned up to 20 years, or both; and suspended for an additional 18 months and further prosecuted under other Federal and State laws.

If you intentionally give false information or hide information about identity or residence to get SNAP benefits in more than one locality at the same time, you could be barred for 10 years.

If you are convicted in court of trading or selling SNAP benefits of \$500.00 or more, you could be barred permanently.

If you are convicted in court of trading SNAP benefits for a controlled substance, you could be barred for 24 months for the 1st violation, permanently for the 2nd violation.

If you are convicted in court of trading SNAP benefits for firearms, ammunition, or explosives, you could be barred permanently for the first violation.

BY MY SIGNATURE BELOW, I DECLARE:

- I read the information at the beginning of this application and the Change Reporting and Penalties section of this application.
- I understand that if I refuse to cooperate with any review of my eligibility, including a review by Quality Control, my benefits may be denied until I cooperate.
- I understand that if my application is for SNAP benefits, failure to report or verify any of my expenses will be seen as a statement by my household that I do not want to receive a deduction for these expenses.
- I have given true and correct information on this application to the best of my knowledge and belief. I understand that if I give false information, withhold information, or fail to report a change promptly or on purpose, I may be breaking the law and could be prosecuted for perjury, larceny, and/or welfare fraud. I understand that if I help someone complete this form in order to get benefits he or she is not entitled to receive, I may be breaking the law and could be prosecuted.
- As a condition of receiving TANF, I agree to assign all of my rights to financial support paid to me and to anyone for whom I am receive TANF. After my application for TANF is approved, I agree to give any support payments I receive to the Division of Child Support Enforcement.
- I authorize the Department of Social Services and refugee service contractors to obtain any verification necessary to both determine and review financial assistance eligibility. This authorization is valid for one year from the date of my signature below. I understand that this time limit does not apply as long as my medical assistance case is open or to investigations regarding possible fraud.
- As an applicant for Auxiliary Grants, I understand that my application will be evaluated for Medicaid. I agree to assign my rights to medical support and other third-party payments to the Department of Medical Assistance Services (DMAS). I also agree to assign the rights of anyone for whom I am applying for Auxiliary Grants to medical support and other third-party payments to DMAS. If I do not agree to assign these rights, I will be ineligible for Medicaid.
- I understand that, to the extent allowed by federal law, information about this application may be shared with agencies under the Secretary of Health and Human Resources for Virginia. Information about applicants for and recipients of services may be shared to: 1) streamline administrative processes and reduce administrative burdens on the agencies; 2) reduce paperwork and administrative burdens on applicants and recipients; and 3) improve access to and the quality of services provided by the agencies.
- I understand that different state agencies provide different services and benefits. Each agency must have specific information to determine eligibility services and benefits.
☐ **I allow** ☐ **I do not allow** the Department of Social Services to disclose certain information about me to other state agencies, including information in electronic databases, for the purpose of determining my eligibility for benefits/services provided by that agency. This disclosure will make it easier for agencies to work together efficiently to provide or coordinate services and benefits. Agencies include, but are not limited to, the Department of Health, and the Department for Aging and Rehabilitative Services. I can withdraw this authorization at any time by notifying my eligibility worker.

I filled in this application myself ☐ **YES** ☐ **NO**. If **NO**, it was read back to me when completed. ☐ **YES** ☐ **NO**.

Applicant's Signature or Mark

Date

Witness To Mark or Interpreter

Date

Signature of the Spouse or Authorized Representative

Date

Complete the section below **only** if this application was completed for the applicant by someone else.

Name of Person Completing Application

Date

Address

Primary Telephone

Alternate Telephone

Relationship to Applicant

AGENCY USE ONLY	
Case Name	Case Number
Locality	Date Received
Date of Interview:	☐ In office ☐ Telephone
Interviewer	Program (s)

APPLICATION FOR BENEFITS

FORM NUMBER - 032-03-1100

PURPOSE OF FORM - To record a household's request for assistance and to provide information about the current situation needed to determine eligibility.

NUMBER OF COPIES - One.

DISPOSITION OF FORM - The application is to be completed by or on behalf of the applying household. The completed application may be mailed to the agency or completed at the agency prior to or during an interview. The completed application must be filed in the eligibility case record. The application must be retained for a minimum of three years.

The application may be used to apply for benefits of other programs if assistance is requested within three months of the original filing date. The date of the application in this instance is the date of the secondary request.

INSTRUCTIONS FOR PREPARATION OF FORM - General instructions appear of the form for completion.

If changes need to be made after the application is completed, the applicant should write the revised information near the original entry. The applicant must initial and date the changes. Except for agency-use sections, eligibility workers may not add to or write on a completed application.

RENEWAL APPLICATION FOR AUXILIARY GRANT (AG), SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM (SNAP), AND TEMPORARY ASSISTANCE FOR NEEDY FAMILIES (TANF)

This is an application to renew your eligibility for benefits. You may bring this application to the local Department of Social Services office or mail it to the local Department of Social Services office. You may also apply online for renewal for SNAP or TANF at <https://commonhelp.virginia.gov/access/>.

A. HOUSEHOLD INFORMATION**1. Your Contact Information**

Your Name (last, first, middle initial)

Your Street Address (include apartment number)

City, State, ZIP

Your Mailing Address (if different from your street address)

City, State, ZIP

In what city or county do you live?

E-mail Address

Primary Telephone Number

Alternate Telephone Number**Primary Method of Correspondence**

If you would like to receive either text or email messages notifying you that some notices about your benefits may be accessed electronically through CommonHelp (www.CommonHelp.Virginia.gov), select one of the choices below. List either a cell telephone number or an email address. Once you choose a preferred electronic method of correspondence, it will be used for all programs on the case for which you have applied. If you do not choose to be notified by text or email, you will receive all written correspondence through the U.S. mail.

If you are completing this application on behalf of another individual as an authorized representative, all correspondence to you will be mailed. The applicant may contact the local department of social services to learn how to change the method of correspondence.

☐ **Text** ☐ **Email Cell Phone Number** _____ **Email Address** _____

2. Household Composition: This section includes information about everyone living in your home, even if you are not applying for that person. You may leave the Social Security Number blank if you are not applying for assistance for the person.**1**

Name (last, first, middle initial)**Self**

Relationship to You

Birth Date (mm-dd-yyyy)

Social Security Number: _____

City, State, Country of Birth: _____**Gender:** ☐ Male ☐ Female**Are you a U.S. citizen?** ☐ Yes ☐ No**Marital Status:** ☐ Married ☐ Never Married

If No, immigration status: _____

☐ Separated ☐ Divorced ☐ Widowed**US Residency Date:** __/__/__**Highest Grade Completed:** _____**Alien Registration Number:** _____**School Name if a Student:** _____**Are you disabled or pregnant?** ☐ Yes ☐ No**Are you a veteran or dependent?** ☐ Yes ☐ No :**Are you temporarily living away from home?** ☐ Yes ☐ No**Program(s) Requested:****Date Left** __/__/__ **Expected Return Date** __/__/__☐ None ☐ AG ☐ SNAP ☐ TANF**Reason for being away:** _____**Providing the following information is voluntary and will not affect eligibility. Please check all that apply.****Ethnicity:** ☐ Hispanic/Latino ☐ Not Hispanic/Latino**Racial Heritage:** ☐ White ☐ Black/African American ☐ Asian ☐ Asian & Black/African American ☐ Asian & White☐ American Indian/Alaskan Native ☐ Black/African American & White ☐ American Indian/Alaskan Native & White☐ Native Hawaiian/Other Pacific Islander ☐ American Indian/Alaskan Native & Black ☐ Other/Unknown

Household Composition (continued)

If you need more space to list your household members, please ask for another form or write the information on a separate sheet.

2**Name** (last, first, middle initial) _____**Social Security Number:** _____**Gender:** ☐ Male ☐ Female**Marital Status:** ☐ Married ☐ Never Married☐ Separated ☐ Divorced ☐ Widowed**Highest Grade Completed:** _____**School Name if a Student:** _____**Is this person a veteran or dependent?** ☐ Yes ☐ No :**Program(s) Requested:**☐ None ☐ AG ☐ SNAP ☐ TANF**Relationship to Applicant** _____**Birth Date** (mm-dd-yyyy) _____**City, State, Country of Birth:** _____**Is this person a U.S. citizen?** ☐ Yes ☐ No

If No, immigration status: _____

US Residency Date: ____/____/____**Alien Registration Number:** _____**Is this person disabled or pregnant?** ☐ Yes ☐ No**Is this person temporarily away from home?** ☐ Yes ☐ No**Date Left** ____/____/____ **Expected Return Date** ____/____/____**Reason for being away:** _____**Providing the following information is voluntary and will not affect eligibility. Please check all that apply.****Ethnicity:** ☐ Hispanic/Latino ☐ Not Hispanic/Latino**Racial Heritage:** ☐ White ☐ Black/African American ☐ Asian ☐ Asian & Black/African American ☐ Asian & White☐ American Indian/Alaskan Native ☐ Black/African American & White ☐ American Indian/Alaskan Native & White☐ Native Hawaiian/Other Pacific Islander ☐ American Indian/Alaskan Native & Black ☐ Other/Unknown**3****Name** (last, first, middle initial) _____**Social Security Number:** _____**Gender:** ☐ Male ☐ Female**Marital Status:** ☐ Married ☐ Never Married☐ Separated ☐ Divorced ☐ Widowed**Highest Grade Completed:** _____**School Name if a Student:** _____**Is this person a veteran or dependent?** ☐ Yes ☐ No :**Program(s) Requested:**☐ None ☐ AG ☐ SNAP ☐ TANF**Relationship to Applicant** _____**Birth Date** (mm-dd-yyyy) _____**City, State, Country of Birth:** _____**Is this person a U.S. citizen?** ☐ Yes ☐ No

If No, immigration status: _____

US Residency Date: ____/____/____**Alien Registration Number:** _____**Is this person disabled or pregnant?** ☐ Yes ☐ No**Is this person temporarily away from home?** ☐ Yes ☐ No**Date Left** ____/____/____ **Expected Return Date** ____/____/____**Reason for being away:** _____**Providing the following information is voluntary and will not affect eligibility. Please check all that apply.****Ethnicity:** ☐ Hispanic/Latino ☐ Not Hispanic/Latino**Racial Heritage:** ☐ White ☐ Black/African American ☐ Asian ☐ Asian & Black/African American ☐ Asian & White☐ American Indian/Alaskan Native ☐ Black/African American & White ☐ American Indian/Alaskan Native & White☐ Native Hawaiian/Other Pacific Islander ☐ American Indian/Alaskan Native & Black ☐ Other/Unknown**4****Name** (last, first, middle initial) _____**Social Security Number:** _____**Gender:** ☐ Male ☐ Female**Marital Status:** ☐ Married ☐ Never Married☐ Separated ☐ Divorced ☐ Widowed**Highest Grade Completed:** _____**School Name if a Student:** _____**Is this person a veteran or dependent?** ☐ Yes ☐ No :**Program(s) Requested:**☐ None ☐ AG ☐ SNAP ☐ TANF**Relationship to Applicant** _____**Birth Date** (mm-dd-yyyy) _____**City, State, Country of Birth:** _____**Is this person a U.S. citizen?** ☐ Yes ☐ No

If No, immigration status: _____

US Residency Date: ____/____/____**Alien Registration Number:** _____**Is this person disabled or pregnant?** ☐ Yes ☐ No**Is this person temporarily away from home?** ☐ Yes ☐ No**Date Left** ____/____/____ **Expected Return Date** ____/____/____**Reason for being away:** _____**Providing the following information is voluntary and will not affect eligibility. Please check all that apply.****Ethnicity:** ☐ Hispanic/Latino ☐ Not Hispanic/Latino**Racial Heritage:** ☐ White ☐ Black/African American ☐ Asian ☐ Asian & Black/African American ☐ Asian & White☐ American Indian/Alaskan Native ☐ Black/African American & White ☐ American Indian/Alaskan Native & White☐ Native Hawaiian/Other Pacific Islander ☐ American Indian/Alaskan Native & Black ☐ Other/Unknown

Household Composition (continued)**5****Name** (last, first, middle initial) _____**Social Security Number:** _____**Gender:** ☐ Male ☐ Female**Marital Status:** ☐ Married ☐ Never Married☐ Separated ☐ Divorced ☐ Widowed**Highest Grade Completed:** _____**School Name if a Student:** _____**Is this person a veteran or dependent?** ☐ Yes ☐ No :**Program(s) Requested:**☐ None ☐ AG ☐ SNAP ☐ TANF**Relationship to Applicant****Birth Date** (mm-dd-yyyy) _____**City, State, Country of Birth:** _____**Is this person a U.S. citizen?** ☐ Yes ☐ No

If No, immigration status: _____

US Residency Date: ____/____/____**Alien Registration Number:** _____**Is this person disabled or pregnant?** ☐ Yes ☐ No**Is this person temporarily away from home?** ☐ Yes ☐ No**Date Left** ____/____/____ **Expected Return Date** ____/____/____**Reason for being away:** _____**Providing the following information is voluntary and will not affect eligibility. Please check all that apply.****Ethnicity:** ☐ Hispanic/Latino ☐ Not Hispanic/Latino**Racial Heritage:** ☐ White ☐ Black/African American ☐ Asian ☐ Asian & Black/African American ☐ Asian & White
☐ American Indian/Alaskan Native ☐ Black/African American & White ☐ American Indian/Alaskan Native & White
☐ Native Hawaiian/Other Pacific Islander ☐ American Indian/Alaskan Native & Black ☐ Other/Unknown**6****Name** (last, first, middle initial) _____**Social Security Number:** _____**Gender:** ☐ Male ☐ Female**Marital Status:** ☐ Married ☐ Never Married☐ Separated ☐ Divorced ☐ Widowed**Highest Grade Completed:** _____**School Name if a Student:** _____**Is this person a veteran or dependent?** ☐ Yes ☐ No :**Program(s) Requested:**☐ None ☐ AG ☐ SNAP ☐ TANF**Relationship to Applicant****Birth Date** (mm-dd-yyyy) _____**City, State, Country of Birth:** _____**Is this person a U.S. citizen?** ☐ Yes ☐ No

If No, immigration status: _____

US Residency Date: ____/____/____**Alien Registration Number:** _____**Is this person disabled or pregnant?** ☐ Yes ☐ No**Is this person temporarily away from home?** ☐ Yes ☐ No**Date Left** ____/____/____ **Expected Return Date** ____/____/____**Reason for being away:** _____**Providing the following information is voluntary and will not affect eligibility. Please check all that apply.****Ethnicity:** ☐ Hispanic/Latino ☐ Not Hispanic/Latino**Racial Heritage:** ☐ White ☐ Black/African American ☐ Asian ☐ Asian & Black/African American ☐ Asian & White
☐ American Indian/Alaskan Native ☐ Black/African American & White ☐ American Indian/Alaskan Native & White
☐ Native Hawaiian/Other Pacific Islander ☐ American Indian/Alaskan Native & Black ☐ Other/Unknown

- ☐ YES ☐ NO 1. Have any of your children received any immunizations since approval of your original application or since your most recent review? If YES, explain: _____
- ☐ YES ☐ NO 2. Have you or anyone for whom you are applying ever been disqualified from receiving TANF (AFDC) or SNAP benefits? If YES, explain: _____
- ☐ YES ☐ NO 3. Is anyone in violation of parole or probation or fleeing capture to avoid prosecution or punishment of a felony? If YES, explain: _____
- ☐ YES ☐ NO 4. Have you or anyone for whom you are applying ever been convicted of a felony as an adult on or after February 8, 2014 for the following:
- e. Aggravated sexual abuse under Title 18 United States Code (USC), Section 2241 or a similar state offense? ☐ YES ☐ NO
 - f. Murder under Title 18 USC, Section 1111 or a similar state offense? ☐ YES ☐ NO
 - g. An offense under Title 18 USC, Chapter 110 (sexual exploitation and other abuse of children) or a similar state offense? ☐ YES ☐ NO
 - h. A federal or state offense involving sexual assault, as defined in Section 40002(a) of the Violence Against Women Act of 1994 (42 USC 13925(a)) ? ☐ YES ☐ NO
- If YES to any of the above, who? _____
- If YES to any of the above, are you in compliance with the terms of the sentence? ☐ YES ☐ NO

B. RESOURCES

You do not have to complete this section if you are only renewing for TANF. Otherwise, answer for everyone for whom you are applying. Include any resources anyone owns, or that are jointly owned with someone else, even if that person does not live with you. List the names of all joint owners.

1. Do you or anyone who lives with you have any of the following resources or assets?

Yes	No	Yes	No	Yes	No
☐	☐ Cash \$ _____	☐	☐ Checking, Savings	☐	☐ Credit Union
☐	☐ 401K, 403B, etc.	☐	☐ Promissory notes	☐	☐ Money Market Funds
☐	☐ Individual Retirement Account (IRA)	☐	☐ Christmas Club	☐	☐ Deeds of Trust
☐	☐ Deferred Compensation Plan	☐	☐ Uniform Gift to Minor Account	☐	☐ Retirement accounts
☐	☐ Keogh Plan	☐	☐ Certificate of Deposit (CD)	☐	☐ Trust funds
☐	☐ Stocks or bonds	☐	☐ Pension plans	☐	☐ ABLE Account
☐	☐ Other _____				

— If you have **any of the above**, please provide the following information:

a.

Owner Name (last, first, middle initial)		Co-Owner Name (last, first, middle initial)	
Name of Bank or Institution	Account Type	Account Number	\$ Balance
Address of Bank or Institution			

b.

Owner Name (last, first, middle initial)		Co-Owner Name (last, first, middle initial)	
Name of Bank or Institution	Account Type	Account Number	\$ Balance
Address of Bank or Institution			

- ☐ YES ☐ NO 2. Has anyone received or expect to receive winnings of \$4,500 or more from lottery or gambling? If **YES**, explain: _____
- ☐ YES ☐ NO 3. Has anyone sold, transferred or given away any resources in the last 3 months (for SNAP), in the last 3 years (for Auxiliary Grants)? If **YES**, explain: _____

Note: Additional Resource information may be needed section if you are applying for the Auxiliary Grant program.

C. INCOME

1. Do you or anyone who lives with you receive or expect to receive any of the following types of money from working? Include money from all jobs that you have now or expect to begin full time, part time, seasonal, temporary, self-employment. Answer Yes or No below and provide the requested information:

Yes	No	Yes	No	Yes	No
☐	☐ Wages/Salary	☐	☐ Earned Sick Pay	☐	☐ Self-employment
☐	☐ Contract Income	☐	☐ Babysitting/Adult or childcare	☐	☐ Any other money from working
☐	☐ Vacation Pay	☐	☐ Farming/Fishing		
☐	☐ Commissions, Bonuses, Tips	☐	☐ Odd jobs		

Name (last, first, middle initial)	Employer Name, Address and Telephone Number
Number of Hours Per Week	Pay Schedule ☐ Weekly ☐ Monthly ☐ Biweekly ☐ Twice a Month ☐ Other
Date Job Started	Next Pay Date (mm/dd/yyyy)

Name (last, first, middle initial)	Employer Name, Address and Telephone Number
Number of Hours Per Week	Pay Schedule ☐ Weekly ☐ Monthly ☐ Biweekly ☐ Twice a Month ☐ Other
Date Job Started	Next Pay Date (mm/dd/yyyy)

INCOME (continued)

☐ YES ☐ NO 2. Has anyone been fired, laid off, gone on sick or maternity leave, gone on strike, quit a job, or reduced hours worked since you applied? If **YES**, give name and explain: _____

3. Do you or anyone who lives with you (including children) receive or expect to receive any of the following? Answer yes or no below and provide the requested information

Yes	No	Yes	No	Yes	No
☐	☐ Social Security	☐	☐ VA benefits	☐	☐ Strike benefits
☐	☐ Child support, alimony	☐	☐ Unemployment benefits	☐	☐ Prize winnings
☐	☐ Cash gifts or contributions	☐	☐ Room/board income	☐	☐ All food, clothing, utilities, or rent
☐	☐ Loans	☐	☐ Black Lung benefits	☐	☐ Other retirement
☐	☐ SSI	☐	☐ Worker compensation	☐	☐ Interest, dividends
☐	☐ Military Allotment	☐	☐ Rental Income	☐	☐ Insurance settlement
☐	☐ Public Assistance (TANF, GR etc)	☐	☐ Inheritance	☐	☐ Any other type of money
☐	☐ Training allowances (WIA, etc.)	☐	☐ Railroad retirement		

a.	\$		
Name of Person	Amount	Type of Money or Help	How Often Received?
b.	\$		
Name of Person	Amount	Type of Money or Help	How Often Received?
c.	\$		
Name of Person	Amount	Type of Money or Help	How Often Received?

☐ YES ☐ NO 4. Does anyone besides the people on your case pay directly for you, help you pay, or lend you money to pay rent, utilities, medical bills or any other bills? OR does anyone totally supply food, shelter or clothing for you or someone else on a regular basis? If **YES**, give name, amount, and explain: _____

☐ YES ☐ NO 5. Does anyone have a day care expense for a child, an elderly person, or an adult with a disability? If **YES**, give name, amount and explain: _____

☐ YES ☐ NO 6. Does anyone pay legally obligated child support to someone not in the household? If **YES**, give name of person paying, person supported, and amount: _____

D. FINANCIAL ASSISTANCE FOR CHILDREN

☐ YES ☐ NO 1. Has the absent parent(s) begun supporting the children or changed the amount of support?

If **YES**, explain: _____

☐ YES ☐ NO 2. Has the legal parent(s) become disabled such that he or she is unable to work? If **YES**, explain: _____

☐ YES ☐ NO 3. Do you have any new information that would help us locate the absent parent(s)? If **YES**, explain; _____

E. SNAP BENEFITS

1. List the name of the person who is the head of your household: _____
2. An authorized representative may apply for SNAP benefits on your behalf, receive and use your SNAP benefits on your behalf, or receive copies of your program notices. If you want to name an authorized representative, please give the information below about the representative and what you want the representative to do on your behalf.

Name, Address and Telephone Number of the Authorized Representative	Check (✓) each duty authorized for that person
	☐ Apply for SNAP benefits ☐ Receive correspondence ☐ Receive or use SNAP benefits

- ☐ YES ☐ NO 3. Is anyone living in your home NOT included in your SNAP application? If **YES**, do you and everyone for whom you are applying usually purchase and prepare meals apart from these people? Or, do you intend to do so if your application for SNAP benefits is approved? Check (✓) ☐ YES ☐ NO

- ☐ YES ☐ NO 4. Is anyone living in your home a roomer or boarder? If **YES**, list names: _____

- ☐ YES ☐ NO 5. Is anyone age 60 or older OR approved to receive Medicaid because of a disability OR receiving any type of disability payment? If **YES**, list all current medical expenses for these people.

Household Member with Medical Expense	Type of Expense	Amount	Name of Doctor, Hospital, Pharmacy

- ☐ YES ☐ NO 6. Do you have any of the following shelter expenses? If **YES**, list your current expenses. Check (✓) here ☐ if these expenses are for a house you do not live in.

Expense	Amount Billed	How Often Billed?	Who is Responsible for the Bill?
Rent/Mortgage			
Taxes			
Insurance			
Electricity			
Gas/Oil/Kerosene			
Coal/Wood			
Water/Sewage/Garbage			
Telephone			
Installation			

6a How do you heat your home? _____

- ☐ YES ☐ NO 6b Do you have air conditioning in your home?

- ☐ YES ☐ NO 6c Did you receive energy/fuel assistance during this past year while living in your current home?

- ☐ YES ☐ NO 6d Are you staying temporarily in someone else's home, an emergency shelter, welfare hotel, other halfway house, or a place not usually used for sleeping? If **YES**, how much does it cost to stay there during the month?

If you are staying temporarily in someone else's home, when did you move there? _____

USDA Nondiscrimination Statement

In accordance with federal civil rights laws and U.S. Department of Agriculture (USDA) civil rights regulations and policies, the USDA, its agencies, offices, and employees, and institutions participating in or administering USDA programs are prohibited from discriminating based on race, color, national origin, sex (including gender identity and sexual orientation), religious creed, disability, age, political beliefs, or reprisal or retaliation for prior civil rights activity in any program or activity conducted or funded by USDA. Programs that receive federal financial assistance from the U.S. Department of Health and Human Services (HHS), such as Temporary Assistance for Needy Families (TANF), and programs HHS directly operates are also prohibited from discrimination under federal civil rights laws and HHS regulations.

Persons with disabilities who require alternative means of communication for program information (e.g., Braille, large print, audiotape, American Sign Language), should contact the agency (state or local) where they applied for benefits. Individuals who are deaf, hard of hearing or who have speech disabilities may contact USDA through the Federal Relay Service at (800) 877-8339. Additionally, program information may be made available in languages other than English.

CIVIL RIGHTS COMPLAINTS INVOLVING USDA PROGRAMS

USDA provides federal financial assistance for many food security and hunger reduction programs such as the Supplemental Nutrition Assistance Program (SNAP), the Food Distribution Program on Indian Reservations (FDPIR) and others. To file a program complaint of discrimination, complete the Program Discrimination Complaint Form, (AD-3027) found online at: <https://www.usda.gov/sites/default/files/documents/USDA-OASCR-P-Complaint-Form-0508-0002-508-11-28-17Fax2Mail.pdf>, and at any USDA office or write a letter addressed to USDA and provide in the letter all of the information requested in the form. To request a copy of the complaint form, call (866) 632-9992. Submit your completed form or letter to USDA by:

5. **mail:** Food and Nutrition Service, USDA, 1320 Braddock Place, Room 334, Alexandria, VA 22314; or
6. **fax:** (833) 256-1665 or (202) 690-7442; or
7. **phone:** (833) 620-1071; or
8. **email:** FNCSIVILRIGHTSCOMPLAINTS@usda.gov.

For any other information regarding SNAP issues, persons should either contact the USDA SNAP hotline number at (800) 221-5689, which is also in Spanish, or call the [state information/hotline numbers](#) (click the link for a listing of hotline numbers by state); found online at: [SNAP hotline](#).

CIVIL RIGHTS COMPLAINTS INVOLVING HHS PROGRAMS

HHS provides federal financial assistance for many programs to enhance health and well-being, including TANF, Head Start, the Low-Income Home Energy Assistance Program (LIHEAP), and others. If you believe that you have been discriminated against because of your race, color, national origin, disability, age, sex (including pregnancy, sexual orientation, and gender identity), or religion in programs or activities that HHS directly operates or to which HHS provides federal financial assistance, you may file a complaint with the Office for Civil Rights (OCR) for yourself or for someone else.

To file a complaint of discrimination for yourself or someone else regarding a program receiving federal financial assistance through HHS, complete the form online through OCR's Complaint Portal at <https://ocrportal.hhs.gov/ocr/>. You may also contact OCR via

4. **mail:** Centralized Case Management Operations, U.S. Department of Health and Human Services, 200 Independence Avenue, S.W., Room 509F HHH Bldg., Washington, D.C. 20201; or
5. **fax:** (202) 619-3818; or
6. **email:** OCRmail@hhs.gov.

For faster processing, we encourage you to use the OCR online portal to file complaints rather than filing via mail. Persons who need assistance with filing a civil rights complaint can email OCR at OCRMail@hhs.gov or call OCR toll-free at 1-800-368-1019, TDD 1-800-537-7697. For persons who are deaf, hard of hearing, or have speech difficulties, please dial 7-1-1 to access telecommunications relay services. We also provide alternative formats (such as Braille and large print), auxiliary aids and language assistance services free of charge for filing a complaint.

This institution is an equal opportunity provider.

Commonwealth of Virginia Voter Registration Agency Certification

If you are not registered to vote where you live now, would you like to apply to register to vote here today?
(Please check only one)

- ☐ I am already registered to vote at my current address, or I am not eligible to register to vote and do not need an application to register to vote.
- ☐ Yes, I would like to apply to register to vote. (Please fill out the voter registration application form)
- ☐ No, I do not want to register to vote.

If you do not check any box, you will be considered to have decided **not to** register to vote at this time. Applying to register to vote or declining to register to vote will not affect the assistance or services that you will be provided by this agency. If you decline to register to vote, this fact will remain confidential. If you do register to vote, the office where your application was submitted will be kept confidential, and it will be used only for voter registration purposes. If you would like help filling out the voter registration application form, we will help you. The decision whether to seek or accept help is yours. You may fill out the application form in private if you desire.

If you believe that someone has interfered with your right to register or to decline to register to vote, your right to privacy in deciding whether to register or in applying to register to vote, you may file a complaint with: Secretary of the Virginia State Board of Elections, Washington Building, 1100 Bank Street, Richmond, VA 23219-3497, telephone (804) 864-8901.

Applicant Name	Signature	Date
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for agency use only

Voter Registration form completed: ☐ Yes ☐ No
Voter Registration form given to applicant for later mailing (at applicant's request) ☐

Agency Staff Signature

Date

VERIFICATION AND USE OF INFORMATION

Information you give on this application, including Social Security numbers (SSN), may be matched against federal, state, and local records. These records include:

- Virginia Employment Commission (VEC)
- Internal Revenue Service (IRS)
- Social Security Administration (SSA)
- Department of Motor Vehicles (DMV)
- US Citizenship and Immigration Services (USCIS)
- Income and Eligibility Verification System (IEVS)

SNAP CHANGE REPORTING

You must report changes that occur for SNAP but, what you must report is tied to how long you are determined eligible for benefits, the certification period. You must report changes that occur during the certification period within 10 days, but no later than the 10th day of the month after the change occurs.

Changes that need to be reported during the certification period for SNAP depend on the length of the certification period. "Simplified Reporting" applies to households that are eligible for SNAP benefits for five (5) months or longer. "Change Reporting" applies to households that are eligible for one (1) month to four (4) months.

INTERIM REPORT FILING

In addition to reporting changes when they occur during the SNAP certification period, Simplified Reporting households may be required to submit an Interim Report in the sixth or twelfth month. The Interim Report is used to determine the amount of SNAP benefits households will receive for the second half of the certification period. The Interim Report provides a snapshot of household circumstances that were presented at the time of application. We will ask for proof of income changes and changes in legal obligations to pay child support. If households fail to return the completed Interim Report by the fifth of the month, SNAP benefits for the seventh or thirteenth month may be delayed or closed. Assistance for filing the Interim Report is available by calling the telephone number printed on the form.

DOMESTIC VIOLENCE INFORMATION

Domestic violence information and services are available to anyone experiencing violence or abuse from their partner. If you are in immediate danger, call 911. If you would like to speak with, text or chat with someone who understands these issues or to learn about services and safety options, contact the Virginia Statewide Hotline.

- Call and speak with an advocate toll-free at 1-800-838-8238. (Note: Interpreters are available for more than 200 languages via the Language Line.)
- Text with an advocate at 804-793-9999.
- Chat with an advocate at <https://www.vadata.org/chat/>. (Chat feature works best on a computer or tablet.)
- Call and speak with an advocate - LGBTQ Helpline: 1-866-356-6998

BY MY SIGNATURE BELOW, I DECLARE, UNDER PENALTY OF PERJURY, THAT THE INFORMATION PRESENTED HERE IS CORRECT AND COMPLETE TO THE BEST OF MY KNOWLEDGE AND BELIEF.

I understand:

- All of my responsibilities, including my responsibility to report required changes on time.
- If I give false, incorrect, or incomplete information, or do not report required changes on time, I may be breaking the law and could be prosecuted.
- If I helped someone complete this form so as to get benefits he or she is not entitled to, I may be breaking the law and could be prosecuted.
- If I refuse to cooperate with any review of my eligibility, including reviews by Quality Assurance, my benefits may be denied until I cooperate.
- If my application is for SNAP, failure to report or verify my expenses will be seen as a statement by my household that I do not want to receive a deduction for unreported expenses.

My signature authorizes the release to this agency of all information necessary to both determine and review my eligibility. This authorization is valid for one year from the date of my signature below. I understand that this time limit does not apply to investigations regarding possible fraud.

I filled in this application myself: ☐ Yes ☐ No If NO, it was read back to me when complete: ☐ Yes ☐ No

Your Signature or Authorized Representative's Signature or Mark

Date

Witness to Mark or Interpreter

Date

Complete this section if this application was completed for the applicant by someone else.

Name of person completing application

Date

Relationship to applicant

Primary Telephone Number

Alternate Telephone Number

RENEWAL APPLICATION FOR AG, SNAP AND TANF

FORM NUMBER - 032-03-729A

PURPOSE OF FORM - To record a household's situation in order to renew or recertify eligibility.

USE OF FORM – This application is limited to renewal or recertification. This application may not be used in lieu of an application to apply for initial benefits, to reapply for benefits after a lapse in certification, or to protect the date of application. For AG, this application must be accompanied by Auxiliary Grant Supplemental Renewal Application (032-03-729C) to be a valid application.

NUMBER OF COPIES - One.

DISPOSITION OF FORM – This application must be completed at the time of the eligibility review. The completed application must be filed in the eligibility case record.

INSTRUCTIONS FOR PREPARATION OF FORM – The renewal application must be completed in its entirety, depending on the program requested. For example, the Resources section is needed for AG and SNAP, but this section may be omitted for TANF renewals. For an application for AG only, the TANF and SNAP sections may be omitted.

EVALUATION OF ELIGIBILITY

1. GENERAL INFORMATION

PROGRAM		APPLICATION DATE	INTERVIEW DATE
CASE NAME	CASE NUMBER		
SECONDARY CASE NAME	SECONDARY CASE NUMBER		
IDENTITY (NAME)	VERIFICATION		
HEAD OF HOUSEHOLD ADULT PARENT/PARENTAL CONTROL? ☐ Y ☐ N DESIGNATED BY HH ☐ AGENCY		FACE-TO-FACE INTERVIEW ☐ Y ☐ N IF NO, REASON: Telephone Interview? ☐ Y ☐ N	
ADDRESS	SECONDARY ADDRESS TYPE	INSTITUTIONAL STATUS Date NF CBC ACR ☐ ☐ ☐	
VERIFICATION/REMARKS	VIRGINIA ☐ Y ☐ N RESIDENT?	ACR/AFC RATE:	DMAS-96 ☐ Y ☐ N SAR ☐ Y ☐ N

2. MEMBER INFORMATION

NAME OR MBR#	HH/UNIT MEMBERSHIP CHECK (✓) IF INCLUDED						PERMANENT VERIFICATIONS CHECK (✓) IF REQ. MET				SNAPE/ESP/VIEW REGISTRATION OR REFERRAL	ATENDING SCHOOL?	DEPRIVATION (MED - ONLY EFF 7/1/99)	IMMUNIZATION REQUIREMENT MET?
	SNAP	TANF	MED	AG	MEDICAID/AG CATEGORY	OTHR (LIST)	SSN	DOB	CIT	REL	IF YES, DATE IF NO, REASON	DOCUMENT TRUANCY	GIVE REASON	GIVE VERIFICATION
	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐ Y ☐ N	☐ Y ☐ N	☐ Y ☐ N	☐ Y ☐ N
	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐ Y ☐ N	☐ Y ☐ N	☐ Y ☐ N	☐ Y ☐ N
	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐ Y ☐ N	☐ Y ☐ N	☐ Y ☐ N	☐ Y ☐ N
	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐ Y ☐ N	☐ Y ☐ N	☐ Y ☐ N	☐ Y ☐ N
	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐ Y ☐ N	☐ Y ☐ N	☐ Y ☐ N	☐ Y ☐ N
	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐ Y ☐ N	☐ Y ☐ N	☐ Y ☐ N	☐ Y ☐ N
	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐	☐ Y ☐ N	☐ Y ☐ N	☐ Y ☐ N	☐ Y ☐ N

NAME	PROGRAM	REASON FOR EXCLUSION, DISQUALIFICATION OR INELIGIBILITY	TIME PERIOD

ASSIGNMENT OF RIGHTS ☐ Y ☐ N	NOTICE OF COOPERATION AND GOOD CAUSE SIGNED? ☐ Y ☐ N IDENTITY EXCEPTION CLAIMED: ☐ Y ☐ N	GOOD CAUSE CLAIMED? ☐ Y ☐ N LIVING WITH SPECIFIED RELATIVE/GUARDIAN ☐ Y ☐ N
DEPRIVATION, TRUANCY, PREGNANCY, CONCEPTION/DELIVERY DATE, FOSTER CARE/ADOPTION STATUS, DISABILITY/BLINDNESS OR OTHER DOCUMENTATION		

3. MEDICAID

RETROACTIVE DETERMINATION NECESSARY? ☐ Y ☐ N RETROACTIVE PERIOD	POTENTIALLY PROTECTED MEMBERS PROTECTED MEMBERS (INCLUDED STATUS)	COMMUNITY SPOUSE? ☐ Y ☐ N
--	--	--

4. DOCUMENTATION OF UNIT OR HH MEMBERSHIP, MEDICAID PROTECTED STATUS, VOLUNTARY QUIT, WORK REDUCTION, WORK REQUIREMENT.

--

5. RESOURCES (EVALUATE SAVINGS OR INVESTMENT ACCOUNT FOR ANY PURPOSE LEADING TO SELF-SUFFICIENCY)

CASH ☐ Y ☐ N			ACCOUNTS ☐ Y ☐ N		STOCKS/BONDS ☐ Y ☐ N		PENSION PLANS ☐ Y ☐ N		RETIREMENT ☐ Y ☐ N		PROGRAM(S)	
MBR	TYPE	AMOUNT	INSTITUTION, ACCT NAME, ACCT#	VERIFICATION CALCULATIONS, WITHDRAWALS								
COUNTABLE												

PROMISSORY NOTES/DEEDS OF TRUST ☐ Y ☐ N BURIAL ☐ Y ☐ N PERSONAL PROPERTY ☐ Y ☐ N REAL PROPERTY ☐ Y ☐ N PROGRAM(S)

MBR	TYPE	AMOUNT	ADDITIONAL EXPLANATION, VERIFICATION, CALCULATIONS			
COUNTABLE						

VEHICLES ☐ Y ☐ N DMV ☐ MATCH ☐ NO MATCH DATE PROGRAM(S)

MBR	YEAR, MAKE, MODEL	USE	FMV	FS LIMIT	EXCESS	LIEN	EQUITY	VERIFICATION, CALCULATIONS			
COUNTABLE											

HEALTH INSURANCE ☐ Y ☐ N MEDICAID: HIPP APPLICATION, MEDICAL QUESTIONNAIRE COMPLETED ☐ Y ☐ N

MBR	TYPE	COMPANY	POLICY ID#	VERIFICATION	PREMIUM

LIFE INSURANCE ☐ Y ☐ N (NOT APPLICABLE FOR SNAP)

PROGRAM(S)

MBR	OWNER	TYPE	FACE \$	CASH \$	COMPANY ACCT#	VERIFICATION			
01									
						COUNTABLE			

6. TRANSFER OF RESOURCES ☐ Y ☐ N (MEDICAID: ALSO EVALUATE TRANSFER OF INCOME)

MBR	TYPE, DATE	VALUE	AMOUNT \$	VERIFICATION, CALCULATION OF PERIOD OF INELIGIBILITY	
					SNAP TANF MED _____

7. EARNED INCOME ☐ Y ☐ N

PROGRAM(S)

MBR	INCOME SOURCE	DATE REC'D	AMOUNT	FREQUENCY	HRS/WK	VERIFICATION			
						COUNTABLE			

8. UNEARNED INCOME ☐ Y ☐ N

PROGRAM(S)

MBR	INCOME SOURCE	DATE REC'D	AMOUNT	FREQUENCY	VERIFICATION			
					COUNTABLE			

VEC ☐ Match ☐ No Match Date SOLQ-I ☐ SVES ☐ Match ☐ No Match Date APCS ☐ Match ☐ No Match Date

CALCULATIONS (DOCUMENT DISREGARDS, INCOME SCREENINGS, SELF EMPLOYMENT EXPENSES, SCHOOL EXPENSES, CHILD SUPPORT)

APPLICATION FOR OTHER BENEFITS: (☐) SSA (☐) SSI (☐) UCB (☐) VA (☐) OTHER

TOTAL COUNTABLE RESOURCES			
SNAP	TANF	MEDICAID	
\$	\$	\$	\$

TOTAL COUNTABLE INCOME			
SNAP	TANF	MEDICAID	
\$	\$	\$	\$

9. EXPENSES

SHELTER EXPENSES ☐ Y ☐ N

TYPE OF EXPENSE	MO. AMT.	VERIFICATION
RENT/MORTGAGE		
ELECTRICITY		
GAS/KEROSENE/COAL OIL/WOOD		
WATER/SEWER		
GARBAGE		
INSTALLATION		
TAX/INSURANCE		

DAY CARE EXPENSES ☐ Y ☐ N CHILD SUPPORT DEDCUTION ☐ Y ☐ N

MBR	MO. AMT.	DESCRIPTION VERIFICATION

MEDICAL EXPENSES ☐ Y ☐ N

MBR	MO. AMT.	DESCRIPTION, VERIFICATION, METHOD OF DEDUCTION

UTILITY STANDARD ☐ Y ☐ N ☐ 1-3 ☐ 4+ PHONE STANDARD ☐ Y ☐ N HOMELESS STANDARD ☐ Y ☐ N

REASON FOR ENTITLEMENT TO STANDARD:

10. GENERAL RELIEF (MAINTENANCE)

Period of Unemployment

Applied for SSI ☐ Decision appealed ☐

Release of SSI check signed

Modified Standard ☐ Full Standard ☐

Reason for Standard

11. EMERGENCY ASSISTANCE (☐ GR (☐ TANF-EA

Date and Reason for Emergency:

Assistance Previously Received ☐ Y ☐ N

Date and Amount Received:

12. STATE AND LOCAL HOSPITALIZATION

MBR	Services Dates	Provider Name	Applied within 30 days? ☐ Y ☐ N

13. DIVERSIONARY ASSISTANCE PROGRAM

Loss/Delay of Income ☐ Y ☐ N TANF Requirement Met? ☐ Y ☐ N

Emergency Need \$ Type

TANF \$ (Max 4 months) Payment \$ Date Issued

Vendor Payment Issued to:

TANF Period of Ineligibility:

Diversionary Assistance Ineligibility (60 mos.) Ends:

Acceptance Signed: ☐ Y ☐ N Date:

EVALUATION:

14. SPEND-DOWN CALCULATION

COUNTABLE INCOME \$ \$ \$ SPEND-DOWN PERIOD: FROM TO

MINUS INCOME LEVEL Person(s) on Spend-down:

EXCESS INCOME Person(s) on Spend-down:

15. DISPOSITION

BENEFIT PROGRAMS

SNAP

MEDICAID

DATE GIVEN: BOOKLET

HOTLINE

HANDBOOK

PROGRAM	DISPOSITION (Denial Resources)	EFFECTIVE DATE/ CERT/COVERED PERIOD	HH/AU SIZE	MONTHLY BENEFITS	PRORATED BENEFITS	SIGNATURE AND DATE (WORKER/SUPERVISOR)

EVALUATION OF ELIGIBILITY

FORM NUMBER - 032-03-0823

PURPOSE OF FORM - To document verification of elements used to determine eligibility and to document eligibility decisions.

USE OF FORM – May be completed by the BPS at application and review.

NUMBER OF COPIES - One.

DISPOSITION OF FORM - The form is to be kept in the case record.

INSTRUCTIONS FOR PREPARATION OF FORM - Complete the elements required for the program. If an element section is not appropriate for the program, mark Not Applicable (NA). If an entire section does not apply, leave the section blank.

Complete the disposition section to summarize the eligibility decision. The form must be signed by the BPS and should be signed by the supervisor, if a review of the action is completed.

PARTIAL REVIEWS AND CHANGES

CASE NAME	CASE NUMBER	FIPS
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PROGRAM	ACTION DATE	EFFECTIVE DATE	REASON FOR REVIEW, METHODS AND DATES OF VERIFICATION	SIGNATURE AND DATE (Worker/Supervisor)

PROGRAM	ACTION DATE	EFFECTIVE DATE	REASON FOR REVIEW, METHODS AND DATES OF VERIFICATION	SIGNATURE AND DATE (Worker/Supervisor)

PARTIAL REVIEWS AND CHANGES

FORM NUMBER - 032-03-823B

PURPOSE AND USE OF FORM – May be completed by the eligibility worker to document changed information and partial eligibility evaluations.

NUMBER OF COPIES - One.

DISPOSITION OF FORM - The form is to be kept in the eligibility case record.

INSTRUCTIONS FOR PREPARATION OF FORM - Complete the identifying information for the case at the top of the form.

The BPS may complete the form to record changed elements and to document the impact of the change(s) on the household's eligibility.

SNAP – HOTLINE INFORMATION

NAME OF APPLICANT: _____

YOUR DATE OF APPLICATION: _____

**THE DATE THE AGENCY MUST GIVE YOU
YOUR SNAP BENEFITS OR A DECISION:** _____

☐ IF THIS BOX IS CHECKED, YOUR APPLICATION IS ENTITLED TO EXPEDITED SERVICE
(7-DAY SERVICE)

If you don't get your SNAP benefits or a decision by this date, you should call the Client Services Hotline for immediate help. The Hotline is open Monday through Friday, except holidays, from 8:15 a.m. to 5:00 p.m. The numbers are:

For the Richmond Calling Area: **804-692-2198**

For the Rest of Virginia: **1-800-552-3431**

Once you have called this number, you must be told by the next business day that you are either eligible or ineligible. If you are told that you are eligible, SNAP benefits will be provided the next business day. However, if you call before 3:00 p.m. on Thursday or Friday and are eligible, SNAP benefits will be provided on the next business day.

If you are not satisfied with the action the local agency took on your application, or if there are other problems with your SNAP case, you may contact the local legal aid office in your area. Names and addresses of legal aid offices are on the back of this flyer.

In order to determine if you are eligible for SNAP benefits, the agency may ask you to verify certain information. If you have provided the required verifications, you should either have your SNAP benefits or receive a denial notice within 30 days from the day you filed your application.

If you are in an emergency situation, you should have your SNAP benefits within 7 days. This is called "expedited service." Your application will be given expedited service if:

- Your household's monthly income is less than \$150, and resources are \$100 or less; or
- Your total income and resources are less than your shelter bills; or
- A migrant or seasonal farm worker lives in your household, and you have little or no income or resources.

Name of Worker Completing This Form

Date

Worker's Telephone

The Virginia Department of Social Services is an Equal Opportunity Provider

**Call 1-866-LEGLAID (1-866-534-5243) Legal Aid Hotline
or visit www.valegalaid.org**

Blue Ridge Legal Services, Inc.
204 N. High Street
Harrisonburg VA 22803
540- 433-1830
www.brls.org

Blue Ridge Legal Services, Inc.
303 S. Loudoun Street, Suite D
Winchester VA 22604
540-662-5021
www.brls.org

Blue Ridge Legal Services, Inc.
215 S. Main Street
Lexington VA 24450
540-463-7334
www.brls.org

Blue Ridge Legal Services, Inc.
132 Campbell Ave., SW, Suite 300
Roanoke VA 24011
540-344-2080
www.brls.org

Central VA Legal Aid Society
101 West Broad Street, Suite 101
Richmond VA 23220
804-648-1012, 800-868-1012
www.cvlas.org

Central VA Legal Aid Society
103 E. Water Street, Suites 201-202
Charlottesville VA 22901
434-296-8851, 800-390-9983
www.cvlas.org

Central VA Legal Aid Society
229 N. Sycamore Street, Suite A
Petersburg VA 23803
804-862-1100, 800-868-1012
www.cvlas.org

Legal Aid Justice Center
626 E. Broad Street, Suite 200
Richmond, VA 23219
804-643-1086
www.justice4all.org

Legal Aid Justice Center
6402 Arlington Blvd., Suite 1130
Falls Church, VA 22042
703-778-3450
www.justice4all.org

Legal Aid Justice Center
1000 Preston Avenue, Suite A
Charlottesville, VA 22903
434-977-0553
www.justice4all.org

Legal Aid Society of Roanoke Valley
132 Campbell Avenue SW, Suite 200
Roanoke VA 24011
540-344-2088
www.lasrv.org

Legal Aid Society of Eastern VA
125 St. Paul's Boulevard, Suite 400
Norfolk VA 23510
757-627-5423
www.laseva.org

Legal Services of Northern VA
10700 Page Avenue, Suite 100
Fairfax VA 22030
703-778-6800, 866-534-5243
www.lsnv.org

Legal Services of Northern VA
100 N. Pitt Street, Suite 307
Alexandria VA 22314
703-778-6800, 866-534-5243
www.lsnv.org

Legal Services of Northern VA
3401 Columbia Pike, Suite 301
Arlington VA 22204
703-778-6800, 866-534-5243
www.lsnv.org

Legal Services of Northern VA
8A South Street, SW
Leesburg VA 20175
703-778-6800, 866-534-5243
www.lsnv.org

Legal Services of Northern VA
500 Lafayette Boulevard, Suite 140
Fredericksburg VA 22401
703-778-6800, 866-534-5243
www.lsnv.org

Legal Services of Northern VA
9240 Center Street
Manassas VA 20110
703-778-6800 866-534-5243
www.lsnv.org

Legal Services of Northern VA
8350 Richmond Highway, Suite 309
Alexandria, VA 22309
703-778-6800, 866-534-5243
www.lsnv.org

Legal Aid Works
500 Lafayette Boulevard, Suite 100
Fredericksburg VA 22401
540-371-1105
LAWfred@LegalAidWorks.org

Rappahannock Legal Services, Inc.
1200 Sunset Lane, Suite 2122
Culpeper VA 22701
540-825-3131
LAWculp@LegalAidWorks.org

Legal Aid Works
311 Virginia Street
Tappahannock VA 22560
804-443-9394
LAWtapp@LegalAidWorks.org

Southwest VA Legal Aid Society, Inc.
227 West Cherry Street
Marion VA 24354
276-783-8300
svlas.org

Southwest VA Legal Aid Society, Inc.
155 Arrowhead Trail
Christiansburg VA 24073
540-382-6157
svlas.org

Southwest VA Legal Aid Society, Inc.
16932 West Hills Drive
Castlewood VA 24224
276-762-9354
svlas.org

Virginia Legal Aid Society
513 Church Street
Lynchburg VA 24504
434- 846-1326
vlas.org

Virginia Legal Aid Society
519 Main Street
Danville VA 24541
434-799-3550
vlas.org

Virginia Legal Aid Society, Inc.
217 E. Third Street
Farmville VA 23901
434-392-8108
vlas.org

Virginia Legal Aid Society, Inc.
16 Liberty Street Extension
Martinsville VA 24112
434-799-3550
vlas.org

Virginia Legal Aid Society, Inc.
2480 Pruden Blvd.
Suffolk VA 23434
757-539-3441
vlas.org

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SNAP - HOTLINE INFORMATION

FORM NUMBER - 032-03-0819

PURPOSE AND USE OF FORM - To inform each new or reapplying household of the time frame the agency must process its application.

NUMBER OF COPIES - One.

DISPOSITION OF FORM - The agency must complete the form and give it to the household on the day of application for benefits for any period for which the household has not already received benefits, i.e., new application, reapplication, or late recertification. The agency must mail the form if the application is file by mail or online.

INSTRUCTIONS FOR PREPARATION OF FORM -

The local agency must complete all blanks on the form.

Enter the name of the person filing the application at "Name of Applicant."

Enter the date the household filed the application at "Your Date of Application."

At "The Date the Agency Must Give You Your SNAP Benefits or Decision," enter the date that is 30 days from the date of application, unless the applicant is entitled to expedited service. If expedited service is appropriate, enter 7 days from the application date.

If the application is expedited, check the block indicating that entitlement.

Enter the information requested at "Name of Worker Completing This Form."

The worker must circle the name and number of the legal aid office serving the locality on the back of the flyer.

**DEPARTMENT OF SOCIAL SERVICES
Supplemental Nutrition Assistance Program (SNAP)**

KNOW YOUR RIGHTS WHEN APPLYING FOR SNAP Benefits

If you are interested in applying for SNAP benefits, here is information you need to know:

Persons applying for SNAP benefits must file an application by submitting the application form to the Department of Social Services in the county or city where they live. Submit the application either in person, through an authorized representative, online at <https://commonhelp.virginia.gov/access/>, by fax, by mail, or by telephone at 855.635.4370.

You have the right to file an application on the same day you contact the Department of Social Services in your locality. The address and hours of the office are shown at the bottom of this notice. Your application may be submitted any time during office hours.

You may come to the office to pick up an application any time during office hours, or the agency can mail you an application on the same day you request it.

If your resources and income are very low (\$100 in resources and \$150 in income), or you are a migrant or seasonal farm worker, or your combined gross monthly income and resources are less than your family's shelter expenses, you may be eligible for expedited service. This means that if you are eligible, you are entitled to receive benefits within 7 days following the date your application is filed at the local social services department.

Your application will be reviewed on the day it is received for possible eligibility for expedited service.

You have the right to file an application even if you appear to be ineligible for the program.

You or a designated authorized representative may file an incomplete application as long as it contains a name, address, and signature of a responsible household member or properly designated authorized representative. The agency has 30 days to process your application (7 days, if expedited). The 30-day (or 7-day, if expedited) processing time begins the day after the application is received at the office. Additionally, your SNAP benefits for the month of application will be prorated from the date of application if you are found eligible.

If your case is approved, you must receive your benefits within 30 days following the date of application (or 7 days, if expedited)

As part of the SNAP application process, you must have an interview before you are certified. The interview is not necessary before you file the application. The interview may be held in the office or by telephone.

SNAP has separate rules and processes from other programs. You should apply for SNAP benefits even if there are limitations on receiving benefits for other programs.

You are encouraged to apply for SNAP benefits the same day you contact the agency for assistance.

AGENCY NAME: _____

ADDRESS: _____

PHONE NUMBER: _____

OFFICE HOURS: _____

SNAP is administered without regard to race, color, national origin, sex (including gender identity and sexual orientation), religious creed, disability, age, political beliefs, or reprisal or retaliation for prior civil rights activity.

This institution is an equal opportunity provider.

KNOW YOUR RIGHTS WHEN APPLYING FOR SNAP BENEFITS

FORM NUMBER - 032-03-0821

PURPOSE OF FORM - To consolidate information the local agency must share with an applicant for SNAP benefits. The form is optional.

USE OF FORM - May be given to applicants requesting SNAP information instead of a verbal explanation of applicants' rights. The agency must advise applicants that the form is a listing of program rights. The agency must also ensure that the applicant is able to read the form and comprehend it.

NUMBER OF COPIES - One.

DISPOSITION OF FORM - The flyer may be given to applicants inquiring about SNAP benefits.

INSTRUCTIONS FOR PREPARATION OF FORM - Complete the identifying information at the bottom of the form, supplying the local agency's name, address, telephone number, and office hours.

EXPEDITED SERVICE CHECKLIST

NAME: _____

DATE: _____

- I. ☐ YES ☐ NO Has anyone for whom you are applying received SNAP benefits this month?

If YES, who: _____

where: _____

- II. INCOME BEFORE DEDUCTIONS this month for everyone in your household. Count money already received plus any money expected to be received during this month.

Type of Income

_____ \$ _____

_____ \$ _____

- III. RESOURCES for everyone in your household:

Cash on Hand \$ _____

Checking Accounts \$ _____

Savings Accounts \$ _____

- IV. SHELTER EXPENSES this month.

Rent/Mortgage \$ _____

Utility expenses this month \$ _____

Which utilities do you pay? (check all that apply)

- | | | |
|----------------------------------|---|------------------------------------|
| ☐ Heat | ☐ Lights | ☐ Telephone |
| ☐ Water | ☐ Electricity for Air Conditioning | |
| ☐ Garbage | ☐ Sewer | ☐ Other |

- V. ☐ YES ☐ NO Is anyone in your household a Migrant or a Seasonal Farm worker?

AGENCY USE ONLY

1. ☐ YES ☐ NO Is income less than \$150
AND resources \$100 or less?

IF YES, EXPEDITE

2. ☐ YES ☐ NO Is income plus resources less
than shelter?

Countable Income \$ _____

Countable Resources \$ _____

Total \$ _____

Shelter \$ _____

IF YES, EXPEDITE

NOTE: If the household is entitled to the Utility Standard, apply the Standard to determine Shelter, unless the household chooses to use actual shelter costs.

FOR MIGRANT & SEASONAL FARMWORKERS

- 3A. ☐ YES ☐ NO Are resources \$100 or less
AND, in the next 10 days,
\$25 or less is expected
from new income source?

IF YES, EXPEDITE

- 3B. ☐ YES ☐ NO Are resources \$100 or less
AND no income is expected
from a terminated source
this month or next month?

IF YES, EXPEDITE

DETERMINATION

☐ EXPEDITED ☐ NOT EXPEDITED

Screened by:

EXPEDITED SERVICE CHECKLIST

FORM NUMBER - 032-03-0718

PURPOSE OF FORM - To assist in screening households for entitlement to expedited services.

USE OF FORM - May be used for a new application, reapplication or a late recertification to identify households eligible for expedited service processing.

NUMBER OF COPIES - One.

DISPOSITION OF FORM - File in the case record.

INSTRUCTIONS FOR PREPARATION OF FORM - Obtain information on the left side of the form from the applicant or application. The applicant, BPS, screener, volunteer, or anyone else designated by the local department of social services, may complete the left side of form.

Local department of social services personnel must complete the "Agency Use Section." The form identifies each of the ways a household could be eligible for expedited service. If a household is entitled to expedited service, the BPS must conduct an interview, determine eligibility, and authorize benefits, if eligible, within the expedited service processing period.

NOTE: This form will assist in screening households for expedited services. Local departments that use appointment systems for interviews must screen all applicants to ensure that those entitled to expedited service receive appointments and delivered benefits within expedited period. Agencies that interview clients on a walk-in, daily basis may not necessarily need to use this checklist since determination for expedited service can occur during the interview.

CHECKLIST OF NEEDED VERIFICATIONS

Name Address	Case Number	
	Program(s)	Date
	Worker	Telephone FAX

In order for us to see if you are eligible for assistance, you must provide the information checked below. We will help you obtain the information. If you cannot provide the information, or if you need help in providing the information, contact your worker. Call collect, if necessary. If you do not provide this information or contact the agency by the following dates, your application may be denied.

TANF:

SNAP:

MEDICAID:

OTHER:

1. INCOME (Earned and Unearned)
for _____

- ☐ Pay stubs
- ☐ Statement from employer
- ☐ Self-employment records
- ☐ Social Security/SSI benefits
- ☐ VA benefits
- ☐ Retirement income
- ☐ Child support, alimony payments
- ☐ Unemployment benefits
- ☐ Worker's Compensation benefits
- ☐ Loans (personal or education)
- ☐ Scholarships, (BEOG, PELL SEOG, CSAP, or other)
- ☐ Work-study pay stubs
- ☐ Other _____

2. WORK OR SCHOOL EXPENSES

- ☐ Day care expenses for child or adult
- ☐ School expenses (tuition, fees, books supplies, transportation, or other)
- ☐ Other _____

3. RESOURCES

- ☐ Checking, savings, credit union, Christmas Club account statements
- ☐ Stocks, bonds or CDs
- ☐ Pension plans, retirement accounts, IRAs
- ☐ Burial plots, funds, contracts
- ☐ Real estate property
- ☐ Title, registration, or personal property tax receipt for motor vehicles, motor boats, motor homes

- ☐ Life insurance policies
- ☐ Other _____

4. SHELTER EXPENSES

- ☐ Rent or mortgage receipt
- ☐ Real estate taxes
- ☐ Homeowner's insurance
- ☐ Electric bill
- ☐ Gas/Kerosene/oil/wood bill
- ☐ Water/sewage bill
- ☐ Garbage bill
- ☐ Phone bill
- ☐ Initial installation charge
- ☐ Other _____

5. LEGALLY RESPONSIBLE
RELATIVE

- ☐ Income verification
- ☐ Statement of contribution
- ☐ Child support or alimony
- ☐ Extraordinary expenses
- ☐ Proof of continued absence
- ☐ Copy of support order
- ☐ Other _____

6. WORK REGISTRATION

- ☐ Registration information

7. IDENTITY

- ☐ Driver's license
- ☐ Voter registration card
- ☐ Clinic, medical card
- ☐ Work ID, school ID, library card
- ☐ Other _____

8. RESIDENCY, LIVING ARRANGEMENTS, SCHOOL ENROLLMENT

- ☐ Verification of residence
- ☐ Verification of child(ren) living in the home
- ☐ School enrollment
- ☐ Separate arrangements to buy and prepare food
- ☐ Other _____

9. DOCUMENTS

- ☐ SSN Cards/numbers
- ☐ Application for SSN card
- ☐ Declaration of citizenship
- ☐ Immigrant/Alien documentation
- ☐ Birth verification
- ☐ Verification of paternity
- ☐ Marriage certificate
- ☐ Divorce decree
- ☐ Death certificate
- ☐ Deprivation statement
- ☐ Other _____

10. MEDICAL INFORMATION

- ☐ Assignment of Rights form
- ☐ Medical form, statements
- ☐ Pregnancy statement
- ☐ Health insurance policies, cards
- ☐ Medicare card
- ☐ Health insurance premiums
- ☐ Medical bills for
- ☐ Prescription drug bills
- ☐ HIPP forms
- ☐ Immunization records
- ☐ Other _____

Other information or verification needed: _____

CHECKLIST OF NEEDED VERIFICATIONS

FORM NUMBER - 032-03-0814

PURPOSE OF FORM - To advise households of verifications needed to process their applications.

USE OF FORM - To be completed by the BPS and provided to the applicant to meet the requirement that households receive written notice of verification requirements. A written checklist is required for SNAP. It may be used to inform applicants of verifications needed for other programs.

NUMBER OF COPIES - Three.

DISPOSITION OF FORM - The original is given to the household. The agency retains a copy with the SNAP application and a copy may be filed with applications for other benefits.

INSTRUCTIONS FOR PREPARATION OF FORM - Complete the identifying information at the top of the form. Complete the sentence "Please provide information by: _____" with the date by which verification is needed. This date would be 10 days from the interview date or other date when the household was told what was needed. No action may be taken to deny the SNAP application, before the 30th day after the request date, if verification is not provided by the 10th day.

In the body of the form, check the items requiring verification.

Use the blank lines at the bottom of the form for additional information or instructions. For example, for expedited applications, information not available during the interview can be noted with instructions to submit the information within seven days following the application date. The form must still indicate the verifications needed for normal processing however.

CASE NUMBER
DATE
COUNTY/CITY

[	]
[	]

This is to inform you of action taken on your snap application/case.

SECTION 1. ACTION ON APPLICATION DATED

☐ Approved for following months
Amount first month \$__ Month covered __ Amount for following months \$__
You selected __ as Head of Household. If all adult members do not agree, contact your worker in 10 days.
NOTE: If you applied for both SNAP and TANF or GR-Unattached Child benefits at the same time, and then are approved for TANF or GR-Unattached Child benefits, your SNAP amount may be reduced without advance notice.

☐ If this box is checked, your application was approved even though some verification was postponed. We need the following information or verification from you: ____

If we do not receive these by _____ your case will be closed effective _____
If this verification results in changes in your household's eligibility or benefit amount, we will make the changes without another notice.

☐ Denied. If your application was denied because of your failure to provide proof/information, we will reopen your application if you provide the information by _____. See Section 3

☐ Continue to hold application pending. The cause for delay is:

☐ Agency delay. Your application will be processed as soon as possible.

☐ Client delay.

☐ We are waiting for the following information from you: _____
We must have this information by _____ or your application will be denied.

SECTION 2. ACTION ON SNAP CASE

☐ Changed from \$_____ to \$_____ effective _____

☐ If this box is checked, we must receive the following verification from you:

We must receive this verification by _____. If your benefit amount was increased but we do not receive this verification, your benefits will go back to the amount \$_____ effective _____ without advance notice.

☐ Reinstated - Amount \$_____ effective _____

☐ Supplemented - Amount \$_____ for the month of _____.

☐ Suspended for the month of _____.

☐ Terminated effective _____.

SECTION 3. ACTION ON SNAP CASE

Manual Reference:

YOU MUST REPORT IF YOUR HOUSEHOLD'S INCOME GOES OVER THE LIMIT OF \$

If necessary, you may call collect.

Children approved for SNAP benefits and attending public school may be eligible for free meals. Call your school for more information.

If you do not agree with the action we have taken or the amount of SNAP benefits you are receiving, you may have a fair hearing on your case. You must request your fair hearing within the next 90 days. If you appeal the action on your case before _____ assistance may continue. However, if assistance is continued, you may have to repay SNAP benefits you received during the appeal process if the hearing decision supports the agency action. For additional information about appeals and fair hearings, please see the back of this notice.

Benefit Program Specialist	Telephone Number	For Free Legal Advice Call 1-866-534-5243
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APPEALS AND FAIR HEARINGS

If you do not agree with the action we are proposing or the amount of benefits you are receiving, you may have a fair hearing on your case. At the hearing you will have a chance to explain why you think we made a mistake and a hearing officer will decide if you are right. A hearing gives you a chance to review the way a local social services agency handled your situation about your need for SNAP benefits. The hearing is a private, informal meeting at the local social services agency with you and anyone you want to bring as a witness or to help you tell your story, such as a lawyer. A representative of the local agency will be present as well as a hearings officer. The hearing officer is the official representative of the State Department of Social Services.

It is YOUR RIGHT TO APPEAL decisions of the local social services agency. If you want more information or help with an appeal, you may contact the local social services agency. It will not cost you anything to request a fair hearing, and you will not be penalized for asking for a fair hearing. If you want free legal advice, you may contact your local legal aid office.

How to File an Appeal

- Send a written request to the Virginia Department of Social Services, Attention: Hearing and Legal Services Manager, 5600 Cox Road, Glen Allen, VA 23060
- Call me at the number listed on the front
- Call 1-800-552-3431

When to Appeal

- Within the next 90 days.
- Within 10 days of the date on this form to get the SNAP benefits continued.*

* Note that you may have to repay benefits you received during the appeal process if the hearing decision supports the agency action.

Local Agency Conference

In addition to filing an appeal, you may have a conference with your local social services agency about the denial of your entitlement to expedited SNAP benefits. During the conference, the agency must explain why you were not entitled to expedited benefits. You will have the chance to present any information where you disagree with the agency's proposed action. You may present your story by an authorized representative, such as a friend, relative, or lawyer.

Hearing Process and Decision

The hearing officer will notify you of the date and time for your hearing at the local social services agency or at a location agreeable to you and the agency. If you cannot be there on that day, call the hearing officer and your eligibility worker immediately. If you need transportation, the local agency will provide it.

At the hearing, you and/or your representative will have the opportunity to:

- Examine all documents and records used at the hearing;
- Present your case or have it presented by a lawyer or by another authorized representative;
- Bring witnesses;
- Establish pertinent facts and advance arguments; and
- Questions or refute any testimony or evidence, including the opportunity to confront and cross-examine witnesses.

The hearings officer will base the decision only on the evidence and other material introduced at the hearing, except when medical information is requested or other essential information is needed. In this event, you and the local social services agency would have the opportunity to question or refute this additional information.

You will get the hearings officer's decision in writing on your appeal within 60 days of the date the State Department of Social Services receives your appeal request.

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NOTICE OF ACTION

FORM NUMBER - 032-03-0117

PURPOSE OF FORM - To notify an applicant/recipient of an eligibility action taken on an application or an ongoing SNAP case.

USE OF FORM - To be prepared and sent immediately or within the appropriate time standard following action on an application or a SNAP case unless automated notices are used.

The Notice of Action may be used in place of the Advance Notice of Proposed Action for SNAP only cases. It may be used in all instances where policy requires the use of an "adequate notice" for SNAP actions.

NUMBER OF COPIES - Two.

DISPOSITION OF FORM - The original must be sent to the head of the household. One (1) copy must be retained in the case file.

INSTRUCTIONS FOR PREPARATION OF FORM - Complete the identifying information at the top of the form.

SECTION 1

Use this section to inform the household of the disposition of an application, reapplication or recertification.

Enter the date of the application.

Check the appropriate box to show the disposition of the application.

For approvals, indicate the months of certification, the amount of benefits and months covered by the first issuance, and the amount for following months.

For application denials, note the deadline for submitting verification/information if the application is denied before the end of processing period.

If the application was expedited and verification was postponed, check the box which says "If this box is checked...." List the postponed verification, the date by which the verification is needed, and the effective date of closure if the verification is not received. The deadline date for submitting the verifications will be the 30th day after the application filing date and the closure date will be the last day of the month of application for applications filed before the 15th day of the month. For applications filed on or after the 16th day of the month, the verification deadline and closure date will be the last day of the month after the month of application.

For applications which must be held pending an additional 30 days, check whether the delay was caused by the agency or household. If information is still needed, indicate the missing information and date by which information is needed to prevent denial.

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SECTION 2

Use this section to inform the household of action taken on an ongoing SNAP case.

Check the appropriate box to show a change in an allotment, a reinstatement, a supplement, a termination or a suspension. An "other" block is also provided for situations that may not be covered by the choices listed.

Enter the effective date of the proposed action. For actions that require advance notice, enter either the last day of the month or the first day of the next month, provided that day is at least 10 days from the date the notice is given or mailed.

If verification is needed of a change, check the indented block which explains that verification must be received or the allotment will revert to the previous amount. Complete blanks as needed for the specific situation.

SECTION 3

Use this section to explain the reason for the action taken or to give a further explanation of any of the items checked in Sections 1 or 2.

Complete the information at the bottom of the form. A date must be entered in the space provided in the appeal information section whenever the form is sent for negative actions to reduce, terminate, or to suspend benefits. A date must not be entered when the form is sent for approvals or denials of applications.

ADVANCE NOTICE OF PROPOSED ACTION

Case number	Program
Date of Mailing:	
Call 1-866-534-5243 , Legal Aid Hotline, for free legal assistance.	

ACTION TO BE TAKEN ON YOUR CASE IS EXPLAINED BELOW.

☐ SNAP Benefits			
Your SNAP allotment will be: ☐ Reduced ☐ Suspended ☐ Terminated			
Effective Date:	Amount of reduction: From: To:	Eligibility Worker:	Telephone:
Reason for Proposed Action:			
Manual Reference			

☐ FINANCIAL ASSISTANCE			
Your assistance check will be : ☐ Reduced ☐ Suspended ☐ Terminated			
Effective Date:	Amount of Reduction: From: To:	Eligibility Worker:	Telephone:
Manual Reference:		Reason for proposed action:	
☐ VIEW Termination – The TANF case is closed until you reapply and are found eligible for TANF/TANF-UP			
☐ VIEW Sanction - your household's entire TANF or TANF-UP benefits will be suspended for the above reason.			
☐ 1 ST Sanction - 1 month and compliance ☐ 2 ND Sanction - 3 months and compliance ☐ 3 RD Sanction - 6 months and compliance			
YOU HAVE 10 DAYS AFTER THE DATE OF THIS NOTICE TO CONTACT YOUR VIEW WORKER TO SHOW DOCUMENTED GOOD CAUSE.			
VIEW worker's name		Telephone:	
☐ While your TANF payment is suspended, any support paid to the Division of Child Support Enforcement (DCSE) in the month of suspension for you or your dependents will be mailed to you. If your case is reinstated, any support paid to the DCSE for you or your dependents will be kept by the state to repay TANF assistance received by your family.			
☐ If there is someone who is supposed to pay support for you or your dependents, you will continue to receive support enforcement services unless you send written notice that you do not want this service to the Division of Child Support Enforcement. You can obtain their address and telephone number from your local social services agency.			

☐ MEDICAID OR FAMIS PLUS			
☐ No longer eligible for full Medicaid. Approved for limited Medicaid coverage: Qualified Medicare Beneficiary (QMB) Special Low-Income Medicare Beneficiary (SLMB) Qualified Individual (QI)			
☐ No longer eligible for Medicaid. ☐ No longer eligible for FAMIS PLUS.			
☐ No longer eligible for payment of long-term care because of transfer of assets.			
Effective Date	Manual Reference:	Benefit Program Specialist:	Telephone:
Ineligible family members:			
Reason for proposed action:			
☐ Income exceeds the full Medicaid limit. If medical or dental expenses of \$ _____ are incurred between _____ and _____ or medical or dental expenses of \$ _____ are incurred between _____ and _____, bring your bills to this agency and your eligibility will be reviewed.			
☐ Other: _____			

If you disagree with the action we have proposed, you may appeal the decision. If you appeal this action before _____, the change will not go into effect and your benefits for SNAP, General Relief-Unattached Child, or Auxiliary Grant Program may continue until a hearing officer makes a decision. If you appeal before _____ for actions for the TANF, Refugee Assistance, Medicaid, or FAMIS PLUS Program, the assistance may continue. You may have to repay any assistance you get during the appeal process if the hearing decision supports the action we propose. You may appeal the decision proposed in this notice up to 30 days of this notice or by the effective date for Refugee Assistance, Medicaid, or FAMIS PLUS actions. You may appeal TANF, General Relief-Unattached Child, or Auxiliary Grants Program actions within 30 days of this notice. You may appeal SNAP actions within 90 days of this notice. See the back of this notice for additional information about appeals and fair hearings.

APPEALS AND FAIR HEARINGS

If you do not agree with the action we are proposing or the amount of benefits you are receiving, you may have a hearing on your case. You will have a chance to explain why you think we made a mistake at the hearing and a hearing officer will decide if you are right. A hearing gives you a chance to review the way a local social services agency handled your situation about your need for TANF or SNAP benefits. The hearing is a private, informal meeting at the local social services agency with you and anyone you want to bring as a witness or to help you tell your story, such as a lawyer. A representative of the local agency will be present as well as a hearing officer. The hearing officer is the official representative of the State Department of Social Services or the Department of Medical Assistance Services (DMAS).

It is YOUR RIGHT TO APPEAL decisions of the local social services agency. If you want more information or help with an appeal, you may contact the local social services agency. It will not cost you anything to request a fair hearing, and you will not be penalized for asking for a fair hearing. If you want free legal advice, you may contact your local legal aid office.

How to File an Appeal

- Send a written request for Medicaid or FAMIS PLUS appeals to Client Appeal Division, Department of Medical Assistance Services, 600 East Broad Street, Richmond, Virginia 23219.
- Send a written request for financial assistance and SNAP benefits appeals to the Virginia Department of Social Services, Attention: Hearing and Legal Services Manager, 5600 Cox Road, Glen Allen, Virginia 23060 or call me at the number listed on the front or call 1-800-552-3431.

Local Agency Conference

In addition to filing an appeal, you may have a conference with your local social services agency about the denial of your entitlement to expedited SNAP benefits. During the conference, the agency must explain why you were not entitled to expedited benefits. You will have the chance to present any information where you disagree with the agency's proposed action. You may present your story by an authorized representative, such as a friend, relative, or lawyer.

Hearing Process and Decision

The hearing officer will notify you of the date and time for your hearing at the local social services agency or at a location agreeable to you and the agency. If you cannot be there on that day, call the hearing officer and your eligibility worker immediately. If you need transportation, the local agency will provide it.

At the hearing, you and/or your representative will have the opportunity to:

- Examine all documents and records used at the hearing;
- Present your case or have it presented by a lawyer or by another authorized representative;
- Bring witnesses;
- Establish pertinent facts and advance arguments; and
- Question or refute any testimony or evidence, including the opportunity to confront and cross-examine witnesses.

The hearing officer will base the decision only on the evidence and other material introduced at the hearing, except when medical information is requested or other essential information is needed. In this event, you and the local social services agency would have the opportunity to question or refute this additional information.

You will get the hearing officer's decision in writing on your appeal within 60 days of the date the State Department of Social Services receives your appeal request. You will get the hearing officer's decision within 90 days of the date the Department of Medical Assistance Services receives your appeal request for Medicaid, FAMIS PLUS, or SLH appeals.

HIPAA PORTABILITY RIGHTS

Under a federal law known as HIPAA, you may need evidence of your coverage to reduce a preexisting condition exclusion period under another plan, to help you get special enrollment in another plan, or to get certain types of individual health coverage even if you have health problems. You may request a "Certificate of Creditable Coverage" for your coverage by visiting the DMAS website at www.dmas.virginia.gov or contacting the Helpline at 804-786-6145.

ADVANCE NOTICE OF PROPOSED ACTION

FORM NUMBER - 032-03-0018

PURPOSE OF FORM - (1) To notify a household of a reduction, termination or suspension of benefits which occurs within the certification period; and, (2) to advise the household of its right to a local agency conference and its right of appeal to the State agency.

USE OF FORM - (1) To be prepared immediately following the decision of the local agency that the above action is indicated; and (2) to be mailed to the recipient immediately or as soon as possible after such decision, if an automated version is not used.

This form may be used to advise recipients of simultaneous decreases or terminations in more than one program. Mandates for joint use in Public Assistance and SNAP are contained in Part XIV.A.3. of this manual and in Section 401.4 of the TANF Manual.

NUMBER OF COPIES - Three.

DISPOSITION OF FORM - The original must be issued to the head of the household. One (1) copy is to be retained in the SNAP case file and one (1) copy is to be placed in another program file, if appropriate.

INSTRUCTIONS FOR PREPARATION OF FORM - Enter the appropriate identifying information at the top of the form. Enter the case numbers and categories related to the proposed action.

For each program section, enter, as appropriate:

- a. Action Type
- b. Reason for Proposed Action
- c. Manual Reference
- d. Worker's Name and Telephone Number
- e. Amount of Reduction - Enter the former and new assistance or allotment amounts.
- f. Effective Date - Enter the date of the proposed action. For SNAP, this date must be at least 10 days from the date the form is mailed or given. For reduced or suspended benefits, the effective date will be the first day of the next month. When benefits are terminated, the effective date will be the last day of the month.

Examples

- (1) An Advance Notice of Proposed Action is mailed on October 15; the effective date of the proposed action would be November 1 if benefits are being reduced or suspended. The effective date of the proposed action would be October 31 if benefits are terminated.
- (2) An Advance Notice of Proposed Action is mailed on October 25; the effective date would be December 1 for a reduction or suspension of benefits or November 30 for a termination of benefits.

APPEALS -

- a. For SNAP and Financial Services actions, enter the date that is 10 days from the date of mailing to indicate the date before which a timely appeal can be filed.

For Medicaid actions, enter the effective date of the proposed action to indicate the date before which a timely appeal can be filed.
- b. Enter the effective date of the proposed action.

Notice of Expiration

To:

SNAP Case Number

County/City

Department of Social Services

Address

City, State, Zip

Telephone Number

Your SNAP eligibility will end on:

Your eligibility for SNAP benefits is expiring. For uninterrupted benefits, you must file a new application by _____, have an interview, and be found eligible based on the information you give. If you do not file an application by this date, there may be an interruption in your benefits.

We can only start the renewal process once you file an application. You or your authorized representative may file an application that has at least your name, address, and your signature:

- in person at the address shown above or below;
- by mail, fax, by e-mail; or
- online at <https://commonhelp.virginia.gov/access/>.

 **Please use only one method to renew.**

☐ in the office

☐ by telephone

You must have an interview. We have scheduled an appointment for an interview on _____ at _____ a.m./p.m. If this interview appointment is not convenient, please let us know immediately. If you miss this interview appointment, it will be your responsibility to reschedule it.

In addition to the application and interview, you must give us proof of your income, expenses, or other information to help us make a decision on your application. Please have your information available when you file the application or have your interview.

If a telephone interview is scheduled, you must:

- complete the enclosed application form;
- return the completed application by _____ to the address above or below;
- provide a telephone number where you can be reached during the scheduled time.

If you do not agree with the action taken on your application, you may appeal the action. You must file your appeal within ninety days of the agency's notice to you. You may get an appeal form from this department or from the Virginia Department of Social Services, 5600 Cox Road, Glen Allen, VA 23060, or you may call 1-800-552-3431.

If everyone in your house receives Supplemental Security Income (SSI) or plan to apply for SSI, you may renew your eligibility for SNAP benefits at the Social Security (SSA) office instead of filing your application at the local social services department. The Social Security office must also receive your application by the date indicated above.

Alternate Agency Address:

Benefit Program Specialist

Date

☐ Mailed

☐ Given

NONDISCRIMINATION STATEMENT

In accordance with federal civil rights law and U.S. Department of Agriculture (USDA) civil rights regulations and policies, this institution is prohibited from discriminating on the basis of race, color, national origin, sex (including gender identity and sexual orientation), religious creed, disability, age, political beliefs, or reprisal or retaliation for prior civil rights activity.

Program information may be made available in languages other than English. Persons with disabilities who require alternative means of communication to obtain program information (e.g., Braille, large print, audiotape, American Sign Language), should contact the agency (state or local) where they applied for benefits. Individuals who are deaf, hard of hearing or have speech disabilities may contact USDA through the Federal Relay Service at (800) 877-8339.

To file a program discrimination complaint, a Complainant should complete a Form AD-3027, USDA Program Discrimination Complaint Form which can be obtained online

at: <https://www.usda.gov/sites/default/files/documents/ad-3027.pdf>, from any USDA office, by calling (866) 632-9992, or by writing a letter addressed to USDA. The letter must contain the complainant's name, address, telephone number, and a written description of the alleged discriminatory action in sufficient detail to inform the Assistant Secretary for Civil Rights (ASCR) about the nature and date of an alleged civil rights violation. The completed AD-3027 form or letter must be submitted to:

1. **mail:** Food and Nutrition Service, USDA, 1320 Braddock Place, Room 334, Alexandria, VA 22314; or
2. **fax:** (833) 256-1665 or (202) 690-7442; or
3. **email:** FNSCIVILRIGHTSCOMPLAINTS@usda.gov

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NOTICE OF EXPIRATION

FORM NUMBER - 032-12-0157 (The version presented here may not match the version prepared monthly through VaCMS with specific case information. This version may be used manually by the BPS.)

PURPOSE OF FORM - To advise the household (1) that its certification period is about to expire; and, (2) that a new application is necessary to establish further entitlement.

USE OF FORM - Households approved in the last month of their certification period, i.e., households certified retroactive to a previous month(s), must be provided the expiration notice at the time of certification. All other households must have the expiration notice no later than the last day of the next to the last month of the current certification period, but not earlier than the first day of the next to the last month of the current certification period. Allow two days for delivery in addition to the postmark date when the form is mailed.

NUMBER OF COPIES - Two

DISPOSITION OF FORM - The agency must give or mail the completed Notice of Expiration to the household and retain a copy.

INSTRUCTIONS FOR PREPARATION OF FORM - Complete all blanks.

Below the agency's address, enter the date the certification period will end, which is the last day of the last month of certification. Enter an alternate address for the agency at the bottom of the form, if appropriate.

Enter the date by which the household must file an application for recertification. For households approved in the last month of their certification period, this will be 15 calendar days from the date the notice will be received. (Allow two days for mailing in addition to the postmark date.) For all other households, this will be the 15th calendar day of the last month of certification.

Indicate whether the form was mailed or given to the recipient on the date indicated.

Enter information regarding an interview date and time.

CHANGE REPORT

CASE NAME	CASE NUMBER
WORKER NAME	LOCALITY
AGENCY TELEPHONE NUMBER	
CERTIFICATION PERIOD	YOUR HOUSEHOLD SIZE

You must report changes that occur in your household to ensure that your Supplemental Nutrition Assistance Program (SNAP) or Temporary Assistance for Needy Families (TANF) benefit amount is correct. You may use this form to report changes listed below for your SNAP or TANF case. You may also report changes online at <https://commonhelp.virginia.gov/access/>. Report changes within 10 days from when they occur but, no later than the 10th day of the next month. If you do not report changes, you may have to repay benefits you receive incorrectly, be fined, or prosecuted.

Please note changes on the next page. Please provide proof if there are changes.

- **If you receive TANF, tell us if:**
 - Your address changes;
 - A child, including a newborn, or the father, or the mother of a child, enters or leaves your home;
 - There are changes that may affect your participation in VIEW, such as changes in income, employment, education, training, transportation, and childcare; or
 - All the income for your household before taxes goes over the 130% Gross Income Limit listed in Chart A below.

Your case has been certified effective - based on a household size of .

- **If you receive SNAP as part of the Elderly Simplified Application Project (ESAP) and your certification period is 36 months (three years), tell us if:**
 - There is a change in the number of people in your household;
 - You have lottery or gambling winnings of \$4,500* or more; or
 - You or any member of your household starts getting income from working.
- **If you receive SNAP and your certification period is five (5) months or longer, tell us if:**
 - All the income for your household before taxes goes over the limits in Chart B below unless the note for Chart A applies.
 - The number of work hours goes under 20 per week for persons who are between the ages of 18-54 if there are no children in the home.
 - You have lottery or gambling winnings of \$4,500* or more.
- **If you receive SNAP and your certification period is for one (1) month to four (4) months, tell us if:**
 - There is a change in the number of people in your household;
 - Your address changes, including shelter expenses that change resulting from the move;
 - The obligation to pay child support changes or the amount paid to someone outside the household changes;
 - Your liquid resources, such as bank accounts, cash, bonds, etc. are \$3,000 or \$4,500* or more;
 - You have lottery or gambling winnings of \$4,500* or more;
 - The number of work hours goes under 20 per week for persons who are between the ages of 18-54 if there are no children in the home; or
 - There are changes in income:
 - There are income changes of more than \$125 except, you do not have to tell us if your TANF income changes if your TANF case is in Virginia;
 - The source of your income changes, including if you start or stop a job; or
 - Your job switches from full-time to part-time or part-time to full-time.

Chart 1 (Gross Income Limit 200%)					Chart 2 (Gross Income Limit 130%)				
HH Size	Monthly	Weekly	Every 2 Weeks	Twice a Month	HH Size	Monthly	Weekly	Every 2 Weeks	Twice a Month
1	\$2,608	\$ 606.51	\$1,213.02	\$1,304.00	1	\$1,696	\$ 394.41	\$ 788.83	\$ 848.00
2	3,525	819.76	1,639.53	1,762.50	2	2,292	533.02	1,066.04	1,146.00
3	4,441	1,032.79	2,065.58	2,220.50	3	2,888	671.62	1,343.25	1,444.00
4	5,358	1,246.04	2,492.09	2,679.00	4	3,483	810.00	1,620.00	1,741.50
5	6,275	1,459.30	2,918.60	3,137.50	5	4,079	948.60	1,897.20	2,039.50
6	7,191	1,672.32	3,344.65	3,595.50	6	4,675	1,087.20	2,174.41	2,337.50
7	8,108	1,885.58	3,771.16	4,054.00	7	5,271	1,225.81	2,451.62	2,635.50
8	9,025	2,098.83	4,197.67	4,512.50	8	5,867	1,364.41	2,728.83	2,933.50
Additional members	+\$916.00	+\$213.02	+\$426.04	+\$458.00	Additional members	+\$596.00	+\$138.60	+\$277.20	+\$298.00

*Amounts are valid through 9/30/2026.

Add together the gross income for all the people in your household. New income total \$_____

Note: Chart A applies to SNAP households that have a member who cannot get SNAP benefits because of a felony conviction, a conviction for a SNAP intentional program violation, or because of an employment and training requirement. Please contact me at the number above if you are not sure which chart applies to you or if you need help completing this form.

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DETAILS ON CHANGES THAT HAVE OCCURRED

CHANGE IN THE NUMBER OF PEOPLE IN YOUR HOUSEHOLD

HAS ANYONE MOVED IN?

Name		Date moved in	Relationship to you	Social Security Number
Date of Birth		Race (not required)	Sex	Marital Status
U.S. Citizen Yes () No ()	If Alien, give alien number, date of entry		Last school grade completed	Currently in School? Yes () No ()

HAS ANYONE MOVED OUT?

Name	Date moved out	Name	Date moved out
------	----------------	------	----------------

CHANGE IN YOUR ADDRESS

New Address (Street, Apt. Number)	City, State, ZIP
-----------------------------------	------------------

CHANGE IN SHELTER EXPENSES THAT RESULT FROM THE MOVE (If you have not moved, you may report es in your changes in your expenses for your current home. Be sure to provide proof of the expenses.)

Rent or Mortgage \$ per	Property Taxes \$ per	Homeowner's Insurance \$ per	Electricity \$ per
Gas \$ per	Oil \$ per	Kerosene, Coal, wood, etc. List and give amount	
Water/Sewer \$ per	Garbage \$ per	Telephone (Basic Service Only) \$ per	Installation Fees \$ per

CHANGE IN LEGALLY OBLIGATED CHILD SUPPORT PAID TO ANOTHER HOUSEHOLD

-Person paying support	Person receiving support	Amount legally obligated \$ per	Amount paid \$ per
------------------------	--------------------------	------------------------------------	-----------------------

CHANGE IN YOUR LIQUID RESOURCES SUCH AS CASH, BANK ACCOUNTS, BONDS, ETC. THAT REACH OR EXCEED \$3,000 OR \$4,500* (*\$4,500 applies only if someone in your household is 60 years of age or older or who is permanently disabled.)

Name	Account Type	Balance
------	--------------	---------

RECEIPT OF LOTTERY OR GAMBLING WINNINGS OF \$4,500 OR MORE

Name	Gross Amount Received	When Received
	Where Received	

CHANGE IN THE NUMBER OF WORK HOURS IN A WEEK GOES UNDER 20 FOR MEMBERS WHO ARE BETWEEN THE AGES OF 18-54 IF THERE ARE NO CHILDREN IN THE HOME.

Name	Number of Work Hours
------	----------------------

CHANGE IN INCOME OF MORE THAN \$125 (money from working or from sources such as Social Security,SSI, pensions, etc.)

Name	Income Type	Amount
------	-------------	--------

CHANGE IN INCOME SOURCE - HAVE YOU STARTED OR STOPPED RECEIVING INCOME?

Name	Source	Date Started/Stopped
		Number Of Hours If Started Working

HAVE YOU CHANGED FROM FULL-TIME TO PART-TIME OR PART-TIME TO FULL-TIME?

Name	Employer	Number Of Hours
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OTHER CHANGES

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Person completing this form

Date

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CHANGE REPORT

FORM NUMBER - 032-03-051

PURPOSE OF FORM - To provide a recipient household with a method of reporting changes in circumstances.

USE OF FORM - Recipient households may use the form to report changes in circumstances. Households must report changes to the agency when they occur but no later than 10 days after the month of the change.

NUMBER OF COPIES - One.

DISPOSITION OF FORM - The agency must provide the Change Report to all households at the time of initial application and reapplication and at recertification if the income limits listed on the form have changed or if the household needs another form. The agency must also provide the Change Report form whenever the household returns a completed one or reports a change in the household size.

INSTRUCTIONS FOR PREPARATION OF FORM – The BPS must complete information at the top of the form before providing the form to the household. The BPS must also highlight the household size and income limit that applies to the household when the form is provided.

ENTITLEMENT TO RESTORATION OF LOST BENEFITS

CASE NUMBER	
DATE	
LOCALITY	WORKER

☐ YOU ARE ENTITLED TO A RESTORATION OF BENEFITS BECAUSE YOUR PRIOR BENEFIT AMOUNT WAS INCORRECTLY CALCULATED OR YOU WERE DENIED IMPROPERLY.

TOTAL AMOUNT OWED \$ _____ MONTH(S) RESTORATION COVERS _____

REASON _____

☐ IF THIS BLOCK IS CHECKED, YOU WERE OVERISSUED SNAP BENEFITS, YOUR RESTORATION WAS REDUCED BY THE AMOUNT YOU WERE OVERISSUED.

AMOUNT YOU WERE OVERISSUED \$ _____ AMOUNT YOU ARE ENTITLED TO RECEIVE \$ _____

☐ YOUR REQUEST FOR RESTORATION OF BENEFITS, DATED _____, WAS DENIED DUE TO

IF YOU DO NOT AGREE WITH THIS DECISION, YOU MAY REQUEST A FAIR HEARING.
IF YOU WANT TO REQUEST A FAIR HEARING, YOU MUST DO SO WITHIN 90 DAYS FROM THE DATE OF THIS NOTICE.
FOR ADDITIONAL INFORMATION ABOUT APPEALS AND FAIR HEARINGS, PLEASE SEE THE BACK OF THIS NOTICE.

BENEFIT PROGRAM SPECIALIST	TELEPHONE NUMBER	FOR FREE LEGAL ADVICE CALL 1-866-534-5243
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APPEALS AND FAIR HEARINGS

If you do not agree with the action we are proposing or the amount of benefits you are receiving, you may have a fair hearing on your case. At the hearing you will have a chance to explain why you think we made a mistake and a hearing officer will decide if you are right. A hearing gives you a chance to review the way a local social services agency handled your situation about your need for SNAP benefits. The hearing is a private, informal meeting at the local social services agency with you and anyone you want to bring as a witness or to help you tell your story, such as a lawyer. A representative of the local agency will be present as well as a hearing officer. The hearing officer is the official representative of the Virginia Department of Social Services.

It is YOUR RIGHT TO APPEAL decisions of the local social services agency. If you want more information or help with an appeal, you may contact the local social services agency. It will not cost you anything to request a fair hearing, and you will not be penalized for asking for a fair hearing. If you want free legal advice, you may contact your local legal aid office.

How to File an Appeal

- Send a written request to the Virginia Department of Social Services, Attention: Hearing and Legal Services Manager, 5600 Cox Road, Glen Allen, Virginia 23060.
- Call me at the number listed on the front.
- Call 1-800-552-3431

When to Appeal

- Within the next 90 days.
- Within 10 days of the date on this form to get the SNAP benefits continued*.

*Note that you may have to repay benefits you received during the appeal process if the hearing decision supports the agency action.

Local Agency Conference

In addition to filing an appeal, you may have a conference with your local social services agency about the denial of your entitlement to expedited SNAP benefits. During the conference, the agency must explain why you were not entitled to expedited benefits. You will have the chance to present any information where you disagree with the agency's proposed action. You may present your story by an authorized representative, such as a friend, relative, or lawyer.

Hearing Process and Decision

The hearing officer will notify you of the date and time for your hearing at the local social services agency or at a location agreeable to you and the agency. If you cannot be there on that day, call the hearing officer and your Benefit Program Specialist immediately. If you need transportation, the local agency will provide it.

At the hearing, you and/or your representative will have the opportunity to:

- Examine all documents and records used at the hearing;
- Present your case or have it presented by a lawyer or by another authorized representative;
- Bring witnesses;
- Establish pertinent facts and advance agreements; and
- Question or refute any testimony or evidence, including the opportunity to confront and cross-examine witnesses.

The hearing officer will base the decision only on the evidence and other material introduced at the hearing, except when medical information is requested or other essential information is needed. In this event, you and the local social services agency would have the opportunity to question or refute this additional information.

You will get the hearing officer's decision in writing on your appeal within 60 days of the date the State Department of Social Services receives your appeal request.

ENTITLEMENT TO RESTORATION OF LOST BENEFITS

FORM NUMBER - 032-03-0153

PURPOSE OF FORM - To notify a household of its entitlement to restoration of lost benefits.

USE OF FORM - To be completed at the time the local agency determines a household is entitled to restoration of lost benefits, or denies a request for restoration.

NUMBER OF COPIES - Two.

DISPOSITION OF FORM – Send a copy to the household and retain a copy in the case record.

INSTRUCTIONS FOR PREPARATION OF FORM

Complete the identifying information at the top.

Check the first box to inform a household that it is entitled to a restoration. Complete the information requested on the form. If the restoration was offset against an amount which was previously overissued, check the small block in the second paragraph and complete the information requested.

Check the second box if the request for restoration is denied and complete the information requested.

Complete the information at the bottom of the form.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF SOCIAL SERVICES
SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM (SNAP)
REQUEST FOR CONTACT

TO:			Case Name	
			Agency:	
			Case Number:	
			Date:	

To determine your eligibility for SNAP benefits, you must provide the following information or take the following actions:

- ☐ Proof of your household's income
Verification Form Attached
- ☐ Other

Please take the requested action by _____ or we will close your SNAP case or deny your application.

_____	_____
Benefit Program Specialist	Telephone number

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Request for Contact

FORM NUMBER - 032-03-0148

PURPOSE OF FORM - To request a household provide clarification or verification of the household's circumstances.

USE OF FORM - The BPS must complete the form to request clarification, verification, or action taken by an applying or participating household. The household must take the requested action within ten days. The BPS must follow this form with an Advance Notice of Proposed Action or Notice of Action if the agency alters the household's eligibility or benefit level in response to the Request for Contact.

This form is not intended to amend the request for information or verification needed for an application. The BPS should send a revised Checklist of Needed Verifications in this instance. This form is also not intended to be sent to clarify circumstances the household is not required to report unless the partially reported change suggests the household is ineligible for SNAP benefits. See Part XIV.A.1.

NUMBER OF COPIES - Two.

DISPOSITION OF FORM - The agency must mail the form to the household and retain a copy of the completed form.

INSTRUCTIONS FOR PREPARATION OF FORM - The BPS must complete the general case information and note the specific request for which the household is responsible for completing. The BPS must also include the deadline for the submission of the information that is ten days after the mailing date.

INTERIM REPORT FORM - REQUEST FOR ACTION

Case Name: _____

Case Number: _____

Agency: _____

Date: _____

You were required to send in a completed Interim Report to this agency by the fifth (5th) of the month for your SNAP case. Please note the information checked below.

() We have not received an Interim Report form from you. Complete the Interim Report form that was sent to you. When you send the Interim Report form in, please make sure you answer every question, give us all the information the report asks for, and sign and date the report.

() The Interim Report form you submitted was incomplete. The form you submitted is attached. This form is incomplete because:

1. () You did not answer every question. Please answer the following questions:

2. () You did not sign and/or date the report. Please sign and date the report.

() Proof of some of the statements made on your report was missing. Please send in the following:

You must return a completed Interim Report and proof of any changes within ten (10) days. If you do not submit a completed report, your SNAP case will close. **You will not receive an additional notice** unless the information you submit changes your benefits.

If you are unable to complete the Interim Report or if you have any questions about how to complete it or what information you need to send in, please ask for help. For more information about the Interim Report process, see Part 14.C of the SNAP Manual.

If you have taken the actions listed above, please disregard this reminder.

Benefit Program Specialist	Telephone Number	For Free Legal Advice Call 1-866-534-5243
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APPEALS AND FAIR HEARINGS

If you do not agree with the action we are proposing or the amount of benefits you are receiving, you may have a hearing on your case. You will have a chance to explain why you think we made a mistake at the hearing and a hearing officer will decide if you are right. A hearing gives you a chance to review the way a local social services agency handled your situation about your need for TANF or SNAP benefits. The hearing is a private, informal meeting at the local social services agency with you and anyone you want to bring as a witness or to help you tell your story, such as a lawyer. A representative of the local agency will be present as well as a hearings officer. The hearing officer is the official representative of the State Department of Social Services.

It is YOUR RIGHT TO APPEAL decisions of the local social services agency. If you want more information or help with an appeal, you may contact the local social services agency. It will not cost you anything to request a fair hearing, and you will not be penalized for asking for a fair hearing. If you want free legal advice, you may contact your local legal aid office.

How to File an Appeal

- Send a written request to the Virginia Department of Social Services, Attention: Hearing and Legal Services Manager, 5600 Cox Road, Glen Allen, VA 23060.
- Call me at the number listed on the front.
- Call 1-800-552-3431.

When to Appeal

- Within the next 90 days for SNAP benefits or within 10 days of the date on this form to get the SNAP benefits continued.
- *Note that you may have to repay benefits you received during the appeal process if the hearing decision supports the agency action.

Hearing Process and Decision

The hearing officer will notify you of the date and time for your hearing at the local social services agency or at a location agreeable to you and the agency. If you cannot be there on that day, call the hearing officer and your benefit program specialist immediately. If you need transportation, the local agency will provide it.

At the hearing, you and/or your representative will have the opportunity to:

- Examine all documents and records used at the hearing;
- Present your case or have it presented by a lawyer or by another authorized representative;
- Bring witnesses;
- Establish pertinent facts and advance arguments; and
- Question or refute any testimony or evidence, including the opportunity to confront and cross-examine witnesses.

The hearings officer will base the decision only on the evidence and other material introduced at the hearing, except when medical information is requested or other essential information is needed. In this event, you and the local social services agency would have the opportunity to question or refute this additional information.

USDA NONDISCRIMINATION STATEMENT

In accordance with federal civil rights law and U.S. Department of Agriculture (USDA) civil rights regulations and policies, this institution is prohibited from discriminating on the basis of race, color, national origin, sex (including gender identity and sexual orientation), religious creed, disability, age, political beliefs, or reprisal or retaliation for prior civil rights activity.

Program information may be made available in languages other than English. Persons with disabilities who require alternative means of communication to obtain program information (e.g., Braille, large print, audiotape, American Sign Language), should contact the agency (state or local) where they applied for benefits. Individuals who are deaf, hard of hearing or have speech disabilities may contact USDA through the Federal Relay Service at (800) 877-8339.

To file a program discrimination complaint, a Complainant should complete a Form AD-3027, USDA Program Discrimination Complaint Form which can be obtained online at: <https://www.usda.gov/sites/default/files/documents/ad-3027.pdf>, from any USDA office, by calling (866) 632-9992, or by writing a letter addressed to USDA. The letter must contain the complainant's name, address, telephone number, and a written description of the alleged discriminatory action in sufficient detail to inform the Assistant Secretary for Civil Rights (ASCR) about the nature and date of an alleged civil rights violation. The completed AD-3027 form or letter must be submitted to:

4. **mail:** Food and Nutrition Service, USDA
1320 Braddock Place, Room 334
Alexandria, VA 22314; or
5. **fax:** (833) 256-1665 or (202) 690-7442; or
6. **email:** FNSCIVILRIGHTSCOMPLAINTS@usda.gov

This institution is an equal opportunity provider.

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INTERIM REPORT FORM – REQUEST FOR ACTION

FORM NUMBER – 032-03-0649

PURPOSE OF FORM – To notify a household of required actions it must take for completing the Interim Report or for providing required verification.

USE OF FORM – The BPS may use this form to tell households what action is needed to process the Interim Report to avoid closure of the case.

NUMBER OF COPIES – Two

DISPOSITION OF FORM – The BPS must notify households when they fail to complete the Interim Report form or fail to submit needed verification or information. If households file an incomplete form or fail to submit needed information, the BPS must return the original Interim Report to the household along with this action form. If households fail to file an Interim Report altogether, the BPS may send another copy of the report to the household along with the action form. Send the Interim Report Form-Request for Action by the 15th of the month the Interim Report was due if the household fails to return a completed Interim Report.

INSTRUCTIONS FOR PREPARATION OF FORM – Complete identifying case and agency information at the top of the form and the action required by the household. Sign and date the form.

PERMANENT VERIFICATION LOG

Case Name	Case Number	FIPS	BPS	Date
Secondary Case Name	Secondary Case Number			

DOCUMENT METHODS AND DATES OF VERIFICATION REQUIRED BY PROGRAM(S) BEING EVALUATED.

1. MEMBER INFORMATION

MBR #	LAST	NAME FIRST	MI	SOCIAL SECURITY NUMBER (# or APP mm/dd/yy)	DATE OF BIRTH	CITIZENSHIP/ ALIEN STATUS	IDENTITY	RELATIONSHIP
				VFN:	VFN:	VFN:	VFN:	VFN:
				VFN:	VFN:	VFN:	VFN:	VFN:
				VFN:	VFN:	VFN:	VFN:	VFN:
				VFN:	VFN:	VFN:	VFN:	VFN:
				VFN:	VFN:	VFN:	VFN:	VFN:
				VFN:	VFN:	VFN:	VFN:	VFN:
				VFN:	VFN:	VFN:	VFN:	VFN:
				VFN:	VFN:	VFN:	VFN:	VFN:

INDICATE ANY CHANGES TO THE ABOVE INFORMATION AND DOCUMENT METHOD AND DATE OF VERIFICATION.

2. DOCUMENTS AND VERIFICATIONS (WHEN REQUIRED BY POLICY)

BIRTH RECORDS AND IMMUNIZATIONS

Name	Date of Birth	Place Of Birth	Sex	Race
Mother's Maiden Name	Father's Name		BVS#/VFN	
Immunizations, Dates				

Name	Date of Birth	Place Of Birth	Sex	Race
Mother's Maiden Name	Father's Name		BVS#/VFN	
Immunizations, Dates				

Name	Date of Birth	Place Of Birth	Sex	Race
Mother's Maiden Name	Father's Name		BVS#/VFN	
Immunizations, Dates				

Name	Date of Birth	Place Of Birth	Sex	Race
Mother's Maiden Name	Father's Name		BVS#/VFN	
Immunizations, Dates				

MARRIAGE RECORDS

Wife's Maiden Name		Husband's Name
Date of Marriage	Place	VFN

DIVORCE RECORDS

Husband		Wife
Date of Divorce	Place	VFN

DEATH RECORDS

Name of Deceased		
Date of Death	Place	VFN

PERMANENT VERIFICATION LOG

FORM NUMBER - 032-03-823A

PURPOSE OF FORM – May be used to document verification of eligibility factors which are generally not subject to change. The form is optional.

USE OF FORM – May be completed at initial certification, recertification or during the certification period if a change is reported

NUMBER OF COPIES - One.

DISPOSITION OF FORM - The form may be kept in the case record. If additional space is needed, use an additional form.

INSTRUCTIONS FOR PREPARATION OF FORM - Complete the identifying information at the top of the form.

Document the method and date of verification for required elements for SNAP purposes.

Document changes to previously verified information and document the method and date of verification of the change.

CASE NAME	LOCALITY
CASE NUMBER	DATE

FOOD REPLACEMENT REQUEST

In order for us to consider replacing the value of your destroyed food, you must complete and return this form. You must return the completed form within 10 days of the date the food was destroyed or within 10 days of the date above.

Case Name	Address
Value of the destroyed food	Was the destroyed food bought with SNAP benefits? ____Yes ____No
When was the food destroyed or damaged?	
How was food destroyed or damaged?	
If your food was destroyed or damaged by a loss of electrical power, please provide the following information: Electric Power Company: _____ Account Name: _____ Account Number: _____	
I certify that the household listed above experienced a destruction of food bought with SNAP benefits in the month of _____, 20____.	
Signature	Date

The Virginia Department of Social Services is an equal opportunity provider.

Food Replacement Request

FORM NUMBER - 032-03-0388

PURPOSE OF FORM - This form will allow the local agency determine the value of food destroyed so that the agency may provide additional SNAP benefits to cover the value of food destroyed.

USE OF FORM - The agency must provide the form to households that report a household disaster that resulted in the loss of food purchased with SNAP benefits.

NUMBER OF COPIES - Two.

DISPOSITION OF FORM - The local agency must provide a copy of the completed form to the household and file a copy in the case record.

INSTRUCTIONS FOR PREPARATION OF FORM - Local agency staff should complete the identifying case information at the top of the form. A household member or an authorized representative must complete or provide information for the bottom section regarding the replacement of food destroyed. A household member must sign and date the form.

INTERNAL ACTION AND VAULT EBT CARD AUTHORIZATION

TO: ☐ Vault Card Issuance Unit ☐ EBT Administrative Terminal Personnel Date ____/____/____

FROM: Benefit Program Specialist/Supervisor: _____ Telephone: _____

RE: Case Name: _____ Case Number: _____

I. ☐ Authorization for a Vault EBT Card

Vault card reason: ☐ Timely processing ☐ Household emergency ☐ Agency determination

PCH Social Security Number _____ PCH Birth Date ____/____/____

☐ Issue a vault card to Authorized Representative _____

Address of vault card recipient: _____

II. ☐ Authorization for crediting the card replacement fee to the household's account

Reason: ☐ Household disaster: ☐ Lost in the mail ☐ Household Violence
☐ Improperly manufactured ☐ Reapplication, no card ☐ Cardholder name changed
☐ Other _____

III. ☐ Administrative error – Debit account for \$ _____

IV. ☐ Repay SNAP Claim of \$ _____ from EBT account

Issuance/Administrative Unit Use

I. EBT Vault Card Number: _____ Card destroyed on ____/____/____

Type of identification seen:

☐ Driver's License ☐ Rent/Utility Bill/Receipt ☐ School ID ☐ Work ID
☐ Library Card ☐ Social Security Card ☐ Other _____

I acknowledge that I received my EBT card or that I received the card on behalf of another household. I understand that I need to select a Personal Identification Number to use my benefits.

Cardholder's Signature

Date

☐ Cardholder failed to pick up vault card ☐ Card destroyed ☐ Vault card not prepared

II Replacement fee credited on ____/____/____

III. EBT account debited for \$ _____ for an administrative error on ____/____/____

IV. Repaid \$ _____ to SNAP Claim on ____/____/____

Completed by _____
Issuance/Administrative Worker

Date

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Internal Action and Vault EBT Card Authorization

FORM NUMBER - 032-03-0387

PURPOSE OF FORM - The Certification Unit will use this form to communicate with the Issuance or Administrative Unit in the local agency.

USE OF FORM - The BPS must complete the top portion of the form to authorize the Issuance Unit to prepare and issue a vault card to an eligible household or authorized representative. The Benefit Program Supervisor must complete the top portion of the form to authorize the Issuance or Administrative Supervisor, as designated by the agency, to credit the card replacement fee to a household's EBT account. The Issuance or Administrative Unit must complete the bottom portion of the form to document the action taken. The primary cardholder or authorized representative must also sign the form to acknowledge receipt of the vault card. The agency must use the internal action form to document repayment of a claim with funds in an EBT account or to debit an account for an administrative error.

NUMBER OF COPIES - Three.

DISPOSITION OF FORM - The BPS or Supervisor must retain a copy of the form and forward the remaining copies to the Issuance or Administrative Unit for completion. The Issuance or Administrative Unit must retain a copy of the fully completed form and return the second copy to the Certification Unit. Upon receipt of the form, the BPS or Supervisor must file the copy in the case file. The initial copy completed only by the BPS may be discarded.

INSTRUCTIONS FOR PREPARATION OF FORM - The BPS or Supervisor must complete the identifying case and unit information. The BPS or Supervisor must complete the appropriate section of the top portion of the form to explain or authorize actions, including Section I to note why a vault card is necessary. The BPS must include the address of the person who will receive the vault card, either the primary cardholder or authorized representative, for entry in the EBT system. The BPS may attach a copy of the VaCMS inquiry to avoid transcription errors.

The Benefit Programs Supervisor must complete Section II to authorize crediting the card replacement fee back to the household's EBT account. The Benefit Programs Supervisor must also complete Section III to debit benefits from an account that were erroneously deposited as a result of an administrative error.

The Issuance Unit must promptly act to prepare a vault card for a household upon receipt of the form completed by the BPS or Supervisor. The Issuance Worker must obtain and record identity verification before releasing the vault card and secure the signature of the primary cardholder or authorized representative on the form.

The completed form must remain with a prepared vault card until the cardholder comes to the agency. The Issuance Unit must destroy the card after five business days if the cardholder does not receive it or make additional arrangements to receive the card. The Issuance Worker must note the date of the destruction of the card on the form. If the agency opts to wait until the

cardholder comes to pick up the vault card before preparing the card, the Issuance Unit must notify the BPS if the cardholder fails to obtain the card within five business days after the initial authorization by the certification unit.

The supervisor of the Issuance or Administrative Unit, as determined by the agency, must complete the section to credit the card replacement fee back to the household's EBT account.

The Issuance or Administrative Worker or Supervisor must sign and date the form.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF SOCIAL SERVICES
EMPLOYMENT SERVICES PROGRAMS
COMMUNICATION FORM- From BPS to ESW

To _____, ESW
From _____, BPS
Date ____/____/____
Reply Needed By ____/____/____
☐ Copy Sent to Child Care Worker

Name of Participant _____
Case Name _____
Case Number _____

Participant's Client ID # _____
☐ SNAPET ☐ TANF ☐ TANF-UP

- ☐ Reapplication for TANF - Previous Failure to Sign Agreement of Personal Responsibility. APR signed on ____/____/____ (APR attached). Effective Date of TANF approval: ____/____/____.
- ☐ Result of reevaluation of non-exempt/mandatory status: _____
- ☐ Volunteer no longer wishes to participate.
- ☐ Non-exempt/mandatory individual now exempt. Reason: _____
- ☐ Individual may be unable to participate in ESP/SNAPET program because _____

☐ Individual is not able to ☐ Read English ☐ Write English

☐ Individual will enter/entered employment at _____ on ____/____/____.
Scheduled # of Hours/week _____. Rate of pay \$ _____ per _____.
Frequency of pay: _____. Date of First Pay: ____/____/____.

☐ Individual/household no longer eligible for SNAP. Case closed due to: (check one)

☐ Employment/benefit reduction/savings information provided below

☐ Other: _____

Effective Date: ____/____/____.

☐ Individual removed from the SNAP household because _____

Effective Date: ____/____/____.

☐ Effective with payment on ____/____/____, benefits will be reduced from \$ _____ to \$ _____.

☐ Individual appealed TANF sanction. Case remains open until appeal resolved.

☐ TANF Sanction ended effective ____/____/____.

☐ TANF case reopened.

☐ 24-Month Eligibility Termination date: ____/____/____.

☐ Appeal prior to 24-Month Closure or ☐ Appeal of Hardship Denial prior to 24-Month Closure. Appeal scheduled for: ____/____/____. ☐ Client has requested that case remain open until appeal resolved.

☐ VIEW Transitional Payment established effective ____/____/____.

☐ VIEW Transitional Payment ended effective ____/____/____.

Reason: _____

☐ Amount of SNAP allotment for the month of _____ was \$ _____.

☐ New certification period from ____/____/____ to ____/____/____.

☐ Individual is a refugee. Contact _____ (refugee resettlement agency) at _____ (telephone) before conducting VIEW/SNAP E&T initial assessment.

☐ Other _____

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF SOCIAL SERVICES
EMPLOYMENT SERVICES PROGRAMS
COMMUNICATION FORM- From ESW to BPS

To _____, BPS
From _____, ESW
Date ____/____/____
Reply Needed By ____/____/____
☐ Copy Sent to Child Care Worker

Name of Participant _____
Case Name _____
Case Number _____

Participant's Client ID # _____
☐ SNAP E&T ☐ TANF ☐ TANF-UP

- ☐ Volunteer signed APR on _____. Please update AEGNFS screen and run ED/BC.
☐ Reevaluation of non-exempt/mandatory status is requested. Reason: _____.
☐ Volunteer no longer wishes to participate. Please update AEGNFS screen and run ED/BC.

- ☐ Individual will enter education or training activity on ____/____/____.
☐ Individual will be a participant in work experience. Please provide the SNAP amount for the month of _____.

- ☐ Individual will enter/entered employment on ____/____/____.
Employer _____
Scheduled # of Hours/week: _____. Rate of pay: \$ _____ per _____.
Frequency of pay: _____. Date of First Pay: ____/____/____.
☐ Please send verification of employment.

- ☐ Individual has failed to comply with program requirements of _____. Good cause does not exist.
☐ Notify ESW if aware of good cause reason.
☐ Sanction TANF for (check appropriate answer)
☐ 1 month and compliance ☐ 3 months and compliance ☐ 6 months and compliance
☐ SNAP E&T case will close effective ____/____/____.
☐ Please provide the dollar amount of SNAP reduction due to employment or sanction.
☐ Please notify when suspended TANF case has been reinstated.

- ☐ VIEW Transitional Payment enrollment opened effective ____/____/____.
☐ VIEW Transitional Payment enrollment closed effective ____/____/____.
Reason: _____.

- ☐ Hardship denied on ____/____/____.
☐ Hardship granted from ____/____/____ to ____/____/____.
☐ Hardship terminated on ____/____/____.

- ☐ Other _____

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EMPLOYMENT SERVICES PROGRAMS COMMUNICATION FORM

FORM NUMBER - 032-02-0072

PURPOSE OF FORM - To exchange information about an employment services participant between the BPS and the employment services worker (ESW).

USE OF FORM - Either the BPS or the employment services may originate the form when circumstances change for the participant that require the exchange of information.

NUMBER OF COPIES - Two.

DISPOSITION OF FORM – The form consists of an BPS to ESW page and an ESW to BPS page. When the form is sent, both pages should be provided. A copy of the entire form should be retained in both the TANF/SNAP and VIEW/SNAP E&T files.

INSTRUCTIONS FOR PREPARATION OF FORM

The name of the BPS and the ESW, the date the form is sent, and the date the reply is needed must be entered in the upper right-hand corner by the worker who originates the form.

Enter the identifying information for the case and participant.

The remainder of the form is completed when messages must be communicated between the eligibility staff and the employment services staff. The worker will check whichever block communicates the desired information, requests the desired information, or is applicable to the situation. If the worker needs to communicate information that is not listed on the form, check "Other" and enter the information.

SNAP Sanction Notice for Non-Compliance with a Work Requirement

	Case Number	
	Locality	
	BPS	Date

Name: _____

- ☐ Voluntarily quit a job without good cause.
- ☐ Voluntarily reduced work hours to less than 30 hours per week without good cause.

The following sanction will be applied in your SNAP case as a result of the action:

- ☐ The person named above is disqualified and will not be eligible to receive SNAP benefits for the months of _____.
- ☐ Your household's SNAP benefit of \$ _____ will be changed to \$ _____ effective _____.
- ☐ Your entire household will not be eligible to receive SNAP benefits for the months of _____.

The sanction indicated above may be lifted before the end of the sanction period if your household is otherwise eligible and the person named above leaves the household or becomes exempt from the requirement to register for work.

If you do not agree with the proposed action, you may write or call me at the address and phone number below and ask for a conference or, you may have a fair hearing on your case. At the hearing, you will have a chance to explain why you think we made a mistake, and a hearing officer will decide if you are right. To request a fair hearing, call or write me, or write:

**Virginia Department of Social Services
5600 Cox Road
Glen Allen, VA 23060
Attention: Hearing and Legal Services Manager**

You may also request a fair hearing by calling toll free 1-800-552-3431. Please see the back of this form for additional information about the appeals process.

You must request your fair hearing within 90 days. If you appeal the action on your case before _____ assistance may continue. However, if assistance is continued, you may have to repay benefits you receive during the appeal process if the hearing decision supports the agency action.

Benefit Program Specialist:	Agency Address	Agency Telephone
For free legal advice call: 1-866-534-5243		

APPEALS AND FAIR HEARINGS

If you do not agree with the action we are proposing or the amount of benefits you are receiving, you may have a fair hearing on your case. At the hearing you will have a chance to explain why you think we made a mistake and a hearing officer will decide if you are right. A hearing gives you a chance to review the way a local social services agency handled your situation about your need for food stamps. The hearing is a private, informal meeting at the local social services agency with you and anyone you want to bring as a witness or to help you tell your story, such as a lawyer. A representative of the local agency will be present as well as a hearing officer. The hearing officer is the official representative of the State Department of Social Services.

It is YOUR RIGHT TO APPEAL decisions of the local social services agency. If you want more information or help with an appeal, you may contact the local social services agency. It will not cost you anything to request a fair hearing, and you will not be penalized for asking for a fair hearing. If you want free legal advice, you may contact your local legal aid office.

How to File an Appeal

- Send a written request to the Virginia Department of Social Services, Attention: Hearing and Legal Services Manager, 5600 Cox Road, Glen Allen, VA 23060.
- Call me at the number listed on the front.
- Call 1-800-552-3431.

When to Appeal

- Within the next 90 days.
- Within 10 days of the date on this form to get the SNAP benefits continued.*

Note: You may have to repay benefits you receive during the appeal process if the hearing decision supports the agency action.

Local Agency Conference

In addition to filing an appeal, you may have a conference with your local social services agency about the denial of your entitlement to expedited SNAP benefits. During the conference, the agency must explain why you were not entitled to expedited SNAP benefits. You will have the chance to present any information where you disagree with the agency's proposed action. You may present your story by an authorized representative, such as a friend, relative, or lawyer.

Hearing Process and Decision

The hearing officer will notify you of the date and time for your hearing at the local social services agency or at a location agreeable to you and the agency. If you cannot be there on that day, call the hearing officer and your eligibility worker immediately. If you need transportation, the local agency will provide it.

At the hearing, you and/or your representative will have the opportunity to:

- Examine all documents and records used at the hearing;
- Present your case or have it presented by a lawyer or by another authorized representative;
- Bring witnesses;
- Establish pertinent facts and advance arguments; and
- Questions or refute any testimony or evidence, including the opportunity to confront and cross-examine witnesses.

The hearing officer will base the decision only on the evidence and other material introduced at the hearing, except when medical information is requested or other essential information is needed. In this event, you and the local social services agency would have the opportunity to question or refute this additional information.

You will get the hearing officer's decision in writing on your appeal within 60 days of the date the State Department of Social Services receives your appeal request.

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SNAP SANCTION NOTICE FOR NONCOMPLIANCE WITH A WORK REQUIREMENT

FORM NUMBER - 032-03-0174

PURPOSE OF FORM - To notify households or individuals of the reduction or termination of their SNAP benefits because of the disqualification penalty caused by quitting a job or reducing work without good cause.

USE OF FORM - The BPS must complete this form if an individual voluntarily quit a job or reduced work hours without good cause.

NUMBER OF COPIES - Two.

DISPOSITION OF FORM - The original must be sent to the household. The copy must be retained in the SNAP case record.

INSTRUCTIONS FOR PREPARATION OF THE FORM

The BPS must send this form for findings of voluntary quit or work reduction. The BPS must send the form even if the certification period is expiring or the household had previously been notified of adverse action for some other reason on another form.

Enter the appropriate identifying information at the top of the form.

Enter the name of the person who did not comply, and the requirement with which he/she did not comply.

Check the appropriate entry to indicate if the entire household or if only an individual is to be sanctioned. List the months of the sanction, the reduction in benefits and the effective date, as appropriate.

Enter the date by which an appeal may be requested in order to continue benefits at the original amount. Enter the day that is 11 days after the date of mailing.

Complete the information at the bottom of the form.

NOTICE OF INTENTIONAL PROGRAM VIOLATION

Name and Address	Case Name
	Case Number
	Locality Date

An investigation of your _____ Child Care Subsidy, your _____ Supplemental Nutrition Assistance Program (SNAP), or your _____ Temporary Assistance for Needy Families (TANF) case has recently been completed. We have reason to believe you intentionally violated a program rule because:

We have the following evidence to support our case against you:

We will request an Administrative Disqualification Hearing (ADH) to determine if you or another person in your household should be disqualified from Child Care Subsidy, SNAP, or TANF benefits. Please tell me if you have a disability or limited ability to speak and understand English or if you need special arrangements made so you can attend or present your case at the hearing.

You or your representative may look at the evidence we have. Please call the number below to arrange a convenient time to come to the local social services department to see the evidence.

You have the right to an ADH before we take any action to disqualify you from receiving benefits. However, if you wish, you may waive your right to this hearing. If you sign the attached waiver, you will be disqualified from receiving benefits for the period shown below even if you do not admit the facts as presented.

Child Care Subsidy

_____ 3 months, 1st violation _____ 12 months, 2nd violation _____ permanently, 3rd violation

SNAP

_____ months, 1st violation _____ months, 2nd violation _____ permanently, 3rd violation

_____ Other (Specify)

TANF

_____ 6 months, 1st violation _____ 12 months, 2nd violation _____ permanently, 3rd violation

If you are not receiving TANF benefits now, you will be subject to the above disqualification penalty whenever you apply for TANF and are found eligible for TANF benefits again.

If you do not sign the attached waiver, an Administrative Disqualification Hearing will be held. If the hearing finds that you committed an Intentional Program Violation, you will be disqualified for the same period as shown above.

Please note that neither signing the attached waiver nor holding the hearing will prevent the State or Federal government from prosecuting you for an Intentional Program Violation in a criminal or civil court action, or from collecting the overpayment. You have the right to remain silent about the allegations as anything said or signed by you could be used against you in a court of law.

Benefit Program Specialist	Telephone	For Free Legal Advice Call 1-866-534-5243
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What is an Administrative Disqualification Hearing?

An administrative disqualification hearing is a hearing held to decide if you or a member of your household intentionally violated Child Care Subsidy, Supplemental Nutrition Assistance Program (SNAP) or Temporary Assistance for Needy Families (TANF) rules. This is called an “intentional program violation.” The local department of social services will request that the state conduct a hearing when there is evidence that a violation occurred.

What is an Intentional Program Violation?

An “intentional program violation” is any of the following actions:

- Making a false or misleading statement to the local agency, either orally or in writing, to get Child Care, SNAP, or TANF benefits to which you are not entitled. Even if your application is denied, you can be found guilty.
- Hiding information or not telling all the facts to get Child Care, SNAP, or TANF benefits to which you are not entitled.
- Using SNAP benefits to buy non-food items such as alcohol, tobacco, or paper products.
- Using or having SNAP benefits you are not supposed to have.
- Trading or selling SNAP benefits or access devices.

Advance Notification of an Administrative Disqualification Hearing

The hearing officer will provide the date, time, and place of the hearing. You will be told at least 30 days before the hearing date. If you ask the hearing officer at least 10 days before the hearing to delay the hearing, the hearing will be rescheduled. The hearing will not be delayed, however, for more than 30 days. You will be told in writing what the charges are against you. You will also receive a summary of the evidence against you. You will be told in writing how and where you can see the evidence.

What Happens at the Administrative Disqualification Hearing?

The hearing officer will decide if you are guilty of an “intentional program violation.” The hearing officer will make the decision based upon the evidence presented at the hearing. At the hearing, you may:

- See all the documents and records being used at the hearing.
- Present the case or have a legal representative or someone else present the case.
- Bring witnesses.
- Question any testimony or evidence.
- Confront all witnesses and ask them questions.
- Present evidence to establish the household member's side of the case.
- Remain silent about the charges.

NOTICE OF INTENTIONAL PROGRAM VIOLATION

FORM NUMBER - 032-03-0721

PURPOSE OF FORM - To advise a person that he/she is suspected of having committed an intentional program violation (IPV).

USE OF FORM – The BPS must complete this form to advise a household that an IPV is suspected. The BPS must send this form with the Waiver of Administrative Disqualification Hearing. The Administrative Disqualification Hearings pamphlet (b032-01-0961) may also be sent.

NUMBER OF COPIES - Two.

DISPOSITION OF FORM - Send the original to the individual suspected of committing an IPV and keep a copy.

INSTRUCTIONS FOR PREPARATION OF FORM - Complete the identifying information at the top of the form. Complete the form with appropriate information to note the program involved, the actions allegedly committed, the supporting evidence, and the length of the disqualification period. Sign the form and complete the information at the bottom of the form.

Commonwealth of Virginia
Department of Social Services
WAIVER OF ADMINISTRATIVE DISQUALIFICATION HEARING

	Case Name	
	Case Number	
	Locality	Date

The Notice of Intentional Program Violation told you that we suspect you intentionally violated a program rule for ☐ Child Care, ☐ Supplemental Nutrition Assistance Program (SNAP), or ☐ Temporary Assistance for Needy Families (TANF). The Notice listed the evidence against you.

The amount of benefits overpaid: \$_____ Child Care \$_____ SNAP \$_____ TANF

This form is a WAIVER of an Administrative Disqualification Hearing (ADH).

IF YOU CHOOSE TO SIGN THIS WAIVER, you may indicate whether or not you admit the facts as presented in the Notice of Intentional Program Violation. Please note: You do not have to admit to any of the allegations.

If you choose to sign this waiver, please return it by _____ to avoid scheduling a hearing.
Please return the form to:

Agency Name and Address		
Worker	Telephone	For Free Legal Advice Call 1-866-534-5243

WAIVER

You may check one of the following statements:

- ☐ I admit to the facts as presented and understand that a disqualification penalty will be imposed and a reduction of benefits will occur if I sign this waiver.
- ☐ I do not admit that the facts presented are correct. However, I have chosen to sign this waiver and understand that a disqualification penalty and reduction of benefits will result.

All members of your SNAP household are responsible for repaying the benefits overpaid.

Signature	Date
If you are not the case name, that person must also sign this waiver.	
Signature of Case Name if Other Than You	Date

What is an Administrative Disqualification Hearing?

An administrative disqualification hearing is a hearing held to decide if you or a member of your household intentionally violated Child Care, Supplemental Nutrition Assistance Program (SNAP), or Temporary Assistance for Needy Families (TANF) rules. This is called an “intentional program violation.” The local department of social services will request that the state conduct a hearing when there is evidence that a violation occurred.

What is an Intentional Program Violation?

An “intentional program violation” is any of the following actions:

- Making a false or misleading statement to the local agency, either orally or in writing, to get Child Care, SNAP, or TANF benefits to which you are not entitled. Even if your Child Care, SNAP, or TANF application is denied, you can be found guilty.
- Hiding information or not telling all the facts in order to get Child Care, SNAP, or TANF benefits to which you are not entitled.
- Using SNAP benefits to buy non-food items such as alcohol, tobacco, or paper products.
- Using or having SNAP benefits you are not supposed to have.
- Trading or selling SNAP benefits or access devices.

What are the Penalties for an Intentional Program Violation?

If the hearing officer finds that you are guilty, you be disqualified from receiving Child Care, SNAP, or TANF benefits. The length of the disqualification for Child Care, 3 months for the first offense; 12 months for the second offense; and permanently for the third offense. For SNAP, the disqualification will be 12 months for the first offense; 24 months for the second offense; and permanently for the third offense. For TANF, the disqualification will be 6 months for the first offense; 12 months for the second offense; and permanently for the third offense.

In addition, if the hearing officer finds that you intentionally gave false information or hid information about identity or residence to get SNAP benefits in more than one locality at the same time, you will be disqualified for 10 years.

Advance Notification of an Administrative Disqualification Hearing

The hearing officer will provide the date, time, and place of the hearing. You will be told at least 30 days before the hearing date. If you ask the hearing officer at least 10 days before the hearing to delay the hearing, the hearing will be rescheduled. The hearing will not be delayed, however, for more than 30 days. You will be told in writing what the charges are against you. You will also receive a summary of the evidence against you. You will be told in writing how and where you can see the evidence.

What Happens at the Administrative Disqualification Hearing?

The hearing officer will decide if you are guilty of an “intentional program violation.” The hearing officer will make the decision based upon the evidence presented at the hearing. At the hearing, you may:

- See all the documents and records being used at the hearing.
- Present the case or have a legal representative or someone else present the case.
- Bring witnesses.
- Question any testimony or evidence.
- Confront all witnesses and ask them questions.
- Present evidence to establish the household member’s side of the case.
- Remain silent about the charges.

WAIVER OF ADMINISTRATIVE DISQUALIFICATION HEARING

FORM NUMBER - 032-03-0722

PURPOSE OF FORM - To advise a household member suspected of having committed an intentional program violation (IPV) that the right to a hearing may be waived but the disqualification penalty will be imposed if the waiver is signed.

USE OF FORM – The local agency must complete the form and send it to determine if a waiver to the administrative disqualification hearing can be obtained before referring the case to the Hearing Authority. This form must be sent with the Notice of Intentional Program Violation.

NUMBER OF COPIES – Two.

DISPOSITION OF FORM - The local agency must provide a copy of the completed waiver to the individual suspected of committing an IPV and keep a copy.

INSTRUCTIONS FOR PREPARATION OF FORM - Complete the identifying information at the top of the form. Enter the amount of the overpayment or overpayment for the program involved. Complete the form with the date by which the form must be returned if the waiver is to be activated. Enter a date that is 10 days after the mailing date.

If the individual waives the right to the hearing, the individual must complete the rest of the form and return it to the local agency.

Commonwealth of Virginia
Department of Social Services
REFERRAL FOR ADMINISTRATIVE DISQUALIFICATION HEARING

	Locality
	Case Number
	Case Number

☐ Child Care Violation 1 2 3	☐ SNAP Violation 1 2 3	☐ TANF Violation 1 2 3
IPV Period	IPV Period	IPV Period
Overpayment Amount \$	Overpayment Amount \$	Overpayment Amount \$

_____ is alleged to have committed the following act(s) of intentional program violation:

We have the following evidence to support our case:

Copies of evidence to be presented at the hearing to prove the allegation are attached, including: 1) Verification or documents to support the charge; 2) Any applications for Child Care Subsidy, Supplemental Nutrition Assistance Program benefits or Temporary Assistance for Needy Families benefits signed by the accused during the time in which the intentional program violation allegedly occurred.

Information in this referral is provided with the knowledge it will be used in reaching a decision on the allegations made in this referral, and will be made available to the accused individual or representative.

Submitted by	Title	Telephone	Date
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REFERRAL FOR ADMINISTRATIVE DISQUALIFICATION HEARING

FORM NUMBER - 032-03-0725

PURPOSE OF FORM - To refer cases to the State Hearing Authority when an individual is suspected of having committed an intentional program violation (IPV).

USE OF FORM – The local department of social services worker must complete the form to provide information needed by the State Hearing Authority in order to initiate an administrative disqualification hearing. Mail the referral to:

Virginia Department of Social Services
Hearings and Legal Services Manager
5600 Cox Road
Glen Allen, VA 23060

NUMBER OF COPIES - Three.

DISPOSITION OF FORM - The local department must send two copies to the Hearings Manager and keep a copy.

INSTRUCTIONS FOR PREPARATION OF FORM - Complete the information requested at the top of the form. The IPV Period is the span of time over which the IPV occurred. This will often coincide with the dates over which a claim was established.

The " Overpayment Amount" is the total amount of the claim that relates to the IPV. If the IPV was due to an act that did not result in an overpayment, indicate "0" overpayment in this block. This may include, for example, misrepresenting the household's income on an application that was subsequently denied.

Explain the intentional act alleged and the evidence the agency has to support its claim. Evidence listed here must be made available to the individual and will be presented at the hearing. Confidential or other information restricted from the household cannot be the basis of the evidence to support the accusation of an IPV.

The department director or designee must sign the form.

Commonwealth of Virginia
Department of Social Services
ADVANCE NOTICE OF ADMINISTRATIVE DISQUALIFICATION HEARING

Name and Address	Case Name
	Case Number
	Locality

The local social service department has recently completed an investigation of your ☐ Child Care Subsidy case, ☐ Supplemental Nutrition Assistance Program (SNAP) case, or ☐ Temporary Assistance to Needy Families (TANF) case.

The department believes you committed an intentional violation of a program rule because (continue on reverse, if necessary):

The department has the following evidence to support the case against you (continue on reverse, if necessary):

You or your representative may look at this evidence at the local social service department by calling your local worker to arrange a convenient time.

An Administrative Disqualification Hearing has been scheduled to examine the facts of your case. The hearing will be held at:

Time	Place
Date	

If the hearing officer finds you intentionally violated a program rule, you will be disqualified from receiving benefits for the period shown below (the items checked apply to you):

Child Care Subsidy

☐ 3 months, 1st violation ☐ 12 months, 2nd violation ☐ permanently, 3rd violation

SNAP

_____ months, 1st violation _____ months, 2nd violation ☐ permanently, 3rd violation ☐ Other (Specify)

TANF

☐ 6 months, 1st violation ☐ 12 months, 2nd violation ☐ permanently, 3rd violation

If you are not receiving TANF benefits now, you will be subject to the above disqualification penalty whenever you apply for TANF and are found eligible for TANF benefits again.

It is important that you or your representative be at the hearing. Otherwise a decision will be based solely on information provided by the local social service department. If you are unable to attend the scheduled hearing, you must contact the local social service department at least 10 days in advance of the hearing date. If you or your representative fails to appear at a scheduled hearing, you must contact the local social service department within 10 days after the date of the hearing and present good reason for your failure to appear in order to receive a new hearing. An explanation of the steps involved in a hearing is enclosed.

ADVANCE NOTICE OF ADMINISTRATIVE DISQUALIFICATION HEARING

Even though this hearing is scheduled, this does not prevent the State or Federal Government from prosecuting you for an intentional violation of a program rule in a court of law or from collecting the overpayment or overissuance. If you have any questions or need the name and phone number of someone who can give you free legal advice, call the local social services office at: .

Hearing Officer	Phone Number
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(Continuation of explanations from page 1, if necessary)

YOU HAVE THE RIGHT TO:

- * Look at the evidence that will be used at the hearing both before and during the hearing.
Please call the local social service department if you wish to look at the evidence before the hearing. The department will provide a free copy of the portions of your case file that relate to the hearing upon request.
- * Present your own case or have someone present your case for you, such as a lawyer, friend, relative, or community worker.
- * Bring your own witnesses.
- * Argue your case freely.
- * Question or deny any evidence or statements made against you.
- * Bring any evidence you may have that would support your case.
- * Remain silent concerning the charge(s) against you.

ADVANCE NOTICE OF ADMINISTRATIVE DISQUALIFICATION HEARING

FORM NUMBER - 032-03-724

PURPOSE OF FORM - To schedule an administrative disqualification hearing (ADH).

USE OF FORM – The hearing officer must complete the form to provide an individual with a notice in advance of an ADH. The form must be sent by first class mail or certified mail with return receipt requested, or may be provided by any other reliable method. The ADH pamphlet may be sent to the individual with the advance notice or provided on request.

NUMBER OF COPIES - Three.

DISPOSITION OF FORM - The hearing officer must send a copy to the individual alleged to have committed an IPV and to the local agency. The hearing officer must keep a copy.

INSTRUCTIONS FOR PREPARATION OF FORM - Complete the identifying information at the top of the form. Information provided on the referral for the ADH will be used as the basis for the hearing.

Complete the form with the date, time and location of the hearing. Note the disqualification period for the IPV. Include other information as needed to complete the form.

Commonwealth of Virginia
Department of Social Services
ADMINISTRATIVE DISQUALIFICATION HEARING DECISION

Name and Address	Case Name
	Case Number
	Locality

Based on evidence presented at the Administrative Disqualification Hearing held on _____, it has been determined that you:

☐ DID NOT COMMIT an intentional violation of a Child Care Subsidy, Supplemental Nutrition Assistance Program (SNAP), or Temporary Assistance for Needy Families (TANF) rule.

☐ DID COMMIT an intentional violation of a Child Care Subsidy, SNAP, or TANF rule.

If you did commit an intentional program violation, the local department of social services will disqualify you from receiving benefits for the time shown below:

Child Care Subsidy

☐ 3 months, 1st violation ☐ 12 months, 2nd violation ☐ permanently, 3rd violation

SNAP

_____ months, 1st violation _____ months, 2nd violation _____ permanently, 3rd violation
_____ Other (Specify)

TANF

☐ 6 months, 1st violation ☐ 12 months, 2nd violation ☐ permanently, 3rd violation

If you are not receiving TANF benefits now, the disqualification period will be postponed until you apply for TANF benefits and are found eligible again.

The local department of social services is responsible for notifying you of the date the disqualification will take effect. Also, the local department of social services is responsible for notifying you of the effect the disqualification will have on the benefits to be received by any remaining household members.

This hearing decision does not prevent the local agency, State or Federal government from asking you to pay back the amount of any extra Child Care Subsidy, SNAP, or TANF benefits your household was not eligible to receive. The local department of social services is responsible for sending you a letter requesting repayment.

If you are not satisfied with the hearing decision, you can ask for a review of this decision by the Commissioner, Virginia Department of Social Services by sending a written request within 10 days of receipt of this notice to:

Virginia Department of Social Services
Hearings and Legal Services Manager
5600 Cox Road
Glen Allen, VA 23260

Hearing Officer	Date
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ADMINISTRATIVE DISQUALIFICATION HEARING DECISION

FORM NUMBER - 032-03-0723

PURPOSE OF FORM - To advise the household member suspected of an intentional program violation (IPV) of the outcome of the Administrative Disqualification Hearing (ADH).

USE OF FORM – The hearing officer must complete the form to include the decision rendered.

NUMBER OF COPIES - Three.

DISPOSITION OF FORM - The hearing officer must send the original to the household member and send a copy to the local department of social services. The hearing officer must keep a copy.

INSTRUCTIONS FOR PREPARATION OF FORM - Complete the identifying information requested at the top of the form. Complete the form showing the date of the hearing and note whether an IPV was committed. If an IPV was determined, note the disqualification period for the program involved. The hearing officer must provide the written decision within 90 days of the date of the hearing.

Commonwealth of Virginia
Department of Social Services

NOTICE OF DISQUALIFICATION FOR INTENTIONAL PROGRAM VIOLATION

Name and Address	Case Name	
	Case Number	
	Locality	Date

This notice is to inform you of the disqualification of a person from the _____ Child Care Subsidy, _____ Supplemental Nutrition Assistance Program (SNAP) or _____ Temporary Assistance for Needy Families (TANF) program.

_____ has been disqualified for the amount of time shown:

Child Care _____ 3 months _____ 12 months _____ Permanently

SNAP _____ months _____ Permanently _____ Other (specify) _____

TANF _____ 6 months _____ 12 months _____ Permanently

The reason for the disqualification is shown below:

_____ Court of appropriate jurisdiction found the person guilty of committing an intentional program violation of _____ Child Care, _____ SNAP, or _____ TANF policy.

_____ An Administrative Disqualification Hearing found the person guilty of committing an intentional program violation of _____ Child Care, _____ SNAP, or _____ TANF policy.

_____ The person waived his or her right to an Administrative Disqualification Hearing. The person had been informed that the disqualification penalty would be imposed.

The disqualification period will begin:

_____ For Child Care Subsidy program, effective _____.

_____ For SNAP benefits, effective _____.

The SNAP allotment will change from \$ _____ to \$ _____.

_____ From the TANF program, effective _____.

_____ If this blank is checked, the disqualification will begin when the person next applies for and is found eligible for TANF.

The TANF payment will change from \$ _____ to \$ _____.

Worker	Telephone	For Free Legal Advice Call 1-866-534-5243
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NOTICE OF DISQUALIFICATION FOR INTENTIONAL PROGRAM VIOLATION

FORM NUMBER - 032-03-0052

PURPOSE OF FORM - To advise the household of a disqualification due to an intentional program violation.

USE OF FORM – The local department of social services must send this form to advise the household of the length, reason, effective date of a disqualification, and the benefit impact.

NUMBER OF COPIES - Two.

DISPOSITION OF FORM - Send the original to the household and keep a copy in the case record.

INSTRUCTIONS FOR PREPARATION OF FORM - Complete the form with information appropriate for the case and for the program involved. Enter the name of the disqualified individual.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF SOCIAL SERVICES
SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM (SNAP)
MISSED INTERVIEW NOTICE

TO:			Case Name:
			Agency:
			Case Number:
			Date:

You missed the interview to discuss your SNAP application on _____.
You must reschedule the interview or we will deny your application if no interview
takes place within 30 days of your application date. Your application for SNAP
benefits was filed _____.

Please call _____ to schedule the interview.

Benefit Program Specialist

Telephone Number

APPEALS AND FAIR HEARINGS

If you do not agree with the action we are proposing or the amount of benefits you are receiving, you may have a hearing on your case. You will have a chance to explain why you think we made a mistake at the hearing and a hearing officer will decide if you are right. A hearing gives you a chance to review the way a local social services agency handled your situation about your need for TANF or SNAP benefits. The hearing is a private, informal meeting at the local social services agency with you and anyone you want to bring as a witness or to help you tell your story, such as a lawyer. A representative of the local agency will be present as well as a hearings officer. The hearing officer is the official representative of the State Department of Social Services.

It is YOUR RIGHT TO APPEAL decisions of the local social services agency. If you want more information or help with an appeal, you may contact the local social services agency. It will not cost you anything to request a fair hearing, and you will not be penalized for asking for a fair hearing. If you want free legal advice, you may contact your local legal aid office.

How to File an Appeal

- Send a written request to the Virginia Department of Social Services, Attention: Hearing and Legal Services Manager, 5600 Cox Road, Glen Allen, VA 23060
- Call me at the number listed on the front.
- Call 1-800-552-3431.

When to Appeal

- Within the next 90 days for SNAP benefits or within 10 days of the date on this form to get the SNAP benefits continued.

*Note that you may have to repay benefits you received during the appeal process if the hearing decision supports the agency action.

Hearing Process and Decision

The hearing officer will notify you of the date and time for your hearing at the local social services agency or at a location agreeable to you and the agency. If you cannot be there on that day, call the hearing officer and your eligibility worker immediately. If you need transportation, the local agency will provide it.

At the hearing, you and/or your representative will have the opportunity to:

- Examine all documents and records used at the hearing;
- Present your case or have it presented by a lawyer or by another authorized representative;
- Bring witnesses;
- Establish pertinent facts and advance arguments; and
- Question or refute any testimony or evidence, including the opportunity to confront and cross-examine witnesses.

The hearings officer will base the decision only on the evidence and other material introduced at the hearing, except when medical information is requested or other essential information is needed. In this event, you and the local social services agency would have the opportunity to question or refute this additional information.

USDA NONDISCRIMINATION STATEMENT

In accordance with federal civil rights law and U.S. Department of Agriculture (USDA) civil rights regulations and policies, this institution is prohibited from discriminating on the basis of race, color, national origin, sex (including gender identity and sexual orientation), religious creed, disability, age, political beliefs, or reprisal or retaliation for prior civil rights activity.

Program information may be made available in languages other than English. Persons with disabilities who require alternative means of communication to obtain program information (e.g., Braille, large print, audiotape, American Sign Language), should contact the agency (state or local) where they applied for benefits. Individuals who are deaf, hard of hearing or have speech disabilities may contact USDA through the Federal Relay Service at (800) 877-8339.

To file a program discrimination complaint, a Complainant should complete a Form AD-3027, USDA Program Discrimination Complaint Form which can be obtained online at: <https://www.usda.gov/sites/default/files/documents/ad-3027.pdf>, from any USDA office, by calling (866) 632-9992, or by writing a letter addressed to USDA. The letter must contain the complainant's name, address, telephone number, and a written description of the alleged discriminatory action in sufficient detail to inform the Assistant Secretary for Civil Rights (ASCR) about the nature and date of an alleged civil rights violation. The completed AD-3027 form or letter must be submitted to:

7. **mail:** Food and Nutrition Service, USDA
1320 Braddock Place, Room 334
Alexandria, VA 22314; or
8. **fax:** (833) 256-1665 or (202) 690-7442; or
9. **email:** FNSCIVILRIGHTSCOMPLAINTS@usda.gov

This institution is an equal opportunity provider

Missed Interview Notice

FORM NUMBER - 032-03-0419

PURPOSE OF FORM - To notify an applying household about missing an interview and the need to reschedule the interview.

USE OF FORM - The BPS must complete the form after an applicant has missed a scheduled interview. The notice advises the applicant to reschedule the interview before the 30th day following the application filing date.

NUMBER OF COPIES - Two.

DISPOSITION OF FORM - The BPS must provide the form to the household and retain a copy of the completed form or document the case to show that the form was sent.

INSTRUCTIONS FOR PREPARATION OF FORM - The BPS must complete the identifying case information and note the date of the missed interview and the deadline for rescheduling the interview. The deadline will be the 30th day after the application date or the last business day before the 30th day if the 30th day falls on a weekend or holiday.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF SOCIAL SERVICES
SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM (SNAP)
NOTICE OF ACTION AND EXPIRATION

This is to inform you of action taken on your SNAP application

[_____]

[_____]

CASE NUMBER
DATE
COUNTY/CITY

SECTION 1. ACTION ON APPLICATION DATED _____

Approved for following months _____

Amount first month \$ _____ Months covered _____ Amount for following months \$ _____

You selected _____ as Head of Household. If all adult members do not agree, contact me within 10 days.

YOU MUST REPORT IF YOUR HOUSEHOLD'S INCOME GOES OVER THE LIMIT OF \$ _____.

If necessary, you may call collect.

If you do not agree with the action we have taken or the amount of SNAP benefits you are receiving, you may have a fair hearing on your case. At the hearing you will have a chance to explain why you think we made a mistake, and a hearing officer will decide if you are right. You may also request a fair hearing by calling toll free 1-800-552-3431. You must request your fair hearing within the next 90 days. If you appeal the action on your case before _____ assistance may continue. However, if assistance is continued, you may have to repay benefits you received during the appeal process if the hearing decision supports the agency action. For additional information about appeals and fair hearings, please see the back of this notice.

SECTION 2. ACTION REQUIRED TO RECEIVE UNINTERRUPTED BENEFITS

Your SNAP certification period will end on _____

Your eligibility for SNAP benefits is expiring. For uninterrupted benefits, you must file a new application by _____ have an interview, and be found eligible based on the information you give. If you do not file an application by this date, there may be an interruption in your benefits.

We can only start the renewal process once you file an application. You or your authorized representative may file an application that has at least your name, address, and your signature.

- In person at the address shown above or below;
- by mail, fax, by e-mail; or
- online at <https://commonhelp.virginia.gov/access/>.

☞ **Please use only one method to renew.**

You must have an interview. We have scheduled an appointment for an interview on _____ at _____ a.m./p.m. ☐ in the office ☐ by telephone
If this interview appointment is not convenient, please let us know immediately. If you miss this interview appointment, it will be your responsibility to reschedule it.

In addition to the application and interview, you must give us proof of your income, expenses, or other information to help us make a decision on your application. Please have your information available when you file the application or have your interview.

If a telephone interview is scheduled, you must:

- complete the enclosed application form;
- return the completed application by _____ to the address above or below;
- provide a telephone number where you can be reached during the scheduled time.

If everyone in your house receives Supplemental Security Income (SSI) or plan to apply for SSI, you may renew your eligibility for SNAP benefits at the Social Security Administration (SSA) office instead of filing you application at the local social services department. The Social Security office must also receive your application by the date indicated above.

Benefit Program Specialist	Telephone Number	For Free Legal Advice Call 1-866-534-5243
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APPEALS AND FAIR HEARINGS

If you do not agree with the action we are proposing or the amount of benefits you are receiving, you may have a fair hearing on your case. At the hearing you will have a chance to explain why you think we made a mistake and a hearing officer will decide if you are right. A hearing gives you a chance to review the way a local social services agency handled your situation about your need for SNAP benefits. The hearing is a private, informal meeting at the local social services agency with you and anyone you want to bring as a witness or to help you tell your story, such as a lawyer. A representative of the local agency will be present as well as a hearing officer. The hearing officer is the official representative of the State Department of Social Services.

It is YOUR RIGHT TO APPEAL decisions of the local social services agency. If you want more information or help with an appeal, you may contact the local social services agency. It will not cost you anything to request a fair hearing, and you will not be penalized for asking for a fair hearing. If you want free legal advice, you may contact your local legal aid office.

How to File an Appeal

- Send a written request to the Virginia Department of Social Services, Attention: Hearing and Legal Services Manager, 5600 Cox Road, Glen Allen, VA 23060
- Call me at the number listed on the front.
- Call 1-800-552-3431.

When to Appeal

- Within the next 90 days.
- Within 10 days of the date on this form to get the SNAP benefits continued.*

* Note that you may have to repay benefits you received during the appeal process if the hearing decision supports the agency action.

Local Agency Conference

In addition to filing an appeal, you may have a conference with your local social services agency about the denial of your entitlement to expedited SNAP benefits. During the conference, the agency must explain why you were not entitled to expedited SNAP benefits. You will have the chance to present any information where you disagree with the agency's proposed action. You may present your story by an authorized representative, such as a friend, relative, or lawyer.

Hearing Process and Decision

The hearing officer will notify you of the date and time for your hearing at the local social services agency or at a location agreeable to you and the agency. If you cannot be there on that day, call the hearing officer and your eligibility worker immediately. If you need transportation, the local agency will provide it.

At the hearing, you and/or your representative will have the opportunity to:

- Examine all documents and records used at the hearing;
- Present your case or have it presented by a lawyer or by another authorized representative;
- Bring witnesses;
- Establish pertinent facts and advance arguments; and
- Questions or refute any testimony or evidence, including the opportunity to confront and cross-examine witnesses.

The hearing officer will base the decision only on the evidence and other material introduced at the hearing, except when medical information is requested or other essential information is needed. In this event, you and the local social services agency would have the opportunity to question or refute this additional information.

You will get the hearing officer's decision in writing on your appeal within 60 days of the date the State Department of Social Services receives your appeal request.

NOTICE OF ACTION AND EXPIRATION

FORM NUMBER - 032-03-0460

PURPOSE OF FORM - To notify applying households of the approval of the application and the end of the certification period so that households will have the opportunity to file a timely application for recertification.

USE OF FORM - To be sent by the BPS to advise the household of the approval of the application, the certification period, amount of benefits, and the date by which a recertification application must be filed.

NUMBER OF COPIES - Two.

DISPOSITION OF FORM – Mail or give a copy to the household. Retain a copy in the case record.

INSTRUCTIONS FOR PREPARATION - The form may be used in place of the Notice of Action and the Notice of Expiration. If used, the Notice of Action And Expiration must be completed by the BPS and provided to the applicant upon the approval of the application. This form is appropriate only for those households assigned a one-month certification period or those approved in the last month of eligibility.

NOTICE OF TRANSFER

Case Name: _____

Case Number: _____

Agency: _____

Date: _____

Your Supplemental Nutrition Assistance Program (SNAP), Medicaid, or Temporary Assistance for Needy Families (TANF) case(s) was transferred to _____ because of your recent move to that city or county.

Your benefits for these programs will continue without interruption.

Your TANF grant will change from \$ _____ to \$ _____ because of your move to the new city/county.

_____ If the amount of your SNAP or TANF benefits went up because of a reported change in income, expenses, or the number of people in your household, you must show proof of the change. You will need to give this information to the new agency within 10 days or the amount of your SNAP or TANF benefits will go back to \$ _____ without additional notice.

You must report changes or file applications with the new agency. The address and telephone number of the new agency is:

Telephone _____

Benefit Program Specialist

Telephone Number

REMINDER: Please keep your Virginia EBT Card, if you receive SNAP benefits, your EPPICard, if you receive TANF benefits, and your Medicaid card, if you receive Medicaid. You do not need a new card just because of your move.

APPEALS AND FAIR HEARINGS

If you do not agree with the action we are proposing or the amount of benefits you are receiving, you may have a hearing on your case. You will have a chance to explain why you think we made a mistake at the hearing and a hearing officer will decide if you are right. A hearing gives you a chance to review the way a local social services agency handled your situation about your need for TANF or SNAP benefits. The hearing is a private, informal meeting at the local social services agency with you and anyone you want to bring as a witness or to help you tell your story, such as a lawyer. A representative of the local agency will be present as well as a hearings officer. The hearing officer is the official representative of the State Department of Social Services or the Department of Medical Assistance Services (DMAS).

It is YOUR RIGHT TO APPEAL decisions of the local social services agency. If you want more information or help with an appeal, you may contact the local social services agency. It will not cost you anything to request a fair hearing, and you will not be penalized for asking for a fair hearing. If you want free legal advice, you may contact your local legal aid office.

How to File an Appeal

- Send a written request for Medicaid, FAMIS PLUS, or SLH appeals to Client Appeal Division, Department of Medical Assistance Services, 600 East Broad Street, Richmond, Virginia 23219.
- Send a written request for financial assistance and SNAP benefits appeals to the Virginia Department of Social Services, Attention: Hearing and Legal Services Manager, 5600 Cox Road, Glen Allen, VA 23060 or call me at the number listed on the front, or call 1-800-552-3431

Local Agency Conference

In addition to filing an appeal, you may have a conference with your local social services agency about the denial of your entitlement to expedited SNAP benefits. During the conference, the agency must explain why you were not entitled to expedited SNAP benefits. You will have the chance to present any information where you disagree with the agency's proposed action. You may present your story by an authorized representative, such as a friend, relative, or lawyer.

Hearing Process and Decision

The hearing officer will notify you of the date and time for your hearing at the local social services agency or at a location agreeable to you and the agency. If you cannot be there on that day, call the hearing officer and your eligibility worker immediately. If you need transportation, the local agency will provide it.

At the hearing, you and/or your representative will have the opportunity to:

- Examine all documents and records used at the hearing;
- Present your case or have it presented by a lawyer or by another authorized representative;
- Bring witnesses;
- Establish pertinent facts and advance arguments; and
- Question or refute any testimony or evidence, including the opportunity to confront and cross-examine witnesses.

The hearings officer will base the decision only on the evidence and other material introduced at the hearing, except when medical information is requested or other essential information is needed. In this event, you and the local social services agency would have the opportunity to question or refute this additional information.

You will get the hearings officer's decision in writing on your appeal within 60 days of the date the State Department of Social Services receives your appeal request. You will get the hearings officer's decision within 90 days of the date the Department of Medical Assistance Services receives your appeal request for Medicaid, FAMIS PLUS, or SLH appeals.

HIPAA PORTABILITY RIGHTS

Under a federal law known as HIPAA, you may need evidence of your coverage to reduce a preexisting condition exclusion period under another plan, to help you get special enrollment in another plan, or to get certain types of individual health coverage even if you have health problems. You may request a "Certificate of Creditable Coverage" for your coverage by visiting the DMAS website at www.dmas.virginia.gov or contacting the Helpline at 804-786-6145.

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Notice of Transfer

FORM NUMBER - 032-03-0658

PURPOSE AND USE OF FORM - To advise a household that responsibility for a case has been transferred from one locality to another and to provide the contact information of the new agency.

NUMBER OF COPIES - Two.

DISPOSITION OF FORM - The BPS must complete the form and mail it to the household when a case is transferred to another locality.

INSTRUCTIONS FOR PREPARATION OF FORM –

Complete the form with identifying information of the case and with the telephone number and address of the local social services agency to which the case has been transferred. Mark the section to note if the household is required to provide verifications that affect the benefit amount to the new agency. Identify the information needed from the household on the Notice of Action or checklist and on the Case Record Transfer Form.

CASE RECORD TRANSFER FORM

TO: DEPARTMENT OF SOCIAL SERVICES

FROM: DEPARTMENT OF SOCIAL SERVICES

COUNTY/CITY

COUNTY/CITY

ADDRESS

ADDRESS

I. TRANSFERRING LOCALITY CASE INFORMATION

CASE NAME

CASE NUMBER

MOVED TO YOUR LOCALITY ON AND IS RESIDING AT

UNIT MEMBERS

TYPE OF ASSISTANCE:

☐ TANF VIEW CASE ☐ TANF NON-VIEW CASE ☐ REFUGEE CASH ASSISTANCE ☐ OTHER

AMOUNT OF PAYMENT

LAST PAYMENT MONTH

☐ VERIFICATION OF NEEDED BEFORE ISSUANCE OF BENEFITS

☐ SNAP Benefits CERTIFICATION PERIOD END DATE / /

☐ VERIFICATION OF NEEDED BEFORE ISSUANCE OF BENEFITS

☐ PENDING MEDICAID ☐ RECEIVING MEDICAID ☐ RECEIVING REFUGEE MEDICAL ASSISTANCE

☐ RECEIVING FAMIS (APPLICATION, EVALUATION, INCOME VERIFICATION, AND NOTICE OF ACTION ATTACHED)

ADDITIONAL REMARKS:

SIGNATURE (AGENCY REPRESENTATIVE) DATE:

PRINTED NAME TITLE:

II. CONFIRMATION OF RECEIPT & DISPOSITION

CASE RECORD WAS RECEIVED DETERMINED: ☐ ELIGIBLE ☐ INELIGIBLE

EFFECTIVE / /
DATE

FOR
TYPES OF ASSISTANCE

ADDITIONAL REMARKS

SIGNATURE (AGENCY REPRESENTATIVE) DATE:

PRINTED NAME TITLE:

Case Record Transfer Form

FORM NUMBER - 032-03-0227

PURPOSE AND USE OF FORM - To communicate between local departments of social services when transferring responsibility for a case for program benefits from one locality to another. The form also serves as confirmation to acknowledge receipt of the case record.

NUMBER OF COPIES - Three.

DISPOSITION OF FORM - The BPS in the transferring agency must complete the names and addresses of the affected agencies and appropriate parts Section I of the form to address the types of assistance affected. The worker must prepare the case record for transfer to the new locality and send two copies of the form and case record to the receiving agency. The transferring agency must keep a copy of the completed form.

INSTRUCTIONS FOR PREPARATION OF FORM –

Complete the form with identifying information of the case and with the names and addresses of the agency from which the case is being transferred and the agency to which the case is being transferred. Complete Section I to identify the types of assistance and benefit amounts for the household. Add additional comments as needed. A representative of the transferring agency must sign the form.

A representative of the receiving local agency must complete Section II of the form to acknowledge the receipt of the case record. The agency must send copy of the completed form to the agency from which the case was transferred and keep a copy of the form.

Case Name _____

Case Number _____

Rights and Responsibilities

- ☐ I declare that I reviewed a listing of my rights and responsibilities in writing about applying for or receiving public assistance benefits such as Supplemental Nutrition Assistance Program (SNAP) or Temporary Assistance for Needy Families (TANF) benefits.
- ☐ I declare that a representative of the _____ agency discussed rights and responsibilities with me.

Printed Name

Signature

Date

Agency Use

- ☐ I declare that I discussed applicant and recipient rights and responsibilities with _____ on _____ during a telephone interview or other contact.

Printed Name

Signature

Date

Rights and Responsibilities

PURPOSE AND USE OF FORM – May be used to document that an applicant was provided written and verbal guidance on rights and responsibilities for applying and receiving public assistance benefits.

NUMBER OF COPIES - One.

DISPOSITION OF FORM – The case file must contain documentation that the local agency provided each applicant with information about the rights and responsibilities for applying and receiving public assistance benefits. The agency must present the information in writing and verbally. Written information is included as part of the benefit application forms. Applicants must acknowledge receipt of the rights and responsibilities information.

The local agency may use the Rights and Responsibilities form to have an applicant acknowledge receipt of rights and responsibilities information or to document that information was provided during a telephone interview or other contact with an applicant.

INSTRUCTIONS FOR PREPARATION OF FORM –

The applicant must complete the top portion of the form to acknowledge receipt of rights and responsibilities information in writing or verbally. The applicant must sign and date the form.

The local agency worker who provides the verbal presentation must complete the bottom portion of the form to acknowledge that rights and responsibilities information was presented. The worker must record the name of the applicant or other household member with whom a telephone interview was conducted and record the date the information was provided. The worker must sign and date the form.

COMPROMISING CLAIMS WORKSHEET

Name: _____ Claim Number: _____
Claim amount: _____ Claim Balance: _____

To ensure that we properly consider your financial circumstances, please provide documentation of your household's income and expenses. Please provide a copy of recent pay statement or other documentation

Monthly Amount of Income for All Household Members:

Earnings:	\$ _____	Social Security:	\$ _____
Alimony:	\$ _____	Child Support:	\$ _____
Other Income:	\$ _____	Pensions/retirement:	\$ _____

Resources:

Checking Account \$ _____
Savings: Account \$ _____
Market value of stocks, bonds, mutual funds and other investments: \$ _____

Monthly Expenses:

Rent/ Mortgage:	\$ _____	Electricity:	\$ _____
Gas:	\$ _____	Water/ Sewer:	\$ _____
Telephone:	\$ _____	Other Utilities:	\$ _____
Health Insurance:	\$ _____	Other Medical:	\$ _____
Alimony/Child support:	\$ _____		

Signature

Date

Agency Use Only

Ability to Pay:

1. Total monthly income:	\$ _____
2. 10 % of resources:	+ \$ _____
3. Combined income/resources:	= \$ _____
4. Total expenses:	- \$ _____
5. Available funds for payment	\$ _____
6. 10% of available funds (line 5)	\$ _____
7. X 3 years or 36 months	\$ _____
8. Claims balance:	\$ _____
9. Amount to be paid (line 7):	- \$ _____
10. Amount to be compromised:	\$ _____

Household size when claim established: _____

200% Poverty Level for household _____

Referred to TOP? Yes ☐ No ☐

☐ Compromise Approved

☐ Compromise Denied

Explanation: _____

Signature

Date

Compromising Claims Worksheet

FORM NUMBER - 032-03-0572

PURPOSE AND USE OF FORM – May be used to document how all or a portion of a claim amount owed may be eliminated to allow a household to repay the debt within three years.

NUMBER OF COPIES - One.

DISPOSITION OF FORM – The worksheet or other documentation must be filed with the claim information to document why the claim amount owed was or was not reduced or eliminated through compromising.

INSTRUCTIONS FOR PREPARATION OF FORM – A local agency representative must complete the identifying case/claim information. The representative must provide the worksheet to the household to complete the information about household income, resources, and expenses. Calculate the entitlement for compromising the claim in the bottom section of the worksheet by using the information supplied by the household.

TEMPORARY ASSISTANCE FOR NEEDY FAMILIES PROGRAM (TANF) APPLICATION TO ADD NEW ASSISTANCE MEMBERS

This is an application to add new assistance unit members for the TANF Program. These new members joined the family unit since the last application was filed. You may bring this application to the local Department of Social Services office or mail it to the local Department of Social Services office.

A. Your Contact Information

Your Name (last, first, middle initial) _____

Your Street Address (include apartment number) _____

City, State, ZIP _____

Your Mailing Address (if different from your street address) _____

City, State, ZIP _____

In what city or county do you live? _____

E-mail Address _____

Primary Telephone Number _____

Alternate Telephone Number _____

B. New Household Member Information

Give the following information for any new household members you are reporting for the first time or for new members you verbally reported since your original application or most recent eligibility review.

1.

Name (last, first, middle initial) _____

Relationship to You _____

Date of Birth (mm-dd-yyyy) _____

Social Security Number: _____

Assistance Requested: ☐ SNAP Benefits ☐ TANF ☐ None

Gender: ☐ Male ☐ Female

Place of Birth: _____
(City, State, Country)

Marital Status: ☐ Married ☐ Never Married
☐ Separated ☐ Divorced ☐ Widowed

Is this Person a U.S. Citizen? ☐ Yes ☐ No
— If not a U.S. Citizen, what is your status? _____

Is this Person a Student? ☐ Yes ☐ No
If yes, name of school _____

Alien Registration Number _____

Highest Grade Completed _____

Date started living in the U.S. (mm-dd-yyyy) ____/____/____

Providing the following information is voluntary and will not affect eligibility. Please check all that apply.

Ethnicity: ☐ Hispanic/Latino ☐ Not Hispanic/Latino

Racial Heritage: ☐ White ☐ Black/African American ☐ Asian ☐ Asian & Black/African American ☐ Asian & White
☐ American Indian/Alaskan Native ☐ Black/African American & White ☐ American Indian/Alaskan Native & White
☐ Native Hawaiian/Other Pacific Islander ☐ American Indian/Alaskan Native & Black ☐ Other/Unknown

2.

Name (last, first, middle initial) _____

Relationship to You _____

Date of Birth (mm-dd-yyyy) _____

Social Security Number: _____

Assistance Requested: ☐ SNAP Benefits ☐ TANF ☐ None

Gender: ☐ Male ☐ Female

Place of Birth: _____
(City, State, Country)

Marital Status: ☐ Married ☐ Never Married
☐ Separated ☐ Divorced ☐ Widowed

Is this Person a U.S. Citizen? ☐ Yes ☐ No
— If not a U.S. Citizen, what is your status? _____

Is this Person a Student? ☐ Yes ☐ No
If yes, name of school _____

Alien Registration Number: _____

Highest Grade Completed: _____

Date started living in the U.S. (mm-dd-yyyy) ____/____/____

Providing the following information is voluntary and will not affect eligibility. Please check all that apply.

Ethnicity: ☐ Hispanic/Latino ☐ Not Hispanic/Latino

Racial Heritage: ☐ White ☐ Black/African American ☐ Asian ☐ Asian & Black/African American ☐ Asian & White
☐ American Indian/Alaskan Native ☐ Black/African American & White ☐ American Indian/Alaskan Native & White
☐ Native Hawaiian/Other Pacific Islander ☐ American Indian/Alaskan Native & Black ☐ Other/Unknown

3.

Name (last, first, middle initial) _____

Relationship to You _____

Date of Birth (mm-dd-yyyy) _____

Social Security Number: _____

Assistance Requested: ☐ SNAP Benefits ☐ TANF ☐ None

Gender: ☐ Male ☐ Female

Place of Birth: _____
(City, State, Country)

Marital Status: ☐ Married ☐ Never Married
☐ Separated ☐ Divorced ☐ Widowed

Is this Person a U.S. Citizen? ☐ Yes ☐ No
— If not a U.S. Citizen, what is your status? _____

Is this Person a Student? ☐ Yes ☐ No
If yes, name of school _____

Alien Registration Number: _____

Highest Grade Completed: _____

Date started living in the U.S. (mm-dd-yyyy) ____/____/____

Providing the following information is voluntary and will not affect eligibility. Please check all that apply.

Ethnicity: ☐ Hispanic/Latino ☐ Not Hispanic/Latino

Racial Heritage: ☐ White ☐ Black/African American ☐ Asian ☐ Asian & Black/African American ☐ Asian & White
☐ American Indian/Alaskan Native ☐ Black/African American & White ☐ American Indian/Alaskan Native & White
☐ Native Hawaiian/Other Pacific Islander ☐ American Indian/Alaskan Native & Black ☐ Other/Unknown

- ☐ YES ☐ NO 1. Have any of your children received any immunizations since approval of your original application or since your most recent review? If YES, explain: _____
- ☐ YES ☐ NO 2. Have you or anyone for whom you are applying ever been disqualified from receiving TANF (AFDC) or SNAP benefits? If YES, explain: _____
- ☐ YES ☐ NO 3. Is anyone in violation of parole or probation or fleeing capture to avoid prosecution or punishment of a felony? If YES, explain: _____
- ☐ YES ☐ NO 4. Have you or anyone for whom you are applying ever been convicted of a felony as an adult on or after February 8, 2014 for the following:
- a. Aggravated sexual abuse under Title 18 United States Code (USC), Section 2241 or a similar state offense?
☐ YES ☐ NO
- b. Murder under Title 18 USC, Section 1111 or a similar state offense? ☐ YES ☐ NO
- c. An offense under Title 18 USC, Chapter 110 (sexual exploitation and other abuse of children) or a similar state offense? ☐ YES ☐ NO
- d. A federal or state offense involving sexual assault, as defined in Section 40002(a) of the Violence Against Women Act of 1994 (42 USC 13925(a)) ? ☐ YES ☐ NO
- If YES to any of the above, who? _____
- If YES to any of the above, are you in compliance with the terms of the sentence? ☐ YES ☐ NO

By my signature below, I declare that the household member(s) for whom I am requesting TANF or SNAP benefits, is/are either a U.S. citizen(s) or alien(s) in lawful immigration status. I declare under penalty of law that all information on this form is correct and complete to the best of my knowledge and belief. I understand that if there is a TANF or SNAP claim against my household, the information on this application, including all SSNs, may be referred to federal and state agencies as well as private claims collection agencies for claims collection action.

Your Signature or Authorized Representative's Signature or Mark

Date

Witness to Mark or Interpreter

Date

TEMPORARY ASSISTANCE FOR NEEDY FAMILIES PROGRAM (TANF) APPLICATION TO
ADD NEW ASSISTANCE MEMBERS

FORM NUMBER - 032-03-729B

PURPOSE OF FORM - To gather information about new household members for whom TANF assistance is requested.

USE OF FORM – This application is limited to requesting TANF assistance for new household members during the certification period. The application may also be used to apply for SNAP benefits for new members during the certification period although the request to add new household members is not required to be in writing **for SNAP**. This application may not be used in lieu of an application to apply for initial benefits, to reapply for benefits after a lapse in certification, or to protect the date of application.

NUMBER OF COPIES - One.

DISPOSITION OF FORM – This application must be completed when new household members are added for TANF. The completed application must be filed in the eligibility case record. The application may be used to apply for SNAP benefits for new members

INSTRUCTIONS FOR PREPARATION OF FORM – The application must be completed in its entirety to request TANF assistance for new household members.

Commonwealth of Virginia
Department of Social Services
Supplemental Nutrition Assistance Program (SNAP)
**APPLICATION FOR THE ELDERLY SIMPLIFIED
APPLICATION PROJECT (ESAP)**

Return your completed application to:
_____ County/City DSS

GENERAL INFORMATION

With this application, you may apply for food assistance if:

- Everyone in the household is 60 years of age or older; or
- All household members aged 60 or older purchase and prepare food separately from other household members; and
- No member receives earnings from work.

COMPLETING THE APPLICATION

If you need help completing this application, a friend or relative or your eligibility worker can help you. If you are completing this application for someone else, answer each question as if you were that person. If you need to change an answer or make a correction, write the correct information nearby and put your initials and date next to the change. If there are more than 2 people living in your home and you need more space to list everyone, tell the agency you need extra pages. If you have a disability or have difficulty with English, you may receive extra help to make sure you get the assistance or services you are eligible to receive.

FILING THE APPLICATION

You may turn in a partially completed application which contains at least your name, address, and signature (or the signature of your authorized representative), **but you must complete the rest of this application before your eligibility can be determined.** You must also be interviewed, but you may turn in your application before your interview. You may turn in your application any time during office hours the same day as you contact your local agency. You have the right to turn in your application even if it looks like you may not be eligible for benefits.

VERIFICATION AND USE OF INFORMATION

Information you give on this application, including Social Security numbers, may be matched against federal, state, and local records. These records include:

- Virginia Employment Commission (VEC)
- Internal Revenue Service (IRS)
- Social Security Administration (SSA)
- Department of Motor Vehicles (DMV)
- US Citizenship and Immigration Services (USCIS)
- Income and Eligibility Verification System IEVS)
- Virginia Lottery

Any difference between the information you give and these records will be investigated. Information from these records may affect your eligibility and benefit amount. Information may be used to:

- determine the correctness, accuracy, and truthfulness of the application;
- verify your identity and citizenship; verify wages and salary, unemployment benefits, and unearned income, such as Social Security and Supplemental Security Income (SSI) benefits; verify quarters of coverage under Social Security for an alien, or to verify the status of aliens;
- prevent receipt of benefits from more than one social service agency at the same time;
- make required program changes;
- allow disclosure for official examination and to law enforcement officials to assist in apprehending persons fleeing to avoid the law; or
- assist in SNAP claims collection actions.

Your information may also be used or disclosed to study public benefit programs, such as SNAP.

Information regarding your race and ethnicity is not required and will not affect your eligibility or benefit amount. This information is requested to be sure that program benefits are provided without regard to race, color, or national origin.

EXPEDITED SERVICE FOR SNAP BENEFITS

Your household may qualify for Expedited Service and receive SNAP benefits within 7 days if you are eligible. To qualify for Expedited Service: 1) your gross monthly income must be less than \$150 and liquid resources \$100 or less; 2) your monthly shelter bills must be higher than your household's gross monthly income plus your liquid resources; or 3) someone in your household must be a migrant or seasonal farm worker with little or no income and resources.

REPORTING REQUIREMENTS

You must report changes within 10 days, but no later than the 10th day of the month after the change occurs. Report these changes:

- If you have lottery or gambling winnings of \$4,500 or more;
- If you have changes in the number of people in your household; or
- If you or a member of your household start to receive money from working.

SNAP RESPONSIBILITIES AND PENALTIES FOR VIOLATIONS

You must not:

- give false information or hide information to get SNAP benefits;
- trade or sell EBT cards or attempt to trade or sell EBT cards;
- use SNAP benefits to buy non-food items, such as alcohol, tobacco or paper products;
- use someone else's EBT card for your household.
- buy an item and discard the contents in order to get the return deposit for the container;
- resell a purchased product for cash or exchange a purchased product for consideration other than eligible food; or
- purchase food on credit.

If you intentionally break any of these rules, you could be barred from getting SNAP benefits for 12 months (1st violation), 24 months (2nd violation), or permanently (3rd violation); fined up to \$250,000, imprisoned up to 20 years, or both; and suspended for an additional 18 months and further prosecuted under other Federal and State laws.

If you intentionally give false information or hide information about identity or residence to get SNAP benefits in more than one locality at the same time, you could be barred for 10 years.

If you are convicted in court of trading or selling SNAP benefits of \$500.00 or more, you could be barred permanently.

If you are convicted in court of trading SNAP benefits for a controlled substance, you could be barred for 24 months for the 1st violation, permanently for the 2nd violation.

If you are convicted in court of trading SNAP benefits for firearms, ammunition, or explosives, you could be barred permanently for the first violation.

If you refuse to cooperate with any review of eligibility, including a review by Quality Assurance, your benefits may be denied until there is cooperation.

Failure to report or verify your expenses will be seen as a statement that you do not want to receive a deduction for these expenses.

NONDISCRIMINATION STATEMENT

In accordance with federal civil rights law and U.S. Department of Agriculture (USDA) civil rights regulations and policies, this institution is prohibited from discriminating on the basis of race, color, national origin, sex (including gender identity and sexual orientation), religious creed, disability, age, political beliefs, or reprisal or retaliation for prior civil rights activity.

Program information may be made available in languages other than English. Persons with disabilities who require alternative means of communication to obtain program information (e.g., Braille, large print, audiotope, American Sign Language), should contact the agency (state or local) where they applied for benefits. Individuals who are deaf, hard of hearing or have speech disabilities may contact USDA through the Federal Relay Service at (800) 877-8339.

To file a program discrimination complaint, a Complainant should complete a Form AD-3027, USDA Program Discrimination Complaint Form which can be obtained online at: <https://www.usda.gov/sites/default/files/documents/ad-3027.pdf>, from any USDA office, by calling (866) 632-9992, or by writing a letter addressed to USDA. The letter must contain the complainant's name, address, telephone number, and a written description of the alleged discriminatory action in sufficient detail to inform the Assistant Secretary for Civil Rights (ASCR) about the nature and date of an alleged civil rights violation. The completed AD-3027 form or letter must be submitted to:

10. mail: Food and Nutrition Service, USDA
1320 Braddock Place, Room 334
Alexandria, VA 22314; or

11. fax: (833) 256-1665 or (202) 690-7442; or

12. email: FNSCIVILRIGHTSCOMPLAINTS@usda.gov

This institution is an equal opportunity provider.

DOMESTIC VIOLENCE INFORMATION

Domestic violence information and services are available to anyone experiencing violence or abuse from their partner. If you are in immediate danger, call 911. If you would like to speak with, text or chat with someone who understands these issues or to learn about services and safety options, contact the Virginia Statewide Hotline.

- Call and speak with an advocate toll-free at 1-800-838-8238. (Note: Interpreters are available for more than 200 languages via the Language Line.)
- Text with an advocate at 804-793-9999.
- Chat with an advocate at <https://www.vadata.org/chat/>. (Chat feature works best on a computer or tablet.)
- Call and speak with an advocate - LGBTQ Helpline: 1-866-356-6998

COMMONWEALTH OF VIRGINIA VOTER REGISTRATION AGENCY CERTIFICATION

If you are not registered to vote where you live now, would you like to apply to register to vote here today?
(Please check only one)

- ☐ I am already registered to vote at my current address, or I am not eligible to register to vote and do not need an application to register to vote.
- ☐ Yes, I would like to apply to register to vote. (Please fill out the voter registration application form)
- ☐ No, I do not want to register to vote.

If you do not check any box, you will be considered to have decided **not to** register to vote at this time. Applying to register to vote or declining to register to vote will not affect the assistance or services that you will be provided by this agency.

If you decline to register to vote, this fact will remain confidential. If you do register to vote, the office where your application was submitted will be kept confidential, and it will be used only for voter registration purposes.

If you would like help filling out the voter registration application form, we will help you. The decision whether to seek or accept help is yours. You may fill out the application form in private if you desire.

If you believe that someone has interfered with your right to register or to decline to register to vote, your right to privacy in deciding whether to register or in applying to register to vote, you may file a complaint with: Secretary of the Virginia State Board of Elections, Washington Building, 1100 Bank Street, Richmond, VA 23219-3497, Telephone (804) 864-8901.

Applicant Name

Signature

Date

for agency use only

Voter Registration form completed: ☐ Yes ☐ No

Voter Registration form given to applicant for later mailing (at applicant's request)

☐ Yes ☐ No

Agency Staff Signature

Date:

Commonwealth of Virginia
Department of Social Services
Supplemental Nutrition Assistance Program (SNAP)

APPLICATION FOR THE ELDERLY

Return your completed application to:
_____ County/City DSS

A. APPLICANT INFORMATION. Enter your Contact Information.

Your Name (last, first, middle initial) _____

Your Street Address (include apartment number) _____

City, State, ZIP _____

Your Mailing Address (if different from your street address) _____

City, State, ZIP _____

Email Address _____

Primary Telephone Number _____

Alternate Telephone Number _____

What is the primary language spoken in your household? _____

Primary Method of Correspondence

You may receive either text or email messages notifying you that some notices about your benefits may be accessed electronically through CommonHelp (www.CommonHelp.Virginia.gov). List either a cell telephone number or an email address. If you do not choose to be notified by text or email, you will receive all written correspondence through the U.S. mail.

☐ **Text** ☐ **Email** ☐ **Cell Phone Number** _____ **Email Address** _____

☐ **YES** ☐ **NO** 1. Have you or anyone for whom you are applying ever applied for, or received, or are currently receiving SNAP benefits from a social services agency? If **YES**, enter the information below.
When? _____ From What County, City, or State? _____

☐ **YES** ☐ **NO** 2. Have you or anyone for whom you are applying ever been convicted of making false or misleading statements about your identity or address to receive SNAP benefits in two or more states at the same time? If **YES**, give date and place of conviction. _____

☐ **YES** ☐ **NO** 3. Have you or anyone for whom you are applying ever been disqualified from participating in SNAP? If **YES**, give date and place of all disqualifications. _____

☐ **YES** ☐ **NO** 4. Are you or anyone for whom you are applying in violation of parole or probation or fleeing capture to avoid prosecution or punishment of a felony? If **YES**, explain _____

☐ **YES** ☐ **NO** 5. Have you or anyone for whom you are applying ever been convicted as an adult on or after February 8, 2014 for the following:

- i. Aggravated sexual abuse under Title 18 United States Code (USC), Section 2241 or a similar state offense? ☐ **YES** ☐ **NO**
- j. Murder under Title 18 USC, Section 1111 or a similar state offense? ☐ **YES** ☐ **NO**
- k. An offense under Title 18 USC, Chapter 110 (sexual exploitation and other abuse of children) or a similar state offense? ☐ **YES** ☐ **NO**
- l. A federal or state offense involving sexual assault, as defined in Section 40002(a) of the Violence Against Women Act of 1994 (42 USC 13925(a)) ? ☐ **YES** ☐ **NO**

If **YES** to any of the above, are you in compliance with the terms of the sentence? ☐ **YES** ☐ **NO**

6. You may appoint someone to apply for SNAP benefits on your behalf, receive and use your SNAP benefits on your behalf, or receive copies of your program notices. If you want to name a representative, please give the information below

Name, Address and Telephone Number of the Authorized Representative	Check (✓) each duty authorized for that person
	☐ Apply for SNAP benefits ☐ Receive correspondence ☐ Access or use SNAP benefits

B. HOUSEHOLD COMPOSITION: This section includes information about everyone living in your home, even if you are not applying for that person. You may leave the Social Security Number blank if you are not applying for assistance for the person. List yourself first. If you need more space to list your household members, please ask for another form or write the information on a separate sheet.

1 Name (last, first, middle initial) _____ Social Security Number: _____ Gender: ☐ Male ☐ Female Program Requested: ☐ None ☐ ESAP	Self Relationship to You _____ Birth Date (mm-dd-yyyy) _____ City, State, Country of Birth: _____ Are you a U.S. citizen? ☐ Yes ☐ No If No, immigration status: _____ US Residency Date: __/__/____ Alien Registration Number: _____
---	---

Providing the following information is voluntary and will not affect eligibility. Please check all that apply.

Ethnicity: ☐ Hispanic/Latino ☐ Not Hispanic/Latino
Racial Heritage: ☐ White ☐ Black/African American ☐ Asian ☐ Asian & Black/African American ☐ Asian & White
☐ American Indian/Alaskan Native ☐ Black/African American & White ☐ American Indian/Alaskan Native & White
☐ Native Hawaiian/Other Pacific Islander ☐ American Indian/Alaskan Native & Black ☐ Other/Unknown

2 Name (last, first, middle initial) _____ Social Security Number: _____ Gender: ☐ Male ☐ Female Program Requested: ☐ None ☐ ESAP	Relationship to Applicant _____ Birth Date (mm-dd-yyyy) _____ City, State, Country of Birth: _____ Is this person a U.S. citizen? ☐ Yes ☐ No If No, immigration status: _____ US Residency Date: __/__/____ Alien Registration Number: _____
---	---

Providing the following information is voluntary and will not affect eligibility. Please check all that apply.

Ethnicity: ☐ Hispanic/Latino ☐ Not Hispanic/Latino
Racial Heritage: ☐ White ☐ Black/African American ☐ Asian ☐ Asian & Black/African American ☐ Asian & White
☐ American Indian/Alaskan Native ☐ Black/African American & White ☐ American Indian/Alaskan Native & White
☐ Native Hawaiian/Other Pacific Islander ☐ American Indian/Alaskan Native & Black ☐ Other/Unknown

☐ YES ☐ NO Are there others who live in your home? If YES ,		
Name of Person	Relationship	Does this person buy/eat food with you?
_____	_____	☐ Yes ☐ No
_____	_____	☐ Yes ☐ No
_____	_____	☐ Yes ☐ No

C. RESOURCES

1. Do you or anyone who lives with you have any of the following resources or assets? If **Yes**, please provide details below.

Yes No ☐ ☐ Cash \$ _____ ☐ ☐ 401K, 403B, etc ☐ ☐ Individual Retirement Account (IRA)	Yes No ☐ ☐ Checking/Savings Accounts ☐ ☐ Certificate of Deposit (CD) ☐ ☐ Christmas Club	Yes No ☐ ☐ Stocks or bonds ☐ ☐ Money Market Funds ☐ ☐ Other
---	--	--

a.

Owner Name (last, first, middle initial) _____	Co-Owner Name (last, first, middle initial) _____		
Name of Bank or Institution _____	Account Type _____	Account Number _____	\$ _____ Balance
Address of Bank or Institution _____			

b.

Owner Name (last, first, middle initial) _____	Co-Owner Name (last, first, middle initial) _____		
Name of Bank or Institution _____	Account Type _____	Account Number _____	\$ _____ Balance
Address of Bank or Institution _____			

☐ YES ☐ NO 2. Has anyone received or expect to receive winnings of \$4,500 or more from lottery or gambling? If **YES**, explain: _____

☐ YES ☐ NO 3. Has anyone sold, transferred or given away any resources in the last 3 months? If **YES**, explain: _____

D. INCOME

- ☐ YES ☐ NO 1. Do you or anyone applying for ESAP with you receive or expect to receive money from working? If **YES**,
\$ _____

Name of Person

Amount/ How Often Received?

Employer

2. Do you or anyone applying for ESAP with you receive or expect to receive any of the following? Answer yes or no below and provide the requested information.

Yes No

- ☐ ☐ Social Security or SSI
☐ ☐ VA benefits or Military Allotment
☐ ☐ Child support, alimony
☐ ☐ Railroad or Other retirement

Yes No

- ☐ ☐ Worker compensation
☐ ☐ Unemployment benefits
☐ ☐ Black Lung benefits
☐ ☐ Insurance settlement

Yes No

- ☐ ☐ Room/board or Rental Income
☐ ☐ Interest, dividends
☐ ☐ Public Assistance (TANF/GR)
☐ ☐ Any other type of money

a.

\$

Name of Person

Amount

Type of Money or Help

How Often Received?

b.

\$

Name of Person

Amount

Type of Money or Help

How Often Received?

E. EXPENSES

- ☐ YES ☐ NO 1. Do you have any of the following shelter expenses? If **YES**, list your current expenses.
Check (✓) here ☐ if these expenses are for a house you do not live in.

Expense	Amount Billed	How Often Billed?	Who is Responsible for the Bill?
Rent/Mortgage			
Taxes/ Insurance			
Electricity			
Gas/Oil/Kerosene/Coal/Wood			
Water/Sewage/Garbage			
Telephone			
Other			

- ☐ YES ☐ NO 1a Do you have air conditioning in your home? How do you heat your home? _____
- ☐ YES ☐ NO 1b Did you receive energy/fuel assistance during this past year while living in your current home?
- ☐ YES ☐ NO 2. Do you or anyone in your household who is age 60 or older have any current medical expenses? If **YES**, list the expenses. This may include prescriptions, health insurance premiums, transportation, or doctor visit payments.

Household Member with Medical Expense	Type of Expense	Amount	Name of Doctor, Hospital, Pharmacy

- ☐ YES ☐ NO 3. Does anyone besides the people on your case pay directly for you, help you pay, or lend you money to pay rent, utilities, medical bills or any other bills? **OR** does anyone totally supply food, shelter or clothing for you or someone else on a regular basis? If **YES**, give name, amount, and explain: _____
- ☐ YES ☐ NO 4. Does anyone pay legally obligated child support to someone who is not in the household? If **YES**, give name of person paying, person supported, and amount: _____

BY MY SIGNATURE BELOW, I DECLARE: I have given true and correct information on this application to the best of my knowledge and belief. I understand that if I give false information, withhold information, or fail to report a change promptly or on purpose, I may be breaking the law and could be prosecuted for perjury, larceny, and/or welfare fraud.

☐ **I allow** ☐ **I do not allow** the Department of Social Services to disclose certain information about me to other state agencies, including information in electronic databases, for the purpose of determining my eligibility for benefits/services provided by that agency. This disclosure will make it easier for agencies to work together efficiently to provide or coordinate services and benefits. Agencies include, but are not limited to, the Department of Health, and the Department for Aging and Rehabilitative Services. I can withdraw this authorization at any time by notifying my eligibility worker.

Signature of Applicant or Authorized Representative

Date

AGENCY USE ONLY	
Case Name	Case Number
Locality	Date Received
Date of Interview:	☐ In office ☐ Telephone
Interviewer	Program (s)

10/24

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APPLICATION FOR THE ELDERLY SIMPLIFIED APPLICATION PROJECT (ESAP)

FORM NUMBER -

PURPOSE AND USE OF FORM – This application presents only the information needed to determine SNAP eligibility for households containing elderly members only. Applicants may use this application to apply for ESAP. Applicants are not limited to using the ESAP application. Applicants may use any acceptable Virginia SNAP application. The application must be retained for a minimum of three years.

NUMBER OF COPIES - One.

DISPOSITION OF FORM – The local department must evaluate information presented on the application to determine ESAP or SNAP eligibility.

INSTRUCTIONS FOR PREPARATION OF FORM – Applicants must complete the application fully.

**Renewal Application for
Elderly Simplified Application Project (ESAP)**

To:

ESAP/SNAP Case Number

County/City

Department of Social Services

Address

City, State, Zip

Telephone Number

Your ESAP eligibility will end on:

Your eligibility for ESAP benefits is expiring. You must file a new application by

for uninterrupted benefits, and be found eligible based on the information you give. If you do not file an application by this date, there may be an interruption in your benefits.

We can only start the renewal process once you file an application. You or your authorized representative may complete the application attached here. The application must have at least your name, address, and your signature. You may file the application:

- in person at the address shown above;
 - by mail, fax, by e-mail; or
 - apply online at <https://commonhelp.virginia.gov/access/>.
-  **Please use only one method to renew.**

In most instances, we will not need an interview to process your renewal application. You may request to have an interview however. If we need an interview or if you request one, we will let you know when and how the interview will occur. We will also let you know if we need additional information.

If you do not agree with the action taken on your application, you may appeal the action. You must file your appeal within ninety days of the agency's notice to you. You may get an appeal form from this department or from the Virginia Department of Social Services, 5600 Cox Road, Glen Allen, VA 23060, or you may call 1-800-552-3431.

Benefit Program Specialist

Date

USDA Nondiscrimination Statement

In accordance with federal civil rights law and U.S. Department of Agriculture (USDA) civil rights regulations and policies, this institution is prohibited from discriminating on the basis of race, color, national origin, sex (including gender identity and sexual orientation), religious creed, disability, age, political beliefs, or reprisal or retaliation for prior civil rights activity.

Program information may be made available in languages other than English. Persons with disabilities who require alternative means of communication to obtain program information (e.g., Braille, large print, audiotope, American Sign Language), should contact the agency (state or local) where they applied for benefits. Individuals who are deaf, hard of hearing or have speech disabilities may contact USDA through the Federal Relay Service at (800) 877-8339.

To file a program discrimination complaint, a Complainant should complete a Form AD-3027, USDA Program Discrimination Complaint Form which can be obtained online at: <https://www.usda.gov/sites/default/files/documents/ad-3027.pdf>, from any USDA office, by calling (866) 632-9992, or by writing a letter addressed to USDA. The letter must contain the complainant's name, address, telephone number, and a written description of the alleged discriminatory action in sufficient detail to inform the Assistant Secretary for Civil Rights (ASCR) about the nature and date of an alleged civil rights violation. The completed AD-3027 form or letter must be submitted to:

1. **mail:** Food and Nutrition Service, USDA
1320 Braddock Place, Room 334
Alexandria, VA 22314; or
2. **fax:** (833) 256-1665 or (202) 690-7442; or
3. **email:** FNSCIVILRIGHTSCOMPLAINTS@usda.gov

This institution is an equal opportunity provider.

DOMESTIC VIOLENCE INFORMATION

Domestic violence information and services are available to anyone experiencing violence or abuse from their partner. If you are in immediate danger, call 911. If you would like to speak with, text or chat with someone who understands these issues or to learn about services and safety options, contact the Virginia Statewide Hotline.

- Call and speak with an advocate toll-free at 1-800-838-8238. (Note: Interpreters are available for more than 200 languages via the Language Line.)
- Text with an advocate at 804-793-9999.
- Chat with an advocate at <https://www.vadata.org/chat/>. (Chat feature works best on a computer or tablet.)
- Call and speak with an advocate - LGBTQ Helpline: 1-866-356-6998

Commonwealth of Virginia Voter Registration Agency Certification

If you are not registered to vote where you live now, would you like to apply to register to vote here today?
(Please check only one)

- ☐ I am already registered to vote at my current address, or I am not eligible to register to vote and do not need an application to register to vote.
- ☐ Yes, I would like to apply to register to vote. (Please fill out the voter registration application form)
- ☐ No, I do not want to register to vote.

If you do not check any box, you will be considered to have decided **not to** register to vote at this time. Applying to register to vote or declining to register to vote will not affect the assistance or services that you will be provided by this agency. If you decline to register to vote, this fact will remain confidential. If you do register to vote, the office where your application was submitted will be kept confidential, and it will be used only for voter registration purposes. If you would like help filling out the voter registration application form, we will help you. The decision whether to seek or accept help is yours. You may fill out the application form in private if you desire.

If you believe that someone has interfered with your right to register or to decline to register to vote, your right to privacy in deciding whether to register or in applying to register to vote, you may file a complaint with: Secretary of the Virginia State Board of Elections, Washington Building, 1100 Bank Street, Richmond, VA 23219-3497, telephone (804) 864-8901.

Applicant Name	Signature	Date
----------------	-----------	------

for agency use only

Voter Registration form completed: ☐ Yes ☐ No
Voter Registration form given to applicant for later mailing (at applicant's request) ☐

Agency Staff Signature	Date
------------------------	------

ELDERLY SIMPLIFIED APPLICATION PROJECT (ESAP) RECERTIFICATION APPLICATION

This is an application to renew your eligibility for benefits. You may bring this application to the local Department of Social Services office or mail it to the local Department of Social Services office. You may also apply online for renewal for SNAP at <https://commonhelp.virginia.gov/access/>.

A. HOUSEHOLD INFORMATION

Your Name (last, first, middle initial)

Your Street Address (include apartment number)

City, State, ZIP

Your Mailing Address (if different from your street address)

City, State, ZIP

In what city or county do you live?

E-mail Address

Primary Telephone Number

Alternate Telephone Number

Primary Method of Correspondence

You may receive either text or email messages notifying you that some notices about your benefits may be accessed electronically through CommonHelp (www.CommonHelp.Virginia.gov). List either a cell telephone number or an email address. If you do not choose to be notified by text or email, you will receive all written correspondence through the U.S. mail.

☐ Text ☐ Email Cell Phone Number _____ Email Address _____

B. Household/Unit Members. List everyone who lives with you who.

Name	Date of Birth	Relationship to you

List information for any new people who moved into your home after you last applied for SNAP benefits.

Name:	Name:
Date of Birth: Sex:	Date of Birth: Sex:
Relationship:	Relationship:
*Social Security Number:	*Social Security Number:

*Social Security Numbers are used to check computer systems before new members may be added to the case:

C. Resources. List the balances of any bank accounts, cash, individual retirement accounts, 401K, 403B, money market funds, or similar accounts, etc.

What?	Where?	Amounts

D. Lottery/Gambling Winnings

Has anyone received or expect to receive winnings of \$4,500 or more from lottery or gambling? ☐ Yes ☐ No

If YES, please explain and send proof.

E. Unearned Income. List any income received from Social Security, unemployment, pensions, disability, support or similar sources.

Source	Amount	Source	Amount

Is there a new source of income from Social Security, unemployment, pensions, disability, support or a similar source?

☐ Yes ☐ No If YES, please send proof. What is the new source and amount?

F. Earned Income	
Has anyone started or stopped a job? ☐ Yes ☐ No If YES, please send proof.	
If YES, name of the employer: _____ Amount earned? _____ How often paid? _____	
Expenses	
Child support: Is anyone required to pay child support? If YES, what is the amount paid or owed?	
	Enter the monthly amount billed, owed, or paid
Medical (total amount)	
Prescriptions	
Insurance	
Doctor	
Other	
Child/adult Care	
Shelter	
Rent/mortgage	
Utilities	
Taxes/Insurance	
Other	

- ☐ YES ☐ NO 8. Are you or anyone for whom you are applying in violation of parole or probation or fleeing capture to avoid prosecution or punishment of a felony? If **YES**, explain _____
- ☐ YES ☐ NO 9. Have you or anyone for whom you are applying ever been convicted as an adult on or after February 8, 2014 for the following:
- m. Aggravated sexual abuse under Title 18 United States Code (USC), Section 2241 or a similar state offense? ☐ YES ☐ NO
 - n. Murder under Title 18 USC, Section 1111 or a similar state offense? ☐ YES ☐ NO
 - o. An offense under Title 18 USC, Chapter 110 (sexual exploitation and other abuse of children) or a similar state offense? ☐ YES ☐ NO
 - p. A federal or state offense involving sexual assault, as defined in Section 40002(a) of the Violence Against Women Act of 1994 (42 USC 13925(a)) ? ☐ YES ☐ NO
- If **YES** to any of the above, are you in compliance with the terms of the sentence? ☐ YES ☐ NO
10. You may appoint someone to apply for SNAP benefits on your behalf, receive and use your SNAP benefits on your behalf, or receive copies of your program notices. If you want to name a representative, please give the information below

Name, Address and Telephone Number of the Authorized Representative	Check (✓) each duty authorized for that person
	☐ Apply for SNAP benefits ☐ Receive correspondence ☐ Access or use SNAP benefits

BY MY SIGNATURE BELOW, I DECLARE, UNDER PENALTY OF PERJURY, THAT THE INFORMATION PRESENTED HERE IS CORRECT AND COMPLETE TO THE BEST OF MY KNOWLEDGE AND BELIEF.

I understand:

- If I give false, incorrect, or incomplete information, or do not report required changes on time, I may be breaking the law and may be prosecuted.
- If I refuse to cooperate with any review of my eligibility, including reviews by Quality Assurance, my benefits may be denied until I cooperate.
- If I fail to report or verify my expenses, my household will not receive a deduction for the unreported or unverified expenses.

My signature authorizes the release to this agency of all information necessary to both determine and review my eligibility. This authorization is valid for one year from the date of my signature below. I understand that this time limit does not apply to investigations regarding possible fraud.

Your Signature or Authorized Representative's Signature or Mark

Date

Witness to Mark or Interpreter

Date

ELDERLY SIMPLIFIED APPLICATION PROJECT (ESAP) RECERTIFICATION APPLICATION

FORM NUMBER – 032-03-729D

PURPOSE AND USE OF FORM – Use of this application is limited to recertification or renewal of ESAP cases. This application may not be used in lieu of an application to apply for initial benefits, or to reapply for benefits after a lapse in certification. Applicants are not limited to using the ESAP recertification application as applicants may use any acceptable Virginia SNAP application. The application must be retained for a minimum of three years.

NUMBER OF COPIES - One.

DISPOSITION OF FORM – The local department must evaluate information presented on the application to determine ESAP or SNAP continued eligibility for elderly households.

INSTRUCTIONS FOR PREPARATION OF FORM – Applicants must complete the application fully.

Virginia Department of Social Services
Division of Benefit Programs
SNAP EBT Replacement Request and Client Attestation

Complete this form for loss due to theft, card skimming, or similar situation and return it to your local department of social services.

Head Of Household:
Last 4 Digits of Social Security Number:
Street Address:
Phone:
Date Of Discovery of Theft:

I, _____ attest that I am a member of the household, or an authorized representative, and wish to request replacement SNAP benefits in the amount of \$_____ to cover the cost of benefits lost due to theft because of skimming, cloning or other similar fraudulent methods that occurred from, ____,20__ through ____,20__.

Describe the loss or theft of benefits:

Verification of the loss is required before any benefits can be replaced. The Local Department of Social Services will validate claims of benefit theft through EBT processor data, statements from customers, retailer data, identified skimming devices, or other similar information.

**PLEASE READ THE STATEMENTS BELOW BEFORE SIGNING THIS FORM
YOUR SIGNATURE IS YOUR ATTESTATION OF LOSS**

- ☐ I understand that reports of electronic benefit theft must be reported within 30 calendar days of the discovery of theft through skimming, cloning, or other similar fraudulent methods.
- ☐ I understand that replacement benefits due to theft cannot exceed the amount two months of SNAP benefits or the amount of my actual reported loss, whichever is less.
- ☐ I understand that I must sign and return this statement within 10 business days of the date I reported the household theft to my Local Department of Social Services, or my benefits cannot be replaced.
- ☐ I understand that benefits lost due to theft cannot be replaced more than two times in a federal fiscal year (October 1 through September 30 of each year 10/1/22 – 9/30/24).
- ☐ I understand that benefit replacements for theft can only be claimed from **10/1/2022** through **9/30/2024**.
- ☐ I understand that I will be subject to penalties if I misrepresent the facts including but not limited to a charge of perjury for a false claim.
- ☐ I understand that I have the right to a Fair Hearing if I disagree with the decision to replace benefits made by Local Department of Social Services.

Client Signature

Date

032-23-1140-01 ENG (05/23)

PART XXV SNAP EMPLOYMENT & TRAINING (SNAP E&T)

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A. SNAP EMPLOYMENT AND TRAINING PURPOSE

SNAP Employment & Training (SNAP E&T) is a federally funded, state administered program that assists program participants in gaining the skills, training or work experience needed to move toward and into employment. SNAP E&T also helps reduce barriers to work by providing individuals with support services such as transportation and childcare as they prepare for and obtain employment and job retention services to help them maintain employment. Participation in SNAP E&T is voluntary.

See Appendix I for a list of Virginia localities that operate SNAP E&T.

B. REFERRAL TO SNAP E&T

1. Eligibility Process

The BPS must determine the work registration status for each household member. The BPS must record any member as registered if the member does not meet a registration exemption or if the member wants to volunteer to participate in SNAP E&T. Those who want to volunteer must be referred to SNAP E&T through VaCMS at application or reapplication and every twelve months thereafter. New household members, added during the certification period, must be registered at recertification. See Part VIII.A for a discussion on the registration exemptions.

Note A: A SNAP E&T script for the BPS may be found on FUSION, located on the SNAP E&T Forms page under “Case Management”.

Note B: Able-Bodied Adults Without Dependents (ABAWDs) who participate in SNAP E&T are required to engage in qualifying work or training activities for at least 20 hours per week to maintain eligibility. Individuals, who are not considered ABAWDs and who are enrolled in SNAP E&T, are not obligated to meet a weekly participation requirement.

2. Participant Categories

- a. New – participant who has not been included in the on-board count for the current Federal Fiscal Year (10/01-9/30).
- b. Re-registrant – participant who has been included in the on-board count for the current Federal Fiscal Year (10/01-9/30).

3. SNAP E&T Categories

- a. Active - a category in which participants with no barriers to employment are placed.
- b. **Allowable SNAP E&T categories or components no longer include inactive or pending categories beginning May 2025.**

4. SNAP E&T Program Documentation

All SNAP E&T case narrative documentation must be entered into the Data Collection-Case Comments module of the VaCMS for all case actions, assessments, supportive services, and when completing monthly ESP data entry participation inputs. E&T must use ESP for the Entity and SNAP E&T for the program header.

All required forms must be scanned into DMIS as indicated on the Benefit Programs Required Scanning Documents form. As a best practice, scan documents and forms within 48 hours of receiving them to avoid an oversight.

C. ASSESSMENT

An assessment will identify participants' job readiness and, if appropriate, to develop a plan that outlines participants' future course of action in the program, ultimately leading to self-sufficiency.

Some SNAP E&T participants may have disabilities, including temporary medical conditions, or are caring for household members with disabilities, that may affect program participation. Disabilities may be identified during the application process or later at a SNAP E&T assessment. When the SNAP E&T worker has documentation of a verified disability and the effect of the disability on program participation, accommodations must be put in place so that the participant is not denied the opportunities available through SNAP E&T.

Accommodations may include, but are not limited to:

- part-time or flexible hours for work activities;
- providing the individual with work activities in a specific work environment that enables the individual to participate in work activities;
- providing particular types of jobs or work activities that are consistent with the person's limitations;
- activities that are scheduled so they do not conflict with ongoing medical or mental health treatment or care-taking responsibilities;
- additional notices of program appointments;
- additional explanations of program rules;
- job coaches;
- additional time to complete program requirements; and
- additional intervention before an individual's SNAP E&T case is closed because of non-compliance with SNAP E&T requirements.

See the Job Accommodation Network site for an extensive list of accommodations by disability <http://www.jan.wvu.edu/media/atoz.htm>.

There are three types of assessments: pre-assessments, initial assessments and reassessments. Assessments may be conducted either individually or in a group.

1. Pre-Assessment

A pre-assessment may be conducted for any participant due for an initial assessment.

- a. If the SNAP E&T worker has sufficient reason to believe that a registrant's status needs to be reevaluated, this must be communicated to the BPS on the Communication Form or by other appropriate means. The BPS must review the registrant's status and inform the SNAP E&T worker of the outcome within 30 days. See Appendix II of this Part or Part XXIV for the Communication Form.
- b. The pre-assessment may be conducted face-to-face, by mail or by phone.
- c. If conducted by mail, the participant must complete and return the pre-assessment form to the agency within 14 calendar days. The SNAP E&T worker must send the registrant a letter that advises:
 1. The purpose of the SNAP E&T component;
 2. The reason for completing the pre-assessment form and the date by which the form is to be returned to the agency;
 3. That failure to complete and return the form by the required date may affect the registrant's or household's eligibility for SNAP E&T; and
 4. How to contact the SNAP E&T worker if the participant is unable to complete and return the form by the required date.
- d. Based on the information provided by the participant on the pre-assessment form, the worker must decide if the participant will be scheduled for an initial assessment. If the decision is to schedule the participant for an initial assessment, this assessment must be scheduled within 30 calendar days of receipt of the original referral.

2. Initial Assessment

- a. The SNAP E&T worker must assess each participant within 30 days of receipt of the registration form, even if a Pre-Assessment was completed.
- b. The assessment may be a face-to-face interview (individual or group) between the participant and the SNAP E&T worker or by a telephone interview.
- c. The SNAP E&T worker must send the participant a letter that provides:
 - The date of the assessment interview;
 - An explanation that appearance for the interview is a condition of continued eligibility for SNAP E&T benefits and that the consequence of not attending the interview may be the inability to enroll in SNAP E&T;
 - Instructions for contacting the SNAP E&T worker; and

- Instructions for contacting the SNAP E&T worker if the participant is unable to attend the interview or needs to reschedule the appointment.

To the extent possible, employed registrants must have their initial assessment interviews scheduled at a time that does not interfere with their normal work hours.

3. Procedures

- a. The SNAP E&T Assessment Form or an assessment tool that has been pre-approved by the SNAP E&T Manager must be completed on each participant. See Appendix II for the Assessment form.
- b. The assessment must include the following:
 1. An identification and evaluation of the participant's recent work history, occupational skills, education and training and a determination of the individuals' ability to read and write English.
 2. An identification of the participant's employment goal(s).
 3. A detailed evaluation of supportive service needs.
- c. The SNAP E&T worker must inform the participant of the following information:
 1. program goals;
 2. program requirements, including an explanation of responsibilities and expectations for participants;
 3. that failure to comply, without good cause, with program requirements will result in closure of the SNAP E&T case and termination of supportive services;
 4. what constitutes good cause for not complying with program requirements;
 5. name and phone number of the SNAP E&T worker or other persons who might need to be contacted; and
 6. requirement to respond to all agency correspondence.
 7. During the initial assessment, the SNAP &ET worker must offer an opportunity for the SNAP E&T participant to register through the Virginia Career Works Portal at <https://va-career-works.myjourney.com>. The SNAP E&T worker must also document VaCMS and the referral portal regarding the registration offer and instances when the client declines the registration offer.

- d. After the assessment, the SNAP E&T worker must determine the participant's ability to participate in the program. A participant who has no substantial barriers to employment must be assigned to a component, placed in an active status, and be subject to the full requirements of SNAP E&T.
- e. If the SNAP E&T worker has sufficient reason to believe that a participant's status needs to be reevaluated following the assessment, this determination will be communicated to the BPS through an internal communication form along with copies of all documentation at the time the reevaluation is requested.

4. Activity and Service Plan of Participation

- a. For initial assessments and reassessments, the SNAP E&T worker must develop a written Plan of Participation with the participant, recording the outcome of the assessment.
 - 1. For participants placed in an active status, the Plan must:
 - a. state the component to which the participant is assigned; the specific responsibilities of the participant and the agency, including, but not limited to, the expected levels of participation, attendance and/or the requirement to return information to the SNAP E&T worker and report changes which impact employment and/or participation;
 - b. identify the component begin and end dates;
 - c. describe the supportive services needed by the participant to carry out the assignment;
 - d. describe a plan for monitoring the participant's progress while he/she is participating in a component.
 - 2. A new Plan must be completed whenever the participant is assigned to a different component. If the participant is reassigned to the same component, the current Plan must be updated. A copy of the updated Plan must be provided to the participant.
 - 3. Both the SNAP E&T worker and the participant must sign the Plan if the Assessment is conducted in person.

5. Reassessment

A reassessment must be conducted whenever a participant completes the requirement of a component or when a re-evaluation is required.

- a. The reassessment must take place no later than 30 calendar days following the completion of the component activity.

- b.** Assignments to some categories and/or components may be long-term. Participants in education, training, and work experience components must be reassessed at the end of the scheduled component's completion.

Procedures for the reassessment will be the same as the initial assessment procedures that are outlined in Section D.3.

Note: A participant may be reassigned to the same component.

D. PROGRAM COMPONENTS

Individuals participating in any program component other than Supervised Job Search must be monitored monthly for attendance of scheduled hours. In addition, individuals participating in an education, training and/or work experience component must be monitored for satisfactory progress at periodic intervals.

Note that completion of a SNAP E&T component assignment does not mean the SNAP E&T case must close. The SNAP E&T case must close however if the BPS closes the SNAP case.

The SNAP E&T worker must verify SNAP eligibility monthly in VaCMS to ensure the client is eligible for E&T Services. To verify eligibility, please follow the steps below:

- In VaCMS, from the left Navigation menu, select "Inquiry", next select "Case", then insert the case number, and click the "Search" button. Scroll down to click on "Eligibility Summary".
- Review the Eligibility Summary to ensure that the SNAP Eligibility Result is "Approved".

1. Case Management

Case Management is defined as services and activities that must directly support an individual's participation in the SNAP E&T program. Case management services can include, but are not limited to, comprehensive intake assessments, individualized Plan of Participation, progress monitoring, or coordination with service providers consisting of case management and at least one component. SNAP E&T programs must consist of case management and at least one Employment and Training Component. Case Management is a SNAP E&T component and must be provided to all SNAP E&T Participants. Case Management must directly support an individual's participation in an Employment and Training program. Case Management services must be targeted to the needs of the participant and allow for efficient delivery of services. Case Management Services may only include allowable Employment and Training Costs. Time spent by the participant must count toward time-engaged with Employment and Training, if the services are allowable costs.

2. Supervised Job Search

Job Search activities that occur at in state-approved locations or systems where job-search activities are directly supervised and the timing/activities are tracked. This component requires participants make a predetermined number of inquiries to prospective employers over a specified period. Examples of state approved locations may include but are not limited to American Job Centers (A.J.Cs), Public Libraries, Employment Service Organizations (E.S.Os), 50/50 Providers and use of software/electronic platforms which track & time job search activities. Supervised Job Search may be self-paced and can occur remotely or in person, but engagement with a skilled person must occur at least monthly. Supervised Job search activities must have a direct link to increase employment opportunities.

- a. Participants assigned to this component must participate in up to 8 weeks of supervised job search every 12 months.
- b. Supervised Job Search may be performed individually or in a group setting.
 1. Individual

A participant makes a predetermined number of job contacts on his/her own.
 2. Group

A group of participants access telephones, computers, fax machines, newspapers, photocopiers and any other equipment to aid in a job search.
- c. The participant must schedule up to 48 job interviews or submit up to 48 applications/resumes to prospective employers per 8-week session. The SNAP E&T worker must provide support and direction to the registrant throughout the supervised job search assignment.
 1. The participant must be registered with the nearest Virginia Employment Commission Office. Registration with the Virginia Employment Commission will be considered as one employer contact.
 2. The participant must report employer contacts in writing to the SNAP E&T worker by completing the SNAP E&T Supervised Job Search Form.
 3. To qualify as an employer contact, four conditions must be met:
 - a. The participant must present himself/herself to an employer as being available for work;
 - b. The employer must ordinarily employ persons in areas of work for which the participant is reasonably qualified in terms of experience, training or ability;

- c. The participant cannot count the same employer more than once during a given supervised job search period unless different positions were sought; and
 - d. Contacts with employers may only be in the form of face-to-face interviews or by submission of applications or resumes to businesses that are hiring.
- 4. The SNAP E&T worker may contact any employer listed on the SNAP E&T Supervised Job Search Form to verify the contact.
- d. The specific requirements of Supervised Job Search will be determined by the local agency and described in each agency's Local Employment & Training Plan.
- e. Participants who obtain full-time employment while participating in the Supervised Job Search component will have fulfilled all program requirements for that assignment.
- f. Participants who obtain full-time employment during Supervised Job Search, but lose that employment during the first 30 calendar days, are required to complete their supervised job search. For example, if a registrant assigned to Supervised Job Search was required to have 24 job contacts but had completed only 17 at the time of employment, the registrant must make 7 more contacts.
- g. Participants who obtain part-time employment during Supervised Job Search and remain employed for 30 calendar days or more will have fulfilled all program requirements for that assignment.
- h. Participants who obtain part-time employment during Supervised Job Search but lose that employment during the first 30 calendar days are required to complete their job search requirement.
- i. If, at the end of the supervised job search assignment, the participant is unemployed or employed part-time and remains registered, they must be re-assessed and assigned to an appropriate component within 30 days.
- j. Participants who are employed part-time will continue active participation in SNAP E&T with their activities scheduled around their work hours.
- k. The Supervised Job Search component does not qualify as a stand-alone work program for the purpose of maintaining SNAP eligibility for individuals subject to the work requirement.

For purposes of the SNAP E&T evaluation, full-time employment is defined as employment of at least 30 hours per week and part-time employment is defined as less than 30 hours per week.

3. Job Search Training

This component strives to enhance the job readiness of participants by providing job seeking techniques and methods to increase motivation and self-confidence.

- a. Job Search Training includes activities that may consist of employability skill assessments, employability training, job placement services, or other direct training or support activities, including educational programs to expand the job search abilities or employability of the registrant. The Employment and Training Annual Plan must describe whether the local department will utilize Job Search Training component. If utilized, the process must be described. Examples of some acceptable programs are as follows:
 1. Group or Individually coordinated job search training activities may consist of employability assessments, occupational exploration, training and counseling in personal preparation for employability, and training and counseling in techniques for identifying and pursuing employment opportunities (including information on local emerging and demand occupations and job placement services).
 2. Nutrition Class
 - a. Classroom instruction on how to pack a nutritious lunch.
 - b. Classroom instruction on how to provide nutritious meals for a household and still be employed.
- b. The Job Search Training component does not qualify as a stand-alone work program for the purpose of maintaining SNAP eligibility for individuals who are subject to the work requirement.

4. Work Experience

A work experience program is defined as a program designed to improve employability of the household member through actual work experience or training, or both, and to enable individuals employed or trained under such programs to move promptly into regular, public or private employment. Work Experience is a planned, structured learning experience that takes place in a workplace for a limited period. Work Experience may be paid or unpaid, as appropriate and consistent with other laws such as the Fair Labor Standards Act (FLSA). Work Experience may be arranged within the private sector, the non-profit sector or the public sector. Labor Standards apply in any work experience setting where there is an employee/employer relationship, as defined by FLSA.

A Work Experience Program must not provide any work that has the effect of replacing the employment of an individual not participating in the employment or training experience program. Additionally, the Work Experience must provide the same benefits and working

conditions that are provided at the job site to employees performing comparable work for comparable hours. Work Experience is now divided into two categories:

a. Work Activity

1. This is defined as a Work Activity performed in exchange for SNAP Benefits to improve employability. Work Activity provides an individual with an opportunity to acquire general skills, knowledge and work habits necessary to obtain employment. The purpose of work activity is to improve the employability of those who cannot find unsubsidized full-time employment

b. Work Based Learning

1. Work Based Learning activities are defined as sustained interactions with industry or community professionals in real world settings to the extent possible. For example, Work Based Learning activities can take place at an educational institution that foster in-depth, firsthand engagement with the tasks required in a given career field that are aligned to curriculum and instruction. Work-based learning emphasizes employer engagement and includes specific training objectives that leads to regular employment.
2. Work-based learning can include internships, pre-apprenticeships, apprenticeships, customized training, transitional jobs, incumbent worker training, and on-the-job training as defined under WIOA. Work-based learning can include both subsidized and unsubsidized employment models.

The work experience placement may be followed by ~~two weeks~~ of supervised job search.

The primary focus of work experience is the development of good work habits, additional job skills, positive work attitudes, an understanding of the employee-employer relationship, and to obtain a recent job reference.

The Work Experience component qualifies as a work program for the purpose of maintaining SNAP eligibility for individuals who are subject to the work requirement.

c. Time Frames

1. The number of weeks a registrant may participate depends on the job site.
2. The amount of time used in traveling to and from the job site is not included when determining the number of hours the participant can work.
3. The participant cannot be required to be on a work site more than 120 hours per calendar month.

4. The total amount of time spent each month by a participant in a SNAP E&T work program, combined with work for compensation, is unlimited. However, the State must provide Worker's Compensation coverage for a maximum of 120 hours a month.

d. Assignment Criteria

Each assignment must take the prior training, experience, skills and employment goal(s) of the participant into consideration to determine whether:

- The individual needs additional job skills or
- Work experience will yield a job reference or the development of good work habits or job skills.

e. Limitations

The use of the Work Experience component is limited by the following:

1. Participants must not be required to use their personal resources to pay participation costs.
2. Participants in the Work Experience component must not displace persons currently employed or be placed in established, unfilled positions.

Participants must not perform tasks that would have been undertaken by current employees or which would have the effect of reducing the work hours of paid employees. Work Experience participants cannot be placed in the position of workers who are on sick leave, annual leave, leave without pay, or any other granted leave with or without pay, as that would be an act of displacement.

3. Participants must not be assigned to projects that require that they travel unreasonable distances from their homes or remain away from their homes overnight without their consent. A round trip more than two hours from the participant's home to the work site is considered an unreasonable distance in any situation. The transportation time determined reasonable must be relative to the number of hours being worked in a day.

f. Worker's Compensation

For Worker's Compensation purposes only, the Virginia Department of Social Services is considered the individual's employer. The Virginia Department of Social Services provides coverage for all Work Experience participants for the hours of participation that are mandated. If a claim must be filed, the following procedures will be followed:

1. The work site personnel must immediately complete the Employer's First Report of Accident form (VWC Form No. 3). The original and all copies must be clearly coded in the upper right-hand corner with *0765-000e, SNAP WORK EXPERIENCE PARTICIPANT*. See Appendix II of this Part. The Employer's First Report of Accident form is in Appendix II.
2. The Local Agency Supervisor must develop a Panel of Physicians (with no less than three physicians) to offer to the injured employee. The Panel of Physicians form is available at <http://www.covwc.com/physicianform.php>. Providers should be in close proximity if possible and have skills related to employee's needs. A provider list is available at <http://www.covwc.com/pponetwork.php>. If you need help navigating the search tool or assistance with locating a provider, please contact our network partner, Care Works at client.services@careworks.com or by calling (800) 734-4460.
3. The work site must submit all correspondence (forms, bills, etc.) regarding injury and accidents to Managed Care Innovations (MCI) in one of four ways:

Upload the documents with the Claim Reporting Portal by visiting froi.sedgwick.com
Email to covimaging@yorkrsq.com
Fax to 804-371-2556
Mail to P.O. Box 1140, Richmond, VA 23218-1140
4. The work site must send a copy of the accident report to the SNAP E&T Worker at the local agency.
5. Physicians should be instructed to submit their invoices and Attending Physician's Report directly to the claims office at the MCI. All invoices must show the participant's/employee's social security number.

5. Education

This component provides educational programs or activities to improve basic skills or otherwise improve employability or job retention of participants. Education services are allowed for up to 90 days after employment. The Education component qualifies as a work program for the purpose of maintaining SNAP eligibility for individuals who are subject to the work requirement.

- a. Educational placements must be based on an assessment which indicates that placement is necessary to develop job readiness and that educational deficit seems the primary barrier to employment.
- b. Educational programs to which participants may be assigned include, but are not limited to:
 1. Adult Basic Education;
 2. GED;

3. Vocational Education;
4. Community College Programs;
5. Post-Secondary Education;
6. Employment Training and Education Programs.

Such programs or activities must be part of a program or study of career and technical education as defined in section 3 of the Carl D. Perkins Act of 2006, high school or equivalent educational programs, remedial education programs for basic literacy level achievement and English as a second language instructional programs.

Educational components must directly enhance participants' employability. Approved components must establish a linkage between education and job-readiness.

- c. Participation in an education program is limited to the amount of time generally allowed for the completion of the curriculum.
 - d. During an individual's participation in an education program, progress must be monitored to ensure that satisfactory progress, as defined by the institution, is being made. This should coincide with the end of the institution's quarter or semester grading period. However, at a minimum, an evaluation may consist of documentation, such as a report card, showing the registrant's grade(s). Participants who are not progressing satisfactorily may be assigned to another activity that will more adequately move them toward employment.
 - e. Attendance must be monitored on an on-going basis. The Time and Attendance Report may be used for this purpose.
 - f. **Up to one hour of unsupervised study or homework time may be counted as vocational education and training for each hour of scheduled class time. The need for unsupervised homework/study time must be confirmed by the education or training program. Unless specifically required by the instructor, unsupervised study or homework time cannot be counted as vocational education and training when the training is outside the classroom and the activity does not support counting unsupervised study or homework hours. Supervised study time verified by the education or training program may also be counted as participation.**
 - g. The completion of an education assignment may be followed by job search.
 - h. The completion of an education assignment may be followed by two weeks of job search.
6. Training

This component provides training in a skill or trade that should improve the employability of participants and allow the participant to move directly into employment or to retain

employment. Training services are allowed for up to 90 days after employment.

- a. Training placements must be based on an assessment that indicates training is necessary to improve the registrant's employability or job retention.
- b. Training programs to which registrants may be referred include, but are not limited to:
 1. Computer classes,
 2. Vocational Rehabilitation,
 3. Employment Training and Education Programs.
- c. Participation in training programs is limited to the amount of time generally allowed for the completion of the program.
- d. During an individual's participation in a training program, progress must be monitored to ensure that satisfactory progress, as defined by the training facility, is being made. However, at a minimum, an evaluation may consist of documentation from the training facility that shows the registrant's progress. Participants who are not progressing satisfactorily may be assigned to another activity that will more adequately move them toward employment.
- e. Attendance must be monitored on an on-going basis. The Time and Attendance Report may be used for this purpose.
- f. **Up to one hour of unsupervised study or homework time may be counted as vocational education and training for each hour of scheduled class time. The need for unsupervised homework/study time must be confirmed by the education or training program. Unless specifically required by the instructor, unsupervised study or homework time cannot be counted as vocational education and training when the training is outside the classroom and the activity does not support counting unsupervised study or homework hours. Supervised study time verified by the education or training program may also be counted as participation.**
- g. The completion of a training assignment may be followed by job search.
- h. The completion of a training assignment may be followed by two weeks of job search.

7. Employment and Training for Ex-Offenders

Employment and training services for ex-offenders are offered in partnership with the Virginia Department of Criminal Justice. This component includes job skills assessments, occupational exploration, training and counseling in personal preparation for employability, employment opportunities, including information on local emerging and demand occupations and job placement services. This component will share costs for education and vocational training and supportive services. A referral form will be used. See Appendix II for the referral form.

8. Employment and Training for Refugees

Employment and training services for refugees are offered in partnership with the Office of Newcomer Services through local Refugee Resettlement Agencies. Employment and training participants under the Refugee Social Services Program or Match Grant Program meet participation requirements for SNAP E&T by way of their enrollment in the Refugee Program(s). Participants enrolled in both the Refugee Resettlement Program and SNAP E&T must meet the following procedures:

- a. The refugee resettlement staff will accompany the participant to the initial SNAP E&T assessment to help with language barriers, if any, and to talk about the Comprehensive Resettlement Plan (CRP) that will substitute for a SNAP E&T Plan of Participation.
- b. SNAP E&T agencies must stay in contact with the resettlement agency but, the resettlement agency is not required to send a break-down of component activities and hours to the SNAP E&T agency.
- c. SNAP E&T will be notified if a refugee refuses to comply with refugee resettlement requirements to determine whether the SNAP E&T case should be closed; when someone leaves the program; and when there is a job placement.

9. Job Retention

Job retention services is an allowable Employment & Training component. SNAP E&T agencies may offer this component for at least 30 days and no more than 90 days. The job retention component is intended to provide support services for at least 30 days and up to 90 days to individuals who have secured employment. Individuals are eligible to receive job retention services if they received SNAP benefits in the month of or the month before they start job retention and may receive job retention services after leaving SNAP unless the individual is leaving SNAP due to a failure to comply with the general work requirement or an intentional program violation. The participant must have secured employment after or while receiving other Employment & Training services. There is no limit to the number of times an individual may receive job retention services, if the individual has re-engaged with Employment & Training prior to obtaining new employment.

E. SOCIAL/SUPPORTIVE SERVICE

Social/supportive services may be provided to participants in SNAP E&T for expenses that are reasonably necessary and directly related to participation in SNAP E&T. Agencies are encouraged to explore alternatives to removing barriers if supportive service funds are limited.

The need for any supportive services must be linked to needs identified on the Participant's Plan of Participation. Supportive services related to starting or retaining employment are allowed for a period not to exceed 90 days.

Participants who fail to comply with SNAP E&T requirements are not entitled to supportive services.

1. SNAP E&T Worker Responsibilities

- a. The SNAP E&T worker is a case manager. The worker must assist the participant in meeting the service needs. This may be done directly by the SNAP E&T worker or through a referral to a service/social worker or an outside service provider.
- b. When providing social services to recipients, the Plan of Participation may replace the Service Application regardless of the funding source for the service.

2. Social/Supportive Services for Participants

There are three categories of social/supportive services available to SNAP E&T participants. These SNAP E&T social/supportive services may be provided directly or may be purchased.

a. Childcare

Childcare services are provided to enable a caretaker to participate in program components.

1. Arrangement for and/or payment of childcare as a supportive service must be provided when the participant needs this service to participate in component activities.
2. Participants who are parents of school age children are expected to search for a job during the hours that the children are in school. However, if a job interview must take place outside of school hours, childcare may be authorized.
3. Participants who need childcare and who cannot arrange their own may be provided assistance. Payment will be made within the guidelines of childcare policy. Payment may also include childcare related transportation costs.

b. Transportation

This service is provided to enable participants to travel to and from authorized SNAP E&T activities.

1. The participant is primarily responsible for arranging transportation to participate in a SNAP E&T component. Transportation will be provided only when the registrant is unable to make arrangements.
2. Transportation may be provided by any of the following means:
 - a. Agency or public transportation;

- b. Individuals other than public transportation. In this circumstance, payment is made to the individual provider. Such payment must be pre-authorized and reimbursement cannot exceed the current mileage reimbursement rate. A reimbursement type purchase order may serve as a pre-authorization; or
 - c. Commercial establishments. For example, a client who needs gas for his/her car could receive a voucher that a gas station would honor. Through the purchase order/invoice system, the station would receive payment.
- c. Other allowable expenses include:
- 1. Clothing suitable for job interviews
 - 2. Licensing and bonding fees for a work experience or job placement
 - 3. Uniforms
 - 4. Work shoes
 - 5. Purchase of an initial set of tools or equipment if required for a SNAP E&T component or job retention component
 - 6. Fingerprinting, if necessary for a job
 - 7. Background check when necessary for a job
 - 8. Medical services, such as TB testing if required for a job
 - 9. Personal safety items required to complete training/educational coursework
 - 10. Books
 - 11. Course registration fees
 - 12. Drug tests if required for a job
 - 13. Eye exams and vision correction, such as the purchase of eyeglasses
 - 14. Dental work such as routine cleaning
 - 15. Minor auto repairs
 - 16. Test fees and training material directly related to a SNAP E&T component
 - 17. Union dues necessary for a job
 - 18. Housing assistance including rent/or utilities. Housing assistance is for emergencies only and on a case-by-case basis. Not to exceed \$1,500.00 per occurrence and no more than two times in a 12-month period.
 - 19. Broadband/Internet Access/Wi-Fi, Laptops & Tablets for Education, **Supervised Job Search**, Vocational Training & Job Retention components. Assistance is limited to \$1,200 per individual in a 12-month period.
 - 20. Certain fees associated with the reinstatement of Driver's Licenses (Exceptions apply to certain conviction-related suspensions and revocations. A list of these suspensions and revocations can be found at <https://www.dmv.virginia.gov/webdoc/pdf/dmv39f.pdf>. Assistance is limited to \$300.00 per occurrence and no more than once in a 12-month period).

Note: Refer to the Spending Funds Guide for VIEW and SNAP E&T located on FUSION on the Workforce Development Center page ([Workforce Development Center](#)) under the header Resources.

3. Duration of SNAP E&T Services

SNAP E&T social/supportive services may be provided for as long as the individual needs the service to participate in a SNAP E&T component.

F. VOLUNTEERS

SNAP household members who are exempt from the work registration requirement may volunteer to participate in SNAP E&T.

1. Agencies may, at their option, permit volunteers to participate in a SNAP E&T component.
2. The same assessment procedures that apply to **ABAWD** participants will apply to volunteers.
3. Social Services reimbursements/payments for transportation and daycare may only be made for expenses that are reasonably necessary and directly related to participation in the SNAP E&T program.

Example

A volunteer works part-time and has been assigned to the training component for 5 hours a week. Child day care services may only be provided for the 5 hours that the individual participates in the Training activity.

G. CHANGES/TRANSFERS

1. The SNAP E&T worker must notify the BPS of any changes in the participant's situation that may affect the SNAP benefits or the individual's exemption status. This notification must be in writing and must occur within five working days of the change. The Communication Form must be used for this purpose.
2. SNAP cases may be transferred from one Virginia locality to another. SNAP E&T case transfer procedures follow.
 - When a SNAP E&T case transfers from one SNAP E&T locality to another SNAP E&T locality, daily alerts are generated to the SNAP E&T worker in the sending locality and to the transfer in caseload in the receiving locality
 - The sending SNAP E&T locality will need to close all open SNAP E&T enrollments for the SNAP case with the SNAP E&T Closure Status value = "05" for Transferred.
 - In the SNAP E&T database, the history for this enrollment record and its assessments and employments will show this sending FIPS.
 - The SNAP E&T worker in the receiving FIPS will not be able to open an enrollment record on the transferred in case until the sending agency SNAP E&T worker has closed the enrollment record.

- When the receiving SNAP E&T locality opens a SNAP E&T Enrollment for the transferred in SNAP E&T client, the rule for the SNAP E&T Enrollment Start Date changes. The Start Date is to be the day after the Close Date on the SNAP E&T enrollment closed for transfer (closure status = 05)
- The Date Entered Employment may equal the Date Entered Employment on the Enrollment in the Transfer Out locality. However, any “MMYYYY of Change” entered in the new FIPS can only start with the month after the last “MMYYYY of Change” in the Transfer Out locality.
- If a SNAP case transfers from a SNAP E& T to a non-SNAP E&T agency, the enrollment is closed in the sending agency. No action is taken in the receiving agency.
- If a SNAP case transfers from a non-SNAP E&T to a SNAP E&T agency, a referral is made to the SNAP E&T queue if the SNAP participant volunteers during the certification period.
- No action must be taken if a SNAP case transfers from a non-SNAP E&T to a non-SNAP E&T agency.

H. SNAP RECIPIENTS & HIGH SCHOOL ATTENDANCE

The use of SNAP E&T Funds for Individuals attending High School is prohibited based on the following conditions:

1. State agencies may not use SNAP E&T funds to pay for costs associated with programs or courses offered through public high schools. This includes general types of government services normally provided to the general public, such as public education. The prohibition extends to paying for costs associated with programs offered through private high schools. Since a free public education is available through the State public education system, it is neither reasonable nor necessary to pay for services that are available to the individual for free.
2. Use of SNAP E&T funds may be used in certain cases for costs associated with out-of-school activities. While there are instances when it may be appropriate to provide SNAP E&T services to these individuals after school or on the weekends (i.e. outside of a high school setting), State agencies must ensure the following:
 - a. The costs are reasonable and necessary. Most individuals 16 to 18 years of age are required to be in school and are already receiving services through the State’s education system. Virginia provides free high school education beyond age 18. High school curriculums are designed so that students are college or career ready upon graduation. Local agencies must work with the respective local school district to ensure that SNAP E&T service offered are not duplicative.
 - b. The components or activities offered meet the purpose and design requirements of SNAP E&T. The purpose of SNAP E&T is to help SNAP household members gain skills, education, or experience that help them obtain regular employment. SNAP E&T components must be designed to move SNAP recipients promptly into

employment. There should be a direct link between the activities and the member's ability to obtain employment. Employment and Training participants, if offered regular employment, should be able to accept it. Programs designed for individuals who are still in high school are unlikely to meet these requirements. For example, drop-out prevention programs, career exploration activities, or summer youth employment programs, while admirable, do not meet these requirements. In the alternative, a program where an industry sponsor provides specific job training after school or in the evenings that is designed to lead directly and promptly to regular employment may be allowable.

3. Use of SNAP E&T funds may be used in certain cases for individuals above the Age of compulsory education and who are not attending high school: Individuals aged 16 or 17 who are head of the households or not attending school may be subject to the work requirements. In such cases, it would be appropriate for the Eligibility Worker to refer the individual to SNAP E&T. The associated costs must be allowable as detailed above. Interested SNAP participants who are 16 or 17 years of age and who are not attending high school should be referred to work with their state workforce agencies to coordinate services with the Workforce Innovation and Opportunity Act (WIOA) Youth Program.

I. PROVIDER DETERMINATIONS

Provider determinations are issued when SNAP E&T participants have been determined to be ill-suited to participate in assigned Employment and Training component activities by a provider. LDSS staff are required to notify SNAP E&T participants who have been issued provider determination by an Employment and Training program or 50/50 provider within 10 days of receiving the information from the provider. By the next recertification period the LDSS must select one of the following steps after an individual receives a provider determination.

1. Refer the individual to an appropriate employment and training component;
2. Refer the individual to an appropriate workforce partnership, if available;
3. Re-assess the individual for mental and physical fitness; or
4. Coordinate with other Federal, State, or local workforce or assistance programs to identify other Employment and Training opportunities.

Provider Determinations are required to be documented in the VaCMS and a notation of which one of the four steps listed above was taken.

J. WORKFORCE PARTNERSHIPS

Workforce Partnerships are cultivated by fostering partnerships with Employers, Employer Service Organizations, not-for-profits or eligible WIOA service providers. Workforce Partnerships for SNAP E&T participants are focused on gaining employment and training opportunities. Workforce Partnerships must be approved by the SNAP E&T unit or state contracted providers of Employment and Training programs. **For ABAWD participants**, Workforce Partners must provide at least 20 hours of training, work or work experience. The SNAP E&T provider must provide SNAP participants with information about workforce partnerships, so that participants can make an informed decision.

K. CONTRACTS

Agencies may enter into financial agreements with individuals or organizations to operate all or portions of their SNAP E&T program. Agencies are bound by State statutes set forth in the Virginia Public Procurement Act and by any local procedures that may supersede the Act. Contracts with other state entities, including community colleges and WIA Service Delivery Area (SDA) are not subject to the requirements of the Virginia Public Procurement Act, but may be subject to local procurement procedures.

1. A copy of the contract must be submitted to the Division of Benefit Programs to maintain a central library of SNAP E&T contracts. The contract should define what is to be monitored and evaluated for contract effectiveness.

2. Consideration in Contracting

Numerous individuals and agencies, both public and private, in almost every area of the State are capable of delivering services under an agency's Local Employment and Training Plan. Prior to contracting, the agency should ensure that the contractor can provide services of an equal or higher quality and/or at a lower cost than the agency itself. Care should be taken to ensure that the contract represents an extension of services, rather than compensation for services previously provided at no cost. The contract must contain a certification from the provider that the services being contracted for are not otherwise available from the provider at no cost.

3. Services that may be contracted

Any program activity or service may be contracted.

4. Selection of Service Providers

When selecting service providers, the local agency must consider such things as the past performance of the contractor in providing similar services, the contractor's demonstrated effectiveness, fiscal accountability, cost efficiency and other factors which the local agency determines are appropriate. A process must exist that documents these factors were considered.

5. Expected Services

The deliverable services of the contract should be written in such a way as to identify the performance and outcomes acceptable through the contract. These performance measures and outcomes will assist in determining the success of the contract. The definition of effectiveness and progress measures for the contract should be agreed upon prior to the start of the contract. Success should be defined incrementally and in terms of completion.

6. Payment and Reimbursement

Payment for a contract should always be linked to contract performance. Payments are typically prorated according to quantifiable rates of progress and/or performance. Most of

the time, expenses are submitted for reimbursement. Under specific but rare circumstances, advances are allowed. A detailed budget should be attached to the contract.

7. Contract Duration

Contracts can be negotiated for any period agreeable to both the agency and the contractor so long as they terminate by the end of the fiscal year. To allow local agencies maximum flexibility in operating SNAP E&T, contracts may be negotiated for a period of six months (or less) rather than for a year. Agencies that choose to contract for 12 months and who later become dissatisfied with the contractor's performance may terminate the contract by providing notice as stated in the contract.

8. Contract Requirements

a. Format

The agency must use the revised contract format approved by the Office of the Attorney General. Other formats may be used in addition if required by the local government. A completed version of the state-approved format must be signed and sent to the Division of Benefit Programs along with a description of the services to be provided. The contract must show the total cost for all contracted services between the agency and the contractor. If more than one service will be provided, a separate cost for each service should be included in the description of the services.

b. Description of Services

Each service to be provided by the contractor must be described in full. Agencies contracting out more than one service will need to develop a description of each service.

The description must contain:

1. A summary of activities included in the service;
2. An explanation of roles of the contractor and agency in providing the service;
3. An explanation of the contractor's responsibility regarding required reporting;
4. A description of the numbers and kinds of clients who will receive the service (age, volunteers, and high school graduates, etc.);
5. A statement of the time frame for the service, including beginning and ending dates; and
6. A description of the specific anticipated outcomes

c. Contract Monitoring

1. It is the responsibility of the local agency to monitor each contract on a frequent basis to ensure both that the terms of the contract are being met and that progress is being made toward the achievement of the outcome goals.

Monitoring may be carried out through reviewing reports made by the contractor and contract site visits. At a minimum, the agency must require the contractor to submit monthly client specific progress reports as well as quarterly reports. The quarterly report should include information on overall contract progress, identified problems and client outcomes. The final annual report should provide an objective review of summarizing the overall program operations for the contract period as well as client specific outcomes/progress.

2. It is the responsibility of the local agency, based on information from its monitoring of the contract, to determine the appropriateness of future contracts with the same contractor.

L. TERMINATION OF SNAP E&T ENROLLMENT

SNAP E&T participants are expected to comply with component requirements. Failure to comply may result in the closure of the SNAP E&T case or the loss of supportive services unless there is good cause for the noncompliance. SNAP clients who are subject to time limit benefits and fail to comply with SNAP E&T may result in the loss of benefits for the affected individual if no other exemption exists.

Note: SNAP E&T cannot be used to regain SNAP eligibility. If someone's SNAP case closes due to their clock and they reapply for SNAP, to regain eligibility, they would need to either meet one of the Work Requirement exemptions or (1) work 80 hours or more during a 30-calendar day period or (2) comply with requirement of work programs identified in Part XV.A for 80 hours or more during a 30-calendar day period.

The regaining eligibility policy is outlined in the SNAP Manual Part XV.A- C.

1. Good Cause for Failure to Participate

- a. Prior to termination, the SNAP E&T worker must determine if a good cause reason for the noncompliance existed at the time of the noncompliance. Documentation must be requested from the participant as part of the evaluation.
- b. A participant who has good cause for noncompliance will not be terminated. Good cause exists if:
 1. The participant's inability to fulfill program requirements is due to circumstances outside his/her control or is the result of a change in circumstances over which the participant had no control;

2. Childcare is necessary for an individual to accept employment or enter or continue in the program, and childcare cannot be arranged by the recipient nor provided by the agency.
 3. Transportation is necessary for an individual to accept employment or enter or continue in the program, and transportation cannot be arranged by the recipient nor provided by the agency.
 - c. The good cause investigation will consist of an evaluation of information in the case record. When there has been no recent contact with the participant, efforts must be made to determine if the participant has contacted the SNAP E&T worker to discuss the problem, giving a reason for not attending an interview, or for not completing an assignment, or having not kept any program related appointment.
 - d. A reasonable effort must be made to contact participants. The worker must document that an attempt by telephone or a personal contact has been made prior to terminating the case.

The purpose of this contact is to ensure the participant understands the program and has an opportunity to explain the reason for noncompliance.
 - e. The SNAP E&T worker may issue a warning to a participant instead of closing the SNAP E&T case when there has been a misunderstanding of the requirements and there have been no prior acts of noncompliance.
2. Reasons for Terminating SNAP E&T

Failure to:

 - a. complete and return the pre-assessment form or other requested information by the required date;
 - b. report for scheduled appointments and/or interviews;
 - c. actively engage in Supervised Job Search or to complete requirements designated in the annual local Employment and Training Plan and state policy;
 - d. report to or complete a Work Experience assignment, including job search;
 - e. report to or complete assigned education and training activities, including job search;
 - f. report to or complete other assigned SNAP E&T activities as stated on the Plan of Participation;
 - g. accept available supportive services, thereby preventing participation in any program activity;

- h. accept a bona fide offer of suitable employment. A bona fide job offer is an actual job offer given in good faith without dishonesty, fraud or deceit. The job offer must:
 - 1. not be beyond the physical or intellectual capabilities of the registrant; and
 - 2. provide reasonable compensation (either the federal minimum wage or the prevailing wage in the community for that type of job).
 - i. report to an employer to whom the participant was referred by the SNAP E&T worker.
- 3. Required Documentation
 - a. A copy of all correspondences with the participant must be in the case record.
 - b. The Plan of Participation (unless the participant fails to appear for assessment or appears but refuses to participate in the assessment) stating the SNAP E&T activity to which the participant was assigned and any actions required by the participant.
 - c. Contact Sheet documenting all contacts with the participant.
 - d. SNAP E&T Notice of Case Closure.
 - e. Any referrals to an education, training or work experience provider.
 - f. Any records of the participant's performance or progress in an activity.
 - g. Any records of the participant's attendance, i.e. The Weekly Time and Attendance Record or the Work Experience Attendance and Performance Record.
- 4. SNAP E&T Notice of Case Closure
 - a. The SNAP E&T worker must send the Notice within three working days of the date he/she becomes aware of the act of noncompliance.
 - b. The Notice must inform the participant of the specific requirement that was not met and advise the participant to contact the SNAP E&T worker within five working days from the date the Notice of Closure was mailed to establish good cause.
 - 1. If the participant does not respond to the Notice by the date given, he/she is subject to termination from the program.
 - 2. If the participant responds to the Notice, the information becomes part of the documentation needed to determine if the SNAP E&T case will close. If the registrant does not present good cause, the SNAP E&T case must close. If good cause is determined to exist, the SNAP E&T case will not be affected.

M. APPEALS/HEARINGS

Right of Appeal

All participants have the right to appeal an agency decision that results in adverse action being taken against them, including the closure of the SNAP E&T case and the termination of supportive services. See Part XIX for the appeals process.

The SNAP E&T case must remain open until a decision is rendered.

1. If the agency's action is reversed, the participant must be reassessed to determine the appropriate component assignment.
2. If the agency's action is sustained, the SNAP E&T case must be closed.

N. STATISTICS AND REPORTING

The SNAP E&T Monthly **Activity/No Activity** Report is emailed to local agencies. Special reports are available upon request. The request must be submitted to the SNAP E&T Home Office Consultants.

O. LOCAL SNAP EMPLOYMENT AND TRAINING PLAN

Each local department of social services must submit a Local Employment and Training Plan to the Virginia Department of Social Services by July 1st of each year or as directed. Each local department of social services must follow the plan template located on FUSION on the Workforce Development Center page ([Workforce Development Center](#)).

VIRGINIA SNAP E&T AGENCIES

AGENCY	FIPS	AGENCY	FIPS
Albemarle	003	Manassas City	683
Alexandria	510	Montgomery	121
Arlington	013	Newport News	700
Bedford	019	Norton	720
Bristol	520	Petersburg	730
Brunswick	025	Pittsylvania	143
Charlottesville	540	Portsmouth	740
Chesapeake	550	Prince George	147
Chesterfield-Colonial Heights	041/570	Richmond City	760
Danville	590	Roanoke County	161
Fairfax	059	Smyth	173
Galax	640	Stafford	179
Grayson	077	Surry	181
Hampton	650	Tazewell	185
Henry/Martinsville	089	Virginia Beach	810
King & Queen	097	Wise	195

SNAPET FORMS

<u>FORM NUMBER</u>	<u>NAME</u>	<u>PAGES</u>
032-01-0921-03-eng	Working Your Way to a Better Life Pamphlet	1-3
032-02-0014-02-eng	SNAP E&T Pre-Assessment Form	4-5
032-22-1090-01-eng	SNAP E&T Assessment Form	6-13
032-02-1000-13-eng	ESP Activity and Service Plan	14-17
032-02-1030-02-eng	SNAP E&T Job Search Form	18-21
032-02-1070-02-eng	SNAP E&T Work Site Agreement	22-23
032-02-1060-10-eng	Referral to Work Experience Site	24-25
032-02-1010-03-eng	Work Experience Attendance and Performance Record	26-27
032-02-1020-05-eng	Education and Training Attendance Sheet	28-30
032-02-0072-12-eng	Employment Services Programs Communication Form	31-32
032-02-0089-08-eng	SNAP E&T Notice of Case Closure	33-35
032-03-1040-11-eng	SNAP E&T Medical Evaluation	36-39
032-03-0412-02-eng	Local Department of Social Services Re-Entry Client Referral Sheet	40-41
VWC Form No. 3 (rev. 10/08)	First Report of Injury	42-43

Pocket Résumé

A pocket Résumé is a summary of your work and education history. When you apply for a job, employers will ask you to list this information on an application form or to discuss it with them during an interview. By filling in the Pocket Résumé, you will be prepared to give an accurate and complete description of your qualifications – and thereby get one step ahead of other job seekers.

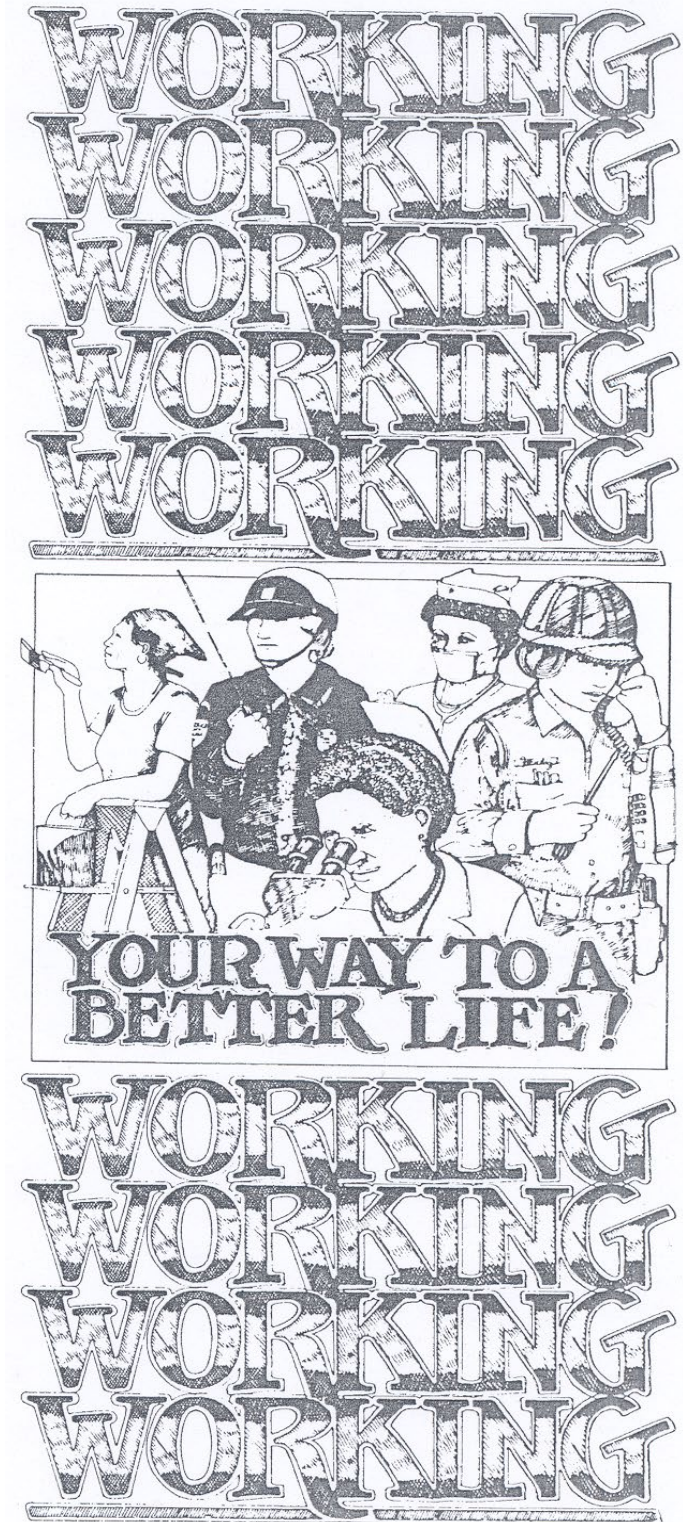
NAME _____	TELEPHONE NO. _____
ADDRESS _____	CITY/STATE _____
BIRTHDATE _____	SOCIAL SECURITY NO. _____

EDUCATION		
NAME/ADDRESS OF SCHOOL	YEAR COMPLETED	COURSE/DEGREE
GRADE SCHOOL		
HIGH SCHOOL		
VOCATIONAL		
COLLEGE		
OTHER		

WORK EXPERIENCE (PAID OR VOLUNTEER)					
EMPLOYER'S NAME & ADDRESS	SUPERVISOR	DUTIES	FROM	TO	WAGES/SALARY

REFERENCES			
NAME	ADDRESS	POSITION	TELEPHONE NO.

OTHER INFORMATION		
HOBBIES	INTERESTS	SPECIAL SKILLS



Tips For Job-Seeking Success

BELIEVE IN YOURSELF

Remember, you have much to offer an employer.

THERE ARE MANY JOBS AVAILABLE

even when unemployment is high. Jobs open up all the time as people move, get transferred, stop work, or retire.

DON'T LIMIT YOURSELF TO ONE TYPE OF JOB.

Remember that you can do many things. If there are no jobs available in the kind of work that you have done before, don't be afraid to look for a job in a Different field.

GO AFTER THE "HIDDEN JOB MARKET"

by getting job leads from the yellow pages of the phone book, from your friends and relatives, and by going directly to places for employment. Study the want ads, too, but don't limit yourself to them since most job openings are never anticipated.

GET YOUR FAMILY TO HELP

so that your times is as free as possible to look for a job. Tell your friends and relatives you are looking for a job. Over half of all jobs are found due to the help of friends and relatives.

TREAT JOB-SEEKING AS A FULL TIME JOB.

About half of each day should be spent getting job leads and interviews. Plan to spend the rest of each day on actual interviews and in filling out job applications.

KEEP YOURSELF ORGANIZED.

Have a folder to keep your papers in. Keep records of where you've been and who you talked to.

FILL OUT THE POCKET RÉSUMÉ

on the back of this pamphlet and use it when you are asked to fill out a job application. If you need any help, see your Employment Services Worker.

GET LETTERS OF RECOMMENDATION

from former employers and friends who know you well. Have copies made so that you can leave them with interviewers and attach them to job applications.

ALWAYS GET THE NAME OF THE PERSON WHO CAN ACTUALLY HIRE YOU

and talk to that person. Usually someone's secretary or a personnel department employee cannot hire you. Phone or go in person to get face-to-face interview.

DRESS NEATLY.

First impressions do count!

LEAVE FAMILY AND FRIENDS AT HOME WHEN YOU GO FOR THE INTERVIEW.

The employer is looking for an independent, capable person. One way to show that you are that kind of person is to handle the interview by yourself.

DON'T FORGET TO MENTION THE PERSONAL QUALITIES

that will make you a good worker.

Some of these qualities might include getting along well with people, learning quickly, being reliable, etc.

KEEP TRYING!

Get in the habit of arranging a time to call back to check on the status of your application or to see if there are any new openings. By doing this, your chances of getting hired are greater.

DON'T GET DISCOURAGED!

Your chances of getting a job increase with each interview you have.

THERE IS NO REASON TO TELL AN EMPLOYER YOU ARE RECEIVING ASSISTANCE

unless you wish to do so.

YOUR EMPLOYMENT SERVICES WORKER

is available to offer any help you may need. Good luck

WORKING YOUR WAY TO A BETTER LIFE PAMPHLET

FORM NUMBER - b032-01-0921

PURPOSE OF FORM - This pamphlet provides SNAPET participants with "Tips for Job-Seeking Success."

USE OF FORM - SNAPET Workers/Case Managers may give this pamphlet to participants to provide helpful hints on how to seek employment successfully. The pamphlet also provides participants with a place to record basic educational and employment history.

NUMBER OF COPIES - One

DISPOSITION OF COPIES - Original to participants

INSTRUCTIONS FOR USE OF PAMPHLET:

Distribute to participants as needed.

This pamphlet is designed for use in individual or group job search efforts.

PRE-ASSESSMENT FORM

Please complete this form and mail it back to us in the enclosed envelope by ____.

A. General Information/Education

YOUR FULL NAME: ____

ADDRESS: ____

PHONE: ____

LAST GRADE COMPLETED ____

ARE YOU ABLE TO READ ENGLISH? ☐ YES ☐ NO

LIST ANY TRAINING, SKILLS OR SPECIAL SCHOOLING YOU HAVE TAKEN:

DID YOU COMPLETE A COURSE? ____

DID YOU RECEIVE A CERTIFICATE? ____

WHEN? ____

B. Employment

ARE YOU WORKING NOW? ☐ YES ☐ NO IF NO, DO YOU EXPECT TO BE WORKING SOON? ☐ YES ☐ NO

PLEASE TELL US ABOUT YOUR CURRENT JOB OR LAST JOB:

EMPLOYER'S NAME: ____

YOUR JOB TITLE: ____

DATE BEGAN: ____

DATE LEFT: ____

YOUR DUTIES: ____

PAY PER HOUR: ____

HOURS PER WEEK: ____

WHAT OTHER TYPES OF JOBS HAVE YOU HELD IN THE PAST?

WHAT TYPE OF EMPLOYMENT ARE YOU INTERESTED IN?

C. Employment/Training Needs:

IS THERE ANYTHING WE NEED TO KNOW IN HELPING YOU FIND EMPLOYMENT? (CHECK ALL THAT APPLY TO YOU)

☐ LACK OF SKILLS OR TRAINING

☐ LACK OF CHILD CARE

☐ NEED EYEGLASSES

☐ MEDICAL PROBLEMNS

☐ NO JOBS AVAILABLE

☐ LACK OF TRANSPORTATION

☐ CANNOT READ

☐ FAMILY PROBLEMS

☐ DID NOT FINISH HIGH SCHOOL

☐ LANGUAGE PROBLEMS

☐ OTHER ____

PLEASE GIVE DETAILS FOR ANY ITEMS YOU HAVE CHECKED:

IS THERE ANYTHING ELSE WE NEED TO KNOW ABOUT YOU OR YOUR SITUATION?

YOUR SIGNATURE: _____

DATE: _____

*** PLEASE RETURN THIS FORM IN THE ENCLOSED STAMPED ENVELOPE TODAY ***

AGENCY USE ONLY

Assigned to ____ Pending

☐ Inactive

☐ Active (specify) ____

Reason: ____

Begin Date: ____

End Date: ____

Worker #: ____

Date: ____

SNAP E&T PRE-ASSESSMENT FORM

FORM NUMBER - 032-02-014

PURPOSE OF FORM - This form may be used prior to conducting an initial assessment to screen participants for SNAP E&T. The form records basic information concerning the participant's education level, skills and abilities, ability to read English, recent work experience, employment goal and barriers to employment.

USE OF FORM - The information on this form is used to assess the job readiness of the participant and serves as a screening tool to help the SNAP E&T Worker decide whether participation in the program is feasible.

NUMBER OF COPIES - One

DISPOSITION OF COPIES - Original must be maintained in the participant's case record.

INSTRUCTIONS FOR PREPARATION OF FORM: - This form may be mailed to the participant, completed by the participant, signed and returned to the agency in the envelope provided by the agency. The form may also be completed by the Eligibility Worker during the certification interview.

☐ Assessment ☐ SNAP E&T
☐ Reassessment ☐ TANF/VIEW
☐ TANF-UP/VIEW

VDSS Employment Services Program Assessment Form

Name _____ Case Number _____ Date _____
Phone Number(s) _____ Email _____
Primary Language _____ Do you need an interpreter? Yes ☐ No ☐

Instructions: The information you give us in this document is confidential and asked only to help us better assist you on the path to self-sufficiency. **Please do your best to answer as many questions as you can. If you cannot answer a question, then please skip it and your worker will discuss it with you when you meet.** Also, please make sure to bring this document with you to your appointment.

Do you have access to a computer with internet? Yes ☐ No ☐

Have you registered in Virginia Workforce Connection (www.vawc.virginia.gov)? Yes ☐ No ☐

Are you registered with Virginia Career Works (<https://va-career-works.myjourney.com>)? Yes ☐ No ☐

Consideration in employment planning: Which of the following do you have to think about when finding and/or keeping employment/training/education? (Check all that apply):

- | | | | |
|--|---|--|--|
| ☐ Childcare | ☐ Transportation | ☐ Housing Situation | ☐ Health |
| ☐ Job Skills/Experience | ☐ Education | ☐ Family Situation | ☐ Financial Situation |
| ☐ Legal/Criminal Status | ☐ Family Abuse* | ☐ Substance Abuse | ☐ Limited English |
| ☐ Other | | | |

*The Family Violence Hotline can be reached at 1-800-838-8238.

(A) CHILDCARE

Do you have reliable childcare? Yes ☐ No ☐ N/A ☐ Do you need help getting childcare? Yes ☐ No ☐

If relying on one person for childcare, what is your back-up childcare if the person is unavailable?

(B) TRANSPORTATION

Do you have a driver's license? Yes ☐ No ☐ If no, are you interested in getting your license? Yes ☐ No ☐

Is your license suspended? If so, why? _____

Do you own a vehicle? Yes ☐ No ☐ Is it reliable? Yes ☐ No ☐

What is your usual method of transportation (bus, bike, walking, a friend, etc.)? _____

(C) HOUSING SITUATION

What is your current housing situation? ☐ Rent ☐ Own ☐ Homeless/House to House ☐ In a shelter

Are you receiving housing assistance? ☐ Yes ☐ No If yes, what type? _____

Is your housing situation safe and stable for you and your children? ☐ Yes ☐ No

If no, describe: _____

(D) HEALTH

Do you have health insurance? Yes ☐ No ☐

Do you have health concerns (emotional or physical) that would prevent you from seeking or keeping employment?

☐ Yes ☐ No ☐ I choose not to answer If yes, describe: _____

If you remember, what was the date of your last physical? _____

Do you have problems with any of the following?

☐ Walking ☐ Lifting ☐ Dental problems ☐ Back problems ☐ Standing or sitting for long periods
☐ Vision, speech, or hearing ☐ Tiring easily ☐ Breathing difficulty ☐ I choose not to answer

Have you ever been hospitalized? Yes ☐ No ☐ I choose not to answer ☐

If yes, why? _____

Have you ever received counseling? ☐ Yes ☐ No ☐ I choose not to answer

Are you currently receiving counseling? ☐ Yes ☐ No ☐ I choose not to answer

If currently receiving counseling, why? _____

Are you taking any prescription medications? ☐ Yes ☐ No ☐ I choose not to answer

If an employer gave you a drug test, could you pass? ☐ Yes ☐ No

If no, could you pass given one month's notice? ☐ Yes ☐ No

(E) EMPLOYMENT GOALS

Do you have any job or career goals? Yes ☐ No ☐ If yes, then please explain? _____

If no, then how do you plan to support yourself and your family over the next 12 months? Do you have other goals you would like to accomplish in the next 12 months? _____

What actions will you need to take in the next 6-12 months that will help you reach your career goal? _____

What actions will you need to take in the next 1-3 years that will help you reach your career goals?

What additional goals are you trying to accomplish (personal, financial, educational) in the next 5 years?

What is making it hard for you to reach these goals?

What outcomes do you expect from your participation in the SNAP E&T/VIEW program?

Think about it.... What hurdle, obstacle, or challenge you have faced and overcome? What steps did you take to get over, get past, or remove this hurdle or obstacle? Discuss with your employment worker at your appointment.

(F) EMPLOYMENT SEARCH

What type of careers interest you? _____

What type of employment are you currently looking for? _____

What jobs have you recently applied for? _____

How many hours per week would you like to work? _____ What is your desired hourly pay? _____

Using the chart below, what hours are you available to work each day?

	Monday	Tuesday	Wednesday	Thursday	Friday	Saturday	Sunday
Hours (ex. 8am-5pm)							

In what city/cities are you willing to work? _____

What type of environment would you like to work? _____

What kinds of jobs do you always seem to be hired for? _____

(G) SKILLS

What would your former coworkers or supervisors say are your greatest strengths?

What challenges have you overcome in your current/previous jobs?

Soft skills are the skills that include your personality, attitude, flexibility, motivation, and manners. Soft skills are so important that they are often the reason employers decide whether to keep or promote an employee. **Hard skills**, also known as technical skills, are the skills needed that are directly related to the job to which you are applying.

032-22-1090-01-eng

Select from the list and provide additional information on the skills you would bring to an employer:

- | | | | |
|---|--|--|--|
| ☐ Adaptability/Flexibility | ☐ Empathy | ☐ Multitasking | ☐ Selling skills |
| ☐ Artistic aptitude | ☐ Enthusiasm | ☐ Networking | ☐ Social skills |
| ☐ Communication | ☐ Establishing relationships | ☐ Organization | ☐ Staying on task |
| ☐ Confidence | ☐ Follow rules and regulations | ☐ Patience | ☐ Storytelling |
| ☐ Conflict management | ☐ Following directions | ☐ Positive Attitude | ☐ Stress management |
| ☐ Cooperation | ☐ Functions well under pressure | ☐ Problem solving | ☐ Team player |
| ☐ Creativity | ☐ Giving clear feedback | ☐ Public speaking | ☐ Technology savvy |
| ☐ Critical Thinking | ☐ Honesty | ☐ Punctuality | ☐ Time management |
| ☐ Customer service | ☐ Independence | ☐ Respectfulness | ☐ Willing to accept feedback |
| ☐ Dealing with difficult people/situations | ☐ Interpersonal skills | ☐ Safety conscious | ☐ Willingness to learn |
| ☐ Decision making | ☐ Leadership | ☐ Scheduling | ☐ Working well under pressure |
| ☐ Dependability | ☐ Listening | ☐ Self-awareness | ☐ Work-life balance |
| | ☐ Logical thinking | ☐ Self-directed | ☐ Writing skills |

Other: _____

List three people who would be good job references: _____ (1) _____

(2) _____ (3) _____

(H) WORK EXPERIENCE

Do you have a resume? Yes ☐ No ☐ Do you need help creating a resume? Yes ☐ No ☐

Provide an updated resume or complete the information below, beginning with your current or most recent job.

Employer _____ Job Title _____ Duties: _____

Dates worked from: _____ to: _____ Final Hourly Wage _____

Reason for leaving _____

Employer _____ Job Title _____ Duties: _____

Dates worked from: _____ to: _____ Final Hourly Wage _____

Reason for leaving _____

Employer _____ Job Title _____ Duties: _____

Dates worked from: _____ To: _____ Final Hourly Wage _____

Reason for leaving _____

Employer _____ Job Title _____ Duties: _____

Dates worked from: _____ To: _____ Final Hourly Wage _____

Reason for leaving _____

What was your favorite job and why? _____

How often were you absent or late from your last job and why? _____

What other jobs would you consider? _____

Have you ever been self-employed or a contractor? Yes ☐ No ☐ If yes, tell us about it below.

032-22-1090-01-eng

Company's Name: _____ What did the company specialize in? _____

What did you do? _____

Dates worked from _____ to _____ Final hourly pay _____

Why did you stop pursuing self-employment? _____

Have you served in the military? Yes ☐ No ☐ Date from: _____ to _____

Please provide additional information on service branch, responsibilities, trainings, and certifications.

Do you have volunteer experience? Yes ☐ No ☐ If yes, where did you volunteer and what did you do?

(I) EDUCATION/TRAINING

Tell us about your education including the highest level of education you have achieved along with completion dates.

Tell us about any vocational training, certifications, occupational licenses, or college classes you have completed.

Tell us about your learning challenges or if you participated in special programs while attending school?

What types of training or formal education would you be interested in obtaining and why?

When and where would you like to attend post-secondary education or training?

(J) SUPPORT SYSTEM AND FAMILY SITUATION

Do you have relatives and/or close friends in the area that you can contact in a time of need or for help?

Yes ☐ No ☐ If yes, who are they and what is their relationship to you? _____

Emergency Contact: _____

How many children are currently living with you? _____ What are their ages? _____

Are you pregnant? Yes ☐ No ☐ If yes, due date: _____

Who do you consider to be your support system, the person/people you celebrate with, go to when you have a problem, or call when you want to talk? _____

What do you like to do in your spare time (hobbies, church, play with your children, read, watch TV, socialize, etc.)?

What programs have you worked with in the past (ex. Job coaching, Dept. of Aging and Rehabilitative Services (DARS), Community Service Board (CSB), etc.)? Describe the program and when you participated.

032-22-1090-01-eng

(E) FINANCIAL SITUATION

Are you able to pay your monthly bills? ☐ Yes ☐ No Would you like budgeting assistance? ☐ Yes ☐ No

List any debts, loans, past-due or unpaid bills, and court fines: _____

List your current expenses:

Rent _____ Utilities _____ Phone/Cable _____

Car payment		Insurance		Healthcare	
Childcare		Groceries		Other	

Do you have income (include child support, TANF, SSI, etc.)? ☐ Yes ☐ No If yes, how much? _____

Would you like help enforcing or reviewing your child support obligation? ☐ Yes ☐ No

Have you ever gotten your credit report? ☐ Yes ☐ No

Do you have a bank account? ☐ Yes ☐ No If no, would you like to open an account? ☐ Yes ☐ No

(F) LEGAL AND/OR CRIMINAL HISTORY

What legal documents do you need assistance obtaining (birth certificate, social security card, ID card, etc.)? _____

Have you ever been charged or convicted of a crime, including a DUI? ☐ Yes, misdemeanor ☐ Yes, felony ☐ No

If yes, describe the charges and date(s): _____

If you were incarcerated, what were the dates from: _____ to _____

Are you currently on probation? ☐ Yes ☐ No If yes, when will your probation end? _____

If convicted of a crime, has it kept you from getting a job? ☐ Yes ☐ No

How do you explain this situation to employers? _____

Do you have any pending court cases ☐ Yes ☐ No If yes, explain: _____

(G) Section to be completed by Employment Services Program Staff Only

Consent to Exchange Information Completed ☐ Yes ☐ No

Referrals/Dates

Referral: _____

Referral Date: _____

Referral: _____

Referral Date: _____

(Optional) Additional Assessments Completed:

Name of Assessment: _____

Name of Assessment: _____

Date of Completion: _____

Date of Completion: _____

Score/Outcome: _____

Score/Outcome: _____

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SNAP E&T ASSESSMENT FORM

FORM NUMBER - 032-22-1090

PURPOSE OF FORM - This form is initially completed by the Employment Services Program (ESP) participant and worker at the time of the assessment interview. The form records information concerning the ESP participant's educational background, employment history, interests, employment goals and employment barriers.

USE OF FORM - The information on this form is used to assess the job readiness of the participant and serves as a foundation for development of the participant's Activity and Service Plan (032-02-302). Date information added after the initial assessment to show MM/DD/YY of entry.

NUMBER OF COPIES – One (provide participant with a copy of pages 1- 6).

DISPOSITION OF COPIES - Original will be maintained in the participant's case record.

INSTRUCTIONS FOR PREPARATION OF FORM - Identifying Information/Date/Type of Assessment/Category - Date is MM/DD/YY the assessment or reassessment is conducted. Check the appropriate block to indicate "Assessment" for initial assessment or "Reassessment" for reassessment interviews.

On page 1, the program participant will provide their name, case number, contact information, primary language, and the date that they started the assessment form. The instruction directs the program participant to answer as many questions as possible.

The section "Consideration in Employment Planning" is on the first page and designed to allow the program participant and worker to identify issues which may impact the client's progress toward self-sufficiency and economic stability. If problems are identified, the program participant has an opportunity to decide how these issues will be resolved. This section is in the beginning of the assessment to address possible barriers in the early stages of the assessment.

The following sections are designed to allow the participant to identify issues related to childcare, transportation, housing, and the participant's health, which may impact the client's progress toward self-sufficiency and economic stability.

- A. CHILD CARE
- B. TRANSPORTATION
- C. HOUSING SITUATION
- D. HEALTH (Note: This section does not replace completion of "Do You Have a Disability" Form.)

The following sections are designed to capture the program participant's employment goals, interests, and prior experience. This information is very useful in the career planning process as the worker helps the participant to self-identify their strengths, career preferences and employment/training/educational paths.

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- E. EMPLOYMENT GOALS - This section is used to record the outcome the client envisions as a result of program participation. Short- and long-term goals are identified. Knowledge of these goals can help as the client and worker plan participation in the Employment Services Program.
- F. EMPLOYMENT SEARCH – The section is designed for the participant to identify career interests, past employment applications and available workdays.
- G. SKILLS – This section allows the participant to identify their soft skills and possible professional references. This information can be used for employment and training planning.
- H. WORK EXPERIENCE - This section provides space for a chronological listing of the participant's employment. Information about the participant's duties on the job, reasons for leaving, and job preferences are important for employability planning and merit thorough discussion. Information about volunteer work and military experience will allow identification of transferable skills which are useful in planning for participants with limited skills/employment. ESP participants may provide a current resume in place of the writing the past employment experience.
- I. EDUCATION/TRAINING: Information about the last school attended and last grade completed is obtained from the participant during the assessment interview. The worker will use this part of the form to record functional education level testing. Record any training or post-secondary education. Be sure to list certificates and degrees obtained, fields of study, and dates. Provide information about apprenticeships and occupational licenses, and relevant dates. Information about test results may be recorded at the time initial assessment, if known, or may be added at the time of reassessment.

These following sections allow the participant to identify additional secondary employment barriers.

- J. SUPPORT SYTSTEM AND FAMILY SITUATION
- K. FINANCIAL SITUATION
- L. LEGAL AND/OR CRIMINAL HISTORY AND DOCUMENTS
- M. This section is designed for the Employment Services Worker to annotate if referrals were made to partner organizations or agencies to address employment barriers for the program participant. Employment Services Workers may also annotate the scores from assessments completed by the program participant. Examples of free self-directed assessment are:
- O**NET Interest Profiler Results - www.mynextmove.org
 - CareerOneStop Skills Matcher - <https://www.careeronestop.org/toolkit/Skills/skills-matcher.aspx>
 - CareerOneStop Work Values Matcher - <https://www.careeronestop.org/Toolkit/Careers/work-values-matcher-assessment.aspx>

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF SOCIAL SERVICES
EMPLOYMENT SERVICES PROGRAM

SNAP E&T ☐ VIEW ☐ TET ☐ VTP ☐

Participant's Name: _____
Case ID#: _____
ESW: _____
ESW Phone #: _____
of Months Accrued on VIEW Clock _____ N/A ☐
Date: _____

ACTIVITY AND SERVICE PLAN

**CURRENT PROGRAM
ACTIVITY ASSIGNMENT**

Planned Begin
Date

Planned End
Date

Planned Weekly Hrs/Pay & Location

Core Activities

Currently employed full-time	_____	_____	_____
Currently employed part-time	_____	_____	_____
Job Search (VIEW)	_____	_____	_____
Supervised Job Search (SNAP E&T)	_____	_____	# of Job Contacts _____
Job Readiness (VIEW) / Job Search Training (SNAP E&T)	_____	_____	_____
Full Employment Program (FEP)	_____	_____	_____
On-the-Job Training (OJT)	_____	_____	_____
Community Work Experience (CWEP)	_____	_____	_____
Public Service Program (PSP)	_____	_____	_____
Vocational Education & Training	_____	_____	_____
Work Experience (WE)	_____	_____	_____

Non-Core Activities – countable only after minimum 20 hrs/week completed in Core Activities (VIEW Only)

☐ Job Skills Training _____
(Includes education above post-secondary when it is directly related to employment)

☐ Education below post-secondary _____

Other Work Activities – these hours are not counted toward the participation requirement

☐ Other Locally Developed _____

☐ **Pending** (Assign for a maximum of 60 days) ☐ **Inactive** (Assign up to 3x - 30 days per assignment)

List reasons for assignment to Pending or Inactive and the steps necessary to resolve problem:

SUPPORTIVE /TRANSITIONAL SERVICES

☐ Child Care ☐ Transportation ☐ TET ☐ VTP ☐ Other (please describe)

VTP Period From _____ to _____

AGENCY RESPONSIBILITIES**PARTICIPANT RESPONSIBILITIES FOR CURRENT COMPONENT ASSIGNMENT(S)**☐ **FOR ALL PARTICIPANTS**

I understand that I am responsible for keeping the agency informed of my progress and needs. I agree to call my Employment Services Worker (ESW) if I have a problem that makes it impossible to keep an appointment or if I wish to discuss or change an activity. I agree to continue in my current activity until I have discussed any problem I may have with my ESW. I will notify my ESW of any changes in my employment status (such as obtaining new employment). I will inform my child care worker of any changes that affect my current activity.

☐ **[VIEW Only]** I understand that if I fail to participate without a good reason, my TANF benefits/support services will be stopped and my SNAP benefits may be affected.

☐ **FOR PARTICIPANTS WHO ARE EMPLOYED**

I will contact the Employment Services Worker (ESW) to discuss any problems that may affect my employment. I will not quit my job or put myself in a position to be fired without discussing the situation with my worker. I will notify my ESW of any changes in my employment status (such as obtaining new employment or changing jobs). I will complete the required monthly follow-up contact (by phone or by mail) with my ESW prior to **the 5th of each month**.

☐ **FOR PARTICIPANTS ASSIGNED TO JOB SEARCH AND SUPERVISED JOB SEARCH**

I will carry out the responsibilities as agreed upon on my Job Search form.

☐ **FOR PARTICIPANTS ASSIGNED TO CWEP, PSP or WE**

I will carry out the responsibilities as agreed to on my Work Site Position form. I will make sure that my Supervisor has provided the Attendance/ Performance Rating Sheet to my ESW by the 5th of each month.

☐ **FOR PARTICIPANTS ASSIGNED TO EDUCATIONAL OR TRAINING ACTIVITIES**

I will provide the Attendance Sheet to my ESW by the 5th of each month. I will provide a copy of my grades at the end of each semester/ quarter/activity.

☐ **FOR PARTICIPANTS ASSIGNED TO THE FULL EMPLOYMENT (FEP) PROGRAM (VIEW only)**

I understand that I will receive monthly TANF benefits while I am employed in a FEP placement. I will call my FEP placement supervisor and my worker if I will be absent from work.

☐ **FOR PARTICIPANTS ASSIGNED TO PENDING**

I understand that I am not actively participating at this time, but that the months during which I am assigned to this component will count toward my two year time period. I also understand that I must keep all appointments and answer all calls and letters from agency staff since I may be required to participate in the future.

☐ **FOR PARTICIPANTS ASSIGNED TO INACTIVE**

I understand that I will not actively participate at this time. I also understand that I must keep all appointments and answer all calls and letters from agency staff since I may be required to participate in the future.

☐ **FOR PARTICIPANTS ASSIGNED TO VTP (VIEW only)**

I will complete the 6 month job follow-up and return the verification of my employment to my ESW by _____ .

☐ **ADDITIONAL PARTICIPANT RESPONSIBILITIES NOT LISTED ABOVE**☐ **EXCHANGE OF INFORMATION CONSENT (ALL PARTICIPANTS)**

I understand that my worker may contact employers, service agencies, and others to assist me in connection with my assignments. By signing this form, I give permission to my ESW to share information from my case record when necessary to provide or coordinate services on my behalf.

PARTICIPANT'S SIGNATURE _____

DATE _____

WORKER'S SIGNATURE _____

PHONE _____

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SNAP E&T ACTIVITY and SERVICE PLAN

FORM NUMBER - 032-02-1000

Employment Services Program Acronyms	
CWEP	Community Work Experience
ESP	Employment Services Program
ESW	Employment Services Worker including FSS, FSW, SSS, SSW
FEP	Full Employment Program
PSP	Public Service Program
SNAP E&T	Supplemental Nutrition Assistance Program Education & Training
TET	Transitional Employment and Training Services
VIEW	Virginia Initiative for Education and Work
VTP	VIEW Transitional Payment
WE	Work Experience (SNAP E&T)

PURPOSE OF FORM - This form outlines a strategy designed by the Employment Services Worker and the SNAP E&T/VIEW participant to achieve long and short-term goals in working toward employment as decided upon during the initial assessment and recorded on the VDSS Employment Services Program Assessment Form (032-22-1090). It details specific activities to which the participant will be assigned. It identifies any services that will be needed during assignments to these activities.

USE OF FORM - This form is prepared initially at the SNAP E&T/VIEW assessment and at the time of each reassessment. It is also to be used for persons eligible for TET and VIEW Transitional Payments. Activities on this form will correspond to entries in the Virginia Case Management System (VaCMS). This form will serve as the service application for clients requesting child care services and serve as documentation for the continued need for child care services. A copy of each Activity and Service Plan must be sent to the child care worker.

NUMBER OF COPIES – Three (One original and two copies)

DISPOSITION OF COPIES - Original is maintained in participant's case record with a copy provided to the SNAP E&T/VIEW participant and a copy to the Child Care Worker, if necessary.

INSTRUCTIONS FOR PREPARATION OF FORM:

CURRENT PROGRAM ACTIVITY ASSIGNMENT - This space is provided for the worker/case manager to list the current component assignment(s) along with planned location, dates, and hours/pay. (Note: The "current component assignment" following the initial assessment will include any assignment for the month of the assessment as well as the next three full months.) The information on this list will correspond with information in the VaCMS. Any assignment to pending or inactive needs to be explained in the space provided.

SUPPORTIVE SERVICES - Any services needed by the participant to engage in the program activities listed will be identified in this section of the Activity and Service Plan.

AGENCY RESPONSIBILITIES - Outline the responsibilities the agency will assume to assist the participant in carrying out the activities identified.

PARTICIPANT RESPONSIBILITIES FOR CURRENT COMPONENT ASSIGNMENT(S) - The Employment Services Worker will complete this section by using the check boxes and writing in additional responsibilities as needed. This section will outline the specific steps the participant is required to take in order to comply with program requirements. By signing this section of the form, the SNAP E&T/VIEW participant indicates they have participated in the planning for activities described, and they understand their responsibilities as a SNAP E&T/VIEW program participant.

(VIEW only) For clients assigned to VTP, verification of continued employment is due by the date on the Activity and Service Plan. This date is approximately 6 months from the first VTP payment.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF SOCIAL SERVICES
EMPLOYMENT SERVICES PROGRAM

VIEW ☐ SNAP E&T ☐

Participant's Name: _____
Case #: _____
ESW: _____
ESW Phone #: _____

SNAP E&T AND VIEW JOB SEARCH FORM

Important - Use this form to record the employer contacts and the number of hours for each contact you are required to make while you are looking for a job.

☐ You do not need to get the signatures of the employer contacts, but your Employment Services Worker may verify these contacts.

☐ You can count the hours that you spend in face-to-face interviews, the hours completing and turning in job applications or resumes, and the travel time between interviews (but not to the first interview each day or from the last interview each day).

☐ **[VIEW only]** If you do not complete and sign each page of the form then return it to your Employment Services Worker by the due date, your TANF or TANF-UP benefits may be suspended.

REMEMBER YOU MUST:

☐ **[VIEW only]** Spend at least _____ hours per week looking for a job.

From _____ (begin date) to _____ (end date)

☐ **[SNAP E&T only]** Make at least _____ contacts per month looking for a job.

From _____ (begin date) to _____ (end date)

☐ Accept suitable job offers.

☐ Notify your Employment Services Worker as soon as you get a job.

☐ Complete and sign each page of the form and:

☐ Return the completed form to your Employment Services Worker by _____

Date

☐ Keep this appointment with your Employment Services Worker on:

_____/_____/_____
Date Time Address

AGENCY USE ONLY

Assigned hours for the month (VIEW) / Number of contacts for the month (SNAP E&T):	_____
Holiday hours used for the month (Group Job Search only) - (VIEW ONLY)	_____
Excused hours used for the month (Group Job Search only) - (VIEW ONLY):	_____
Total countable hours of participation for this activity for the month - (VIEW ONLY):	_____

Company	<u>Virginia Workforce Connection</u>	☐	[Required] Register online at
Address	<u></u>		https://www.vawc.virginia.gov
	<u></u>		
Type of job:	<u></u>	Result of	<u></u>
Person Contacted:	<u></u>	Contact:	<u></u>
Date of Contact:		Contact Hours:	1 ☐ 2 ☐ 3 ☐ 4 ☐

Company	<u></u>	☐	Submitted a Resume/Application
Address	<u></u>	☐	Interview
	<u></u>		
Type of job:	<u></u>	Result of	<u></u>
Person Contacted:	<u></u>	Contact:	<u></u>
Date of Contact:		Contact Hours:	1 ☐ 2 ☐ 3 ☐ 4 ☐

Company	<u></u>	☐	Submitted a Resume/Application
Address	<u></u>	☐	Interview
	<u></u>		
Type of job:	<u></u>	Result of	<u></u>
Person Contacted:	<u></u>	Contact:	<u></u>
Date of Contact:		Contact Hours:	1 ☐ 2 ☐ 3 ☐ 4 ☐

Company	<u></u>	☐	Submitted a Resume/Application
Address	<u></u>	☐	Interview
	<u></u>		
Type of job:	<u></u>	Result of	<u></u>
Person Contacted:	<u></u>	Contact:	<u></u>
Date of Contact:		Contact Hours:	1 ☐ 2 ☐ 3 ☐ 4 ☐

Company	<u></u>	☐	Submitted a Resume/Application
Address	<u></u>	☐	Interview/
	<u></u>		
Type of job:	<u></u>	Result of	<u></u>
Person Contacted:	<u></u>	Contact:	<u></u>
Date of Contact:		Contact Hours:	1 ☐ 2 ☐ 3 ☐ 4 ☐

Company	_____	☐	Submitted a Resume/Application
Address	_____	☐	Interview

Type of job:	_____	Result of	_____
Person Contacted:	_____	Contact:	_____
Date of Contact:		Contact Hours:	1 ☐ 2 ☐ 3 ☐ 4 ☐

Company	_____	☐	Submitted a Resume/Application
Address	_____	☐	Interview

Type of job:	_____	Result of	_____
Person Contacted:	_____	Contact:	_____
Date of Contact:		Contact Hours:	1 ☐ 2 ☐ 3 ☐ 4 ☐

Company	_____	☐	Submitted a Resume/Application
Address	_____	☐	Interview

Type of job:	_____	Result of	_____
Person Contacted:	_____	Contact:	_____
Date of Contact:		Contact Hours:	1 ☐ 2 ☐ 3 ☐ 4 ☐

Company	_____	☐	Submitted a Resume/Application
Address	_____	☐	Interview

Type of job:	_____	Result of	_____
Person Contacted:	_____	Contact:	_____
Date of Contact:		Contact Hours:	1 ☐ 2 ☐ 3 ☐ 4 ☐

SNAP E&T SUPERVISED JOB SEARCH FORM

FORM NUMBER - 032-02-1030

Employment Services Program Acronyms	
CWEP	Community Work Experience
ESP	Employment Services Program
ESW	Employment Services Worker including FSS, FSW, SSS, SSW
FEP	Full Employment Program
PSP	Public Service Program
SNAP E&T	Supplemental Nutrition Assistance Program Education & Training
VIEW	Virginia Initiative for Education and Work
WE	Work Experience (SNAP E&T)

PURPOSE OF FORM - This form provides written documentation of the SNAP E&T participant's supervised job search contacts.

USE OF FORM - This form is used by SNAP E&T and VIEW participants to record employer contacts, contact hours and outcomes during assignment to a job search component.

NUMBER OF COPIES - One

DISPOSITION OF COPIES - Original becomes a part of the case record when the participant completes job search and returns the form.

INSTRUCTIONS FOR PREPARING FORM:

The first section of the form is completed by the Employment Services Worker (ESW) and the information is discussed with the participant. After the form is returned by the participant, the ESW will fill in the number of contacts for the month (SNAP E&T only) or Assigned hours for the month, the Holiday hours used for the month, the Excused Absence hours used for the month, and the Total Countable hours of participation for this activity for the month (VIEW only).

The "Employer Contact List" is completed by the participant. Employers are not required to sign the form. The first box in the contacts section is to record the mandatory registration/contact with the Virginia Workforce Connection for both VIEW and SNAP E&T participants. At the end of the job search assignment or at a time designated by the Employment Services Worker, the form is to be returned to the agency. The Employment Services Worker will explain to the participant how the form is to be returned.

The participant will sign the form at the bottom of each page indicating that the contacts have actually been made and that contacts or hours are accurate. A statement on the form cautions the participant that the Employment Services Worker may contact the employer to verify the contact.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF SOCIAL SERVICES
EMPLOYMENT SERVICES PROGRAM

VIEW ☐ SNAP E&T ☐

Participant's Name: _____

Case #: _____

ESW: _____

ESW Phone #: _____

WORK SITE AGREEMENT (CWEP, PSP or WE)

The _____ Department of Social Services (hereafter referred to as the Agency) and _____ (hereafter referred to as the work site) enter into this agreement in good faith to provide work experience and/or training to participants of the Virginia Initiative for Education and Work (VIEW) or the Supplemental Nutrition Assistance Program Employment & Training (SNAP E&T).

THE AGENCY AGREES AS FOLLOWS:

1. To refer appropriate participants to the Work Site for consideration.
2. To provide a detailed explanation of VIEW and SNAP E&T and the necessary paperwork for reporting requirements.
3. To provide necessary supportive services to enable the participant to participate in VIEW or SNAP E&T.

THE WORK SITE AGREES AS FOLLOWS:

1. To provide work experience and/or training for participants chosen by the Work Site.
2. To not use participants to displace current employees or to fill vacant established positions or perform tasks that would have the effect of reducing regular employee's work hours.
3. To not use participants to perform political, electoral or partisan activities or in response to any strike, lock-out or other bona fide labor dispute.
4. To provide reasonable working conditions which do not violate federal, state or local health or safety standards.
5. To provide competent supervision to participants.
6. To prepare evaluation and time sheets for each participant and submit this information to the Agency by the 5th working day of each month during the designated training period.
7. To furnish necessary materials to allow participants to perform assigned tasks.

This agreement will be in effect from _____ to _____

Authorized Signature (organization/work site) _____ Date _____

Agency/LDSS Representative Date

EMPLOYMENT SERVICES PROGRAM WORK SITE AGREEMENT

FORM NUMBER - 032-02-1070

Employment Services Program Acronyms	
CWEP	Community Work Experience
ESP	Employment Services Program
ESW	Employment Services Worker including FSS, FSW, SSS, SSW
FEP	Full Employment Program
PSP	Public Service Program
SNAP E&T	Supplemental Nutrition Assistance Program Education & Training
VIEW	Virginia Initiative for Education and Work
WE	Work Experience (SNAP E&T)

PURPOSE OF FORM - This form provides required documentation of the terms of the agreement between the CWEP, PSP or WE work site and the LDSS.

USE OF FORM - This form is used to ensure understanding between the agency and the work site regarding work experience assignments.

NUMBER OF COPIES - Two

DISPOSITION OF COPIES - Original remains on file in agency. Copy is retained by the work site.

INSTRUCTIONS FOR PREPARATION OF FORM:

After discussion with the work site representative, this agreement must be completed so that both parties have an understanding of their mutual responsibilities.

Only one agreement with a work site is required. However, each agreement may have several position descriptions associated with it.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF SOCIAL SERVICES
EMPLOYMENT SERVICES PROGRAM

VIEW ☐ SNAP E&T ☐

Participant's Name: _____

Case #: _____

ESW: _____

ESW Phone #: _____

SNAP E&T AND VIEW REFERRAL TO WORK SITE (FEP, CWEP, PSP, Work Experience)

PARTICIPANT _____ CASE# _____

ADDRESS: _____

TELEPHONE#: _____ MESSAGE PHONE _____

TO THE PARTICIPANT:

Take this referral to _____ (company/work site) for a FEP, CWEP, PSP or Work Experience position.

You are to report to: _____ on _____
Name Date Time

Address/Directions: _____

Special Instructions: _____

If you are unable to keep this appointment, call the Worksite Supervisor _____ at ()
and your Employment Services Worker (ESW) immediately.

TO WORK SITE SUPERVISOR:

Please give this participant your consideration for the _____ position with your organization as outlined in our Work Site Agreement form signed by _____.

He/she is eligible to work _____ hours per week.

Please complete the section below and return to (ESW)
at email address: _____.

TO EMPLOYMENT SERVICES WORKER (check one of the following):

☐ Participant will begin work on _____.

Date

He/she will be assigned to _____ hours per week at _____ per hour.

He/she will be working at: _____

☐ Participant not selected to work in this position.

Reason: _____

Work Site Supervisor: _____

Date: _____ Phone: _____

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SNAP E&T AND VIEW REFERRAL TO WORK SITE (FEP, CWEP, PSP, Work Experience)

FORM NUMBER - 032-02-1060

Employment Services Program Acronyms	
CWEP	Community Work Experience
ESP	Employment Services Program
ESW	Employment Services Worker including FSS, FSW, SSS, SSW
FEP	Full Employment Program
PSP	Public Service Program
SNAP E&T	Supplemental Nutrition Assistance Program Education & Training
VIEW	Virginia Initiative for Education and Work
WE	Work Experience (SNAP E&T)

PURPOSE OF FORM - This form provides the SNAP E&T and VIEW participant and the CWEP, PSP or Work Experience work site or FEP employer with written information about the SNAP E&T or VIEW participant's assignment to or interview at the work site.

USE OF FORM - The form is used to refer SNAP E&T or VIEW participants to a CWEP, PSP or Work Experience work site or FEP placement to interview for a position.

NUMBER OF COPIES - Three

DISPOSITION OF COPIES - Original – Participant
1st copy – Work Site
2nd copy – Case Record

INSTRUCTIONS FOR PREPARATION OF FORM:

Preparation of this form will serve to refer the SNAP E&T or VIEW participant for an interview or an assignment to a work experience or FEP position for which there is a position description on file.

The first section of the form contains information that the SNAP E&T or VIEW participant will use to locate the site, to call the worker/case manager if a problem arises, and to understand the nature of the position for which they are being interviewed or to which they are being assigned.

The second and third sections of the form also contain information which will help the work site representative interview the SNAP E&T or VIEW participant, record the details of the position for which the SNAP E&T or VIEW participant is applying/reporting, and know who the local agency contact person is for this particular SNAP E&T or VIEW participant.

All sections of the form need to be completed for all parties to understand the referral.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF SOCIAL SERVICES
EMPLOYMENT SERVICES PROGRAM

VIEW ☐ SNAP E&T ☐

Participant's Name: _____

Case#: _____

ESW: _____

ESW Phone #: _____

ATTENDANCE & PERFORMANCE RATING SHEET

This form enables the Employment Services Worker (ESW) to monitor participant attendance and performance. It should be completed each month by the Work Site Supervisor and provided to the ESW by the 5th day of the following month.

DATES AND HOURS WORKED FOR MONTH: _____ 20__ __																
Date	Hours	Date	Hours	Date	Hours	Date	Hours									
1		9		17		25										
2		10		18		26										
3		11		19		27										
4		12		20		28										
5		13		21		29										
6		14		22		30										
7		15		23		31										
8		16		24												
<table border="1"> <tr> <td>Total Scheduled/Assigned Hours to Work This Month</td> <td></td> <td>Times Tardy</td> <td></td> <td rowspan="2">Comments:</td> </tr> <tr> <td>Total Actual Work Hours This Month</td> <td></td> <td>Unexcused Absences</td> <td></td> </tr> </table>								Total Scheduled/Assigned Hours to Work This Month		Times Tardy		Comments:	Total Actual Work Hours This Month		Unexcused Absences	
Total Scheduled/Assigned Hours to Work This Month		Times Tardy		Comments:												
Total Actual Work Hours This Month		Unexcused Absences														

Performance Evaluation (Rating Guide: 0=Poor, 1=Fair, 2=Good, 3=Very Good, 4=Excellent)			
Knowledge of Assignment	_____	Punc	_____
Attitude	_____	Safety Habits	_____
Cooperation	_____	Quality of Work	_____
Works Well with Others	_____	Initiative	_____
		Grooming	_____
		Accepts Supervision	_____
		Overall Performance	_____
List skills participant has mastered _____			
List skills that participant needs to improve _____			
Do you recommend that the participant continues in this activity? Yes ☐ No ☐			
Why Or Why Not? _____			

Work Site Supervisor Name: _____

Phone Number: _____

Work Site Supervisor Signature: _____

Date: _____

10/24

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ATTENDANCE & PERFORMANCE RATING SHEET

FORM NUMBER - 032-02-1010

Employment Services Program Acronyms	
CWEP	Community Work Experience
ESP	Employment Services Program
ESW	Employment Services Worker including FSS, FSW, SSS, SSW
FEP	Full Employment Program
PSP	Public Service Program
SNAP E&T	Supplemental Nutrition Assistance Program Education & Training
VIEW	Virginia Initiative for Education and Work
WE	Work Experience (SNAP E&T)

PURPOSE OF FORM - This form provides a written means for the ESW to monitor VIEW or SNAP E&T participant's progress and attendance in a CWEP, WE, PSP or FEP placement on a monthly basis.

USE OF FORM - This form is used by the work site supervisor to record the participant's attendance and evaluate performance in the CWEP, WE, PSP or FEP position. It may also be completed by the ESW based upon information provided by the employer verbally. The form is also used by the ESW to evaluate satisfactory participation (attendance) and any need for intervention to enhance the VIEW or SNAP E&T participant's progress. Usage of the forms with FEP placement is optional. The ESW may contact the FEP employee for a verbal update. Information obtained must be noted in the VIEW and SNAP E&T record.

NUMBER OF COPIES - One

DISPOSITION OF COPIES - The original is submitted to the ESW by the fifth calendar day after the report month and becomes a part of the case record.

INSTRUCTIONS FOR PREPARATION OF FORM:

The ESW will be responsible for informing the Work Site Supervisor of their responsibility to prepare the form monthly. A six-month supply of the form may be given to the Work Site Supervisor at the time the agreement is completed. Identifying information should be completed by the ESW prior to giving this form to the Work Site Supervisor.

For CWEP, WE and PSP placements, the ESW will be responsible for informing the work site supervisor of the number of hours the participant will be assigned each month.

All sections of the form need to be completed in their entirety to enable the ESW to evaluate performance and monitor attendance.

The Work Site Supervisor will be responsible for completing, signing, dating, and mailing the form to the agency by the fifth calendar day after the close of the report month.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF SOCIAL SERVICES
EMPLOYMENT SERVICES PROGRAM

VIEW ☐ SNAP E&T ☐

Participant's Name: _____

Case #: _____

ESW: _____

ESW Phone #: _____

EDUCATION AND TRAINING ACTIVITIES ATTENDANCE SHEET

This form must be returned to the Employment Services Worker (ESW) by the 5th of every month.

Name of Class: _____ Name of Program/Curriculum: _____

Name of Institution: _____ Instructor Name: _____

How is instruction delivered: In-person ☐ Online ☐ Hybrid ☐ Other: _____

TO BE COMPLETED BY THE PARTICIPANT

Please circle the dates that your class is scheduled to meet for the month. After each class meeting, fill in the number of hours that you attended class, labs, or other activities required for the class. If you were not in class, please use one of the codes listed below to explain why you were not in class on that date.

Please sign the form and have the Instructor (or designee) sign the form to confirm that the information is correct.

Attendance Month: _____ 20____

1	2	3	4	5	6	7
8	9	10	11	12	13	14
15	16	17	18	19	20	21
22	23	24	25	26	27	28
29	30	31	Attendance Codes: ▪ A: Absent ▪ C: Closed ▪ H: Holiday			

Participant's Signature _____

Date: _____

TO BE COMPLETED BY THE INSTRUCTOR

Is homework/study time necessary for success in this class?

Yes ☐ No ☐

Is the attendance information reported accurate? Yes ☐ No ☐

Instructor's Signature: _____

TO BE COMPLETED BY THE (ESW)

Homework/Study Hours						
1	2	3	4	5	6	7
8	9	10	11	12	13	14
15	16	17	18	19	20	21
22	23	24	25	26	27	28
29	30	31	Monthly total homework/study hours:			

Total attendance hrs: _____ Assigned hrs: _____

Holiday hrs used: _____ Excused absences hrs used: _____

10/24

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EMPLOYMENT SERVICES PROGRAM
EDUCATION AND TRAINING ACTIVITIES ATTENDANCE SHEET

FORM NUMBER - 032-03-1020

Employment Services Program Acronyms	
CWEP	Community Work Experience
ESP	Employment Services Program
ESW	Employment Services Worker including FSS, FSW, SSS, SSW
FEP	Full Employment Program
PSP	Public Service Program
SNAP E&T	Supplemental Nutrition Assistance Program Education & Training
VIEW	Virginia Initiative for Education and Work
WE	Work Experience (SNAP E&T)

PURPOSE OF FORM - This form provides a written means for the Employment Services Worker (ESW) to monitor a VIEW or SNAP E&T participant's attendance in an education or training program on a monthly basis.

USE OF FORM - This form is used by the education or training program instructor to verify the participant's attendance. The form is also used by the ESW to evaluate any need for intervention to enhance the VIEW or SNAP E&T participant's progress. A separate form is completed for each course.

NUMBER OF COPIES - One

DISPOSITION OF COPIES - The original is mailed to the agency by the fifth calendar day after the report month and becomes a part of the case record.

INSTRUCTIONS FOR PREPARATION OF FORM:

The ESW will be responsible for informing the participant of their responsibility to ensure that the form has been completed in its entirety and signed by the instructor/ his designee each month. A sufficient supply of copies of the form for the semester/ quarter/ length of the course should be given to the participant at the time the assignment is made.

All sections of the form need to be completed in their entirety to enable the ESW to verify attendance. The ESW will fill in the Participant's Name, Case #, ESW name, and ESW Phone # at the top of the form. The participant will fill in the Name of Class, Name of Program/Curriculum, Name of Institution, Name of Instructor, and How is Instruction Delivered. The participant will circle the days of the month the class is scheduled to meet. After each scheduled class meeting, the participant will fill in the actual hours of attendance, or the appropriate code if the class was not attended. After the form has been completed, the participant will sign it and then have the instructor or designee answer the homework and attendance questions and sign the form.

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The ESW will review the form, and, if unsupervised homework or study time is necessary for success in the class (this will be checked by the instructor), will add one hour of unsupervised homework/study time for each hour of scheduled class time and will total the hours of attendance and unsupervised homework/study time, and fill in the Total monthly attendance hours. The ESW will fill in the Assigned hours for the month, the Holiday hours used during the month, the Excused Absence hours used during the month, and the Total Countable hours of participation for the month.

Note: Unsupervised homework/study time can be counted for each hour the participant was scheduled to attend, even if the participant was absent from class on a particular day, if the class was not held because the institution was closed on the scheduled class day, or because scheduled day fell on a holiday. If the participant reports that supervised study time is a required part of the class, the worker will obtain verification from the instructor and will note the hours spent in supervised study by date on the form and add them to the Total Hours for the Report Month). The total hours of class attendance, unsupervised homework/study time, plus any supervised study time, will be reported as participation if otherwise allowable.

The participant will be responsible for providing the completed form to the ESW by the fifth calendar day after the close of the report month.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF SOCIAL SERVICES
EMPLOYMENT SERVICES PROGRAMS
COMMUNICATION FORM- From BPS to ESW

To _____, ESW
From _____, BPS
Date ____/____/____
Reply Needed By ____/____/____
☐ Copy Sent to Child Care Worker

Name of Participant _____
Case Name _____
Case Number _____

Participant's Client ID # _____
☐ SNAPET ☐ TANF ☐ TANF-UP

- ☐ Reapplication for TANF - Previous Failure to Sign Agreement of Personal Responsibility. APR signed on ____/____/____ (APR attached). Effective Date of TANF approval: ____/____/____.
- ☐ Result of reevaluation of non-exempt/mandatory status: _____
- ☐ Volunteer no longer wishes to participate.
- ☐ Non-exempt/mandatory individual now exempt. Reason: _____
- ☐ Individual may be unable to participate in ESP/SNAPET program because _____

☐ Individual is not able to ☐ Read English ☐ Write English

☐ Individual will enter/entered employment at _____ on ____/____/____.
Scheduled # of Hours/week _____. Rate of pay \$ _____ per _____.
Frequency of pay: _____. Date of First Pay: ____/____/____.

☐ Individual/household no longer eligible for SNAP. Case closed due to: (check one)

☐ Employment/benefit reduction/savings information provided below

☐ Other: _____

Effective Date: ____/____/____.

☐ Individual removed from the SNAP household because _____

Effective Date: ____/____/____.

☐ Effective with payment on ____/____/____, benefits will be reduced from \$ _____ to \$ _____.

☐ Individual appealed TANF sanction. Case remains open until appeal resolved.

☐ TANF Sanction ended effective ____/____/____.

☐ TANF case reopened.

☐ 24-Month Eligibility Termination date: ____/____/____.

☐ Appeal prior to 24-Month Closure or ☐ Appeal of Hardship Denial prior to 24-Month Closure. Appeal scheduled for: ____/____/____. ☐ Client has requested that case remain open until appeal resolved.

☐ VIEW Transitional Payment established effective ____/____/____.

☐ VIEW Transitional Payment ended effective ____/____/____.

Reason: _____

☐ Amount of SNAP allotment for the month of _____ was \$ _____.

☐ New certification period from ____/____/____ to ____/____/____.

☐ Individual is a refugee. Contact _____ (refugee resettlement agency) at _____ (telephone) before conducting VIEW/SNAP E&T initial assessment.

☐ Other _____

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF SOCIAL SERVICES
EMPLOYMENT SERVICES PROGRAMS
COMMUNICATION FORM- From ESW to BPS

To _____, BPS
From _____, ESW
Date ____/____/____
Reply Needed By ____/____/____
☐ Copy Sent to Child Care Worker

Name of Participant _____
Case Name _____
Case Number _____

Participant's Client ID # _____
☐ SNAP E&T ☐ TANF ☐ TANF-UP

- ☐ Volunteer signed APR on _____. Please update AEGNFS screen and run ED/BC.
☐ Reevaluation of non-exempt/mandatory status is requested. Reason: _____.
☐ Volunteer no longer wishes to participate. Please update AEGNFS screen and run ED/BC.

- ☐ Individual will enter education or training activity on ____/____/____.
☐ Individual will be a participant in work experience. Please provide the SNAP amount for the month of _____.

- ☐ Individual will enter/entered employment on ____/____/____.
Employer _____
Scheduled # of Hours/week: _____. Rate of pay: \$ _____ per _____.
Frequency of pay: _____. Date of First Pay: ____/____/____.
☐ Please send verification of employment.

- ☐ Individual has failed to comply with program requirements of _____. Good cause does not exist.
☐ Notify ESW if aware of good cause reason.
☐ Sanction TANF for (check appropriate answer)
☐ 1 month and compliance ☐ 3 months and compliance ☐ 6 months and compliance
☐ SNAP E&T case will close effective ____/____/____.
☐ Please provide the dollar amount of SNAP reduction due to employment or sanction.
☐ Please notify when suspended TANF case has been reinstated.

- ☐ VIEW Transitional Payment enrollment opened effective ____/____/____.
☐ VIEW Transitional Payment enrollment closed effective ____/____/____.
Reason: _____.

- ☐ Hardship denied on ____/____/____.
☐ Hardship granted from ____/____/____ to ____/____/____.
☐ Hardship terminated on ____/____/____.

- ☐ Other _____

10/24

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EMPLOYMENT SERVICES PROGRAMS COMMUNICATION FORM

FORM NUMBER - 032-02-0072

PURPOSE OF FORM - To exchange information about an employment services participant between the BPS and the employment services worker (ESW).

USE OF FORM - Either the BPS or the employment services may originate the form when circumstances change for the participant that require the exchange of information.

NUMBER OF COPIES - Two.

DISPOSITION OF FORM – The form consists of an BPS to ESW page and an ESW to BPS page. When the form is sent, both pages should be provided. A copy of the entire form should be retained in both the TANF/SNAP and VIEW/SNAP E&T files.

INSTRUCTIONS FOR PREPARATION OF FORM

The name of the BPS and the ESW, the date the form is sent, and the date the reply is needed must be entered in the upper right hand corner by the worker who originates the form.

Enter the identifying information for the case and participant.

The remainder of the form is completed when messages must be communicated between the eligibility staff and the employment services staff. The worker will check whichever block communicates the desired information, requests the desired information, or is applicable to the situation. If the worker needs to communicate information that is not listed on the form, check "Other" and enter the information.

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF SOCIAL SERVICES
SNAP EMPLOYMENT AND TRAINING (SNAP E&T)

TO: _____ Agency _____
 _____ (Name)
 _____ Date _____
 _____ (Address)
 _____ Case Number _____
 _____ (City State & ZIP)

SNAP E&T NOTICE OF CASE CLOSURE

You are out of compliance with rules for SNAP E&T participation.

You did not participate as required in SNAP E&T. Because of this, your SNAP E&T participation will be terminated.

SNAP E&T WILL END BECAUSE:

- ☐ You did not keep your scheduled appointment on ____.
- ☐ You did not complete your assignment to ____.
- ☐ Other ____.

In order to avoid having your case closed, you must contact me by _____ to give me a good reason why you did not complete the activity checked above.

If we do not hear from you on or before _____, your SNAP E&T case will close effective _____

SNAP E&T Worker/Case Manager:_____

Telephone Number:_____

APPEALS AND FAIR HEARINGS

If you do not agree with the action we are proposing or the amount of benefits you are receiving, you may have a fair hearing on your case. At the hearing you will have a chance to explain why you think we made a mistake and a hearing officer will decide if you are right. A hearing gives you a chance to review the way a local social services agency handled your situation about your need for SNAP benefits. The hearing is a private, informal meeting at the local social services agency with you and anyone you want to bring as a witness or to help you tell your story, such as a lawyer. A representative of the local agency will be present as well as a hearings officer. The hearing officer is the official representative of the State Department of Social Services.

It is YOUR RIGHT TO APPEAL decisions of the local social services agency. If you want more information or help with an appeal, you may contact the local social services agency. It will not cost you anything to request a fair hearing, and you will not be penalized for asking for a fair hearing. If you want free legal advice, you may contact your local legal aid office.

How to File an Appeal

- Send a written request to the Virginia Department of Social Services, Attention: Hearing and Legal Services Manager, 5600 Cox Road, Glen Allen, VA 23060
- Call me at the number listed on the front
- Call 1-800-552-3431

When to Appeal

- Within the next 90 days.
- Within 10 days of the date on this form to get the SNAP benefits continued.*

* Note that you may have to repay benefits you received during the appeal process if the hearing decision supports the agency action.

Local Agency Conference

In addition to filing an appeal, you may have a conference with your local social services agency about the denial of your entitlement to expedited SNAP benefits. During the conference, the agency must explain why you were not entitled to expedited benefits. You will have the chance to present any information where you disagree with the agency's proposed action. You may present your story by an authorized representative, such as a friend, relative, or lawyer.

Hearing Process and Decision

The hearing officer will notify you of the date and time for your hearing at the local social services agency or at a location agreeable to you and the agency. If you cannot be there on that day, call the hearing officer and your eligibility worker immediately. If you need transportation, the local agency will provide it.

At the hearing, you and/or your representative will have the opportunity to:

- Examine all documents and records used at the hearing;
- Present your case or have it presented by a lawyer or by another authorized representative;
- Bring witnesses;
- Establish pertinent facts and advance arguments; and
- Questions or refute any testimony or evidence, including the opportunity to confront and cross-examine witnesses.

The hearings officer will base the decision only on the evidence and other material introduced at the hearing, except when medical information is requested or other essential information is needed. In this event, you and the local social services agency would have the opportunity to question or refute this additional information.

You will get the hearings officer's decision in writing on your appeal within 60 days of the date the State Department of Social Services receives your appeal request.

SNAP E&T NOTICE OF CASE CLOSURE

FORM NUMBER - 032-02-0089

PURPOSE OF FORM -

This form informs households of the closure of the SNAP E&T case due to the failure to comply with SNAP E&T requirements. The form also establishes the time frame of five working days to establish good cause and notes the reason for being out of compliance.

USE OF FORM - The form must be sent to each participant after the participant fails to comply with SNAP E&T requirements.

NUMBER OF COPIES - Two

DISPOSITION OF COPIES - Original is sent to the participant
Copy is maintained in participant's case record

INSTRUCTIONS FOR PREPARATION OF FORM:

1. Complete the identifying case information and the name and address of the person who did not comply with SNAP E&T requirements.
2. Check the appropriate block indicating what the participant failed to do.
3. Enter the last day of the 5-working-day good cause time period in the two remaining blanks.

Example

The SNAP E&T Worker sent a SNAP E&T Notice of Case Closure to a participant who was out of compliance on Thursday, March 3rd. The date by which the participant must contact the worker no later than March 10th.

4. Include the SNAP E&T worker/case manager's name and phone number.

/

COMMONWEALTH OF VIRGINIA
DEPARTMENT OF SOCIAL SERVICES
EMPLOYMENT SERVICES PROGRAM

VIEW ☐ SNAP E&T ☐
Participant's Name: _____
Case #: _____
ESW: _____
ESW Phone #: _____

MEDICAL EVALUATION

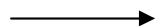
It is our goal to assist the individual named below in becoming economically self-sufficient. This person states that they are unable to participate in employment and training activities. Please give careful consideration in completing this medical evaluation. The information that you provide will be used to determine program activities that this individual may be able to perform, even if there are some limitations.

Patient's Name: _____ Address: _____ Phone Number: _____ Birthdate: _____	Agency Name: _____ Address: _____ Agency Contact: _____ Phone Number: _____ Fax: _____ Email: _____
--	--

ABILITY TO PARTICIPATE IN EMPLOYMENT AND TRAINING ACTIVITIES:

1. Date of examination on which this medical evaluation is based: _____ (Examination must have been conducted within the last 90 days).
2. In terms of participating in employment and training activities and the individual's current health issue(s), check the most appropriate statement (**ONLY ONE**) either A, B, or C.

A. ☐	<i>Able to participate in employment and training activities without significant limitations or modifications</i> Skip the remaining questions and complete the Signature section at the bottom of page 2.
B. ☐	<i>Able to participate in employment and training activities at least 20 hours per week with limitations and/or modifications as needed.</i> Anticipated number of months the limitation or need for modification will last. (check one) ☐ 1 ☐ 2 ☐ 3 ☐ 4 ☐ 5 ☐ 6 ☐ 7 ☐ 8 ☐ 9 ☐ 10 ☐ 11 ☐ 12 How many total hours per week can the individual participate in employment and training activities? (check one) ☐ 20 ☐ 25 ☐ 30 ☐ 35 Skip to page 2, answer questions 3 through 10, and complete the Signature section at the bottom of page 2.
C. ☐	<i>Not able to participate in employment and training activities in any capacity at this time</i> Anticipated number of months the limitation or need for modification will last. (check one) ☐ 1 ☐ 2 ☐ 3 ☐ 4 ☐ 5 ☐ 6 ☐ 7 ☐ 8 ☐ 9 ☐ 10 ☐ 11 ☐ 12 Skip to page 2, answer questions 3 through 10, and complete the Signature section at the bottom of page 2.



3. Based on your knowledge of the individual's medical condition, list any limitations that would affect the individual's ability to participate in employment and training activities.
- ☐ Physical Limitations: _____
- ☐ Mental Health Limitations: _____
- ☐ Other Limitations Not Listed Above: _____
4. Do you recommend that this individual apply for SSI (Supplemental Security Income) or SSDI (Social Security Disability Insurance) benefits at this time? ☐ Yes ☐ No

DIAGNOSIS AND TREATMENT:

5. Please indicate the primary medical reason for the individual's inability to participate in employment and training activities, or to participate with modifications and/or limitations, in the "primary diagnosis" space below.
- Primary Diagnosis: _____
- If other medical issues contribute to the individual's inability to participate in employment and training activities, or to participate with modifications and/or limitations, please record those in "secondary diagnosis" space below.
- Secondary Diagnosis: _____
6. Would reviewing this form jeopardize the patient's health or well-being? ☐ Yes ☐ No

COMPLIANCE:

7. If physical therapy, counseling, medication or other treatments were prescribed, is the individual complying?
- ☐ Yes ☐ No ☐ Don't know
8. If the individual is not complying with recommendations, are you aware of the reason for not complying?
- ☐ Yes ☐ No ☐ Don't know
9. Does the individual's condition hinder their ability to care for children? ☐ Yes ☐ No

REFERRALS:

10. Does the individual require additional evaluation and/or assessment to determine current and/or future functioning?
- ☐ Yes ☐ No If yes, by whom: _____

Field or area of expertise: _____ Date referred: _____

SIGNATURE:

This form may be signed **only** by a medical doctor, including a psychiatrist, a doctor of osteopathy, or by a physician's assistant or nurse practitioner working in the practice of a medical doctor or doctor of osteopathy.

Signature _____

(Physician or Nurse Practitioner or, Physician's Assistant)

Date form was completed: _____

Name _____

(Please print)

Office telephone number: _____

Office Address _____

or

OFFICE STAMP

MEDICAL EVALUATION

FORM NUMBER – 032-03-1040

PURPOSE OF FORM – To provide medical information concerning the mental/physical condition of a Temporary Assistance for Needy Families (TANF) and/or SNAP Employment and Training (SNAP E&T) applicant/recipient or a Virginia Initiative for Education and Work (VIEW) participant.

USE OF FORM – To be used by the local social services agency in securing medical information when a written statement is necessary to determine ability to participate in employment and training activities.

NUMBER OF COPIES – One.

DISPOSITION OF FORM – Submitted to the examining or treating medical professional and, upon return to the local department, filed in the case record.

INSTRUCTIONS FOR PERPARATION OF FORM – The information at the top of the form is completed by the eligibility/VIEW/SNAP E&T worker prior to submittal of the form to the examining or treating medical professional. The information requested in Items 1 through 10 is entered by the examining or treating medical professional. The medical doctor, physician's assistant, or nurse practitioner is to sign the form and also complete the identifying information in the appropriate spaces.

In the case of a single parent household, if the medical professional completing the form indicates in Compliance, item 9, that the patient's condition hinders his/her ability to care for the children, contact the agency's childcare and/or child welfare staff to determine if services are needed

Local Department of Social Services Client Referral Sheet

Full Name of Client: _____

Address: _____

City/County _____ **Zip Code:** _____

Client Case #: _____ **Time-Limited:** _____ **yes** _____ **no**

Referred To: _____
(Name of Re-entry Services Coalition Member)

Services requested: _____

Local Social Services Agency: _____

Person Referring: _____

Signature of Person Referring: _____ **Date:** _____

Phone Number: (____) _____ - _____ **FAX:** (____) _____ - _____

Email Address: _____

Authorization to release information:

Confidentiality: Any information obtained by the Re-entry Services Coalition concerning recipients of social services shall be treated as confidential in accordance with relevant provisions of State and federal law.

Client Signature: _____ **Date** _____

***Person Receiving Client:** _____

Signature of Staff Receiving Client: _____ **Date:** _____

***Client Referred to One-Stop:** ____ **yes** ____ **no** **Date:** _____

*Local department of social service worker making referral must be notified via e-mail.

Local Department of Social Services Re-Entry Client Referral Sheet

FORM NUMBER - 032-03-0412

PURPOSE OF FORM – This form provides Re-Entry Services Coalition Members with a written request from the local department of social services to provide services to a SNAP E&T participant who is also an ex-offender.

USE OF FORM – The SNAP E&T worker must prepare the form to refer SNAP E&T participants who are ex-offenders to a Re-entry Services Coalition Member for necessary services.

NUMBER OF COPIES - Two.

DISPOSITION OF FORM – The original form must be sent to the Re-entry Coalition Member for inclusion in the case file maintained at that organization. A copy of the completed form must be maintained in the SNAP E&T file.

First Report of Injury

Virginia Workers' Compensation Commission
1000 DMV Drive Richmond Virginia 23220
1-877-664-2566



Reason for filing: _____
VWC Jurisdiction Claim #: _____
(If assigned) _____

SEE INSTRUCTIONS ON REVERSE SIDE

www.vwc.state.va.us

Claim Administrator File#: _____

Employer		
Employer's Legal Name		Federal Employer Identification Number (FEIN)
Employer's Mailing Address		
Name/FEIN of Entity on Policy		Nature of Business
Name and Address of Insurer or Self-Insurer for this Claim		Policy Number
Time and Place of Accident		
Location where accident occurred	Date of injury	Hour of injury ☐ a.m. ☐ p.m.
Date injury or illness reported	If fatal, give date of death	If fatal, give marital status ☐ Single ☐ Divorced ☐ Married ☐ Widowed
	If fatal, give number of dependent children	
Injured Worker		
Name of Injured Worker	Phone Number	Injured Worker ID Number
Injured Worker's mailing address		Type of ID ☐ Social Security No. ☐ Employment Visa ☐ Green Card ☐ Passport No. ☐ Unknown
Occupation at time of injury or illness	Date of birth	Sex ☐ Male ☐ Female
Nature and Cause of Accident		
Machine, tool, or object causing injury or illness		
Describe fully how injury or illness occurred		
Describe nature of injury, occupational disease, or illness, including body parts affected		
Signatures		
Submitter (name, signature, title)	Date	Phone number
Submitter's Address		

First Report of Injury

Filing Instructions

The Virginia Workers' Compensation Act requires that **ALL** injuries occurring in the course of employment be reported to the Commission pursuant to Va. Code §65.2-900.

Employer

The employer is responsible for accurately completing all sections of this form when an employee is injured. It should be typed or legibly printed, signed, and dated by the preparer. Send the original form to the claim administrator for the insurance company who provided insurance coverage on the date of the occurrence. The claim administrator will report this information to the Commission. Contact your workers' compensation insurance provider for additional information.

Claim Administrator

Claim administrators who are EDI enabled will use the information contained on the paper form and submit electronic data to the Commission.

Claim administrators who are NOT EDI enabled must immediately file the completed form with the Commission. Please note: EDI is mandatory no later than June 30, 2009, after which time paper reports will no longer be accepted. Until you are in EDI production, mail the completed form to the Virginia Workers' Compensation Commission, 1000 DMV Drive, Richmond, VA 23220. At the top of the form, use a numerical code (1-7) to indicate the reason for filing the form for accidents meeting one of the filing criterion.* If none of the criteria apply, you must still report the accident, but may use either Form 45A or this form to do so. (Leave "reason for filing" blank in such a case.)

For questions or assistance in completing the form, please contact the Commission toll-free at 877-664-2566.

*Criteria for filing are: (1) lost time exceeds seven days; (2) medical expenses exceed \$1,000.00; (3) compensability is denied; (4) issues are disputed; (5) accident resulted in death; (6) permanent disability or disfigurement may be involved; and (7) a specific request is made by the Virginia Workers' Compensation Commission.

PART XXVI

SNAP QUALITY CONTROL

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SNAP Quality Control

A. Overview

The Quality Control (QC) Unit is responsible for the state's implementation of the SNAP Quality Control process as required by the U.S. Department of Agriculture (USDA). Each month, a random sample of households is selected for review from households that are receiving SNAP benefits (referred to as active or positive cases) and households for which participation was denied, suspended or terminated (referred to as closed or negative cases).

Reviews are conducted on active cases to determine if households are eligible and receiving the correct amount of SNAP benefits. The determination of whether the household received the correct benefit amount is made by comparing the eligibility data gathered during the review against the amount authorized on the master issuance file. Reviews of negative cases are conducted to determine whether the agency's decision to deny, suspend, or terminate the household was correct, as of the review date.

B. Review Findings

Regional QC staff forward findings for each case review to local departments of social services. QC staff forward error and variance findings to local departments via email and correct or incomplete findings via pouch. QC also forwards error and variance findings to the SNAP Unit via email. The email notification includes:

- 1) A cover letter summarizing the QC findings, also known as the Notification of QC Finding. Listed is the QC contact name and phone number, detailed non-concurrence action items and instructions, and other pertinent information.
- 2) The QC Findings Report identifying the error and the specific circumstances of the case including case record information, QC findings, and QC conclusion. Additional information contained therein is the case name and number, sample month, active or negative case findings, procedural problems, and noted attachments.
- 3) The SNAP Corrective Action Report (SCAR) for each error and variance case requires completion by the local department. The SCAR tracks BPS experience, action(s) taken for case resolution, proposed preventative measures, and request for action from the state in agency error reduction activities.

Sample forms are available at <https://fusion.dss.virginia.gov/bp/BP-Home/Performance-Improvement>.

C. Local Procedures upon Receipt of QC Findings

Listed below are the steps for a local agency to file a concurrence or non-concurrence to QC findings.

Responding to a QC Error or Variance Findings Report:

- The local department must respond, as appropriate, as instructed in the Notification of QC Error Finding letter. The local department may note its concurrence or disagreement with an error finding on the SCAR. The local department must forward the completed SCAR via email to the QC Regional Supervisor, SNAP Regional Practice Consultant, and the SNAP Corrective Action Coordinator. Errors cited by QC are attributed to the local department where the case was active during the sample month. Errors cited by QC are final and cannot be adjusted or changed.
- Local departments may disagree with QC error finding if they determine QC failed to follow SNAP policy applicable for the sample month reviewed. Local departments must document their disagreement on the SCAR. The completed SCAR must include documentation, written evidence or policy justification to support the disagreement with QC error findings.

Time Frame for Responding:

- The local department has ten (10) days from the email notification sent date to email the completed SCAR form disagreeing with the QC error finding. The local department must submit the SCAR to the QC Regional Supervisor, SNAP Regional Practice Consultant, and the SNAP Corrective Action Coordinator by the close of business on the tenth (10th) day.
- Failure to respond appropriately within the timeframe will default to concurrence with the error finding.

Resolution of a Disagreement:

The SNAP Error Committee will review the SCAR submitted by the local department along with any rebuttal evidence and supporting case documentation upon receipt. The SNAP Error Committee consists of the SNAP Corrective Action Coordinator, the QC Supervisor, Benefit Programs Training staff and other designated staff as needed. The SNAP Error Committee will provide a formal decision within 30 days.